SUPPLEMENT NO. 57
September 2026

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 10171, enacted June 22, 2026.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xviii	xiii—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD10:1—CD10:23	CD10:1—CD10:24
CD14:15—CD14:28	CD14:15—CD14:28
CCT:45	CCT:45
CDi:23, CDi:24	CDi:23, CDi:24
CDi:41, CDi:42	CDi:41, CDi:42

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SUPPLEMENT NO. 56
March 2026

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 1033, enacted October 27, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xviii	xiii—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD10:3—CD10:8	CD10:3—CD10:8.1
CD10:14.1—CD10:23	CD10:15—CD10:23
CD16:3—CD16:8	CD16:3—CD16:8
CD19:11—CD19:24.1	CD19:11—CD19:21
CCT:45	CCT:45

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SUPPLEMENT NO. 55
August 2025

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 992, enacted June 23, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
CD6:1—CD6:4	CD6:1—CD6:4
CD6:47—CD6:54	CD6:47—CD6:54.1
CD6:67, CD6:68	CD6:67, CD6:68
CD24:1	CD24:1, CD24:2
CCT:45	CCT:45
CDi:35, CDi:36	CDi:35, CDi:36

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SUPPLEMENT NO. 54
January 2025

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 857, enacted October 14, 2024.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3—SH:5
CD18:7, CD18:8	CD18:7, CD18:8
CD24:1	CD24:1
CCT:45	CCT:45

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SUPPLEMENT NO. 53
September 2024

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 720, enacted February 12, 2024.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xviii	xiii—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD14:1—CD14:28	CD14:1—CD14:28
CD15:1—CD15:54	CD15:1—CD15:60
CD24:1	CD24:1
CCT:45	CCT:45
SLT:1—SLT:4	SLT:1—SLT:5
CDi:1—CDi:51	CDi:1—CDi:51

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SUPPLEMENT NO. 52
February 2024

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 649, enacted November 13, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD14:1—CD14:27	CD14:1—CD14:28
CD15:38.1—CD15:54	CD15:39—CD15:54
CCT:45	CCT:45
CDi:27, CDi:28	CDi:27—CDi:28.1

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SUPPLEMENT NO. 51
October 2023

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 596, enacted August 21, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD24:1	CD24:1
CDA:1	CDA:1
CCT:45	CCT:45

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SUPPLEMENT NO. 50
August 2023

CODE OF ORDINANCES

City of

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Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 542, enacted May 15, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xviii	xiii—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD9:1—CD9:35	CD9:1
CD17:1—CD17:18	CD17:1
CD18:1, CD18:2	CD18:1
CD18:19—CD18:47	CD18:19, CD18:20
CD19:1—CD19:20	CD19:1—CD19:17
CD20:1	CD20:1
CD21:1	CD21:1
	CD24:1
CDA:1	CDA:1
CCT:43, CCT:44	CCT:43—CCT:45
SLT:1—SLT:5	SLT:1—SLT:4
CDi:1—CDi:56	CDi:1—CDi:56

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SUPPLEMENT NO. 49
March 2023

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 464, enacted January 23, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD3:7, CD3:8	CD3:7, CD3:8
CD3:18.1—CD3:22	CD3:19—CD3:22.1
CD23:9, CD23:10	CD23:9—CD23:10.1
CD23:46.3—CD23:48.2	CD23:47—CD23:48.4
CCT:43, CCT:44	CCT:43, CCT:44

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SUPPLEMENT NO. 48
November 2022

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 373, enacted August 22, 2022.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD15:3, CD15:4	CD15:3, CD15:4
CD15:5, CD15:6	CD15:5—CD15:6.1
CD15:51	CD15:51—CD15:54
CCT:43, CCT:44	CCT:43, CCT:44
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:33, CDi:34	CDi:33, CDi:34
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SUPPLEMENT NO. 47
June 2022

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 278, enacted April 4, 2022.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:3, CD2:4	CD2:3, CD2:4
CD3:7, CD3:8	CD3:7, CD3:8
CD3:14.1, CD3:14.2	CD3:14.1, CD3:14.2
CD4:3, CD4:4	CD4:3—CD4:4.1
CD4:11, CD4:12	CD4:11, CD4:12
CD6:3, CD6:4	CD6:3, CD6:4
CD6:41, CD6:42	CD6:41, CD6:42
CD6:63—CD6:72	CD6:63—CD6:72
CD8:3, CD8:4	CD8:3, CD8:4
CD9:7, CD9:8	CD9:7—CD9:8.1
CD9:13, CD9:14	CD9:13, CD9:14
CD9:27—CD9:35	CD9:27—CD9:35
CD10:13, CD10:14	CD10:13—CD10:14.1
CD13:5—CD13:8	CD13:5—CD13:8
CD14:11, CD14:12	CD14:11, CD14:12
CD14:27	CD14:27
CD15:7—CD15:16.2	CD15:7—CD15:16.1
CD15:20.3—CD15:20.6	CD15:20.3—CD15:20.6
CD15:29, CD15:30	CD15:29, CD15:30
CD15:37, CD15:38	CD15:37—CD15:38.1
CD15:51	CD15:51
CD22:23—CD22:27	CD22:23—CD22:26

Remove Old Pages	*Insert New Pages*
CCT:43, CCT:44	CCT:43, CCT:44
SLT:1—SLT:4	SLT:1—SLT:5
CDi:13, CDi:14	CDi:13, CDi:14
CDi:21—CDi:26	CDi:21—CDi:26

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SUPPLEMENT NO. 46
November 2021

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 115, enacted August 9, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xv—xviii	xv—xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:5—CD2:9	CD2:5—CD2:9
CD2:17—CD2:20	CD2:17—CD2:20
CD12:1—CD12:6.1	CD12:1—CD12:6.2
CD22:11—CD22:14	CD22:11—CD22:14.1
CCT:43, CCT:44	CCT:43, CCT:44
SLT:1—SLT:4	SLT:1—SLT:4
CDi:7—CDi:16	CDi:7—CDi:16.1
CDi:23, CDi:24	CDi:23—CDi:24.1
CDi:39, CDi:40	CDi:39, CDi:40

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SUPPLEMENT NO. 45
September 2021

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 93, enacted June 28, 2021.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xvii—xx	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD2:1, CD2:2	CD2:1, CD2:2
CD4:1	CD4:1
CD5:1, CD5:2	CD5:1, CD5:2
CD5:5, CD5:6	CD5:5, CD5:6
CD5:9—CD5:16	CD5:9—CD5:16
CD9:3, CD9:4	CD9:3—CD9:4.1
CD9:13—CD9:24	CD9:13—CD9:24.1
CD11:1—CD11:16	CD11:1—CD11:16.1
CD13:1	CD13:1
CD17:1	CD17:1
CD17:5, CD17:6	CD17:5—CD17:6.1
CD17:11—CD17:17	CD17:11—CD17:18
CD18:1, CD18:2	CD18:1, CD18:2
CD18:18.1—CD18:28	CD18:19—CD18:28.3
CD19:1, CD19:2	CD19:1, CD19:2
CD19:7, CD19:8	CD19:7—CD19:8.2
CD19:13—CD19:18	CD19:13—CD19:18.2
CD19:37, CD19:38	CD19:37, CD19:38
CD20:1—CD20:35	CD20:1
CD21:1—CD21:20	CD21:1
CDA:1—CDA:403	CDA:1
CCT:43	CCT:43, CCT:44
SLT:1—SLT:5	SLT:1—SLT:4
CDi:1—CDi:85	CDi:1—CDi:56

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SUPPLEMENT NO. 44
February 2021

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9921, enacted October 26, 2020.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD16:4.1—CD16:7	CD16:5—CD16:8
CDA:222.1—CDA:224	CDA:223—CDA:224.1
CCT:43	CCT:43

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SUPPLEMENT NO. 43
September 2020

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9837, enacted July 27, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD8:1	CD8:1
CD8:3—CD8:5	CD8:3, CD8:4
CD18:1—CD18:18	CD18:1—CD18:18.2
CDA:34.3—CDA:38	CDA:34.3—CDA:38
CDA:48.3	CDA:48.3
CDA:87—CDA:90.4	CDA:87—CDA:90.4
CDA:138.1—CDA:138.4	CDA:138.1—CDA:138.4
CDA:161, CDA:162	CDA:161, CDA:162
CDA:239—CDA:244.1	CDA:239—CDA:244.1
CDA:298.11, CDA:298.12	CDA:298.11, CDA:298.12
CDA:313, CDA:314	CDA:313—CDA:314.1
CCT:43	CCT:43
SLT:1—SLT:5	SLT:1—SLT:5
CDi:17—CDi:24	CDi:17—CDi:24
CDi:31, CDi:32	CDi:31, CDi:32
CDi:49, CDi:50	CDi:49, CDi:50
CDi:53—CDi:56	CDi:53—CDi:56

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SUPPLEMENT NO. 42
March 2020

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9672, enacted October 21, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv—xx	xv—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD11:1—CD11:23	CD11:1—CD11:24
CD21:3—CD21:16.1	CD21:3—CD21:16.4
CDA:5—CDA:13	CDA:5—CDA:12
CDA:23—CDA:34.1	CDA:23—CDA:34.4
CDA:39, CDA:40	CDA:39, CDA:40
CDA:45, CDA:46	CDA:45, CDA:46
CDA:48.3	CDA:48.3
CDA:58.1, CDA:58.2	CDA:58.1, CDA:58.2
CDA:83, CDA:84	CDA:83—CDA:84.1
CDA:89—CDA:90.4	CDA:89—CDA:90.4
CDA:115—CDA:118	CDA:115—CDA:118
CDA:125—CDA:128	CDA:125—CDA:127
CDA:133—CDA:138.12	CDA:133—CDA:138.13
CDA:143—CDA:156.1	CDA:143—CDA:156.1
CDA:161—CDA:166.3	CDA:161—CDA:166.3
CDA:175—CDA:194	CDA:175—CDA:194
CDA:194.5—CDA:196.1	CDA:194.5—CDA:196.1
CDA:247—CDA:248.4	CDA:247—CDA:248.4
CDA:248.15—CDA:248.25	CDA:248.15—CDA:248.25
CDA:251, CDA:252	CDA:251, CDA:252
CDA:259, CDA:260	CDA:259—CDA:260.1
CDA:265, CDA:266	CDA:265, CDA:266
CDA:273—CDA:278	CDA:273—CDA:278
CDA:285—CDA:288	CDA:285—CDA:288

Remove Old Pages	*Insert New Pages*
CDA:293—CDA:296	CDA:293—CDA:296
CDA:309—CDA:326.3	CDA:309—CDA:326.7
CDA:329—CDA:348.2	CDA:329—CDA:348.2.1
CDA:353—CDA:385	CDA:353
CCT:41	CCT:41—CCT:43
SLT:3—SLT:5	SLT:3—SLT:5
CDi:27, CDi:28	CDi:27, CDi:28
CDi:67—CDi:88	CDi:67—CDi:85

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SUPPLEMENT NO. 41
October 2019

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9585, enacted June 24, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
CD6:3, CD6:4	CD6:3, CD6:4
CD6:71—CD6:76	CD6:71—CD6:76
CD15:1, CD15:2	CD15:1, CD15:2
CD15:17—CD15:20.3	CD15:17—CD15:20.6
CDA:1—CDA:13	CDA:1—CDA:13
CDA:55, CDA:56	CDA:55—CDA:56.2
CDA:68.1	CDA:68.1
CDA:77	CDA:77
CDA:90.3—CDA:92	CDA:90.3—CDA:92.1
CDA:194.6.1—CDA:196.6	CDA:195—CDA:196.5
CDA:285—CDA:288	CDA:285—CDA:288
CDA:295—CDA:298.14	CDA:295—CDA:298.14.1
CDA:311—CDA:312.2	CDA:311—CDA:312.2
CDA:317, CDA:318	CDA:317, CDA:318
CDA:323—CDA:326	CDA:323—CDA:326
CDA:333, CDA:334	CDA:333, CDA:334
CDA:337, CDA:338	CDA:337—CDA:338.1
CDA:343—CDA:348.5	CDA:343—CDA:348.7
CDA:365—CDA:372.2.1	CDA:365—CDA:372.2.1
CDA:389	CDA:389
CDA:391	CDA:391
	CDA:393
CDA:395—CDA:400	CDA:395—CDA:403
CCT:39, CCT:40	CCT:39—CCT:41

Remove Old Pages	*Insert New Pages*
SLT:1—SLT:5	SLT:1—SLT:5
CDi:9, CDi:10	CDi:9, CDi:10
CDi:27, CDi:28	CDi:27, CDi:28
CDi:39, CDi:40	CDi:39, CDi:40
CDi:69, CDi:70	CDi:69, CDi:70
CDi:77, CDi:78	CDi:77, CDi:78
CDi:85—CDi:88	CDi:85—CDi:88

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SUPPLEMENT NO. 40
March 2019

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9492, enacted January 22, 2019.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD9:3—CD9:32	CD9:3—CD9:35
CD14:1—CD14:23	CD14:1—CD14:27
CD15:51, CD15:52	CD15:51
CD19:3, CD19:4	CD19:3, CD19:4
CD19:37	CD19:37, CD19:38
CD22:3—CD22:10	CD22:3—CD22:10
CD22:13—CD22:16	CD22:13—CD22:16
CD22:19—CD22:26	CD22:19—CD22:27
CDA:41—CDA:42.1	CDA:41—CDA:42.1
CDA:46.1—CDA:48.2	CDA:46.1—CDA:46.3
CDA:97—CDA:98.2	CDA:97—CDA:98.2
CDA:98.5, CDA:98.6	CDA:98.5, CDA:98.6
CDA:107—CDA:124.1	CDA:107—CDA:124.3
CDA:138.13—CDA:140	CDA:139—CDA:140.2
CDA:151—CDA:156	CDA:151—CDA:156.1
CCT:39	CCT:39, CCT:40
SLT:1—SLT:5	SLT:1—SLT:5
CDi:23—CDi:28	CDi:23—CDi:28
CDi:33, CDi:34	CDi:33—CDi:34.1
CDi:57, CDi:58	CDi:57—CDi:58.1

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SUPPLEMENT NO. 39
June 2018

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9322, enacted April 23, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD19:11—CD19:16	CD19:11—CD19:16.2
CDA:9—CDA:13	CDA:9—CDA:13
CDA:33—CDA:34.1	CDA:33—CDA:34.1
CDA:40.1—CDA:42	CDA:41—CDA:42.1
CDA:46.3—CDA:48	CDA:47—CDA:48.2
CDA:87, CDA:88	CDA:87—CDA:88.1
CDA:90.3, CDA:90.4	CDA:90.3, CDA:90.4
CDA:161, CDA:162	CDA:161—CDA:162.1
CDA:171, CDA:172	CDA:171, CDA:172
CDA:187, CDA:188	CDA:187, CDA:188
CDA:192.1—CDA:194.6	CDA:193—CDA:194.6.1
CDA:194.15—CDA:194.16.1	CDA:194.15—CDA:194.16.1
CDA:243, CDA:244	CDA:243—CDA:244.1
CDA:248.5, CDA:248.6	CDA:248.5—CDA:248.6.1
CDA:306.1—CDA:308	CDA:307—CDA:308.2
CDA:347—CDA:348.7	CDA:347—CDA:348.5
CCT:39	CCT:39
CDi:71—CDi:72.1	CDi:71—CDi:72.1

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SUPPLEMENT NO. 38
March 2018

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9207, enacted November 13, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD6:3, CD6:4	CD6:3, CD6:4
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CD7:1—CD7:5	CD7:1—CD7:5
CD10:1—CD10:30	CD10:1—CD10:23
CCT:37, CCT:38	CCT:37—CCT:39
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:66.2	CDi:1—CDi:66.1

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SUPPLEMENT NO. 37 REVISION
January 2018

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement No. 37 Revision, is printed to revise pages appearing in Supplement 37, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
xvii, xviii	xvii, xviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD22:1—CD22:26	CD22:1—CD22:26

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SUPPLEMENT NO. 37
October 2017

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 9118, enacted June 26, 2017.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD2:5—CD2:8	CD2:5—CD2:8
CD2:17—CD2:20	CD2:17—CD2:20
CD6:5—CD6:32	CD6:5—CD6:32.1
CD12:1—CD12:6.1	CD12:1—CD12:6.1
CD13:3—CD13:6	CD13:3—CD13:6.1
CD13:13, CD13:14	CD13:13, CD13:14
CD15:3, CD15:4	CD15:3, CD15:4
CD15:51—CD15:53	CD15:51, CD15:52
CD16:3, CD16:4	CD16:3—CD16:4.1
CD19:23, CD19:24	CD19:23—CD19:24.1
CD22:1—CD22:56	CD22:1—CD22:26
CDA:11, CDA:12	CDA:11, CDA:12
CDA:37—CDA:40	CDA:37—CDA:40.1
CDA:47, CDA:48	CDA:47, CDA:48
CDA:87, CDA:88	CDA:87, CDA:88
CDA:90.3, CDA:90.4	CDA:90.3, CDA:90.4
CDA:133—CDA:138.2.1	CDA:133—CDA:138.2.1
CDA:138.13, CDA:138.14	CDA:138.13, CDA:138.14
CDA:145—CDA:152.1	CDA:145—CDA:152.1
CDA:159—CDA:162	CDA:159—CDA:162
CDA:171, CDA:172	CDA:171—CDA:172.1
CDA:187, CDA:188	CDA:187, CDA:188
CDA:194.3—CDA:194.6	CDA:194.3—CDA:194.6
CDA:194.13—CDA:194.16	CDA:194.13—CDA:194.16.1

Remove Old Pages	*Insert New Pages*
CDA:198.1—CDA:200	CDA:199—CDA:200.1
CDA:248.3—CDA:248.21	CDA:248.3—CDA:248.25
CDA:259, CDA:260	CDA:259, CDA:260
CDA:323—CDA:326.2	CDA:323—CDA:326.3
CCT:37	CCT:37, CCT:38
SLT:1—SLT:5	SLT:1—SLT:5
CDi:1—CDi:50	CDi:1—CDi:50
CDi:54.1—CDi:66.2	CDi:55—CDi:66.2
CDi:71, CDi:72	CDi:71—CDi:72.1

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SUPPLEMENT NO. 35
August 2016

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 8065, enacted June 27, 2016.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law 2007-255, ratified July 23, 2007.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CHT:3, CHT:4	CHT:3, CHT:4
CHT:39	CHT:39
CHTCT:1	CHTCT:1
CD2:5—CD2:10	CD2:5—CD2:9
CD2:17—CD2:20	CD2:17—CD2:20
CD12:1	CD12:1
CD12:3—CD12:6	CD12:3—CD12:6.1
CD18:37—CD18:38.1	CD18:37—CD18:38.1
CD22:13, CD22:14	CD22:13—CD22:14.1
CD22:55, CD22:56	CD22:55, CD22:56
CDA:58.1, CDA:58.2	CDA:58.1, CDA:58.2
CDA:138.7—CDA:138.12	CDA:138.7—CDA:138.14
CDA:197, CDA:198	CDA:197—CDA:198.1
CCT:37	CCT:37
SLT:2.1—SLT:5	SLT:3—SLT:5
CHTi:5—CHTi:11	CHTi:5—CHTi:11
CDi:17, CDi:18	CDi:17, CDi:18
CDi:47, CDi:48	CDi:47—CDi:48.1
CDi:71, CDi:72	CDi:71, CDi:72

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SUPPLEMENT NO. 34
February 2016

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 7035, enacted January 25, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD6:3, CD6:4	CD6:3, CD6:4
CD6:67—CD6:72	CD6:67—CD6:72.1
CD18:5, CD18:6	CD18:5, CD18:6
CDA:159—CDA:166	CDA:159—CDA:166.3
CCT:37	CCT:37
SLT:1, SLT:2	SLT:1—SLT:2.1
CDi:21, CDi:22	CDi:21, CDi:22
CDi:45, CDi:46	CDi:45, CDi:46
CDi:60.1, CDi:60.2	CDi:60.1, CDi:60.2

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SUPPLEMENT NO. 33
September 2015

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5988, enacted July 27, 2015.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law 2015-33, ratified May 21, 2015.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CHT:11—CHT:15	CHT:11—CHT:15
CHTCT:1	CHTCT:1
CD6:31—CD6:34	CD6:31—CD6:34
CD9:11—CD9:14	CD9:11—CD9:14.1
CD10:1, CD10:2	CD10:1, CD10:2
CD10:17—CD10:20	CD10:17—CD10:20.1
CD16:3—CD16:6	CD16:3—CD16:6
CDA:11, CDA:12	CDA:11, CDA:12
CDA:37, CDA:38	CDA:37—CDA:38.1
CDA:47, CDA:48	CDA:47, CDA:48
CDA:87—CDA:90.4	CDA:87—CDA:90.4
CDA:93—CDA:96	CDA:93—CDA:96
CDA:98.1—CDA:98.6	CDA:98.1—CDA:98.6
CDA:111—CDA:114	CDA:111—CDA:114.1
CDA:116.1, CDA:116.2	CDA:116.1, CDA:116.2
CDA:131—CDA:138.2.1	CDA:131—CDA:138.2.1
CDA:138.9—CDA:138.12	CDA:138.9—CDA:138.12
CDA:147—CDA:152	CDA:147—CDA:152.1
CDA:159, CDA:160	CDA:159, CDA:160

Remove Old Pages	*Insert New Pages*
CDA:171, CDA:172	CDA:171, CDA:172
CDA:187, CDA:188	CDA:187—CDA:188.1
CDA:194.3—CDA:194.6	CDA:194.3—CDA:194.6
CDA:194.13—CDA:194.16	CDA:194.13—CDA:194.16
CDA:251, CDA:252	CDA:251—CDA:252.1
CDA:259, CDA:260	CDA:259, CDA:260
CDA:298.1—CDA:298.10	CDA:298.1—CDA:298.10.1
CDA:345—CDA:347	CDA:344.1—CDA:347
CCT:35, CCT:36	CCT:35—CCT:37
CDi:1—CDi:6	CDi:1—CDi:6.1
CDi:31—CDi:34.1	CDi:31—CDi:34
CDi:49—CDi:54	CDi:49—CDi:54.1
CDi:60.1	CDi:60.1, CDi:60.2
CDi:71—CDi:72.1	CDi:71, CDi:72

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SUPPLEMENT NO. 32
April 2015

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5578, enacted February 18, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD4:1	CD4:1
CD4:5, CD4:6	CD4:5—CD4:6.1
CDA:194.5—CDA:194.8	CDA:194.5—CDA:194.8.1
CDA:314.1—CDA:318	CDA:315—CDA:318.2
CCT:21, CCT:22	CCT:21—CCT:22.1
CCT:35, CCT:36	CCT:35, CCT:36
CDi:7, CDi:8	CDi:7, CDi:8

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SUPPLEMENT NO. 31
March 2015

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5539, enacted December 15, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD20:1—CD20:34	CD20:1—CD20:35
CDA:3, CDA:4	CDA:3, CDA:4
CDA:9—CDA:12	CDA:9—CDA:12
CDA:49—CDA:52	CDA:49—CDA:52.1
CDA:59—CDA:62	CDA:59—CDA:62.1
CDA:82.1—CDA:90.3	CDA:83—CDA:90.4
CDA:94.1—CDA:98.4	CDA:95—CDA:98.6
CDA:103—CDA:116	CDA:103—CDA:116.2
CDA:121—CDA:124	CDA:121—CDA:124.1
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CDA:138.1—CDA:138.2.1	CDA:138.1—CDA:138.2.1
CDA:138.11, CDA:138.12	CDA:138.11, CDA:138.12
CDA:150.1—CDA:160	CDA:151—CDA:160.2
CDA:170.1—CDA:174	CDA:171—CDA:174.3
CDA:181—CDA:192	CDA:181—CDA:192.1
CDA:194.5, CDA:194.6	CDA:194.5—CDA:194.6.1
CDA:194.15—CDA:194.18	CDA:194.15—CDA:194.18
CDA:194.25, CDA:194.26	CDA:194.25, CDA:194.26
CDA:243—CDA:248.6.4	CDA:243—CDA:248.6.4
CDA:248.12.1	CDA:248.12.1
CDA:252.1—CDA:264.1	CDA:253—CDA:264.1
CDA:269—CDA:274.1	CDA:269—CDA:274.1
CDA:279—CDA:294	CDA:279—CDA:294
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Remove Old Pages	*Insert New Pages*
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CDi:59—CDi:60.1	CDi:59—CDi:60.1
CDi:71—CDi:72.1	CDi:71—CDi:72.1
CDi:77, CDi:78	CDi:77, CDi:78

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SUPPLEMENT NO. 30
August 2014

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5423, enacted July 21, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDA:30.1, CDA:30.2	CDA:30.1—CDA:30.3
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CDA:103—CDA:106	CDA:103—CDA:106
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CDA:138.7—CDA:138.12	CDA:138.7—CDA:138.12
CDA:143—CDA:150.2	CDA:143—CDA:150.2
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CDA:167—CDA:170.2	CDA:167—CDA:170.2
CDA:178.1—CDA:194.16	CDA:179—CDA:194.26
CDA:207—CDA:210	CDA:207—CDA:210
CDA:219—CDA:222	CDA:219—CDA:222.1
CDA:229—CDA:232	CDA:229—CDA:232.1
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CDA:248.12.1	CDA:248.12.1
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CDA:267—CDA:274	CDA:267—CDA:274.1
CDA:296.1—CDA:298.6	CDA:297—CDA:298.6

Remove Old Pages	*Insert New Pages*
CDA:298.11, CDA:298.12	CDA:298.11, CDA:298.12
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CDA:353, CDA:354	CDA:353, CDA:354
CDA:357, CDA:358	CDA:357, CDA:358
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CDA:365, CDA:366	CDA:365, CDA:366
CCT:33	CCT:33—CCT:35
CDi:1—CDi:2.1	CDi:1—CDi:2.1
CDi:25, CDi:26	CDi:25—CDi:26.1
CDi:71, CDi:72	CDi:71—CDi:72.1

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SUPPLEMENT NO. 29
June 2014

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5339, enacted April 28, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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CD13:13, CD13:14	CD13:13, CD13:14
CD18:37, CD18:38	CD18:37, CD18:38
CDA:81, CDA:82	CDA:81—CDA:82.1
CDA:89	CDA:89
CDA:145—CDA:150.1	CDA:145—CDA:150.2
CDA:189—CDA:190.4	CDA:189—CDA:190.5
CCT:33	CCT:33
SLT:1, SLT:2	SLT:1, SLT:2

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SUPPLEMENT NO. 28
February 2014

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5259, enacted November 25, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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CD23:1, CD23:2	CD23:1, CD23:2
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CDA:370.1—CDA:372.2	CDA:371—CDA:372.2.1
CDA:381, CDA:382	CDA:380.1—CDA:382
CCT:33	CCT:33
SLT:3—SLT:5	SLT:3—SLT:5
CDi:5—CDi:8	CDi:5—CDi:8
CDi:12.1—CDi:14	CDi:13—CDi:14.1
CDi:41—CDi:50	CDi:41—CDi:50
CDi:65, CDi:66	CDi:65, CDi:66

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SUPPLEMENT NO. 27
October 2013

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5138, enacted June 17, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title	Title
xiii—xx	xiii—xx
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CD10:7—CD10:10.1	CD10:7—CD10:10.1
CD23:1—CD23:3	CD23:1—CD23:3
CD23:5, CD23:6	CD23:5, CD23:6
CD23:9—CD23:12	CD23:9—CD23:12
CD23:47—CD23:48.1	CD23:47—CD23:48.2
CD23:53—CD23:58	CD23:53—CD23:58.1
CDA:9—CDA:12	CDA:9—CDA:12
CDA:23, CDA:24	CDA:23, CDA:24
CDA:28.1	CDA:28.1
CDA:30.1, CDA:30.2	CDA:30.1, CDA:30.2
CDA:37, CDA:38	CDA:37—CDA:38.1
CDA:47, CDA:48	CDA:47, CDA:48
CDA:79—CDA:84	CDA:79—CDA:84
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CDA:88.5—CDA:94	CDA:89
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CDA:98.1, CDA:98.2	CDA:98.1—CDA:98.4
CDA:105—CDA:108	CDA:105—CDA:108
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CDA:145—CDA:150.1	CDA:145—CDA:150.1
CDA:157—CDA:164	CDA:157—CDA:164.1
CDA:169—CDA:170.2	CDA:169—CDA:170.2

Remove Old Pages	*Insert New Pages*
CDA:176.1—CDA:178.5	CDA:177—CDA:178.6
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CDA:187—CDA:190.3	CDA:187—CDA:190.4
CDA:194.5—CDA:194.6.1	CDA:194.5—CDA:194.6.1
CDA:195—CDA:196.2	CDA:195—CDA:196.2
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CDA:360.1	CDA:360.1
CDA:379—CDA:382	CDA:379—CDA:382
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CDi:1—CDi:2.1	CDi:1—CDi:2.1
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CDi:47, CDi:48	CDi:47, CDi:48
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SUPPLEMENT NO. 26
October 2012

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4925, enacted July 16, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD23:47—CD23:48.1	CD23:47—CD23:48.1
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	CDA:15—CDA:18.2
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CDA:138.5, CDA:138.6	CDA:138.5, CDA:138.6
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CDA:194.3—CDA:194.6.1	CDA:194.3—CDA:194.6.1
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CDA:215—CDA:218	CDA:215—CDA:218
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CDi:56.1—CDi:60	CDi:57—CDi:60.1
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SUPPLEMENT NO. 25
February 2012

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4791, enacted November 28, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
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CD20:15—CD20:18	CD20:15—CD20:18.1
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CD22:1—CD22:3	CD22:1—CD22:3
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CDA:95—CDA:98	CDA:95—CDA:98.2
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Remove Old Pages	*Insert New Pages*
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CDi:7—CDi:10.1	CDi:7—CDi:10.1
CDi:19, CDi:20	CDi:19, CDi:20
CDi:25—CDi:42	CDi:25—CDi:42.1
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SUPPLEMENT NO. 24
May 2011

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4607, enacted December 20, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
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CDi:15—CDi:26	CDi:15—CDi:26.1
CDi:31—CDi:50	CDi:31—CDi:50.1

Remove Old Pages	*Insert New Pages*
CDi:57—CDi:66.2	CDi:57—CDi:66.2
CDi:83—CDi:86	CDi:83—CDi:86

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SUPPLEMENT NO. 23
December 2010

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4521, enacted September 27, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
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CDA:155—CDA:158	CDA:155—CDA:158.1
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Remove Old Pages	*Insert New Pages*
CDi:71, CDi:72	CDi:71, CDi:72

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SUPPLEMENT NO. 22
May 2010

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4341, enacted January 19, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDA:194.13—CDA:194.16	CDA:194.13—CDA:194.16.1
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CDA:276.1—CDA:278	CDA:277—CDA:278.1
CDA:301—CDA:304	CDA:301—CDA:304
CDA:391—CDA:394	CDA:391
CCT:25, CCT:26	CCT:25, CCT:26
CDi:76.1	CDi:76.1
CDi:85, CDi:86	CDi:85, CDi:86

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SUPPLEMENT NO. 21
April 2010

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4289, enacted October 12, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
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CD2:1—CD2:4.1	CD2:1—CD2:4.1
CD5:1	CD5:1, CD5:2
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SUPPLEMENT NO. 20
October 2009

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4209, enacted June 15, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CDA:9, CDA:10	CDA:9, CDA:10
CDA:23, CDA:24	CDA:23, CDA:24
CDA:33—CDA:38.1	CDA:33—CDA:38.4
CDA:46.1	CDA:46.1
CDA:87, CDA:88	CDA:87, CDA:88
CDA:189, CDA:190	CDA:189—CDA:190.1
CDA:271—CDA:274	CDA:271—CDA:274
CDA:308.1—CDA:310	CDA:309—CDA:310.2
CCT:21—CCT:26	CCT:21—CCT:26
SLT:3—SLT:5	SLT:3—SLT:5
CDi:73, CDi:74	CDi:73, CDi:74
CDi:79—CDi:86	CDi:79—CDi:86

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SUPPLEMENT NO. 19
September 2009

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4222, enacted July 20, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CDi:75—CDi:76.1	CDi:75—CDi:76.1
CDi:81, CDi:82	CDi:81, CDi:82
CDi:85—CDi:87	CDi:85, CDi:86

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SUPPLEMENT NO. 18
March 2009

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4127, enacted March 9, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD19:3	CD19:3, CD19:4
CD19:33, CD19:34	CD19:33—CD19:37
CD23:1—CD23:3	CD23:1—CD23:3
CD23:5—CD23:46	CD23:5—CD23:46.3
CCT:21—CCT:24	CCT:21—CCT:25
SLT:1—SLT:5	SLT:1—SLT:5
CDi:5, CDi:6	CDi:5, CDi:6
CDi:15, CDi:16	CDi:15, CDi:16
CDi:21, CDi:22	CDi:21—CDi:22.1
CDi:47, CDi:48	CDi:47—CDi:48.1
CDi:54.1—CDi:56	CDi:55—CDi:56.2
CDi:63—CDi:66	CDi:63—CDi:66

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SUPPLEMENT NO. 17
March 2009

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4115, enacted February 9, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD9:3—CD9:30	CD9:3—CD9:32
CD15:3	CD15:3, CD15:4
CD15:47—CD15:50	CD15:47—CD15:51
CD18:1	CD18:1, CD18:2
CD18:17, CD18:18	CD18:17—CD18:47
CDA:1, CDA:2	CDA:1—CDA:2.1
CDA:9, CDA:10	CDA:9, CDA:10
CDA:21—CDA:30	CDA:21—CDA:30.2
CDA:35—CDA:38.1	CDA:35—CDA:38.1
CDA:46.1	CDA:46.1
CDA:55—CDA:58	CDA:55—CDA:58
CDA:78.1—CDA:82.1	CDA:79—CDA:82.1
CDA:85—CDA:88	CDA:85—CDA:88
CDA:131, CDA:132	CDA:131, CDA:132
CDA:140.1—CDA:144	CDA:141—CDA:144.1
CDA:167, CDA:168	CDA:167, CDA:168
CDA:182.1—CDA:184	CDA:183—CDA:184.3
CDA:321—CDA:326	CDA:320.1—CDA:326
CDA:341—CDA:342.2	CDA:341—CDA:342.2.1
CCT:23	CCT:23, CCT:24
SLT:1—SLT:4	SLT:1—SLT:5
CDi:22.1—CDi:28	CDi:23—CDi:28.1
CDi:39, CDi:40	CDi:39—CDi:40.1
CDi:53—CDi:54.1	CDi:53—CDi:54.2
CDi:71—CDi:76	CDi:71—CDi:76.1
CDi:83—CDi:86	CDi:83—CDi:87

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SUPPLEMENT NO. 16
December 2008

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4051, enacted October 27, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xx	xvii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD16:3—CD16:7	CD16:3—CD16:7
CD17:3—CD17:17	CD17:3—CD17:17
CDA:42.1—CDA:46	CDA:43—CDA:46.1
CDA:119, CDA:120	CDA:119—CDA:120.1
CDA:161, CDA:162	CDA:161—CDA:162.1
CDA:169—CDA:176	CDA:169—CDA:176.2
CDA:194.17—CDA:194.20	CDA:194.17—CDA:194.20
CDA:243, CDA:244	CDA:243—CDA:244.1
CDA:248.13, CDA:248.14	CDA:248.13—CDA:248.14.1
CDA:265—CDA:266.1	CDA:265—CDA:266.1
CCT:11, CCT:12	CCT:11, CCT:12
CCT:21—CCT:23	CCT:21—CCT:23

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SUPPLEMENT NO. 15
August 2008

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3941, enacted June 9, 2008.

See the Code Comparative Table for further information.

Included in the Charter is:

Ordinance No. 2007-205, adopted July 10, 2007.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:37—CHT:38.1	CHT:37—CHT:39
CHTCT:1	CHTCT:1
CD14:16.1—CD14:16.3	CD14:16.1—CD14:16.3
CD15:1—CD15:3	CD15:1—CD15:3
CD15:15—CD15:16.1	CD15:15—CD15:16.1
CD18:1	CD18:1
CD18:7—CD18:11	CD18:7—CD18:18
CCT:21—CCT:23	CCT:21—CCT:23
SLT:1—SLT:4	SLT:1—SLT:4
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CDi:5, CDi:6	CDi:5, CDi:6
CDi:11—CDi:16	CDi:11—CDi:16
CDi:19—CDi:22	CDi:19—CDi:22.1
CDi:29—CDi:32.1	CDi:29—CDi:32.1
CDi:39, CDi:40	CDi:39, CDi:40

Remove old pages	*Insert new pages*
CDi:49, CDi:50	CDi:49—CDi:50.1
CDi:53, CDi:54	CDi:53—CDi:54.1
CDi:65, CDi:66	CDi:65, CDi:66

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SUPPLEMENT NO. 14
March 2008

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3784, enacted January 14, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xx	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD10:23—CD10:24.1	CD10:23—CD10:24.1
CD11:1—CD11:21	CD11:1—CD11:23
CDA:4.1—CDA:6	CDA:5—CDA:6.1
CDA:45, CDA:46	CDA:45, CDA:46
CDA:182.1—CDA:194	CDA:182.1—CDA:193
CDA:195, CDA:196	CDA:195, CDA:196
CDA:239—CDA:248	CDA:238.1—CDA:247
CDA:294.1—CDA:298	CDA:295—CDA:298.2
CDA:301, CDA:302	CDA:301, CDA:302
CDA:331, CDA:332	CDA:331, CDA:332
CDA:353, CDA:354	CDA:353, CDA:354
CDA:357—CDA:362.1	CDA:357—CDA:362.2
CDA:381, CDA:382	CDA:381—CDA:382.5
CCT:21, CCT:22	CCT:21—CCT:23
SLT:1—SLT:4	SLT:1—SLT:4
CDi:1, CDi:2	CDi:1—CDi:2.1
CDi:17—CDi:32	CDi:17—CDi:32.1
CDi:53, CDi:54	CDi:53, CDi:54
CDi:74.1—CDi:86	CDi:75—CDi:86

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SUPPLEMENT NO. 13
December 2007

CODE OF ORDINANCES

City of

CHAROLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3730, enacted October 22, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xx
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD5:1	CD5:1
	CD5:3—CD5:5
CD10:3, CD10:4	CD10:3—CD10:4.1
CD14:3	CD14:3
CD14:5—CD14:8	CD14:5—CD14:8.1
CD14:20.1—CD14:23	CD14:21—CD14:23
CD15:1—CD15:3	CD15:1—CD15:3
CD15:5—CD15:12	CD15:5—CD15:11
CD15:47	CD15:47—CD15:50
CD16:1	CD16:1
CD16:3—CD16:6	CD16:3—CD16:7
CD19:1—CD19:3	CD19:1—CD19:3
CD19:9—CD19:12	CD19:9—CD19:12.1
CD19:29, CD19:30	CD19:29—CD19:34
CDA:78.1, CDA:78.2	CDA:78.1, CDA:78.2
CDA:87, CDA:88	CDA:87, CDA:88
CDA:123—CDA:128.2	CDA:123—CDA:128.1
CDA:290.1—CDA:290.4	CDA:290.1—CDA:290.5
CCT:21, CCT:22	CCT:21, CCT:22
SLT:1—SLT:4	SLT:1—SLT:4
CDi:5—CDi:8	CDi:5—CDi:8.1
CDi:13, CDi:14	CDi:13, CDi:14

Remove old pages	*Insert new pages*
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CDi:29—CDi:60	CDi:29—CDi:60.1
CDi:65, CDi:66	CDi:65, CDi:66

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SUPPLEMENT NO. 12
September 2007

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3578, enacted April 23, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD9:1—CD9:22	CD9:1—CD9:30
CD11:1, CD11:2	CD11:1, CD11:2
CD11:5, CD11:6	CD11:5, CD11:6
CD11:13—CD11:21	CD11:13—CD11:21
CDA:3—CDA:4.1	CDA:3—CDA:4.1
CDA:11, CDA:12	CDA:11, CDA:12
CDA:35—CDA:38	CDA:35—CDA:38.1
CDA:45—CDA:48.1	CDA:45—CDA:48.1
CDA:51—CDA:60.1	CDA:51—CDA:60.1
CDA:71, CDA:72	CDA:71—CDA:72.1
CDA:75—CDA:76.1	CDA:75—CDA:76.1
CDA:90.1—CDA:92	CDA:91, CDA:92
CDA:99—CDA:102	CDA:99—CDA:101
CDA:105, CDA:106	CDA:105, CDA:106
CDA:123, CDA:124	CDA:123, CDA:124
CDA:127—CDA:128.2	CDA:127—CDA:128.2
CDA:135—CDA:138	CDA:135—CDA:138
CDA:189—CDA:192.1	CDA:189—CDA:192
CDA:250.1—CDA:254	CDA:251—CDA:254
CDA:286.1—CDA:288	CDA:287—CDA:288.1
CDA:293, CDA:294	CDA:293—CDA:294.1
CDA:311—CDA:312.1	CDA:311—CDA:312.1
CDA:342.3—CDA:342.5	CDA:342.3—CDA:342.6
CCT:21	CCT:21, CCT:22
SLT:1—SLT:4	SLT:1—SLT:4
CDi:5—CDi:12	CDi:5—CDi:12
CDi:19—CDi:28	CDi:19—CDi:28
CDi:31—CDi:38	CDi:31—CDi:38.1
CDi:40.1—CDi:48	CDi:41—CDi:48.1
CDi:53—CDi:56	CDi:53—CDi:56
CDi:59, CDi:60	CDi:59, CDi:60

Remove old pages	*Insert new pages*
CDi:65, CDi:66	CDi:65, CDi:66
CDi:71—CDi:74	CDi:71—CDi:74.1

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SUPPLEMENT NO. 11
June 2007

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Charter Supplement contains all ordinances deemed advisable to be included at this time through:

Session Law 2006-124, ratified June 30, 2006.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:3, CHT:4	CHT:3, CHT:4
CHT:11, CHT:12	CHT:11, CHT:12
CHT:15	CHT:15
CHT:31	CHT:31
CHTCT:1	CHTCT:1
SLT:1—SLT:4	SLT:1—SLT:4
CHTi:5—CHTi:11	CHTi:5—CHTi:11

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SUPPLEMENT NO. 10
February 2007

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3464, enacted January 8, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD10:1—CD10:4	CD10:1—CD10:4
CD19:3	CD19:3
CD19:27, CD19:28	CD19:27—CD19:30
CD20:3—CD20:6	CD20:3—CD20:6.1
CD20:13, CD20:14	CD20:13, CD20:14
CD20:19—CD20:20.1	CD20:19—CD20:20.1
CD22:29, CD22:30	CD22:29—CD22:30.1
CDA:3, CDA:4	CDA:3, CDA:4
CDA:9—CDA:12	CDA:9—CDA:12
CDA:89—CDA:90.1	CDA:89—CDA:90.1
CDA:277, CDA:278	CDA:277, CDA:278
CDA:305, CDA:306	CDA:305—CDA:306.3
CCT:21	CCT:21
SLT:1—SLT:4	SLT:1—SLT:4
CDi:5, CDi:6	CDi:5, CDi:6
CDi:9—CDi:12	CDi:9—CDi:12
CDi:23—CDi:26	CDi:23—CDi:26
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CDi:45, CDi:46	CDi:45, CDi:46
CDi:51, CDi:52	CDi:51, CDi:52

Remove old pages	*Insert new pages*
CDi:55—CDi:58	CDi:55—CDi:58
CDi:71—CDi:72.1	CDi:71—CDi:72.1
CDi:74.1—CDi:78	CDi:75—CDi:78.1

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SUPPLEMENT NO. 9
October 2006

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3224, enacted March 20, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xvii—xix	xvii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CDA:3, CDA:4	CDA:3, CDA:4
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CDA:25—CDA:26.2	CDA:25—CDA:26.2
CDA:32.1—CDA:36	CDA:33—CDA:36.1
CDA:38.1—CDA:40	CDA:39—CDA:40.1
CDA:45—CDA:48	CDA:45—CDA:48.1
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CDA:65—CDA:74	CDA:65—CDA:74
CDA:79—CDA:82	CDA:78.1—CDA:81
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CDA:93—CDA:94.1	CDA:93—CDA:94.1
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CDA:103—CDA:110	CDA:103—CDA:110.1
CDA:119, CDA:120	CDA:119, CDA:120
CDA:138.1—CDA:140	CDA:139—CDA:140.1
CDA:150.1—CDA:164.1	CDA:151—CDA:164.1
CDA:168.1—CDA:170	CDA:169—CDA:170.1
CDA:177—CDA:178.1	CDA:177—CDA:178.1
CDA:194.1, CDA:194.2	CDA:194.1, CDA:194.2
CDA:194.6.1—CDA:194.8	CDA:194.7—CDA:194.8.1
CDA:194.15—CDA:194.18	CDA:194.15—CDA:194.18
CDA:265, CDA:266	CDA:265—CDA:266.1
CDA:271, CDA:272	CDA:271—CDA:272.1
CDA:290.1—CDA:290.4	CDA:290.1—CDA:290.4
CDA:304.1—CDA:308.1	CDA:305—CDA:308.1
CDA:311—CDA:312.1	CDA:311—CDA:312.1
CDA:332.1—CDA:334	CDA:333—CDA:334.1
CDA:361, CDA:362	CDA:361—CDA:362.1
CDA:371—CDA:374	CDA:371—CDA:374.1
CCT:15, CCT:16	CCT:15—CCT:16.1

Remove old pages	*Insert new pages*
CCT:21	CCT:21
CDi:67—CDi:72	CDi:67—CDi:72.1
CDi:83—CDi:86	CDi:83—CDi:86

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SUPPLEMENT NO. 8
February 2006

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3141, enacted November 21, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CD20:3—CD20:8	CD20:3—CD20:8.1
CD20:13, CD20:14	CD20:13, CD20:14
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CD20:27—CD20:29	CD20:27—CD20:29
CDA:157—CDA:158.1	CDA:157—CDA:158.1
CDA:311, CDA:312	CDA:311—CDA:312.1
CCT:19, CCT:20	CCT:19—CCT:21
CHTi:1—CHTi:11	CHTi:1—CHTi:11

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SUPPLEMENT NO. 7
January 2006

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 3065-X, enacted August 22, 2005.

See the Code Comparative Table for further information.

Included in the Charter is:

Session Law 2004-14, ratified June 21, 2004.

See the Charter Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xix	xiii—xix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
CHT:1—CHT:4	CHT:1—CHT:4
CHT:11, CHT:12	CHT:11, CHT:12
CHT:17, CHT:18	CHT:17—CHT:18.1
CHT:33, CHT:34	CHT:33—CHT:34.1
CHT:37, CHT:38	CHT:37—CHT:38.1
CHTCT:1	CHTCT:1
CD20:19, CD20:20	CD20:19—CD20:20.1
CD22:1—CD22:3	CD22:1—CD22:3
CD22:5—CD22:48	CD22:5—CD22:49
CDA:1—CDA:4	CDA:1—CDA:4.1
CDA:9—CDA:12	CDA:9—CDA:12
CDA:19—CDA:26.2	CDA:19—CDA:26.2
CDA:29—CDA:32	CDA:29—CDA:32.1
CDA:37, CDA:38	CDA:37—CDA:38.1
CDA:41—CDA:42.2	CDA:41—CDA:42.2
CDA:45—CDA:64	CDA:45—CDA:57
	CDA:59—CDA:62
	CDA:63, CDA:64
CDA:75, CDA:76	CDA:75—CDA:76.1
CDA:87	CDA:87
CDA:89—CDA:94	CDA:89—CDA:94.1
CDA:97, CDA:98	CDA:97, CDA:98
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SUPPLEMENT NO. 6
September 2005

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 2995, enacted June 13, 2005.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 5
February 2005

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

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SUPPLEMENT NO. 4
November 2004

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 3
June 2004

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 2
April 2004

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 1, REVISION
March 2004

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

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SUPPLEMENT NO. 1
February 2004

CODE OF ORDINANCES

City of

CHARLOTTE, NORTH CAROLINA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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CODE OF ORDINANCES

CITY OF

CHARLOTTE, NORTH CAROLINA

Published by Order of the City Council

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of the

CITY OF

CHARLOTTE, NORTH CAROLINA

AT THE TIME OF THIS RECODIFICATION

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Mayor

Patrick De'Angelo Cannon
Mayor Pro Tem

Patrick Mumford
Joe White
Lynn Wheeler
Sara S. Spencer
James E. Mitchell, Jr.
Harold Cogdell, Jr.
Malcolm Graham
Nancy G. Carter
John Tabor
Don Lochman
City Council

Pamela Syfert
City Manager

DeWitt F. McCarley
City Attorney

Brenda Freeze
City Clerk

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Charlotte, North Carolina.

Source materials used in the preparation of the Code were the 1985 Code, as supplemented through April 8, 2002, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1985 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

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Indexes

The indexes have been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the indexes themselves which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Jan Shekitka, Senior Code Attorney, and Jody Wilson, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. DeWitt (Mac) McCarley, City Attorney, and other members of the city staff for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and

those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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ORDINANCE NO. 2428-X

AN ORDINANCE ADOPTING AND ENACTING A NEW CODE FOR THE CITY OF CHARLOTTE, NORTH CAROLINA; PROVIDING FOR THE REPEAL OF CERTAIN ORDINANCES NOT INCLUDED THEREIN; PROVIDING A PENALTY FOR THE VIOLATION THEREOF; PROVIDING FOR THE MANNER OF AMENDING SUCH CODE; AND PROVIDING WHEN SUCH CODE AND THIS ORDINANCE SHALL BECOME EFFECTIVE.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF CHARLOTTE, NORTH CAROLINA THAT:

Section 1. The Code entitled "Code of Ordinances, City of Charlotte, North Carolina," published by Municipal Code Corporation, consisting of chapters 1 through 23, each inclusive, is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before July 28, 2003, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof shall be punished in accordance with G.S. 14-4. Each act of violation and each day upon which any such violation shall continue or occur shall constitute a separate offense. The penalty provided by this section, unless another penalty is expressly provided, shall apply to the amendment of any Code section, whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the city may pursue other remedies such as abatement of nuisances, injunctive relief and revocation of licenses or permits.

Section 5. Additions or amendments to the Code when passed in such form as to indicate the intention of the city council to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after July 28, 2003, that amend or refer to ordinances that have been codified in the Code shall be construed as if they amend or refer to like provisions of the Code.

Section 7. This ordinance shall become effective January 1, 2004.

Editor's note—Ord. No. 2447, § 13, adopted November 24, 2003, changed the effective date of Ord. No. 2428-X from "December 1, 2003" to "January 1, 2004."

Passed and adopted by the City Council this 10th day of November, 2003.

APPROVED AS TO FORM: City Attorney

CERTIFICATION

I, Brenda R. Freeze, City Clerk of the City of Charlotte, North Carolina, DO HEREBY CERTIFY that the foregoing is a true and exact copy of an Ordinance

adopted by the City Council of the City of Charlotte, North Carolina, in regular session convened on the 10th day of November, 2003, the reference having been made in Minute Book 120, and recorded in full in Ordinance Book 52, Page(s) 544-545.

WITNESS my hand and the corporate seal of the City of Charlotte, North Carolina, this the 12th day of November, 2003. Brenda R. Freeze, CMC, City Clerk

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From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

By adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

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4657-X	5-16-2011	Included	25
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4663	5-23-2011	Included	25
4684-Z	6-20-2011	Included	25
4687	6-27-2011	Included	25
4697	7-18-2011	Included	25
4698	7-18-2011	Included	25
4699	7-18-2011	Included	25
4705	7-18-2011	Included	25
4701	7-25-2011	Included	25
4752	10-10-2011	Included	25
4764	10-17-2011	Included	25
4765	10-17-2011	Included	25
4766	10-17-2011	Included	25
4790	11-28-2011	Included	25
4791	11-28-2011	Included	25
4792-X	11-28-2011	Omitted	25
4793-X	11-28-2011	Omitted	25
4794-X	11-28-2011	Omitted	25

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4795-X	11-28-2011	Omitted	25
4608	2-28-2011	Included	26
4609	2-28-2011	Included	26
4814(a)	1-23-2012	Included	26
4814(b)	1-23-2012	Included	26
4815	1-23-2012	Included	26
4812	1-25-2012	Included	26
4813	1-25-2012	Included	26
4833	2-20-2012	Included	26
4835	2-20-2012	Included	26
4836	2-20-2012	Included	26
4837	2-20-2012	Included	26
4846	3-19-2012	Included	26
4873	5-14-2012	Included	26
4877	5-14-2012	Included	26
4889	5-14-2012	Included	26
4890	5-29-2012	Included	26
4902	6-18-2012	Included	26
4908	6-18-2012	Included	26
4912	6-25-2012	Included	26
4925	7-16-2012	Included	26
4929	7-16-2012	Included	27
4931	7-16-2012	Included	27
4987	10-15-2012	Included	27
5006	11-26-2012	Included	27
5007	11-26-2012	Included	27
5029	1-22-2013	Included	27
5033	1-22-2013	Included	27
5039	2-18-2013	Included	27
5057	3-25-2013	Included	27
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5137	6-17-2013	Included	27
5138	6-17-2013	Included	27
5121	5-20-2013	Included	28
5196	9-16-2013	Included	28
5230	10-28-2013	Included	28
5259	11-25-2013	Included	28
5282	1-21-2014	Included	29
5294	1-27-2014	Included	29
5339	4-28-2014	Included	29
5353	5-19-2014	Included	30
5406	6- 9-2014	Included	30
5412	6-16-2014	Included	30
5423	7-21-2014	Included	30
5417	6-16-2014	Included	31

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5494	10-20-2014	Included	31
5495	10-20-2014	Included	31
5498	10-27-2014	Included	31
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5531	11-17-2014	Included	31
5532	11-17-2014	Included	31
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3604	5-29-2007	Included	32
5559	1-20-2015	Included	32
5578	2-18-2015	Included	32
S.L. 2015-33	5-21-2015	Included	33
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5963	6-15-2015	Included	33
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7043	2-15-2016	Included	35
7056	2-22-2016	Included	35
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8006	4-18-2016	Included	35
8065	6-27-2016	Included	35
8093	8-22-2016	Included	36
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8194	12-19-2016	Included	37
8195	12-21-2016	Included	37
9019	1-23-2017	Included	37
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9050	3-20-2017	Included	37
9055	3-20-2017	Included	37
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9489	1-14-2019	Included	40
9490	1-14-2019	Included	40
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9536	3-25-2019	Included	41
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9585	6-24-2019	Included	41
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9671	10-21-2019	Included	42
9672	10-21-2019	Included	42
9756	2-24-2020	Included	43
9802	5-26-2020	Included	43
9813	6-15-2020	Included	43
9814	6-15-2020	Included	43
9837	7-27-2020	Included	43
9921	10-26-2020	Included	44
9903	10-19-2020	Omitted	45
73	5-24-2021	Included	45
90	6-21-2021	Omitted	45
91	6-21-2021	Omitted	45
92	6-21-2021	Omitted	45
93	6-28-2021	Included	45
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195	12-13-2021	Included	47
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373	8-22-2022	Included	48
437	11-28-2022	Included	49
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374	8-22-2022	Included	50
540	5-15-2023	Included	50
541	5-15-2023	Included	50
542	5-15-2023	Included	50
596	8-21-2023	Included	51
646	10-23-2023	Included	52
649	11-13-2023	Included	52
676	1- 8-2024	Omitted	52
716	1-16-2024	Included	53
720	2-12-2024	Included	53
790	4-15-2024	Omitted	53
801	5-20-2024	Included	54
819	6-17-2024	Included	54
830	6-24-2024	Included	54
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943	2-17-2025	Included	55
986	6-16-2025	Included	55
992	6-23-2025	Included	55
1032	10-27-2025	Included	56
1033	10-27-2025	Included	56
1084	2- 9-2026	Included	57
1107	3-23-2026	Omitted	57
1111	4-13-2026	Included	57
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1171	6-22-2026	Included	57

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***Editor's note—**Printed herein is the Charter of the City of Charlotte, being Session Law 2000-26, as adopted by the General Assembly of North Carolina on June 29, 2000. Amendments to the Charter are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original Charter. Obvious misspellings have been corrected without notation. For stylistic purposes, a uniform system of headings, catchlines and citations to state statutes has been used. Additions made for clarity are indicated by brackets.

State law reference—General laws supplementary to charters, G.S. 160A-3.

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CHAPTER 1.

ORGANIZATION AND POWERS

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The City shall continue to be a body politic and corporate by the name of "City of Charlotte."

Sec. 1.02. Existing corporate boundaries.

The corporate boundaries of the City shall be those existing at the time of ratification of this Charter and as the same may be altered from time to time in accordance with applicable laws.

CHAPTER 2.

ELECTIONS

Sec. 2.01. Regular municipal elections; conduct.

Regular municipal elections shall be held in the City every two years in odd-numbered years, and shall be conducted in accordance with the Uniform Municipal Elections Laws of North Carolina. The Mayor and members of the Council shall be elected according to the partisan election method authorized for municipalities.

Sec. 2.02. Election of the Mayor.

The Mayor shall be elected to serve a term of two years. The Mayor shall be elected by the qualified voters of the City voting at large.

Sec. 2.03. Election of Council members.

The Council shall consist of 11 members. The City shall be divided into seven single-member electoral districts; Council members shall be apportioned to the districts so that each member represents the same number of persons as nearly as possible, except for members apportioned to the City at large. The qualified voters of each district shall nominate and elect candidates who reside in the district for seats apportioned to that district, and all the qualified voters of the City shall nominate and elect candidates apportioned to the City at large. There shall be four at-large members of the City Council. All members of the Council shall serve a term of two years.

CHAPTER 3.

GOVERNING BODY

Sec. 3.01. Compensation of Mayor and Council members.

The salary of the Mayor and each Council member shall be in such amounts as established by the Council from time to time.

Sec. 3.02. Meetings.

Notwithstanding the provisions of general law, only the Mayor, or in the absence of the Mayor, the Mayor Pro Tempore, or a majority of the members of the Council may call special or emergency meetings.

Secs. 3.03—3.22. Reserved.

Sec. 3.23. Quorum; procedure; voting.

(a) Six members of the Council shall constitute a quorum. A member who has withdrawn from a meeting, whether excused or not excused, shall be counted as present for purposes of determining a quorum.

(b) Its meetings shall be public and the Mayor, who shall be the official head of the City, shall preside, if present, but shall have no vote except in case of a tie, or as provided herein. Six affirmative votes of the Council members, or five of such affirmative votes, together with the affirmative vote of the Mayor, in case of a tie vote, shall be required for the passage of any motion, resolution, or ordinance. Motions, resolutions, and ordinances granting special franchises and special privileges must be voted on and passed at not less than two regular meetings of the Council. Except as provided in this section, motions, resolutions, and ordinances will be deemed adopted if passed upon one reading. Except for Council appointments to committees, boards, and commissions; its employment of the City Manager, the City Attorney and the City Clerk; its internal affairs and matters which must be approved by the voters, the Mayor may veto any action adopted by the Council. The veto must be exercised at the meeting at which the action was taken. An action vetoed by the Mayor shall automatically be on the agenda at the next regular or special meeting of the Council, but shall not become effective unless it was readopted by the Council with at least seven members voting in the affirmative. In the absence of the Mayor, the Mayor Pro Tempore shall preside and, when so presiding, shall have the right to vote upon all questions, but shall have no additional vote in case of a tie, and shall not have veto power; and in the absence of both, a chair Pro Tempore shall be chosen to preside at such meeting, and, when so presiding, he shall have the right to vote upon all questions, but shall have no additional vote in case of a tie. Provided further, however, the Mayor shall have a vote in the consideration of amendments to zoning ordinances when said amendments are the subject of a valid protest as defined by G.S. 160A-385. In voting on amendments to zoning ordinances, the Mayor shall be deemed a member of the legislative body as that term is used in G.S. 160A-385. Provided further, however, the Mayor shall have a vote in the consideration of the employment or dismissal of the City Manager, the City Attorney and the City Clerk.

Sec. 3.24. Powers and duties of mayor.

(a) The Mayor shall be ex officio member of all boards or commissions elected or appointed by the Council or the Mayor, and he shall serve upon the same in an advisory capacity only and shall not have a vote.

(b) In the absence or incapacity of the Mayor, all his duties, powers, and obligations shall be vested in the Mayor Pro Tempore.

CHAPTER 4.

ADMINISTRATION

ARTICLE I. IN GENERAL

Sec. 4.01. Form of government.

The City shall operate under the Council-Manager form of government.

ARTICLE II. CITY MANAGER

Sec. 4.02. Appointments by Council.

The Council shall appoint the City Manager, City Clerk, and City Attorney, each of whom shall hold office during the pleasure of the Council.

Sec. 4.03. Council-manager relationship.

The Council shall hold the City Manager responsible for the proper management of the affairs of the City, and the City Manager shall keep the Council informed of the conditions and needs of the City, and shall make such reports and recommendations as may be requested by the Council or as the City Manager may deem necessary. Neither the Mayor, the Council nor any member thereof shall direct the conduct or activities of any City employee, directly or indirectly, except through the City Manager.

Sec. 4.04. Acting City Manager.

The Council may from time to time designate a department head or other City employee as acting City Manager who shall have the authority, during any absence, illness, or other disability of the City Manager, or during any temporary vacancy in the office of the City Manager, to exercise the powers and duties of the City Manager, except as the Council may otherwise prescribe.

Sec. 4.05. Personnel administration standards.

The Council shall establish by appropriate ordinances a system of personnel administration, not inconsistent with the provisions for civil service hereinafter set forth, governing the appointment, promotion, transfer, layoff, removal, discipline, and welfare of City employees. Such ordinances shall be based upon the following general standards:

(1) Employment shall be based on merit without regard to race, creed, color, sex, political affiliation, age, or physical defect or impairment of the applicant unless the defect or impairment prevents the applicant from performing, with reasonable accommodation, an essential function of the employment sought. "Physical defect" or "impairment" shall be defined to mean any physical disability, infirmity, malformation, or disfigurement which is caused by bodily injury, birth defect, or illness including epilepsy.

(2) Conditions of employment shall be maintained to promote efficiency and economy in the operation of the City government.

(3) Position classification and compensation plans shall be established and revised from time to time to meet changing conditions.

(4) Appointments and promotions shall be made solely on the basis of merit and fitness, demonstrated by examination or other evidence of competence.

(5) Tenure of employment shall be subject to satisfactory performance of work, personal conduct compatible with the trust inherent in public service, necessity for the performance of work, and availability of funds.

(6) Such ordinances shall also prescribe the details of personnel organizations and procedures.

The City Council may, in its discretion, delegate all or any part of the authority granted to it by G.S. 160A-162 to the City Manager.

Sec. 4.06. Optional rights.

The City Manager or his or her designee may accept property offered for public dedication.
(S.L. 2002-32, § 1)

Secs. 4.07—4.60. Reserved.

ARTICLE III. CIVIL SERVICE

Sec. 4.61. Civil service board; membership, powers and duties.

(a) *Establishment.* There is hereby continued a Civil Service Board for the City of Charlotte, to consist of nine members; six members to be appointed by the Council and three members to be appointed by the Mayor. Each member shall serve for a term of three years. In case of a vacancy on the Board, the Council or the Mayor, as the case may be, shall fill such vacancy for the unexpired term of said member. Five members shall constitute a quorum. All Board members shall attend regular meetings for the purposes of meeting attendance policy and familiarity with Board business and procedures. Attendance at meetings and continued service on the Board shall be governed by the attendance policies established by the Council. Vacancies resulting from a member's failure to attend the required number of meetings or hearings shall be filled as provided herein.

(a1) *Council May Increase Board Membership.* Notwithstanding the provisions of subsection (a) of this section, the Council may, in its discretion, increase the number of Board members from nine to 11; seven members to be appointed by the Council and four members to be appointed by the Mayor. Six members shall constitute a quorum for the 11-member Board. At any time after increasing the number of Board members as authorized in this subsection, the Council may, in its discretion, reduce the number of members to nine, and those members shall be appointed as provided in subsection (a) of this section.

(b) *Qualifications; removal.* The members of the Civil Service Board shall be registered voters of the City of Charlotte or County of Mecklenburg and shall take an oath to faithfully perform their duties. The members of said Board shall be subject to removal from office by a two-thirds vote of the Council, with or without cause.

(c) *Examinations.* The Board shall establish and fix requirements for applicants for employment in the fire and police departments. All applicants shall be subjected to examination by or at the direction of said Board. The examination shall be competitive and free to all persons meeting the requirements of the Board, subject to reasonable limitations as to residence, age, health, and moral character; provided that:

(1) Applicants for employment in the fire department shall be at least 18 years of age, and

(2) Applicants for employment in the police department shall be at least 20 years of age.

The Council may, by ordinance, at any time and from time to time, fix and establish such lesser maximum age limits for applicants as may be consistent with the needs of the respective departments. The examination for applicants shall be practical in character and shall be limited to matters which fairly test the relative ability of the applicant to discharge the duties of the position applied for and shall include tests of physical qualifications and health, but no applicant shall be examined concerning his political or religious opinions or affiliations.

(d) *Notice.* Notice of time and place of every examination shall be given by the Board for one week preceding such examination in a newspaper published in the City, and such notice shall be posted in a conspicuous place in the office of the Board, or its designee, for at least two weeks preceding such examination.

(e) *Register.* The Board shall prepare and keep a register of persons passing the examination, graded according to the respective showings upon the examination, which register shall determine the appointments to be made in each of the departments under the eligibility rules and regulations established by the Board.

(f) *Definitions.* The terms "officer or employee" or "officer," as used in this Article, shall mean sworn officers with regard to the police department and shall mean uniformed personnel with regard to the fire department.

(g) *Restrictions.* No officer or employee of the fire and police departments shall take any part in any election or political function while in uniform or on duty other than that of exercising his right

to vote. Any officer or employee found by the Board to have violated this provision may be dismissed from service by the Board, or the Board may adjudge other punishment.

(h) *Relieving a member from duty.* The chief of either the fire or police department, or the officer in charge in the absence of the chief, may relieve an officer or employee of the respective departments of all duties, and the chief, or the officer in charge in the absence of the chief, shall provide such officer or employee with a written complaint setting forth the department rules or regulations the officer or employee is charged with violating, along with a statement of the basic facts supporting the charge, and the chief, or the officer in charge in the absence of the chief, shall simultaneously cite such officer to the Board for an automatic hearing as set forth herein with a recommendation that such officer be dismissed from the department. Any officer so relieved of duty shall not receive any pay or be assigned any duties until the Board has acted upon the charges at the conclusion of its hearing. In the alternative, the chief, or the officer in charge in the absence of the chief, may cite such officer to the Board for an automatic hearing in accordance with the foregoing procedure, but without relieving the officer from duty.

(i) *Dismissal or suspension of officer.* The chief of either the fire or police department, or the officer in charge in the absence of the chief, may suspend without pay for a period not exceeding 30 days, any officer or employee of the respective departments. In suspending such officer, the chief, or the officer in charge in the absence of the chief, will provide such officer with a written complaint setting forth the department rules or regulations the officer is charged with violating, along with a statement of the basic facts supporting the charge. Any such officer so suspended may appeal to the Board by giving written notice of appeal to the Board with a copy to the chief of such officer's department. Such notice of appeal must be received by the Board within a period of 15 days from the date of the officer's suspension, whereupon a hearing before the Board on such appeal shall be conducted as provided in subparagraph (j). Any officer suspended without pay shall receive no pay for the period of suspension unless the officer is found by the Board not to have committed the offense, or unless the Board adjudges a different period of suspension without pay, in which case the officer shall receive no pay for such different period of suspension.

(j) *Appeal Hearings.* Upon receipt of a citation for termination from either chief or upon receipt of notice of appeal for a suspension from any civil service covered police officer or firefighter, the Board shall hold a hearing not less than 15 days nor more than 30 days from the date the notice of appeal, or the citation, is received by the Board, and shall promptly notify the officer of the hearing date. Termination hearings shall be held with a panel of five available members, and suspension hearings shall be held with a panel of three available members. In the event an officer desires a hearing at a date other than that set by the Board within the period set forth above, such officer may file a written request for a change of hearing date setting forth the reasons for such request, and the Chair of the Board is empowered to approve or disapprove such request; provided that such request must be received by the Board at least seven days prior to the date set for the hearing. For good cause, the Chair of the Board may set a hearing date other than within the period set forth above, or may continue the hearing from time to time. In the conduct of its hearing, each member of the Board shall have the power to subpoena witnesses, administer oaths, and compel the production of evidence. If a person fails or refuses to obey a subpoena issued pursuant to this subsection, the Board may apply to the General Court of Justice, Superior Court Division, for an order requiring that its subpoena be obeyed, and the court shall have jurisdiction to issue these orders after notice to all parties. If any person, while under oath at a hearing of the Board, willfully swears falsely, such person shall be guilty of a Class 1 misdemeanor. Both the officer and the police or fire department shall have the right to present relevant evidence to the Board at its hearing. The officer must be furnished with a copy of the charges which have been brought against an officer and which will be heard by the Board. The officer shall be required to answer questions from members of the Board or the Board's counsel; however, the officer may

refuse to answer any question where the answer might incriminate the officer with respect to any criminal violation of State or federal laws. The officer may be present at all evidentiary portions of the hearing, may retain counsel to represent the officer at the hearing, and may cross-examine those witnesses who testify against the officer. The officer will be given the right to an open or closed hearing as he may elect. After the evidentiary portion of the hearing is concluded, the Board will consider the evidence in closed session, and the Board will make findings of facts which will be provided to the officer together with a statement of the action taken by the Board on the basis of its findings of fact.

(k) *General powers of the Board.* If, at the completion of its hearing, the Board shall find that:

(1) An officer has not committed the offense or offenses with which such officer has been charged, the Board may restore such officer to full duty with reimbursement of any pay lost during the period the officer was suspended or relieved from duty.

(2) An officer has committed the offense or offenses with which such officer has been charged, the Board may issue an order:

a. Dismissing such officer;

b. Suspending such officer, without pay, for a period not exceeding 90 days; or

c. Imposing such other lesser punishment as it deems just and proper.

The Board may suspend its dismissal or suspension without pay and place such officer on probation for a period not to exceed one year upon such reasonable conditions as the Board may deem appropriate. The Board may order the department to furnish to the Board, during the period of probation, such information regarding the officer as the Board deems necessary.

(l) *Appeal from action of Board.* Any officer may appeal from any order of the Board to the Superior Court of Mecklenburg County by giving notice of appeal, in writing, to the Superior Court within 10 days after the entry of the order. Assignments of error must be filed with the court and served upon the Board within 30 days after the entry of the order. The appeal to the Superior Court will be upon the record of the proceedings before the Board at its hearing.

(m) *Incapability of performance.* In those situations where the chief of the fire or police department determines that an officer of the respective department is permanently disabled, the chief may cite that officer to the Board with a statement of the facts relating to the inability of such officer to perform his duties, and the Board shall, upon receipt of any such citation, hold a hearing as provided for herein, and the Board may dismiss such officer if it finds that such officer can no longer perform his duty. Permanently disabled, as used in this paragraph, shall mean the continuing or enduring incapacity because of physical injury, sickness, or mental illness as determined by competent medical authority, to earn the wages which the officer was receiving at the time of the injury, sickness, or determination of mental illness in the same or any other related employment.

(n) *Power of the Board to require investigation.* The Board may require the chief of the fire or police department to investigate any incident or circumstance involving officers of such departments which shall come to the Board's attention; provided that a majority of the Board shall first determine that such an investigation is in the public's interest. The respective chief shall report the results of an investigation to the Board in writing within a time to be set by the Board.

(o) *Annual report.* The Board shall make an annual report of its actions for the preceding year, and said annual report shall be kept in the files of the Board, and a copy delivered to the Council.

(p) *Secretary.* The City Clerk shall act as Secretary to the Board and shall keep the minutes of its meetings and shall be custodian of all papers and records pertaining to the business of said Board and shall perform such other duties as the Board may require.

(q) *Accommodations.* The Council shall provide suitable rooms for the Board and shall provide sufficient reasonable use of public buildings for meetings and hearings of said Board as may be necessary.

(r) *Compensation.* The members of said Board shall serve without compensation.

(s) *City finance.* Nothing in this Article shall be so construed as to deprive the Council of its control of the finances of said City.

(t) *Exceptions.* The provisions of this Article pertaining to civil service coverage of officers and employees of the fire and police departments shall not apply to the chief of the fire department or the chief of the police department and shall not apply to an officer of the police or fire department until he or she has been an officer of the respective department for at least 12 months. During such 12-months' probationary period, he or she shall be subject to discharge by the chief of such department under rules promulgated with respect thereto, such rules to be approved by the Council.

(u) *Promotions and demotions.* The chief of the police department and the chief of the fire department shall have authority to make all promotions of officers of their respective departments, subject to majority approval of the Civil Service Board. Promotions are probationary for six months from the date they become effective. Any demotions, except voluntary demotions, shall be made only after written charges are preferred and a hearing held before the Civil Service Board. Except as otherwise provided, demotions must be approved by a majority vote of the Board.

(v) *Wartime emergency.* Notwithstanding any other provisions of this Article, during any wartime emergency and for six months thereafter, officers of the fire department and police department may be employed on a temporary basis, and such temporarily employed officers may be discharged by the City Manager without the preferment of charges.

(w) *Auxiliary officers.* The Council may authorize the City Manager to appoint auxiliary officers of the fire and police departments without previous examinations by the Civil Service Board, who, subject to such rules and conditions as the chiefs of their respective departments shall prescribe, shall have all the powers and duties of regular members of the police and fire departments. Such auxiliary officers of the said departments shall be subject to discharge by the City Manager, with or without cause, and without a hearing before the Civil Service Board.

(S.L. 2006-124, § 1; S.L. 2015-33, § 1)

Editor's note—Section 2 of S.L. 2006-124 states the following: "An individual appointed by the Council or Mayor prior to January 1, 2007, to serve as an alternate on the Civil Service Board shall automatically become a member of the Civil Service Board for the remainder of the individual's unexpired term as an alternate."

CHAPTER 5.

AUTHORITIES, BOARDS, AND COMMISSIONS

ARTICLE I. IN GENERAL

Sec. 5.01. Powers of Mayor and Council.

(a) In addition to any authorities, boards or commissions now, or hereafter created and established by or pursuant to general, local, or special law, or this Charter, the Council may create and establish, by ordinance or resolution, such other authorities, boards, and commissions as it may deem necessary or appropriate to the administration, regulation, and operation of services, activities, and functions which the City is authorized by law to perform, regulate, and carry on. It is desirable that in appointing persons to boards, commissions, and authorities, the appointing authority should attempt to secure reasonable representation on each such body of all sexes, races, geographic sections of the City, and political parties. Provided, however, that such representation shall not be required, and the validity of any appointment may not be challenged on grounds that such representation has not been achieved.

(b) Any authority, board, commission, or other agency to which the Mayor or Council appoints members or appropriates money is hereby required to furnish to the Mayor and Council, upon request, such information as the Mayor and Council may deem relevant to the affairs of any such authority, board, commission, or other agency. The duty to provide such information is mandatory and may be enforced by an action for mandamus in the Superior Court of Mecklenburg County.

(c) The Mayor and Council may develop a plan and adopt such ordinances or resolutions as may be necessary to provide that the Mayor shall appoint one-third of the membership, and the Council shall appoint two-thirds of the membership of the following boards, commissions, and authorities:

(1) The Charlotte Regional Visitor's Authority;

(2) The Civil Service Board;

(3) The Housing Authority; and

(4) The Board of Adjustment.

Secs. 5.02—5.20. Reserved.

ARTICLE II. CHARLOTTE REGIONAL VISITORS AUTHORITY*

Sec. 5.21. Continuation.

(a) The control, management, and operation of the property and improvements now or hereafter made or acquired by the City for auditorium, coliseum, civic center, and baseball stadium purposes shall continue to be vested in the authority to be known as the Charlotte Regional Visitors Authority. The authority shall also engage in activities and programs aiding and encouraging convention and visitor promotion. The authority shall be composed of 13 members, four appointed by the Mayor and nine appointed by the Council. Those 13 members of the authority shall represent the following categories and be appointed as follows:

(1) Eight at large, three appointed by the Mayor and five appointed by the Council.

(2) One convention hotel representative appointed by the Council.

(3) One limited service hotel representative appointed by the Mayor.

(4) One restaurant representative appointed by the Council.

(5) One general travel representative appointed by the Council.

(6) One Mecklenburg town representative who shall not be an elected official and who is jointly nominated by the towns of Cornelius. Davidson, Huntersville, Matthews, Mint Hill, and Pineville and appointed by the Council. The Council may,

*__Editor's note—__Session Law 2004-14, § 1, ratified June 21, 2004, amended article II to read as herein set out. Formerly, article II pertained to the Auditorium Coliseum Convention Center and derived from original codification and Session Law 2001-402, § 4.

for good cause shown and in a timely manner, reject the individual nominated by the towns. If the Council rejects the nominee, the towns shall jointly nominate a different individual.

Other than for the Mecklenburg town representative, the Mayor or Council shall be responsible for determining whether their respective appointees satisfy the representational categories, which determination is final.

Each member shall serve a term of three years. The Council shall provide for the staggering of members' terms. No member shall serve more than two full consecutive terms. If any vacancy is created on the authority, the Council or the Mayor, as the case may be, shall appoint a member to fill the unexpired term. The members of the authority shall receive no compensation.

(b) Attendance of meetings and continued service on the authority shall be governed by the attendance policies established by the Council. Vacancies resulting from a member's failure to attend the required number of meetings shall be filled as provided herein.
(S.L. 2004-14, § 1)

Sec. 5.22. Officers and Funds.

The members of the authority shall elect annually from their body a chair, vice-chair, and a secretary and otherwise provide for the efficient administration of its affairs; provided, however, the finance officer of the City shall by virtue of his office be also the finance officer of the authority, and he shall serve as such finance officer without additional compensation. All funds of the authority shall be kept by its treasurer in a separate bank account or accounts from other funds of the City and shall be paid out only in accordance with procedures established by such authority. The net proceeds from the operation of the facilities shall be used to pay the interest and retirement on the bonded debt of the City incurred in connection with such auditorium-coliseum-convention center-baseball stadium and shall not be used for any other purpose until said bonds, principal, and interest have been paid, except as may be otherwise approved by the Council for other uses of the authority. Quarterly operating statements of the authority and an annual audited statement shall be presented to the Council. The authority shall be deemed a "special district," as defined in G.S. 159-7, for purposes of the Local Government Budget and Fiscal Control Act and shall budget and administer its fiscal affairs according to the provisions of that act applicable to special districts.
(S.L. 2004-14, § 1)

Sec. 5.23. Powers and Duties.

(a) The authority shall operate the auditorium-coliseum-convention center-baseball stadium in a proper, efficient, economical, and business-like manner, to the end that such properties and facilities may effectively serve the public needs for which they were established at the least cost and expense to the City. The authority shall appoint a Manager of such auditorium-coliseum-convention center-baseball stadium properties, whose salary shall be fixed by the authority. Such Manager shall, in addition to other duties imposed upon him by the authority, be responsible for the collection of rents or fees for the use of the properties and facilities of the authority. The authority shall select such other personnel as it deems advisable to properly operate such properties. The authority shall have full and complete control of such auditorium-coliseum-convention center-baseball stadium properties and facilities; shall have full and complete control over granting and denying the use of, and establishing and collecting rents and fees for the use of, the properties and facilities; shall make all reasonable rules and regulations as it deems necessary for the proper operation and maintenance of such properties and facilities; may expend funds of the authority for the advertising and promotion of the use of the properties and facilities; and may sponsor and promote shows, events, games and activities involving the use of the properties and facilities and make reasonable charges therefor.

(b) The authority may, in its discretion, lease or rent auditorium-coliseum-convention center-baseball stadium properties and facilities for such terms and upon such conditions as the authority may determine but not for longer than 10 years. Leases and rentals for terms of more than one year may be executed only after 10 days' public

notice by publication describing the property to be leased or rented, stating the annual lease or rental payments and announcing the authority's intent to authorize the lease or rental at its next meeting. No public notice or resolution of the authority is required with respect to leases and rentals for terms of one year or less."

(c) The authority shall engage in activities and programs aiding and encouraging convention and visitor promotion. These activities and programs shall include sales and marketing activities and expenditures that relate both to facilities under the control, management, and operation of the Authority, as well as to the selling and marketing of the Charlotte region as a travel and tourism destination.
(S.L. 2004-14, § 1)

CHAPTER 6.

REGULATORY AND PLANNING FUNCTIONS

ARTICLE I. IN GENERAL

Secs. 6.01—6.10. Reserved.

ARTICLE II. TRAFFIC AND PARKING

Sec. 6.11. Parking regulations and violations.

(a) The Council may provide by ordinance that each hour a vehicle remains illegally parked in an on-street parking space is a separate offense, and the violator may be given a ticket for each offense.

(b) The Council may provide by ordinance that any vehicle that has been towed for a parking violation is to be held until the towing fee and penalties related to all outstanding parking tickets and parking penalties owed to the City are paid in full, or a bond is posted in the amount of the towing fee and all outstanding parking tickets and parking penalties. Payment of the towing fee and all outstanding parking tickets and parking penalties shall not constitute a waiver of a person's right to contest the towing or the outstanding parking tickets and parking penalties.

(c) The Council may provide by ordinance for the use of wheel locks on illegally parked vehicles for which there are three or more outstanding, unpaid, and overdue parking tickets for a period of 90 days. The ordinance shall provide for notice or warning to be affixed to the vehicle, immobilization, towing, impoundment, appeal hearing, an immobilization fee not to exceed fifty dollars ($50.00), and charges for towing and storage. The City shall not be responsible for any damage to an immobilized illegally parked vehicle resulting from unauthorized attempts to free or move that vehicle.

(d) Notwithstanding the provisions of G.S. ch. 20 or any other public or private local laws to the contrary, the Council may adopt ordinances:

(1) Prohibiting parking or standing of a vehicle in a space designated with a sign for handicapped persons when the vehicle does not display the distinguishing registration plate, windshield placard, or disabled veteran registration plate and that prohibit parking or standing of a vehicle so as to obstruct a curb ramp or curb cut, as provided in G.S. 20-37.6(e).

(2) Prohibiting parking or standing of a vehicle in front of or within a specified distance in either direction of a fire hydrant or the driveway entrance to any fire station, or in any area designated as a fire lane.

(3) Prohibiting parking or standing of a vehicle in front of or within a specified distance from a public or private driveway.

(4) Prohibiting parking or standing of a vehicle within a specified distance from an intersection or crosswalk.

(e) Notwithstanding the provisions of G.S. 20-37.6(f) and G.S. 20-176, a violation of any ordinance adopted pursuant to this section shall not be an infraction or a misdemeanor.

(f) Any ordinance adopted pursuant to this section may be enforced by law enforcement officers and any person or persons authorized by ordinance, by the city manager, or by the chief of police, whether or not the vehicle is parked on public or private property.
(S.L. 2000-59, § 3; S.L. 2001-88, § 1)

Sec. 6.12. Reserved.

Editor's note—Session Law 2001-88, § 2, adopted May 17, 2002, repealed § 6.12 in its entirety, which pertained to fire safety parking regulations and derived from the original Charter.

Sec. 6.13. Speed limits.

The director of transportation may establish speed limits, as required by G.S. 20-141, on streets within the City of Charlotte, on behalf of the local governing body, the Charlotte City Council.

Secs. 6.14—6.60. Reserved.

ARTICLE III. UNSAFE BUILDINGS

Sec. 6.61. Power to inspect and condemn unsafe and dangerous buildings.

The Council may provide by ordinance for the inspection, condemnation, and removal of unsafe and dangerous buildings. Such ordinance may provide for the entry in and upon all premises, buildings, and structures within the jurisdiction of the City, to inspect and discover whether the same are unsafe and dangerous to life or property on account of defects or dilapidation, and to cause all unsafe and dangerous conditions to be repaired or removed, and all filth and trash in and around the same to be removed. Such ordinance may also provide for the condemnation, as unsafe and dangerous to life or property, of any such building or structure and to prohibit further use or occupancy thereof. If the owner of any such building or structure which has been so condemned, fails or refuses, after notice, hearing, and order, to repair or remove the unsafe and dangerous building or structure pursuant to such order, he shall be guilty of a Class 3 misdemeanor punishable as for a violation of any municipal ordinance. A copy of such notice and order shall be certified by the City Clerk and filed for recording in the office of the Clerk of Superior Court for Mecklenburg County in the Record of Lis Pendens and from the date or dates of recording of such notice and order, they shall be binding upon the successors and assigns of the owner. In addition, if the owner fails or refuses as aforesaid, or, if the owner cannot, after reasonable and diligent search and notice by publication, be located or found, then the City may enter upon such premises and remedy such unsafe and dangerous condition or demolish and remove such building or structure if necessary, and to charge the costs thereof against the owner of said premises, and the same shall be and remain a lien against the said premises until such costs are paid in full, and the lien herein provided shall have the same priority as the lien for unpaid taxes and may be collected in the same manner as taxes upon real property and the City, its agents, servants, employees, and contractors, shall not be liable in any manner, civilly or criminally, for carrying out the terms and provisions of this section or any ordinance adopted pursuant hereto. The term "costs", as used in this section, shall include interest at the rate of not less than six percent (6%) per annum until said lien is paid, nor more than twelve percent (12%) per annum until said lien is paid; the rate of interest to be determined by the Council on an annual fiscal year basis. Provided, that if the Council should fail to set a rate of interest in any fiscal year, the rate of interest in effect for the preceding fiscal year shall continue in effect.

Secs. 6.62—6.80. Reserved.

ARTICLE IV. FIRE PROTECTION

Sec. 6.81. Power to destroy property.

The chief of the fire department or the officer in charge at the scene of a fire may order the blowing up, tearing down, or other destruction of any building, property, or structure when it is deemed necessary for the protection of life and property to stop the progress of a fire. No person shall be held liable, civilly or criminally, for acting in obedience to orders thus given, nor shall the chief or officer giving such order be held liable, civilly or criminally, for the giving of such order or for damages to property destroyed pursuant to order.

Sec. 6.82. Power of arrest.

The fire chief and his assistants, while on duty during fires, shall have the powers conferred upon police officers of the City to make arrests, and may make arrests without warrants for interference with or obstruction to their operations.

Secs. 6.83—6.100. Reserved.

ARTICLE V. DRAINAGE AND SANITATION

Sec. 6.101. Drainage of premises.

The Council may require that all property owners provide adequate drainage facilities to the end that their premises be free from standing water and permit the natural flow of water thereon to be taken care of, and to provide that in case of failure on the part of such owner or owners to so provide the same, to go upon their premises and

construct the necessary facilities and to charge the costs thereof against the premises so improved.

Sec. 6.102. Weeds and overgrowth.

The Council may require the owner or owners of all premises, vacant or improved, to keep same free from trash, obnoxious weeds, or overgrowth as they may be ordered and to provide that in case of failure on the part of such owner or owners to comply with any such order, to go upon their premises and perform such work as may be necessary to comply with such order, and to charge the cost thereof against the premises upon which such work is performed.

Sec. 6.103. Costs a lien as for taxes.

The costs to the City of any work performed under this Article shall constitute a lien upon the premises upon which the work is performed. The lien provided for herein shall have the same priority as the lien for unpaid taxes and may be collected in the same manner as taxes upon real property. The term "costs", as used in this section, shall include interest at the rate of not less than six percent (6%) per annum until said lien is paid, nor more than twelve percent (12%) per annum until said lien is paid; the rate of interest to be determined by the Council on an annual fiscal year basis. Provided, that if the Council should fail to set a rate of interest in any fiscal year, the rate of interest in effect for the preceding fiscal year shall continue in effect.

Secs. 6.104—6.120. Reserved.

ARTICLE VI. UTILITIES REGULATION

Sec. 6.121. Power to regulate; franchises.

The Council may regulate and supervise the operation of all public utilities and quasi-public utilities operating or doing business within the City to the end that all citizens of the City shall receive from said public utilities and quasi-public utilities, equal treatment, good service, and just and reasonable rates, and to grant or refuse franchises or privileges to such utilities and to regulate the erection and location of all poles in the City and to require that all wires, pipes, and conduits be placed underground and to regulate the same; provided that such regulations shall not be in contravention of the general laws of North Carolina applicable to such utilities, as the same are now or may hereafter be enacted.

Secs. 6.122—6.150. Reserved.

ARTICLE VII. FAIR HOUSING

Sec. 6.151. Equal housing.

(a) The Council may adopt ordinances prohibiting discrimination on the basis of race, color, sex, religion, handicap, familial status, or national origin in real estate transactions. Such ordinances may regulate or prohibit any act, practice, activity, or procedure related, directly or indirectly, to the sale or rental of public or private housing, which affects or may tend to affect the availability or desirability of housing on an equal basis to all persons; may provide that violations constitute a criminal offense; may subject the offender to civil penalties; and may provide that the City may enforce the ordinances by application to the Superior Court Division of the General Court of Justice for appropriate legal and equitable remedies, including, but not limited to, mandatory and prohibitory injunctions and orders of abatement, attorneys' fees, and punitive damages, and the court shall have jurisdiction to grant such remedies.

(b) The Council also may amend any ordinance adopted pursuant to the provisions contained in subsection (a) of this section to ensure that such ordinance remains substantially equivalent to the federal Fair Housing Act (41 U.S.C.S. § 3601, et seq.). Any ordinance enacted pursuant to section 6.151(a) prohibiting discrimination on the basis of familial status shall not apply to housing for older persons as defined in the federal Fair Housing Act (41 U.S.C.S. § 3601, et seq.).

Sec. 6.152. Exemptions.

Any ordinance enacted pursuant to this Article may provide for exemption from its coverage:

(1) The rental of a housing accommodation in a building containing accommodations for

not more than four families living independently of each other if the lessor or a member of his family resides in one of those accommodations.

(2) The rental of a room or rooms in a housing accommodation by an individual if he or a member of his family resides there.

(3) With respect to discrimination based on sex, the rental or leasing of housing accommodations in single-sex dormitory property.

(4) With respect to discrimination based on religion to housing accommodations owned and operated for other than a commercial purpose by a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society, the sale, rental, or occupancy of such housing accommodation being limited or preference being given to persons of the same religion, unless membership in such religion is restricted because of race, color, national origin, or sex.

(5) Any person, otherwise subject to its provisions, who adopts and carries out a plan to eliminate present effects of past discriminatory practices or to assure equal opportunity in real estate transactions, if the plan is part of a conciliation agreement entered into by that person under the provisions of the ordinance.

Sec. 6.153. Enforcement.

The Council may create or designate a committee to assume the duty and responsibility of enforcing ordinances adopted pursuant to this Article. Such committee may be granted any authority deemed necessary by the Council for the proper enforcement of any fair housing ordinance, including, but not limited to, the power to:

(1) Promulgate rules for the receipt, initiation, investigation, and conciliation of complaints of violations of the ordinance.

(2) Require answers to interrogatories, the production of documents and things, and the entry upon land and premises in the possession of a party to a complaint alleging a violation of the ordinance; compel the attendance of witnesses at hearings, administer oaths, and examine witnesses under oath or affirmation.

(3) Apply to the Superior Court of the General Court of Justice, upon the failure of any person to respond to or comply with a lawful interrogatory, request for production of documents and things, request to enter upon land and premises, or subpoena, for an order requiring such person to respond or comply.

(4) Upon finding reasonable cause to believe that a violation of the ordinance has occurred, to petition the General Court of Justice for appropriate civil relief on behalf of the aggrieved person or persons.

Sec. 6.154. Complaints and other records.

The Council may provide that neither complaints filed with any committee pursuant to the ordinance nor the results of the committee's investigations, discovery, or attempts at conciliation, in whatever form prepared and preserved, shall be subject to inspection, examination, or copying under the provisions of what is now G.S. ch. 132.

Sec. 6.155. Committee meetings.

The Council may provide that the statutory provisions relating to meetings of governmental bodies, presently embodied in G.S. 143-318.9 et seq., shall not apply to the activity of any committee authorized to enforce the ordinance, to the extent that said committee is receiving a complaint or conducting an investigation, discovery, or conciliation pertaining to a complaint filed pursuant to the ordinance.

Secs. 6.156—6.182. Reserved.

ARTICLE VIII. ZONING REGULATION

Sec. 6.183. Amendments to zoning ordinances.

As a part of, and not in limitation of, the powers granted by general laws to enact amend-

ments to zoning ordinances, whenever the Council is petitioned to enact an amendment changing the zoning of a particular area, it shall have and may exercise the power to amend by changing the existing zoning classification of the area covered by the petition, or any part or parts thereof, to the classification requested or to a higher classification or classifications, without the necessity of withdrawal or modification of the petition; provided that notices of hearings on such amendments shall inform the public that such action may be taken. If the Council desires to exercise the power granted herein, it shall, for the purposes of this section, provide by ordinance for the classification of zoning districts from highest to lowest classification.

Sec. 6.184. Zoning board of adjustment.

(a) Members shall be appointed for a term of three years, and no member shall serve more than two full consecutive terms. The board of adjustment shall have and exercise all of the powers, duties, and functions enumerated in G.S. 160A-388; provided, however, that a majority vote of the members of the board shall be necessary to reverse any order, requirement, decision or determination of any administrative official charged with enforcement of the zoning ordinance or to decide in favor of the applicant any matter upon which it is required to pass under any ordinance or to effect any variation from the provisions of the ordinance.

(b) The board of adjustment shall have the power, upon an appeal filed with it by the owner of the property, to vary or modify the regulations of the zoning ordinance, as they apply to a particular piece of property, in accordance with G.S. 160A-388(d). Where such relief is granted, the board may impose reasonable and appropriate conditions and safeguards for the protection of the public interest and of neighboring properties.

Secs. 6.185—6.201. Reserved.

ARTICLE IX. SUBDIVISION REGULATION

Sec. 6.202. Recording of plats.

No one shall file or record in the Mecklenburg County Register of Deeds a plat of a subdivision of land located within the City's territorial jurisdiction without the approval of the Charlotte-Mecklenburg Planning Commission as required by this Article. The filing or recording of a plat of a subdivision without the approval of the Charlotte-Mecklenburg Planning Commission, as required by this Article, shall be null and void.

Sec. 6.203. Acceptance of and improvements in unapproved streets.

The City shall not accept for maintenance, lay out, open, improve, grade, pave, or light any street or authorize the laying of water mains, sewer connections, or other facilities or utilities in any street within its territorial jurisdiction, (i) unless such street shall have been accepted or opened as, or shall have otherwise received the legal status of a public street prior to the said attachment of the City's subdivision jurisdiction, or (ii) unless such street corresponds in its location and lines with a street shown on a subdivision plat approved by the Charlotte-Mecklenburg Planning Commission, or (iii) unless such street be accepted as a public street by the City Manager.

Sec. 6.204. Approval of plats.

(a) The City Council may enact an ordinance providing that no plat of a subdivision of land lying within the corporate limits of the City of Charlotte or within the perimeter area shall be filed or recorded until it shall have been submitted to and approved by the Charlotte-Mecklenburg Planning Commission in accordance with regulations adopted under authority of this Article and such approval entered in writing on the plat by the Secretary of the Commission.

(b) Notwithstanding the provisions of G.S. 39-32.1, the City Council may by ordinance designate the location and placement or permanent control markers along property lines in subdivisions.
(S.L. 2001-187, § 1)

Sec. 6.205. Change or modification of street names.

The Charlotte Department of Transportation may hear and approve requests to change or

modify street names within the City of Charlotte. Any person dissatisfied with a decision of the Department may appeal to the City Council. In the event of an appeal, the City Council may affirm, modify, or overturn the decision of the department. The decision of the City Council on appeal shall be final.

Secs. 6.206—6.220. Reserved.

ARTICLE X. TREES

Sec. 6.221. Removal, replacement, and preservation of trees.

The Council may adopt ordinances, only after holding public hearings, to regulate the removal of trees from public and private property within the City in order to preserve, protect, and enhance one of the most valuable natural resources of the community and to protect the health, safety and welfare of its citizens.

CHAPTER 7.

CITY SERVICES AND FACILITIES

ARTICLE I. IN GENERAL

Secs. 7.01—7.20. Reserved.

ARTICLE II. WATER AND SEWER

Sec. 7.21. Remedies for collection of charges.

In addition to the remedies provided by general law for the collection of charges for water and sewerage services, both within and without the corporate limits, if any such charge is not paid within 10 days after it becomes due, the same shall become a lien upon the property served or in connection with which the service or facility is used and said shall have the same priority as the lien for unpaid taxes and may be collected in the same manner as taxes upon real property. The Council may also require the payment of reasonable deposits by owners or tenants as a condition precedent to the furnishing of water or sewerage services, or both. Such deposits may be retained by the City as assurance for the payment of charges and may be refunded, without interest, upon such terms and conditions as the Council may establish.

Sec. 7.22. Dedication of water and sewer lines.

Should any person, firm, or corporation connect any privately owned water or sewer line or lines without first dedicating, giving, granting, and conveying same to the City, the act of connecting shall be deemed a dedication, gift, grant, and conveyance of such lines to the City, and the City may accept same or may order the disconnection of such lines.

Sec. 7.23. Storm drainage system improvements.

(a) *Authorization.* The City may contract with a private party for storm drainage system improvements that are adjacent or ancillary to a private land development project. Such a contract shall allow the City to reimburse the private party for costs associated with the design and construction of storm drainage improvements that are in addition to those required by the City's land development regulations. Such a contract is not subject to G.S. 143-128 et seq. if the public cost will not exceed one hundred seventy-five thousand dollars ($175,000) and the City's Engineering and Property Management Department determines that: (i) the public cost will not exceed the estimated cost of providing for such public storm drainage system improvements through either eligible force account qualified labor or through a public contract let pursuant to G.S. 143-128 et seq.; or (ii) the coordination of separately constructed public storm drainage system improvements would be impracticable.

(b) *Property Acquisition.* The storm drainage system improvements may be constructed on property owned or acquired by the private party or on property directly acquired by the City. The private party may assist the City in obtaining storm drainage easements in favor of the City from private property owners on those properties that will be involved in or affected by the project. The contract between the City and the private party may be entered into before the acquisition of any real property necessary to the project.
(S.L. 2001-248, § 1)

Sec. 7.24. [Authority to continue to levy stormwater fees.]

G.S. 160A-314 reads as rewritten:

"§ 160A-314. Authority to fix and enforce rates.

"(a) A city may establish and revise from time to time schedules of rents, rates, fees, charges, and penalties for the use of or the services furnished by any public enterprise. Schedules of rents, rates, fees, charges, and penalties may vary according to classes of service, and different schedules may be adopted for services provided outside the corporate limits of the city.

"(a1) Before it establishes or revises a schedule of rates, fees, charges, or penalties for structural and natural stormwater and drainage systems under this section, the city council shall hold a public hearing on the matter. A notice of the

hearing shall be given at least once in a newspaper having general circulation in the area, not less than seven days before the public hearing. The hearing may be held concurrently with the public hearing on the proposed budget ordinance.

"The fees established under this subsection must be made applicable throughout the area of the city. Schedules of rates, fees, charges, and penalties for providing structural and natural stormwater and drainage system service may vary according to whether the property served is residential, commercial, or industrial property, the property's use, the size of the property, the area of impervious surfaces on the property, the quantity and quality of the runoff from the property, the characteristics of the watershed into which stormwater from the property drains, and other factors that affect the stormwater drainage system. Rates, fees, and charges imposed under this subsection may not exceed the city's cost of providing a stormwater and drainage system.

"No stormwater utility fee may be levied under this subsection whenever two or more units of local government operate separate structural and natural stormwater and drainage system services in the same area within a *county, except that a unit of local government that has issued revenue bonds, including revenue bonds issued to refund prior revenue bonds, for which stormwater utility fees have been pledged under G.S. 159-80 et seq. may continue to levy a stormwater utility fee under this subsection for the sole purpose of (i) paying principal, interest, or redemption premiums in accordance with the terms of the revenue bonds, (ii) funding any reserve requirements or similar obligations imposed by any documents, instruments, or agreements pursuant to which the revenue bonds are authorized or issued or securing the same or any related credit facility, liquidity facility, derivative agreement, or any other similar agreement, and (iii) paying any related cost, fees, and expenses until the revenue bonds have been retired.* However, two or more units of local government may allocate among themselves the functions, duties, powers, and responsibilities for jointly operating a single structural and natural stormwater and drainage system service in the same area within a county, provided that only one unit may levy a fee for the service within the joint service area. For purposes of this subsection, a unit of local government shall include a regional authority providing structural and natural stormwater and drainage system services.

"(a2) A fee for the use of a disposal facility provided by the city may vary based on the amount, characteristics, and form of recyclable materials present in solid waste brought to the facility for disposal. This section does not prohibit a city from providing aid to low-income persons to pay all or part of the cost of solid waste management services for those persons.

"(b) A city shall have power to collect delinquent accounts by any remedy provided by law for collecting and enforcing private debts, and may specify by ordinance the order in which partial payments are to be applied among the various enterprise services covered by a bill for the services. A city may also discontinue service to any customer whose account remains delinquent for more than 10 days. When service is discontinued for delinquency, it shall be unlawful for any person other than a duly authorized agent or employee of the city to do any act that results in a resumption of services. If a delinquent customer is not the owner of the premises to which the services are delivered, the payment of the delinquent account may not be required before providing services at the request of a new and different tenant or occupant of the premises, but this restriction shall not apply when the premises are occupied by two or more tenants whose services are measured by the same meter.

"(c) Except as provided in subsection (d) and G.S. 160A-314.1, rents, rates, fees, charges, and penalties for enterprisory services shall be legal obligations of the person contracting for them, and shall in no case be a lien upon the property or premises served, provided that no contract shall be necessary in the case of structural and natural stormwater and drainage systems.

"(d) Rents, rates, fees, charges, and penalties for enterprisory services shall be legal obligations of the owner of the premises served when:

"(1) The property or premises is leased or rented to more than one tenant and services rendered to more than one tenant are measured by the same meter.

"(2) Charges made for use of a sewage system are billed separately from charges made for the use of a water distribution system.

"(e) Nothing in this section shall repeal any portion of any city charter inconsistent herewith."

This act applies to the City of Charlotte only. (S.L. 1998-66, §§ 1, 2)

Editor's note—Subsequent to the adoption of S.L. 2001-248, the former § 7.23 has been redesignated as § 7.24 at the direction of the city. The historical notation has been retained for reference purposes.

Secs. 7.25—7.40. Reserved.

ARTICLE III. REFUSE DISPOSAL

Sec. 7.41. Disposition of disposal sites.

The Council may in its discretion lease or sell, at private sale, any lands now or hereafter owned or acquired by the City, to any person, firm, or corporation contracting with the City for disposal of municipally collected refuse, for use as a plant site or sites, upon such terms and considerations as the Council may prescribe.

Secs. 7.42—7.70. Reserved.

ARTICLE IV. SPAY/NEUTER CLINIC AND DIFFERENTIAL LICENSE TAX

Sec. 7.71. Spay/neuter clinic.

The City may establish, equip, operate and maintain a spay/neuter clinic for cats and dogs, employ personnel for this clinic and appropriate and expend tax and nontax funds, including property taxes, for those purposes. In lieu of the City itself operating the spay/neuter clinic, the City is further authorized to contract with any individual, corporation, nonprofit corporation, governmental body, or any other group for the purpose of operating a spay/neuter clinic, or for providing spay/neuter services for dogs and cats within the City. The City may appropriate and expend tax and nontax funds, including property taxes, for these purposes.

Sec. 7.72. Differential licensing tax.

The City may levy an annual differential license tax on the privilege of keeping a dog or cat within the City. The Council may levy a lower annual license tax for spayed or neutered dogs and cats than for nonspayed and nonneutered dogs and cats within the City.

Secs. 7.73—7.80. Reserved.

ARTICLE V. EMINENT DOMAIN

Sec. 7.81. Powers and procedures.

(a) Notwithstanding the provisions of G.S. 40A-1, in the exercise of its authority of eminent domain for the acquisition of property to be used for streets and highways, water supply and distribution systems, sewage collection and disposal systems, economic development purposes authorized by law within the territory described in subsection (c) of this section, structural and natural stormwater and drainage systems of all types, public transportation systems, and airports, the City is hereby authorized to use the procedure and authority prescribed in G.S. 136-103 et seq., as now or hereafter amended; provided further, that whenever therein any reference is made to the State of North Carolina or any agency thereof, such reference shall be deemed to include the City, and whenever therein any reference is made to any official of the state of North Carolina, such reference shall be deemed to include the City Manager; provided further that nothing herein shall be construed to enlarge the power of the City to condemn property already devoted to public use.

(b) The City shall have the power of eminent domain to acquire property to provide housing for low- and moderate-income persons but only to acquire: (i) vacant structures boarded up as a result of housing code violations; (ii) structures that have been found to contain housing code violations that the property owner has failed or refused to correct within a reasonable time; and (iii) vacant properties rendered vacant as a result of a housing code enforcement demolition order. Provided that in the exercise of its authority of eminent domain to acquire property to provide

housing for low- and moderate-income persons, the City shall follow the procedures prescribed in G.S. ch. 40A. Vesting of title to the property taken under this subsection, and right to possession shall occur pursuant to the provisions of G.S. 40A-42(b). The City may not file an eminent domain action to acquire property described in clauses (i) or (ii) of this subsection until the property owner has had 150 days from the date of the order finding violations of the City housing code to correct the violations. The Council must adopt a plan to use condemned property for lower moderate-income housing prior to exercising the powers under this subsection.

(c) The area within which the City of Charlotte is authorized to use the procedure and authority prescribed in G.S. 136-103 et seq. for economic development purposes by subsection (a) of this section is as follows: an area bounded on the east by Berryhill Road, on the south by the Norfolk Southern Railroad, on the north by Wilkinson Boulevard, and on the west by Billy Graham Parkway. The property may be conveyed at private sale as allowed by the exception in G.S. 160A-279(d), but otherwise following the procedures of G.S. 160A-279.

(d) Before the City of Charlotte may use the procedure and authority prescribed in G.S. 136-103 et seq. for economic development purposes in the area defined in subsection (c) of this section, the City shall designate a not-for-profit corporation to which it may intend to convey the property at private sale as allowed by subsection (c) of this section, and that corporation must demonstrate to the City that the corporation has attempted to negotiate with the property owner in good faith for the purchase of the property.

(e) Before the City of Charlotte may use the procedure and authority prescribed in G.S. 136-103 et seq. for economic development purposes in the area defined in subsection (c) of this section, the corporation designated under subsection (d) of this section must demonstrate to the City that as long as the use of the property is compatible with the development plan for the area, the corporation has used its best good faith efforts to relocate within the economic development project area any business displaced by the project.
(S.L. 2000-89, § 1; S.L. 2001-304, § 1)

Secs. 7.82—7.103. Reserved.

ARTICLE VI. LOCAL IMPROVEMENTS

Sec. 7.104. Alternative procedures.

(a) Upon receipt of a petition from an owner or owners representing fifty percent (50%) or less of the total street frontage where fifty percent (50%) or more of the total street frontage is in one ownership, the Council may order the making of any local improvement and assess the cost against the abutting property in the same manner and following the same procedures as set forth in the general laws of North Carolina for the making of special assessments against property benefitted by local improvements.

(b) The Council may order the making of any local improvements and assess the cost thereof, except the City's portion, against only a limited number of abutting properties upon receipt of a petition from all such property owners asking that the improvement be made and that the total amount to be assessed for the improvement be assessed only against their properties.

(c) No petition shall be necessary for the making of any local improvements for which the City bears the entire cost without assessment.

(d) If, in the judgment of the Council, the abutting property to be assessed will be benefitted in an amount at least equal to the assessment, and such judgment shall be conclusive, no petition for local improvements shall be necessary and the Council may order the making of any local improvements and assess the cost thereof against abutting properties in the following cases:

(1) *Street improvements and/or curb and gutter.* When, in the judgment of the Council, any street or part of a street is unsafe; or, the improvement of a street or part of a street not more than three blocks in length is necessary to connect streets already paved; or, the improvement of a street or part of a street is necessary to connect a paved street, or portion thereof, with a paved highway; or, the improvement of a street or part of a street is necessary to provide a paved approach to a railroad or

street grade separation or any bridge; or, any street or part of a street should be widened to accommodate present and anticipated volumes of traffic thereon.

(2) *Water main improvements.* When, in the judgment of the Council, any street or part of a street, or any property within the City, is without a public water supply and can be served, and water service should be provided in the public interest.

(3) *Sanitary sewer improvements.* When, in the judgment of the Council, any street or part of a street, or any property within the City, is without a public sanitary sewer system and can be served, and sanitary sewer service should be provided in the public interest.

(4) *Storm sewer or other surface drainage improvements.* When, in the judgment of the Council, any street or part of a street, or any property within the City, is without storm sewer or other surface drainage improvements, and can be served, and storm sewer or other surface drainage should be provided in the public interest.

(5) *Sidewalk improvements.* When, in the judgment of the Council, any street or part of a street is without sidewalks and sidewalks should be provided in the public interest.

(e) Whenever the Council finds that public interest requires a sidewalk or sidewalks or portion of driveways within the public right-of-way be repaired, the total cost of such repairs may be assessed against the property abutting the sidewalk or driveway repaired. Before an assessment may be made against abutting property for a sidewalk or driveway repair, at least 30 days' written notice must be given to the abutting property owner personally or by registered or certified mail to his last known address or as shown on the tax records, that he is required to make the designated repairs at his own cost and expense in conformity with the sidewalk standards adopted by the City, and if he shall fail to make such repairs within 30 days after notice served upon him, the City may thereupon make said repairs and assess the cost thereof. Provided, however, if the Council finds that any sidewalk or driveway is in need of immediate repair, the Council may adopt a resolution setting out such finding and directing that such repair be made immediately by the City and that the cost thereof be assessed against the property abutting without notice to the property owner affected.

Sec. 7.105. Planting strip and driveway maintenance.

It shall be the responsibility of the abutting property owner to maintain any property or driveway between the property line and the curb of a paved street.

Sec. 7.106. Corner lot exemption.

The Council may determine the amount and applicability of assessment exemptions for corner lots. Provided, exemptions for corner lots shall apply to only one side of each such lot and the amount of the exemption shall not exceed seventy-five percent (75%) of the frontage of that side. If the corner formed by the two intersecting streets is rounded into a curve or is foreshortened for the purpose of providing sight distance or for any other purpose of construction, the frontage for assessment purposes shall be calculated to the midpoint of the curve or foreshortened corner.

Sec. 7.107. Intersection and roadway improvements.

(a) In connection with street widening, the City may purchase with any available funds, property immediately adjacent to property located on a street corner; provided, in the opinion of the Council, the value of such inside lands does not exceed the value of the corner property needed for street-widening purposes, and may convey and transfer such inside lands to the owner of the corner property in exchange for property needed for street-widening purposes, at private sale.

(b) The City may contract with a private party for public intersection or roadway improvements that are adjacent or ancillary to a private land development project. Such a contract is not subject to G.S. 143-128 et seq. if the public cost will not exceed one hundred seventy-five thousand dollars ($175,000) and the Charlotte Department

of Transportation determines that: (i) the public cost will not exceed the estimated cost of providing for such public intersection or roadway improvements through either eligible force account qualified labor or through a public contract let pursuant to G.S. 143-128 et seq.; or (ii) the coordination of separately constructed public intersection or roadway improvements and the adjacent or ancillary private land development improvements would be impracticable.
(S.L. 2001-248, § 2)

Sec. 7.108. Water and sewer facilities; additional authority.

In the construction, reconstruction, or extension of the water and sewerage systems, or either of them in whole or in part, the City shall have, in addition to all other authority now or hereafter granted, the authority to specially assess the costs thereof in accordance with the procedures and authority prescribed for counties by G.S. 153A-185 et seq., as the same may be amended from time to time.

ARTICLE VII. UPTOWN DEVELOPMENT PROJECTS

Sec. 7.109. Public-private development projects.

(a) *Definition.* In this Article, public-private development projects means a capital project located: (i) in the City's central business district, as defined by the Council; (ii) in or along a major transportation corridor; or (iii) in a development zone designated pursuant to G.S. 105-129.3A; comprising one or more buildings or other improvements and including both public and private facilities. By way of illustration but not limitation, such a project might include a single building comprising a publicly owned parking structure and publicly owned convention center and a privately owned hotel or office building.

(b) *Authorization.* If the Council finds that it is likely to be of significant economic benefit to the area of the City in which the project is located, the City may acquire, construct, own, and operate or participate in the acquisition, construction, ownership, and operation of a public-private development project or of specific facilities within such a project. The City may enter into binding contracts with one or more private developers with respect to acquiring, constructing, owning, or operating such a project. Such a contract shall among other provisions, specify the following:

(1) The property interest of both the City and the developer or developers in the project.

(2) The responsibilities of the City and the developer or developers for construction of the project.

(3) The responsibilities of the City and the developer or developers with respect to financing the project.

(4) The responsibilities of the City and the developer or developers with respect to the operation of the project.

Such a contract may be entered into before the acquisition of any real property necessary to the project.

(c) *Property acquisition.* A public-private development project may be constructed on property acquired by the developer or developers or on property directly acquired by the City by any means.

(d) *Property disposition.* In connection with a public-private development project, the City may lease or convey interests in property owned by it, including air rights over public facilities, by private negotiation or sale, and G.S. 160A-265 et seq. does not apply to such dispositions.

(e) *Construction of the project.* The contract between the City and the developer or developers may provide that the developer or developers shall be responsible for construction of the entire public-private development project. If so, the contract shall include such provisions as the City Council deems sufficient to assure that the public facility or facilities included in the project meet the needs of the City and are constructed at a reasonable price. A project constructed pursuant to this paragraph is not subject to G.S. 143-128 et seq. as long as City funds constitute not more than fifty percent (50%) of the total costs of the project.

(f) *Operation.* The City may contract for the operation of any public facility or facilities included in a public-private development project by a person, partnership, firm, or corporation, public or private. Such a contract shall include provisions sufficient to assure that any such facility or facilities are operated for the benefit of the citizens of the City.

(g) *Grant funds.* To assist in the financing of its share of a public-private development project, the City may apply for, accept, and expend grant funds from the federal or State governments.

ARTICLE VIII. RAPID TRANSIT SERVICES

Sec. 7.110. Public safety offenses.

In addition to any other applicable laws or ordinances, G.S. 14-278, 14-279, 14-279.1, 14-280, 14-280.1, and 14-281 shall apply to rapid transit services within the City of Charlotte, including busways, commuter rail systems, light rail systems, and streetcar systems.
(S.L. 2006-43, § 1)

Sec. 7.111. Proof of fare payment.

In addition to any other applicable laws or ordinances, it shall be unlawful for any person to fail to provide proof of fare payment while upon rapid transit services within the City of Charlotte, including busways, commuter rail systems, light rail systems, and streetcar systems, when proof is requested by an authorized employee of the City, an authorized agent of the City, or a peace officer. Any person convicted of violating this section shall be guilty of a Class 3 misdemeanor. An authorized employee of the City, authorized agent of the City, or peace officer who detains or causes the arrest of a person who fails to provide proof of fare payment upon request shall not be held civilly liable for the detention, malicious prosecution, false imprisonment, or false arrest of the person detained or arrested if the detention or arrest is: (i) upon a rapid transit vehicle or in reasonable proximity of a rapid transit station; (ii) conducted in a reasonable manner for a reasonable length of time; and (iii) based upon probable cause that the person committed the offense alleged. If the person being detained or arrested is a minor under the age of 18, the authorized employee, authorized agent, or peace officer shall call or notify, or make a reasonable effort to call or notify, the parent or guardian of the minor during the period of detention or arrest. An authorized employee of the City, authorized agent of the City, or peace officer who makes a reasonable effort to call or notify the parent or guardian of a minor child under this section shall not be held civilly liable for the failure to call or notify the parent or guardian.
(S.L. 2006-43, § 1)

CHAPTER 8.

MISCELLANEOUS

ARTICLE I. IN GENERAL

Secs. 8.01—8.20. Reserved.

ARTICLE II. SALE OF PROPERTY

Sec. 8.21. Personal property.

The City may sell any and all personal property belonging to the City at private sale, and without resorting to public outcry and sale.

Sec. 8.22. Real property.

(a) Whenever a disposition of an interest in real property is authorized by the City, the instrument conveying such interest may be executed by the Mayor or the Mayor's designee and attested by the City Clerk or Deputy City Clerk, with the corporate seal of the City attached. In the sale of real estate, the City may execute deeds in the usual form and containing full covenants of warranty.

(b) The City may convey interests in real property owned by it by private negotiation or sale, with respect to parcels of property having a fair market value of ten thousand dollars ($10,000.00) or less, and G.S. 160A-265 et seq. shall not apply to such dispositions. The City Manager may approve such dispositions.

(c) The City may, in addition to other authorized means, convey real property owned by it to persons of lower moderate-income for residential purposes using the negotiated offer, advertisement, and upset bid process and requirements established by G.S. 160A-269, provided, however, the City may lower the bid deposit requirement to an amount not less than one percent (1%) of an offeror's bid.

(d) When the Council determines that a sale or disposition of property will advance or further any Council-adopted economic development, transportation, urban revitalization, community development, or land-use plan or policy, the City may, in addition to other authorized means, sell, exchange, or transfer the fee or any lesser interest in real property, either by public sale or by negotiated private sale. The City may attach to the transfer and to the interest conveyed such covenants, conditions, or restrictions (or a combination of them) the City deems necessary to further such adopted policies or plans. The consideration received by the City, if any, for such conveyance, may reflect the restricted use of the property resulting from such covenants, conditions, or restrictions. An interest in property pursuant to this subsection may be conveyed only pursuant to resolution of the Council authorizing the conveyance. Notice of the proposed transaction shall be given at least 10 days prior to adoption of the resolution by publication in a newspaper of general circulation, generally describing:

(1) The property involved;

(2) The nature of the interest to be conveyed; and

(3) All of the material terms of the proposed transaction, including any covenants, conditions, or restrictions which may be applicable.

The notice shall give the time and place of the Council meeting where the proposed transaction will be considered and shall announce the Council's intention to authorize the proposed transaction. Notwithstanding the foregoing, the City may not sell the land or buildings located at 100 Paul Buck Boulevard by private sale.

(e) The City Manager may approve the sale by the City of real property having a value of more than ten thousand dollars ($10,000) when the City Manager certifies to the Council that the property is being sold for the purpose of increasing the supply of affordable housing available to low- or moderate-income persons. The City Manager shall within 10 days of any transaction authorized by this subsection report the details to the Council.
(S.L. 2002-32, § 2)

Secs. 8.23—8.80. Reserved.

ARTICLE III. CONTRACTS AND PURCHASES

Sec. 8.81. Bid deposits.

The City may, in connection with bids on purchases and contracts to the City, accept as a bid deposit: cash; a cashier's check issued by or certified check drawn on a bank insured by the Federal Deposit Insurance Corporation; a United States money order payable to the City of Charlotte; or a bid bond issued by an insurance company authorized to engage in such business in North Carolina.

Sec. 8.82. Contract specification requirements.

The Council may establish minimum Minority and/or Women's Business Enterprise participation (M/WBE) requirements and in that event shall include such requirements in the specifications for City contracts. In addition, in construction and repair contracts under which subcontracts are customarily awarded by that primary contractor, the Council may establish specifications requiring bidders to subcontract a certain designated percentage of the construction and repair work amount; provided, that nothing in the specifications or requirements developed shall be construed to require that the award of subcontracts be made to subcontractors who do not submit the lowest responsible sub-bid and do not meet the bonding requirements otherwise required by law. Notwithstanding the provisions of G.S. 143-129 and G.S. 143-131, the Council may consider a bidder's compliance with specifications containing M/WBE or subcontracting requirements in its award of contracts, and may, in its discretion, refuse to award a contract to a bidder if it determines that the bidder has failed to make a good faith effort to comply with said requirements.

Sec. 8.83. Public contracts.

G.S. 143-129 as it applies to the City is amended to provide that the City Manager or his designee may waive the requirement for a bid bond or deposit for the purchase of apparatus, supplies, material, or equipment where the successful bidder does not have any past experience of nonperformance with the City. The Council may consider a bid for the purchase of apparatus, supplies, materials, or equipment and award a contract on such bid notwithstanding the fact that the proposal is not accompanied by a bid deposit with the City.

Sec. 8.84. Exemption from certain purchasing requirements.

(a) Because of the:

(1) Highly complex and innovative nature of telecommunications, data processing, and data communications equipment, supplies and services; and

(2) Desirability of a single point of responsibility for the development of contracts for products and services which include in their scope, combinations of design, installation, operation, management, and service and maintenance responsibilities over prolonged periods of time,

in some instances it may be beneficial to the City to award a contract on the basis of factors other than cost alone, including, but not limited to, (i) system design, (ii) operation experience, (iii) system reliability, (iv) long-term operational costs, (v) compatibility with existing equipment, and (vi) emerging technology. Therefore, notwithstanding the provisions of G.S. 143-128 et seq., or any other general, special, or local law, a contract entered into between the City and any person selected as a responsible proposer pursuant to this section may be awarded, negotiated, and entered into in accordance with the following provisions for the award of a contract based upon an evaluation of proposals submitted in response to a request for proposal prepared by or for the City.

(b) This section establishes special procedures for the purchase and lease of telecommunications, data processing and data communications equipment, supplies and services, and applies only to those purchases and leases.

(c) The City shall give notice that it is requesting proposal as follows:

(1) By mailing notice of request for proposals a minimum of 10 days prior to the time specified for opening of said proposal to suppliers represented on the City's current relevant bid list; and

(2) By advertisement at least one week before the time specified for the opening of said proposals in a newspaper having

general circulation in the City. The advertisement shall state the time and place where the request for proposals may be had, and the time and place for opening of said proposals, and shall reserve to the City the right to reject any or all such proposals.

All proposals shall be opened in public. Proposal shall be sealed if the invitation to propose so specifies.

(d) The City shall require in its request for proposals that each proposal to be submitted:

(1) Shall include:

a. Information relating to the experience of the proposer on the basis of which said proposer purports to be qualified to carry out all work required by a proposed contract;

b. The ability of the proposer to secure adequate financing;

c. Proposals for project staffing, implementation of work tasks, and the carrying out of all responsibilities required by a proposed contract;

(2) [Shall include] language clearly identifying and specifying all elements of cost which would become charges to the City, in whichever form, in return for the fulfillment by the proposer of all tasks and responsibilities established by the request for the proposal for the full lifetime of a proposed contract, including, as appropriate, but not limited to, (i) the cost of purchase or lease of equipment, (ii) the cost of design, installation, operation, management, and maintenance of any system, and (iii) the cost of any services performed by proposer; and

(3) Shall include such other information as the City may determine to have a material bearing on its ability to evaluate any proposal in accordance with this section.

The City may prescribe the form and content of such proposal and, in any event, the proposer must submit sufficiently detailed information to permit a fair and equitable evaluation of such proposal. The City may evaluate such proposals based on one or more of the factors set forth above as the City determines to be appropriate.

(e) The City may make a contract award to any responsible proposer selected pursuant to this section based on a determination that the selected proposal is more responsive to the request for proposals and may thereupon negotiate a contract with said proposer for the purchase and/or lease of equipment and performance of the services set forth in the request for proposals and the response thereto. Such determination is conclusive.

Sec. 8.85. Construction, design, and operation of sludge management facilities.

(a) Unless a different meaning is required by the context, the following definitions shall apply throughout this section:

(1) "Sludge" means any solid, semisolid, or liquid waste generated from a municipal, commercial, institutional, or industrial wastewater treatment plant, water supply treatment plant, or air pollution control facility, or any other waste having similar characteristics and effects.

(2) "Sludge management" means purposeful, systematic control of the generation, storage, collection, transport, treatment, processing, recovery, and disposal of sludge.

(3) "Sludge management facility" means land, personnel, and equipment used in sludge management.

(4) "Storage" means the containment of sludge in a manner which does not constitute disposal.

(5) "City" means the City of Charlotte.

(b) To acknowledge the highly complex and innovative nature of sludge management technology for processing sludge, the relatively limited availability of existing and proven proprietary technology involving sludge management facilities, the desirability of a single point of responsibility for the development of facilities, and the economic and technical utility of contracts for sludge management which include in their scope

combinations of design, construction, operation, management, and maintenance responsibilities over prolonged periods of time and that in some instances it may be beneficial to the City to award a contract on the basis of factors other than cost alone, including, but not limited to, facility design, operational experience, system reliability, long-term operational costs, compatibility with sludge production facilities, environmental impact, and operation guarantees, this section establishes special procedures for the construction, design, and operation of sludge management facilities. Accordingly, and notwithstanding the provisions of G.S. 143-128 et seq., or any general, special, or local law, a contract entered into between the City and any person pursuant to this section may be awarded in accordance with the following provisions for the award of a contract based upon an evaluation of proposals submitted in response to a request for proposals prepared by or for the City.

The City shall give notice that it is requesting proposals as follows: Proposals shall be invited by advertisement at least one week before the time specified for the opening of said proposals in a newspaper having general circulation in the City. The advertisement shall state the time and place where the request for proposals may be had, and the time and place for opening of the proposals, and shall reserve to the City the right to reject any or all such proposals. All proposals shall be opened in public. Proposals shall be sealed if the invitation to propose so specifies. Nothing in this paragraph limits the City from publicizing the request for proposals by other means or from directly soliciting proposals.

(c) The City shall require in its request for proposals that each proposal to be submitted shall include:

(1) Information relating to the experience of the proposer on the basis of which said proposer purports to be qualified to carry out all work required by a proposed contract; the ability of the proposer to secure adequate financing; and proposals for project staffing, implementation of work tasks, and the carrying out of all responsibilities required by a proposed contract;

(2) A proposal clearly identifying and specifying all elements of cost which would become charges to the City, in whatever form, in return for the fulfillment by the proposer of all tasks and responsibilities established by the request for the proposal for the full lifetime of a proposed contract, including, as appropriate, but not limited to, the cost of planning, design, construction, operation, management, and/or maintenance of any facility; provided, that the City may prescribe the form and content of such proposal and that, in any event, the proposer must submit sufficiently detailed information to permit a fair and equitable evaluation of such proposal; and

(3) Such other information as the City may determine to have a material bearing on its ability to evaluate any proposal in accordance with this section.

(d) Proposals received in response to such request for proposals may be evaluated on the basis of a technical analysis of facility design, operational experience of the technology to be utilized in the proposed facility, system reliability and availability, efficiency, environmental impact and protection, required staffing level during operation, projection of anticipated revenues from the materials produced by the facility, net cost to the City for operation and maintenance of the facility for the duration of time to be established in the request for proposals, and upon such other factors and information as the City determined to have a material bearing on its ability to evaluate any proposal, which factors were set forth in said request for proposal.

(e) The City may make a contract award to any responsible proposer selected pursuant to this section based upon a determination that the selected proposal is more responsive to the request for proposals and may thereupon negotiate a contract with said proposer for the performance of the services set forth in the request for proposals and the response thereto. Such determination shall be deemed to be conclusive. Notwithstanding other provisions of G.S. 143-128 et seq., or any other general, local, or special law, a contract may be negotiated and entered into between a City

and any person selected as a responsible proposer hereunder which may provide for, but not be limited to, the following:

(1) A contract, lease, rental, license, permit, or other authorization to design, construct, operate, and maintain such a sludge management facility, upon such terms and conditions for such consideration and for such term or duration, not to exceed 40 years, as may be agreed upon by the City and such person;

(2) Payment by the City of a fee or other charge to such person for acceptance, processing, management, and disposal of sludge;

(3) An obligation on the part of the City to deliver or cause to be delivered to a sludge management facility, guaranteed quantities of sludge; and

(4) The sale, utilization, or disposal of any form of material or residue resulting from the operation of any sludge management facility.

(f) The construction work for any facility or structure which is ancillary to the sludge management facility and which does not involve storage and processing of sludge or the recovery of useful or marketable forms of materials from sludge at the sludge management facility, shall be procured through competitive bidding procedures as described in G.S. 143-128 et seq. Such ancillary facilities shall include, but shall not necessarily be limited to, the following: roads, water and sewer lines to the facility limits, transfer stations, scale house, administration buildings, and residue and bypass disposal sites.

Sec. 8.86. Reserved.

Editor's note—Session Law 2002-32, § 3, ratified July 22, 2002, repealed § 8.86 in its entirety, which pertained to the Award and Approval of Certain Contracts and derived from original codification.

Sec. 8.87. Transit procurements.

(a) In addition to other authorized methods of procurement, the City of Charlotte may contract for the purchase, lease, or other acquisition of any apparatus, supplies, materials, or equipment for public transit purposes using the competitive proposal method provided in G.S. 143-129(h). The City Council may delegate to the City Manager, subject to any conditions or restrictions it deems appropriate, the authority to make findings of fact that procurement by competitive proposal is the most appropriate acquisition method prior to the issuance of requests for proposals, as required by G.S. 143-29(h).

(b) The City of Charlotte may contract for the purchase, lease, or other acquisition of any apparatus, supplies, materials, or equipment for public transit purposes with any person or entity that, within the previous 60 months, after having completed a public formal bid process substantially similar to that required by Article 8 of Chapter 143 of the General Statutes or through the competitive proposal method provided in G.S. 143-129(h), has contracted to furnish the apparatus, supplies, materials, or equipment to any unit or agency approved in G.S. 143-129(g) if the person or entity is willing to furnish the items at the same or more favorable prices, terms, and conditions as those provided under the contract with the other unit or agency. Any purchase made under this section shall be approved by the City Council as provided in G.S. 143-129(g).

(c) All contracts for the acquisition, construction, enlargement, improvement, or maintenance of transit equipment or facilities shall be made pursuant to the laws of North Carolina governing the making of like contracts. However, where the acquisition, construction, improvement, enlargement, or maintenance of transit equipment or facilities is financed wholly or partly with federal funds, the City may let contracts in the manner prescribed by the federal authorities, acting under the laws of the United States and any rules, regulations, or other directives made thereunder notwithstanding any other State law to the contrary.

(S.L. 2000-61, § 1; S.L. 2003-197, § 1; S.L. 2007-205, § 1)

Sec. 8.88. Small Business Enterprise Program.

(a) The City may establish a race and gender neutral small business enterprise program to promote the development of small businesses in

the Charlotte Metropolitan Statistical Area, and to enhance opportunities for small businesses to participate in City contracts. The City may define the term 'small business enterprise' as appropriate and consistent with the City's contracting practices. The City may establish bid and proposal specifications that include subcontracting goals and good faith efforts requirements to enhance participation by small business enterprises in City contracts. Notwithstanding G.S. 143-129 and G.S. 143-131, the City may consider a bidder's efforts to comply with small business enterprise program requirements in its award of City contracts, and if a bidder is determined to have failed to comply with said requirements, the City may within its discretion, refuse to award a contract to such bidder.

(b) The small business enterprise program authorized by this section is intended to supplement and not replace the requirements of G.S. 143-128.2, 143-131, or 143-135.5. Any goals or efforts established to achieve minority and women business participation consistent with said provisions of law shall take precedence over goals for small business enterprise participation established under the program authorized by this section. A small business enterprise program established pursuant to this section shall be deemed consistent with the public policy of the State of North Carolina to promote and utilize small and underutilized business enterprises as set forth in G.S. 143-128.2, 143-128.3, and 143-135.5.
(S.L. 2002-91, § 1)

Secs. 8.89—8.100. Reserved.

ARTICLE IV. CONFLICT OF INTEREST

Sec. 8.101. Penalty.

It shall be unlawful for the Mayor or any member of the Council, or other officer or employee of the City, directly or indirectly, to become an independent contractor for work done by the City, or to become directly or indirectly financially interested in, or receive profits from, any purchase by the City. Any such person or persons violating this provision shall be guilty of a Class 1 misdemeanor.

Secs. 8.102—8.120. Reserved.

ARTICLE V. JOINT PERFORMANCE OF FUNCTIONS, ACTIVITIES, AND SERVICES

Sec. 8.121. Purpose and power.

For the purpose of enabling the more efficient and/or economical administration and performance of functions, activities, and services, the City of Charlotte and the County of Mecklenburg may, whenever it is deemed in the best interests of their citizens, enter into written agreements for the joint performance of any and all functions, activities, and services which each is now or hereafter authorized to undertake, perform, and carry on. Such joint performance may be carried on through consolidation of existing agencies or departments or through the creation and establishment of new agencies or departments and may include institutions or buildings now existing or hereafter constructed, owned, and operated, either singly or jointly.

Sec. 8.122. Provisions of agreements.

Such written agreements shall set forth: the functions, activities, and services to be thus jointly carried on; the manner of administration thereof; the manner in which the expenses thereof shall be apportioned; and the manner in which any fees or revenues derived therefrom shall be apportioned. Such agreements may specify the term thereof and they may be terminated by either party thereto upon one-year's written notice to the other party of intention to terminate, and such agreements may be amended from time to time upon the mutual consent of the City and the County. Upon the ratification of such agreements by the governing bodies of the City and the County, they shall be spread upon their respective minutes.

Sec. 8.123. Effect of agreements.

Whenever any such agreement has been ratified, then the consolidated agency, department, or institution designated or created to carry on such joint performance, shall be vested with all the powers, rights, duties, functions, and jurisdiction pertaining to the function, activity, or service to

be jointly performed, theretofore existing or thereafter granted by law and vested in the City, the County, or both, and in the agencies, departments, or institutions so consolidated or created.

Sec. 8.124. Agreements with other governmental agencies.

The City may enter into similar written agreements as provided hereinabove, with any other governmental agency having similar authority.

Secs. 8.125—8.130. Reserved.

ARTICLE VI. LEASE OF PROPERTY

Sec. 8.131. Generally.

Notwithstanding the provisions of G.S. 160A-272, the Council may, in its discretion, lease City-owned property for such terms and upon such conditions as the Council may determine, including terms of more than 10 years without the necessity of following any procedures other than those required by G.S. 160A-272 for leases of 10 years or less.

Secs. 8.132—8.140. Reserved.

ARTICLE VII. INVESTMENT AUTHORITY

Sec. 8.141. Certain investments.

In addition to the authority granted in G.S. 159-30, the City may invest and reinvest any of the City's employee benefit funds held in trust, risk reserve funds, cemetery perpetual care funds, and capital reserves, as designated from time to time by the City Council, in one or more of the types of securities or other investments authorized by State law for the State Treasurer in G.S. 147-69.2(b)(1)—(6) and (8).
(S.L. 2007-255, § 1)

CHARTER COMPARATIVE TABLE

ACTS

This table shows the location of the sections of the basic Charter and any amendments thereto.

Session Laws Year	Section		Section this Charter
1998-66	1, 2		7.24
2000-59	3		6.11
2000-61	1		8.87
2000-89	1		7.81
2001-88	1		6.11
2001-187	1		6.204
2001-248	1		7.23
	2		7.107
2001-304	1		7.81
2001-402	4		5.21
2002-32	1		4.06
	2	Added	8.22(e)
	3	Rpld	8.86
2002-91	1	Added	8.88
2003-197	1	Added	8.87(b)
2004-14	1		Ch. 5, Art. II
2006-43	1	Added	Ch. 7, Art. VIII, §§ 7.110, 7.111
2006-124	1		4.61(a)
2007-205	2		8.87(a)
		Added	8.87(c)
2007-255	1	Added	8.141
2015-33	1		4.61(a)
		Added	4.61(a1)
			4.61(j)

PART II

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. Designation and citation of Code.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Catchlines, history notes and references.
Sec. 1-4. Severability.
Sec. 1-5. Repeal, expiration and revival of ordinances.
Sec. 1-6. Continuation of existing ordinances.
Sec. 1-7. Supplementation of Code.
Sec. 1-8. Ordinances not affected by Code.
Sec. 1-9. Proposal of ordinances in writing; approval as to form.

Sec. 1-1. Designation and citation of Code.

The provisions in the following chapters and sections shall constitute and be designated the "Code of Ordinances, City of Charlotte, North Carolina" and may be so cited. Such Code may also be cited as "Charlotte Code."
(Code 1985, § 1-1)

State law references—Codification of ordinances, G.S. 160A-77; pleading and proving city ordinances, G.S. 160A-79.

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances, the following definitions and rules of construction shall be observed, unless inconsistent with the manifest intent of the city council or the context clearly requires otherwise:

Bond. When a bond is required, an undertaking in writing shall be sufficient.

Charter. The term "Charter" shall mean the Charter of the City of Charlotte, North Carolina, as printed in part I of this volume.

City. The term "city" shall mean the City of Charlotte, in the County of Mecklenburg and the State of North Carolina, except as otherwise provided.

City council, council. The terms "city council" and "council" shall mean the city council of the City of Charlotte, North Carolina, or the governing body thereof.

City limits, corporate limits. The terms "city limits" and "corporate limits" shall mean the legal boundary of the City of Charlotte, North Carolina.

City manager means the city manager of the City of Charlotte, or his designated representative.

Code. The terms "the Code" and "this Code" shall mean the Code of Ordinances, City of Charlotte, North Carolina.

Computation of time. In computing any period of time prescribed or allowed by this Code or by order of court, the day of the act, event, default or publication after which the designated period of time begins to run is not to be included. The last day of the period so computed is to be included, unless it is a Saturday, Sunday or a legal holiday, in which event the period runs until the end of the next day which is not a Saturday, Sunday, or a legal holiday. When the period of time prescribed or allowed is less than seven days, intermediate Saturdays, Sundays, and holidays shall be excluded in the computation. A half holiday shall be considered as other days and not as a holiday. Eastern Standard Time shall be the official time except during that period when what is commonly known as daylight saving time is in effect, through adoption by the city council or otherwise.

State law reference—Computation of time, G.S. 1-593.

County. The terms "the county" and "this county" shall mean Mecklenburg County, State of North Carolina.

Daytime; nighttime. The term "daytime" means the period of time between sunrise and sunset, and the term "nighttime" means the period of time between sunset and sunrise.

Gender. Words importing the masculine gender shall include the feminine and neuter.

Joint authority. All words giving a joint authority to three or more city officers or other persons shall be construed as giving such authority to a majority of such officers or other persons.

Keeper and *proprietor.* The terms "keeper" and "proprietor" shall mean and include persons, firms, associations, corporations, clubs and partnerships, whether acting by themselves or as a servant, agent or employee.

Month. The term "month" shall mean a calendar month.

Nontechnical and technical words. Words and phrases shall be construed according to the common and approved usage of the language, but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in law shall be construed and understood according to such meaning.

Number. Words used in the singular include the plural, and the plural includes the singular.

Oath. The term "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an

oath, and in such cases the terms "affirm" and "affirmed" shall be equivalent to the terms "swear" and "sworn."

Officials, boards, commissions, etc. Whenever reference is made to an "official," a "board" or a "commission" by title only, it shall be deemed to refer to the official, board or commission of the City of Charlotte.

Or, and. The term "or" may be read "and," and the term "and" may be read "or," if the sense requires it.

Owner. The term "owner," when applied to buildings or land, shall include any part owner, joint owner, tenant in common, joint tenant or tenant by the entirety, of the whole or part of such building or land.

Person. The term "person" shall include a corporation, firm, partnership, association, organization and any other group acting as a unit, as well as an individual.

Personal property. The term "personal property" includes every species of property except real property as defined in this section.

Preceding; following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" shall include real and personal property.

Real property. The term "real property" shall include lands, tenements and hereditaments.

Residence. The term "residence" shall be construed to mean the place adopted by a person as his place of habitation and to which, whenever he is absent, he has the intention of returning. When a person eats at one place and sleeps at another, the place where such person sleeps shall be deemed his residence.

Right-of-way. The term "right-of-way" shall mean land that is dedicated or otherwise legally established for public use.

Roadway. The term "roadway" shall mean that portion of a street improved, designed or ordinarily used for vehicular traffic.

Shall; may. The term "shall" is always mandatory and not merely directory; the term "may" is permissive.

Sidewalk. The term "sidewalk" shall mean that portion of the street right-of-way which is improved and designated for the use of pedestrians.

Signature and *subscription.* The terms "signature" and "subscription" shall include a mark where a person cannot write.

State. The term "the state" and "this state" shall be construed to mean the State of North Carolina.

Statute references. Whenever reference is made, for example, to G.S. 160A-272, it shall be construed to refer to General Statutes of North Carolina, section 160A-272, as amended, or to whatever section is cited.

Street. The term "street" shall mean and include any public way, road, highway, street, avenue, boulevard, parkway, lane, path, viaduct, bridge or any other name a street is commonly known by or any public place and the approaches thereto within the city when any part thereof is open to the use of the public and established for purposes of vehicular traffic.

Tenant, occupant. The terms "tenant" and "occupant," applied to a building or land, shall include any person who occupies the whole or part of such building or land, whether alone or with others.

Tense. Words used in the past or present tense include the future as well as the past and the present.

Title of office. The title of any office shall be construed to include the phrase "of the City of Charlotte, North Carolina."

Writing, written. The terms "writing" and "written" shall include printing and any other mode of representing words and letters.

Year. The term "year" shall mean a calendar year.

(Code 1985, § 1-3)

State law reference—Similar rules of construction, G.S. 12-3.

Sec. 1-3. Catchlines, history notes and references.

(a) The catchlines of the several sections of this Code printed in boldface type are intended as mere catchwords to indicate the contents of the section and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor, unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history notes following sections and the references and notes scattered throughout the Code are not part of the Code but are merely for the benefit of the user of the Code.
(Code 1985, §§ 1-4, 1-11)

Sec. 1-4. Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this Code are severable, and if any phrase, clause, sentence, paragraph or section of this Code shall be declared unconstitutional or invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code, since the phrases, clauses, sentences, paragraphs and sections of this Code would have been enacted by the city council without the incorporation in this Code of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.
(Code 1985, § 1-5)

Sec. 1-5. Repeal, expiration and revival of ordinances.

(a) The repeal of an ordinance, or its expiration by virtue of any provisions contained therein, shall not affect any right accrued, any offense committed, any penalty or punishment incurred or any proceeding commenced before the repeal took effect or the ordinance expired.

(b) When an ordinance which repealed another shall itself be repealed, the previous ordinance shall not be revived without express words to that effect.
(Code 1985, § 1-6)

State law reference—Effect of repeal, G.S. 12-2.

Sec. 1-6. Continuation of existing ordinances.

The provisions appearing in this Code, so far as they are the same as those of the 1985 Code of the City of Charlotte, North Carolina, and all ordinances adopted subsequent to such Code and included in this Code shall be considered as continuations thereof and not as new enactments.
(Code 1985, § 1-10)

Sec. 1-7. Supplementation of Code.

(a) By contract or by city personnel, supplements to this Code shall be prepared and printed whenever authorized or directed by the city council. A supplement to the Code shall include all substantive, permanent and general parts of ordinances passed by the city council during the period covered by the supplement and all changes made thereby in the Code. The pages of a supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages which have become obsolete or partially obsolete, and the new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code which have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the codifier (meaning the person, agency or organization authorized to prepare the supplement) may make formal, nonsubstantive changes in ordinances and parts of ordinances included in the supplement, insofar as it is necessary to do so to embody them into a unified code. For example, the codifier may:

(1) Organize the ordinance material into appropriate subdivisions.

(2) Provide appropriate catchlines, headings and titles for sections and other subdivisions of the Code printed in the supplement, and make changes in such catchlines, headings and titles.

(3) Assign appropriate numbers to sections and other subdivisions to be inserted in the Code and, where necessary to accommodate new material, change existing section or other subdivision numbers.

(4) Change the words "this ordinance" or words of the same meaning to "this chapter," "this article," "this division," etc., as the case may be, or to "sections _____ to _____" (inserting section numbers to indicate the sections of the Code which embody the substantive sections of the ordinance incorporated into the Code).

(5) Make other nonsubstantive changes necessary to preserve the original meaning of ordinance sections inserted into the Code, but in no case shall the codifier make any change in the meaning or effect of ordinance material included in the supplement or already embodied in the Code.

(Code 1985, § 1-12)

Sec. 1-8. Ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall be construed to repeal or otherwise affect the validity of any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code;

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness;

(3) Any contract or obligation assumed by the city;

(4) Any ordinance fixing the salary of any city officer or employee;

(5) Any right or franchise granted by the city;

(6) Any ordinance dedicating, naming, establishing, locating, relocating, opening, widening, paving, etc., any street or public way in the city;

(7) Any appropriation ordinance;

(8) Any ordinance which, by its own terms, is effective for a stated or limited term;

(9) Any ordinance providing for local improvements and assessing taxes for such improvements;

(10) Any zoning ordinance;

(11) Any ordinance dedicating or accepting any subdivision plat;

(12) Any ordinance describing or altering the boundaries of the city;

(13) Any ordinance relating to social security and retirement benefits for city officers and employees;

(14) The administrative ordinances or resolutions of the city not in conflict or inconsistent with the provisions of this Code;

(15) Any ordinance levying or imposing taxes not included in this Code;

(16) Any ordinance establishing or prescribing street grades in the city;

(17) Any ordinance enacted after Ordinance No. 2344;

nor shall such ordinance be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance which is repealed. All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

(Code 1985, § 1-13)

State law reference—Statutes not repealed by General Statutes, G.S. 164-7.

Sec. 1-9. Proposal of ordinances in writing; approval as to form.

Every ordinance amending or repealing any ordinance and every new ordinance shall be proposed in writing and shall be approved as to form by the city attorney, the deputy city attorney or an assistant city attorney.

(Code 1985, § 2-1)

Chapter 2

ADMINISTRATION*

Article I. In General

Sec. 2-1. Regulatory user fees and nonregulatory user fees.
Sec. 2-2. Infrastructure reimbursement agreements.
Sec. 2-3. Waiver of sovereign immunity.
Secs. 2-4—2-20. Reserved.

Article II. Enforcement and Appeals

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Sec. 2-22. Each day's violation a separate offense.
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Article III. Reserved

Secs. 2-71—2-120. Reserved.

Article IV. Personnel Rules and Regulations

Sec. 2-121. Authority to promulgate; limitations.
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Article V. Commercial Non-Discrimination Policy

Sec. 2-151. Policy statement.
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Sec. 2-153. Definitions.
Sec. 2-154. Scope.
Sec. 2-155. Rules of construction.
Sec. 2-156. Short title.
Sec. 2-157. Complaints of discrimination.
Sec. 2-158. Investigation of complaints.
Sec. 2-159. Initial findings and recommendations.
Sec. 2-160. Arbitration.
Sec. 2-161. Remedies.
Sec. 2-162. Sanctions for the filing of a false or frivolous complaint.
Sec. 2-163. Final decision.

***Charter reference—**Administration, ch. 4.

Cross references—Any ordinance or resolution promising or guaranteeing the payment of money for the city or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness saved from repeal, § 1-8(2); any contract or obligation assumed by the city saved from repeal, § 1-8(3); any ordinance fixing the salary of any city officer or employee saved from repeal, § 1-8(4); any ordinance relating to social security and retirement benefits for city officers and employees saved from repeal, § 1-8(13); any administrative ordinances or resolutions of the city not in conflict or inconsistent with the provisions of this Code saved from repeal, § 1-8(14); administration and enforcement of animals, § 3-31 et seq.; administration of flood regulations, § 9-66 et seq.; administration of solid waste services, § 10-61 et seq.; housing, ch. 11; human relations, ch. 12; administration and enforcement of motor vehicles and traffic, § 14-36 et seq.; police, ch. 16; administration, enforcement and appeals of soil erosion and sedimentation control, § 17-66 et seq.; administration of regulations for streets, sidewalks and other public places, § 19-36 et seq; trees, ch. 21; zoning, app. A.

State law reference—Cities and towns, G.S. ch. 160A.

Sec. 2-164. Petitions for reinstatement.
Sec. 2-165. Judicial review.
Sec. 2-166. Mandatory nondiscrimination contract clause.
Sec. 2-167. Contractor bid requirements.
Sec. 2-168. Contract disclosure requirements.
Sec. 2-169. Other legal remedies.
Sec. 2-170. Non-interruption of performance.
Sec. 2-171. Policies and procedures.
Sec. 2-172. Volunteer expert pool.
Sec. 2-173. Effective date.

ARTICLE I. IN GENERAL

Sec. 2-1. Regulatory user fees and nonregulatory user fees.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Nonregulatory user fees means fees charged to those who receive governmental services or use governmental facilities. The term "nonregulatory user fees" does not include fees charged incident to a regulatory program except to the extent that fees are to defray the cost of providing a higher degree of service than is otherwise provided in conjunction with the regulatory program whether or not regulatory user fees are charged. For purposes of this section, nonregulatory user fees shall not include stormwater service charges established pursuant to chapter 18, article II, of this Code or water and sewer service user charges and other fees and charges established pursuant to chapter 23 of this Code.

Regulatory user fees means fees associated with or incident to a regulatory program. The purpose of regulatory user fees is to meet some or all of the costs occasioned by the regulated action.

(b) *Regulatory user fees.* The city manager, or his designee, may establish and revise from time to time regulatory user fees in accordance with regulatory user fee policies established by the city council, which policies shall be in accordance with generally accepted accounting principles.

(c) *Nonregulatory user fees.* The city manager, or his designee, may establish and revise from time to time nonregulatory user fees. To the extent that the city council has established policies regarding nonregulatory user fees, fees shall be in accordance with such policies.

(d) *Notification of council of new or increased fees.* The city manager shall notify the mayor and city council of any new regulatory or nonregulatory fee or any increase in a regulatory or nonregulatory fee through the budget process or, if not part of the budget process, at least 30 days prior to the effective date of the new or increased fee.

(e) *Schedule of fees.* A complete schedule of regulatory user fees and nonregulatory user fees shall be available for inspection in the office of the city clerk.
(Code 1985, § 2-4)

Sec. 2-2. Infrastructure reimbursement agreements.

(a) Pursuant to N.C. Session Law 2001-329, this section authorizes and sets forth the procedures and terms under which the city may approve reimbursement agreements with private developers and property owners for the design and construction of municipal infrastructure that is included on the city's capital improvement plan and serves the developer or property owner. For the purpose of this section, municipal infrastructure includes, without limitation, water mains, sanitary sewer lines, lift stations, stormwater lines, streets, curb and gutter, sidewalks, traffic control devices, and other associated facilities.

(b) The city manager, or designee, is authorized to negotiate municipal infrastructure reimbursement agreements with private developers and property owners pursuant to this section. In negotiating such agreements, the city manager, or designee, shall determine that:

(1) The cost to the city will not exceed the estimated cost of providing for the municipal infrastructure through either eligible force account qualified labor or through a public contract let pursuant to G.S. 143-128 et seq.; or

(2) The coordination of separately constructed municipal infrastructure with the associated private development would be impracticable.

City approval authority for agreements under this section shall be governed by general city contracting authorizations and delegations.

(c) A municipal infrastructure reimbursement agreement approved pursuant to this section shall require the private developer or property

owner party to comply with the requirements of G.S. 143-129 and G.S. 143-128(f) relating to public advertising and bid opening requirements which would be applicable if the construction contract had been awarded by the city.

(d) A municipal infrastructure reimbursement agreement approved pursuant to this section shall require the private developer or property owner party to comply with the city's small business enterprise program with respect to the design and construction of the municipal infrastructure to be reimbursed by the city.
(Ord. No. 2832, § 1, 11-22-2004)

Sec. 2-3. Waiver of sovereign immunity.

(a) As authorized by G.S. 160A-485.5, the city has waived sovereign immunity from civil liability in tort pursuant to G.S. ch. 143, art. 31, as modified by G.S. 160A-485(b), and subject to the limitations set forth in G.S. 160A-485.5(c).

(b) Except to the extent that it has waived its immunity herein, the city intends and hereby does retain its sovereign immunity from civil liability in tort for any and all amounts in excess of the maximum amount set forth in G.S. 143-299.2, as it may be amended from time to time.

(c) Except to the extent that the city has waived its immunity pursuant, the city attorney, and such other attorneys who may be designated to defend the city or its agents, servants or employees acting within the course and scope of their employment or authority, are hereby instructed to assert the defense of sovereign immunity to the extent allowed by law in every tort claim or lawsuit against the city or its agents, servants or employees acting within the course and scope of their employment or authority, and to refrain from waiving such defense.
(Ord. No. 4289, § 1, 10-12-2009)

Secs. 2-4—2-20. Reserved.

ARTICLE II. ENFORCEMENT AND APPEALS

Sec. 2-21. General penalty; additional remedies.

(a) Unless otherwise provided or prohibited by applicable law, any person violating any section of this Code or any ordinance of the city may be assessed a fine in accordance with G.S. 14-4 and G.S. 160A-175 in an amount not to exceed $50.00.

(b) The sections of this Code may be enforced, inter alia, as authorized and in accordance with G.S. 160A-175. Specifically, and without limitation, any section of this Code may be enforced by an appropriate equitable remedy issuing from a court of competent jurisdiction. In such case, the general court of justice shall have jurisdiction to issue such orders as may be appropriate, and it shall not be a defense to the application of the city for equitable relief that there is an adequate remedy at law.
(Code 1985, § 1-7(a), (b); Ord. No. 2666, § 1, 8-23-2004; Ord. No. 274, § 1, 3-28-2022)

Sec. 2-22. Each day's violation a separate offense.

Unless otherwise specified, each day's continuing violation of any section of this Code shall be a separate and distinct offense.
(Code 1985, § 1-7(d))

Sec. 2-23. Liability for violations by corporations and other associations.

(a) Any violation of this Code by any officer, agent or other person acting for or employed by any corporation or unincorporated association or organization, while acting within the scope of his office or employment, shall in every case also be deemed to be a violation by such corporation, association or organization.

(b) Any officer, agent or other person acting for or employed by any corporation or unincorporated association or organization shall be subject and liable to punishment as well as such corporation or unincorporated association or organization for the violation by it of any section of this Code, where such violation was the act or omission, or the result of the act, omission or order, of any such person.
(Code 1985, § 1-9)

Sec. 2-24. Authority to issue notices of violation and assess civil penalties.

Notices of violation may be issued and civil penalties authorized by this Code may be assessed by a Charlotte-Mecklenburg Police Officer; by any officer, employee, or agent of the department responsible for the administration and enforcement of the provision; or by any other officer, employee, agent, or other person who is authorized by the city manager to enforce the provision.
(Code 1985, § 1-7(c))

Sec. 2-25. Appeals of civil penalty assessments.

(a) Unless another procedure is established for a particular violation by ordinance or state law, appeals of civil penalty assessments shall be governed by this section.

(b) Any person assessed a civil penalty may appeal by filing a written notice of appeal with the city within 30 days from the date of assessment. Failure to file a notice of appeal within this time period shall constitute a waiver of the right to contest the civil penalty.

(c) Appeals shall be heard by a hearing officer through a quasijudicial process. The city manager may establish rules and procedures that govern the appeal and quasijudicial hearing process. Such rules may include a requirement that, for specified violations, a bond equal to the amount of the civil penalty be posted at the time a notice of appeal is filed.

(d) A hearing officer's decision on a civil penalty appeal is subject to further review in the superior court of the county by proceedings in the nature of certiorari. Any petition for writ of certiorari shall be filed with the clerk of superior court within 30 days after the date that the hearing officer's written decision is issued.
(Ord. No. 2447, § 1, 11-24-2003)

Secs. 2-26—2-70. Reserved.

ARTICLE III. RESERVED*

Secs. 2-71—2-120. Reserved.

ARTICLE IV. PERSONNEL RULES AND REGULATIONS†

Sec. 2-121. Authority to promulgate; limitations.

(a) The city manager is authorized to promulgate and put into effect rules and regulations governing the appointment, promotion, transfer, layoff, removal, discipline, and welfare of city employees. All such rules and regulations shall conform to the requirements of section 4.05 of the Charter.

(b) The grant of authority in subsection (a) of this section shall not authorize the city manager to change or modify any rules and regulations, or any portions thereof, which govern employee health insurance or other employee liability issues, awards for length of service, payment for sick/vacation leave, designation of paid holidays, pay plan structures, salary ranges, general pay increases, retirement policy and civil service procedures without the approval of the city council.
(Code 1985, § 2-86)

Sec. 2-122. Existing rules and plans.

Each personnel rule and regulation that is in effect on the date Ordinance No. 3354 is adopted (June 22, 1992) shall remain in effect until it is expressly amended in or superseded by a rule or regulation put into effect by the city manager under the authority of this article.
(Code 1985, § 2-87)

Secs. 2-123—2-150. Reserved.

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*__Editor's note—__Ord. No. 4424, § 1, adopted May 24, 2010, repealed the former article III, §§ 2-71—2-78 in its entirety, which pertained to the code of ethics for city officials, and derived from the Code of 1985, §§ 2-71—2-78.

†__Charter reference—__Personnel administration standards, § 4.05.

__State law reference—__Personnel, G.S. 160A-162 et seq.

ARTICLE V. COMMERCIAL NON-DISCRIMINATION POLICY*

Sec. 2-151. Policy statement.

It is the policy of the city not to enter into a contract with any business firm that has discriminated in the solicitation, selection, hiring or treatment of vendors, suppliers, subcontractors or commercial customers on the basis of a protected class, or on the basis of any otherwise unlawful use of characteristics regarding such vendor's, supplier's, or commercial customer's employees or owners in connection with a city contract or solicitation; provided that nothing in this commercial nondiscrimination policy shall prohibit or limit otherwise lawful efforts to remedy the effects of discrimination that has occurred or is occurring in the marketplace.
(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 7056-X, § 1, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-152. Purpose and intent.

It is the intent of the city to avoid becoming a passive participant in private sector commercial discrimination by refusing to procure goods and services from business firms that discriminate in the solicitation, selection, hiring, or treatment of vendors, suppliers, subcontractors, or commercial customers on the basis of a protected class in connection with city contracts or solicitations by providing a procedure for receiving, investigating, and resolving complaints of discrimination involving city contracts or solicitations.
(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 7056-X, § 1, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-153. Definitions.

For purposes of this article, the following terms have the meanings indicated unless the context clearly requires a different meaning.

Business firm means:

(1) Any person, firm, sole proprietorship, partnership, corporation, limited liability company, or other business entity or combination thereof, including any financial institution, developer, consultant, prime contractor, subcontractor, supplier, or vendor, that has submitted a bid or proposal for, has been selected to engage in, or is engaged in providing goods or services to the city, including selling or leasing supplies or goods, or providing construction, real estate development, financial, insurance, professional, or other services, in return for a fee or any other form of compensation paid by the city; and

(2) Any subcontractor.

The term "business firm" does not include other government entities.

Charlotte CSA means the Charlotte Combined Statistical Area as defined from time to time by the United States Office of Management and Budget.

City means the City of Charlotte, North Carolina, which is a North Carolina municipal corporation.

City manager means the city manager of the City of Charlotte, or his/her designee.

Commercial customer means a business entity that procured or attempted to procure goods or services from a business firm for business as opposed to personal use. As used in this definition, "services" includes construction, real estate development, financial, insurance, professional and other services.

Commercial non-discrimination policy means the regulations contained in chapter 2, article V of the City Code, and any regulations or documentation requirements adopted by the city manager pursuant to article V.

Contract means an agreement with any business firm let by or on behalf of the city for that business firm to sell or lease supplies, or goods, or to provide construction, real estate development, financial, insurance, professional, or other

*__Editor's note__—Ord. No. 2398, § 1, adopted September 24, 2003, enacted provisions intended for use as article V, §§ 2-87—2-108. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as article V, §§ 2-151—2-173.

services to the city, in return for a fee or any other form of compensation to be paid by the city.

Director means the director of the small business development office.

Discrimination means any disadvantage, difference, distinction, or preference in the solicitation, selection, hiring, or treatment of a vendor, supplier, subcontractor or commercial customer on the basis of a protected class, or on the basis of any otherwise unlawful use of characteristics regarding such vendor's, supplier's, or commercial customer's employees or owners in connection with a city contract or solicitation; provided that nothing in this definition or article shall prohibit or limit otherwise lawful efforts to remedy the effects of discrimination that has occurred or is occurring in the marketplace.

Economic development project means a real estate development, construction or renovation project that the city provides funding, land, road improvements, tax credits, a below market purchase price or other financial assistance to for the purpose of promoting economic development. For purposes of this definition, the terms "funding" and "financial assistance" do not include payments in exchange for goods or services, as long as such payments do not exceed the reasonable value of such goods or services.

Financial institution means any person or entity engaged in the business of lending money, guaranteeing loans, extending credit, securing bonds, providing venture or equity capital, or that offers financial services in connection with city projects or the administration of city government. Financial institution includes banks, savings and loans, venture capital companies, insurance companies, bonding companies, mortgage companies, credit unions, and brokers.

Gender identity and *gender expression* mean having or being perceived as having gender-related identity, expression, appearance, or behavior, whether or not that identity, expression, appearance, or behavior is different from that traditionally associated with the sex assigned to that individual at birth.

Natural hairstyle means any hair texture, color, type or style of wear historically associated with race or national origin.

Office means the small business development office.

Procurement services director means the director of the procurement services division of the city's business support service key business.

Protected class means a person's race, color, gender, religion, national origin, ethnicity, age, familial status, sex (including sexual orientation, gender identity and gender expression), veteran status, pregnancy, natural hairstyle or disability.

Retaliate means to take any action that has a material negative effect against any person, business or other entity for reporting any incident of discrimination testifying as a witness at a hearing, or providing requested assistance to the office in any investigation of an incident of discrimination pursuant to this commercial nondiscrimination policy.

Sexual orientation means a person's actual or perceived emotional, romantic, or sexual attraction to other people which includes, but is not limited to, heterosexuality, homosexuality or bisexuality.

Subcontract means an agreement for the performance of a particular portion of work to be performed under a contract with the city, where:

(1) The party providing the service is on reasonable notice that the work is to be performed under a city contract; and

(2) The amount to be paid for such service is material with respect to the overall amount of the contract.

Subcontractor means the party providing service under a subcontract.

(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 7056-X, § 1, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-154. Scope.

(a) *In general.* This commercial non-discrimination policy applies to all business firms as defined in section 2-153 of this article. It also applies to those economic development projects as provided in section 2-153 of this article. The scope of the discrimination and retaliation claims that may be investigated and adjudicated under this policy is limited to those claims that involve discrimination or retaliation that occurs in the Charlotte Combined Statistical Area in connection with city contracts or solicitations. for purposes of this policy, discrimination or retaliation shall be deemed to occur in the Charlotte CSA if:

(1) One of the parties was in the Charlotte CSA at the time the discrimination or retaliation is alleged to have occurred; or

(2) One of the parties resides in or operates a place of business in the Charlotte CSA.

(b) *Economic development projects.* As a condition of participating in an economic development project, the city will require the governmental agency, quasi-governmental agency, corporation, developer, or contractor that receives assistance from the city to comply with this commercial non-discrimination policy in administering the economic development project, and in awarding contracts to manage or perform the work entailed in the economic development project. Each contract and subcontract awarded in connection with the economic development project shall contain the non-discrimination clause set forth in section 2-166 of this article. Any discrimination claims relating to the economic development project shall be subject to investigation and adjudication by the city in accordance with this commercial non-discrimination policy.

(c) *Exclusions.* This commercial non-discrimination policy shall not apply to the following:

(1) Any real property acquisition by the city (including but not limited to condemnation), other than a lease of real estate for the city's use.

(2) Settlement of litigation.

(3) Settlement of judicial/administrative enforcement proceedings by or on behalf of the city (excluding proceedings to enforce this commercial non-discrimination policy).

(4) Agreements concerning standards for locating facilities in city right of way when business firm has statutory right to be in the right of way.

(5) Agreements with non-profit agencies for the purpose of having the non-profit agencies perform functions which the city is authorized by law to perform.

(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-155. Rules of construction.

The provisions of this commercial non-discrimination policy are to be liberally construed to accomplish its policies and purposes. The city manager shall be authorized to construe the provisions of this commercial non-discrimination policy for purposes of administration, subject to judicial review under section 2-165.

(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-156. Short title.

Article V of chapter 2 of this Code may be cited as the "Commercial Non-Discrimination Policy". The term "commercial non-discrimination policy" also includes any regulations or documentation requirements adopted by the city manager pursuant to this article.

(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-157. Complaints of discrimination.

Any adult person, business entity, association, organization, or government agency may file an administrative complaint with the director stating facts showing or tending to show that a business firm has within the preceding three year period engaged in discrimination or retaliation in connection with a city contract or solicitation. Within ten business days, the director shall notify the business firm against whom the complaint was filed that a complaint has been received.

(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-158. Investigation of complaints.

The office shall be responsible for investigating discrimination and retaliation complaints filed under this subsection. In conducting its investigation, the office may enlist the assistance of one or more individuals who have been selected by the city manager to participate in the volunteer expert pool as described in section 2-172. The role of such witnesses shall be to help the office evaluate the claim by providing information regarding industry custom and practice in a particular area of business. The office may request that the city manager provide such additional city personnel and/or outside consultants as may be reasonably necessary or appropriate to conduct such investigations.

The office shall exercise reasonable judgment in seeking relevant evidence from the complainant, the respondent business firm and, as necessary, external sources. However, nothing in this article shall require the city to fund the cost of:

(1) Having city staff or others travel outside the Charlotte CSA to investigate any claim under this article, or

(2) Having witnesses travel to the city for the purpose of investigating any claims or testifying at any hearing or proceeding in connection with this article.

The office shall exercise reasonable discretion in determining the extent of the investigation required to support the director's initial findings and recommendations pursuant to section 2-159. The office shall have no authority to investigate complaints relating to discrimination that occurred outside the Charlotte Combined Statistical Area, as defined in subsection 2-154(a). In determining whether discrimination occurred under this article and in evaluating the factors set forth in subsection 2-159(a), the office may consider evidence relating to acts or omissions that occurred during or prior to the three year period before the complaint was filed.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-159. Initial findings and recommendations.

(a) In determining whether to further proceed with an investigation and in making findings, the office may consider any evidence provided by the complainant or the respondent business firm as to the following factors:

(1) Whether there was an intent to discriminate on the part of the respondent business firm;

(2) Whether there was a pattern and practice of discrimination on the part of the respondent business firm;

(3) Any actions taken by the respondent business firm to remedy the alleged discrimination;

(4) The effectiveness of any prior attempts by respondent business firm to remedy the discrimination;

(5) Whether the respondent business firm has procured goods or services from or otherwise engaged in business with persons or entities of the same category as the complainant to an extent sufficient to demonstrate that the respondent business firm has not discriminated against such category in the overall context of its business; and

(6) Any other evidence deemed relevant by the director.

(b) Based upon the investigative unit's review and investigation, the director shall make an initial finding of each allegation stated in the complaint, that either:

(1) The investigation produced sufficient evidence to find that the alleged discrimination or retaliation did take place ("sustained");

(2) The investigation failed to produce sufficient evidence to find whether the alleged discrimination or retaliation took place ("not sustained");

(3) The investigation produced sufficient evidence to find that the alleged discrimination or retaliation did not take place ("unfounded");

(4) The investigation produced sufficient evidence to establish that the complainant knowingly made one or more false or frivolous allegations, and further investigation did not appear likely to produce sufficient evidence that the alleged discrimination or retaliation did take place ("false or frivolous");

(5) The allegation has been settled or otherwise resolved with the agreement of the respondent business firm, the complainant, and the city ("settled"); or

(6) The allegation has been withdrawn with the approval of the director ("withdrawn"). The director shall approve the withdrawal of an allegation unless the director determines that permitting the withdrawal is not in the city's best interests. In such an instance, the director may continue the investigation without the complainant's participation as a party.

(c) The director shall recommend to the city manager the appropriate action to be taken. That action may include additional investigation of the complaint, sanctions, remedies or other action consistent with this subsection. In recommending appropriate action on a discrimination claim, the director may take into account any evidence provided or uncovered in the course of the investigation regarding:

(1) The impact of the discrimination on affected parties;

(2) The impact of any authorized remedy on the city or any other party;

(3) Actions taken by the respondent business firm to remedy the alleged discrimination;

(4) The effectiveness of any prior attempts by respondent business firm to remedy the discrimination;

(5) Whether the respondent business firm has procured goods or services from or otherwise engaged in business with persons or entities of the same protected class as the complainant to an extent sufficient to demonstrate that the respondent business firm has not discriminated against such protected class in overall context of its business;

(6) The number and scope of prior violations of this policy by the respondent business firm; and

(7) Any other evidence deemed relevant by the director.

(d) The director shall make the initial findings and recommendations within 120 calendar days of receipt of the complaint. The city manager may

extend this time limit at the request of the director for good cause or if the parties agree to mediate a settlement to the complaint.

(e) The director shall notify the complainant and the business firm within five business days of the issuance of the initial findings and recommendations, including an explanation of the reasons justifying the initial findings.

(f) Failure by a party to produce documents or other evidence relevant to an investigation under this article within 30 days after such documents are requested by the director shall constitute a violation of the commercial non-discrimination policy. In the event of such violation, the director may recommend any remedy, sanction or combination thereof authorized by this article for a violation of the commercial non-discrimination policy.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-160. Arbitration.

(a) If the director determines that one or more allegations of violations of this policy are sustained, the business firm against whom the allegations were made shall be entitled to submit the matter to an arbitration administered by the American Arbitration Association ("AAA") in accordance with its rules.

(b) If the director determines that one or more allegations of discrimination or retaliation were false or frivolous under subsection 2-159(b)(4), the complainant shall be entitled to submit the matter to an arbitration administered by AAA in accordance with its rules.

(c) As a condition to doing business with the city and as a condition to filing a complaint under this policy, the business firm, the complainant and the city all agree to faithfully observe the AAA rules and procedures for commercial arbitration (subject to the exceptions stated in this policy), and further agree that a judgment on the award rendered by the arbitrator(s) may be entered in any court having jurisdiction thereof, subject to modification by the city manager as provided in this policy. Unless otherwise ordered by the arbitrator, the business firm, the complainant and the city shall each pay their own respective attorneys fees and other costs associated with the arbitration, provided that the city shall pay the cost of the arbitrator.

(d) To submit a matter to arbitration under this policy, the party seeking the arbitration must request arbitration by filing a written notice with AAA, the other party and the director within 15 calendar days of notice of the initial findings and recommendations. The notice must contain the following information:

(1) A demand that the matter be referred to arbitration;

(2) The names, addresses and telephone numbers of the party seeking arbitration, the director and the other party; and

(3) A reference to this commercial non-discrimination policy and the director's findings and recommended actions that are being submitted to arbitration.

The notice delivered to AAA shall also contain a copy of this commercial non-discrimination policy, complete with any amendments as of the date arbitration is requested, and the director's findings and recommended actions or lack thereof that are being submitted to arbitration.

If an arbitration is not properly requested within the required time period, the director's initial findings and recommendations shall become the final administrative decision of the city subject to approval by the city manager as set forth in subsection 2-160(k).

(e) For all arbitrations conducted under this policy:

(1) The parties to the arbitration shall be the business firm the complainant and the city;

(2) The number of arbitrators shall be one;

(3) The place of arbitration shall be Charlotte, North Carolina;

(4) The substantive law applicable to the dispute shall be:

a. The city's commercial non-discrimination policy and,

b. For any matters not addressed by the commercial non-discrimination policy, the law of the state;

(5) The language of the arbitration shall be English;

(6) The arbitrator shall be an attorney licensed to practice law in the United States of America; and

(7) If the director determines that the allegations of discrimination or retaliation were sustained or that the allegations of discrimination were false or frivolous, the city shall have the burden of proof to establish that the director's findings and recommendations are appropriate under this policy.

(f) For all arbitrations conducted under this policy, the AAA commercial arbitration rules shall apply, with the following additions and exceptions. Any provisions in the AAA commercial arbitration rules (the "AAA rules") that are inconsistent with the items listed below shall not apply to arbitrations under this policy:

(1) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

Within thirty (30) days after notice to the parties of the commencement of the arbitration by AAA, the party seeking the arbitration shall file a written response to the director's findings and recommended actions, along with any claims that the party seeking the arbitration may have under the commercial non-discrimination policy. The response shall state in detail all grounds on which the party seeking the arbitration contends that the director's findings or recommendations are not appropriate under the commercial non-discrimination policy.

(2) The list of potential arbitrators to be provided by AAA shall include only attorneys licensed to practice law in the United States of America.

(3) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

At least twenty days prior to the hearing, each party shall provide to the other parties copies of all documents that such party intends to introduce as evidence at the hearing.

(4) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

The arbitrator shall be authorized to enter such orders as are reasonably necessary or convenient to:

(a) Govern the conduct of the hearing and the parties so that the purposes of this commercial non-discrimination policy are achieved;

(b) Require the production of any additional documents or information that the arbitrator deems relevant to the complaint or the arbitration;

(c) Conclude such hearings and issue decisions within a reasonable time; and

(d) Conduct such hearings in a manner that is consistent with this commercial non-discrimination policy and such due process rights as each party may have. The hearing shall afford the parties an opportunity to: present witnesses, conduct direct and cross-examination of witnesses, introduce relevant evidence and submit briefs and present oral argument.

The arbitrator may issue such protective orders for good cause as are lawful and as the arbitrator determines to be appropriate to:

(i) Limit, or otherwise impose conditions upon, access by any person to any document in the possession of a party, including without limitation any document in the city's possession or in the record of the hearing that is not a public record; and

(ii) Close all or any portion of the hearing, or otherwise impose conditions upon access thereto by any person. Without limiting the scope of the arbitrator's authority to issue protective orders, it is understood that the arbitrator may limit, or otherwise impose conditions upon, a party's access to records or presence during the hearing only to the extent such limits or conditions can be imposed in a manner that is consistent with such right, if any, as a party may have to access such records or be present during the hearing under applicable law, including, without limitation, express provisions of this commercial non-discrimination policy.

(5) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

Experts in the volunteer pool of experts appointed by the city manager under the commercial non-discrimination policy shall be permitted to testify and present evidence at hearings under commercial non-discrimination policy.

(6) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

Based upon the evidence presented at the arbitration, and within thirty calendar days of the hearing, the arbitrator shall prepare a written decision of award. Such decision may affirm or reject the initial findings and recommendations, may substitute different findings and shall recommend any appropriate remedies, or may continue the hearing and return the case to the director for further investigation and findings and report to the arbitrator on the results of such investigation within such time as the arbitrator may specify. The arbitrator's award decision shall be based upon a preponderance of the evidence and shall reflect the evidentiary basis for its findings. In the event the arbitrator returns the case to the director for further investigation and findings, the city shall pay its own cost in conducting such further investigation and making such findings.

(7) The following shall be added to the AAA rules for purposes of arbitrations under this policy:

Notwithstanding anything contained herein to the contrary, unless the arbitrator finds that one or more allegations giving rise to the director's findings or the business firm's or complainant's challenge to such findings was frivolous or knowingly false when made or when pursued in arbitration, each party shall bear the cost of its own legal representation and expert witness fees. If the arbitrator finds that one or more allegations giving rise to the director's findings or the business firm's or complainant's challenge to such findings was frivolous or knowingly false when made or when pursued in arbitration, the arbitrator shall be entitled to require the party who made such frivolous or knowingly false allegations or challenge to bear all or a portion of the other parties' respective legal fees and expert witness fees.

The city shall pay the cost of the arbitrator, unless the arbitrator finds that one or more allegations of the complaint or of the business firm's or complainant's challenge to the director's findings was frivolous or knowingly false when made or when pursued in arbitration. If the arbitrator finds that one or more allegations of the complaint or of the business firm's or complainant's challenge to the director's findings was frivolous or knowingly false when made or when pursued in arbitration, the arbitrator shall be entitled to, without limiting any other remedies the arbitrator may impose, require the party who made such frivolous or knowingly false allegations or to pay all or a portion of the cost of the arbitrator.

(8) The expedited procedures shall not apply to arbitrations under this policy.

(g) The business firm, the director and the complainant shall all cooperate in good faith to have the arbitration conducted within ninety days after the party seeking arbitration issues its notice of intent to arbitrate.

(h) During the arbitration, the director or the arbitrator may call as witnesses one or more individuals who have been selected by the city manager to participate in the volunteer expert pool as described in section 2-172. The role of such witnesses shall be to provide information regarding industry custom and practice in a particular area of business.

(i) Failure by a party to produce documents or other evidence relevant to an arbitration under this article within 30 days after such documents are requested by the director or the arbitrator shall constitute a violation of the commercial non-discrimination policy. In the event of such violation, the arbitrator may recommend any remedy, sanction or combination thereof authorized by this article for a violation of the commercial non-discrimination policy.

(j) If no timely arbitration is requested, the city manager may vacate the director's recommended remedy on written notice to all parties within five business days after the time for requesting arbitration has expired. In the absence of such notice, the city manager shall be deemed to have approved the director's recommended remedy. If the city manager vacates the director's proposed remedy, the city manager shall initiate an arbitration by filing a notice of intent to arbitrate in compliance with the requirements of this policy.

(k) The scope of the arbitration provided under this policy shall be limited to whether this policy has been properly applied. Any challenges to the legality of the policy itself must be brought in a court of competent jurisdiction.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-161. Remedies.

When an allegation is sustained in an arbitration under this policy, the arbitrator may take additional evidence on the appropriate remedy to be recommended, including evidence relating to factors set forth in subsection 2-159(c) of this article, and any other evidence deemed relevant by the arbitrator. In such instances, the arbitrator shall recommend that the city manager order any one or more of the following actions (listed in the order of severity):

(1) Finding that the respondent business firm is not a "responsible bidder" within the meaning of the state bid statutes with respect to specific contracts that the city has put out for bids or intends to put out for bids at the time of such finding;

(2) Exercise of any other rights or remedies available to the city under any current contract between the respondent business firm and the city other than rescission, suspension or termination of the contract, including but not limited to liquidated damages;

(3) Rescission, suspension or termination of any current contract between the respondent business firm and the city under the terms thereof; or

(4) Disqualification of the respondent business firm from bidding and contract awards on city projects and from participating in city contracts as a subcontractor, vendor or supplier for a period of not more than two years, provided that the respondent business firm shall have the right to petition the city for reinstatement of its active bidder status by demonstrating to the city's reasonable satisfaction in accordance section 2-163 that the problems for which it was disqualified have been cured; and

(5) Referral of the matter for criminal prosecution of fraud and other violations under state law if appropriate under the circumstances.

As a condition to imposing the remedies set forth in subsections 2-161(1) through subsection 2-167(4), the city shall first attempt to reach a written agreement with the respondent business firm under which the latter agrees to comply with

a remediation plan that is reasonably calculated to remedy the effects of the discrimination or retaliation that occurred, and to ensure that similar instances of discrimination or retaliation do not occur in the future (the "remediation plan"). In developing the remediation plan, the city shall seek input from the complainant, and if the complainant disagrees with the remediation plan in the form finally agreed to by city staff and the respondent business firm, the remediation plan shall be considered as approved by the city only if the city manager approves such plan after affording the complainant an opportunity to address the city manager either in writing or in person regarding the merits or lack thereof of the proposed plan. Notwithstanding this section, the city shall not be required to seek agreement on a remediation plan with a respondent business firm that has been found to have discriminated or retaliated under the policy on one or more occasions prior to the then current complaint.

In the event the remedy designated by the arbitrator or the city for violation of this policy is disqualification from bidding on or participating in city contracts, the disqualification period shall begin to run on the date of the final administrative determination of the city or the arbitrator as to remedy, whichever is later, unless the party against whom the remedy has been imposed seeks judicial review. If the party against whom the remedy has been imposed seeks judicial review, the disqualification period shall begin to run on the date a final determination has been made by the court.

Nothing in this policy shall be deemed to preclude the city from taking any action that it is otherwise entitled to take under a city contract, such as terminating the contract without cause. (Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-162. Sanctions for the filing of a false or frivolous complaint.

If the director determines that one or more allegations of a complaint are false and that the complainant knew them to be false when filed or at the time the complainant requested arbitration, or that one or more of the allegations of a complaint are so frivolous that they are wholly without merit, the director may refuse to review or investigate any complaint filed under this policy by the same party for a period of up to three years. The director may also recommend to the city manager or the arbitrator that monetary sanctions be imposed against the complainant in the amount of the costs incurred by the city and/or the business firm in the investigation and review of the false or frivolous complaint (including reasonable attorney's fees). The city manager and the arbitrator shall have authority and discretion to impose one or more of such remedies when, in their view, the totality of the evidence reflects such a measure is clearly necessary to deter future abuse of this policy and process. (Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-163. Final decision.

(a) The arbitrator's decision with respect to the director's findings shall become the final decision, subject to judicial review as provided in section 2-165 of this policy. The arbitrator's recommended remedy shall become final unless:

(1) Review is given by the city manager or

(2) The business firm or complainant against whom an allegation was sustained files a request for a review in writing with the city manager within 15 calendar days from service of the notice of the recommended decision.

The city manager shall within ten calendar days of receipt of the request for review, notify all parties and the arbitrator that a review has been requested. The arbitrator shall transfer the entire record of the investigation and arbitration to the city manager in advance of the review. Within 45 calendar days of receipt of the request for review, the review shall be completed and the city manager shall render a final administrative decision regarding the remedy to be enforced under this policy. In reaching a decision, the city manager shall have the authority to reduce but not to increase the severity of any remedy or remedies imposed by the arbitrator.

(b) The city manager shall be authorized to enter such orders as are reasonably necessary or convenient to:

(1) Govern the conduct of the review and the parties so that the purpose of this commercial non-discrimination policy are achieved;

(2) Conclude such review and issue final decisions within a reasonable time; and

(3) Conduct such review in a manner that is consistent with this commercial nondiscrimination policy and such due process rights as each party may have.

The review shall be conducted in a manner that provides an opportunity for all parties to submit written briefs and oral argument in support of their respective positions. All briefs and arguments are to be based solely upon the record of evidence presented during the arbitration hearing. No additional evidence may be presented or considered during the review. At the review, the director or the director's designee shall be responsible for presenting the justifications for its recommended remedies as previously sustained or modified by the arbitrator. Upon thorough review of the record, briefs, and arguments, the city manager shall issue a final, written decision to all interested parties either sustaining or not sustaining the arbitrator's recommended remedy or remedies.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-164. Petitions for reinstatement.

(a) To petition the city for reinstatement of its active bidder status pursuant to subsection 2-161(4), the respondent business firm shall file a written petition with the director, and shall submit with such petition a written statement describing in detail the basis for the business firm's claim that the problems for which it was disqualified have been cured (including but not limited the steps that the business firm has taken to cure the problem, and all evidence indicating that the problem has been cured). The director shall conduct such further investigation and request such further documents and materials as the director reasonably deems relevant to the issues, and the business firm shall fully cooperate in providing all relevant information and materials that the director may request.

(b) Within 60 days after receipt of a petition under the preceding paragraph, the director shall notify the business firm in writing of the director's findings and recommendation. If the director has requested additional materials or information from the business firm within such 60-day period, the deadline for the director's decision shall be extended to 30 days after all such materials or information has been provided. Failure by a business firm to provide relevant materials or information requested by the director shall constitute grounds for the director to deny the business firm's petition for reinstatement.

(c) If the director denies a business firm's petition for reinstatement, the business firm may appeal the decision to the city manager. Such appeal must be filed with the city manager in writing within five days after the business firm receives written notice of the director's findings and recommendation. The city manager, or the city manager's designee, shall review the director's decision, and shall within 30 days after receipt of the notice of appeal notify the business firm in writing of the city manager's findings and recommendation. Subsection 2-163(b) of this policy shall apply to the city manager's review of the director's decision regarding reinstatement.

(d) The city manager's decision shall be the final administrative decision of the city, provided that if the business firm does not properly appeal the director's decision to the city manager within the time frame specified in the preceding paragraph, the director's findings and recommendation shall become the final administrative decision of the city.

(e) If a business firm's petition for reinstatement to active bidder status is denied at the conclusion of this process, the business firm that filed the petition shall be required to wait 120 days after receipt of notification of the city's final administrative decision before filing another petition for reinstatement.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-165. Judicial review.

Any party who, after having exhausted all administrative remedies available, is aggrieved by a final decision of the arbitrator may seek judicial review of such decision in a in the nature of a petition for writ of certiorari, based on the established record of the arbitration. The standard

of judicial review in such proceedings will be whether the arbitrator's decision was arbitrary and capricious.

Any party who, after having exhausted all administrative remedies available, is aggrieved by a final decision of the city manager may seek judicial review of such decision in a proceeding in the nature of a petition for a writ of certiorari, based upon the established administrative record, to the appropriate court within 30 days of the issuance of that final decision of the city manager.

If a party seeks judicial review of a final decision of the arbitrator or the city to impose damages under subsection 2-161(2) or disqualification under subsection 2-161(4), the city shall not take any action to enforce the decision for which review is sought until there has been a final determination by the court.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-166. Mandatory nondiscrimination contract clause.

Every contract and subcontract shall contain or incorporate a nondiscrimination clause that reads substantially as follows:

> As a condition of entering into this agreement, the company represents and warrants that it will fully comply with the city's commercial nondiscrimination policy, as described in section 2, article V of the City Code, and consents to be bound by the award of any arbitration conducted thereunder. As part of such compliance, the company shall not discriminate on the basis of a protected class in the solicitation, selection, hiring, or treatment of subcontractors, vendors, suppliers, or commercial customers in connection with a city contract or contract solicitation process, nor shall the company retaliate against any person or entity for reporting instances of such discrimination. The company shall provide equal opportunity for subcontractors, vendors and suppliers to participate in all of its subcontracting and supply opportunities on city contracts, provided that nothing contained in this clause shall prohibit or limit otherwise lawful efforts to remedy the effects of marketplace discrimination that has occurred or is occurring in the marketplace. The company understands and agrees that a violation of this clause shall be considered a material breach of this agreement and may result in termination of this agreement, disqualification of the company from participating in city contracts or other sanctions.

(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 7056-X, § 1, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-167. Contractor bid requirements.

All requests for bids or proposals issued for city contracts shall include or incorporate a certification to be completed by the bidder or proposer in substantially the following form:

> The undersigned bidder or proposer hereby certifies and agrees that the following information is correct:
>
> 1. In preparing its enclosed bid or proposal, the bidder or proposer has considered all bids and proposals submitted from qualified, potential subcontractors and suppliers, and has not engaged in discrimination as defined in section 2.
> 2. For purposes of this section, discrimination means discrimination in the solicitation, selection, or treatment of any subcontractor, vendor, supplier or commercial customer on the basis of a protected class or any otherwise unlawful form of discrimination. Without limiting the foregoing, discrimination also includes retaliating against any person or other entity for reporting any incident of discrimination.
> 3. Without limiting any other remedies that the city may have for a false certification, it is understood and agreed that, if this certification is false, such false certification will constitute grounds for the city to reject the bid or proposal submitted with this certification, and terminate any contract awarded based on such bid or proposal. It shall also

constitute a violation of the city's commercial non-discrimination ordinance and shall subject the bidder or proposer to any remedies allowed thereunder, including possible disqualification from participating in city contracts or bid processes for up to two years.

4. As a condition of contracting with the city, the bidder or proposer agrees to promptly provide to the city all information and documentation that may be requested by the city from time to time regarding the solicitation and selection of suppliers and subcontractors in connection with this solicitation process. Failure to maintain or failure to provide such information shall constitute grounds for the city to reject the bid or proposal and to any contract awarded on such bid or proposal. It shall also constitute a violation of the city's commercial non-discrimination ordinance, and shall subject the bidder or proposer to any remedies that are allowed thereunder.
5. As part of its bid or proposal, the bidder or proposer shall provide to the city a list of all instances within the past ten years where a complaint was filed or pending against bidder or proposer in a legal or administrative proceeding alleging that bidder or proposer discriminated against its subcontractors, vendors, suppliers, or commercial customers, and a description of the status or resolution of that complaint, including any remedial action taken.
6. As a condition of submitting a bid or proposal to the city the bidder or proposer agrees to comply with the city's commercial non-discrimination policy as described in section 2, article V of the city code, and consents to be bound by the award of any arbitration conducted thereunder.

(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 7056-X, § 1, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-168. Contract disclosure requirements.

Every contract that the city enters into shall include or incorporate a clause that reads substantially as follows:

As a condition of entering into this agreement, the company agrees to:

(a) Promptly provide to the city all information and documentation that may be requested by the city from time to time regarding the solicitation, selection, treatment and payment of subcontractors in connection with this agreement; and

(b) If requested, provide to the city within sixty days after the request a truthful and complete list of the names of all subcontractors, vendors, and suppliers that company has used on city contracts in the past five years, including the total dollar amount paid by contractor on each subcontract or supply contract. The company further agrees to fully cooperate in any investigation conducted by the city pursuant to the city's commercial non-discrimination policy as set forth in section 2, article V of the city code, to provide any documents relevant to such investigation that are requested by the city, and to be bound by the award of any arbitration conducted under such policy. The company understands and agrees that violation of this clause shall be considered a material breach of this agreement and may result in contract termination, disqualification of the company from participating in city contracts and other sanctions.

(Ord. No. 2398, § 1, 9-24-2003; Ord. No. 115, § 1, 8-9-2021)

Sec. 2-169. Other legal remedies.

The remedies provided by this subsection are in addition to any other statutory, legal, or

equitable remedies that may be available and are not intended to be prerequisite to or exclusive of any other remedies.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-170. Non-interruption of performance.

The filing, investigation, hearing, and appeal of a complaint under this commercial non-discrimination policy shall not hinder or affect the award of, performance of, or payment on a contract prior to a final administrative decision that establishes a violation.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-171. Policies and procedures.

The city manager shall recommend and city council shall approve such additional rules and regulations as may be required from time to time to implement this subsection. The city manager shall be entitled to establish documentation and reporting requirements to further the purpose and intent of the commercial non-discrimination policy, and such requirements shall be deemed part of this policy. The city manager is authorized to include the provisions of this policy in the city's contracts and solicitation documents, and to include remedies for violations of this policy in such contracts and solicitation documents. The city manager is further authorized to modify the clauses, certifications and forms required by sections 2-166, 2-167 and 2-168 of this policy, consistent with the purpose and intent of this of this policy.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-172. Volunteer expert pool.

Within 60 days after this policy is adopted, the city manager shall appoint a pool of volunteers to serve as advisors to the director in investigating discrimination claims and expert witnesses in hearings under this article, (the "volunteer expert pool"). The role of the volunteer experts shall be to:

(1) Assist the office in evaluating alleged violations of the commercial non-discrimination policy in light of industry practice, and

(2) Provide testimony at hearings under this article on matters relating to industry custom and practice in a particular line of business. Such services shall be provided from time to time as requested by the director or the arbitrator.

Notice of volunteer opportunities in the volunteer expert pool shall be posted in local newspapers at least fifteen days prior to the deadline for submitting applications. The volunteer expert pool shall be limited to 15 individuals, provided that the city manager may increase the number of volunteer experts in the pool from time to time to provide specific expertise that may potentially be needed to assist in evaluating discrimination claims in certain types of city contracts.
(Ord. No. 2398, § 1, 9-24-2003)

Sec. 2-173. Effective date.

This commercial non-discrimination policy shall take effect on October 1, 2003. Discrimination that occurs before the effective date shall not be actionable under this policy.
(Ord. No. 2398, § 1, 9-24-2003)

Chapter 3

ANIMALS*

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***Charter reference—**Spay/neuter clinic and differential license tax, § 7.71 et seq.

Cross references—Health and sanitation, ch. 10; dead animals, § 10-112; noise from animals, § 15-66; animals prohibited on school grounds, § 15-12.

State law references—Protection of animals, G.S. ch. 19A; dogs, G.S. ch. 67; municipal authority to prohibit the abuse of animals, G.S. 160A-182; municipal authority to regulate domestic animals, G.S. 160A-184; municipal authority to restrict or prohibit dangerous animals, G.S. 160A-187.

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Sec. 3-139. Uncared-for animals.
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ARTICLE I. IN GENERAL

Sec. 3-1. Purpose.

(a) Pursuant to authority granted by the general assembly, this chapter is enacted to:

(1) Regulate, restrict or prohibit, if necessary, animals;

(2) Protect the public from unvaccinated, diseased, stray, roaming, dangerous, wild or exotic animals;

(3) Make unlawful the acts of animals that interfere with the enjoyment of property or the peace and safety of the community;

(4) Protect animals from abuse or conditions harmful to their well-being;

(5) Operate an animal shelter; and

(6) Carry out any other lawful duties authorized by state laws and applicable ordinances.

(b) The city council hereby finds that animals kept or allowed to be in violation of any of the sections of this chapter are detrimental to the health, safety, and welfare of the citizens of the city and jeopardize the peace and dignity of the city.
(Code 1985, § 3-1)

Sec. 3-2. Jurisdiction; interlocal agreements.

(a) This chapter shall be applicable within the corporate limits of the city.

(b) No employee of the animal control bureau shall have the authority to enforce this chapter within any other corporate limits or jurisdictions, unless an interlocal agreement pursuant to G.S. 160A-460 et seq. is executed by the city and the incorporated township. Such an interlocal agreement may be entered into at any time, provided the appropriate resolution is adopted by the governing body of any such municipality or township agreeing that this chapter shall be enforced by the animal control officers, as defined in section 3-3, within the corporate limits or jurisdiction of the municipality.
(Code 1985, § 3-2)

Sec. 3-3. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adequate shelter means an enclosed area accessible by an animal, of sufficient size and nature so as to provide the animal with reasonable protection from adverse weather conditions.

Aggression-trained dog means any dog that has been trained or conditioned, to any extent, to bite, attack or exhibit aggressive behavior towards humans or other domestic animals for any purpose, including, but not limited to, the security of business property or personal security.

Aggression-training facility means any person who schools, trains or conditions canines to bite, attack or exhibit aggressive behavior towards humans or other domestic animals for any purpose, including, but not limited to, the security of business property or personal security.

Animal means every nonhuman, animate being that is endowed with the power of voluntary motion, including, but not limited to, dogs, cats, livestock and other mammals, birds, reptiles, amphibians and fish.

Animal control officers means persons properly appointed by the city to enforce all sections of this chapter and applicable state laws and who are responsible for discharging such other duties and functions as may be prescribed by the board of commissioners and the city council as set forward by this chapter or any other applicable ordinance or state law or pursuant to interlocal agreements cited in section 3-2.

Bureau means the Charlotte-Mecklenburg Animal Care and Control Bureau.

Bureau manager means the manager of the Charlotte-Mecklenburg Animal Care and Control Bureau. The bureau manager shall have all the powers conferred by state law upon a county dog warden and by this chapter upon animal control officers or by any other applicable ordinances.

Cat means a domestic feline of either sex.

City-sponsored event means any event generally open to the public that is funded in whole or in part by, or endorsed by, the city.

Computation of time. In computing any period of time, any day which the bureau is open shall be counted. This includes Saturdays, Sundays and legal holidays, when applicable.

County dog warden means the manager of the animal control bureau, who shall have all powers conferred by state law upon the county dog warden or by this chapter upon animal control officers.

County rabies ordinance means the county ordinance for the control of rabies and other zoonoses.

Dangerous means any animal whose behavior, temperament, size, or any combination thereof, when considered under the totality of the circumstances, including the nature of the surrounding area, constitutes a reasonable risk of injuring a human or animal or damaging personal or real property. That behavior includes, but is not limited to, an animal's biting or attacking or attempting to attack a human or another animal. However, this definition shall not apply to any animal that has been subject to provocation or if the victim has been trespassing, as defined in this section, upon the animal owner's premises.

Dog means a domestic canine of either sex.

Domesticated means those species of animals that are indigenous to the county and normally and customarily share human habitat in the county and are normally dependent on humans for food and shelter in the county, such as, but not limited to, dogs, cats, cattle, horses, swine, fowl, sheep and goats.

Equine means any horse, pony, mule, donkey or hinny.

Exotic or wild animal means an animal that would ordinarily be confined to a zoo; one that would ordinarily be found in the wilderness of this or any other country; one that is a species of animal not indigenous to the United States or to North America; or one that otherwise is likely to cause a reasonable person to be fearful of significant destruction of property or of bodily harm, and the latter includes, but is not limited to, monkeys, raccoons, squirrels, ocelots, bobcats, wolves, hybrid wolves, venomous reptiles, and other such animals. Such animals are further defined as being those mammals or nonvenomous reptiles weighing over 50 pounds at maturity, which are known at law as Ferae naturae. Exotic or wild animals specifically do not include animals of a species customarily used in the state as ordinary household pets, animals of a species customarily used in the state as domestic farm animals, fish confined in an aquarium other than piranha, birds, or insects.

Exposed to rabies means any animal or human bitten by or exposed to any animal known or suspected to have been infected with rabies.

Guard dogs means dogs primarily kept for the purpose of protecting premises from intruders or for the purpose of attacking a person coming in the vicinity of the dog.

Harboring an animal. An animal shall be deemed to be harbored if it is fed or sheltered 14 days or more, unless the animal is being boarded for a fee.

Health director means the director of the county health department.

Impounded means any animal that is received into custody by any employee of the bureau.

Inoculation means the vaccination of a dog or cat with antirabic vaccine approved by the United States Bureau of Animal Industry, the state department of agriculture and the state board of health at such time as shall be required by state law, the state board of health and/or the local health director bureau manager, as defined in G.S. 106-364(2).

Livestock means all animals of a domesticated, agricultural nature, including, but not limited to, equine animals, bovine animals, sheep, goats, llamas, and swine.

Neutered male means any male dog or cat which has been rendered sterile by a surgical procedure (orchiectomy).

Owner means any person owning, keeping, having charge of sheltering, feeding, harboring or

taking care of any animal for 14 or more consecutive days, unless the animal is boarded for a fee. If a commercial kennel is involved for breeding, ownership shall be indicated by the kennel operator by showing the registration of the animal in the name of the actual owner of the animal.

Pasture means an auxiliary fenced area with sufficient grass for grazing.

Premises means a definite portion of real estate, including land with its appurtenances, a building or part of a building.

Provocation means any act done towards an animal that a reasonable person would expect to irritate or enrage such an animal to the extent that the animal would be likely to bite or attack, including, but not limited to, teasing, harassing, beating, torturing, injuring, or intentionally causing pain to an animal. Provocation does not include any actions on the part of an individual that pertain to reasonable efforts of self-defense or defense of others.

Security dogs is synonymous with *Guard dogs.*

Shelter means any facility designated by the city for the purpose of sheltering any animal lawfully impounded by the bureau.

Spayed female means a female dog or cat that has been rendered sterile by surgical means (ovariohysterectomy).

Tether is defined as a metal chain or coated steel cable to restrain a dog. Rope, bridles, belts, or cords may not be used as a device to secure an animal.

Tethering refers to the practice of securing a dog to a stationary object by means of a metal chain or coated steel cable for keeping the animal restrained. This does not refer to periods when animals are being walked on a leash or for temporary grooming or other professional services.

Trespass means the wrongful or legally unauthorized entrance onto or invasion of the property of an animal owner or lawful possessor. The cause of the individual to be on the property and any other relevant circumstances shall be considered in order to determine whether a trespass has occurred. A child under the age of seven shall not be deemed to be a trespasser.

(Code 1985, § 3-3; Ord. No. 4501, § 1, 9-13-2010)

Cross reference—Definitions generally, § 1-2.

Secs. 3-4—3-30. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

Sec. 3-31. Bureau.

(a) *Created; authority.* The Charlotte-Mecklenburg Animal Care and Control Bureau is a consolidated bureau created by the execution of an interlocal agreement between the county and the city. Pursuant to that agreement, the bureau is under the authority of the city.

(b) *Duties of manager and officers.* There shall be a bureau manager of the bureau. The bureau manager and animal control officers shall be charged with the responsibilities of the following:

(1) Enforcing and carrying out the sections of this chapter and of any other ordinance assigning animal control duties and of all relevant state laws, except that the bureau manager and animal control officers shall have no duties or responsibilities whatsoever with respect to organizing and carrying out any rabies vaccination clinics.

(2) Making canvasses, including homes and businesses, for the purpose of:

a. Ascertaining that all dogs, cats and ferrets are properly licensed, if required;

b. Ascertaining that all dogs and cats are currently vaccinated against rabies;

c. Organizing and carrying out any such canvas having sole and exclusive authority, control and responsibility for such actions; and

d. Ascertaining that sections of this chapter are being followed.

*__Cross reference—__Administration, ch. 2.

(3) Investigating complaints regarding animals.

(4) Enforcing the laws with regard to the vaccination of dogs and cats against rabies and enforcement of the county rabies ordinance; investigating all reported animal bites or other human physical contact of the suspected rabid animal, enforcement of quarantine of any animal involved, and submission of bite reports and reports of human contacts to the health director. The county ordinance for the control of rabies and other zoonoses declares that the health director is responsible for county programs to monitor and control rabies and other zoonotic diseases.

(5) Supervising the animal shelter and bureau employees.

(6) Protecting animals from neglect and abuse.

(c) *Uniform.* Every employee of the bureau, while performing the respective duties in subsection (b) of this section, shall wear any required uniform and badge as determined by the bureau manager.

(d) *Weapons.* The employees of the bureau shall not carry on their person any firearms of any kind unless specifically authorized by the bureau manager or his designee. However, employees of the bureau may store at the animal shelter, or carry in bureau vehicles, firearms, including tranquilizer guns, approved for use by the bureau manager or his designee. Such firearms may be used when necessary to enforce sections of this chapter or other applicable laws for the control of wild, diseased or dangerous animals or for public safety when the bureau manager deems the action necessary. While acting with weapons in their official capacity, employees of the bureau shall be exempt from any section of this Code otherwise requiring permits or city council approval.
(Code 1985, § 3-7; Ord. No. 2840, § 1, 12-13-2004; Ord. No. 4501, § 2, 9-13-2010)

Sec. 3-32. Inspections; interference; concealment.

(a) *Inspections.* Whenever it is necessary to make an inspection to enforce any of the sections of this chapter or other applicable law or whenever an employee of the bureau has probable cause to believe that there exists in any building or upon any premises any violation of this chapter or other applicable law, the employees of the bureau are empowered to enter and inspect such property at any reasonable time and perform any duty imposed upon them by this chapter or other applicable law, but only if the consent of the occupant or owner of the property is freely given or an administrative search warrant or criminal search warrant is obtained or if legally recognized exigent circumstances exist, as follows:

(1) If such property is occupied, the employee of the bureau shall first present credentials to the occupant and request entry, explaining the reasons therefor;

(2) If such property is unoccupied, the employee of the bureau shall first make a reasonable effort to locate the owner or other person having control of the property, present proper credentials and request entry, explaining the reasons therefor; and

(3) If such entry is refused or cannot be obtained because the owner or other person having control or charge of the property cannot be found after due diligence, an employee of the bureau may obtain an appropriate warrant to conduct a search or inspection of the property or seizure on the property or may act under a legally recognized exigent circumstance if such exists.

Notwithstanding any other section of this chapter, an employee of the bureau shall have the authority to enter upon any land to enforce this chapter or other applicable law if a violation of such law is being committed in the presence of the employee and such entrance is otherwise consistent with the Constitution of the United States. Such entry upon private property shall not be deemed to be a trespass.

(b) *Interference.* It shall be unlawful for any person to interfere with, hinder, molest, resist or obstruct employees of the bureau while they are carrying out any duty created under this chapter or other applicable law.

(c) *Concealment of animal.* It shall be unlawful for any person to conceal, for the purpose of evading the licensing requirement, permit requirement or rabies inoculation requirement of this chapter or any applicable chapter, any unlicensed, uninoculated or unpermitted animal from any employee of the bureau.

(d) *Concealment of license, permit or rabies inoculation.* It shall be unlawful for any person to refuse to show proof of a license, permit or a rabies inoculation to any employee of the bureau upon request.
(Code 1985, § 3-8)

Sec. 3-33. Enforcement.

(a) *Methods.* This chapter may be enforced by one or more of the following methods, unless otherwise limited to a specific manner of enforcement by this section or chapter:

(1) *Civil citation.* Enforcement by civil citations shall be in accordance with the following:

a. Civil citations may generally be used to enforce any section of this chapter. Such citations may be used independently or in conjunction with any other enforcement method. Violations of the following sections may only be enforced by the issuance of a civil citation:

3-67(a)	Animals at city-sponsored events
3-70	Reckless riding or driving of animal
3-72(a)	Harboring stray animals
3-101	Failure to have city animal license
3-102	City permits
3-135(d)	Failure to comply with containment order

b. The penalties assessed by civil citations shall be in accordance with the escalating civil penalty table that follows. The civil penalty table applies to all violations that are enforced civilly, regardless of any other method of enforcement that may be additionally used. Each prior offense must be evidenced by the issuance of a civil citation or a criminal conviction arising from a prior offense before the next escalated penalty for subsequent offenses may be assessed. Penalties shall only escalate when the same offense has been committed by the same owner in the past. No offense occurring more than ten years before the current offense shall be considered.

c. Each day that an ongoing violation continues shall be considered a separate violation from any previous or subsequent violation, and each separate violation may be the basis of a citation.

Owner's Offense	*Penalty*
First	$50.00 fine
Second	$75.00 fine
Third	$150.00 fine and/or restraint measures in accordance with section 3-135
Fourth	$250.00 fine and/or restraint measures in accordance with section 3-135 that shall include a secure enclosure if violation is of section 3-63, 3-66 or 3-71
Fifth	$500.00 fine and seizure/forfeiture of the animal

(2) *Criminal misdemeanor.* A violation of this chapter may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.

(3) *Injunction.* The city may apply to the appropriate court for an injunction and order of abatement that would require that a violator correct any unlawful condition relating to this chapter existing on his property.

(4) *Seizure/forfeiture.* The following sections of this chapter may be enforced by the immediate seizure and forfeiture to the bureau of the animal that is the basis for a violation of the section:

3-61	Abandoned animals
3-62	Abuse of animals
3-63	Animal bite
3-66	Biting or attacking animals
3-69	Nuisance
3-71	Restraint of animals
3-101	License and rabies tags and fees
3-103	Permit for four or more dogs kept outside
3-132	Seizure, forfeiture and disposition of animals
3-139	Uncared-for animals

The manner of the seizure and the procedure by which the animal may be forfeited to the bureau is that set out in section 3-134 unless otherwise stated by the particular section authorizing the seizure and forfeiture. This subsection shall not be read to limit in any way any seizure or forfeiture authorized by the civil escalating penalties table in subsection (a)(1) of this section.

(b) *Penalties.* The penalties assessed by civil citations shall be in accordance with the escalating civil penalty table that follows. The civil penalty table applies to all violations that are enforced civilly, regardless of any other method of enforcement that may be additionally used. Each prior offense must be evidenced by the issuance of a civil citation or a criminal conviction arising from a prior offense before the next escalated penalty for subsequent offenses may be assessed. Penalties shall only escalate when the same offense has been committed by the same owner in the past. No offense occurring more than ten years before the current offense shall be considered.

If payment for any civil citation is not made within 30 calendar days of the issuance of a civil citation or of the issuance of the appeal decision, the monetary penalty shall be double that stated in the escalating civil penalty table in subsection (a)(1) of this section. Issuance or payment shall be considered made when deposited with proper postage in the United States mail or when received by the person being cited or the city. The bureau manager or their designee may waive the doubling of the monetary penalty upon a showing that the tardiness of payment was not due to willfulness or neglect on the part of the cited person.

(c) *Exception.* Nothing in this chapter shall be construed to prevent sheriff deputies or law enforcement officers of any kind from enforcing any of the sections of this chapter or from exercising their authority as law enforcement officers.
(Code 1985, § 3-9; Ord. No. 2840, § 2, 12-13-2004; Ord. No. 274, § 2, 3-28-2022; Ord. No. 437, § 1, 11-28-2022)

Sec. 3-34. Negligence per se.

(a) This section is included in this chapter in order to impose a public duty upon persons having possession of animals to prevent those animals from attacking another person due to a possible violation of the following sections:

3-64	Aggression-trained dogs
3-71	Restraint of animals
3-73	Exotic or wild animals
3-135	Protective measures for containment of animals (failing to comply with instructions to impose preventive measures)

(b) Such persons having possession of animals have imposed upon them a public duty designed to promote the safety of other persons, and a violation of any of those sections listed in subsection (a) of this section is negligence per se and could give rise to the recovery of damages for personal injuries in a civil action by an injured person against the person owning or having possession, charge, custody or control of the animal causing the injuries.
(Code 1985, § 3-11)

Secs. 3-35—3-60. Reserved.

ARTICLE III. CARE, CONTROL AND PROHIBITED OR RESTRICTED ACTS

Sec. 3-61. Abandoned animals.

(a) It shall be unlawful for any person owning, possessing or harboring an animal to negligently or willfully abandon that animal.

(b) For the purposes of this section, animals shall be considered abandoned when the totality of the circumstances reasonably indicates that the owner, possessor, or harborer of the animal has negligently or willfully ceased to provide basic necessities for the animal with the intention to no longer care for the animal.
(Code 1985, § 3-14)

Sec. 3-62. Abuse of animals.

(a) *Prohibited.* It shall be unlawful if a person negligently or willfully:

(1) Fails to provide adequate food and/or water for any animal he owns, possesses, or harbors;

(2) Overworks or overdrives any animal causing physical pain, suffering or death;

(3) Beats, tortures, injures, torments, poisons or mutilates any animal causing physical pain, suffering or death;

(4) Fails to provide adequate medical attention for any sick, diseased or injured animal he owns, possesses, or harbors;

(5) Keeps any animal under unsanitary or inhumane conditions which are detrimental to the animal's health and general welfare or fails to maintain a condition of good order and cleanliness which reduces the probability of transmission of disease;

(6) Teases, molests, or in any way bothers or harasses any animal;

(7) Sets any rabbit, hare, raccoon or other such animal loose for the purpose of chasing, hunting or having a race thereafter;

(8) Promotes, stages, holds, manages, conducts, carries on or attends any game, exhibition, contest, fight or combat between one or more animals or between animals and humans;

(9) Fails to provide an adequate shelter for an animal he owns, possesses, harbors, or encloses, wherein the animal can be protected from extremes of weather (heat, cold, rain, etc.) and allowed to remain dry and comfortable during inclement weather;

(10) Conveys any type of animal in a motor vehicle or in a wagon or trailer pulled by a motor vehicle or in a truck or the back of a truck without having such animal reasonably secured so as to prevent the animal from leaping or being thrown from the vehicle or in such a way as to cause pain, suffering, unreasonable discomfort or death to the animal;

(11) Places or confines an animal or allows an animal to be placed or confined in a motor vehicle under such conditions or for such a period of time as to endanger the health or well-being of such animal due to temperature, lack of food or drink, or such other conditions as may reasonably be expected to cause suffering, disability or death:

a. After making a reasonable effort to find the driver of a vehicle in which an animal is confined, an employee of the bureau, in the presence of a police officer, may use the least intrusive means to break and enter the vehicle if necessary to remove the animal where probable cause exists to believe that the animal is in the vehicle in violation of this subsection.

b. The officer removing the animal shall then impound it and leave in a prominent place on the motor vehicle a written notice of the animal's impoundment, a brief description of the animal, and where and when the animal may be reclaimed. In addition, the officer may also use any other enforcement method authorized by section 3-33.

c. So long as an animal is within sight of an employee of the bureau or a police officer, section 3-32 shall not be interpreted to require that any warrant be obtained before removing the animal so long as such removal is otherwise consistent with the United States Constitution.

(12) Fails to provide sufficient shade, when sunlight is likely to cause overheating and discomfort, to allow all animals kept outdoors to protect themselves from the direct rays of the sun; or

(13) Keeps animals outdoors without access to shelter to allow them to remain dry and comfortable during inclement weather.

(14) Keeps dogs in outdoor kennels used for the primary purpose of restraining dogs, where there is less than 50 square feet of kennel space per dog. Outdoor kennels shall be kept in a state of repair to prevent injury to the dog(s). Carriers, creates or other similar devices used for training or temporary housing shall only be utilized indoors. This requirement shall not apply to the housing of dogs whose primary purpose is hunting activities.

(b) *Convictions.* If a person has been criminally convicted twice of a violation of this section or of G.S. 14-360, G.S. 14-361, G.S. 14-361.1, G.S. 14-362 or G.S. 14-363 and any two such convictions have both occurred within the last five years preceding a request by such person for an animal license or permit, the animal license or permit request shall be refused. In that situation, the person shall be eligible to apply for an animal license permit five years after the date of the last criminal conviction.

(c) *Euthanizing exception.* Nothing in this section shall be construed to prohibit the bureau or veterinarians from euthanizing dangerous, unwanted, injured or diseased animals in a humane manner; nor to prohibit slaughterhouses or medical facilities from the proper, humane and lawful carrying out of their activities or duties.

(d) *Pet shops.* Animal control officers shall have the authority to conduct inspections of pet stores, to the extent not preempted by state law, in order to determine if there is any abuse of animals. Pet shops shall also be subject to the county ordinance for the control of rabies and other zoonoses as administered and enforced by the county health department. Abuse of animals shall include any act described in this section or any other act that is detrimental to the well-being of the animal. It shall be unlawful for any pet store employee or pet store owner to violate this section.

(Code 1985, § 3-15; Ord. No. 4501, § 3, 9-13-2010)

State law references—Protection of animals, G.S. ch. 19A; authority to prohibit the abuse of animals, G.S. 160A-182.

Sec. 3-63. Animal bite.

(a) It shall be unlawful for the owner, possessor, or harborer of an animal to negligently allow the animal to bite a human being, who does not ordinarily reside on the premises, unless the animal has been subject to provocation, or unless the victim has been trespassing, as defined in section 3-3.

(b) It shall be unlawful for the owner, possessor, or harborer of an animal, or for the victim if the victim is reasonably physically able, to fail to report to the bureau or 911 as soon as possible that an animal has bitten a person. It shall be unlawful for any person knowing the location of such an animal to fail to inform the bureau of where the animal is located if the owner, possessor, or harborer has given the animal away or caused in any way the animal to be taken from his premises.

(c) If the bureau determines that a dog has bitten a human being, the bureau shall have the authority to require protective measures pursuant to section 3-135. The bureau shall have the authority to require the owner to file with the bureau signed, written affidavits, and receipts where applicable, affirming that any of such measures required by the bureau have been and will continue to be complied with. Any breach in compliance with such measures subjects the animal to seizure and forfeiture as provided in section 3-132.

(d) The bureau manager shall have the authority to waive any or all of these requirements if the bureau manager determines that the bite is inconsequential.

(Code 1985, § 3-15.1)

Sec. 3-64. Aggression-trained dogs.

(a) *Authority of bureau.* The bureau shall have the authority to determine whether any individual or business entity is engaged in the aggres-

sion training of dogs. If the bureau makes such a determination, the individual or business entity must comply with the requirements of subsection (b) of this section.

(b) *Registration; confinement.* Individuals or business entities engaged in the aggression training of dogs or the owner, possessor or harborer of any aggression-trained dog must comply with the following:

(1) The individual, business entity, owner, possessor or harborer has a duty to provide registration information as required by the bureau as it pertains to aggression training of any kind of dogs.

(2) The individual or business entity has the duty to maintain a current registration of all dogs thus trained, including the current location or address of the dog, and that information shall be provided to the bureau upon the training of any such dogs.

(3) The bureau shall have the authority to inspect the premises engaged in aggression training and to observe training methods and the safety of facilities during the operating hours of the aggression-training facility.

(4) Aggression-trained dogs must be maintained in adequate confinement by anyone possessing them in any way. The bureau shall have the authority to require all aggression-trained dogs to be confined in a strong fence at least six feet high and, at the discretion of the bureau, topped by an anticlimb enclosure.

(c) *Unlawful acts.* It shall be unlawful for any individual, business entity, owner, possessor or harborer to fail to comply with any of the requirements addressed to him by this section.

(d) *Imposition of preventive measures.* If the bureau determines that a dog has been aggression trained or trained for fighting or aggressive attack, the bureau shall have the authority to impose the same requirements stated in section 3-135.

(e) *Appeal.* If the bureau determines that a dog has been aggression trained, or trained for fighting or aggressive attack, and the owner wishes to appeal that or the preventive measures imposed, the appeal shall be the same as that stated in section 3-134.
(Code 1985, § 3-15.2)

Sec. 3-65. Guard dogs.

(a) *License tag; signs.* The owner, possessor, or harborer of a guard dog kept within the city for longer than is necessary to merely pass through the city shall comply with the following:

(1) *Identification.* It shall be unlawful for a guard dog kept in the city not to have a current guard dog license tag. Such license tag will supersede the need for any other city licensing tag. Before such a tag can be issued, there must be proof of rabies inoculation of the dog.

(2) *Signs.* The owner, possessor, harborer or user of any guard dogs or the owner of the premises employing the dogs must have posted on the premises a sign that identifies the name, address and telephone number of the owner of the security dogs.

(b) *Escape.* If a guard dog escapes and bites someone who is not a trespasser, the bureau manager shall have the authority to prohibit that dog from serving as a guard dog within the city. It shall be unlawful to use such a dog as a guard dog after the bureau manager has ordered that the dog shall not be used within the city as a guard dog.

(c) *Enforcement.* In addition to using any and all enforcement remedies stated in section 3-33, the bureau shall also have the following additional authority in respect to security dogs:

(1) If any security dog is seized running at large, the dog shall not be returned to the owner until the owner has obtained a guard dog license tag for that dog and any other guard dogs used or to be used in the city in accordance with subsection (a) of this section and is in complete compliance with all the requirements of subsection (a) of this section.

(2) If a security dog is found on the premises without complying with subsection (a) of this section, the bureau manager or his designee shall have the authority to issue a notice of prohibition letter that will prohibit the use of that dog as a security dog within the city, unless there is compliance with all of subsection (a) of this section within 48 hours. Such a notice of prohibition shall, at the same time, be given to the owner of the premises upon which the security dog is utilized. The owner of the premises shall be informed that the continued use of such a security dog on the premises is an unlawful act on the part of the owner in violation of this section. If such a dog remains on the premises after the 48 hours, it shall be an unlawful act on the part of the owner of the dog and on the part of the owner of the premises, and a citation may be issued to either or both of those individuals.

The bureau shall have the authority to seize guard dogs if there has not been compliance with this subsection or for the safety of the public, all in accordance with section 3-133.
(Code 1985, § 3-22)

Sec. 3-66. Biting or attacking animals.

(a) It shall be unlawful for an animal that has bitten, attacked or threatened a human or animal to remain at large. Animal control officers shall have the authority to enter upon private property, including entry into a dwelling unit or other similar building, when the animal control officer has observed an animal which has committed the biting, attacking or threatening in violation of this section. Such entry upon private property shall not be deemed to be a trespass. Such entry is authorized so long as it is otherwise consistent with the state and United States Constitutions.

(b) It shall be unlawful for any person to interfere, to threaten or to otherwise prevent an animal control officer from carrying out and performing his lawful duties under this section.
(Code 1985, § 3-18)

Sec. 3-67. Animals at city-sponsored events.

(a) *Prohibited.* It shall be unlawful for any person owning or having possession, charge, custody or control of any animal, as defined in section 3-3, to take that animal, whether on a leash or not on a leash, into or allow the animal to enter the boundaries of any city-sponsored public event unless such event is specifically designated as exempt from this section due to the event's nature by the bureau manager or designee. The boundaries and the interior of a city-sponsored public event shall consist of any area that is part of the event and shall include any public street, sidewalk or other publicly owned area within that area.

(b) *Failure to remove animal.* It shall be unlawful for any person with an animal within the boundaries of a city-sponsored public event to fail to obey the command of a law enforcement officer or of an animal control officer to remove such animal from the event.

(c) *Exception.* This section shall not apply to the following:

(1) Those animals that are part of an authorized event exhibit. The bureau manager or his designee shall have the authority to specify the conditions for having such animals for the protection of the public and for the well-being of the animals.

(2) Guide dogs.
(Code 1985, § 3-21)

Sec. 3-68. Injuring animals.

(a) It shall be unlawful for any person to intentionally strike an animal with an automobile or other vehicle.

(b) It shall be unlawful for any person injuring or killing a domestic animal by striking it with an automobile or other vehicle to fail to notify the owner of the animal, if identification of the animal is available, or the bureau if no identification is possible.
(Code 1985, § 3-23)

Sec. 3-69. Nuisance.

(a) It shall be unlawful for any person to own, keep, possess or maintain an animal in such a manner as to constitute a public nuisance or a nuisance to neighbors. By way of example and not of limitation, the following acts or actions of an

owner, harborer or possessor of an animal are hereby declared to be a public nuisance and are, therefore, unlawful:

(1) Having an animal that disturbs the rights of, threatens the safety of or injures a member of the general public or interferes with the ordinary use and enjoyment of his property;

(2) Permitting an animal to damage the property of anyone other than its owner, including, but not limited to, turning over garbage containers or damaging gardens, flowers or vegetables;

(3) Maintaining animals in an environment of unsanitary conditions or lack of cleanliness which results in offensive odor or is dangerous to the public health, welfare or safety, or failing to maintain a condition of good order and cleanliness which reduces the probability of transmission of disease;

(4) Maintaining property that is offensive, annoying or dangerous to the public health, safety or welfare of the community because of the number, type, variety, density or location of the animals on the property;

(5) Allowing or permitting an animal to bark, whine, howl, crow, cackle, or cause noise in an excessive, continuous or untimely fashion so as to interfere with the reasonable use and enjoyment of neighboring premises;

(6) Maintaining an animal that is diseased and dangerous to the public health;

(7) Maintaining an animal that habitually or repeatedly chases, snaps at, attacks or barks at pedestrians, joggers, dogs walked on a leash by owners, bicycles or vehicles;

(8) Failing to confine a female dog or cat while in season in a building or secure enclosure in such a manner that she cannot come into contact with another dog or cat or creates a nuisance by attracting other animals. However, this subsection shall not be construed to prohibit the intentional breeding of animals within an enclosed, concealed area on the premises of the owner of an animal which is being bred; or

(9) Failing to remove feces deposited by a dog on any public street, sidewalk, gutter, park or other publicly owned property or private property unless the owner of the property has given permission allowing such use of the property. This subsection shall not apply to visually impaired persons who have charge, control or use of guide dogs or persons using dogs in conjunction with activities of the Charlotte-Mecklenburg Police Department.

(b) It shall be the duty of anyone reporting an alleged nuisance under this section to reveal his identity to the bureau or the investigating law enforcement agency. Anonymous reports of alleged nuisances under this section shall not be investigated solely on the basis of the anonymous report.

(c) In addition to any other enforcement remedies available under this chapter, if the bureau manager shall declare an animal a nuisance under this section, the bureau manager has the authority to order the owner to confine the animal in accordance with section 3-135. It shall be unlawful for the owner to fail to comply with such an order or with the instructions in the order.
(Code 1985, § 3-24)

Sec. 3-70. Reckless riding or driving of animal.

(a) It shall be unlawful for any person to run, drive or ride any animal in a reckless, disorderly or careless manner through any street, alley or highway.

(b) It shall be unlawful for any person to drive or cause to be driven through any street or highway any loose or unhaltered horse, mule, cow or other livestock; nor shall the keeper of any such animal knowingly permit any loose horse, mule or cow to be driven from his property onto streets, alleys or highways.
(Code 1985, § 3-25)

Sec. 3-71. Restraint of animals.

(a) *Physical restraint.* It shall be unlawful for any person owning or having possession, charge, custody or control of any animal, excluding cats, to keep such animal on his own premises or off the premises, unless such animal is under sufficient physical restraint to controls the animal, or within a vehicle or adequately contained by a fence on the premises or other secure enclosure. If the physical restraint used is a leash requiring a person to control the animal, the person using such restraint must be of sufficient age and physical size or ability to reasonably restrain the animal. If the secure enclosure is an invisible fence system, then all components of the system must be in working order and in proper place. Additionally, there must be a visible, permanent sign on the premises stating that there is an invisible fence.

(b) *Tethering.* Dogs may be tethered to a stationary object only if conditions (1)—(9) are met:

(1) A tether shall be equipped with a swivel on both ends.

(2) A tether shall be a minimum of ten feet in length and shall be made of either metal chain or coated steel cable.

(3) Tethers shall be attached to a buckle-type collar or harness and under no circumstances shall the tether itself be placed directly around a dog's neck. Tethers shall not be used in conjunction with training collars such as choke or pinch-style collars.

(4) The weight of the tether shall not exceed ten percent of the total body weight of the dog but shall be of sufficient strength to prevent breakage.

(5) The tether by design and placement shall allow the dog a reasonable and unobstructed range of motion without the possibility of entanglement, strangulation or other injury. The tether shall allow the dog access to adequate food, water and shelter.

(6) A dog must be four months of age or older to be tethered.

(7) Only one dog shall be attached to a single tether.

(8) Pulley systems, running lines, and trolley systems may be used in conjunction with a tether.

(9) Pulley systems, running lines or trolley systems shall be at least ten feet in length and no more than seven feet above the ground.

a. The line of the pulley system, running line or trolley system to which the tether is attached shall be made of coated steel cable.

b. No tether shall be affixed to a stationary object which would allow a dog to come within five feet of any property line.

(10) An animal control officer may in his/her discretion order a more restrictive tethering requirement if circumstances require and it is not detrimental to the health, safety or welfare of a dog.

(11) Exemptions. Citizens residing in townhomes, apartments, condos or similar multi-family housing units with lot sizes insufficient to meet the length and property line requirements specified in subsections (2), (8) and (9) above, may only tether dogs for temporary exercise and relief.

(c) *Adult with animal on premises.* If a responsible adult is physically outdoors, and immediately adjacent to the animal, on the land where the owner of the animal resides, and the animal is under the person's direct control and is obedient to that person's commands, this section shall not apply during the duration of the time the animal is in the company and under the control of that adult and the animal is on the premises. An adult is defined as a person 18 years of age or older.

(d) *Public parks.* It shall be unlawful for any person owning or having possession, charge, custody, or control of any dog to take the dog into or allow the dog to enter any public park without being at all times under the restraint of a leash, except while in designated off-leash areas, in

accordance with the rules and regulations pertaining to such off-leash areas. This subsection shall not apply to the following:

(1) Parks that have been designated as leash-free parks by the governmental agency responsible for the park.

(2) Guide and hearing-aid dogs that are in the company of blind or deaf persons or being trained for such purposes.

(3) Dogs employed or hired by law enforcement agencies or by the governmental agency responsible for the park to perform a governmental purpose within the park.

(Code 1985, § 3-26; Ord. No. 4501, § 4, 9-13-2010)

Sec. 3-72. Harboring stray animals.

(a) It shall be unlawful for any person, without the actual consent of the owner, to harbor, feed, keep in possession by confinement or otherwise have any animal which does not belong to him, unless he has, within 24 hours of the time the animal came into his possession, notified the bureau. Upon receiving such notice, the bureau may take the animal and deal with it as provided in section 3-131.

(b) It shall be unlawful for any person to refuse to surrender such an animal to an employee of the bureau upon demand.

(Code 1985, § 3-28)

Sec. 3-73. Exotic or wild animals.

(a) *Unlawful act.* It shall be unlawful for any person to keep, maintain, possess or have under his control within the city any venomous reptile or any other wild or exotic animal.

(b) *Exceptions.* This section shall not apply to lawfully operated and located pet shops, zoological gardens, scientific research laboratories, veterinarians harboring such animals for purposes of providing professional medical treatment, or wildlife rehabilitators with proper permits, provided that the animals are maintained in a manner so as to prevent escape.

(c) *Permits not authorized; effects of annexation.* Permits for the keeping or maintenance of wild or exotic animals are not authorized. Persons in newly annexed areas have 30 days from the date of annexation to comply with this section.

(d) *Compliance with state and federal regulations and safe confinement.* The confinement of exotic or wild animals exempted from subsection (a) of this section by subsection (b) of this section must meet the regulations promulgated by the state wildlife commission, the minimum standards under the Animal Welfare Act and all applicable rules promulgated by the United States Department of Agriculture. In addition to meeting these minimum standards, all such venomous reptiles and all such wild or exotic animals shall be confined, restrained or controlled in such a manner so that the physical safety, or property, of any person lawfully entering the premises shall not be endangered.

(e) *Presence on public rights-of-way.* Animals described under subsection (a) of this section but exempt under subsection (b) of this section shall not be allowed on any public street, sidewalk, or other public way, except in a fully enclosed cage or adequate structural restraint. The use of a leash, with or without a muzzle, shall not be considered adequate restraint.

(Code 1985, § 3-30; Ord. No. 195, § 1, 12-13-2021)

Secs. 3-74—3-100. Reserved.

ARTICLE IV. LICENSING AND PERMITS

Sec. 3-101. License and rabies tags and fees.

(a) *License.* It shall be unlawful for any dog, cat, or ferret owner, possessor or harborer who resides in the city to fail to provide their dog, cat, or ferret over four months of age with a current city license tag. The owner, possessor or harborer of any above-described animal must have their animal vaccinated and must have a current rabies vaccination tag showing that such animals have been vaccinated. No license will be issued unless proof of inoculation is shown. Any dog, cat, or ferret owner, possessor, or harborer who

moves into the city for the purpose of establishing residency, or who becomes a resident as a result of annexation, shall have 30 days in which to obtain a license.

(b) *License fee.*

(1) Licenses shall be renewed annually from the date of issuance, except for sterile

dogs or cats, which may have a three-year renewal term. The failure of any owner to renew a license by the 30th calendar day after such license is due for renewal shall result in an additional $10.00 late renewal fee. The license fee for all dogs, guard dogs, cats, and ferrets shall be as follows:

Dogs	Fertile	$30.00
	Sterile	$10.00/1 year, $25.00/3 years
Guard dogs		$30.00
Cats	Fertile	$30.00
	Sterile	$10.00/1 year, $25.00/3 years
Ferrets	Fertile	$30.00
	Sterile	$10.00

(2) Any owner of an animal who can furnish a statement from a licensed veterinarian that the animal, due to health reasons, could not withstand spay/neuter surgery, shall be charged at the sterile rate.

(3) Any owner of one or more purebred dogs or cats who can furnish proof of participation in at least three nationally recognized conformation or obedience shows within the past 12 months, shall be charged at the sterile rate. The exemption rate only applies to the dogs or cats in the owner's household of the same breed that were shown. Proof of participation must go beyond records showing that a filing fee was paid, and the owner must validate the actual showing of the animal.

(4) Any animal owner 62 years of age or older who owns a sterilized animal may receive their license free of charge.

(5) Any handicapped owner of a dog which is used for seeing or hearing purposes and is spayed or neutered shall obtain a license free of charge.

(6) Any governmental agency that owns for a governmental purpose, an animal subject to licensing, shall obtain their license free of charge.

(c) *Guard dog license.* It shall be unlawful for any dog owner, possessor or harborer to bring a dog into the city to function as a guard dog without first obtaining a city guard dog license. Such license will supercede the normal dog license required by subsection (a).

(d) *Rabies inoculation.* It shall be unlawful for any person who owns, possesses, or harbors a dog, cat, or ferret not to have the animal inoculated against rabies.

(e) *Rabies tag.* It shall be unlawful for the owner, possessor, or harborer of any dog or cat in the city not to have the dog or cat wear the rabies vaccination tag issued to them by the veterinarian administering the rabies vaccine. It shall be unlawful for the owner, possessor, or harborer of any ferret in the city not to have in the owner's possession the rabies vaccination tag issued to that person by the veterinarian administering the rabies vaccination. Dogs and cats not wearing such tags, and for which the owner cannot promptly display a valid rabies tag, may be impounded pursuant to Code section 3-44.

(f) *Reclaim.* If the bureau has lawfully acquired custody or control of an animal and the bureau has probable cause to believe that the animal does not have the lawfully required inoculation against rabies, then the bureau shall have the authority to inoculate the animal against rabies. The owner, possessor, or harborer of the animal shall not have the right to reclaim the animal until the owner, possessor, or harborer has paid the city for the cost of the rabies inoculation. (Code 1985, §§ 3-22(b)(2), 3-34; Ord. No. 2310, §§ 1, 2, 6-9-2003; Ord. No. 2840, § 3, 12-13-2004)

State law reference—Municipal authority to levy an annual license tax on the privilege of keeping domestic animals, G.S. 160A-212.

Sec. 3-102. City permits.

(a) *Required.* It shall be unlawful for any person to own, keep, have, or maintain any equine animals, cloven-hoofed animals or other livestock or any chickens, turkeys, ducks, guineas, geese,

pheasants, pigeons or other domestic fowl in the city without first receiving from the bureau a permit to do so or to continue to have any of such animals or fowl after a permit has been denied.

This section shall not apply to, and no permit shall be required for, any agricultural operation within G.S. 106-700, which pertains to nuisance liability of agricultural operation, or to any rabbit that is kept exclusively inside its owner's residence. The permit shall be valid for one year from the date of issuance and shall be renewed annually. The annual fee for such permit shall be $40.00 per household. The application shall list all such animals and fowl on the premises. Before a permit is issued an employee of the bureau shall inspect the premises to determine if the keeping of the animals or fowl on the premises will endanger or is likely to endanger the health, safety, peace, quiet, comfort, enjoyment of or otherwise become a public nuisance to nearby residents or occupants or places of business.

(b) *Denial.* When a permit is denied for any reason, the applicant shall be given a written explanation of the reason for denial.

(c) *Compliance required prior to issuance.* An owner or possessor of such animals or fowl shall comply with the following applicable subsections before a permit is issued. Compliance with the following applicable subsections will create a rebuttable presumption that a permit shall be issued. That presumption may only be rebutted by specific findings supported by competent evidence that, despite compliance with the following, the presence of such animals or fowl is still likely to endanger the health, safety, peace, quiet, comfort, enjoyment of or otherwise become a public nuisance to nearby residents or occupants or places of business:

(1) *Fowl and other specifically identified animals.* The keeping of chickens, turkeys, ducks, guineas, geese, pheasants or other domestic fowl or rabbits shall be in compliance with the following:

a. Such animals must be confined in a coop, fowl house or rabbit hutch not less than 18 inches in height. The fowl must be kept within the coop or fowl house and the rabbits in the hutch at all times.

b. The coop or fowl house must be used for fowl only and the hutch for rabbits only, and both must be well ventilated.

c. The coop, fowl house or hutch shall have a minimum of four square feet of floor area for each fowl or rabbit.

d. The run must be well drained so there is no accumulation of moisture.

e. The coop, fowl house or hutch shall be kept clean, sanitary and free from accumulation of animal excrement and objectionable odors. It shall be cleaned daily, and all droppings and body excretion shall be placed in a flyproof container and double-bagged in plastic bags.

f. The coop, fowl house or hutch shall be a minimum of 25 feet from any property line.

g. No more than 20 such fowl or rabbits shall be kept or maintained per acre. The number of fowl or rabbits should be proportionate to the acreage.

(2) *Pigeons.* Pigeons, while allowed to fly to and from the premises, must be provided with adequate space on the premises, and sanitary conditions must be maintained.

(3) *Cloven-hoofed animals.* The keeping of cloven-hoofed animals, equines and other livestock shall be in compliance with the following:

a. Such animals must be provided with adequate shelter to protect them from the elements.

b. The shelter shall be kept clean, sanitary and free from accumulations of animal excrement and objectionable odors.

c. The shelters for cows and other large livestock, which are covered by the zoning ordinance in appendix A to

this Code, shall be kept at a minimum of 75 feet from any property line. The shelters for goats and other small livestock shall be kept at a minimum of 25 feet from any property line.

d. Each cow or other large livestock, excluding equines, shall have a minimum pasture area of two acres. Each goat, sheep or other small livestock shall have a minimum pasture area of one-fourth acre.

(4) *Slaughter.* Any slaughter of any livestock or poultry not regulated by state law or otherwise forbidden or regulated shall be done only in a humane and sanitary manner and shall not be done open to the view of any public area or adjacent property owned by another.

(5) *Annexation.* An owner or possessor of animals on property that is newly annexed has 90 days from the date of annexation to bring the property into compliance and to have obtained permits required by this section.

(6) *Exceptions.* A permit shall not be required for animals of any kind if the animals are kept by a governmental authority or other appropriately certified and recognized academic institution, museum, raptor center, etc.

(d) *Revocation.* The bureau may revoke any permit:

(1) When the permit has been mistakenly issued without compliance with this section;

(2) When the applicant has submitted false information;

(3) For a violation of any of the sections of this chapter;

(4) When, in the opinion of the bureau manager, the health, safety or welfare of any person or property is menaced by the keeping of such animals; or

(5) When the animals become a nuisance.

If a permit is revoked, the applicant shall be given a written explanation of the reasons for the revocation. Upon the determination of a violation of this section, and if the violation pertains to a correctable condition on the property, the owner shall have 30 days in which to bring the property or condition into compliance with this chapter (Code 1985, § 3-37; Ord. No. 2840, § 4, 12-13-2004)

Sec. 3-103. Permit for three or more dogs or cats kept outside.

(a) It shall be unlawful for any person to own, to keep custody of or to take care of three or more dogs or cats or any combination of three dogs and cats or more, four months or older, which are frequently outside on the premises, unless the person has a special permit issued by the animal control bureau.

(b) If a person has three or more dogs or cats frequently outside on the premises, the bureau manager or his designee must make the following five findings in order to issue a special permit:

(1) Noise from the dogs or cats will not interfere with an abutting occupant's use and peaceful enjoyment of the property.

(2) Any odor or unsanitary conditions caused by the dogs or cats will not interfere with an abutting occupant's use and peaceful enjoyment of the property.

(3) Three or more dog runs or other dog-related structures or any combination thereof shall not be permitted if the structures can be seen from an abutting occupant's property in a residentially zoned district.

(4) There is no evidence that the dogs or cats pose any health problem or disease exposure for abutting occupants.

(5) The dogs or cats do not interfere in some other similar manner with the peaceful use and enjoyment of abutting property.

If the bureau manager or his designee denies a person a special permit, the bureau manager or his designee must state the reasons for the denial in writing. If the bureau manager or his designee

has any recommendations or conditions that would enable the person to be in compliance with the standards, the bureau manager or his designee must state those recommendations or conditions in writing. The bureau manager or his designee is authorized to issue a special permit with specific conditions attached to the permit. The bureau manager or his designee shall have the authority to charge a reasonable administrative fee for the necessary review and issuance of the permit.

(c) The fee for a permit shall be $40.00 and the permit shall remain valid as long as the person is in compliance with the terms and conditions, if any, of the permit. If any of the circumstances change, such as, but not limited to, more animals, different breed for a particular dog, new structures or other such similar change that might reasonably violate the five standards set forth in subsection (b) of this section, the permit shall automatically terminate and be null and void. The person must secure a new permit, or the person shall be in violation of this section.

(d) The bureau manager or his designee shall have the authority to revoke the permit at any time if there is a violation of the standards stated in subsection (b), for a violation of any term or condition of the permit if there has been any misrepresentation, or for any other similar reason. The bureau manager or his designee shall state in writing the basis of the revocation.
(Ord. No. 2840, § 5, 12-13-2004)

Editor's note—Ord. No. 2840, § 5, adopted December 13, 2004, amended § 3-103 in its entirety to read as herein set out. Formerly, § 3-103 pertained to permits for four or more dogs or cats kept outside and derived from the Code of 1985, § 3-39.

Sec. 3-104. Appeal of denial or revocation of permit.

Any person who is denied a permit or has a permit revoked under sections 3-102 and 3-103 shall have the right to appeal the denial or revocation to the office of the city manager. Such appeal shall be in writing and shall state the basis of the appeal. The written appeal must be filed with the city clerk within ten days after the notice of denial or revocation of the permit is given to the appellant by the bureau. Such notice shall be considered given to the appellant when a notice letter with adequate postage and properly addressed to the last mailing address provided to the bureau by the person is placed in the United States mail or when personal notice is given to the person, whichever occurs first. The appellant, in addition to filing the appeal with the city clerk, shall also file a copy of the appeal letter with the bureau manager. Upon receipt of a proper appeal, the city manager or his representative shall conduct a hearing to determine if the permit should be denied or revoked. A properly filed appeal shall not affect the denial of a permit unless and until such time as the city manager or his representative overturns the denial. A properly filed appeal shall toll the revocation of an existing permit until a decision is entered on the appeal by the city manager or his representative.
(Code 1985, § 3-38)

Sec. 3-105. Nonresident exceptions.

The sections of this chapter requiring certain animals to be licensed or permitted shall not apply to those animals owned by, in the charge of or under the care of nonresidents of this city who are traveling through or temporarily sojourning in the city for a period not exceeding 30 days. The licensing sections shall not apply to animals temporarily brought into this city for the exclusive purpose of entering animals in a show or other exhibition. These exemptions do not apply to nonresidents of the city who bring dogs into the city for guard-dog purposes.
(Code 1985, § 3-40)

Secs. 3-106—3-130. Reserved.

ARTICLE V. IMPOUNDMENT, SEIZURE/FORFEITURE, CONTAINMENT, SPAY/NEUTER SERVICES AND DISPOSITION OF ANIMALS

Sec. 3-131. Impoundment.

(a) Any domesticated or exotic animal that is found to be un-owned or to be in violation of any provision of this chapter is subject to immediate impoundment if the animal's owner is nonexistent, unknown, or found to be unavailable after a reasonable attempt to identify, locate, and/or notify the animal's owner has been made.

Any animal that is so impounded shall be held by the bureau for three working days, excluding the day of impoundment.

(b) If the owner of the animal appears during the three-day holding period, the owner may redeem the animal by paying the applicable impoundment and boarding fee, any and all outstanding civil citations that may have been issued pursuant to a violation of this chapter, and also by bringing the animal into full compliance with all provisions of this chapter and any applicable state law. The animal shall not be released to the owner until the owner has fully complied with the above requirements. The owner shall have ten calendar days from when they first appear and claim the animal in which to accomplish such compliance and redeem the animal. The owner shall be responsible for a boarding fee for the entire time the animal is held by the bureau. Failure to do so shall result in the forfeiture of the animal to the bureau. The bureau manager may grant a time extension to any owner actively attempting to redeem their animal.

(c) Any animal for which no owner appears within the three-day holding period shall be deemed abandoned and shall be forfeited to the bureau.

(d) Nothing in this section shall prevent the bureau from seizing and/or forfeiting an impounded animal pursuant to any other provision of this chapter or state law.
(Code 1985, § 3-44; Ord. No. 2310, § 4, 6-9-2003)

Sec. 3-132. Seizure, forfeiture, and disposition of animals.

(a) *Authority to seize and forfeit animals.* In addition to any other authority or procedure authorized by this chapter or by any other law to seize an animal, the bureau shall have the authority to summarily seize and forfeit to the bureau any animal when the bureau determines that there is probable cause to believe that the animal:

(1) Under the totality of the circumstances, is dangerous or prejudicial to the public safety or public health and the bureau has issued a probable cause notice on the animal (dangerous animals).

(2) Is the subject of a violation of the following sections of this chapter:

3-61	Abandoned animals
3-62	Abuse of animals
3-63	Animal bite
3-66	Biting or attacking animals
3-69	Nuisance
3-71	Restraint of animals
3-101	License and rabies tags and fees
3-103	Permit for four or more dogs or cats kept outside
3-139	Uncared-for animals

(3) Is the subject of a violation of this chapter that is punishable by escalating civil penalties under section 3-33 and the escalated penalty appropriate to the specific violation includes seizure of the animal (civil).

(b) *Procedure.* The procedures by which such seizures and forfeitures shall be accomplished shall be in accordance with subsequent sections as follows:

(1) Dangerous animal seizures made pursuant to subsection (a)(1) of this section shall be conducted in accordance with the procedures set out in section 3-133.

(2) Seizures made pursuant to subsections (a)(2) and (a)(3) of this section shall be conducted in accordance with the procedures set out in section 3-134.
(Code 1985, § 3-49)

Sec. 3-133. Dangerous animal seizure and forfeiture procedure.

(a) *Probable cause notice required.* No animal shall be seized on the basis that it is dangerous or prejudicial to the public safety or public health without the prior issuance of a probable cause notice. This limitation shall not prohibit seizure based on other lawful authority, nor the subsequent issuance of a probable cause notice for an animal otherwise seized or impounded.

(b) *Probable cause notice.* Probable cause notices may only be issued by a person of supervisory rank with the bureau. The probable cause notice shall state the following:

(1) The specific facts constituting probable cause for declaring the animal dangerous;

(2) That a prompt hearing to determine whether or not the animal is dangerous shall be held as soon as possible;

(3) That anyone in possession of the animal shall immediately turn the animal over to the bureau; and

(4) If the animal's owner is known, the probable cause notice shall also order the owner to immediately contact the bureau and shall state the manner in which the bureau may be contacted.

The bureau shall notify the owner as soon as reasonably possible of the probable cause notice if the owner is known. If the owner is unknown, the bureau shall make reasonable efforts to determine who the owner is and try to notify the owner. If any bureau employee has any communication with the bureau manager about a particular case regarding a suspected dangerous animal, that employee shall keep a written report of the date and the content of any such communication.

(c) *Owner's duties.* The owner shall turn the animal over to the bureau immediately upon receiving a probable cause notice. The bureau shall have the authority to seize immediately any animal for which a probable cause notice has been issued. It shall be unlawful for the owner or occupant of a premises to fail to give an animal to the bureau immediately upon the presentment of a probable cause notice.

(d) *Authority to permit animal to remain on premises.* The supervisor who issued the probable cause notice shall have the authority to authorize that an animal may remain on the premises or elsewhere prior to the seizure/forfeiture hearing if the supervisor is satisfied that the animal's confinement shall be adequate for protecting the public and for the well-being of the animal. The supervisor who allows the animal to remain without seizure shall order the animal to be kept adequately confined and shall issue a containment order in compliance with section 3-135. A failure of the animal to be kept so confined shall result in the immediate seizure of the animal. The bureau shall always have the authority to summarily seize an animal after the probable cause notice has been delivered and before the seizure hearing.

(e) *Request for hearing.* The owner of an animal subject to a probable cause notice shall have the right to a hearing to determine whether the animal shall be declared dangerous as defined in this chapter. The owner of the animal shall request a hearing by submitting a written request during normal working hours to the bureau within ten working days after the delivery of the probable cause notice or all reasonable efforts to deliver (delivery) the probable cause notice to the owner.

(f) *Failure to request hearing.* If the owner fails to properly file a timely request for a hearing with the bureau, the bureau manager shall determine whether the animal is dangerous. The standard to be applied is whether, by a preponderance of the evidence, the animal is dangerous or prejudicial to the public safety or public health. The bureau manager shall make findings of fact to support the determination, and the determination shall be conclusive. The bureau manager may dispose of the animal as provided for in subsections (i) and (j) of this section. If the bureau manager, due to a conflict of interest or any other circumstance, is unable to make such determination, the bureau manager or the chief of police shall appoint a person to make the determination.

(g) *Hearing.* Upon a proper and timely request, a hearing shall be held. The supervisor who issued the probable cause notice or his designee shall present whatever relevant evidence the supervisor has that the animal should be declared dangerous. The owner shall be entitled to present whatever relevant evidence the owner wishes and to have legal representation. All testimony before the hearing officer shall be sworn testimony. The entirety of the hearing shall be recorded. If physical evidence is presented by either side, the

hearing officer shall have such evidence photographed as part of the record and shall describe the item fully for the record.

(h) *Bureau manager as hearing officer.* The bureau manager shall be the hearing officer and shall conduct the hearing to determine whether the animal shall be declared dangerous or not. The bureau manager shall not function as the hearing officer if there is any conflict of interest or the appearance of such. The bureau manager shall determine whether it is necessary for the bureau manager to withdraw as a possible hearing officer, in which event the hearing officer shall be designated by the chief of police or his designee. The bureau manager shall disclose any facts, knowledge or any information known by the bureau manager regarding the particular situation for the record at the very beginning of the hearing. The bureau manager shall respond to any questions about any past knowledge about the particular situation. The appellant shall have the right to state for the record any specific findings of fact about the particular situation that the appellant believes precludes the bureau manager from conducting an impartial hearing of the case.

(i) *Decision and written orders.* The standard to be applied is whether, by a preponderance of the evidence, the animal is dangerous or prejudicial to the public safety or public health. The hearing officer's decision shall be supported by specific findings of fact and specific conclusions based upon the findings of fact. The bureau manager, if the bureau manager acts as hearing officer over the objections of the appellant, shall make specific findings of fact and conclusions regarding such objections for that particular case. All findings of fact must be supported by competent and material evidence in the record and must be included in the record.

The hearing officer shall issue a written order based on his decision. The written order shall declare whether the animal is found to be dangerous or prejudicial to the public safety or public health or nondangerous. If the animal is found to be dangerous or prejudicial to the public safety or public health, the hearing officer shall have the authority to terminate the owner's ownership rights in the animal and to dispose of the animal in accordance with this subsection, or the hearing officer may suspend the termination of ownership rights conditioned upon the owner's compliance with such terms as the hearing officer deems necessary to ensure that the animal may be kept by the owner in safety. If such terms are part of a written order suspending seizure/forfeiture, the terms and the written order shall comply with the requirements of section 3-135. The bureau manager shall have the authority to modify the terms when it is necessary to ensure the safety of the public. The termination of ownership rights may be invoked upon the failure to comply with any of the terms. Written orders shall include the following statements:

(1) Whether the animal is dangerous and prejudicial to the public safety or health or nondangerous. (If nondangerous, nothing further is required.)

(2) That the bureau has the authority to terminate ownership rights of the animal and to order the humane destruction of the animal.

(3) Whether the ownership rights are being presently terminated or if such termination is suspended.

(4) If the termination is suspended, the terms and condition on which the termination is suspended in compliance with section 3-135.

(5) That a failure to comply with the written order could result in termination of ownership rights and humane destruction of the animal.

(6) That any appeal to the superior court of the hearing officer's decision must be filed within ten days.

(j) *Disposition of animal.* The bureau manager shall have the discretion to dispose of any animal forfeited to the bureau under this section in one of only two specific ways:

(1) By humane destruction of the animal; or

(2) By giving the animal to an individual or an organization subject to the protective and inspection conditions required by

the bureau manager for the well-being of the animal, for the protection of the public and for the purpose of preserving and taking care of the animal. Such conditions shall reserve the bureau's right to seize and humanely destroy the animal upon any failure to comply with the conditions. An animal declared to be dangerous by the bureau manager shall not be disposed of for research or experimental purposes.

(k) *Appeal to superior court.* The decision of the bureau manager or of the city manager or his designee shall be subject to review by the superior court by proceedings in the nature of certiorari. Any petition for writ of certiorari for review by the superior court shall be filed with the clerk of superior court within ten days after delivery of or reasonable efforts to deliver the decision to the owner or the owner's representative. Prior to the filing of the petition for writ of certiorari with the clerk of superior court, a cash bond must be provided to the city for all costs incurred thus far by the city's retention of the animal and for an approximate time for the course of the appeal, as well as for the cost of the transcript prepared for the court. The city shall reimburse the petitioner for the cost of the petitioner's transcript and the court's transcript if the court reverses the decision and determines that the animal is not dangerous. If a petition for writ of certiorari is filed in superior court, the animal shall be confined at the animal shelter or at a location solely acceptable to the bureau. Appeal shall not toll compliance with any written or containment order pending the hearing of such appeal.

(Code 1985, § 3-19; Ord. No. 2840, § 6, 12-13-2004; Ord. No. 437, § 1, 11-28-2022)

Sec. 3-134. General seizure/forfeiture procedure.

(a) *Applicability.* When an animal has been or shall be seized pursuant to section 3-132(a)(2), (a)(3), the procedures in this section shall be followed.

(b) *Manner of seizure.* The actual act of seizing the animal shall be done in any manner consistent with state law and the United States Constitution.

(c) *Notice and holding period.* The bureau shall conduct reasonable efforts to identify, locate, and notify the animal's owner. The animal shall be held three working days, excluding the day of seizure, from the date notice is sent to the owner or from the date of seizure if the owner cannot be identified or located after reasonable efforts to do so. The notice, if sent, shall include the following statements:

(1) An order to the animal's owner to contact the bureau immediately.

(2) A brief statement of the date, location, and reason for the seizure of the animal.

(3) A statement that the animal is subject to forfeiture and humane destruction within three working days from the date the notice was sent.

(4) A statement that a hearing will be held, at the owner's request, to determine if the animal shall be forfeited.

(5) A statement of the methods by which the owner may contact the bureau.

(d) *Hearing.* A hearing shall be held if the owner has contacted the bureau within the three days and requested a hearing. The hearing shall be conducted in the same manner and with the same remedies and consequences as those set out in section 3-133. If the violation that is the basis of the seizure is found by the preponderance of the evidence to have occurred, the hearing officer shall have the authority to order the same remedies available in section 3-133(i) and (j). However, if a forfeiture is ordered, the animal may be placed for general adoption to the public if it is healthy, nonaggressive, and has not bitten. If the animal's owner fails to contact the bureau and request a hearing within the three days after the notice is sent, the animal shall be forfeited to the bureau.

(e) *Appeal.* Appeal from a determination under this section shall be conducted in compliance with section 3-133(k).

(Code 1985, § 3-49)

Sec. 3-135. Protective measures for containment of animals.

(a) *Circumstances requiring special preventive measures.* The bureau shall have the authority to require the owner or custodian of an animal to comply with specific preventive measures, as described in subsection (b) of this section, whenever the bureau has the authority to seize the animal for possible forfeiture or when otherwise authorized by this chapter. Preventive measures shall only be ordered after taking into consideration the totality of the circumstances, including, but not limited to, the following:

(1) *Nature of the particular animal.* The behavior, size, temperament, breed, capacity for inflicting serious injury, number of

animals or other such similar factors that would be relevant to a determination of whether preventive measures need to be imposed for a particular situation;

(2) *Adequacy of confinement.* The adequacy of the current enclosure or confinement, if any;

(3) *Immediate surrounding area.* The likelihood that the conditions pertaining to the particular animal and the animal's confinement are detrimental to the safety or welfare of citizens or the peace and tranquility of citizens in the immediate surrounding area;

(4) *History and ability.* The history of the animal and the animal's owner in compliance or noncompliance with this chapter as well as the owner's ability to adequately restrain the animal when viewed in light of all relevant factors.

(b) *Preventive measures.* If the bureau determines that the circumstances require special preventive measures, the bureau shall have the authority to require the following:

(1) Appropriate, specific preventive measures which might include, but are not limited to, the following: necessary repairs for any fence or enclosure, measures to ensure that a gate will remain closed, a fence or secure fence as described in this subsection or any other similar device that would provide greater assurance for the confinement of the animal, all of which are subject to being specifically approved for their adequacy by the bureau.

A fence shall be at least a minimum of four feet high and shall constitute a secure-enough enclosure sufficient to contain the animal at all times. The minimum size of the enclosure may be at least 150 square feet. If the animal is over 15 inches at the shoulder or is deemed capable of climbing a standard four-foot fence, the animal control supervisor may require a six-foot fence. A secure fence means a fence, as immediately described above, that may also be enclosed on all six sides, including the top. The bottom must be concrete, unless the sides of the fence are buried one foot deep in a hard-packed soil. Any reference to "fence" or "secure fence" shall be defined as stated in this subsection. Preventive measures may also specifically include mandatory spay/neuter for any animal that has been declared dangerous by the bureau.

(2) The owner to tattoo, or electronically tag, the animal at the owner's expense if that is necessary for identification, investigative or enforcement purposes.

(3) The owner to procure liability insurance in the amount of at least $100,000.00 at the owner's expense or to have the animal tattooed or to display a sign on the premises warning of the animal on the premises. The bureau shall have the authority to require the owner to show signed, written statements about maintaining the liability insurance, the designated enclosure for the animal and the duty to notify the animal control bureau if the animal escapes, and to require the owner to give the bureau the authority to seize and impound the animal if the owner fails to comply with this subsection.

(c) *Containment order.* If the bureau determines that specific preventive measures must be complied with by the owner of an animal, the bureau shall make reasonable efforts to notify the owner of the containment order. All containment orders shall be in writing and shall state the reasons that preventive measures are required, shall identify the specific preventive measures that must be implemented, and shall state the designated time period within which to comply with the containment order. The bureau shall have the authority to exercise discretion for extensions of time if that is reasonable in view of the good-faith progress of the owner in implementing the preventive measures.

(d) *Failure to comply with containment order.* It shall be unlawful for an owner to fail to comply with a containment order within the designated time for compliance stated in the written order or any extension thereof. The penalty for a willful

failure to comply with a containment order shall be a civil penalty in accordance with section 3-33 or seizure/forfeiture of the animal in accordance with sections 3-33 and 3-134.

(e) *Owner's challenge to containment order.* The owner may submit in writing a challenge to the bureau's determination that subsection (a) of this section is applicable to the owner's premises or submit in writing a challenge to the specific preventive measures required by the bureau. The challenge must comply with all of the requirements as for a request for hearing as set out in section 3-133. A challenge that meets those requirements shall be heard in the same manner and with the same appeal to superior court as set out in section 3-133. The hearing officer shall review the containment order under the standards of this section but shall follow the process for the hearing as set out in section 3-133. If the animal has been seized and the owner wishes to appeal the seizure and potential forfeiture as well as challenge the containment order, both matters may be addressed in the same hearing.
(Code 1985, § 3-27; Ord. No. 2840, § 7, 12-13-2004)

Sec. 3-136. Fees.

(a) *Generally.* The bureau shall charge and collect fees from owners or possessors who redeem their animals. The following services and fees for those services are hereby authorized. The city manager or his designee shall have the authority to establish a fee schedule for the following services and categories:

(1) *Impounding.* Any animal that is taken into custody by the bureau pursuant to this Code or state statute.

(2) *Boarding.* Dog per day, cat per day, large animals (e.g., equines, bovines, sheep, goat, swine, etc.) per day, small animals (e.g., rabbits, birds, poultry, hamsters, etc.) per day. Any animal not deemed to fit in a particular enumerated category shall be considered a large animal.

(3) *Adoption.* Large animals; dog, puppy, cat or other small animal; pick up a special service fee; replacement fee for metal tags.

(4) *Electronic tagging.* The bureau is hereby authorized to, and may without the consent of the animal's owner or possessor, humanely implant any animal lawfully impounded with an electronic tagging device similar to a micro-chip that will allow the animal to be positively identified. The cost shall be deferred by the owner or possessor prior to the animal being released back into their custody.

The fees shall be reviewed annually, and the city manager or his designee is authorized to make such adjustments in such fees as deemed appropriate. The city manager or his designee shall have the authority to establish animal categories and to set escalating impoundment fees for animals for recurring violations by the same owner. An accurate copy of the fee schedule shall be posted in a conspicuous place in the office of the animal control bureau, and a copy shall also be filed with the city clerk's office.

The fees in this subsection do not include applicable charges for any license or inoculation that may be required by this chapter or other applicable law. If the animal to be redeemed is not licensed, permitted, or inoculated as required by law, the owner must have the dog or cat inoculated and obtain a proper license or permit before release of the animal.

No fees whatsoever shall be charged or collected on any animal which has been unlawfully impounded. Any such animal shall immediately be delivered upon demand to the owner or person entitled to the custody of the animal.

If the owner of a dog or cat pays for spay/neuter services for that person's animal impounded by the bureau before the release of the animal to the owner, the owner shall receive a $100.00 credit towards any redemption fees, including the impounding fee but excluding the electronic tagging fee, as stated in this subsection.

(b) *Adoption requires animal spay/neuter surgery.* The adoption of an animal shall be a conditional purchase. In addition to the adoption fees stated in subsection (a) of this section, the purchaser of a dog/puppy, cat/kitten or rabbit at the animal control shelter shall pay the cost of spay/

neuter services, as provided in section 3-137, for the adopted animal. The payment for the spay/neuter services shall be made at the time the person selects such an animal for adoption and shall be nonrefundable. An animal that is immediately eligible for surgery shall not be released to the new owner until the surgery has been completed and medical authorization to release the animal has been given. If the animal is not immediately eligible for spay/neuter surgery, the new owner shall enter into a contractual agreement to present the animal for surgery on a specific date and at a specific time determined by the bureau. If a person adopts an animal and fails to return with the animal for the appointment for spay/neuter services, that person shall forfeit the money paid for the surgery effective upon the scheduled date of the surgery, and the person shall be in violation of this section for failure to comply with that condition of purchasing the animal. Further, the purchaser shall consent to the animal control shelter's right to seize such animal unless the purchaser immediately presents the animal for surgery at the spay/neuter clinic or can provide proof satisfactory to the animal control bureau that the surgery has been performed by another veterinary clinic. If the animal control shelter seizes the animal upon the premises of the owner, the appropriate warrant for seizure shall be required.

(c) *Refunds.* The bureau manager shall have the discretionary authority to grant a refund of money paid pursuant to this section for the cost of spay/neuter services when the animal has died before such services can be performed or if it is subsequently determined that such surgery is unnecessary or inappropriate or for some other exceptional reason which would make it unjust for the city to retain the cost for the spay/neuter services paid to the city, and a refund would be appropriate. This is discretionary authority for the bureau manager; the bureau manager may decline to exercise such authority for any reason whatsoever. If such discretionary authority is exercised, the finance department will be authorized, pursuant to a written memorandum from the bureau manager to the director of the finance department to refund such money with whatever appropriate documentation is required by the finance department. If the discretionary authority is not exercised by the bureau manager or if an individual remains dissatisfied with the decision of the bureau manager, the individual must file a notice of claim with the office of the city manager for any further review of such a request.
(Code 1985, § 3-45; Ord. No. 2310, § 5, 6-9-2003; Ord. No. 2840, § 7, 12-13-2004)

Sec. 3-137. Spay and neuter services.

(a) *Establishment or provision of services.* The bureau is authorized to establish, equip, operate and maintain and provide spay/neuter services (referred to as "services") for dogs, cats, rabbits and ferrets; to employ personnel for those services; and to appropriate and expend tax and nontax funds, including property taxes, for those purposes. In lieu thereof, the bureau is further authorized to contract with any individual, corporation, nonprofit corporation, governmental body or any other group for the purpose of operating or providing services for dogs, cats, rabbits and ferrets within the city. The bureau may appropriate and expend tax and nontax funds, including property tax, for those purposes.

The city manager or his designee shall have the authority to establish the cost of services for dogs/puppies, cats/kittens, rabbits, and ferrets based on estimated costs in providing the services. The city manager or his designee shall maintain documented records justifying any such increases or decreases. A change in service charges shall occur no more than once in each six-month period.

(b) *Consent waiver and form.* A person submitting a dog, cat, rabbit or ferret for the services of the clinic shall first be required to sign a consent form certifying under penalty of perjury that he is the owner of the animal or is otherwise authorized to present the animal for the operation. Such persons may be required to furnish proof of such ownership or authority. By signing the consent form, the owner shall waive any and all liability for any injury or death to an animal arising out of the spaying or neutering operation or any services provided incidental thereto. The person presenting the animal for such operation

shall indemnify the bureau against any person's claim that the bureau did not have the authority or right to destroy the animal.

(c) *Boarding charge.* The bureau shall establish a return date by which a person submitting an animal for the operation as provided in this section shall pick up the animal or be subject to a reasonable boarding fee, established in accordance with section 3-136, to commence the date after such return date. If the animal is not picked up by the seventh day after the return date, the bureau may dispose of the animal by any disposition method authorized by this chapter.
(Code 1985, § 3-47)

Sec. 3-138. Rabies impoundment.

The county ordinance for the control of rabies and other zoonoses shall apply for rabies impoundment. Consistent with that ordinance, the bureau manager shall have the authority to order confinement of an animal which shows symptoms of rabies or which has bitten a person and to take whatever other action is necessary for confinement, observation and disposition of the animal.
(Code 1985, § 3-46)

State law reference—Rabies, G.S. 130A-184 et seq.

Sec. 3-139. Uncared-for animals.

(a) Whenever the bureau finds that any animal is or will be without proper care because of injury, illness, incarceration or other excusable, involuntary absence of the person responsible for the care of such animal, the bureau may impound such animal until it is reclaimed by its owner. The owner must pay the applicable fees in section 3-136 in the same manner as any other owner would reclaim an impounded animal prior to the release of such animal by the bureau.

(b) Any animal that has been impounded under subsection (a) of this section and that is not reclaimed can be kept, in the discretion of the bureau manager, up to ten days and may be disposed of by the bureau pursuant to section 3-140.

(c) If the owner of the animal notifies the bureau of the owner's intent to claim the animal but will not be able to until after the ten-day impoundment period, the bureau shall have the authority to grant extensions, in its discretion, when the bureau has concluded, after investigating the request, that the owner or an agent for the owner is not able to reclaim the animal within the time period specified in subsection (b) of this section. The owner shall be charged double the redemption fee stated in section 3-136 if the animal is claimed after the ten-day period when permission has been granted to claim the animal after the ten-day period. If the bureau has concluded that the owner or an agent is in a position to reclaim the animal, the bureau can inform the owner or agent that the request is denied and proceed to dispose of the animal in accordance with section 3-140.
(Code 1985, § 3-29)

Sec. 3-140. Sale or euthanasia.

(a) *Unclaimed animals.* If an animal is not redeemed by the owner during the applicable period of redemption or has been relinquished to the bureau, the animal shall be disposed of as follows:

(1) After the required period of time for holding an animal has expired, unclaimed animals may be offered to the first member of the public paying the applicable fee. The bureau manager shall be authorized not to offer for sale any animal when it is reasonable to believe that continued medical observation of the animal is necessary or for any other exceptional reason. Owner released or unclaimed animals also may be humanely euthanized at the discretion of the bureau or may be adopted to the general public or sold at public auction. Adoption or sale may be refused to anyone who, in the opinion of the bureau manager:

a. Is unqualified to own the animal due to drunkenness;

b. Has a record of cruelty to animals;

c. Is under 18 years of age;

d. Has committed acts of harassment to animals residing at the shelter;

e. Owns other animals which are in violation of requirements of this chapter;

f. Refuses to comply with adoption requirements of this chapter;

g. Has released two or more animals to the bureau in the past six months;

h. Lacks adequate housing and/or fencing to contain the animals; or

i. Has any other incapacity.

(2) The bureau may accept any animal the owner wishes to release to the bureau. The owner shall sign a release card vesting all rights and title to the animal in the bureau. All released animals shall immediately be available for public sale or public auction or humane euthanasia as the bureau manager deems appropriate.

(3) An employee of the bureau shall execute a bill of sale to the purchaser of any animal sold, and, thereupon, the title to such animal shall be vested in the purchaser.

(4) Employees of the bureau may adopt bureau animals but shall do so using the same procedures as any member of the general public would.

(5) The bureau shall have the authority to carry out the humane euthanasia of any animal lawfully taken into custody by the bureau which is:

a. Affected with any dangerous, painful, incurable or communicable disease; or

b. Incurably crippled or suffering incurably after reasonable effort has been made to notify the owner.

(b) *Bites.* All dogs and cats that bite a person shall be immediately confined for ten days in a place designated by the bureau manager or the health director. If the owner or the person who controls or possesses the dog or cat that has bitten a person refuses to confine the animal as required by this subsection, the bureau manager or the health director may order the seizure of the animal and its confinement for ten days at the expense of the owner. The disposition of an animal other than a dog or cat that bites a person shall be at the discretion of the health director in consultation with the consulting veterinarian. If any animal is unclaimed after the ten-day confinement, the bureau manager may dispose of the animal, unless the bureau manager receives instructions of a different nature from the health department.

(c) *Disease.* Any animal which appears to be suffering from any disease shall not be sold but may be reclaimed by its owner at the discretion of the bureau manager on a conditional basis only, provided that the owner provides proper veterinary medical treatment for the animal in accordance with the bureau manager's instructions. If the person fails to comply with the instructions, the bureau manager shall have the right to seize the animal since the release of the animal has been conditioned upon compliance with those instructions.

(d) *Other authorized dispositions.* Animals that are available for sale to the general public and that qualify for use by the Charlotte-Mecklenburg Police Department, for use by the U.S. Customs Department or other affiliated organization, or for use by a local veterinarian as a blood donor may, at the bureau manager's discretion, be released to these organizations at no charge.
(Code 1985, § 3-48; Ord. No. 2979, § 1, 5-23-2005)

Chapter 4

AVIATION*

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*__Cross references—__Streets, sidewalks and other public places, ch. 19; zoning, app. A.

__State law references—__Aeronautics, G.S. ch. 63; municipal airports, G.S. 63-1—63-9; public airports and related facilities, G.S. 63-48—63-58.

ARTICLE I. IN GENERAL

Sec. 4-1. General regulations.

Persons engaged in ground or air operations or otherwise on the premises of Charlotte/Douglas International Airport (referred to in this chapter as the "airport") for any reason shall obey all applicable state, federal, and local statutes, ordinances, and regulations, including Federal Aviation Administration regulations.
(Code 1985, § 4-1)

Sec. 4-2. Aviation director's authority.

The aviation director is granted authority to promulgate and enforce additional regulations of operations and conduct at the airport, consistent with this Code and other applicable state and federal regulations.
(Code 1985, § 4-2)

Sec. 4-3. Ground rules for motor vehicles.

(a) No person shall park or otherwise leave unattended a motor vehicle anywhere upon airport grounds except in designated parking areas.

(b) No person shall park or otherwise leave unattended a motor vehicle in any restricted parking area without authorization.

(c) No person shall park or otherwise leave unattended any motor vehicle in the designated loading or unloading zones adjacent to the terminal.

(d) No person shall park or otherwise leave unattended any motor vehicle anywhere upon airport grounds in such a position as to constitute a hazard or impediment to traffic.

(e) Any vehicle parked in violation of subsections (a) through (d) of this section may be towed. The city may tow any such vehicle to the aviation department impound lot or hire a commercial wrecker service to remove the vehicle to the wrecker's impound lot. The city's right to tow is in addition to any punishment that may be otherwise imposed under applicable law. In addition, airport law enforcement officials may exercise the powers set forth in section 14-63.

(f) Motor vehicles left unattended or unclaimed in the designated general public parking lots for more than 30 days or in any other place on airport property for more than ten days shall be deemed abandoned vehicles and may be disposed of under chapter 10, health and sanitation, of this Code. Passengers wishing an extension on these parking limits must obtain a permit from the aviation director.
(Code 1985, § 4-3)

Cross reference—Motor vehicles and traffic, ch. 14.

Sec. 4-4. Ground rules for aircraft.

(a) No person shall park or otherwise leave unattended anywhere on airport property, except designated repair facilities, any aircraft that has been dismantled, wrecked, or is otherwise incapable of self-propulsion.

(b) No person shall park or otherwise leave unattended any aircraft anywhere on airport property without the permission of the aviation director or, for leased premises, the tenant.

(c) In addition to other penalties generally imposed for violations of this Code, any aircraft parked in violation of subsection (a) or (b) of this section may be towed by the city or the tenant on whose land the aircraft is parked. Before the owner may take possession of the aircraft, the city or the tenant, as the case may be, must be paid the entire reasonable costs incidental to removing and storing the aircraft and locating the owner.
(Code 1985, § 4-4)

Secs. 4-5—4-30. Reserved.

ARTICLE II. LANDING AND AIRPORT FEES

Sec. 4-31. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Airport means the facility known as Charlotte/Douglas International Airport.

Airport use agreement means any agreement between the city and persons who operate aircraft for hire at the airport, including, but not limited to, scheduled passenger and cargo airlines and charter businesses (referred to as "commercial operators"), which agreement provides for the commercial operator to pay landing fees to the city.

Public aircraft facility (P.A.F.) means those portions of the airport provided for the landing, takeoff and taxiing of aircraft, including, but not limited to, navigational aids, hazard designation and warning devices, airfield security roads, fencing, lighting and clear zone areas, pursuant to the provisions of the standard agreement.

Public general aviation facilities means those portions of the airport made available for general aviation use as the fixed base operator area as that area is defined and designated from time to time pursuant to the terms of the standard agreement.

Standard agreement means that airport use agreement entitled "Charlotte/Douglas International Airport Amended and Restated Airport Agreement and Lease," entered into in 1985 by the city and USAir, Inc. (now known as US Airways), including all amendments thereto.
(Code 1985, § 4-21)

Cross reference—Definitions generally, § 1-2.

Sec. 4-32. Commercial activity use permit.

No person shall carry on or conduct any commercial activity at, upon or from the airport without first securing a use permit issued by the aviation director unless such activity is undertaken pursuant to a duly authorized and executed lease, contract or other written agreement between such person and the city. The aviation director may require permittees to pay fees to the city as a condition of engaging in commercial activity at, upon or from the airport.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 4-5; Ord. No. 278, § 1, 4-4-2022)

Sec. 4-33. Permit required for commercial photographic activity.

No person, other than official representatives of news media on duty or during official assignments, shall take still, motion or sound pictures for commercial purposes at or upon the airport without first having obtained the permission of the aviation director. The aviation director may charge a fee for such activities.
(Code 1985, § 4-6)

Sec. 4-34. Aviation fueling permit.

It shall be unlawful for any person to deliver aviation fuel to any person on the airport premises, to deliver aviation fuel into aircraft at the airport, or to maintain fuel storage facilities on the airport without having received and obtained an aviation fueling permit from the city, which, subject to safety and other operational limitations, may be issued by the aviation director.
(Code 1985, § 4-22)

Sec. 4-35. Ground handling permit.

It shall be unlawful for any person to engage in ground handling on airport premises without having received a ground handling permit from the aviation director. Ground handling includes, but is not limited to, performing any of the following services on the air operations area:

(1) Aircraft maintenance;

(2) Ramp service/ground handling for aircraft;

(3) Ground equipment rental and maintenance;

(4) Exterior aircraft cleaning; and

(5) Into-plane fueling.

Sec. 4-36. Landing fees.

(a) *Established.* Landing fees are hereby established for the use of the public aircraft facility (P.A.F.).

(b) *Payment.* Persons other than commercial operators shall pay fees for the use of the P.A.F. in a manner to be determined by the aviation

director, including, without limitation, fuel and oil flowage charges (the current practice) and/or by minimum flat rate fees.

(c) *Amount.* Every commercial operator shall pay to the city a landing fee as follows:

(1) The landing fee shall be based upon the maximum gross landing weight, as certified by the Federal Aviation Administration (FAA) for each and every aircraft landed at the airport by a commercial operator.

(2) The amount of the landing fee per 1,000 pounds shall be established pursuant to the provisions of the standard agreement.

(3) Every commercial operator shall furnish to the city a complete and accurate monthly report of its operations at the airport. The report shall be in a form satisfactory to the aviation director and at a minimum shall state the following:

a. The total number of landings for the month by type of aircraft.

b. The maximum gross certified landing weight of each aircraft type.

c. The total number of enplaning and deplaning passengers in the month.

d. The amount of cargo, freight and mail loaded and unloaded in each month.

The report shall be delivered to the aviation director no later than the tenth day of the following month.

(Code 1985, § 4-23)

Sec. 4-37. Fuel flowage fee.

(a) *Imposed.* A fuel flowage fee is hereby imposed upon each gallon of aviation fuel delivered at the airport into any aircraft that is not being operated by a commercial operator at the time of the delivery.

(b) *Payment.* The holders of permits issued pursuant to section 4-34 shall be responsible for the collection and remittance of the fuel flowage fee imposed by this section. Payment shall be made to the aviation director no later than the 15th day of the month following the month during which the delivery or activity giving rise to the fee occurred.

(c) *Amount.* The aviation director for each fiscal year shall determine the fuel flowage fee for each gallon unless changed by the city council, based upon the following formula:

(1) A contribution to the cost of providing the public aircraft facility (P.A.F.) consisting of:

a. Fifty percent of total operations at the airport by general aviation aircraft during the previous fiscal period, July 1 through July 30 (taken from Federal Aviation Administration Form 7230-1 "Airport Traffic Record," compiled by the Federal Aviation Administration Air Traffic Control Tower at the airport or successor documents maintained by the Federal Aviation Administration to record a compilation of aircraft operations at the airport); multiplied by

b. The then-applicable fee per 1,000 pounds as established pursuant to the standard agreement; multiplied by

c. An assumed average landing weight for general aviation aircraft of 8,694 pounds, subject to the discretion of the aviation director to adjust such assumed average landing weight based upon periodic surveys indicating a material change in the mix of general aviation aircraft using the airport; plus

(2) A contribution to the cost of providing public general aviation facilities consisting of:

a. A return to the city sufficient to amortize the city's cost of providing public general aviation facilities over 20 years at ten percent, including an amount attributable to land value equal to the then fair rental of the acreage within the general aviation cost center as such may be designated from time to time pursuant to the provisions of the standard agreement; plus

b. That part of the cost incurred during the previous fiscal period of maintaining and operating the city's public general aviation facilities that is not otherwise recouped by the city from users; plus

c. That part of the cost during the previous fiscal period of providing airport services, as that term is defined in the standard agreement, attributed to the general aviation cost center as that area is designated from time to time pursuant to the terms of the standard agreement.

(3) Divided by the total number of gallons of aviation fuel with respect to which a fuel flowage fee was paid during the previous fiscal period.

(d) *Records sufficient to determine fee.* Each holder of a permit issued under this article shall be responsible for maintaining records sufficient to determine the correct amount of fuel flowage fees that should be collected and remitted to the aviation director. The records shall be maintained and submitted in a form described in the aviation fueling permit
(Code 1985, § 4-24)

Sec. 4-38. Contract facility charge ("CFC") on rental car contracts at Charlotte Douglas International Airport.

(a) Commencing July 1, 2007, each rental car company that meets the definition of "tenant RACs" in section 4-102 of this chapter shall collect a daily contract facility charge ("CFC") from each customer who contracts for or receives delivery of a rental vehicle at the airport.

(b) The initial amount of the CFC ("CFC amount") is hereby established as $3.50 per rental car contract for each day or part thereof that the vehicle is rented to the customer. The city manager or the aviation director may increase or decrease the CFC amount from time to time as necessary to provide sufficient revenue in each fiscal year to pay the costs and expenses set forth in subsection (f) of this section.

(c) All CFCs collected by tenant RACs are and shall be trust funds held for the benefit of the city. Tenant RACs and their agents shall hold no legal or equitable interest in the CFCs. Each tenant RAC shall segregate, separately account for and disclose all CFCs as trust funds in its financial statements, and shall maintain adequate records that account for all CFCs charged and collected. Failure to segregate the CFCs shall not alter or eliminate their trust fund nature. The city shall have the right to audit the CFC records upon reasonable notice.

(d) Each tenant RAC shall remit all CFCs that were collected or should have been collected to the city on a monthly basis together with a statement of the number of rental contracts for the month, as well as the length of the rental period and the CFC collected for each such rental contract. The CFCs shall be remitted by the 25th day of the month following the month the CFCs were collected.

(e) Failure to strictly comply with this section shall constitute a material breach, of the tenant RACs concession agreement and facility lease with the city.

(f) The city shall use the proceeds of the CFC solely for:

(1) The costs of planning, acquiring, constructing and financing improvements to the current or future rental car facilities at the airport;

(2) The debt service on obligations issued by or on behalf of the city to plan, acquire and construct the current or future rental car facilities, at the airport;

(3) The costs of operating, maintaining and repairing the current or future rental car facilities at the airport;

(4) The prepayment of the indebtedness incurred by the city to plan, acquire and construct the current or future rental car facilities at the airport;

(5) To compensate the city for any amounts due the city from and not otherwise paid by the tenant RACs pursuant to the con-

cession agreements and facility leases in effect between the city and the tenant RACs.

(Ord. No. 3604, § 1, 5-29-2007)

Secs. 4-39—4-65. Reserved.

ARTICLE III. AIRPORT CHARITABLE SOLICITATION AND DEMONSTRATION CONTROL

Sec. 4-66. Title.

This article shall be known and may be cited as "Airport Charitable Solicitation and Demonstration Control Ordinance."

(Code 1985, § 4-66)

Sec. 4-67. Purpose.

It is the purpose of this article to:

(1) More effectively control charitable solicitations, literature distribution, picketing and/or demonstrating on airport premises;

(2) Protect the traveling public as well as persons desiring to solicit or demonstrate;

(3) Balance the legal rights of each group; and

(4) Protect the public health, safety and general welfare.

(Code 1985, § 4-67)

Sec. 4-68. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Charitable organization means any person whose avowed purpose and object is to benefit, assist, aid and further the following causes:

(1) Philanthropy;

(2) Assistance to persons who are poor, impoverished, destitute, underprivileged, needy, diseased, injured, crippled, disabled, handicapped, or in need of physical or mental rehabilitation;

(3) Churches, religious societies or other religious sects, groups or orders espousing spiritual and altruistic motives or conduct;

(4) The teaching of patriotism, or promoting relief and assistance to this nation's war veterans;

(5) Beneficial education of the mind or assistance to educational institutions; or

(6) The protection, shelter and sustenance of animals.

Charitable solicitation means seeking money donations, pledges thereof, or anything of value to benefit, assist, aid and further the cause of a charitable organization, either orally or by literature distribution.

Literature means books, pamphlets, handbills, tracts, cards, circulars, pictures, films, magazines, or any other written or printed material.

(Code 1985, § 4-68)

Cross reference—Definitions generally, § 1-2.

Sec. 4-69. Solicitation permit required; application.

(a) It is unlawful for any person on airport premises to solicit funds for a noncharitable purpose or organization. Further, it shall be unlawful for any person to solicit funds for charitable purposes on the airport premises without first applying for and obtaining a permit from the aviation director or his representative.

(b) The application shall be submitted to the designated representative of the aviation director at least three days in advance of the first day of solicitation, and shall state the following:

(1) The full name, mailing address and telephone number of the applicant and/or the organization sponsoring, conducting or promoting the fund drive; if the mailing address is a post office box number, the actual street address shall also be stated.

(2) Whether or not the applicant shall be soliciting for a branch or division of a national organization and if so the name and the mailing and street address thereof.

(3) If the applicant is soliciting for a corporation in this state, a copy of its corporate charter, as amended, shall be furnished; if it is a foreign corporation, a copy of its authorization certificate to do business in this state shall accompany the application.

(4) The purpose or object of the charitable solicitation.

(5) Whether the applicant has ever been convicted of a crime involving assault, battery, fraud, theft, or moral turpitude.

(Code 1985, § 4-69)

Sec. 4-70. Reasons for refusal of solicitation permit.

The application shall be granted and the permit required by section 4-69 shall be issued unless one or more of the following facts is found to exist:

(1) One or more of the statements in the application is not true.

(2) The applicant has violated any of the terms and provisions of any prior permit.

(Code 1985, § 4-70)

Sec. 4-71. Permits for literature distribution.

It shall be unlawful for any person to distribute literature at the airport, whether or not the literature is in connection with charitable solicitation, without first applying for and obtaining a permit as provided in section 4-69. This section applies, without limitation to literature related to a political candidate or political issue or in connection with a labor-management dispute.

(Code 1985, §§ 4-71, 4-72)

Sec. 4-72. Picketing and demonstrations.

(a) No person shall engage in picketing or demonstrating of any type without first obtaining a permit as described in section 4-69. The permit shall provide the name and phone number of a contact person for the group that is demonstrating or picketing, and that contact person shall be available at all times that the group is on site at the airport.

(b) The permit issued shall be valid for 14 days.

(c) Picketers and demonstrators shall comply with section 19-303. In addition, the following rules shall apply:

(1) Picketing and demonstrating may be conducted only on sidewalks outside the terminal building. No picketing or demonstrating shall be allowed within the terminal building.

(2) No more than ten picketers or demonstrators promoting the same object shall be permitted at the airport at any one time.

(3) No demonstrations or pickets shall be conducted in any way that violates the airport's security plan approved by the Federal Aviation Administration.

(4) At all times, at least one member of the group that is picketing or demonstrating shall wear a photo identification card, issued by the airport, on the outermost

garment of his upper body and in a manner clearly visible to the public. The identification shall state the true and correct name of the person and the organization or cause represented. The badge shall not be transferred to another person and must be returned to the issuing airport official at the expiration of the permit.

(d) Picketers and demonstrators shall also comply with subsections 4-75(4)b, (4)c, (4)e—(4)i.
(Ord. No. 2621, § 3, 6-14-2004)

Sec. 4-73. Permit fees.

A permit fee as authorized by section 2-1 shall be charged and collected in advance to defray a part of the costs in preparing and issuing a permit under this article.
(Code 1985, § 4-73)

Sec. 4-74. Cancellation of permits.

Any permit granted under this article may be cancelled after issuance if any of the reasons for prior refusal in this article should be discovered or become apparent during the solicitation period.
(Code 1985, § 4-74)

Sec. 4-75. Time, location, manner and number of persons involved.

When permits for charitable solicitation or literature distribution, distribution of other types of literature, picketing and/or demonstrating are granted, the following rules and standards shall apply:

(1) *Location.* Permittees soliciting charitable contributions or selling literature shall be restricted to the sidewalks outside the terminal building. Such activities are prohibited within the terminal building. Permittees who are only distributing free literature may do so within the terminal building but shall be restricted to the public areas while in the terminal building, excluding the entrances to any leased areas. Distribution of free literature may also be conducted on the sidewalks outside the terminal building.

(2) *Time.* Permits shall be issued for 14 days.

(3) *Number of persons.* No more than two people per organization may distribute literature or solicit charitable donations any one time.

(4) *Manner of operation.* Manner of operation shall be as follows:

a. Each person included in a permit shall be issued and shall wear a photo identification card on the outermost garment of his upper body and in a manner clearly visible to the public. Such identification shall state the true and correct legal name of the person and the organization or cause represented. It shall not be transferred to another person and must be returned to the issuing airport official at the expiration of the permit.

b. No permittee shall make loud noises or create any other disturbances. No dancing; no chanting; no use of drums, cymbals, other musical instruments, or noisemaking devices shall be permitted.

c. Permittees at all times are subject to all federal, state and local laws, including, without limitation, laws regarding fraud, assault, battery, theft, littering, and the conduct of persons in public places.

d. A permittee, when soliciting donations on the sidewalk in connection with the distribution of literature, shall inform the person approached by him that a donation is solicited prior to the time such material is delivered to the prospective donor, and such solicitor shall make the proper money change when informed of the amount being donated.

e. No permittee shall erect or place a table, bench, chair, or other structure on any sidewalk or other premises of the airport.

f. No permittee shall distribute candy, gum or other food snacks or any food product, and shall not pin, tie, or

attach any flower or their symbol, insignia or article on the clothing, luggage or vehicle or passengers or other persons at the airport.

g. No permittee shall interfere with the free passage of, or access of, other persons along sidewalks or at any entrances to or exits from a terminal or any other structure. Specifically, no permittee shall ever obstruct any entrance or exit to solicit donations or distribute literature. No permittee shall conduct such activity directly in front of any entrance or exit door to the terminal building or adjacent to the sidewalk passenger check-in counters.

h. No permittee shall enter any stairwell, staircase, or elevator, for solicitation or distribution purposes. No permittee shall impede the flow of pedestrian traffic to sidewalk baggage collection or baggage loading areas. No person shall be impeded or approached while loading or unloading baggage from any public or private vehicle.

i. No permittee shall operate in the roadways adjoining the terminal sidewalks, nor in any other manner impede vehicular traffic in the roadway.

(Code 1985, § 4-75)

Secs. 4-76—4-100. Reserved.

ARTICLE IV. GROUND TRANSPORTATION AT AIRPORT

Sec. 4-101. Purpose.

This article is enacted in order to:

(1) Require persons who use terminal roadways in the operation of a profit-making enterprise to pay fees for such use in order to protect the airport's concession revenue and to assist in defraying the expense of operating the airport, including, but not limited to, providing terminal roadways;

(2) Provide for the traffic control, policing, maintenance and similar services for the commercial lane; and

(3) Enable the aviation director to establish regulations setting reasonable standards, controls, rules and procedures governing the operation of terminal commercial ground transportation vehicles on the airport.

(Code 1985, § 4-86)

Sec. 4-102. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Airport means the Charlotte/Douglas International Airport.

Commercial courier vehicle means a vehicle used to transport mail, commercial and financial instruments, packages, luggage or similar items over terminal roadways to and/or from the terminal building for a charge or fee.

Commercial lane means the roadway that provides controlled access to the lower level of the terminal building and which is intended to be used by ground transportation vehicles.

Concession agreement means an agreement with the city authorizing a for-profit business enterprise to engage in the sale of products or services at the airport.

Contract van means a nonmetered motorized van that is used to transport persons to and from the airport and that is hired by prearrangement rather than "on demand" and that may or may not charge a direct fee to the persons being transported.

Cruising means the movement of a ground transportation vehicle over terminal roadways in search of passengers or for the purpose of attracting passengers.

Executive car means a nonmetered passenger vehicle that is used to transport persons to or from the airport, and that is hired by prearrangement rather than "on demand" and that may or may not charge passengers a direct fee. An executive car differs from a limousine in that it seats fewer than four persons behind the driver and does not meet the manufacturer's specifications for a luxury limousine.

Ground transportation permit means the permit issued by the city pursuant to this article authorizing the holder to provide ground transportation services at the airport.

Ground transportation services means the transporting of persons or property by vehicle to or from the terminal building for the purpose and/or with the expectation of receiving, directly or indirectly, financial remuneration therefor.

Ground transportation vehicle means any vehicle used to provide ground transportation services.

Hotel/motel courtesy vehicle means a vehicle operated by a hotel or motel operator to transport guests of the hotel/motel from the airport to the hotel/motel and for which the guests are not directly charged.

Limousine means a luxury-type, chauffeur-driven motorized vehicle that has seating capacity of at least four passengers behind the driver's seat, that meets the manufacturer's specifications for being a limousine, and that is utilized for the transportation of persons for a charge or fee by specific prior arrangement.

Off-airport parking courtesy vehicle means any vehicle provided by an off-airport parking operator and used to transport persons between the parking operator's premises and the airport without a direct fee being charged by the persons being transported.

Off-airport parking operator means any entity that operates a parking business, which is not located on the airport premises, and which markets its parking and/or other services to passengers arriving and departing from the airport.

Off-airport RAC means a rental car company that has not entered into a concession agreement with the city and that does not have business facilities on the airport premises.

Off-airport RAC courtesy vehicle means a vehicle provided by an off-airport RAC and used to transport persons between the rental car operator's premises and the airport without a direct fee being charged by the persons being transported.

Parking deck means the multiple-level structure located adjacent to the commercial lane.

Shuttle concession van means a vehicle that is operated pursuant to an exclusive concession agreement with the city and that is used to transport groups of passengers between the airport and certain predetermined hotels or tourist destinations. Shuttle concession vehicles need not be hired by prearrangement but may be hired on demand.

Tenant RAC means a rental car company that is party to a concession agreement with the airport and that has business premises on the airport.

Tenant RAC courtesy vehicle means a vehicle provided by a tenant RAC operator and used to transport persons between the operator's premises and the airport without a direct fee being paid by the person being transported.

Terminal building means the building located on the airport south of the Southern Railroad right-of-way and surrounded by runways 18L/36R, 5/23 and 18R/36L, consisting of the baggage level, ticket level, office level, basement and concourses.

Terminal roadways means all roadways inside the airport boundary which are within the area bounded on the north by the Southern Railway right-of-way, on the east by runway 18L/36R, on the west by runway 18R/36L and on the south by the terminal building.

(Code 1985, § 4-87; Ord. No. 2995, § 1, 6-13-2005)

Cross reference—Definitions generally, § 1-2.

Sec. 4-103. Unauthorized operations; soliciting on airport roadways prohibited.

Except as provided in this article, no person shall:

(1) Operate any ground transportation vehicle upon the terminal roadways; or

(2) Engage in cruising or other activity at the terminal building or on terminal roadways intended to solicit persons to use the services of the operator of the ground transportation vehicles.

(Code 1985, § 4-88)

Sec. 4-104. Standards of operation.

The aviation director shall have the right to adopt and amend, from time to time, reasonable rules, regulations and procedures applicable to ground transportation services on all airport roadways. The adoption of this article and the promulgation of standards governing ground transportation services on terminal roadways is not intended and shall not be construed to be the granting of any property right or expectation to any person. All persons electing to invest time or financial resources in providing ground transportation services on terminal roadways do so with full knowledge of all the sections of this article and shall have no right or standing to make claim or objection against the city by reason of any amendments to any such reasonable rules, regulations or procedures.

(Code 1985, § 4-92)

Sec. 4-105. Shuttle van service concession.

The aviation director is hereby authorized to award one shuttle van service concession (referred to as "concession") based upon competitive bids received from qualified operators, which concession shall include a requirement of a good-faith effort to purchase goods and services from qualified DBEs equal to 25 percent of gross revenues from operation of the concession. DBEs are disadvantaged business enterprises, as that term is defined in 49 CFR 23.

(Code 1985, § 4-89)

Sec. 4-106. Permit requirements.

(a) Persons intending to operate ground transportation vehicles on terminal roadways, other than taxicab operators governed by chapter 22, vehicles for hire, of this Code, shuttle van concessionaires and city employees, shall first apply for and obtain a ground transportation permit for each vehicle which they intend to use to provide ground transportation services.

(b) The aviation director or his representative shall, within a reasonable time after receipt of an application, issue a ground transportation permit for each vehicle covered by the application, which permit shall be valid for one fiscal year or the remaining portion of the then-current fiscal year, unless it shall appear that the applicant or vehicle does not meet the ground transportation regulations promulgated by the aviation director.

(c) Every transportation permit issued pursuant to this section shall be in the form determined by the aviation director, as he shall from time to time in his reasonable discretion determine, and shall be expressly conditioned upon observance by the permittee of all federal, state, county and municipal laws, ordinances, rules, regulations and such directives and procedures as may, from time to time, be established by the aviation director, including, but not limited to, directives and procedures reasonably established for the public health and safety; the security and good order of the airport; and the expeditious flow of traffic to, from and about the terminal roadways.

(d) If an application for a ground transportation permit is denied, the aviation director or his representative shall give prompt written notice thereof to the applicant, advising of the reason for the denial, and shall return to the applicant any fees submitted by the applicant in connection with that application. The applicant shall have 30 days from the date of receipt of this written notice to appeal such denial to the city manager or his designee.

(Code 1985, § 4-90)

Sec. 4-107. Classification of permits and fees.

The following shall be the classifications of ground transportation permits and the fees authorized by section 2-1 that shall be charged with respect to use of the commercial lane:

(1) *Off-airport RACs.* A fee equal to ten percent of the RAC's gross revenues;

(2) *Off-airport parking operators.* A fee equal to ten percent of the operator's gross revenues.

(3) *Hotel/motel courtesy vans.* An annual fee for each hotel/motel courtesy van; provided, however, any hotel or motel may elect to have all hotel/motel courtesy vans owned or operated by it considered to be contract vans and pay a per-entry fee for each hotel/motel courtesy van into the commercial lane;

(4) *Commercial courier vehicle.* A fee per entry into the commercial lane by each commercial courier vehicle; and

(5) *Contract vans, executive cars or limousines.* A fee per entry of each contract van or limousine.

(Code 1985, § 4-93; Ord. No. 2995, § 2, 6-13-2005)

Sec. 4-108. Required manner of operation.

The aviation director or his designee is expressly authorized to assess fines or other charges for extended dwelling in the commercial lane and may revoke the terminal commercial ground transportation permit of any offender. In setting limits for time permitted in the commercial lane, the aviation director is authorized to take into consideration differences in the different classifications of ground transportation vehicles and the fact that some providers of ground transportation services may be party to a concession agreement with the city providing for parking accommodations within the commercial lane.

(Code 1985, § 4-94)

Sec. 4-109. Enforcement.

The aviation director shall have the power and the duty to:

(1) Enforce this article;

(2) Collect fees in advance, require deposits and design and require the use of such forms necessitated by this article; and

(3) Establish such procedural rules as he shall, from time to time, deem necessary or conducive to the proper and efficient administration of this article.

(Code 1985, § 4-95)

Sec. 4-110. Penalties for violations.

A violation of this article may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.

(Code 1985, § 4-97; Ord. No. 278, § 1, 4-4-2022)

Chapter 5

BUILDINGS AND BUILDING REGULATIONS*

Article I. Regulation of Boarded Up Residential Structures

Sec. 5-1. Purpose and authority.
Sec. 5-2. Definitions.
Sec. 5-3. Requirements; time limit.
Sec. 5-4. Grace period.
Sec. 5-5. Registration.
Sec. 5-6. Violations.
Sec. 5-7. Not an infraction or misdemeanor.
Sec. 5-8. Notice of violation; penalties.
Sec. 5-9. Notices.
Sec. 5-10. Adjudicatory hearing.
Secs. 5-11—5-29. Reserved.

Article II. Regulation of Nonresidential Buildings and Structures

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Division 3. Maintenance Standards

Sec. 5-46. Maintenance standards in general.
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*__Editor's note—__Prior to the enactment of Ord. No. 3653, at the discretion of the city, all of the city's ordinances relating to building construction and inspection, consisting of former chapter 5, have been deleted since the city, by a resolution of March 28, 1983, requested that the county building inspection ordinances be enforced within the corporate limits of the city.

__Cross references—__Fire prevention and protection, ch. 8; floods, ch. 9; health and sanitation, ch. 10; collection services for building material, § 10-104; maintenance of premises and litter control for construction and demolition sites, § 10-207; housing, ch. 11; soil erosion and sedimentation control, ch. 17; stormwater, ch. 18; streets, sidewalks and other public places, ch. 19; numbering of buildings, § 19-101 et seq.; subdivisions, ch. 20; trees, ch. 21; water, sewers and industrial waste discharge restrictions, ch. 23; zoning, app. A.

__State law reference—__Municipal authority to regulate buildings, G.S. 160A-411 et seq.

Sec. 5-49. Property maintenance standards.
Sec. 5-50. Vacant buildings or structures.

ARTICLE I. REGULATION OF BOARDED UP RESIDENTIAL STRUCTURES

Sec. 5-1. Purpose and authority.

(a) It is the purpose of this article to promote the health, safety and welfare of the citizens of the city by establishing reasonable regulations for boarded up residential structures in order to prevent their detrimental effects in the city's neighborhoods.

(b) The department's code enforcement official shall be responsible for the administration and enforcement of the provisions of this article. The code enforcement official or designee(s) shall have the following authority:

(1) To inspect the properties;

(2) To obtain administrative search and inspection warrants, if necessary, as provided in G.S. 15-27.2; and

(3) To issue notices of violation and impose civil penalties.

(Ord. No. 3653, 7-23-2007)

Sec. 5-2. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Board up means the boarding up of any means of egress and ingress, including, without limitation, windows and doors, to an unoccupied residential structure.

Code enforcement official means the person who has been designated, in writing, by the city manager to enforce this article.

Department means the neighborhood development department, code enforcement division.

Owner means the holder of title in fee simple.

Residential structure means any building, structure, manufactured home or mobile home, or part thereof, intended to be used for human habitation and includes any appurtenances therewith.

Unoccupied means a residential structure that is not occupied or that is occupied by unauthorized persons. In the case of a multi-unit residential structure, unoccupied means when any one unit is unoccupied or occupied by unauthorized persons.

(Ord. No. 3653, 7-23-2007)

Sec. 5-3. Requirements; time limit.

(a) An owner who registers a boarded up residential structure pursuant to section 5-5 must comply with the guidelines for boarding up residential structures established from time to time by the department.

(b) An owner's registration of a boarded up residential structure shall expire six months from the date of registration with the department and may not be renewed.

(Ord. No. 3653, 7-23-2007)

Sec. 5-4. Grace period.

Any owner who has boarded up a residential structure prior to the effective date of this article shall comply with the regulations contained herein within six months after the effective date of this article. If after six months, an owner has failed to register the structure, the owner shall be in violation of this article.

(Ord. No. 3653, 7-23-2007)

Sec. 5-5. Registration.

(a) No owner shall board up a residential structure without registering the structure with the Department no later than 48 hours after boarding it up.

(b) An application for registration must be made by the owner of the boarded up residential structure on a form prescribed by the department, and submitted to the department. The completed registration form shall contain at a minimum the following information:

(1) The full true name and mailing address of the owner;

(2) The full true address and tax parcel number of the residential structure to be boarded;

(3) An accurate telephone number at which the owner may be reached;

(4) If the owner is a partnership or corporation, the owner shall designate one of its general partners or officers to act as its agent and provide the present residence and business addresses and telephone numbers for the agent;

(5) The owner's plan for the occupancy, repair or demolition of the residential structure;

(6) The owner's plan for regular maintenance during the period the residential structure is boarded up; and

(7) Such other information as the department shall from time to time deem necessary.

(c) The owner, under this section, shall have a continuing duty to promptly supplement registration information required by this section in the event that said information changes in any way from what is stated on the original registration.

(d) Registration of a boarded up residential structure does not excuse the owner from compliance with any other applicable ordinance, regulation, or statute, including, without limitation, chapter 11. By accepting an owner's registration, the department has not determined that the residential structure being registered is in compliance with any applicable local or state regulation or law.
(Ord. No. 3653, 7-23-2007)

Sec. 5-6. Violations.

(a) It shall be unlawful for the owner of a boarded up residential structure to fail to register such structure with the department as required by section 5-5, except as otherwise provided in this article.

(b) It shall be unlawful for an owner who has registered a boarded up residential structure to leave the structure boarded up after the expiration of the registration as set forth in section 5-3.

(c) It shall be unlawful for an owner to board up a residential structure in a manner that does not comply with the department's guidelines unless the owner has obtained the department's prior written approval for an alternative method of boarding up a residential structure.
(Ord. No. 3653, 7-23-2007)

Sec. 5-7. Not an infraction or misdemeanor.

A violation of any provision of this article shall not constitute an infraction or misdemeanor punishable under G.S. 14-4 and 14-188.
(Ord. No. 3653, 7-23-2007)

Sec. 5-8. Notice of violation; penalties.

Except as otherwise provided in this article, the code enforcement official or designee(s) shall notify the owner of a boarded up residential structure of a violation of any provision of this article and the owner shall have ten days from the date of the notice of violation to correct the violation. Any owner who fails to correct the violation within the time specified shall be subject to a civil penalty in the amount of $500.00 for the first day of noncompliance and $50.00 for each day thereafter until the owner complies. The civil penalty may be recovered in the nature of a debt if the owner does not pay the penalty within 30 days of assessment of the civil penalty.
(Ord. No. 3653, 7-23-2007)

Sec. 5-9. Notices.

Any notice required or permitted to be given by the department under this article to the owner may be given either by personal delivery or by first class United States mail, postage prepaid, to the most current address as specified in the registration which has been received by the department or to the address listed for the responsible person in the county property tax records if an owner has not registered with the department. Notices mailed as above shall be deemed given upon their deposit in the United States mail and shall be deemed to have been received on the third regular postal delivery day thereafter.
(Ord. No. 3653, 7-23-2007)

Sec. 5-10. Adjudicatory hearing.

(a) An owner who has been assessed a civil penalty for a violation of this article may request a hearing with the department's key business

executive or his designee. Such request must be made in writing, filed with the department within ten days of the notice of assessment, and state the reasons why the civil penalty should not have been assessed. Failure to request a hearing in the time and manner specified shall constitute a waiver of the right to contest the penalty.

(b) An owner requesting a hearing must post a $500.00 bond with the department before an appeal hearing will be scheduled. Once the bond is posted, the hearing will be scheduled within 15 business days.

(c) The department's key business executive or his designee shall serve as the hearing officer. Any owner against whom a decision of the hearing officer is made may seek judicial review of the decision by filing a written petition within 30 calendar days after receipt of the notice of the decision, but not thereafter, with the superior court of the county. The proceedings in superior court shall be in the nature of certiorari.
(Ord. No. 3653, 7-23-2007)

Secs. 5-11—5-29. Reserved.

ARTICLE II. REGULATION OF NONRESIDENTIAL BUILDINGS AND STRUCTURES

DIVISION 1. GENERALLY

Sec. 5-30. Short title.

The rules and regulations prescribed by this article shall be known and be cited as "The Nonresidential Building Code of the City of Charlotte" and may be referred to in this article as "this code."
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-31. Purpose and authority.

Pursuant to G.S. 160D-1129, it is the purpose of this article to establish minimum standards for the maintenance, sanitation and safety of all nonresidential buildings and structures within the corporate limits of the city. This article does not replace or modify requirements or standards otherwise established for the construction, repair, alteration or use of buildings, equipment or facilities, except as provided in this article.
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-32. Scope and applicability.

(a) The provisions of this article shall apply to all nonresidential buildings or structures which are now in existence or which may be built within the corporate limits of the city.

(b) Every nonresidential building or structure and the property on which it is situated shall comply with the provisions of this article, whether or not such building or structure shall have been constructed, altered, or repaired before or after the enactment of this article, and irrespective of any permits or licenses which have been issued for the use or occupancy of the building or structure or for the installment or repair of equipment or facilities.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-33. Definitions.

The following words, terms and phrases, when used in this article shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration, as applied to a building or structure, means a change or rearrangement in the structural parts or in the exit facilities; as enlargement, whether by extending on a side or by increasing in height; or the moving from one location or position to another; and the term "alter" in its various moods and tenses and its participle refers to the making of an alteration.

Approved, as applied to a material, device or mode of construction, means approved by the inspector under this article or by other authority designated by law to give approval in the matter in question.

Area:

(1) As applied to the dimensions of a building, means the maximum horizontal projected area of the building.

(2) As applied to the dimensions of a room, means the total square footage of floor area between finished walls.

Basement means a story with 50 percent or more of its cubical volume below finished grade.

Building means, for the purposes of this article, any structure built for the shelter or enclosure of persons, animals or property of any kind. The term "building" shall be construed as if followed by the phrase "or part thereof."

City council means the City Council of the City of Charlotte.

Close means securing the building or structure so that unauthorized persons cannot gain entrance.

Code enforcement official means the person who has been designated by the city manager to enforce this article.

Demolish means the demolition and removal of the entire building or structure, leaving the property free and clear of any debris and without holes or pockets which may retain water.

Extermination means the control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food by poisoning, spraying, fumigating, trapping or by any other recognized and legal pest elimination methods approved by the inspector.

Garbage means waste materials including, without limitation, the byproduct of animal or vegetable foodstuffs, paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard waste, tins, metals, mineral matter, glass, crockery, dust and the residue from the burning of wood, coal, coke and other combustible material.

Infestation means the presence, within or around a building or structure, of any insects, rodents or other pests in such number as to constitute a menace to the health, safety or welfare of the occupants or public.

Inspector means any person who is authorized by the code enforcement official to conduct inspections for the purpose of this article.

Nonresidential means any building or structure that is not a dwelling, lodging establishment, manufactured home or rooming house as those terms are defined in chapter 11.

Owner means the holder of title in fee simple and every mortgagee of record.

Party in interest means all individuals, associations, and corporations who have interests of record in a nonresidential building or structure and any who are in possession thereof.

Pier means a masonry or other material support extending from the ground and footing to and supporting the building or portion thereof. Pier sizes and spacing shall conform to the specifications of the state building code.

Plumbing means and includes all of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, mechanical sink grinders, waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes washing machines, catchbasins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines.

Property means any lot or parcel of land inclusive of any building, structures or improvements located thereon.

Public authority means any authority or officer of any department or branch of the government of the city, county or state who is in charge of administering and enforcing regulations relating to health, fire, public safety, buildings or other activities concerning buildings or structures in the city.

State building code means the North Carolina State Building Code or any superseding regulation.

Vacant means that a building or structure has not been used for its intended purpose or for any lawful purpose for a period of at least 180 consecutive days.

Vacant industrial warehouse means any building or structure designed for the storage of goods or equipment in connection with manufacturing

processes, which has not been used for that purpose for at least one year and has not been converted to another use.

Vacant manufacturing facility means any building or structure previously used for the lawful production or manufacturing of goods, which has not been used for that purposes for at least one year and has not been converted to another use.
(Ord. No. 4274, § 1, 9-28-2009)

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Sec. 5-34. Duties and powers of the code enforcement official.

It shall be the duty of the code enforcement official to:

(1) Investigate the conditions of and inspect buildings and structures in the city in order to determine whether they have been properly maintained in compliance with the minimum standards established by this article so that the safety or health of the occupants or members of the general public are not jeopardized;

(2) Enter upon property for the purpose of making examinations and inspections provided that such entries shall be made in accordance with law and in such a manner as to cause the least possible inconvenience to the persons in possession, if any;

(3) If permission to enter is not granted by the owner, the owner's agent, a tenant, or other person legally in possession of the property, obtain a duly issued administrative search warrant in accordance with G.S. 15-27.2;

(4) Appoint and fix the duties of officers, agents, and employees necessary to carry out the purposes of this article;

(5) Delegate any of his or her functions and powers under this article to other officers and agents;

(6) Take such action, together with other appropriate departments and agencies, public and private, as may be necessary to effect compliance of nonresidential buildings or structures which are in an unsafe condition;

(7) Administer oaths and affirmations, examine witnesses and receive evidence;

(8) Issue notices of violation and impose civil penalties;

(9) Keep a record of the results of inspections made under this article; and

(10) Perform such other duties as may be prescribed in this article.

(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-35. Inspections.

For the purpose of making inspections, the code enforcement official is hereby authorized to enter and examine and survey, at all reasonable times, all property after sufficiently identifying himself. The owner or occupant of every property, or the person in charge thereof, shall give the code enforcement official free access to such property, at all reasonable times, for the purpose of such inspection, examination and survey.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-36. Administrative liability.

Except as may otherwise be provided by statute or local law or ordinance, no city officer, agent or employee charged with the enforcement of this article shall be personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties under this article unless he acted with actual malice.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-37. Procedure for enforcement.

(a) *Preliminary investigation.* Whenever it appears to the code enforcement official that any nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public is jeopardized for failure of the property to meet the minimum standards established by this article, he shall undertake a preliminary investigation.

(b) *Complaint and hearing.* If the preliminary investigation discloses evidence of a violation of the minimum standards established by this article, the code enforcement official shall issue a complaint and cause it to be served upon the owner of and parties in interest in such nonresidential building or structure. The complaint shall state the charges and contain a notice that a hearing will be held before the code enforcement official at a place therein fixed, not less than ten days or more than 30 days after the serving of such complaint. The owner or any party in interest shall have the right to correct the violation or to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint. Any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard. The rules of evidence prevailing in courts of law or equity shall not be controlling in the hearing before the code enforcement official.

(c) *Procedure after hearing; issuance of order.*

(1) If, after notice and hearing provided for in subsection (b), the code enforcement official determines that the nonresidential building or structure has not been properly maintained so that the safety or health of its occupants or members of the general public is jeopardized for failure of the property to meet the minimum standards established in this article, the code enforcement official shall state in writing findings of fact in support of that determination and shall issue and cause to be served upon the owner an order.

(2) If the code enforcement official determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would not exceed 50 percent of its then current value, then the code enforcement official shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, to either:

a. Repair, alter or improve the nonresidential building or structure in order to bring it into compliance with the minimum standards established in this article; or

b. Vacate and close the nonresidential building or structure for any use.

(3) If the code enforcement official determines that the cost of repair, alteration, or improvement of the nonresidential building or structure would exceed 50 percent of its then current value, then the code enforcement official shall state in writing the findings of fact in support of such determination and issue an order that requires the owner, within a reasonable time specified in the order, to either:

a. Remove or demolish the nonresidential building or structure; or

b. Repair, alter or improve the nonresidential building or structure to bring it into compliance with the minimum standards established in this article.

(d) *Limitations on orders.*

(1) Notwithstanding any other provision of law, if the nonresidential building or structure is designated as a local historic landmark, listed in the National Register of Historic Places, or located in a locally designated historic district or in a historic district listed in the National Register of Historic Places and the city council determines, after a public hearing as provided by ordinance, that the nonresidential building or structure is of individual significance or contributes to maintaining the character of the district, and the nonresidential building or structure has not been condemned as unsafe, the order may require that the nonresidential building or structure be vacated and closed until it is brought into compliance with the minimum standards established in this article.

(2) An order may not require repairs, alterations, or improvements to be made to vacant manufacturing facilities or vacant industrial warehouse facilities to pre-

serve the original use. The order may require such building or structure to be vacated and closed, but repairs may be required only when necessary to maintain structural integrity or to abate a health or safety hazard that cannot be remedied by ordering the building or structure closed for any use.

(e) *Action by city council upon failure to comply with order.*

(1) If the owner fails to comply with an order to repair, alter, or improve or to vacate and close the nonresidential building or structure, the city council may adopt an ordinance ordering the code enforcement official to cause such building or structure to be repaired, altered or improved in order to bring it into compliance with the minimum standards established by this article or to be vacated and closed for any use. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following adoption of an ordinance, the code enforcement official may cause the building or structure to be repaired, altered, or improved or to be vacated and closed. The code enforcement official may cause to be posted on the main entrance of any nonresidential building or structure so closed a placard with the following words: "This building is unfit for any use; the use or occupation of this building for any purpose is prohibited and unlawful." Any person who occupies or knowingly allows the occupancy of a building or structure so posted shall be guilty of a Class 3 misdemeanor.

(2) If the owner fails to comply with an order to remove or demolish the nonresidential building or structure, the city council may adopt an ordinance ordering the code enforcement official to cause such building or structure to be removed or demolished. No ordinance shall be adopted to require removal or demolition of a nonresidential building or structure until the owner has first been given a reasonable opportunity to bring it into conformity with the minimum standards established in this article. The property or properties shall be described in the ordinance. The ordinance shall be recorded in the office of the register of deeds and shall be indexed in the name of the property owner or owners in the grantor index. Following adoption of an ordinance, the code enforcement official may cause the building or structure to be removed or demolished.

(f) *Action by city council upon abandonment of intent to repair.*

(1) If the city council has adopted an ordinance or the code enforcement official has issued an order requiring the building or structure to be repaired or vacated and closed and the building or structure has been vacated and closed for a period of two years pursuant to the ordinance or order, the city council may make findings that the owner has abandoned the intent and purpose to repair, alter, or improve the building or structure and that the continuation of the building or structure in its vacated and closed status would be inimical to the health, safety, and welfare of the city in that it would continue to deteriorate, would create a fire or safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, or would cause or contribute to blight and the deterioration of property values in the area. Upon such findings, the city council may, after the expiration of the two-year period, enact an ordinance and serve such ordinance on the owner, setting forth the following:

a. If the cost to repair the nonresidential building or structure to bring it into compliance with the minimum standards is less than or equal to 50 percent of its then current value, the ordinance shall

require that the owner either repair or demolish and remove the building or structure within 90 days; or

b. If the cost to repair the nonresidential building or structure to bring it into compliance with the minimum standards exceeds 50 percent of its then current value, the ordinance shall require the owner to demolish and remove the building or structure within 90 days.

In the case of vacant manufacturing facilities or vacant industrial warehouse facilities, the building or structure must have been vacated and closed pursuant to an order or ordinance for a period of five years before the city council may take action under this subsection. The ordinance shall be recorded in the office of the register of deeds in the county wherein the property or properties are located and shall be indexed in the name of the property owner in the grantor index.

(2) If the owner fails to comply with the ordinance, the code enforcement official shall cause the building or structure to be removed or demolished.

(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-38. Appeals from order of code enforcement official to the housing appeals board.

(a) An appeal from any decision of the code enforcement official may be taken by any person aggrieved thereby to the appeals board described in section 11-43. Any appeal from the code enforcement official must be taken within ten days after the rendering of the decision or service of the order by filing with the code enforcement official and with the appeals board a notice of appeal which shall specify the grounds upon which the appeal is based. Upon the filing of any notice of appeal, the code enforcement official shall forthwith transmit to the housing appeals board all the papers constituting the record upon which the decision appealed from was made. When an appeal is from a decision of the code enforcement official refusing to allow the person aggrieved thereby to do any act, the code enforcement official's decision shall remain in force until modified or reversed. When an appeal is from a decision of the code enforcement official requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement until the hearing of the board unless the code enforcement official certifies to the board, after the notice of appeal is made, that, by reason of the fact stated in the certificate, a copy of which shall be furnished to the appellant and other parties in interest, a suspension of this requirement would cause imminent peril to life or property. When the code enforcement official issues such a certificate, the requirement shall not be suspended except by a restraining order which may be granted for due cause shown upon not less than one day's written notice to the code enforcement official by the board or by a court of record upon petition made pursuant to G.S. 160D-1208 and subsection (c) of this section. The board shall fix a reasonable time for the hearing of all appeals and cross appeals, shall give due notices to all parties in interest and shall render its decision within a reasonable time. Any party may appear in person or by agent or attorney and present evidence. The board may reverse, affirm, wholly or partly, or modify the decision or order appealed from and may make such decision and order as in its opinion ought to be made in the matter. All board meetings shall have a quorum present of at least four members, and the vote of at least four members shall be required for a decision on an appeal or cross appeal. The board shall have the power in passing upon appeals and cross appeals where there are practical difficulties or hardships to adopt the application of this chapter to the necessities of the individual case to the end that the general purposes of the law and justice shall be done.

(b) Every decision of the board shall be subject to review by proceedings in the nature of certiorari instituted within 15 days of the service of the decision of the board on the person who filed the appeal.

(c) Any person aggrieved by an order issued by the code enforcement official or a decision rendered by the board shall have the right,

within 30 days after issuance of the order or rendering of the decision, to petition the superior court for a temporary injunction restraining the code enforcement official pending a final disposition of the cause, as provided by G.S. 160D-1208(d).
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-39. Methods of service of complaints and orders.

(a) Complaints or orders issued by the code enforcement official pursuant to this article shall be served upon persons either personally or by registered or certified mail so long as the means used are reasonably designed to achieve actual notice. When service is made by registered or certified mail, a copy of the complaint or order may also be sent by regular mail. Service shall be deemed sufficient if the registered or certified mail is refused, but the regular mail is not returned by the post office within ten days after the mailing. If regular mail is used, a notice of the pending proceedings shall be posted in a conspicuous place on the property affected.

(b) If the identities of any owners or the whereabouts of persons are unknown and cannot be ascertained by the code enforcement official in the exercise of reasonable diligence, and the code enforcement official makes an affidavit to that effect, the serving of the complaint or order upon the owners or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time at which personal service would be required under this article. When service is made by publication, a notice of the pending proceedings shall be posted in a conspicuous place on the property affected.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-40. Lis pendens.

Any complaint and notice of hearing or order issued pursuant to this article may be filed in the notice of lis pendens in the office of the clerk of the superior court. A copy of the complaint containing a notice of hearing or a copy of the order shall be attached to the lis pendens. When the lis pendens is filed with the clerk, it shall be indexed and cross-indexed in accordance with the indexing procedures of G.S. 1-117 and it shall be served on the owners of and parties in interest in the building or structure. From the date and time of indexing the complaint and notice of hearing or order, it shall be binding upon the successors and assigns of the owners of and parties in interest in the building or structure. The code enforcement official may cancel the lis pendens upon his determination that the owner of the building or structure has fully complied with the code enforcement official's order.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-41. Costs a lien on the property.

(a) As provided by G.S. 160D-1129(i), the amount of the cost of any repairs, alterations, or improvements, or vacating and closing, or removal or demolition, caused to be made or done by the code enforcement official pursuant to the provisions of this article shall be a lien against the real property upon which such cost was incurred. Such lien shall be filed, have the same priority, and be collected as the lien for special assessment provided in G.S. ch. 160D, art. 11.

(b) The amount of the cost of repairs, alterations or improvements, or vacating and closing, or removal or demolition expended by the code enforcement official is also a lien on any other real property of the owner located within the city limits except for the owner's primary residence. The additional lien provided in this subsection is inferior to all prior liens and shall be collected as a money judgment.

(c) If the nonresidential building or structure is removed or demolished by the code enforcement official, he shall offer for sale the recoverable materials of the building or structure and any personal property, fixtures, or appurtenances found in or attached to the building or structure and shall credit the proceeds of the sale, if any, against the cost of the removal or demolition, and any balance remaining shall be deposited in the superior court by the code enforcement official, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final

order or decree of the court. Nothing in this article shall be construed to impair or limit in any way the power of the city council to define and declare nuisances and to cause their removal or abatement by summary proceedings or otherwise.
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-42. Alternative remedies.

Enforcement by any remedy provided in this article shall not prevent enforcement by any other remedy provided in this article or in other ordinances or laws. With the exception of subsection 5-37(e)(1), however, a violation of any provision of this article shall not constitute an infraction or misdemeanor punishable under G.S. 14-4.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-43. Conflict with other provisions.

If any provision, standard or requirement of this article is found to be in conflict with any other city ordinance, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the city shall prevail.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-44. Violations; penalty.

(a) It shall be unlawful for the owner of any nonresidential building or structure to fail, neglect or refuse to repair, alter or improve the building or structure, or to vacate and close and remove or demolish, or to vacate and close the building or structure upon order of the code enforcement official duly made and served as provided in this article, within the time specified in such order; and each day that any such failure, neglect or refusal to comply with such order continues shall constitute a separate and distinct offense.

(b) It shall be unlawful for the owner or agent of the owner of any nonresidential building or structure, with respect to which an order has been issued to occupy or permit the occupancy of the building after the time prescribed in such order for its repair, alteration or improvement or its vacation and closing, and removal or demolition, and each day that such occupancy continues after such prescribed time shall constitute a separate and distinct offense.

(c) Any owner who fails to comply with an order of the code enforcement official to repair, alter or improve the building or structure or to vacate and close and remove or demolish the building or structure, or vacate and close the building or structure within the time specified in the order, shall be subject to a civil penalty in the amount of $100.00 for the first day of noncompliance and $100.00 for each day thereafter until the building or structure is brought into compliance with the order. The civil penalty may be recovered by the city in a civil action in the nature of a debt if the owner does not pay the penalty within 30 days after the initial day of noncompliance.
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-45. Ejectment.

If any occupant fails to comply with an order to vacate a nonresidential building or structure, the code enforcement official may file a civil action in the name of the city to remove the occupant. Such action shall be filed in the nature of summary ejectment and conducted in accordance with G.S. 160D-1129(j).
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

DIVISION 3. MAINTENANCE STANDARDS

Sec. 5-46. Maintenance standards in general.

Only electrical, mechanical and plumbing devices and systems which are (i) intended to be used at the time of inspection; (ii) being used at the time of inspection; or (iii) required by law at the time of inspection are subject to the applicable portions of this article.

Upon discovery of any possible violation related to provisions of the North Carolina Fire Code, including fire protection and life-safety systems,

a referral shall be made to the Charlotte Fire Department, fire marshal's office for inspection and enforcement.
(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-47. External maintenance standards.

(a) Exit requirements.

(1) Minimum number of exits shall conform to the requirements of the state building code as applicable.

(2) Every stairway, deck, porch, and balcony, and all appurtenances attached thereto, including without limitation, handrails and guardrails, shall be maintained in a structurally sound condition, in good repair. Each shall be properly anchored and capable of supporting live or dead loads.

(b) Electrical facilities.

(1) No receptacles, ceiling fixtures, or other fixtures shall be hanging loose, unless designed and rated for that purpose.

(2) All switches and receptacles shall be safe.

(3) There shall be no unsafe wiring.

(4) There shall be no drop or extension cords in excess of six feet in length used in place of permanent wiring.

(5) No circuits shall be overloaded.

(6) Fuses shall be sized correctly and not bridged out.

(7) All wiring shall be in accordance with the National Electrical Code.

(8) All breaker boxes, wiring, junction boxes, busways, or other electrical enclosures shall be in good condition and maintained to prevent shock hazard.

(c) Exterior walls.

(1) There shall be no unsafe wall conditions such that the plumbline from the top center of studs falls outside the base plate at any point along the wall.

(2) Maximum spacing for studding, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(3) Studs or other structural members shall be structurally sound and not likely to cause structural weakness in the future.

(4) There shall be no broken or cracked structural members.

(5) All siding shall be reasonably weathertight, with no holes or excessive cracks or decayed boards, or siding material.

(6) There shall be no loose siding.

(7) There shall be no deterioration because of lack of preventative maintenance consisting of painting, waterproofing and repair.

(8) All door fenestration shall be in operable condition.

(d) Roofs.

(1) All structural members shall be maintained free from deterioration, and shall be capable of safely supporting the dead and live loads, including rafters and ceiling, or floor joists.

(2) The roof and flashing shall be sound, tight and not have defects which admit water or rain. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior of the structure. Roof drains, gutters, scuppers, and downspouts shall be maintained in good repair, and free from obstructions. Roof water shall not be discharged in a manner that creates a health or safety hazard.

(e) Porches, vestibules and external covered areas.

(1) The floor, ceiling, and roof shall be equal to requirements set forth in this article, except sills, joists and floors need not be level if providing drainage of floors; floors need not be weathertight.

(2) Every stairway, deck, porch and balcony, and all appurtenances attached thereto,

including, without limitation, handrails and guardrails, shall be maintained in a structurally sound condition, in good repair. Each shall be properly anchored, and capable of supporting imposed loads.

(f) Windows, where provided, including frames, sash components, and glazing shall be maintained in good condition, with no broken, cracked, or missing glazing.

(g) Property maintenance.

(1) Building structure. Exterior wood surfaces not inherently resistant to deterioration shall be treated with a protective coating of paint or other suitable preservative with sufficient frequency to prevent deterioration.

(2) Open areas. There shall be no heavy undergrowth or accumulation of plant growth which is noxious or detrimental to health, or because it is overgrown, may provide harborage for criminal activity.

(3) Infestation. Grounds, buildings and structures shall be maintained free of infestation by rodents, insects and other pests.

(4) Chimneys and towers. All chimneys, cooling towers, smoke stacks and similar appurtenances shall be maintained structurally safe and sound, and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather coating materials, such as paint or similar surface treatment.

(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-48. Interior maintenance standards.

In general. The interior of a structure, including wall and ceiling coverings, and equipment therein shall be maintained in good order, shall be structurally sound, and be in a sanitary condition. Occupants shall keep that part of the building or structure which they occupy or control in a clean and sanitary condition.

(a) *Exit requirements.* Minimum number of exits shall conform to the requirements of the state building code as applicable.

(b) *Plumbing systems and facilities.*

(1) In general, all fixtures and piping shall be properly installed and maintained in working order, and shall be kept free from obstructions, leaks and defects. All plumbing shall be capable of performing the function for which such plumbing fixtures are designed. All plumbing fixtures shall be maintained in a safe, sanitary and functional condition.

(2) Plumbing fixtures shall have adequate clearance for usage and cleaning.

(3) Where it is found that a plumbing system in a building or structure creates an unsafe condition that is hazardous to the occupants, or by reason of inadequate service, inadequate venting, cross connection, backsiphonage, improper installation deterioration or damage, or for similar reasons, the code enforcement official shall require the defects to be corrected to eliminate the unsafe condition.

(c) *Heating facilities.*

(1) Building shall be weatherproof.

(2) Heating systems shall be maintained in good order and repair and shall be of sufficient capacity so as to heat all occupied areas in accordance with the state building code.

(3) All safety controls and all clearances to combustible materials for electrical equipment which produces heat shall be maintained in effective operation.

(4) Other heating facilities, where provided, shall meet the requirements of the state building code.

(5) All electric, gas and heating oil heating equipment installed on the property shall be listed by Underwriters' Laboratories, Inc. or American Gas Association and installed in accordance with the provisions of the state building code.

(6) All mechanical appliances, including ventilation and air conditioning or cooling systems, or appliances shall be properly installed and maintained in a safe working condition, and shall be capable of performing the intended function.

(7) All fuel burning equipment or appliances shall be connected to an approved chimney or vent. Fuel burning equipment and appliances labeled for unvented use are an exception to this requirement.

(8) All required clearances to combustible materials shall be maintained.

(9) All safety controls for fuel burning equipment shall be maintained in effective operation.

(d) *Electrical facilities.*

(1) No receptacles, ceiling fixtures, or other fixtures shall be hanging loose unless designed and rated for that purpose.

(2) All switches and receptacles shall be safe.

(3) There shall be no unsafe wiring.

(4) There shall be no drop or extension cords in excess of six feet in length used in place of permanent wiring.

(5) No circuits shall be overloaded.

(6) Fuses shall be sized correctly and not bridged out.

(7) All wiring shall be in accordance with the National Electrical Code.

(e) *Structural standards.*

(1) *Foundation.*

a. Beneath the building or structure there shall be firm ground, which is reasonably dry, properly drained and no water shall be running under the building or structure.

b. There shall be sound footings and adequate bearing.

c. There shall be sound piers and no loose mortar or masonry.

d. There shall be no piers in which the plumbline from the top center falls outside the middle one-third of the pier base.

e. There shall be no isolated masonry piers exceeding in height ten times the least dimension of the pier.

f. There shall be no wood stiff-knee piers.

(2) *Floors.*

a. Flooring shall be weathertight without holes or excessive cracks which permit air to penetrate rooms.

b. Flooring or floor covering shall be reasonably smooth and not decayed, fire damaged or worn through.

c. There shall be no loose flooring.

d. Floors shall be reasonably level.

e. All structural members shall be maintained free from deterioration, and shall be capable of safely supporting the dead and live loads.

(3) *Interior load bearing walls.*

a. There shall be no unsafe wall conditions such that the plumbline from the top center studs falls outside the base plate at any point along the wall.

b. Maximum spacing for studding, providing the studs show signs of being weak or overloaded, shall comply with the requirements of the state building code.

c. Studs or other structural members, including posts and columns, shall be structurally sound and not likely to cause structural weaknesses in the future.

d. There shall be no broken or cracked structural members.

(4) *Interior porches, landings and vestibules.*

a. The floor and ceiling shall be equal to the requirements set forth in this article.

b. Every stairway, deck, porch and balcony and all appurtenances attached thereto, including, without limitation, handrails and guardrails, shall be maintained in a structurally sound condition and in good repair.

c. Any interior porch, landing or vestibule shall be properly anchored and capable of supporting live and dead loads.

(Ord. No. 4274, § 1, 9-28-2009; Ord. No. 73, § 1(Exh. A), 5-24-2021)

Sec. 5-49. Property maintenance standards.

(a) *Building structure.* Storage of combustible materials is prohibited unless the building or structure is designed for that purpose.

(b) *Open areas.*

(1) Surface and subsurface water shall be appropriately drained to protect buildings and structures and to prevent development of stagnant pools.

(2) Fences, sheds, signs, outbuildings, and other accessory buildings shall be maintained in a safe and functional condition or removed or demolished.

(3) Yards, courts, parking lots, and driveways shall be kept clean and free of physical hazards, garbage, junk, junked vehicles, vehicle parts and other similar material.

(4) There shall be no heavy undergrowth or accumulation of plant growth which is noxious or detrimental to health, or because it is overgrown, may provide harborage for criminal activity.

(5) There shall be adequate lighting to prevent harborage for criminal activity.

(c) *Infestation.* Grounds, buildings and structures shall be maintained free of infestation by rodents, insects and other pests.

(d) *Garbage.* There shall be adequate sanitary facilities and methods for the storage, handling and disposal of garbage generated on or by the property.

(e) *Storm drainage.* Drainage of paved areas, yards, courts and other open areas on the property shall not be discharged in a manner that creates a health or safety hazard.
(Ord. No. 4274, § 1, 9-28-2009)

Sec. 5-50. Vacant buildings or structures.

(a) The interior maintenance standards set forth in section 5-48 shall not apply to vacant nonresidential buildings or structures unless one or more of the following serious conditions is present on the property:

(1) Overall conditions present a serious health or safety hazard.

(2) The building or structure is a breeding area for rodents or insects.

(3) The building or structure presents a fire hazard.

(4) The building or structure is structurally unsafe and presents a threat to the safety of code enforcement personnel, fire department personnel and law enforcement officers or members of the general public.

(5) The building or structure is frequented by vagrants.

(6) The building or structure is not properly secured to prevent unauthorized access.

(b) If the code enforcement official orders a nonresidential building or structure vacated and closed pursuant to this article, the owner shall board and secure such building or structure in accordance with the guidelines for boarding and securing a building or structure provided by the code enforcement official.
(Ord. No. 4274, § 1, 9-28-2009)

Chapter 6

BUSINESSES AND TRADES*

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*__Cross references—__Licenses, ch. 13; sidewalk dining, § 19-271 et seq.; vehicles for hire, ch. 22.

__State law references—__License taxes generally, G.S. 105-33 et seq.; authority to regulate and license businesses, trades, etc., G.S. 160A-194; privilege license taxes on trades, professions, etc., G.S. 160A-211.

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ARTICLE II. CABLE COMMUNICATIONS*

DIVISION 1. GENERALLY

Sec. 6-26. Purpose.

(a) The city finds that the development of cable television and communications systems has the potential of having great benefit and impact upon the people of the city. Because of the complex and rapidly changing technology associated with cable television, the city further finds that the public convenience, safety and general welfare can best be served by establishing certain regulatory powers, which may be vested in the city or such persons as the city shall designate.

(b) Further, it is recognized that cable communications systems have the capacity to provide not only entertainment and information services to the city's residents but can provide a variety of broadband, interactive communications services to institutions and individuals.

(c) For these purposes, the following goals underlie the regulations contained in this article:

(1) Where economically feasible, communications services should be available to the maximum number of city residents, as provided for in this article.

(2) The cable television systems should be capable of accommodating both the present and reasonably foreseeable future communications needs of the city.

(3) The cable television systems should be maintained as necessary during the franchise term so that the new facilities, if any, may be integrated to the maximum extent possible with existing facilities.

(4) The communications systems authorized by this article shall be responsive to the needs and interests of the local community.

(5) The public, educational and governmental needs for reasonable access to the cable system shall be met.

(Code 1985, § 6-52; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-27. Title.

This article shall be known and may be cited as the "Charlotte Cable Communications Regulatory Ordinance."

(Code 1985, § 6-53(a); Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-28. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning; words not defined shall be given their common and ordinary meanings:

Additional services means programming or services for which an additional charge is made beyond the charge for basic subscriber services, including, but not limited to, movies, concerts, variety acts, sporting events, pay-per-view programs, interactive services, and any other service utilizing any facility or equipment of a cable television system operating pursuant to a franchise granted under this article.

Basic subscriber radio service means such audio services as the retransmission of broadcast FM radio signals, shortwave, weather, news, time and other similar audio services and the transmission of cablecast (nonbroadcast) radio signals as permitted by the Federal Communications Commission.

Basic subscriber television services means all subscriber services provided by the grantee in one or more service tiers, including the delivery of broadcast signals; public, educational and government access channels; and local origination channels, covered by the regular monthly

*__State law references—__Authority to grant public enterprise franchises, G.S. 160-319; cable television system a public enterprise, G.S. 160A-311(7).

charge paid by all subscribers to a particular service tier including subscriber terminal charges and related deposits.

Cable communications system, cable television system and *system* mean a facility consisting of a set of closed transmission paths and associated signal generation, reception and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within a community; but such term does not include the following:

(1) A facility that serves only to retransmit the television signals of one or more television broadcast stations;

(2) A facility that serves only subscribers in one or more multiple-unit dwellings under common ownership, control or management, unless such facility uses any public rights-of-way;

(3) A facility of a common carrier which is subject, in whole or in part, to the provisions of title II of the cable act, except that such facility shall be considered a cable system to the extent such facility is used in the transmission of video programming directly to subscribers; or

(4) Any facilities of any electric utility used solely for operating its electric utility systems.

Channel means a six-megahertz (MHz) frequency band which is capable of carrying either one standard video signal; a number of audio, digital or other nonvideo signals; or some combination of signals.

Closed-circuit service and *institutional service* mean such video, audio, data and other services provided to institutional users on an individual application basis. These may include, but are not limited to, one-way video, two-way video, audio or digital signals among institutions to residential subscribers.

Commence operation means that time and date when operation of the cable communications system is considered to have commenced, which shall be when the system is fully constructed.

Commercial subscriber means a subscriber who receives a service in a place of business where the service may be utilized in connection with a business, trade or profession.

Communications policy act and *cable act* mean the Cable Communications Policy Act of 1984 (Public Law 98-549, 47 USC 521 (Supp.)) as it may be amended or succeeded.

Converter means an electronic device which converts signals to a frequency not susceptible to interference within the television receiver of a subscriber, and any channel selector which permits a subscriber to view all signals delivered at designated converter dial locations at the set or by remote control.

Dedicated institutional access channels means broadband communications channels dedicated to serving city, county, state or federal governmental agencies; educational institutions; health care institutions; or other nonprofit and profit-making organizations that may be qualified by the council.

Discrete channel means a channel which can only be received by the person and/or institution intended to receive signals on such channel.

Drop means a coaxial connection from feeder cable to the subscriber/user television set, radio or other terminal.

Educational channel and *educational access channel* mean any channel where educational programs are the only designated use.

Fair market value means the price that a willing buyer would pay to a willing seller for a going concern.

FCC means the Federal Communications Commission or any legally appointed or elected successor.

Franchise means the nonexclusive rights, granted pursuant to this article, to construct, operate and maintain a cable communications system along the public ways within all or a specified area in the city. Any such authoriza-

tion, in whatever form granted, shall not mean or include any license or permit required for the privilege of transacting and carrying on a business within the city, as required by other sections of this Code or ordinances and laws of the city.

Franchise agreement means a contract entered into voluntarily by the city and the grantee, containing the specific provisions of the franchise granted including applicable referenced specifications, franchise proposals, applications and other related material.

Franchise area means the entire city, or portions thereof, for which a franchise is granted under the authority of this article. If not otherwise stated in the franchise agreement, the franchise area shall be the corporate limits, including all territory thereafter annexed to the city.

Franchise fee means an amount, as specified by the city, of the grantee's gross receipts from the operation of the system pursuant to the franchise agreement.

Franchisee and *grantee* mean the natural person, partnership, domestic and foreign corporation, association, joint venture, or organization of any kind which has been legally granted a franchise by the city, and its lawful successor, transferee or assignee.

Government channel and *government access channel* mean any channel specifically designated or dedicated for government use.

Grantor means the city as represented by the city council acting within the scope of its jurisdiction.

Gross annual revenues means all revenue received directly or indirectly by the grantee, its affiliates, subsidiaries and any person in which the grantee has a financial interest derived from the operation of the system under this article, or as further defined in a franchise agreement.

Installation means the connection of the system from the feeder cable to subscribers' terminals.

Leased access channel and *commercial leased channel* mean any channel designated or dedicated for use by persons unaffiliated with the grantee in accordance with the cable act.

Monitoring means observing a communications signal, or the absence of a signal, where the observer is not a party to the communications, whether the signal is observed by visual or electronic means, for any purpose whatsoever.

Person means an individual, partnership, association, organization, corporation or any lawful successor, or transferee of such individual, partnership, association, organization or corporation.

Plant mile means a linear mile of strand-bearing cable as measured on the street or easement from pole to pole or pedestal to pedestal.

Programmer means any person who produces or otherwise provides program material or information for transmission by video, audio, digital or other signals, either live or from recorded traces or other storage media, to users or subscribers by means of the cable communications system.

Public access channel and *community access channel* mean any channel designated or dedicated for use by the general public or noncommercial organizations which is made available for use without charge on a first come, first served, nondiscriminatory basis.

Public property means any real property owned by the city, other than a street.

Public way and *public right-of-way* mean the surface, the airspace above the surface, and the area below the surface of any public street, highway, lane, path, alley, sidewalk, boulevard, drive, bridge, tunnel, park, parkway, waterway, utility easement or other public right-of-way held by the city, which shall entitle the city and the grantee to the use thereof for the purpose of installing and maintaining a cable television system. No reference in this article or in any franchise to the "public way" shall be deemed to be a representation or guarantee by the city that its title to any property is sufficient to permit its use for such purpose, and the grantee shall, by

its use of such term, be deemed to gain only such rights to use property in the city as the city may have the undisputed right and power to give.

Reasonable notice means written notice addressed to either the city or the grantee at its respective principal office within the city or such other office as the party has designated to the other as the address to which notice shall be transmitted to it, which notice shall be certified and postmarked not less than seven days prior to that day in which the party giving such notice shall commence any action which requires the giving of notice. In computing the seven days, holidays recognized by the city shall be excluded.

Resident means any person residing in the city, as otherwise defined by applicable law.

Residential subscriber means a subscriber who receives a service in an individual dwelling unit where the service is not to be utilized in connection with a business, trade or profession.

Sale includes any sale, exchange, barter or offer for sale.

School means any public, private or nonprofit educational institution, including primary and secondary schools, colleges and universities.

Service area means the entire geographic area within the franchise territory.

Street includes each of the following, which have been dedicated to the public or may be dedicated to the public and maintained under public authority or by others and located within the city limits: streets, roadways, highways, avenues, lanes, alleys, sidewalks, easements, rights-of-way and similar public ways and extensions and additions thereto, together with such other public property and areas that the city shall permit to be included within the definition of the term "street" from time to time.

Subscriber means any person who elects to subscribe to, for any purpose, a service provided by the grantee by means of or in connection with a cable communications system.

System facilities means the cable communications system constructed for use within the city, without limitation, the head-ends, antennas, cables, wires, lines, towers, amplifiers, converters, health and property security systems, equipment or facilities located within the corporate limits designed, constructed or wired for the purpose of producing, receiving, amplifying and distributing, by coaxial cable, fiber optics, microwave or other means, audio and visual radio, television and electronic signals to and from subscribers in the city, and any other equipment or facilities located within the corporate limits intended for the use of the system; provided, however, such system facilities exclude buildings, contracts, facilities and equipment where primary use is for providing service to other system facilities located outside the city limits.

Transfer means the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, except publicly traded issue, not in control of the grantee, of five percent or more at one time of the ownership or controlling interest in the system, or 20 percent cumulatively over the term of the franchise of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert.

Trunk line means the major distribution cable used in cable communications, which divides into feeder lines which are tapped for service to subscribers.

Upstream signal means a signal originating from a terminal to another point in the cable television system, including video, audio or digital signals for either programs or other uses such as security alert services, etc.

User means a person utilizing a channel or equipment and facilities for the purpose of production and/or transmission of material, as contrasted with receipt thereof in a subscriber capacity.
(Code 1985, § 6-54; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Cross reference—Definitions generally, § 1-2.

Secs. 6-29—6-50. Reserved.

DIVISION 2. GRANT OF FRANCHISE

Sec. 6-51. Scope of grant; territory.

(a) If the city shall grant to the grantee a nonexclusive, revocable-for-cause, as provided in this article, franchise to construct, operate and maintain a cable communications system within the city, the franchise shall constitute both a right and an obligation to provide the services of a cable communications system, as regulated by this article and the franchise agreement. The franchise agreement shall include by reference those provisions of the grantee's application for a franchise that are finally negotiated and agreed to by the city and grantee.

(b) The franchise shall be granted under the terms and conditions contained in this article, consistent with the Charter and/or other applicable statutory requirements. If a conflict occurs between the terms and conditions of this article, the franchise agreement, or the terms and conditions on which the city may grant a franchise, the Charter and/or statutory requirements shall control.

(c) Any franchise granted by the city is hereby made subject to the applicable general ordinance provisions of the city in effect on the effective date of the ordinance from which this chapter derives and made effective after such effective date. Nothing in the franchise shall be deemed to waive the requirements of the various city codes, ordinances and sections of this Code regarding permits, fees to be paid or manner of construction.

(d) The franchise territory shall be the entire city, or portions thereof, for which a franchise is granted under authority of this article. The service area shall be the entire territory defined in the franchise agreement.
(Code 1985, § 6-55; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-52. Use of public streets and ways; city and grantee facilities.

(a) *Public streets and ways.* For the purpose of operating and maintaining a cable communications system in the city, the grantee may erect, install, construct, repair, replace, reconstruct and/or retain in, on, over, under, upon, across and along the public streets and ways within the city such wires, cables, conductors, ducts, conduits, vaults, manholes, amplifiers, appliances, pedestals, attachments and other property and equipment as are necessary to the operation of the cable communications system; provided, however, that the grantee complies with all design, construction, safety and performance provisions contained in this article, the franchise agreement and other applicable regulations.

(b) *City facilities.* At the city's option, the city may require a grantee to utilize city-owned conduit or other facilities for any portion of its cable communications system which is being newly constructed or rebuilt. The consideration, if any, for the use of city conduits or other facilities shall be as stated in the franchise agreement. A reasonable fee, if any, for the use of city facilities established in the franchise agreement may be adjusted at the periodic performance evaluations.

(c) *Grantee facilities.* No poles shall be erected by the grantee without prior approval of the city with regard to location, height, type and any other pertinent aspect. However, no location of any pole of the grantee shall be a vested right, and such poles shall be removed or modified by the grantee at its own expense whenever the city determines that the public convenience would be enhanced thereby. The grantee shall utilize existing poles and conduits, where possible. The city shall have the right, during the life of the franchise, to install and maintain upon the poles owned by the grantee, at fair market value, any wire and pole fixtures that do not unreasonably interfere with the cable system operations of the grantee.
(Code 1985, § 6-56; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-53. Franchise required; term; acceptance; nonexclusive rights; applicability of state law.

(a) *Required.* No cable communications system shall be allowed to occupy or use the city streets or be allowed to operate without a franchise.

(b) *Term.* The term of any franchise granted pursuant to this article shall be 15 years, unless otherwise stated in the franchise agreement.

(c) *Acceptance.* Acceptance of the franchise shall be in accordance with the following:

(1) Following approval by the city, any franchise granted pursuant to this article, and the rights, privileges and authority granted thereunder, shall take effect and be in force from and after the date on which the grantee accepts, signs and affixes its corporate seal to the franchise agreement.

(2) By accepting the franchise, the grantee agrees to be bound by all the terms and conditions contained in this article and the franchise. The grantee also agrees to provide all services specifically set forth in its application to provide cable television service within the confines of the city, and by its acceptance of the franchise the grantee specifically acknowledges and agrees that its application is thereby attached and incorporated by reference and made a part of the franchise.

(3) By accepting the franchise, the grantee acknowledges that it does so relying upon its own investigation and understanding of the power and authority of the city in connection with the system and the franchise.

(4) By accepting the franchise, the grantee acknowledges that it has not been induced to enter into the franchise by any understanding or promise or other statement not expressed therein, whether oral or written, concerning any term or condition of the franchise, regardless of whether such statement was made by or on behalf of the city.

(5) By accepting the franchise, the grantee acknowledges that it has carefully read the terms and conditions of the franchise agreement.

(d) *Nonexclusive rights.* Any franchise granted under this article shall be nonexclusive. The city specifically reserves the right to grant at any time such additional franchises containing substantially equivalent standards, terms and conditions to those previously granted under this article for a cable communications system as it deems appropriate.

(e) *Time is of the essence.* Whenever the franchise agreement shall set forth any time for an act to be performed by or on behalf of either party, such time shall be deemed of the essence, and any failure of the party to perform within the time allotted shall always be sufficient grounds for the other party to invoke an appropriate penalty.

(f) *Applicability of state law.* In any controversy or dispute under this article, the law of the state shall apply to the extent such law has not been superseded or preempted.
(Code 1985, § 6-57; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-54. Transfer of ownership or control.

(a) Any franchise granted under this article cannot in any event be sold, transferred, leased, assigned or disposed of, including, but not limited to, by force or voluntary sale, receivership or other means, without the prior consent of the city, and then under such reasonable conditions as the city may establish.

(b) The grantee shall promptly notify the city of any actual or proposed change in, transfer of, or acquisition by any other party of control of the grantee. The word "control" as used in this section is not limited to major stockholders but includes actual working control in whatever manner exercised. A rebuttable presumption that a transfer of control has occurred shall arise upon the disposal by the grantee, directly or indirectly, by gift, assignment, voluntary sale, merger, consolidation or otherwise, of five percent or more at one time of the ownership or controlling interest in the system, or 20 percent cumulatively over the term of the franchise, of such interests to a corporation, partnership, limited partnership, trust or association, or person or group of persons acting in concert.

(c) Every change, transfer or acquisition of control, as defined in subsection (b) of this section, of the grantee shall make the franchise subject to cancellation unless and until the city shall have consented thereto, which consent will not be unreasonably withheld. For the purpose of determining whether it shall consent to such change, transfer or acquisition of control, the city may inquire into the legal, financial, character, technical and other public-interest qualifications of the prospective controlling party, and the grantee shall assist the city in any such inquiry. Failure to provide all information reasonably requested by the city as part of the inquiry shall be grounds for denial of the proposed change, transfer or acquisition of control.

(d) The city agrees that any financial institution having a pledge of the franchise or its assets for the advancement of money for the construction and/or operation of the franchise shall have the right to notify the city that it, or its designees satisfactory to the city, will take control and operate the cable television system. Further, the financial institution shall also submit a plan for such operation that will ensure continued service and compliance with all franchise obligations during the term the financial institution exercises control over the system. The financial institution shall not exercise control over the system for a period exceeding one year, unless extended by the city at its discretion, and during such period of time it shall have the right to petition for transfer of the franchise to another grantee. If the city finds that such transfer, after considering the legal, financial, character, technical and other public-interest qualifications of the applicant, is satisfactory, the city will transfer and assign the rights and obligations of such franchise as are in the public interest. The consent of the city to such transfer shall not be unreasonably withheld.

(e) The consent or approval of the city to any transfer of the grantee shall not constitute a waiver or release of the rights of the city in and to the streets, and any transfer shall, by its terms, be expressly subordinate to the terms and conditions of this article and the franchise agreement.

(f) In the absence of extraordinary circumstances, the city will not approve any transfer or assignment of the franchise prior to completion of construction of the proposed system.

(g) Any approval by the city of a transfer of ownership or control shall be contingent upon the prospective controlling party becoming a signatory to the franchise agreement, as provided in section 6-53(c).

(h) The city reserves the right of first purchase in any sale, transfer, lease, assignment or disposal of the system at a cost at least equal to a bona fide offer otherwise acceptable to the grantee.
(Code 1985, § 6-58; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-55. Renewal; police powers.

(a) *Granting or denial of renewal.* Upon completion of the term of any franchise granted under this article, the city may grant or deny renewal of the franchise of the grantee in accordance with the cable act. The grantee shall have no property right in the franchise upon the completion of the franchise term.

(b) *Police powers.* The effect of the city's police powers are as follows:

(1) In accepting the franchise, the grantee acknowledges that its rights under this article are subject to the police powers of the city to adopt and enforce reasonable general ordinances necessary to the safety and welfare of the public, and it agrees to comply with all applicable general laws and ordinances enacted by the city pursuant to such power.

(2) Any conflict between the provisions of this article or the franchise and any other lawful exercise of the city's police powers shall be resolved in favor of the city, except that any such exercise that is not of general application in the jurisdiction, or that applies exclusively to the grantee or cable communications systems, which contains provisions inconsistent with this article shall prevail only if, upon such exercise, the city finds an emergency exists constituting a danger

to health, safety, property or general welfare and such exercise is mandated by law.

(Code 1985, § 6-59; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-56. Fees; access support and funding.

(a) *Franchise fees.* Franchise fees for a cable communications system shall be paid in accordance with the following:

(1) A grantee of any franchise under this article shall pay to the city an annual franchise fee in an amount as designated in the franchise agreement. The quarterly franchise payment shall commence as of the effective date of the franchise. The city shall be furnished a statement of the payment by a certified public accountant, reflecting the total amounts of annual gross revenues and such charges and computations for the period covered by the payment.

(2) This payment shall be in addition to any other tax or payment owed to the city or other taxing jurisdiction by the grantee.

(3) No acceptance of any payment by the city shall be construed as a release or as an accord and satisfaction of any claim the city may have for further or additional sums payable as a franchise fee under this article.

(4) If any undisputed franchise payment is not made on or before the dates specified in this subsection, the grantee shall pay an interest charge, computed from such due date, at the annual rate equal to the commercial prime interest rate in effect upon the due date.

(5) The franchise fee and any other cost or damages assessed shall be payable quarterly to the city finance office, with a check made payable to the city. Payment date is the last day of the month following the date in which payment is due.

(6) The city shall have the right upon reasonable notice to inspect the grantee's income records and the right at the city's expense to audit and to recompute any amounts determined to be payable under this article. Any undisputed additional amount due to the city as a result of the audit shall be paid within 30 days following written notice to the grantee by the city, which notice shall include a copy of the audit report, provided that the grantee shall not be required to pay an interest charge in accordance with subsection (a)(4) of this section in such an event.

(b) *Access support.* The grantee shall provide funding for the support of access programming as per the terms of its cable television franchise agreement with the city.

(Code 1985, § 6-60; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-57. Forfeiture or revocation.

(a) The council reserves the right to revoke any franchise granted under this article and rescind all rights and privileges associated with the franchise in the following circumstances, each of which shall represent a default and breach under this article or the franchise agreement:

(1) If the grantee shall default in the performance of any of the material obligations under this article or under such documents, contracts and other terms and provisions entered into by and between the city and the grantee.

(2) If the grantee shall fail to provide or maintain in full force and effect the liability and indemnification coverage or the performance bond as required in this article pursuant to the franchise agreement.

(3) If the grantee's construction schedule is delayed later than the schedule contained in the franchise agreement, if any, or beyond any extended date set by the city council.

(4) If the grantee becomes insolvent or unable to pay its debts or is adjudged bankrupt.

(5) If the grantee fails to restore service after 96 consecutive hours of interrupted systemwide service, except when such service interruption is caused by forces beyond the grantee's control, including but not limited to subscribers, or when approval of such interruption is obtained from the city manager or his designee.

(6) If there has been material misrepresentation of fact in the application for or negotiation of the franchise or any extension or renewal thereof.

(b) The grantee shall not be declared at fault or be subject to any sanction under any section of this article in any case in which performance of any such section is prevented for reasons beyond the grantee's control. A fault shall not be deemed to be beyond the grantee's control if committed by a corporation or other business entity in which the grantee holds a controlling interest, whether held directly or indirectly.

(c) The procedure prior to revocation shall be as follows:

(1) The city shall make written demand that the grantee comply with any such requirement, limitation, term, condition, rule or regulation or correct any action deemed cause for revocation. If the failure, refusal or neglect of the grantee continues for a period of 30 days following such written demand, the city shall place its request for revocation of the franchise upon a regular council meeting agenda. The city shall cause to be served upon the grantee, at least seven days prior to the date of such council meeting, a written notice of this intent to request such revocation and the time and place of the meeting, notice of which shall be published by the city clerk at least twice, seven and 14 days, respectively, before such meeting, in a newspaper of general circulation within the city.

(2) The council shall hear any persons interested therein, including the grantee, and shall determine in its discretion whether or not any failure, refusal or neglect by the grantee was with just cause.

(3) If such failure, refusal or neglect by the grantee was with just cause, as defined by the city, the council shall direct the grantee to comply within such time and manner and upon such terms and conditions as are reasonable.

(4) If the council shall determine such failure, refusal or neglect by the grantee was without just cause, the council shall, by resolution, declare that the franchise of the grantee shall be revoked and bond shall be forfeited, unless there is compliance by the grantee within 90 days.

(d) If a franchise is revoked or otherwise terminated, the city may, in its sole discretion, do any of the following:

(1) Purchase the system under the procedures set forth in section 6-61 of this article.

(2) Effect a transfer of ownership of the system to another party for good and sufficient consideration, which shall be an amount at least equal to the fair market value of the system under the original grantee's operation, in accordance with the cable act.

(3) Order the removal of all system facilities from the city within a reasonable period of time.

(e) In removing its system facilities, the grantee shall refill, at its own expense, any excavation that shall be made by it and shall leave all public ways and places in as good a condition, normal wear and tear excepted, as was prevailing prior to the grantee's removal of system facilities. The city shall inspect and approve the condition of the public ways and public places and cables, wires, attachments and poles after removal. The liability, indemnity, insurance and performance bond as provided in this article shall continue in full force and effect during the period of removal and until full compliance by the grantee with the terms and conditions of this subsection, this article and the franchise agreement is reached.

(f) If the grantee fails to complete any work required by section 6-52(a), 6-52(c) and/or subsection (e) of this section or any other work required by city law or ordinance, and upon reasonable notice to the grantee, the city may cause such work to be done, and the grantee shall reimburse the city the reasonable costs thereof within 30 days after verification of an itemized list of such costs. The city shall be permitted to seek legal and equitable relief to enforce this subsection.

(g) Upon either the expiration or revocation of a franchise, the city may contract with the grantee to continue to operate the system for a period of six months from the date of such expiration or revocation, or until such time as is mutually agreed upon. The grantee shall, as a subcontractor of the city, continue to operate the cable communications system under the applicable terms and conditions of this article. The city shall be permitted to seek legal and equitable relief to enforce this subsection.
(Code 1985, § 6-61; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-58. Receivership and foreclosure.

(a) The cable communications system franchise shall, at the option of the city, cease and terminate 120 days after the appointment of a receiver or trustee to take over and conduct the business of the grantee, whether in a receivership, reorganization, bankruptcy or other action or proceeding, unless such receivership or trusteeship shall have been vacated prior to the expiration of the 120 days or unless such receivers or trustees:

(1) Shall have, within 120 days after their election or appointment, fully complied with all the terms of this article and the franchise granted pursuant to this article, and the receivers or trustees, within the 120 days, shall have remedied all defaults under the franchise agreement; and

(2) Shall, within the 120 days, execute an agreement, duly approved by the court having jurisdiction of the premises, whereby such receivers or trustees assume and agree to be bound by each and every term, provision and limitation of this article and the franchise agreement.

(b) If a foreclosure or other judicial sale of the plant, property and equipment of the grantee or any part thereof occurs, including or excluding the franchise, the city may serve notice of termination upon the grantee and the successful bidder at such sale, in which event the franchise and all rights and privileges of the grantee granted under this article shall cease and terminate 30 days after service of such notice unless:

(1) The city shall have approved the transfer of the franchise in the manner this article provides; and

(2) Such successful bidder shall have covenanted and agreed with the city to assume and be bound by all the terms and conditions of the franchise.
(Code 1985, § 6-62; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-59. Equal opportunity.

(a) The grantee under this article shall be an equal opportunity/affirmative action employer, adhering to all federal, state or municipal laws and regulations related thereto.

(b) The grantee shall establish and maintain equal opportunity in employment, and no person shall be discriminated against in employment by the grantee because of race, religion, color, sex, national origin, age, physical disability or marital status.

(c) The grantee's affirmative action plan shall provide that the grantee shall utilize best efforts to achieve a representative work force so that, within three years from the effective date of the granted franchise and throughout the franchise term, the percentage of each minority/sex group within each level of employment reasonably approximates or is equal to percentage levels reflective of those of the city's population. The term "each level of employment," as used in this subsection, includes the following specific job categories as defined by the Cable Communications Policy Act of 1984:

(1) Officials and managers;

(2) Professionals;

(3) Technicians;

(4) Salespersons;

(5) Office and clerical personnel;

(6) Skilled craftspersons;

(7) Semiskilled operatives;

(8) Unskilled laborers; and

(9) Service workers.

(d) Implementation, administration and review of all equal employment opportunity (EEO) and affirmative action policies and programs shall be the direct responsibility of the chief executive officer of the cable communications system. All officers, executives, managers, and administrative and supervisory personnel of the grantee shall be directed to participate in the grantee's affirmative action efforts.

(e) Any significant subcontractor of the grantee or a parent, subsidiary or affiliate of the grantee which does not already have an affirmative action plan which would cover its activities in the city shall submit to the city a plan for its operations on behalf of the grantee, consistent with the spirit of this section.

(f) The grantee shall prepare and maintain records of promotions, demotions, terminations and transfers.

(g) The grantee agrees that if the city establishes an affirmative action goal for the handicapped, the grantee shall make reasonable and good-faith efforts to achieve an appropriate goal.

(h) The grantee shall make a good-faith effort to construct the office and studio facilities in the city so that they are accessible to the disabled.

(i) The grantee shall make a good-faith effort to utilize minority/women business enterprises in construction and purchase contracts and shall prepare an annual report to the city on these efforts.
(Code 1985, § 6-63; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-60. Local office; enforcement.

(a) *Local office.* The grantee under this article shall maintain within the city a local office and telephone number for the conduct of business related to the franchise during normal business hours. The grantee shall be required to advise the city of such address and telephone number and any changes thereof.

(b) *Failure of city to enforce franchise.* The grantee shall not be excused from complying with any of the terms and conditions of this article or the granted franchise by any failure of the city upon any one or more occasions to insist upon or to seek compliance with any such terms or conditions.
(Code 1985, § 6-64; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-61. Rights reserved to grantor.

(a) The city shall have the right to purchase the cable communications system as follows:

(1) If the city revokes the franchise pursuant to this article, or at the normal expiration of the franchise term, the city shall have the right, directly or as an intermediary, to purchase the cable communications system. The purchase price shall be based upon the value of the system determined pursuant to this section. In no event shall the city, when acting as an intermediary or effecting the transfer of ownership of the system to another person, be paid any consideration by any party for such activities.

(2) The date of valuation shall be no earlier than the day following the date of expiration or revocation and no later than the date the city makes an appropriate offer for the system.

(3) The value of the cable system shall be determined by a qualified appraiser appointed by the city and in accordance with the cable act. The appraiser shall determine the worth of the assets as follows:

a. If a franchise held by the grantee is revoked for cause and the city

acquires ownership of the system or effects a transfer of ownership of the system to another person, any such acquisition shall be at an equitable price; or

b. If a renewal of a franchise held by the grantee is denied and the city acquires ownership of the system or effects a transfer of ownership of the system to another person, any such acquisition or transfer shall be at fair market value.

(4) Upon receipt of reasonable notice of the city's intent to purchase the system at the value established in subsection (a)(3) of this section, the grantee shall have 30 days within which to accept that valuation as the purchase price of the system. If that purchase price is not acceptable, the parties shall have 120 days in which to negotiate an acceptable purchase price.

(5) Upon exercise of this option and the payment of the agreed-upon sum by the city and its service of reasonable notice of such action upon the grantee, the grantee shall immediately transfer to the city possession and title to all facilities and property, real and personal, of the cable communications system, free from any and all liens and encumbrances not agreed to be assumed by the city in lieu of some portion of the purchase price set forth in this subsection, and the grantee shall execute such warranty, deeds or other instruments of conveyance to the city as shall be necessary for this purpose.

(6) If the city and the grantee are unable to agree upon the value of the cable communications system within the time limits set forth in this subsection, either party may require by reasonable notice to the other that the value of the cable communications system be submitted to arbitration in the following manner:

a. The city and the grantee shall each, within 15 days after such notice, select an arbitrator who shall be a disinterested person with reasonable knowledge and experience relative to the subject to be arbitrated. The two arbitrators thus selected shall immediately thereafter select a third arbitrator who shall likewise be a disinterested person having reasonable knowledge and experience relative to the subject to be arbitrated.

b. Within 30 days after appointment of all arbitrators and upon ten days' written notice to the parties, the panel of arbitrators shall commence a hearing on the issue of valuation and shall receive all relevant information from the parties. The value of the system as determined by the arbitration panel shall be in accordance with subsection (a)(3) of this section.

c. The hearing shall be recorded and may be transcribed at the request of either party. All hearing proceedings, debate and deliberations shall be open to the public and at such times and places as contained in the notice or as thereafter publicly stated, except that, at the request of either of the parties, debate and deliberations may be held in closed session.

d. Within 30 days after the close of the hearing, the panel of arbitrators shall prepare findings and a decision agreed upon by a majority of the panel, which shall be filed with the city and served by mail immediately upon the grantee. Should there be no majority decision, the proceedings shall become null and void and shall be started anew, unless the parties extend by mutual agreement the time in which the panel of arbitrators may make a decision.

e. Either party may seek judicial relief in the following circumstances:

1. A party fails to select an arbitrator.

2. The arbitrators fail to select a third arbitrator.
3. One or more arbitrators is unqualified in either party's opinion.
4. Designated time limits have been exceeded.
5. The decision was procured by corruption, fraud or undue means.
6. There was evident partiality on the part of the independent arbitrator who represents neither the grantee nor the city.
7. The arbitration panel exceeded the authority granted under this subsection.
8. Based upon the record, the panel abused its discretion.

f. If a court of competent jurisdiction determines that judicial relief is appropriate to the circumstances set forth in subsection (a)(6)e of this section, the court in its discretion may order the arbitration procedure repeated and issue findings, orders and directions.

g. The expenses of the arbitrators selected by each party shall be borne by that party, and the expenses of the third arbitrator and those expenses incurred by the panel as a whole shall be borne equally by the parties.

h. Upon receipt of the decision of the arbitration panel, the city shall have 30 days in which to notify the grantee of its intent to exercise its option to purchase the system. The purchase price shall be the value of the system as determined by the arbitration panel in accordance with subsection (a)(3) of this section.

(7) At any time prior to the actual transfer to the city of possession and title of the cable communications system, the grantee may operate the system, using its good-faith judgment in all matters, and be compensated therefor in an amount appropriate to be paid to an independent party providing the same management services. Revenues collected by the grantee during such a period shall be considered revenues of the city or other person to whom the city intends to transfer ownership.

(b) The city shall have the right, at its expense, to inspect all construction or installation work performed subject to the provisions of the franchise and to make such tests as it shall find necessary to ensure compliance with the terms of this article, the franchise agreement, and other pertinent provisions of the law.

(c) The city shall have the right of intervention in any suit or proceeding to which the grantee is party.

(Code 1985, § 6-65; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-62—6-85. Reserved.

DIVISION 3. REGULATION OF FRANCHISE

Sec. 6-86. Regulatory authority.

(a) The city may exercise appropriate regulatory authority under this article and applicable law. This authority shall be vested in the council and administered through the city manager or his designee in order to provide day-to-day administration of this article and any franchise granted under this article.

(b) Notwithstanding any other section of this article to the contrary, the grantee shall at all times comply with all applicable laws and regulations of the local, state and federal government. If any actions of the state or federal government or any agency thereof, or any court of competent jurisdiction upon final adjudication, substantially reduce in any way the power or authority of the city under this article or the franchise or if, in compliance with any local, state or federal law or regulation, the grantee finds conflict with the terms of this article, the franchise, or any law or

regulation of the city, as soon as possible following knowledge thereof, the grantee shall notify the city of the point of conflict believed to exist between such law or regulation and the laws or regulations of the city, this article and the franchise. The city shall have the right to modify any section of this article to such reasonable extent as may be necessary to carry out the intent and purpose of this article.

(c) The city reserves the right to exercise the maximum plenary authority, as may at any time be lawfully permissible, to regulate the cable communications system, the franchise and the grantee. Should applicable legislative, judicial or regulatory authorities at any time permit regulation not presently permitted to the city, the city may, without the approval of the grantee, legislate any such additional regulation as may then be permissible, whether or not contemplated by this article.

(Code 1985, § 6-66; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-87. City's responsibilities and functions.

(a) The city shall have the following regulatory responsibility pursuant to this article:

(1) Administration and enforcement of this article and any franchise granted under this article.

(2) Award the renewal, extension or termination of a franchise pursuant to this article, the franchise, and other applicable law.

(3) Consent prior to the sale or transfer of any franchise granted under this article.

(4) Performance evaluations pursuant to this article and the franchise.

(b) The city also reserves the right to perform the following functions:

(1) Develop objectives and coordinate activities related to the operation of government channels.

(2) Provide technical, programming and operational support to public agency users such as city departments, schools and health care institutions.

(3) Coordinate plans for interconnection of cable services.

(4) Analyze the possibility of integrating cable communications with other city, state or regional telecommunications networks.

(5) Formulate and recommend long-range telecommunications policy for the city and provide for the determination of future cable-related needs and interests of the community.

(6) Provide the administrative effort necessary for the conduct of performance evaluations pursuant to this article and the franchise, and any other activities required for the administration of the franchise.

(7) Monitor the grantee's process for handling citizen complaints and periodically inspect and analyze the records related to such complaints.

(8) Monitor the grantee's adherence to operational procedures and line-extension policies.

(9) Ensure compliance with applicable laws and ordinances.

(10) Arrange tests and analyses of equipment and performance, pursuant to this article and the franchise, to ensure compliance with this article and the franchise.

(11) Provide for reasonable continuity in service.

(12) Receive for examination all data and reports required by this article.

(Code 1985, § 6-67; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-88. Rates and charges.

(a) The city may regulate basic cable service tier rates and related equipment, installation and service charges of any cable television system operating in the city under the Cable Television Consumer Protection and Competition Act of 1992. In its regulation of rates, the city will follow the Federal Communications Commission regulations, notwithstanding any different or inconsistent provisions in the franchise.

(b) In connection with such rate regulation, the city shall ensure a reasonable opportunity for consideration of the views of interested parties.

(c) The city manager, or his designee, is authorized to execute on behalf of the city and file with the Federal Communications Commission such certification forms or other instruments as are or may be required by the Federal Communications Commission rate regulations in order to enable the city to regulate basic service rates and charges.

(d) The grantee shall file with the city schedules which shall describe all services offered, all rates and charges of any kind, and all terms and conditions relating thereto.
(Code 1985, § 6-68; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-89. Performance evaluations.

(a) The city and the grantee shall, at the discretion of the city, hold scheduled performance evaluation sessions every third year during the term of the cable communications system franchise.

(b) Special evaluation sessions may be held at any time during the term of the franchise at the request of the city.

(c) All evaluation sessions shall be open to the public and announced in a newspaper of general circulation in accordance with public notice, as provided in section 6-199. The grantee shall notify subscribers of all such evaluation sessions by announcement on the designated local-origination channel on the system at such various times and frequencies so as to ensure comprehension between the hours of 11:00 a.m. and 9:00 p.m. for five consecutive days preceding each session.

(d) Topics which may be discussed at any scheduled or special evaluation session may include, but not be limited to, system performance, grantee compliance with this article and the franchise, customer service and complaint response, subscriber privacy, franchise fees, penalties, applications of new technologies, judicial and Federal Communications Commission filings, and line extensions.

(e) During the review and evaluation by the city, the grantee shall cooperate with the city and shall provide such information and documents as the city may need to reasonably perform its review.
(Code 1985, § 6-69; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-90. Schedule of liquidated damages.

(a) For the willful violation of any of the following, the city shall notify the grantee in writing of the violation, and the grantee shall be allowed 30 days, or such greater amount of time as the city may specify, to correct such violation. Such undisputed liquidated damages shall be chargeable, to the extent available, to the security fund and performance bond if not tendered by the grantee within such period of time. These liquidated damages shall be in addition to and not a limitation upon the other penal sections of this article, including penalties or revocation, or other statutorily or judicially imposed penalties. No decision by the city to invoke any remedy under this article, the franchise agreement, or any statute, law or ordinance, shall preclude the availability of any other such remedy. Penalties for violations shall be as follows:

(1) Failure to render payment of the reimbursement of the city's franchise expenses, franchise fee or penalty payments: $500.00 per day from the time due until paid.

(2) Failure to file annual reports: $100.00 per day from the time due until paid.

(3) Failure to complete system construction: $1,000.00 per day from the time due until paid.

(4) Failure to provide access equipment, facilities or services: $500.00 per day from the time due until paid.

(b) The city retains the right, at its sole option, to reduce or waive any of the penalties listed in subsection (a) of this section where extenuating circumstances or conditions beyond

the control of the grantee are deemed to exist. The city manager or his designee shall determine the city's willingness to reduce or waive any of such penalties.
(Code 1985, § 6-70; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-91—6-110. Reserved.

DIVISION 4. BONDS, INSURANCE, INDEMNIFICATION

Sec. 6-111. Performance bond.

(a) *Required.* Not later than 45 days after the effective date of the cable communications system franchise, the grantee shall obtain and maintain during the entire term of the franchise and any extensions and renewals thereof, at its cost and expense, and file with the city a corporate surety bond or letter of credit, in an amount specified in the franchise agreement, to guarantee the faithful performance of the grantee of all its obligations provided under this article and the franchise. Failure to timely obtain, file and maintain the bond shall constitute a substantial violation of this article.

(b) *Conditions.* The performance bond shall provide the following conditions:

(1) There shall be recoverable by the city, jointly and severally from the principal and surety, any and all fines and penalties due to the city and any and all damages, losses, costs and expenses suffered or incurred by the city resulting from the failure of the grantee to:

a. Faithfully comply with this article and the franchise.

b. Comply with all applicable orders, permits and directives of any city agency or body having jurisdiction over its acts or defaults.

c. Pay any claims, liens or taxes due the city which arise by reason of the construction, operation, maintenance or repair of the cable system.

(2) The total amount of the bond shall be forfeited in favor of the city if the grantee:

a. Abandons the cable system at any time during the term of the franchise or any extension thereto.

b. Assigns the franchise without the express written consent of the city.

(c) *Reduction.* Upon written application by the grantee, the city may, at its sole option, permit the amount of the bond to be reduced or waive the requirements for a performance bond subject to the conditions set forth in this section. Reductions granted or denied upon application by the grantee shall be without prejudice to the grantee's subsequent applications or to the city's right to require the full bond at any time thereafter. However, no application shall be made by the grantee within 90 days of any prior application.

(d) *Use.* Prior to drawing upon the performance bond for the purposes described in this section, the city shall notify the grantee in writing that payment is due, and the grantee shall have ten days from the receipt of such written notice to make a full and complete payment of undisputed amounts. If the grantee does not make the payment within ten days, the city may withdraw the amount thereof from the performance bond.

(e) *Notification.* Within three days of a withdrawal from the performance bond, the city shall send to the grantee, by certified mail, return receipt requested, written notification of the amount, date and purpose of such withdrawal.

(f) *Replenishment.* No later than 30 days after receipt by the grantee of certified mail notification of a withdrawal pursuant to subsection (e) of this section, the grantee shall replenish the performance bond in an amount equal to the amount so withdrawn. Failure to make timely replenishment of such amount to the performance bond shall constitute a substantial violation of this article.

(g) *Nonrenewal, alteration or cancellation.* The performance bond required in this section shall be in a form satisfactory to the city and shall require 30 days' written notice of any nonrenewal, alteration or cancellation to both the city

and the grantee. The grantee shall, if any such cancellation notice is given, obtain, pay all premiums for, and file with the city written evidence of the issuance of a replacement bond within 30 days following receipt by the city or the grantee of any notice of cancellation.
(Code 1985, § 6-71; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-112. Liability and insurance.

(a) *General insurance required.* As of the effective date of the ordinance from which this article derives, the grantee shall file with the city a certificate of insurance and thereafter maintain in full force and effect at all times for the full term of the franchise, at the expense of the grantee, a comprehensive general liability insurance policy, naming the city as additional insured, written by a company authorized to do business in the state, protecting the city against liability for loss or bodily injury and property damage occasioned by the installation, removal, maintenance or operation of the cable communications system by the grantee in the following minimum amounts:

(1) Combined single limit, bodily injury and for property damage in any one occurrence: $1,000,000.00.

(2) Aggregate: $1,000,000.00.

(b) *Automobile insurance required.* The grantee shall also file with the city a certificate of insurance for a comprehensive automobile liability policy written by a company authorized to do business in the state, for all owned, nonowned, hired and leased vehicles operated by the grantee, with limits no less than $1,000,000.00 each accident, single limit, bodily injury and property damage combined, or evidence of self-insurance.

(c) *Worker's compensation and employer's liability insurance.* The grantee shall maintain and, by its acceptance of any franchise granted under this article, specifically agrees that it will maintain throughout the term of the franchise worker's compensation and employer's liability, valid in the state, in the minimum amount of the statutory limit for worker's compensation, and $500,000.00 for employer's liability.

(d) *Term.* All liability insurance required in this section shall be kept in full force and effect by the grantee during the existence of the franchise and until after the removal of all poles, wires, cables, underground conduits, manholes, and other conductors and fixtures installed by the grantee incident to the maintenance and operation of the cable communications system as defined in this article. All policies shall be endorsed to give the city 30 days' written notice of the intent to amend, cancel or nonrenew by either the grantee or the insuring company.

(e) *Damages and penalties.* The grantee agrees and binds itself to indemnify, keep and hold free and harmless the city from any and all liability or costs, including attorneys' fees and court costs pertaining thereto, arising from any activities authorized in this article, in that the grantee shall pay and, by its acceptance of the franchise, the grantee specifically agrees that it will pay all damages and penalties which the city may be legally required to pay as a result of the franchise. These damages or penalties shall include, but shall not be limited to, damages arising out of copyright infringements and all other damages arising out of installation, operation or maintenance of the cable communications system authorized in this article, whether or not any act or omission complained of is authorized, allowed or prohibited by this article.
(Code 1985, § 6-72; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-113—6-135. Reserved.

DIVISION 5. DESIGN AND CONSTRUCTION

Sec. 6-136. Authority to construct.

(a) *Authorization to commence new construction and application procedures.* Within 30 days of the acceptance by the grantee of a cable communications system franchise, the grantee shall register the system with the Federal Communications Commission and apply for contracts for use of poles. Within 30 days after completion of the make-ready survey identifying the routes of the system facilities, the grantee shall apply for all additional licenses from the state, city or

other necessary parties, such as the railroads, for crossing under or over their property. In any event, all necessary applications for permits, licenses, certificates and authorizations shall be applied for in a timely fashion so that such filing and processing shall not interfere with or cause delay with the construction schedule as outlined in the franchise. Failure to make such timely application and timely filing shall constitute a substantial violation of this article.

(b) *Power to contract.* Upon granting of the franchise and in order to construct, operate and maintain a cable system in the city, the grantee may:

(1) Enter into contracts with any public utility companies or any other owner or lessee of any poles or underground areas located within or without the city;

(2) Obtain right-of-way permits from appropriate city, state, county and federal officials necessary to cross or otherwise use highways or roads under their respective jurisdiction;

(3) Obtain permission from the Federal Aviation Administration to erect and maintain antennas; and

(4) Obtain whatever other permits a city, county, state or federal agency may require.

(Code 1985, § 6-73; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-137. Construction and technical standards.

(a) *Compliance with construction and technical standards.* Under this article the grantee shall construct, reconstruct, install, operate and maintain its cable communications system in a manner consistent with all applicable laws, ordinances, construction standards, governmental requirements, Federal Communications Commission technical standards, and detailed technical standards submitted by the grantee as part of its application, which standards are incorporated by reference in this article. The system shall be designed, constructed, operated and maintained for 24 hours a day of continuous operation.

(b) *State of the art.* The grantee shall construct, install, operate and maintain its system in accordance with, but not limited to, the following:

(1) The system will be designed to permit a minimum of 330 MHz operation.

(2) Where economically feasible, the system will utilize home terminals which will make the system adaptable for the development of future services.

(3) The grantee shall maintain its system facilities in a manner which will continue to enable it to add new services and associated equipment as they are developed, available, and proved economically feasible and marketable to subscribers.

(c) *Descriptions, maps and plans of facilities.* Prior to the erection or installation by the grantee of any towers, poles, underground conduits, or fixtures for use in connection with the installation, construction, maintenance or operation of the cable communications system under this article, the grantee shall first submit to the city and other appropriate parties for approval a concise description of the facilities proposed to be erected or installed, including engineering drawings, if required, together with a map and plans indicating the proposed location of all such facilities.

(d) *Contractor qualifications.* Any contractor proposed for work of construction, reconstruction, installation, operation, maintenance and repair of system equipment must be properly licensed under the laws of the state and all local ordinances.

(e) *Accuracy of city maps.* The city does not guarantee the accuracy of any maps showing the horizontal or vertical location of existing substructures. In public rights-of-way, where necessary, the location shall be verified by excavation.

(f) *Manner of construction, reconstruction, installation, operation and maintenance.* Construction, reconstruction, installation, operation and maintenance of the cable communications system shall be performed in an orderly and workman-

like manner in accordance with then-current technological standards. All cables and wires shall be installed, where possible, parallel with electric and telephone lines. Multiple cable configurations shall be arranged in parallel and bundled with due respect for engineering considerations.

(g) *Compliance with specific standards.* The grantee shall at all times comply with the following:

(1) Occupational Safety and Health Administration (OSHA) regulations.

(2) National Electric Code.

(3) National Electrical Safety Code (NESC).

(4) National Cable Television Standard Code.

(5) AT&T Manual of Construction Procedures (Blue Book).

(6) Bell Telephone Systems Code of Pole Line Construction.

(7) All federal, state, and municipal construction requirements including Federal Communications Commission rules and regulations, utility construction and requirements.

(8) All building and zoning codes, and all land use restrictions as they exist or may be amended.

(h) *Antenna structures.* Any antenna structure used in the cable communications system shall comply with construction, marking, and lighting of antenna structure standards as required by federal and state laws or regulations.

(i) *Worker facilities, conditions, and procedures.* All worker facilities, conditions, and procedures that are used during construction, installation, operation and maintenance of the cable system shall comply with the standards of the Occupational Safety and Health Administration.

(j) *RF leakage.* RF leakage shall be checked at reception location for emergency radio services to prove measurable interference signal combinations are possible. Stray radiation shall be measured adjacent to any proposed aeronautical navigation radio sites to prove no measurable interference to airborne navigational reception in the normal flight pattern. Federal Communications Commission rules and regulations shall govern. The system shall cause no measurable interference in television signal reception to any operating receiver not connected to and serviced by the system.

(k) *Standby power.* The grantee shall maintain equipment capable of providing standby power for a minimum of either four hours for the head-end and two hours for transportation and trunk amplifiers.
(Code 1985, § 6-74; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-138. System construction schedule.

(a) Within two years from the date of the award of a cable communications system franchise, the grantee must make cable television service available to every dwelling unit within the franchise service area in accordance with the terms of the franchise agreement and this article.

(b) It is the intent of the city that dedicated access channels shall be constructed concurrently with any franchised cable communications system to take advantage of the cost reduction inherent in concurrent construction. The requirements for dedicated institutional access channels shall be stated in the franchise agreement.
(Code 1985, § 6-75; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-139. Extension of service.

(a) The grantee shall provide cable communications service to any new residential dwelling units or commercial subscribers within the initial service area and any additional areas annexed to the city where there are at least 30 subscribers per proposed cable plant mile for residentially zoned areas, and at least 50 subscribers per proposed cable plant mile for commercially zoned areas, except where served by another cable company.

(b) In other areas with less than 30 residential dwelling units or 50 commercial subscribers per proposed cable plant mile, the grantee shall offer

a cost-sharing arrangement with residents. The cost-sharing arrangement shall consist of the following:

(1) On the request of five or more potential subscribers desiring service, the grantee shall prepare, at its cost, an engineering survey and cost analysis to determine the cost of plant extension required to provide service to each subscriber from the closest point where available quality signals exist.

(2) The cost of construction shall be allocated based on the following formula: If a request for extension of service into a residential area requires the construction of cable plant which does not pass at least 50 potential subscribers per strand or trench mile, the grantee and subscribers will each bear their proportionate share of construction costs. For example, if there are 25 subscribers per strand mile or trench mile, the grantee's share will equal $^{25}/_{50}$ or one-half of construction cost. The remaining cost will be shared equally by each subscriber. After completion of the project, should additional subscribers request cable television service, the pro rata shares shall be recalculated. Each new subscriber shall pay the new pro rata share, and all prior subscribers shall receive pro rata refunds. At such time as there are 50 potential subscribers per mile, the subscribers shall receive their pro rata share of construction costs. In any event, at the end of two years from the completion of a project, the subscribers are no longer eligible for refunds, and the amounts paid in construction costs will be credited to the plant account of the grantee.

(3) The average cost of line extension shall be recalculated annually and based upon then-current costs for labor and materials.

(4) Subscribers utilizing the cost-sharing plan for extensions shall be reimbursed pro rata for their contribution or a proportional share thereof, if additional subscribers are connected to the respective network extension.

(c) For new construction or property development where utilities are to be placed underground, the developer or property owner shall give the grantee reasonable notice of such construction or development and of the particular date on which open trenching will be available for the grantee's installation of conduit, pedestals and/or vaults, and laterals to be provided at the grantee's expense. The grantee shall also provide specifications as needed for trenching. Costs of trenching and easements required to bring service to the development shall be borne by the developer or property owner. Except for the notice of the particular date on which trenching will be available to the grantee, any notice provided to the grantee by the city of a preliminary plant request shall satisfy the requirement of reasonable notice if sent to the local general manager or system engineer of the grantee prior to approval of the preliminary plant request.
(Code 1985, § 6-76; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-140. Use of streets.

(a) *Installations.* All cable communications installations shall be underground in those areas of the city where public utilities providing telephone and electric service are underground at the time of installation. In areas where either telephone or electric utility facilities are above ground at the time of installation, the grantee may install its service above ground, provided that, at such time as those facilities are required to be placed underground by the city or are placed underground, the grantee shall likewise place its services underground without additional cost to the city or to the individual subscriber so served. Where not otherwise required to be placed underground by this article or the franchise agreement, the grantee's system shall be located underground at the request of the adjacent property owner, provided that the excess cost over the aerial location shall be borne by the property owner making the request. All new

cable passing under the roadway shall be installed in conduit no less than 18 inches from the top of the conduit to the surface of the ground.

(b) *Interference with persons, improvements, public and private property and utilities.* The grantee's system and facilities, including poles, lines, equipment and all appurtenances, shall be located, erected and maintained so that such facilities shall not:

(1) Endanger or interfere with the health, safety or lives of persons;

(2) Interfere with any improvements the city, county or state may deem proper to make;

(3) Interfere with the free and proper use of public streets, alleys, bridges, easements or other public ways, places or property, except to the minimum extent possible during actual construction or repair;

(4) Interfere with the rights and reasonable convenience of private property owners, except to the minimum extent possible during actual construction or repair; and

(5) Obstruct, hinder or interfere with any gas, electric, water or telephone facilities or other utilities located within the city.

(c) *Restoration to prior condition.* If any disturbance of pavement, sidewalk, driveway or other surfacing occurs, the grantee shall, at its own cost and expense and in a manner approved by the city, replace and restore all paving, sidewalk, driveway, landscaping or surface of any street or alley disturbed, in as good a condition as, or better than, before the work was commenced and in a good workmanlike, timely manner in accordance with standards for such work set by the city. Such restoration shall be undertaken within no more than ten days after the disturbance is incurred and shall be completed as soon as possible thereafter.

(d) *Relocation of facilities.* If at any time during the period of this franchise the city, county or state shall lawfully elect to alter or change the grade of any street, alley or other public way, the grantee, upon reasonable notice by the proper authority, shall remove or relocate as necessary its poles, wires, cables, underground conduits, manholes and other fixtures at its own expense.

(e) *Cooperation with building movers.* The grantee shall, on the request of any person holding a building moving permit issued by the department of transportation, temporarily raise or lower its wire to permit the moving of buildings. The expense of such temporary removal, raising or lowering of wires shall be paid by the person requesting such, and the grantee shall have the authority to require such payment in advance. The grantee shall be given not less than 15 working days' advance notice to arrange for such temporary wire changes.

(f) *Tree trimming.* The grantee shall have the authority, except when in conflict with existing city ordinances, to trim any trees upon and overhanging public rights-of-way so as to prevent the branches of such trees from coming in contact with system facilities, except that, at the option of the city, such trimming may be done by it, or under its supervision and direction, at the expense of the grantee.

(g) *Easements.* All necessary easements over and under private property shall be arranged for by the grantee.

(h) *Work within right-of-way.* Consistent with the city's policy for temporary street closings dated October 1, 1985, the closing of any part of a publicly maintained street or right-of-way must be approved by the department of transportation and shall be prohibited during peak travel hours, 7:00 to 9:00 a.m. and 4:00 to 6:00 p.m., Monday through Friday. During repairs or improvements, traffic on streets must be maintained. Where full closing of the street is required, the request for approval must be submitted to the department of transportation at least ten days in advance. Closings will not be permitted in the central business district during the holiday shopping season. Where emergency closings are necessary, the department of transportation is to be notified as soon as possible. All closings are to be protected and signed in accordance with the city's Work Area Traffic-Control Handbook (WATCH).

(i) *Removal of city property.* No city property is to be removed from a right-of-way, including signing on utility poles, without proper permission from the department of transportation.
(Code 1985, § 6-77; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Cross reference—Streets, sidewalks and other public places, ch. 19.

Sec. 6-141. Erection, removal and common use of poles.

(a) No poles for the cable communications system shall be erected by the grantee without prior approval of the city with regard to location, height, types and any other pertinent aspect. However, no location of any pole or wire-holding structure of the grantee shall give rise to a vested interest, and such poles or structures shall be removed or modified by the grantee at its own expense whenever the city determines that the public convenience would be enhanced thereby.

(b) Where poles already in existence for use in serving the city are available for use by the grantee, the city may require the grantee to use such poles and structures, if it determines that the public convenience would be enhanced thereby and the terms of the use available to the grantee are just and reasonable.

(c) Where a public utility serving the city desires to make use of the poles or other wire-holding structures of the grantee, but agreement thereof with the grantee cannot be reached, the city may require the grantee to permit such use for such consideration and upon such terms as the city shall determine to be just and reasonable, if the city determines that the use would enhance the public convenience and would not unduly interfere with the grantee's operation.
(Code 1985, § 6-78; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-142. Construction reporting requirements.

(a) Within 30 days of the granting of a franchise pursuant to this article, the grantee shall provide the city with a written progress report detailing work completed, if any, to date. Such report shall include a description of the progress in applying for any necessary agreements, licenses or certifications and any other information the city manager may deem necessary.

(b) Such written progress reports shall be submitted to the city on a monthly basis throughout the entire construction process. The city manager may require more frequent reporting, if he determines it is necessary to better monitor the grantee's progress.

(c) Prior to the commencement of any system construction, the grantee shall produce an informational document to be distributed to all residents of the area to be under construction, which shall describe the activity that will be taking place.
(Code 1985, § 6-79; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-143. Tests and performance monitoring.

(a) Not later than 90 days after any new or substantially rebuilt portion of the cable communications system is made available for service to subscribers, and thereafter on the third anniversary of the effective date of the franchise, the grantee shall conduct technical performance tests to demonstrate substantial compliance with all technical standards contained in this article and the franchise agreement and the applicable technical standards and guidelines of the Federal Communications Commission.

(b) Such tests shall be performed by or under the supervision of a qualified registered professional engineer or an engineer with proper training and experience. A copy of the engineer's report shall be submitted to the city, describing test results, instrumentation, calibration and test procedures and the qualification of the engineer responsible for the tests.

(c) System monitor test points shall be established at or near the output of the last amplifier in the longest feeder line, at or near trunk line extremities. Such periodic tests shall be made at the test points as shall be required by the Federal Communications Commission and/or the franchise agreement.

(d) In addition to the performance test reports required in this section, a copy of any performance test reports required by the Federal Communications Commission shall be submitted to the city within 60 days of completion.

(e) Whenever there have been similar complaints from more than ten percent of the subscribers to the grantee's system made, or when there exists other substantial evidence which, in the judgment of the city, casts doubt on the reliability or quality of the grantee's system, the city shall have the right and authority to compel the grantee to test, analyze and report on the performance of its system. Reports on such tests shall be delivered to the city no later than 14 days after the city reasonably notifies the grantee and shall include the following information:

(1) The nature of the complaints which precipitated the special tests;

(2) What system component was tested;

(3) The equipment used and procedures employed in the testing;

(4) The results of such tests; and

(5) Methods by which the complaints were resolved.

The tests and analyses shall be supervised by a professional engineer, who shall sign all records of the special tests and forward the records to the city with a report interpreting the results of the tests and recommending what actions, if any, should be taken by the grantee or city.

(f) The city shall have the right to employ, at the city's expense, qualified consultants if necessary or desirable to assist in the administration of this or any other section of this article or the franchise agreement.
(Code 1985, § 6-80; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-144—6-165. Reserved.

DIVISION 6. SERVICE

Sec. 6-166. Services to subscribers and users.

(a) Concurrently with the activation of the cable communications system in the city, the grantee shall provide those services to subscribers as described in the franchise agreement or services of similar mix, quality and level.

(1) The system shall carry the programming and services listed in the franchise agreement. Should the grantee desire to change the selection of programs or services offered on any of its tiers, it shall use its best efforts to maintain the mix, quality and level of services provided over the system. Any such change in programs or services offered shall comply with the conditions and procedures contained in the franchise agreement and shall be reported to the city at least 30 days prior to the proposed implementation when possible. The grantee shall use its best efforts to ensure diversity of programming.

(2) A basic service tier shall be offered to subscribers throughout the term of this franchise.

(3) The grantee shall provide and maintain, at a minimum, the following access channels whose purposes are outlined:

a. A government access channel, which shall be a specifically designated channel for local governmental use and shall be staffed and managed by the city. The grantee shall provide necessary microwave and/or cable links from the Charlotte-Mecklenburg Government Center to enter programming onto the governmental access channel.

b. An educational channel, which shall be a specifically designated channel for use by local public and private school authorities.

c. A public access channel, which shall be a specifically designated channel

available on a first come, first served, nondiscriminatory basis to qualified users.

(4) The grantee shall make available leased access channels to ensure that the widest possible diversity of information sources are made available to subscribers.

a. Such channels shall be especially designated for leased access use by persons unaffiliated with the grantee on terms, rates and conditions which are in accordance with the Cable Act.

b. The number of such channels shall be determined by the provisions of the Cable Act. The grantee shall advertise periodically the availability of such channels.

c. The grantee shall not exercise any editorial control over any programming provided over such channels, except as permitted in accordance with the provisions of the Cable Act.

(5) The grantee shall provide, when normal installation is possible, basic service and one free outlet to each of the following public facilities located within 500 feet of existing service lines of the grantee: all courthouses, prisons, libraries, detention centers, police and fire stations, municipal office buildings and public schools. The grantee shall notify the city in writing when normal installation is not possible. No monthly service fee shall be charged for any such outlet. The grantee shall provide service to new construction for such public facilities, provided they are within 500 feet of the existing service lines of the grantee. The city reserves the right to provide service to public facilities outside of the franchised area at its own expense. The grantee shall produce and carry on a designated channel, on a daily basis, an alphanumeric program guide describing, at a minimum, the programs offered on the access channels described in this subsection.

(b) The grantee shall, without charge, provide service and maintain public emergency transmission capabilities, as described in the franchise agreement.

(Code 1985, § 6-81; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-167. Installations, connections, other grantee services.

(a) *Standard installations.* Standard installation of the cable communications system shall consist of a subscriber connection not exceeding 150 feet from a single point or pedestal attachment to the customer's residence. Service in excess of 150 feet and concealed wiring shall be charged not to exceed additional installation costs before installation begins. The desire of the subscriber as to the point of entry into the residence shall be observed whenever possible, subject to the grantee's good-faith judgment in regard to, but limited to, safety, efficiency and system performance. The grantee shall use due care in the process of installation and shall repair any damage to the subscriber's property caused by the installation. Such restoration shall be undertaken within a reasonable time after the damage is incurred and shall be completed as soon as possible thereafter, such time not to exceed 15 days, weather permitting.

(b) *Antennas and antenna switches.* The grantee shall not, as a condition to providing cable communications service, require any subscriber or potential subscriber to remove any existing antenna structures for the receipt of over-the-air television signals.

(c) *Lockout devices.* The grantee shall provide to the potential subscriber, as part of its promotional literature, information concerning the availability of a lockout device for use by a subscriber. The grantee reserves the right to require a reasonable deposit for the use of this device. The lockout device described in this subsection shall be made available to all subscribers requesting it, beginning on the first day that any cable service is provided or, for a renewed or extended franchise, on the effective date of such renewal or extension.

(d) *Reconnection.* The grantee shall restore service to customers wishing restoration of service, provided the customer shall first satisfy any previous obligations owed. Further, any such reconnection may be on terms and conditions established by the grantee.

(e) *Free disconnection.* Subscribers shall have the right to have cable service disconnected or deauthorized without charge therefor. Such disconnection or deauthorization shall be made as soon as practicable and not to exceed 15 days. A refund of unused service charges shall be paid to the customer within 60 days from the date of termination of service.

(f) *Delinquent accounts.* The grantee shall use its best efforts to collect delinquent subscriber accounts. Whenever possible, the grantee shall provide the customer with at least seven working days' written notice prior to disconnection.
(Code 1985, § 6-82; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-168. Service calls and complaint procedures.

(a) The cable communications company shall establish, operate and maintain in the city a business office and maintenance and repair facility for the purpose of receiving inquiries, requests and complaints concerning all aspects of the construction, installation, operation and maintenance of the cable communications system and for the payment of subscribers' service charges.

(b) The grantee shall have a listed, locally staffed telephone number for service calls, and such telephone service shall be available 24 hours a day, seven days a week.

(c) The grantee shall respond to and resolve subscribers' complaints or requests for service in connection with repairs and maintenance and malfunctions of system facilities. The grantee shall respond as quickly as possible to such complaints and requests. Complaints or requests which may pose a potential health and safety hazard will be responded to immediately. In connection with billing complaints, the grantee shall respond within seven business days.

(d) The grantee shall prepare and file with the city copies of all of its rules and regulations in connection with the handling of inquiries, requests and complaints. The grantee shall, by appropriate means, such as a card or brochure, furnish information concerning the procedures for making inquiries or complaints, including the name, address and local telephone number of the office or agent to whom such inquiries or complaints are to be addressed, and furnish information concerning the city office responsible for the administration of the franchise, including, but not limited to, the address and telephone number of such office.

(e) The grantee shall keep full records in connection with all complaints and requests in the nature of complaints in connection with the system. Such records shall identify the person contacting the grantee and the person responding on behalf of the grantee, the subject matter of the contact, the date and time it was received, the resolution of the matter in question or the action taken by the grantee in connection with the contact, and the date and time thereof, and such other information as may be deemed pertinent by the grantee. These records shall be made available for periodic inspection by the city after 48 hours' notice to the grantee.

(f) The grantee shall service or replace without charge all equipment provided by it to the subscriber; provided, however, the grantee may charge a subscriber for service to or replacement of any equipment damaged directly or indirectly by a subscriber.

(g) The city may review and monitor unresolved customer complaints.

(h) If any subscriber is interrupted for 24 or more consecutive hours due to causes within the grantee's control, the grantee shall provide a prorated rebate of monthly fees to the affected subscriber upon the subscriber's request.
(Code 1985, § 6-83; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-169. Continuity of service.

(a) The grantee pursuant to this article shall use its best efforts to ensure that all subscribers receive continuous, uninterrupted service, insofar as their financial and other obligations to the grantee are honored.

(b) If the grantee elects to rebuild, modify or sell the system, or the city gives notice of intent to terminate or fails to renew the grantee's franchise, the grantee shall cooperate with the city or new grantee or operator in maintaining continuity of service to all subscribers. During such period, the grantee shall be entitled to the revenues for any period during which it operates the system and shall be entitled to reasonable costs when it no longer operates the system.

(c) If the grantee fails to operate the system for seven consecutive days without prior approval of the city or without just cause, the city may, at its option, operate the system or designate an operator until such time as the grantee restores service under conditions acceptable to the city or a permanent successor is selected. If the city is required to fulfill this obligation for the grantee, the grantee shall reimburse the city for all reasonable costs or damages in excess of revenues from the system received by the city that are the result of the grantee's failure to perform.
(Code 1985, § 6-84; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-170. Protection of subscriber privacy.

(a) At the time of entering into an agreement to provide any cable service or other service to a subscriber, and at least once a year thereafter, the grantee shall provide notice, in the form of a separate written statement to each subscriber, which clearly and conspicuously informs the subscriber of the following:

(1) The nature of personally identifiable information collected or to be collected with respect to the subscriber and the nature of the use of such information.

(2) The nature, frequency and purpose of any disclosure which may be made of such information, including an identification of the types of persons to whom the disclosure may be made.

(3) The period during which such information might be maintained by the cable operator.

(4) The times and places at which the subscriber may have access to such information in accordance with this article and other applicable federal, state and local law.

(b) The grantee shall not use the cable system to collect personally identifiable information concerning any subscriber, except as necessary to render a cable service or other service provided by the cable operator to the subscriber, or to detect unauthorized reception of cable communications, without the prior written or electronic consent of the subscriber concerned.

(c) The grantee shall not, without the specific written or electronic consent of the subscribers concerned, sell, disclose or otherwise make available to any party any list of the names and addresses of individual subscribers; any list which identifies the viewing habits of individual subscribers; or any personal data, social security number, income and other data the grantee may have on file about individual subscribers, except as necessary to render or conduct a legitimate business activity related to a cable service or other service provided by the cable operator to the subscriber, or pursuant to a court order, or if the grantee has provided the subscriber the opportunity to prohibit or limit such disclosure and the disclosure does not reveal directly or indirectly the extent of viewing or other use by the subscriber of a cable service or other service provided by the cable operator, or the nature of any transaction made by the subscriber over the cable system.

(d) The grantee shall not predicate regular subscriber service on the subscriber's grant or denial of permission to collect, maintain or disclose personally identifiable information. A subscriber may at any time revoke any permission previously given by delivering to the grantee a written statement of that intent.

(e) Each subscriber shall be provided access to all personally identifiable information regarding such subscriber that the grantee collects or maintains. Such information shall be made available to the subscriber at reasonable times and at a convenient place designated by the grantee. The subscriber shall be provided the reasonable opportunity to correct any error in such information.

(f) The grantee shall destroy personally identifiable information, if the information is no longer necessary for the purpose for which it was collected and there are no pending requests or orders for access to such information under subsection (b) of this section or pursuant to a court order.

(g) This section is not intended to prohibit the use or transmission of signals useful only for the control or measurement of system performance. (Code 1985, § 6-85; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-171. Rights of individuals.

(a) *Nondiscrimination required.* The grantee under this article shall not deny service, deny access or otherwise discriminate against subscribers, channel users or general citizens on the basis of race, color, religion, national origin, age, sex or physical or mental handicaps; provided that the subscriber shall pay all applicable fees for the service desired and provided, further, that nothing contained in this subsection shall prohibit the grantee from granting senior citizens' discounts to subscribers. The grantee shall comply at all times with all other applicable federal, state and local laws and regulations relating to nondiscrimination which may be incorporated and made a part of this article by reference.

(b) *Fairness of accessibility.* The entire system of the grantee shall be operated in a manner consistent with the principles of fairness and equal accessibility of its facilities, equipment, channels, studios and other services to all citizens, businesses, public agencies and other entities having a legitimate use for the network, and no one shall be arbitrarily excluded from its use; provided, however, that allocation of use of such facilities shall be made according to the rules or decisions of the grantee and any regulatory agencies affecting such.

(c) *Information accessibility.* Information shall be accessible as follows:

(1) Each individual shall have the right to information concerning this article and the rules and regulations formulated pursuant to it by the council, agent or entity created under or pursuant to this article. The location and hours of operation for the delivery of such information shall be published in the newspaper of the greatest circulation within the city and in such other media as the council may determine.

(2) Each individual subscribing to the services of the cable communications system or leasing channels thereof or using the access channels shall be provided with a memorandum setting forth all rules and regulations specifically outlining such individual rights, duties and obligations pertinent to such use.

(3) Such information as may be prescribed under this subsection will be made available to the public and individual subscribers in such form required for understanding, including the deaf and blind, and in such languages as may be specified by the council.

(4) Each document required to be maintained, prepared, filed or submitted under this article or pursuant to it, except those required and designated confidential by the grantee or the Federal Communications Commission, shall be a public document, available for public inspection and copying at the requestor's expense, at the office of the grantee or the city during normal business hours. The charge for such copying shall approximate the cost of mechanical reproduction and shall not include a charge for labor.

(5) Each individual shall have the right to representation on such boards, commissions, agencies or other entities created under this article by the council pursuant to this article. Such representation by citizens of the city shall be in the manner and form as the council may determine, ensuring equal participation of all protected groups.

(Code 1985, § 6-86; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-172—6-195. Reserved.

DIVISION 7. BOOKS, RECORDS AND REPORTS

Sec. 6-196. Inspection of books and records.

The grantee under this article shall manage all of its operations in accordance with a policy of open books and records as such may pertain to the operation of the cable communications system in the city. The city shall have the right to inspect, upon 24 hours' written notice, at any time during normal business hours, books, records, maps, plans, service complaint logs, performance test results and other like materials of the grantee which relate to the operation of the system.
(Code 1985, § 6-87; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-197. Reports required.

(a) *Regulatory communications.* The grantee shall file all reports required by the Federal Communications Commission, including, but not limited to, annual proof of performance tests and results and equal employment opportunity (EEO) reports.

(b) *Facilities report.* The grantee shall file an annual report setting forth the physical miles of plant construction and plant in operation during the fiscal year.

(c) *Grantee rules.* The grantee's schedule of charges, contract or application forms of regular subscriber policy regarding the processing of subscriber complaints, delinquent subscriber disconnect and reconnect procedures and any other terms and conditions adopted as the grantee's policy in connection with its system subscribers shall be filed with the city.

(d) *Proof of bonds and insurance.* The grantee shall submit to the city the required performance bond, or a certified copy thereof, and written evidence of payment of the required premium, and certificates of policies of insurance required by this article, and written notice of payment of the required premium.

(e) *Financial and ownership reports.* The financial reports for the grantee shall be submitted annually to the city.

(f) *Operational reports.* The following system and operational reports shall be submitted annually to the city:

(1) A report on the system's technical tests and measurements as set forth in this article and in the franchise agreement.

(2) A summary of the previous year's activities, including, but not limited to, new services offered.

(3) A summary of complaints received and handled.

(4) A summary of the number of outages (five or more service calls in one area).

(g) *Additional reports.* The grantee shall prepare and furnish to the city, at the times and in the form prescribed, such additional reports with respect to its operation, affairs, transactions or property as may be reasonably necessary and appropriate to the performance of any of the functions or duties of the city in connection with the system.
(Code 1985, § 6-88; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-198. Records required.

(a) The grantee under this article shall at all times maintain the following:

(1) A record of all complaints received and interruptions or degradation of service experience for the preceding period prior to a performance review.

(2) A full and complete set of plans, records and as-built maps showing the exact location of all cable communication system equipment installed or in use in the city, exclusive of subscriber service drops.

(3) A comprehensive record of all personnel transactions and utilization of contractors, subcontractors, vendors and suppliers by race and sex.

(b) The city may impose reasonable requests for additional information, records and documents from time to time.
(Code 1985, § 6-89; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 6-199. Public notice; franchise applications.

(a) *Public notice.* Minimum public notice of any public meeting relating to this article or the franchise shall be by publication in a newspaper of general circulation in the area at least seven days prior to the meeting, by posting at city hall, and by announcement on at least one local origination channel of the grantee's cable communications system between the hours of 11:00 a.m. and 9:00 p.m. for five consecutive days prior to the meeting.

(b) *Franchise applications.* Applicants for a franchise shall submit to the city written applications utilizing the appropriate standard format provided by the city, at the time and place designated by the city for accepting applications and including the designated application fee, if any.

(Code 1985, § 6-90; Ord. No. 8194, § 1, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Secs. 6-200—6-250. Reserved.

ARTICLE III. DANCEHALL BUSINESSES

Sec. 6-251. Purpose and authority.

It is the purpose of this article to:

(1) Regulate the dancehall business in order to promote the health, safety, and welfare of the citizens of the city; and

(2) Establish reasonable and uniform regulations to prevent the harmful effects associated with late night dance establishments and "raves."

(Code 1985, § 6-156)

Sec. 6-252. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adult dance hall means any dance hall that admits patrons 18 years of age or older.

Breach of the peace means repeated acts that disturb the public order, including, but not limited to, homicide, assault, affray, communicating threats, unlawful possession of dangerous or deadly weapons, and discharging firearms.

Chief of police means the chief of the Charlotte-Mecklenburg Police Department, or his designee.

City manager means the city manager, or his designee, who shall not be an employee of the Charlotte-Mecklenburg Police Department.

Conviction and *convicted* mean a finding of guilt for a violation of a municipal or county ordinance or state or federal law, an adjudication withheld on such a finding of guilt, an adjudication of guilt on any plea of guilty or nolo contendere, or the forfeiture of a bond or bail when charged with a violation of a municipal or county ordinance or state or federal law.

Dance hall means any place or area of property where a dance(s) open to the public is held which allows admission by payment of a direct or indirect charge, fee, donation, or any form of consideration, or by the purchase, possession, or presentation of a ticket or token.

Notwithstanding the foregoing, a "dance hall" does not include: (i) a private residence or residential facility from which the general public is excluded. A private residence does not include a structure primarily designed as a warehouse or storage structure, regardless of whether an individual is living within the structure; (ii) a place owned and operated by the federal, state, or local government; (iii) a public or private elementary school, middle school, high school, college, or university; (iv) a place owned or operated by a bona fide religious or charitable organization, created, organized, existing, and recognized as such pursuant to all applicable laws; or (v) any establishment or place that is regulated by the alcoholic beverage control laws as set forth in G.S. ch. 18B, provided that it does not remain open or operate between the hours of 2:30 a.m. and 7:00 a.m.

Dance hall regulations means the regulations set forth in this article.

Employee describes and pertains to any person who performs any service or entertainment upon the premises of a dance hall business, whether or not the person is denominated an employee, independent contractor, agent, or otherwise, and regardless of whether or not the person is paid a salary, wage, or other compensation by the owner or operator of the business. The term "employee" does not include a person exclusively on the premises for any of the following:

(1) The repair or maintenance of the premises;

(2) The delivery of goods to the premises; or

(3) The delivery of services, such as legal, accounting, insurance, or other similar services provided to businesses generally.

Juvenile means a person under 18 years of age.

Juvenile dance hall means any dance hall whose patrons or admittees are under 18 years of age.

Knowingly means with actual knowledge of a specific fact or, with reasonable inquiry, a reasonable person should have known a specific fact.

Operator means and includes any person who is both present on and in charge of any dance hall business premises.

Owner means the legal owner of a dance hall business and includes the following:

(1) The owner of a sole proprietorship;

(2) Each member of a firm, association, or general partnership;

(3) Each general partner in a limited partnership; or

(4) Each officer, director, and owner of 50 percent or more of the stock of a corporation.

Permit and *dance hall permit* mean a permit to operate a dance hall.

Permittee means a person in whose name a permit to operate a dance hall has been issued, as well as the individual listed as an applicant on the application for a dance hall permit.

Premises means the interior of a structure and all exterior areas owned or leased by the permittee.

Residential facility means a detached duplex, triplex, quadraplex, attached or multifamily dwelling, manufactured home, mobile home, group home for up to six clients, boardinghouse, or dormitory. A residential facility specifically excludes any structure that primarily functions as a warehouse or storage structure, regardless of whether an individual is residing within the structure.

(Code 1985, § 6-157; Ord. No. 5951, § 1, 6-8-2015)

Cross reference—Definitions generally, § 1-2.

Sec. 6-253. Permit required; application for permit.

(a) No adult or juvenile dancehall shall be allowed to operate without a valid dancehall permit issued by the chief of police. It shall be unlawful for any person to operate or cause to be operated a dancehall without the permit or without the presence of an operator who has been disclosed pursuant to subsection (b)(9) of this section.

(b) An application for a permit must be made by the owner of the business on a form prescribed by the chief of police and submitted to the Charlotte-Mecklenburg Police Department Vice and Narcotics Bureau. The completed application shall contain the following information and shall be accompanied by the following documents:

(1) The full true name of the applicant;

(2) The full true name under which the dancehall business will be operated and, if the business will be operated in a name other than that of the applicant, a certified copy of the assumed name certificate prepared and recorded in the office of the county register of deeds pursuant to G.S. 66-68 et seq.;

(3) The type of dancehall business the applicant intends to operate;

(4) Whether the applicant intends to serve alcoholic beverages at the dancehall business and/or apply for an ABC permit;

(5) The address where the dancehall business is to be operated and where the books and records are maintained and available for examination by the tax collector, pursuant to section 13-39 of this Code;

(6) If the owner of the real property upon which the dancehall business is to be operated is not the applicant, the name and address for the owner of the real property upon which the business is to be operated and a copy of the lease or rental agreement;

(7) The principal telephone number to be used by the dancehall business;

(8) If the applicant is:

a. An individual, the applicant shall appear in person and deliver a completed and signed application form and provide the following information:

1. His present residence and business addresses and telephone numbers;

2. A valid driver's license or other government-issued picture identification;

3. Social security number; and

4. Date of birth, to include month, day, and year;

b. A partnership, corporation, or limited liability company, the applicant shall designate one of its general partners, officers, or managers to act as its agent. Such person shall appear in person and deliver a completed and signed application form and shall provide the following information:

1. His present residence and business addresses and telephone numbers;

2. A valid driver's license or other government-issued picture identification;

3. Social security number; and

4. Date of birth, to include month, day, and year;

c. A partnership:

1. The name, residence address and telephone number, social security number, and date of birth, to include month, day, and year, of each partner, including limited partners; and

2. A copy of the partnership agreement.

If one or more of the partners is a corporation, the provisions of this subsection pertaining to corporations shall apply.

d. A corporation:

1. A certified copy of the articles of incorporation, a certified copy

of the certificate of authority, and a certified copy of the most recent annual report flied with the secretary of state;

2. The name, residence address and telephone number, social security number, and date of birth, to include month, day, and year, of each of its current officers and directors, and of any stockholder holding 50 percent or more of the stock of the corporation; and

3. The name and address of the corporation's registered agent for service of process.

e. A limited liability company:

1. A certified copy of the articles of organization, a certified copy of the certificate of authority, and a certified copy of the most recent annual report filed with the secretary of state;

2. The name, residence address and telephone number, social security number, and date of birth, to include month, day, and year, of each of its current members, and of any member holding 50 percent or more interest in the company; and

3. The name and address of the corporation's registered agent for service of process.

(9) The name, residence address and telephone number, social security number, and date of birth, to include month, day, and year, of each individual who will be an operator of the business;

(10) A federal tax identification number assigned to the dancehall business and a completed tax information authorization form (IRS Form 8821) authorizing only the verification of such number; and

(11) A sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch need not be to scale but must provide accurate measurements.

(c) The application shall be sworn to be true and correct by the applicant.

(d) The applicant shall indicate whether the application is for a juvenile dancehall or an adult dancehall.

(e) An applicant for a permit under this section shall have a continuing duty to promptly supplement the application information required by this section if the information changes in any way from what is stated on the application. The applicant shall supplement the application on file with the vice and narcotics bureau within 30 days from the date of such change.

(f) If the vice and narcotics bureau determines or learns at any time that the applicant has improperly completed the application for a dancehall permit, it shall promptly notify the applicant of such fact and allow the applicant ten days to properly complete the application. The time period for granting or denying a permit shall be stayed during the period in which the applicant is allowed an opportunity to properly complete the application.

(g) The applicant shall be required to pay a nonrefundable application and investigation fee established by the city manager.

(h) Issuance of a dancehall permit does not excuse a permittee from compliance with any other applicable ordinance, regulation, or statute. By issuing a dancehall permit, the chief of police has not determined that the recipient is in compliance with any applicable local, state, or federal regulation or law or that the recipient is otherwise engaged in a legal activity or operating a business in a legal manner.
(Code 1985, § 6-158)

Sec. 6-254. Issuance of permit.

(a) Within 30 days after receipt of a completed application for a dancehall permit, the chief of police will approve or deny the application for a permit. Upon the expiration of the 30th day, unless the applicant requests and is granted a reasonable extension of time, the applicant shall

be permitted to begin operating a dancehall unless and until the chief of police notifies the applicant of a denial of the application and states the reason for the denial.

(b) The chief of police shall deny the application for any of the following reasons:

(1) An applicant or any individual identified in the application under section 6-253(b)(8) or (9) is under 18 years of age;

(2) The application and investigation fee has not been paid;

(3) An applicant or any individual identified in the application under section 6-253(b)(8) or (9) has refused to allow an inspection of the premises as authorized by section 6-256;

(4) An applicant or any individual identified in the application under section 6-253(b)(8) or (9) has overdue permit fees associated with the operation of a dancehall business;

(5) An applicant or any individual identified in the application under section 6-253(b)(8) or (9) has a permit under this article that is suspended or revoked;

(6) An applicant failed to provide the information necessary to determine the qualifications of the applicant or any individual identified in the application under section 6-253(b)(8) or (9) for issuance of the permit, or provided materially false or misleading information on the application form;

(7) An applicant or any individual identified in the application under section 6-253(b)(8) or (9) has been convicted of a crime:

a. Involving:

1. Any felony;

2. Any misdemeanor offense of or equivalent to G.S. 14-190.9, indecent exposure; G.S. 14-202, secretly peeping into room occupied by female person; G.S. 14-33, assault; G.S. 14-34, assault by pointing gun; G.S. 14-32.1, assault on handicapped person; G.S. 14-288.9, assault on emergency personnel; G.S. 14-318.2, child abuse; G.S. 14-401.14, ethnic intimidation; G.S. 14-277.1, communicating threats; G.S. 14-196, harassing phone calls; G.S. 14-277.3, stalking; G.S. 14-269, carrying concealed weapon; G.S. 14-269.7, possession of handgun by minor; G.S. 14-315.1, storage of firearm to protect minors; G.S. 14-269.3, carrying weapon where alcoholic beverages are sold and consumed; G.S. 14-277.2, weapons at parades; G.S. 14-204, 14-204.1, prostitution, loitering for prostitution; G.S. 14-190.5, preparation of obscene photographs; G.S. 14-190.14, 14-190.15(a), displaying/disseminating material harmful to minors; G.S. 14-190.15(b), exhibiting harmful performances to minors; G.S. 14-316.1, contributing to the delinquency of a minor; any misdemeanor offense under G.S. 90-86—90-113.249;

3. Common law offenses of false imprisonment or going armed to the terror of the people; or

4. Any violation of any of the sections of this article or any violation of dancehall regulations of any other city, county, or state.

b. For which:

1. Less than two years have elapsed since the date of conviction or the date of release from confinement imposed for the conviction, whichever is the later date, if the conviction is for a misdemeanor offense;

2. Less than five years have elapsed since the date of conviction or the date of release from confinement for the conviction,

whichever is the later date, if the conviction is for a felony offense; or

3. Less than five years have elapsed since the date of the last conviction or the date of release from confinement for the conviction, whichever is the later date, if the convictions are for two or more misdemeanor offenses or combination of misdemeanor offenses occurring within any 24-month period.

An applicant who has been convicted of an offense listed in subsection (b)(7)a of this section may qualify for a dancehall permit only when the time period required by subsection (b)(7)b of this section has elapsed. The fact that a conviction has been appealed has no effect on the denial of the permit; or

(8) The application demonstrates or reveals information showing that the proposed business fails to meet the requirements of this article.

(c) The permit must be posted in the dancehall in a conspicuous place at or near the entrance to the business so that it can be read easily at any time.
(Code 1985, § 6-159)

Sec. 6-255. Annual permit fee.

The annual permit fee of a dancehall business shall be established pursuant to section 2-1 of this Code.
(Code 1985, § 6-160)

Sec. 6-256. Inspection.

An applicant or any individual identified in the application under section 6-253(b)(8) or (9) shall permit representatives of the Charlotte-Mecklenburg Police Department to inspect the dancehall premises for the purpose of ensuring compliance with this article prior to the issuance of a permit under this article.
(Code 1985, § 6-161)

Sec. 6-257. Notices.

Any notice required or permitted to be given by the chief of police or the city manager under this article to any applicant, permittee, owner, or operator of a dancehall business may be given either by personal delivery or by certified United States mail, postage prepaid, return receipt requested, to the most current address as specified in the application for the permit or any notice of change of address which has been received by the chief of police. Notices mailed as provided in this section shall be deemed given upon their deposit in the United States mail and shall be presumed to have been received on the third regular postal delivery day thereafter.
(Code 1985, § 6-162)

Sec. 6-258. Notice of violation and suspension of permit.

(a) The chief of police shall issue a notice of violation if he determines that a permittee, owner, operator, or employee has violated or is not in compliance with any section of this article. The notice shall specify the section of this article that has been violated.

(b) The chief of police shall suspend a dancehall permit for a period of 30 days if the violation has not been corrected or abated within 20 days after the notice of violation has been received by the permittee, owner, or operator.

(c) A decision by the chief of police to suspend a license shall not become final until 20 days after notice of the decision has been received by the permittee, owner, or operator.

(d) It shall be unlawful for any person to operate or cause to be operated a dancehall business and such person knows or should know that the business has a permit which has been suspended.
(Code 1985, § 6-164)

Sec. 6-259. Revocation of permit.

(a) The chief of police shall revoke a dancehall permit if a suspension of the permit becomes effective following a notice of violation that was issued within 12 months of the effective date of a previous suspension.

(b) The chief of police shall revoke a dancehall permit if he determines that:

(1) An applicant or permittee provided materially false or misleading information in the material submitted in the application process;

(2) A permittee, owner, operator, or employee has knowingly allowed the sale, possession, or use of controlled substances in or on the premises;

(3) A permittee, owner, operator, or employee of an adult dancehall has served alcoholic beverages to a patron in or on the premises in violation of G.S. ch. 18B;

(4) A permittee, owner, operator, or employee of a juvenile dancehall has knowingly allowed the sale, possession, or use of any alcoholic beverages in or on the premises;

(5) A permittee, owner, operator, or employee of a juvenile dancehall has engaged in the consumption or use of alcoholic beverages or controlled substances in or on the premises;

(6) A breach of the peace has occurred in or on the premises;

(7) A permittee, owner, operator, or employee has knowingly permitted dancing or a live performance in or on the premises during a period of time when the dancehall permit was suspended; or

(8) A permittee, owner, or operator is convicted of an offense listed in section 6-254(b)(7)a since the permit was issued. The fact that a conviction is being appealed shall have no effect on the revocation of the permit.

(c) A decision by the chief of police to revoke a permit shall not become final until 20 days after the permittee, owner, or operator has received notice of the decision.

(d) When the chief of police revokes a permit, the revocation shall continue for one year, and the permittee shall not be issued a dancehall permit for one year from the date the revocation became effective.

(e) It shall be unlawful for any person to operate or cause to be operated a dancehall business and such person knows or should know that the business has a permit that has been revoked. (Code 1985, § 6-165)

Sec. 6-260. Appeal of denial, suspension, or revocation of permit.

(a) After a denial of an application for a dancehall permit, a denial of an application for renewal of a dancehall permit, or a suspension or revocation of a dancehall permit, the applicant or permittee may appeal the denial, suspension, or revocation in writing to the city manager within 20 days after notice of the denial, suspension, or revocation has been received. The city manager shall hold a hearing on whether to issue/renew the permit or uphold the denial, suspension, or revocation within five days after the receipt of the appeal. The applicant or permittee shall have the right to present evidence at the hearing. The decision to issue/renew the permit or uphold the denial, suspension, or revocation shall be based solely on the criteria set forth in this article. The city manager shall render a decision on the appeal within five business days after the date of the hearing.

(b) Upon receipt by the city manager of a written appeal pursuant to subsection (a) of this section, a denial of an application for renewal of the permit or a suspension or revocation of the permit shall be stayed until a decision is rendered by the city manager. In addition, upon receipt by the city manager of a written appeal pursuant to subsection (a) of this section, the denial of an initial application for a permit by any dancehall existing prior to the effective date of the ordinance from which this article derives shall be stayed until a decision is rendered by the city manager.

(c) The decision of the city manager is subject to review in the superior court of the county by proceedings in the nature of certiorari. Any petition for a writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been received by the applicant or permittee. A denial of an application for renewal of the permit or a suspension or

revocation of the permit shall be stayed until a decision is rendered by the superior court or the time to petition the superior court for a writ of certiorari has expired. In addition, the denial of an initial application for a permit by any dancehall business existing prior to the effective date of the ordinance from which this article derives shall be stayed until a decision is rendered by the superior court or the time to petition the superior court for a writ of certiorari has expired. The following shall apply to any appeal to superior court from a decision of the city manager:

(1) Unless good cause exists to contest a petition for a writ of certiorari, the city shall stipulate to certiorari no later than five business days after the petitioner requests such a stipulation.

(2) The city shall transmit the record to the court no later than five business days after receiving the order allowing certiorari.

(3) Notwithstanding the provisions of any local rule of the reviewing court which allows for a longer time period, the city shall file its brief within 15 days after it is served with the petitioner's brief. If the petitioner serves his brief by mail, the city shall add three days to this time limit, in accordance with G.S. 1A-1, rule 5. If the local rule is subsequently amended to provide for a shorter time period for the filing of any brief, the shorter time period shall control.

(d) An appeal by an applicant or permittee from the superior court of the county shall be governed by the North Carolina Rules of Appellate Procedure but, unless a court of competent jurisdiction otherwise provides, such appeal shall not stay any action taken with regard to the permit.
(Code 1985, § 6-166)

Sec. 6-261. Transfer of permit.

A permittee shall not transfer a dancehall permit to another person or to another premises. The transfer of a dancehall permit shall automatically and immediately revoke the permit.
(Code 1985, § 6-167)

Sec. 6-262. Expiration of permit.

(a) Each dancehall permit shall expire one year from the date of issuance and may be renewed only by making application, as provided in section 6-253, and paying the annual permit fee, as required by section 6-255. Application for renewal of the permit shall be made at least 30 days before the expiration date, and when made less than 30 days before the expiration date, the expiration of the permit shall not be affected.

(b) When the chief of police denies renewal of the permit, the applicant shall not be issued a permit under this article for one year from the date of denial. If, subsequent to the denial, the chief of police determines that the basis for the denial has been corrected, the applicant shall be granted a permit.

(c) It shall be unlawful for any person to operate or cause to be operated a dancehall and such person knows or should know that the business has a permit that has expired.
(Code 1985, § 6-168)

Sec. 6-263. Persons under 18 permitted in adult dancehalls.

An adult dancehall business shall be subject to the following:

(1) A person under 16 years of age is permitted to remain on the premises of an adult dancehall until 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday, or Thursday, and until 12:01 a.m. on any Saturday or Sunday. A person under 16 years of age may remain on the premises of an adult dancehall after the hours stated in this subsection only if he is accompanied by a parent, guardian, or a person over 18 years of age authorized by the parent or guardian of such person to take the parent's or guardian's place.

(2) A person 16 or 17 years of age is permitted to remain on the premises of an adult dancehall until 12:00 midnight on any Sunday, Monday, Tuesday, Wednesday, or Thursday, and until 2:30 a.m. on any Saturday or Sunday. A person 16 or 17 years of age may remain on the premises

of an adult dancehall after such hours only if he is accompanied by a parent, guardian, or a person over 18 years of age authorized by the parent or guardian of such person to take the parent's or guardian's place.

(3) It shall be unlawful for a person to falsely represent himself to be a parent, a guardian, or a person authorized by a parent or guardian of another person under 18 years of age for the purpose of gaining the other person's admission into an adult dancehall in violation of the restrictions set forth in subsections (1) and (2) of this section.

(4) It shall be unlawful for a permittee, owner, operator, or employee of an adult dancehall to knowingly allow a person under 18 years of age to enter or remain upon the premises of an adult dancehall in violation of the restrictions set forth in subsections (1) and (2) of this section.

(5) If a permittee, owner, operator, or employee of an adult dancehall allows a person under 16 years of age to enter the premises, it shall be unlawful for such permittee, owner, operator, or employee to maintain or operate the premises without conspicuously posting a sign at each entrance to the business that clearly reads: "It is unlawful for a person under 16 years of age to remain on these premises after 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday, or Thursday, and after 12:01 a.m. on any Saturday or Sunday unless he or she is accompanied by a parent, guardian, or a person over 18 years of age authorized by the parent or guardian of such person to take the parent or guardian's place."

(6) If a permittee, owner, operator, or employee allows a person 16 or 17 years of age to enter the premises, it shall be unlawful for such permittee, owner, operator, or employee to maintain or operate the premises without conspicuously posting a sign at each entrance to the business that clearly reads: "It is unlawful for a person 16 or 17 years of age to remain on these premises after 12:00 midnight on any Sunday, Monday, Tuesday, Wednesday, or Thursday, and after 2:00 a.m. on any Saturday or Sunday unless he or she is accompanied by a parent, guardian, or a person over 18 years of age authorized by the parent or guardian of such person to take the parent or guardian's place."

(Code 1985, § 6-169)

Sec. 6-264. Persons 18 and over prohibited in juvenile dancehalls.

A juvenile dancehall business, regardless of whether or not a permit has been issued for the business under this article, shall be subject to the following:

(1) It shall be unlawful for a person 18 years of age and over to enter a juvenile dancehall.

(2) It shall be unlawful for a person to falsely represent himself to be under 18 years of age for the purpose of gaining admission to a juvenile dancehall.

(3) It shall be unlawful for a permittee, owner, operator, or employee of a juvenile dancehall to knowingly allow a person 18 years of age or older to enter or remain upon the premises of a juvenile dancehall.

(4) It shall be unlawful for a permittee, owner, operator, or employee of a juvenile dancehall to maintain or operate the premises without posting a conspicuous sign at the entrance to the business that clearly reads: "It is unlawful for any person 18 years of age or over to enter these premises."

(5) It is a defense to a prosecution under subsection (1) or (2) of this section that the person is:

a. A permittee, owner, operator, or employee of the dancehall;

b. A parent or guardian of a person inside the dancehall; or

c. A governmental employee in the performance of official duties.

d. A person exclusively on the premises for the repair or maintenance of the premises; the delivery of goods to the premises; or the delivery of services, such as legal, accounting, insurance, or other similar services provided to businesses generally.

(Code 1985, § 6-170)

Sec. 6-265. Hours of operation of juvenile dancehalls.

A juvenile dancehall, regardless of whether or not a permit has been issued for the business under this article, shall be subject to the following:

(1) It shall be unlawful to operate a juvenile dancehall during any hours other than between 4:00 p.m. and 11:00 p.m. on any Sunday, Monday, Tuesday, Wednesday, and Thursday, or between 4:00 p.m. on Friday and 12:01 a.m. on the following day (Saturday), or between 1:00 p.m. on Saturday and 12:01 a.m. on the following day (Sunday).

(2) It shall be unlawful for any person to enter or remain in or upon the premises of a juvenile dancehall other than during the hours set forth in subsection (1) of this section, unless the person is a permittee, owner, operator, or employee of the dancehall, or a person as described in subsections 6-264(5)c and (5)d.

(Code 1985, § 6-171)

Sec. 6-266. Public safety.

(a) The following security shall be provided at all dancehalls:

(1) Exterior security officers, consisting of off-duty (extra-duty) sworn law enforcement officers, of a number as determined appropriate in an application to the law enforcement agency requesting the officers, which number shall not be less than two; provided, however, one exterior security officer may be permitted if two immediately adjacent establishments mutually utilize the same two officers, and such arrangement is approved by the law enforcement agency assigning the officers. Exterior security officers shall only be required if the number of occupants exceeds 250.

(2) When required, exterior security personnel shall be provided seven days a week.

(b) No person shall operate a dancehall in violation of any applicable section of chapter 8 of this Code which pertains to fire prevention and protection.

(Code 1985, § 6-172)

Sec. 6-267. Zoning.

No person shall operate a dancehall in violation of any applicable section of the city zoning ordinance in appendix A to this Code.

(Code 1985, § 6-173)

Sec. 6-268. Presence of dancehall operator required.

It shall be unlawful for an operator of a dancehall to fail to remain on the premises during all hours of operation and until 30 minutes after closing time, to ensure that the operation is conducted in accordance with the requirements of this article.

(Code 1985, § 6-174)

Sec. 6-269. Existing businesses.

Any adult or juvenile dancehall existing prior to the effective date of the ordinance from which this article derives shall comply with the regulations contained in this article 90 days after such effective date.

(Code 1985, § 6-175)

Sec. 6-270. Penalties and remedies.

Violations of this article may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4. Each violation shall be considered a separate and distinct offense, and each day of continued violation shall be considered as a separate offense. The issuance of a notice of violation or a suspension or revocation of a dancehall permit shall not prohibit the imposition of a criminal penalty, and the imposi-

tion of a criminal penalty shall not prevent the issuance of a notice of violation or a suspension or revocation of the permit.
(Code 1985, § 6-176; Ord. No. 278, § 2, 4-4-2022)

Sec. 6-271. Civil injunction.

In addition to the issuance of a notice of a violation, the suspension or revocation of a dancehall permit, or a prosecution for criminal violations, any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175.
(Code 1985, § 6-177)

Secs. 6-272—6-300. Reserved.

ARTICLE IV. ESCORT AND DATING SERVICES

Sec. 6-301. Purpose and intent.

Experience has shown that escort and dating services are frequently fronts for prostitution. Experience has also shown that applicants for an escort, dating service or similar type business privilege license under chapter 13 of this Code frequently provide false information. It is the intent of this article to ensure that owners and operators of escort and dating services provide accurate and verifiable information about the business and to establish accountability for any attempt to use an escort or dating service as a front for prostitution.
(Code 1985, § 6-126)

Sec. 6-302. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dating service means any business, agency or person who offers or performs for pecuniary compensation any service to aid persons to become socially acquainted or to otherwise assist persons to meet for social purposes.

Escort means a person who is an employee, agent or independent contractor of an escort service, and:

(1) Whose name is furnished by the escort service; or

(2) Who is introduced or furnished by the escort service to persons; or

(3) Who is provided by the escort service for the accompaniment of other persons to or about social affairs, entertainments or places of amusement; or

(4) Who is provided by the escort service to consort with others about any public or private place; and

(5) Who receives pecuniary compensation in exchange therefor.

Escort service means any business, agency or person who for pecuniary compensation furnishes or offers to furnish names of escorts; who introduces, furnishes or arranges for escorts, who may accompany other persons to or about social affairs, entertainments or places of amusement; or who may consort with others about any public or private place.

Permitting authority means a sworn police officer designated by the chief of police in the vice and narcotics bureau of the Charlotte-Mecklenburg Police Department.
(Code 1985, § 6-127)

Cross reference—Definitions generally, § 1-2.

Sec. 6-303. Permit required; permit limitations; transferability of permit.

(a) It shall be unlawful for any person to engage in, conduct, carry on, or permit to be engaged in, conducted or carried on the operation of:

(1) An escort service, without a valid escort service permit issued pursuant to this article; or

(2) A dating service, without a valid dating service permit issued pursuant to this article.

(b) The issuance of an escort service permit does not authorize the permit holder to operate a dating service. The issuance of a dating service permit does not authorize the permit holder to operate an escort service.

(c) A separate permit shall be required for each location within the city at which a dating service or escort service is established or name under which it operates.

(d) An escort service or dating service permit is not transferrable.
(Code 1985, § 6-128)

Sec. 6-304. Application for permit; criteria for issuance or denial of permit.

(a) Any person desiring to obtain a permit to operate an escort service or dating service shall make application to the permitting authority.

(b) An applicant for an escort service permit or dating service permit shall provide the following:

(1) The full true name of the applicant/owner of the business.

(2) The full true name under which the business will be conducted and, if the business will be conducted in a name other than that of the applicant/owner, a certified copy of an assumed name certificate prepared and recorded in the office of the county register of deeds pursuant to G.S. 66-68 et seq.

(3) The address where the business is to be conducted and where the books and records are maintained for examination by the tax collector, or his agent, pursuant to section 13-39 of this Code, and the hours of operation during which such books and records are available for examination.

(4) If the owner of the real property upon which the business is to be conducted is not the applicant, the name and address of the owner of the real property upon which the business is to be conducted and a copy of the lease or rental agreement.

(5) All telephone numbers to be used by the business.

(6) If the applicant/owner is:

a. A natural person, the applicant/owner shall appear in person and complete and sign all application forms and provide the following information:

1. The present residence and business addresses and telephone numbers of the applicant;

2. A valid driver's license or other governmentally issued picture identification; and

3. A government-issued social security card.

b. A partnership:

1. The names and residence addresses of each partner, including limited partners; and

2. A copy of the partnership agreement.

If one or more of the partners is a corporation, the provisions of subsection (6)c shall apply.

c. A corporation:

1. A certified copy of the articles of incorporation or, if a foreign corporation, a certified copy of the certificate of authority, and a certified copy of the most recent annual report filed with the secretary of state; and

2. The name and residence address of each of its current officers and directors and of each stockholder holding more than five percent of the stock of the corporation.

d. A partnership or corporation, the applicant shall designate one of its general partners or officers to act as its responsible managing officer. Such person shall appear in person and complete and sign all application forms and shall provide his present residence and business addresses and telephone numbers, valid driver's license or other governmentally is-

sued picture identification, and government-issued social security card.

(7) A federal tax identification number assigned to the business and a completed tax information authorization form (IRS Form 8821).

(c) Within 30 days of the application, the permitting authority shall investigate an application and verify all information submitted. If the application is complete and all information provided is accurate, a permit shall be issued. If the application is incomplete or if any information provided is inaccurate, the application shall be denied.

(d) The holder of an escort service permit or dating service permit shall notify the permitting authority in writing of any change of the information required under subsection (b) of this section within 30 days of such change.
(Code 1985, § 6-129)

Sec. 6-305. Registration of escorts.

Any person desiring to operate as an escort shall appear in person and register with the permitting authority by providing the following information:

(1) Full true name and any alias that might be used while acting as an escort.

(2) Present residence address and telephone number.

(3) Valid driver's license or other governmentally issued picture identification.

(4) Government-issued social security card.

(5) Name of the escort service for which the registrant is an employee, agent, or independent contractor.
(Code 1985, § 6-130)

Sec. 6-306. Permit revocation.

The permitting authority may revoke an escort service permit or dating service permit for any of the following reasons:

(1) An applicant/owner provides the permitting authority with any false, inaccurate, or incomplete information, regardless of whether such information was initially believed to be true or complete.

(2) Failure to provide notice of a change in information as required by section 6-304(d).

(3) The furnishing of or the offer to furnish names of escorts who are not registered as escorts of the escort service pursuant to section 6-305, or the introduction, furnishing or arrangement for escorts who are not registered as escorts of the escort service pursuant to section 6-305, who may accompany other persons to or about social affairs, entertainments or places of amusement or who may consort with others about any public or private place.

(4) A dating service permit may be revoked for operation of an escort service without a valid escort service permit.

(5) The escort service or dating service engages in, conducts, permits, promotes or facilitates activities which constitute violations of any provision of G.S. 14-204 or 14-177 or which constitute solicitations to commit violations of any provision of those statutes.
(Code 1985, § 6-131)

Sec. 6-307. Appeal of denial or revocation of permit.

An applicant/owner may appeal the denial or revocation of an escort service permit or dating service permit by providing written notice of the appeal to the permitting authority within ten business days of a denial or revocation. Appeals shall be heard by a deputy police chief of the Charlotte-Mecklenburg Police Department within 15 working days from the date of the appeal.
(Code 1985, § 6-132)

Secs. 6-308—6-335. Reserved.

ARTICLE V. HEALTH MASSAGE/BODYWORK THERAPISTS

Sec. 6-336. Purpose; exemptions.

(a) This article is adopted in the interest of public health, safety, welfare and morals and to protect the public from unqualified practitioners and unethical businesses.

(b) This article shall not apply to the following:

(1) Physicians, surgeons, chiropractors, osteopaths, physical therapists or podiatrists duly licensed to practice in this state; and registered or licensed practical nurses governed by the North Carolina Nursing Practices Act.

(2) Athletic directors or trainers who are affiliated with an approved educational institution or professional sports team and whose work is limited to athletic team members.

(3) Licensed cosmetologists, barbers or beauty culturists who do not give or hold themselves out to give massage treatments other than customarily given in such establishments, solely for the purpose of beautification.

(Code 1985, § 6-116)

Sec. 6-337. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Health massage/bodywork therapist means any person, whether male or female, who is engaged in the practice of health massage/bodywork therapy and who has graduated from an institute or school of massage therapy licensed under a state licensing requirement, or who is certified by the American Massage Therapy Association or the National Certification Board for Therapeutic Massage and Body Work, or who meets the criteria of section 6-338(d).

Health massage/bodywork therapy means systems of activity applied to the superficial or deep tissues (muscles, tendons, ligaments, connective tissue, skin) of the body by means of applying pressure with the hands, feet, arms, or elbows for therapeutic and/or relaxing purposes. Soft tissue health massage/bodywork practices are designed to promote general relaxation, improve flexibility and pliability of the soft tissues or relieve stress and muscle hypertension, and to enhance a general sense of well-being in the client. The term "therapy" does not include the diagnosis or treatment of illness or disease; medical procedures; or the use of modalities for which a license to practice medicine, chiropractic, physical therapy, acupuncture or podiatry is required by law.

Health massage/bodywork therapy establishment means any business or establishment wherein health massage/bodywork therapy is performed solely by health massage/bodywork therapists.
(Code 1985, § 6-117)

Cross reference—Definitions generally, § 1-2.

Sec. 6-338. Licensing.

(a) No person shall perform health massage/bodywork therapy unless such a person shall have first applied for and received a privilege license from the city-county tax collector. Such privilege license shall be issued only to those persons meeting the definition of health massage/bodywork therapist in section 6-337.

(b) The application for the license required by this section shall be upon a form approved by and filed with the city-county tax collector. Such application shall include the following information:

(1) The name and business address of the applicant; and

(2) A diploma or certificate of graduation from an institute or school of health massage/bodywork therapy whose curriculum is licensed under a state licensing requirement, or a valid document of certification from the American Massage Therapy Association or the National Certification Board for Therapeutic Massage and Body Work, or the information required in subsection (d) of this section.

(c) Each applicant for a license issued pursuant to this section shall pay the privilege license tax provided in chapter 13, article II, of this Code.

(d) Any person who has been engaged in the business of health massage/bodywork therapy for at least three years prior to the application shall be deemed a health massage/bodywork therapist under this article, provided that:

(1) The applicant submits verification and documentation of at least 500 hours of

experience in the practice of health massage/bodywork therapy to the authority issuing the license.

(2) Three letters of reference are provided from state-licensed health care professionals or health massage/bodywork therapists licensed under this article, attesting to the sound moral character, professional qualifications, and competence of the applicant.

(3) The applicant pays the application and license taxes required under this Code.

(4) The appropriate application required under this article is completed.

(Code 1985, § 6-118)

Sec. 6-339. Use of only licensed therapists; posting of license.

(a) No person or business shall permit anyone to perform health massage/bodywork therapy upon the premises operated by that person or business unless the individual performing health massage/bodywork therapy has been issued a license as required by this article.

(b) Every health massage/bodywork therapist shall post the license required by this article in the therapist's work area at all times.

(Code 1985, § 6-119)

Secs. 6-340—6-365. Reserved.

ARTICLE VI. JUNK DEALERS*

Sec. 6-366. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Junk means any worn-out or discarded metal, old iron, used plumbing fixtures, other metals, automobiles, automobile parts, chain, copper, parts of machinery, bottles, rags, tallow, hides, worn-out automobile tires and other articles commonly known as junk.

(Code 1985, § 6-11)

Cross reference—Definitions generally, § 1-2.

Sec. 6-367. Compliance required.

Any person within the city limits engaged in the business of buying, selling, handling, storing or hauling any junk shall comply with the requirements of this article.

(Code 1985, § 6-12)

Sec. 6-368. Application for permit.

A person, as described in section 6-367, shall make a written application to the chief of police for a permit to engage in the business of a junk dealer, as described in section 6-367, which application shall state the place where such business is to be conducted.

(Code 1985, § 6-13)

Sec. 6-369. Permit issuance.

If the application for a permit as required by section 6-368 shall be approved as provided in section 6-368, the applicant shall then be entitled to a permit to engage in the business of dealing in junk, provided such applicant has paid the privilege tax required by chapter 13, article II, and has complied with all other applicable requirements of this Code or city ordinances, including execution of a bond.

(Code 1985, § 6-14)

Sec. 6-370. Reports to chief of police; inspections; certain purchases prohibited.

(a) Any person engaged in the junk business, as authorized by this article, shall report to the chief of police, whenever requested by the chief, all articles purchased during such period of time as may be designated by the chief and the names and residences of the sellers, together with a full description of such articles, distinguishing marks, numbers, brands or monograms of any kind on such articles.

*__State law references—__Regulations re junk dealers, G.S. 66-10, 66-11; littering, G.S. 14-399; inspection of motor vehicles, G.S. 20-49(5).

(b) Every article so purchased shall remain at the place of business of the junk dealer open to inspection by the chief of police or his representative for at least five days before being moved or otherwise disposed of. All articles of junk and the premises of junk dealers shall be subject to inspection by the police department at all times.

(c) No junk dealer shall purchase articles of junk from minors.
(Code 1985, § 6-15)

Sec. 6-371. Daily record of certain articles purchased.

(a) Any person engaged in the junk business, as authorized by this article, shall each day file with the chief of police a complete record showing each and every article purchased, or otherwise acquired, by him during the preceding day's business, except that the report for Saturday's transactions shall be filed on Monday.

(b) Such report shall include the following:

(1) The name, sex, social security number and address of the person from whom such article was acquired;

(2) A description sufficient to identify each article;

(3) The hour and date of receiving the article; and

(4) The license number of any motor vehicle transporting such article or the seller thereof.

(c) Such report shall be required only with respect to articles of the following nature:

(1) Automobile parts, tires or accessories;

(2) Hardware, tools, plumbing fixtures, boilers, radiators, pipe fittings, valves, steel pipe, refrigerating appliances, gas cylinders or pressure containers, electrical fixtures and appurtenances, wires;

(3) Railroad rails, spikes and bonds;

(4) Supplies, materials, or portions of any of such articles or used in connection with any of such articles; and also

(5) Any lead, copper, brass, aluminum, silver or nickel not included in subsection (c)(1) through (4) of this section.

(Code 1985, § 6-16)

Sec. 6-372. Time for holding certain articles.

All articles coming under section 6-371 shall be held for a period of seven days at the junkyard before they shall be broken, damaged, or disposed of in any manner, unless waiver of this requirement in writing is obtained from the police department.
(Code 1985, § 6-17)

Secs. 6-373—6-400. Reserved.

ARTICLE VII. MASSAGE PARLORS, HEALTH SALONS AND RELATED BUSINESSES

Sec. 6-401. Purpose; exceptions.

(a) To protect public health, safety, welfare and morals, this article is enacted to regulate the privilege of carrying on the business, trade, or profession of massagist and the operation or carrying on of the businesses, trades, or professions commonly known as massage parlors, bath parlors, health salons, physical culture studios, or similar establishments wherein massage or physical manipulation of the human body is carried on or practiced.

(b) This article shall not apply to the following:

(1) A regularly established and licensed hospital, sanitarium, or nursing home;

(2) An office or clinic operated and regularly used by a duly qualified and licensed medical practitioner, osteopath, or chiropractor in connection with the practice of medicine, chiropractic or osteopathy;

(3) Any treatment given in the residence of a patient if administered by a licensed physician, osteopath or registered physical therapist or chiropractor; or

(4) Health massage/bodywork therapists wherever they may be engaged in the business or profession of health massage/bodywork therapy, who are licensed under this article.

(Code 1985, § 6-41)

Sec. 6-402. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business or profession of massage includes the massage or treatment of any person for a fee or in expectation of a gratuity from the person massaged.

Massage means the manipulation of body muscle or tissue by rubbing, stroking, kneading or tapping, by hand or mechanical device.

Massage business means any establishment or business wherein massage is practiced, including establishments commonly known as health clubs, physical culture studios, and massage parlors.

Massagist means any person engaged in the business or profession of massage.

Private parts means the penis, scrotum, mons veneris, vulva or vaginal area.

(Code 1985, § 6-42)

Cross reference—Definitions generally, § 1-2.

Sec. 6-403. Prohibited acts.

(a) It shall be unlawful for any massage business to knowingly provide, allow or permit a massage or treatment to be given by a person to a person of the opposite sex.

(b) It shall be unlawful for any massagist to massage or treat a person of the opposite sex.

(c) It shall be unlawful for any person to massage or to offer to massage the private parts of another for hire.

(Code 1985, § 6-43)

Sec. 6-404. Licensing.

(a) No person shall operate a massage business unless such person shall have first applied for and received a privilege license from the city-county tax collector.

(b) No person shall engage in the business or profession of massage unless such person shall have first applied for and received a privilege license from the city-county tax collector. Each application shall be accompanied by a medical certificate signed by a physician that the applicant was examined by the physician and that the applicant is free of any communicable disease. A new medical certificate shall be required with each application for renewal of the privilege license.

(c) Each applicant for a license issued pursuant to this section shall pay the privilege license tax provided in chapter 13, article II, of this Code.

(Code 1985, § 6-44)

Sec. 6-405. Use of only licensed persons.

No person licensed under section 6-404 of this article shall permit any person to massage or treat any person upon the premises operated by the licensee unless the person giving such massage or treatment has been issued a license as required by section 6-404(b) of this article.

(Code 1985, § 6-45)

Secs. 6-406—6-430. Reserved.

ARTICLE VIII. PEDDLERS*

Sec. 6-431. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Cross reference—__Streets, sidewalks and other public places, ch. 19.

State law references—Peddling during school hours, G.S. 14-238; authority to regulate peddlers, itinerant merchants, salesmen, etc., G.S. 160A-178.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Article of merchandise means anything of value offered for sale to the public by any person.

Coliseum district means and includes that area of land off Tyvola Road, which is devoted to use by the Charlotte Coliseum, including all of the parking areas.

Congested business district is hereby declared, designated and defined to be the following streets of the city:

(1) Chipley Avenue;

(2) Church Street, between Fifth Street and Martin Luther King, Jr. Boulevard;

(3) Coliseum Drive;

(4) College Street, between Seventh Street and Brooklyn Village Avenue;

(5) Independence Boulevard, between Morehead Street and the city limits;

(6) Television Place;

(7) Trade Street, between Alexander and Cedar Streets;

(8) Tryon Street, between Eighth Street and Brooklyn Village Avenue;

(9) Second Street, between College and Church Streets;

(10) Third Street, between College and Church Streets;

(11) Fourth Street, between College and Mint Streets;

(12) Fifth Street between Church and College Streets;

(13) Sixth Street, between Church and College Streets;

(14) Seventh Street, between Church and College Streets;

(15) North Davidson Street, between 32nd and Mercury Street;

(16) Yadkin Avenue, between 32nd and 36th Streets;

(17) 32nd Street, between Yadkin Avenue and North Davidson Street;

(18) 33rd Street, between Yadkin Avenue and Rollerton Road;

(19) 34th Street, between North Davidson Street and Yadkin Avenue;

(20) 35th Street, between railroad tracks and Yadkin Avenue; and

(21) 36th Street, between railroad tracks and N. Alexander Street.

The city manager or his designee shall have the authority to amend that area designated and defined as the congested business district of the city by expanding or reducing the number of streets contained therein.

Peddling means the sale or offering for sale at retail by any person on foot or from any vehicle where it is proposed by such person so offering or selling such article of merchandise to deliver the article of merchandise to the purchaser instantly upon receipt of the purchase price therefor.

Stadium district means and includes an area bounded by the following:

(1) East Seventh Street from North McDowell Street to Hawthorne Lane;

(2) Hawthorne Lane to East Fourth Street;

(3) East Fourth Street to South McDowell Street; and

(4) South McDowell Street to East Seventh Street.

(Code 1985, § 6-21; Ord. No. 992, § 1, 6-23-2025)

Editor's note—Pursuant to this section, the city manager is authorized to amend the "congested business district" streets. A copy of the current list of streets is on file in the office of the city clerk.

Cross reference—Definitions generally, § 1-2.

Sec. 6-432. License required.

It shall be unlawful for any person required to have a license to peddle any article of merchandise upon the streets or sidewalks of the city until such person shall have first secured a proper license to peddle the articles of merchandise, and

such person shall keep and shall produce and exhibit the license to any lawful officer upon demand.
(Code 1985, § 6-22)

Sec. 6-433. Producer-peddler's permit—Required.

It shall be unlawful for any person to peddle any article of merchandise in the city, which article of merchandise has been grown, made or manufactured by such person or members of such person's immediate family, upon premises owned or occupied by such person or the members of such person's immediate family until such person shall have first obtained a permit therefor from the collector of revenue.
(Code 1985, § 6-23)

Sec. 6-434. Same—Application.

Every person desiring to obtain a permit to peddle any article of merchandise in the city which has been grown, produced, made or manufactured by such person or members of such person's immediate family upon premises owned or occupied by such person or the members of such person's immediate family shall apply and make a sworn affidavit as appears in this section before the revenue collector. Upon making application and swearing to such affidavit, the revenue collector shall issue to such person a free permit to peddle such article of merchandise as allowed in this section, all of which shall be given free of charge. The affidavit sworn to by such applicant to be in a form as follows:

"I, _____, residing at _____, first being duly sworn, depose and say:

That all of the articles of merchandise to be peddled and proposed to be sold or offered for sale by me in the City of Charlotte will be grown, produced, made or manufactured by me on my premises or upon the premises of my immediate family, owned or occupied by me or members of my immediate family, and that I will not, by peddling on foot or from any vehicle, sell or offer for sale in the City of Charlotte any article of merchandise which has been purchased for resale.

I make this affidavit for the purpose of having issued to me a free permit to peddle the articles of merchandise described herein and no other, in the City of Charlotte.

This the _____ day of _____, 20____.

/s/ _____

Sworn and subscribed to before me, This _____ day of _____, 20____.

/s/ _____
Notary Public

My commission expires _____."
(Code 1985, § 6-24)

Sec. 6-435. Same—Issuance.

The free permit provided for in section 6-434 shall be in force and effect until revoked for cause. Each person to whom such free permit shall be issued shall keep and have such permit on his person or vehicle at all times while peddling and shall produce and exhibit the permit to any lawful officer upon demand.
(Code 1985, § 6-25)

Sec. 6-436. Peddling in congested business district, coliseum district or stadium district.

It shall be unlawful for any person to sell any article of merchandise upon any of the streets and sidewalks within the congested business district, the coliseum district and the stadium district of the city, as defined in section 6-431, other than newspapers and magazines, except as provided in article X of this chapter and except as follows:

(1) Any peddler with the proper business licenses shall be permitted to apply for a permit to sell merchandise within the congested business district as part of a market, festival, activity or other similar event sponsored or sanctioned by the city or county government. No peddler without the required permit shall otherwise sell merchandise within the congested busi-

ness district. All applications for such permits shall be made to the appropriate event sponsor.

(2) Any peddler with the proper business licenses shall be permitted to apply for a permit to sell merchandise within the NoDa Market, as defined in section 6-431(15-21), during a pilot period of up to six months commencing no later than August 15, 2025. All applications for such permits shall be made to the City of Charlotte.

(3) Because of the space limitations within the boundaries of such events, peddlers may be subject to a selection process established and adopted by the event sponsor. The selection process shall include the adoption of guidelines which ensure the fair and equitable selection of all peddlers seeking to sell merchandise at the sponsored event. Peddlers at such events may be assigned locations. Where locations are assigned, the event sponsor shall develop and adopt fair and equitable guidelines for the assignment of locations. Each event sponsor shall establish and adopt an appropriate appeal process for disgruntled peddlers.

(4) In addition to the required licenses, peddlers may be subject to such additional fees as may be established or authorized by the city council and amended by the city manager or his designee pursuant to subsection (1) of this section or the Tryon Street Mall closing policy.

(5) The city manager or his designee shall have the authority to designate the boundaries of any market, festival, activity or other similar event. To accommodate such an event, the city manager or his designee is further authorized to temporarily close any public streets, sidewalks or other publicly owned areas within the boundaries of any proposed market, festival, activity or similar event. Where such streets, sidewalks or other publicly owned areas are temporarily closed, they shall be for the general use of the public.

(Code 1985, § 6-26; Ord. No. 992, § 1, 6-23-2025)

Sec. 6-437. Time on street limited.

It shall be unlawful for any person, while peddling any article of merchandise from any vehicle or on foot, to occupy any space upon any street within one block or to occupy any space within a 300-foot distance for a period of more than 30 minutes during any 24-hour period.
(Code 1985, § 6-27)

Sec. 6-438. Restricted hours in residential areas.

It shall be unlawful to peddle any article of merchandise from any vehicle or on foot between the hours of 8:00 p.m. and 8:00 a.m. in areas zoned for residential purposes within the corporate limits. However, during such periods that daylight saving time is in effect, these hours shall be from 9:00 p.m. to 8:00 a.m.
(Code 1985, § 6-28)

Sec. 6-439. Penalty.

Any person who violates a provision of this article may be assessed a civil penalty not to exceed $500.00 pursuant to section 2-24.
(Ord. No. 992, § 1, 6-23-2025)

Secs. 6-440—6-465. Reserved.

ARTICLE IX. SEXUALLY ORIENTED BUSINESSES*

Sec. 6-466. Purpose and authority.

It is the purpose of this article to regulate sexually oriented businesses to promote the health, safety, and general welfare of the citizens of the city and to establish reasonable and uniform regulations to prevent the deleterious effects of sexually oriented businesses. This article has neither the purpose nor effect of imposing a

*__Cross reference—__Zoning, app. A.

__State law reference—__Authority to regulate sexually oriented businesses, G.S. 160A-181.1.

limitation or restriction on the content of any communicative materials or other expressive activities, including sexually oriented materials or activities. Similarly, it is not the intent or effect of this article to restrict or deny access by adults to sexually oriented materials protected by the First Amendment or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. Neither is it the intent nor effect of this article to in any way condone or legitimize the distribution of obscene material or material harmful to minors. The authority for this article is G.S. 160A-174, G.S. 160A-194, and G.S. 160A-181.1.
(Code 1985, § 6-134)

Sec. 6-467. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Adult bookstore means a retail establishment that has:

(1) As one of its principal business purposes the sale or rental of or a substantial or significant portion of its stock in trade for sale or rental:

a. Publications which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as defined in this section; and/or

b. Sexually oriented devices, as defined in this section.

(2) As used in this definition, publications include, by way of illustration, books, magazines, other periodicals, movies, videotapes, and other products offered in photographic, electronic, magnetic, digital, or other imaging medium.

(3) Any of the following shall be indicia that an establishment has as one of its principal business purposes the sale or rental of: (i) publications which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified sexual activities or specified anatomical areas, as defined in this section; and/or (ii) sexually oriented devices, as defined in this section:

a. The business advertises the sale or rental of adult publications and/or sexually oriented devices.

b. Access by persons under 18 years of age to the business establishment or portions of the business establishment is restricted.

c. Signs or notices are posted outside and/or inside the business establishment indicating that the material offered for sale or rental might be offensive.

d. The building or portion of the building containing the business establishment does not have windows or has windows that are screened or otherwise obstructed or are situated in a manner that restricts visual access from outside the building to materials displayed within for sale or rental.

Such indicia shall be considered along with all other factors and available information.

(4) Notwithstanding the foregoing, a general circulation video store that does not offer for sale any sexually oriented devices shall not constitute an "adult bookstore" even though it offers for sale and/or rental videotapes which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as defined in this section, so long as:

a. Such described videotapes are stocked and displayed in a room separate from the area of the business establishment where general circulation videotapes are stocked and displayed;

b. Access by persons under 18 years of age to the room where such described videotapes are stocked and displayed is restricted;

c. The square footage of the separate room where such described videotapes are stocked and displayed is no more than ten percent of the square footage of the area where general circulation videotapes are stocked and displayed; and

d. The general circulation videotape portion of the business establishment offers a quantity and selection of new release general circulation videotapes that is typical of a general circulation video store and offers a quantity and selection of other general circulation videotapes that are organized and displayed in a manner that is typical of a general circulation video store.

Adult live entertainer means an employee who engages in or performs adult live entertainment.

Adult live entertainment means any performance of or involving the actual presence of real people which exhibits specified sexual activities or specified anatomical areas, as defined in this section.

Adult live entertainment business means any establishment or business which has as one of its principal business purposes the presentation of adult live entertainment for observation by patrons.

Adult mini-motion-picture booth means any booth or partitioned area of less than 150 square feet in an adult mini-motion-picture theater that is designed to hold patrons for the presentation and viewing of still or motion pictures (slides, film, videotape, laser disc, CD-ROM or other imaging media) that are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as defined in this section.

Adult mini-motion-picture theater means a commercial establishment with one or more adult mini-motion-picture booths where:

(1) One of the principal business purposes is the presentation and viewing of still or motion pictures in the viewing booths that are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as defined in this section; or

(2) A substantial or significant portion of the stock of still or motion pictures available for viewing or that are actually viewed in the viewing booths are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified anatomical areas or specified sexual activities, as defined in this section.

(3) Any of the following shall be indicia that the business establishment has as one of its principal business purposes the presentation and viewing in viewing booths still or motion pictures which are distinguished or characterized by their emphasis on matter depicting, describing, or relating to specified sexual activities or specified anatomical areas, as defined in this section:

a. Restricted access to the business establishment or portions of the business establishment where viewing booths are located by persons under 18 years of age.

b. Posted signs or notices outside and/or inside the business establishment indicating that the material offered for presentation and viewing in the viewing booths might be offensive.

Such indicia shall be considered along with all other factors and available information.

Adult motion-picture theater means a commercial establishment that regularly presents motion pictures which are distinguished or characterized by an emphasis on matter depicting, describing, or relating to specified sexual

activities or specified anatomical areas, as defined in this section, in an area, whether enclosed or not, of 150 square feet or greater, for observation by patrons therein.

Applicant means and includes the owner of a sexually oriented business.

Chief of police means the chief of the Charlotte-Mecklenburg Police Department, or his designee.

City manager means the city manager, or his designee (who shall not be an employee of the Charlotte-Mecklenburg Police Department).

Clothing modeling studio means any place where, for any form of consideration or gratuity, a person agrees or offers to privately model clothing, including, but not limited to, lingerie, for an individual patron.

Convicted means an adjudication of guilt and entry of judgment following a trial or a plea of guilty or no contest in a criminal case arising under local, state, or federal law.

Employee describes and pertains to any person who performs any service or entertainment upon the premises of a sexually oriented business, whether or not the person is denominated an employee, independent contractor, agent, or otherwise and regardless of whether or not the person is paid a salary, wage, or other compensation by the operator of the business. The term "employee" does not include a person exclusively on the premises for any of the following:

(1) The repair or maintenance of the premises;

(2) The delivery of goods to the premises; or

(3) The delivery of services, such as legal, accounting, insurance, or other similar services provided to businesses generally.

Licensee means a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual listed as an applicant on the application for a license.

Operator means and includes any person who is both present on and in charge of any sexually oriented business premises.

Owner means the legal owner of a sexually oriented business and includes the following:

(1) The owner of a sole proprietorship;

(2) Each member of a firm, association, or general partnership;

(3) Each general partner in a limited partnership; or

(4) Each officer, director, and owner of 50 percent or more of the stock of a corporation.

Person means an individual, proprietorship, partnership, corporation, association, or other legal entity.

Sexually oriented business means and includes any adult bookstore, adult live entertainment business, adult mini-motion-picture theater, adult motion-picture theater, or clothing modeling studio, as defined in this section.

Sexually oriented crime means and includes any criminal offense under local, state, or federal law involving or related to rape, sex offense, sexual abuse of minors, crime against nature, incest, prostitution, indecent exposure, or this article.

Sexually oriented devices means, without limitation, any artificial or simulated specified anatomical area or other device or paraphernalia that is designed principally for specified sexual activities, but does not mean any contraceptive device.

Specified anatomical areas means:

(1) Less than completely and opaquely covered:

a. Human genitals, pubic region; or

b. Buttock; or

c. Female breast below a point immediately above the top of the areola; or

(2) Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

Specified sexual activities means:

(1) Human genitals in a state of sexual stimulation or arousal;

(2) Sex acts, normal or perverted, actual or simulated, including human masturbation, sexual intercourse, oral copulation, or sodomy;

(3) The fondling or other erotic touching of human genitals, pubic region, buttocks, anus, or female breasts; or

(4) Excretory functions, as part of or in connection with any of the activities set forth in subsections (1) through (3) of this definition.

Straddle means the straddling of the legs of one person over any part of the body of any other person, regardless of whether there is a touch or touching.

Touch means to touch with a portion of the human body or with any object.
(Code 1985, § 6-135)

Cross reference—Definitions generally, § 1-2.

Sec. 6-468. Classifications.

Sexually oriented businesses are classified as follows:

(1) Adult bookstores.

(2) Adult live entertainment businesses.

(3) Adult mini-motion-picture theaters.

(4) Adult motion-picture theaters.

(5) Clothing modeling studios.
(Code 1985, § 6-136)

Sec. 6-469. License required.

(a) No sexually oriented business shall be permitted to operate without a valid sexually oriented business license issued by the chief of police for the particular classification of business. It shall be unlawful for any person to operate or cause to be operated a sexually oriented business without the license or without the presence of an operator who has been disclosed pursuant to subsection (b)(9) of this section. In furtherance of the policy of the state, the chief of police shall not issue licenses to two or more classifications of sexually oriented businesses to operate in or on the same building, premises, structure, or other facility.

(b) An application for a license must be made by the owner of the business on a form prescribed by the chief of police and submitted to the Charlotte-Mecklenburg Police Department Vice and Narcotics Bureau. The completed application shall contain the following information and shall be accompanied by the following documents:

(1) The full true name of the applicant.

(2) The full true name under which the sexually oriented business will be operated and, if the business will be operated in a name other than that of the applicant, a certified copy of the assumed name certificate prepared and recorded in the office of the county register of deeds pursuant to G.S. 66-68 et seq.

(3) The type of sexually oriented business the applicant intends to operate.

(4) Whether the applicant intends to serve alcoholic beverages at the sexually oriented business and/or apply for an ABC permit.

(5) The address where the sexually oriented business is to be operated and where the books and records are maintained for examination by the tax collector pursuant to section 13-39 of this Code.

(6) If the owner of the real property upon which the sexually oriented business is to be operated is not the applicant, the name and address of the owner of the real property upon which the business is to be operated and a copy of the lease or rental agreement.

(7) The principal telephone number to be used by the sexually oriented business.

(8) If the applicant is:

a. An individual, the applicant shall appear in person and deliver a completed and signed application form and provide the following information:

1. His present residence and business addresses and telephone numbers;

2. A valid driver's license or other government-issued picture identification; and

3. Social security number.

b. A partnership or corporation, the applicant shall designate one of its general partners or officers to act as its agent. Such person shall appear in person and deliver a completed and signed application form and shall provide the following information:

1. His present residence and business addresses and telephone numbers;

2. A valid driver's license or other government-issued picture identification; and

3. Social security number.

c. A partnership:

1. The name, residence address and telephone number, and social security number of each partner, including limited partners; and

2. A copy of the partnership agreement.

If one or more of the partners is a corporation, the provisions of subsection (8)d shall apply.

d. A corporation:

1. a certified copy of the articles of incorporation, a certified copy of the certificate of authority, and a certified copy of the most recent annual report filed with the secretary of state; and

2. The name, residence address and telephone number, and social security number of each of its current officers and directors and of any stockholder holding 50 percent or more of the stock of the corporation.

(9) The name, residence address and telephone number, and social security number of each individual who will be an operator of the business.

(10) A federal tax identification number assigned to the sexually oriented business and a completed tax information authorization form (IRS Form 8821) authorizing only the verification of such number.

(11) A sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but must be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches. The requirements of this subsection shall not apply for renewal applications if the applicant adopts a sketch or diagram that was previously submitted for the license sought to be renewed and if the licensee certifies that the licensed premises has not been altered since the immediately preceding issuance of the license and that the previous sketch or diagram continues to accurately depict the layout of the licensed premises.

(12) If the applicant wishes to operate an adult live entertainment business or an adult mini-motion-picture theater, the applicant shall comply with the application requirements stated in sections 6-481 and 6-482.

(c) The application shall be sworn to be true and correct by the applicant.

(d) An applicant for a license under this section shall have a continuing duty to promptly supplement application information required by this section if such information changes in any way from what is stated on the application. The applicant shall supplement the application on file with the vice and narcotics bureau within 30 days from the date of such change.

(e) If the vice and narcotics bureau determines or learns at any time that the applicant has improperly completed the application for a proposed sexually oriented business, it shall promptly notify the applicant of such fact and allow the applicant ten days to properly complete the application. The time period for granting or denying a license shall be stayed during the period in which the applicant is allowed an opportunity to properly complete the application.

(f) The applicant shall be required to pay a nonrefundable application and investigation fee, the amount of which shall be established pursuant to section 2-1 of this Code.

(g) Issuance of a sexually oriented business license does not excuse a licensee from compliance with any other applicable ordinance, regulation, or statute. By issuing a sexually oriented business license, the chief of police has not determined that the recipient is in compliance with any applicable local, state, or federal regulation or law or that the recipient is otherwise engaged in a legal activity or operating a business in a legal manner.
(Code 1985, § 6-137)

Sec. 6-470. Issuance and posting of license.

(a) Within 30 days after receipt of a completed application for a license required under this article, the chief of police will approve or deny the issuance of a license. Upon the expiration of the 30th day, unless the applicant requests and is granted a reasonable extension of time, the applicant shall be permitted to begin operating the business for which the license is sought unless and until the chief of police notifies the applicant of a denial of the application and states the reason for the denial.

(b) The chief of police shall deny the application for any of the following reasons:

(1) An applicant or any individual identified in the application under section 6-469(b)(8) or (9) is under 18 years of age;

(2) The application and investigation fee has not been paid;

(3) An applicant or any individual identified in the application under section 6-469(b)(8) or (9) has refused to allow an inspection of the premises as authorized by section 6-472;

(4) An applicant or any individual identified in the application under section 6-469(b)(8)

or (9) has overdue license fees associated with the operation of a sexually oriented business;

(5) An applicant or any individual identified in the application under section 6-469(b)(8) or (9) has a license under this article which is suspended or revoked;

(6) An applicant failed to provide the information necessary to determine the qualifications of the applicant or any individual identified in the application under section 6-469(b)(8) or (9) for issuance of the license, or provided materially false or misleading information on the application form;

(7) An applicant or any individual identified in the application under section 6-469(b)(8) or (9) has been convicted of any sexually oriented crime and less than five years have elapsed since the latter of the date of conviction or the date of release from confinement, if the conviction is for a felony, or less than two years have elapsed since the latter of the date of conviction or the date of release from confinement, if the conviction is for a misdemeanor. The fact that the conviction is being appealed shall have no effect on the denial of the license; or

(8) The application demonstrates or reveals information showing that the proposed business fails to meet the requirements of this article.

(c) The license must be posted in the sexually oriented business in a conspicuous place at or near the entrance to the business so that it can be read easily at any time.
(Code 1985, § 6-138)

Sec. 6-471. Annual license fee.

The licensee of a sexually oriented business license shall be required to pay an annual license fee, the amount of which shall be established pursuant to section 2-1 of this Code.
(Code 1985, § 6-139)

Sec. 6-472. Inspection.

An applicant or any individual identified in the application under section 6-469(b)(8) or (9) shall permit representatives of the Charlotte-Mecklenburg Police Department to inspect the premises for the purpose of ensuring compliance with this article prior to the issuance of a license under this article.
(Code 1985, § 6-140)

Sec. 6-473. Notices.

Any notice required or permitted to be given by the chief of police or the city manager under this article to any applicant, licensee, owner, or operator of a sexually oriented business may be given either by personal delivery or by certified United States mail, postage prepaid, return receipt requested, to the most current address as specified in the application for the license or any notice of change of address which has been received by the chief of police. Notices mailed as provided in this section shall be deemed given upon their deposit in the United States mail and shall be presumed to have been received on the third regular postal delivery day thereafter.
(Code 1985, § 6-141)

Sec. 6-474. Notice of violation and suspension of license.

(a) The chief of police shall issue a notice of violation if he determines that a licensee, owner, operator, or employee has violated or is not in compliance with any section of this article. The notice shall specify the section of this article that has been violated.

(b) The chief of police shall suspend a sexually oriented business license for a period of 30 days if the violation has not been corrected or abated within 20 days after the notice of violation has been received by the licensee, owner, or operator.

(c) A decision by the chief of police to suspend a license shall not become final until 20 days after notice of the decision has been received by the licensee, owner, or operator.

(d) It shall be unlawful for any person to operate or cause to be operated a sexually oriented business and such person knows or should know that the business has a license which has been suspended.
(Code 1985, § 6-143)

Sec. 6-475. Revocation of license.

(a) The chief of police shall revoke a sexually oriented business license if a suspension of the license becomes effective following a notice of violation which was issued within 12 months of the effective date of a previous suspension.

(b) The chief of police shall revoke a sexually oriented business license if he determines that:

(1) An applicant or licensee provided materially false or misleading information in the material submitted in the application process;

(2) A licensee, owner, or operator has knowingly allowed the possession, use, or sale of controlled substances in or on the premises;

(3) A licensee, owner, operator, or employee has knowingly allowed the solicitation for prostitution or a crime against nature in or on the premises;

(4) A licensee, owner, operator, or employee has knowingly allowed any act of sexual intercourse, masturbation, oral copulation, sodomy, or indecent exposure to occur in or on the premises;

(5) A licensee, owner, operator, or employee has served alcoholic beverages to a patron in or on the premises without the premises having the proper ABC permit; or

(6) A licensee, owner, or operator has been convicted of a sexually oriented crime since the license was issued. The fact that a conviction is being appealed shall have no effect on the revocation of the license. For the purpose of this subsection, and with respect to adult live entertainment licenses, the term "employee" shall not include an adult live entertainer.

(c) A decision by the chief of police to revoke a license shall not become final until 20 days after notice of the decision has been received by the licensee, owner, or operator.

(d) When the chief of police revokes a license, the revocation shall continue for one year, and the licensee shall not be issued a sexually oriented business license for one year from the date the revocation became effective.

(e) It shall be unlawful for any person to operate or cause to be operated a sexually oriented business and such person knows or should know that the business has a license which has been revoked.
(Code 1985, § 6-144)

Sec. 6-476. Appeal of denial, suspension, or revocation of license.

(a) After a denial of an application for a sexually oriented business license, a denial of an application for renewal of a sexually oriented business license, or a suspension or revocation of a sexually oriented business license, the applicant or licensee may appeal the denial, suspension, or revocation in writing to the city manager within 20 days after notice of the denial, suspension, or revocation has been received. The city manager shall hold a hearing on whether to issue/renew the license or uphold the denial, suspension, or revocation within five business days after the receipt of the appeal. The applicant or licensee shall have the right to present evidence at the hearing. The decision to issue/renew the license or uphold the denial, suspension, or revocation shall be based solely on the criteria set forth in this article. The city manager shall render a decision on the appeal within five business days after the date of the hearing.

(b) Upon receipt by the city manager of a written appeal pursuant to subsection (a) of this section, a denial of an application for renewal of the license or a suspension or revocation of the license of any sexually oriented business shall be stayed until a decision is rendered by the city manager. In addition, upon receipt by the city manager of a written appeal pursuant to subsection (a) of this section, the denial of an initial application for a license by any sexually oriented

business existing prior to the effective date of the ordinance from which this article derives shall be stayed until a decision is rendered by the city manager.

(c) The decision of the city manager is subject to review in the superior court of the county by proceedings in the nature of certiorari. Any petition for a writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been received by the applicant or licensee. A denial of an application for renewal of the license or a suspension or revocation of the license of any sexually oriented business shall be stayed until a decision is rendered by the superior court or the time to petition the superior court for a writ of certiorari has expired. In addition, the denial of an initial application for a sexually oriented business license by any sexually oriented business existing prior to the effective date of the ordinance from which this article derives shall be stayed until a decision is rendered by the superior court or the time to petition the superior court for a writ of certiorari has expired. The following shall apply to any appeal to superior court from a decision of the city manager:

(1) Unless good cause exists to contest a petition for a writ of certiorari, the city shall stipulate to certiorari no later than five business days after the petitioner requests such a stipulation.

(2) The city shall transmit the record to the court no later than five business days after receiving the order allowing certiorari.

(3) Notwithstanding the provisions of any local rule of the reviewing court which allows for a longer time period, the city shall file its brief within 15 days after it is served with the petitioner's brief. If the petitioner serves his brief by mail, the city shall add three days to this time limit, in accordance with G.S. 1A-1, rule 5. If the local rule is subsequently amended to provide for a shorter time period for the filing of any brief, the shorter time period shall control.

(d) An appeal by an applicant or licensee from the superior court of the county shall be governed by the North Carolina Rules of Appellate Procedure but, unless a court of competent jurisdiction otherwise provides, such appeal shall not stay any action taken with regard to the license.
(Code 1985, § 6-145)

Sec. 6-477. Transfer of license.

A licensee shall not transfer a sexually oriented business license to another person or to another premises. The transfer of a sexually oriented business license shall automatically and immediately revoke the license.
(Code 1985, § 6-146)

Sec. 6-478. Expiration of license.

(a) Each sexually oriented business license shall expire one year from the date of issuance and may be renewed only by making application, as provided in section 6-469, and paying the annual license fee, as required in section 6-471. Application for renewal shall be made at least 30 days before the expiration date, and when made less than 30 days before the expiration date, the expiration of the license will not be affected.

(b) When the chief of police denies renewal of the license, the applicant shall not be issued a license under this article for one year from the date of denial. If, subsequent to the denial, the chief of police determines that the basis for the denial has been corrected, the applicant shall be granted a license.

(c) It shall be unlawful for any person to operate or cause to be operated a sexually oriented business and such person knows or should know that the business has a license which has expired.
(Code 1985, § 6-147)

Sec. 6-479. Prohibitions regarding minors.

It shall be unlawful for a licensee, owner, operator, or employee of a sexually oriented business, regardless of whether or not a license has

been issued for the business under this article, to knowingly, or with reasonable cause to know, permit or allow:

(1) Admittance of a person who is under 18 years of age to the business premises;

(2) A person who is under 18 years of age to remain at the business premises;

(3) A person who is under 18 years of age to purchase goods or services at the business premises; or

(4) A person who is under 18 years of age to work at the business as an employee.

(Code 1985, § 6-148)

Sec. 6-480. Adult live entertainment businesses.

(a) The private or semiprivate performance of adult live entertainment in areas commonly known as VIP rooms, VIP booths, or VIP areas presents opportunities for illegal activity such as, but not limited to, indecent exposure and solicitation for prostitution. The purpose of this section is to eliminate VIP adult live entertainment and to require all adult live entertainment to occur in a manner and location that freely permits management and a broad number of patrons to visually observe the entertainment so as to minimize the opportunities for adult live entertainment to lead to illegal activity. This section shall be interpreted and applied in light of this purpose.

(b) An adult live entertainment business, regardless of whether or not a license has been issued for the business under this article, shall be subject to the following:

(1) An application for a sexually oriented business license for adult live entertainment shall be accompanied by a diagram of the premises specifying areas where adult live entertainment may occur. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram should be oriented to the north or some designated street or object and should be drawn to a designated scale with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The chief of police may waive the diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises and the areas where adult live entertainment may occur required to be designated in the diagram have not been altered since it was prepared.

(2) Areas where adult live entertainment may occur must:

a. Be at least 750 square feet in area. Notwithstanding the square footage requirement, an adult live entertainment business that, as of the effective date of the ordinance from which this article derives, has as its only area where adult live entertainment occurs an area of less than 750 square feet may continue to offer adult live entertainment in that area so long as:

1. The square footage of the area is not reduced;

2. Adult live entertainment does not occur in any other area of the business establishment; and

3. The business complies with all other sections of this article;

b. Contain one or more stages or raised areas where adult live entertainment will occur;

c. Be accessible to all patrons without payment of any charge other than the charge, if any, for entry into the premises, such as a cover charge or membership fee; and

d. Not contain any areas visually screened, obstructed, or separated from the majority of the patrons located in that area, which patrons are present in that area without payment of any charge other than the charge, if any, for entry into the premises, such as a cover charge or membership fee.

(3) No alteration in the configuration of the areas where adult live entertainment may occur designated in the diagram required by subsection (b)(1) of this section may be made without first obtaining an amendment to the license by submitting and receiving approval of a new diagram.

(4) Adult live entertainment may occur only:

a. In the presence of and visually observable by an employee who is not an adult live entertainer;

b. In the presence of and visually observable by more than one patron;

c. In an area that is shown on an approved diagram as an area where adult live entertainment may occur;

d. In an area that is not visually screened, obstructed, or separated from the majority of the patrons located in that area, which patrons are present without payment of any charge other than the charge, if any, for entry into the premises, such as a cover charge or membership fee; and

e. In an area that is accessible to all patrons without payment of any charge other than the charge, if any, for entry into the premises, such as a cover charge or membership fee.

f. Subsections (b)(4)d and (b)(4)e of this section do not prohibit or limit charges to patrons by adult live entertainers or payment to, or the tipping of, such persons by the patrons.

(c) It shall be the duty of the operator and any owner who is present on the premises to ensure that adult live entertainment is not performed in the presence of patrons in violation of subsection (b)(4) of this section. It shall be unlawful for any such operator or owner to knowingly fail to fulfill that duty.

(d) It shall be unlawful for an adult live entertainer to engage in or perform adult live entertainment in violation of subsection (b)(4) of this section.

(Code 1985, § 6-149)

Sec. 6-481. Adult mini-motion-picture theaters.

(a) An adult mini-motion-picture theater, regardless of whether or not a license has been issued for such business under this article, shall be subject to the following:

(1) Upon application for a sexually oriented business license, the application shall be accompanied by a diagram of the premises showing a plan thereof specifying the location of one or more manager's stations, the location of all overhead lighting fixtures, and designating any portion of the premises in which patrons will not be permitted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram should be oriented to the north or some designated street or object and should be drawn to a designated scale with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The chief of police may waive the diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

(2) No alteration in the configuration or location of a manager's station may be made without prior approval of the chief of police.

(3) At least one employee must be on duty and situated at each manager's station at all times that any patron is present in or on the premises.

(4) The interior of the premises shall be configured in such a manner that there is an unobstructed view from a manager's station of every area of the premises to which any patron is permitted access for any purpose, excluding restrooms. Restrooms may not contain video reproduction equipment. If the premises have two or more manager's stations designated, the inte-

rior of the premises shall be configured in such a manner that there is an unobstructed view of every area of the premises to which any patron is permitted access for any purpose, excluding restrooms, from at least one of the manager's stations. The view required in this subsection must be by direct line of sight from the manager's station.

(5) The entrance to each adult mini-motion-picture booth shall be free of any obstruction such as a door, curtain, wall, partial wall, panel, board, merchandise display rack, or other material.

(6) There shall be no openings or glass of any kind between booths, and booths shall not be designed, constructed, or configured in such a manner that the interior of any booth may be visible or made to be visible from any other booth.

(7) The interior of each booth shall be sufficiently illuminated so that the inside of the booth is visible from the manager's station as set forth in subsection (a)(4) of this section.

(8) No booth shall be occupied by more than one patron at any time.

(b) It shall be the duty of the operator and any owner or employees who are present on the premises to ensure compliance with subsections (a)(3) through (8) of this section. It shall be unlawful for any person having such a duty to knowingly fail to fulfill that duty.
(Code 1985, § 6-150)

Sec. 6-482. Clothing modeling studios.

(a) A clothing modeling studio, regardless of whether or not a license has been issued for such business under this article, shall be subject to the following:

(1) A model shall not encourage or permit a patron to expose or display the patron's specified anatomical areas.

(2) A model shall not suggest or imply that a customer should or is permitted to expose or display the patron's specified anatomical areas.

(3) A model shall not expose or display the model's specified anatomical areas at any time the model is in the presence of a patron.

(4) A model shall not straddle a patron.

(5) A model shall not offer or agree to straddle a patron.

(6) A model shall not intentionally touch the clothed or unclothed body of a patron at any point below the waist and above the knee of the patron.

(7) A model shall not encourage or permit a patron to touch the clothed or unclothed body of the model at any point below the waist and above the knee of the model.

(8) A model shall not encourage or permit a patron to touch the clothed or unclothed breast of the model.

(9) All fees and charges, including tips and gratuities, paid by a patron of a clothing modeling studio shall be paid to the model or the studio before the modeling session begins. A model shall not solicit or accept any tip, gratuity, or compensation from a patron in violation of this subsection.

(10) All modeling for a patron must occur in the presence of and be visually observable by an employee who is not a model.

(11) The entrance to each room in which modeling for a patron is being performed shall be free of any obstruction such as a door, curtain, wall, partial wall, panel, board, or other device, and the entire interior of each such room shall be visible from the aisle, walkway, or hallway leading to the room.

(b) It shall be the duty of the operator and any owner who is present on the premises to ensure that clothing modeling is not performed in the presence of a patron in violation of subsection (a)

of this section. It shall be unlawful for any such operator or owner to knowingly fail to fulfill that duty.

(c) It shall be unlawful for a model to violate any of the subsections of subsection (a) of this section.
(Code 1985, § 6-151)

Sec. 6-483. Reserved.

Editor's note—Ord. No. 274, § 3, adopted March 28, 2022, repealed § 6-483, which pertained to escort and dating services criminal penalty and derived from Code 1985, § 6-153.

Sec. 6-484. Civil injunction.

In addition to the issuance of a notice of violation or the suspension or revocation of a sexually oriented business license, any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175.
(Code 1985, § 6-154; Ord. No. 274, § 3, 3-28-2022)

Secs. 6-485—6-510. Reserved.

ARTICLE X. TRYON STREET MALL VENDORS*

Sec. 6-511. Findings and purpose.

The city council finds and declares that a regulatory scheme for Tryon Street Mall vendors will promote the public interest in that:

(1) The Tryon Street Mall is a major public investment which revitalizes an important portion of Tryon Street and that Tryon Street Mall vendors will contribute to an attractive and lively environment for pedestrians and businesses.

(2) Certain kinds of vendors, subject to specific regulations, on the sidewalk of the Tryon Street Mall would contribute to furthering an attractive pedestrian environment for the general welfare of the city.

(3) G.S. 160A-178 authorizes a city to enact an ordinance that regulates, restricts or prohibits the business activities of itinerant merchants, salespersons, promoters, drummers, peddlers, or hawkers.

(4) G.S. 160A-194 authorizes a city to enact an ordinance that regulates and licenses occupations and businesses and prohibits those that may be inimical to the public health, welfare, safety, order, or convenience.

(5) G.S. 160A-174 authorizes a city to enact an ordinance that defines, prohibits, regulates, or abates acts, omissions, or conditions detrimental to the health, safety, or welfare of its citizens and the peace and dignity of the city.

(6) G.S. 160A-296(5) gives a city the power to regulate the use of the public sidewalks and public streets.

(7) This article is an exception to article VIII, peddlers, of this chapter.
(Code 1985, § 6-100)

Sec. 6-512. Geographic scope.

This article shall apply only to the public streets, sidewalks, and public property within the Tryon Street Mall which is defined in section 6-513.
(Code 1985, § 6-101)

Sec. 6-513. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Charlotte Center City Partners is referred to as "CCCP."

Department means the department designated by the city manager.

Food means solid food and nonalcoholic beverages and only includes foods sold by the piece or by an individual serving. Any such "food" must strictly comply with any regulations as interpreted

*__Cross reference—__*Special tax district #1 and Tryon Street Mall, § 10-103.

and administered by the county department of environmental health or any other food code enforcement agency.

Mall coordinator and *coordinator* refer to a designated position at Charlotte Center City Partners.

Merchandise means only fresh cut flowers, balloons or anything else or entertainment authorized by the review regulations approved by Charlotte Center City Partners.

Permit refers to the Tryon Street Mall vendor's regulatory permit issued by the city for the Tryon Street Mall pursuant to G.S. 160A-174 and G.S. 160A-194.

Person means any natural individual, firm, partnership, association, or corporation. Whenever the word "person" is used in any section in this article prescribing a penalty or fine as applied to a partnership or association, the word shall include the partners or members thereof; such word as applied to corporations shall include the officers, agents, or employees thereof who are responsible for any violation of such section.

Stand means a nonmotorized, but mobile, pushcart which may be moved without the assistance of a motor and which is not required to be licensed and registered by the department of motor vehicles, or pedal-powered cart, used for the displaying, storing or transporting of articles offered for sale by a vendor. Any such stand shall be constructed in accordance with the size, quality, design, and all other written regulations.

Tryon Street Mall means the area of Tryon Street beginning at Stonewall Street and extending to Eighth Street, including the blocks designated as the 100 blocks of East and West Trade Street, and includes both sides of Tryon Street and Trade Street on any portion of the sidewalk, street, or public property (excluding Discovery Place, Spirit Square, overhead pedestrian bridges, the Charlotte-Mecklenburg Central Library, and the Hall House except for sidewalks and streets) fronting on Tryon Street and Trade Street within the area described in this definition and referred to as "mall." The city manager or his designee shall have the authority to amend the area which constitutes the mall by expanding or reducing the number of streets included within this area. Where the city manager exercises such authority, a copy of which streets comprise the newly designated mall shall be filed in the office of the city clerk.

Vendor means a person receiving a Tryon Street Mall vendor's regulatory permit under this article.

(Code 1985, § 6-102)

Cross reference—Definitions generally, § 1-2.

Sec. 6-514. Administration.

(a) CCCP can recommend the initial review regulations of this article to the city council for approval. The city council can approve or change review regulations entirely on its own initiative at any time.

(b) The review regulations may include, but not be limited to, design, size, kinds of materials, color, health, safety, aesthetics, merchandise, method of distribution and disposal of food and merchandise, a map showing specific site locations for such distributions, or other matters and appropriate changes that will ensure an attractive and successful Tryon Street Mall vendor environment.

(c) CCCP shall have the authority to amend, delete, or add to these initial regulations with reference to the standards and purposes stated in this article and the initially approved regulations. CCCP shall at all times provide any changes to the initial, city-council-approved regulations to the city clerk's office and to any department designated by the city manager.

(d) The coordinator, on behalf of CCCP, shall provide vendor applications, accept a reasonable application fee with checks made payable to the city, review submitted applications for compliance with section 6-517, and make recommendations on all vendor applications based on this article and review regulations to the department to issue or to deny a vendor application. The department shall have sole authority to determine whether a permit should be issued or denied based on the requirements of this article.

(e) The coordinator shall assign site locations either by lottery or on a first come, first served basis or in accordance with a fair procedure recommended by CCCP to the city manager for approval to all of those who have been issued permits, including the meeting of the requirements in section 6-517. The department shall ensure that CCCP has complied with the procedures stated in this section.
(Code 1985, § 6-103)

Sec. 6-515. Location of vendors.

(a) Vendor locations shall be assigned by the city manager or his designee either on a first-come-first-served basis, by lottery, or in accordance with an otherwise fair procedure. A vendor shall be permitted to reapply and to retain a site location for as long as the vendor remains in good standing with the rules and regulations of the Tryon Street Mail Vending Program.

(b) The assignment of vendor locations shall be compatible with the public interest and use of sidewalk areas and public rights-of-way and shall take into consideration the proximity of existing street furniture (e.g., bus shelters, telephone booths, truck loading zones, building entrances, etc.), proximity to other vendor locations, and the like, in order to ensure that there will not be pedestrian and street congestion or obstruction and in order to contribute as effectively as possible to the purposes of this article in order to create an attractive and lively environment for pedestrians.
(Code 1985, § 6-104; Ord. No. 2423, § 1, 10-27-2003)

Sec. 6-516. Permit required; exemption.

(a) It shall be unlawful for any person to sell or to offer for sale any food, beverage, merchandise, or anything else on the Tryon Street Mall unless there is compliance with this article and the review regulations and unless a permit has been obtained. Otherwise, it shall be unlawful for a person to sell or offer to sell anything within the Tryon Street Mall described in section 6-513.

(b) This article shall not apply to news vending machines.
(Code 1985, § 6-105)

Sec. 6-517. Applications for permits.

The application for a Tryon Street Mall vendor's permit may include the following information:

(1) The name, home and business address of the applicant and the name and address of the owner, if other than the applicant; the name of the vending business; and information to show compliance with the review regulations for the stand to be used in the operation of the vending business.

(2) A description of the type of food, beverage or merchandise to be sold.

(3) A description and a photograph of the stand to be used in operation with the business.

(4) Three prints of a full-face photograph, taken not more than 30 days prior to the date of the application, of any person who will sell or offer to sell any food, beverage or merchandise upon any street or sidewalk subject to this article.

(5) Proof of an insurance policy issued by an insurance company licensed to do business in the state, showing a policy of the comprehensive general liability including coverage for products/completed operations and contractual liability for the indemnification provision in the vendor's permit, in the amount of not less than $300,000.00 for bodily injury per occurrence and $100,000.00 for property damage per occurrence. Such policies shall not be cancelled until 30 days' written notice of such cancellation shall be given to the Charlotte-Mecklenburg Insurance Risk and Management Agency. Any termination or lapse of such insurance shall automatically revoke any permit issued pursuant to this article. Such insurance limits and requirements shall be subject to revision by the insurance risk and management agency. Certificates of insurance shall be kept on file with the vendor's application.

(6) There shall be a reasonable application fee payable at the time of the application,

which fee shall be nonrefundable, for processing the application and payable to the city. The application fee shall be transmitted to the department with the application.

(7) Proof of acquisition of any necessary business privilege license or any other legally required permits or licenses.

(8) Any such other information, relevant to this article, as may be required by the coordinator.

(Code 1985, § 6-106)

Sec. 6-518. Permit issuance.

Not later than 45 days after filing of the completed application for a Tryon Street Mall vendor's permit, the applicant shall be notified by the department of the decision on the issuance or denial of the permit. If the permit is denied, the applicant shall be provided by the department with a written statement of reasons for the denial on the application. A permit issued to a person is not transferable in any way, and the recipient of the permit remains responsible for compliance with this article.

(Code 1985, § 6-107)

Sec. 6-519. Permit fees.

There shall be reasonable regulatory fees for a Tryon Street Mall vendor's permit based upon administrative costs for reviewing applications, for issuance of permits, for duration of permits, and for the monitoring of vendor activities on the mall, as approved by the city manager or his designee.

(Code 1985, § 6-108)

Sec. 6-520. Temporary regulatory permit.

The department shall have the authority to issue a temporary regulatory permit for Tryon Street Mall. The coordinator may recommend to the department the issuance of a temporary regulatory permit solely for the display and sale of crafts or other visual artistic products made by an individual craftsperson or artist. The temporary permit shall be for no longer than 72 hours and shall be approved for a particular person or pertaining to that person's works no more than four times within 12 months. The coordinator shall approve a site location plan available for public inspection. There shall be a nonrefundable reasonable application fee. The requirements of section 6-517 shall be applicable to a temporary permit only to the extent of their inclusion in the approved application form. Section 6-521 shall apply to the temporary permit where relevant. Section 6-515(a) and (b) do not include nor pertain to a temporary permit.

(Code 1985, § 6-109)

Sec. 6-521. Prohibited conduct.

The following shall constitute unlawful conduct under this article. It shall be unlawful to:

(1) Violate any federal, state, county or city law or regulation that pertains to food, beverages, or the selling thereof or that pertains to the operation of the vendor's business on the Tryon Street Mall.

(2) Fail to permit any lawfully requested inspection by health officials or to comply with any lawful request of a police officer.

(3) Fail to carry and display at all times the permit issued under this article.

(4) Have a stand that is not in compliance with the review regulations or any additional special restrictions or conditions stated in the permit.

(5) Vend without the insurance required by this article.

(6) Vend in any area other than that space designated by the permit.

(7) Leave any stand overnight on any street or sidewalk, park other than in a lawful parking place or in violation of any section of this Code or other city ordinance pertaining to parking, or fail to remove any stand during unmanned hours.

(8) Sell food or beverages for immediate consumption, unless the vendor has available for public use the vendor's litter receptacle or a public litter receptacle no more than ten feet distant from the person's stand.

(9) Leave any location without first picking up, removing and disposing of all trash or refuse remaining from sales made by the vendor.

(10) Allow any item relating to the operation of the vending business to be placed anywhere other than in, on or under the stand.

(11) Offer to sell any goods other than those permitted by the permit.

(12) Sound or permit the sounding of any device which produces a loud and raucous noise or engage in any hawking or harassment for the purpose of attracting the attention of the public to the stand for commercial purposes.

(13) Have any advertising, except the posting of prices, the name of the product, and the name of the vendor, if desired.

(14) Use a vehicle to pick up or deliver a cart during the hours of 7:30 a.m. to 9:00 a.m. and 4:30 p.m. to 6:00 p.m.

(15) Fail to actually operate the stand, for whatever reason, during the minimum time usage of the site required by the review regulations; such failure shall constitute an abandonment of the site and shall result in revocation of the permit.

(Code 1985, § 6-110)

Sec. 6-522. Denial, suspension and revocation of permit.

(a) The department shall have the authority to deny, suspend or revoke a Tryon Street Mall vendor's permit for any of the following causes:

(1) Fraud or misrepresentation contained in the application for the permit or, in applying for the permit, failure to provide the information required by this article or by CCCP, or failure to provide any relevant information sought by the coordinator.

(2) Fraud or misrepresentation made in the course of carrying on the business of vending or failure to pay required sales taxes.

(3) A violation of a section of this article or the review applications.

(4) Conviction of the permittee for any felony or for a misdemeanor related to the vendor's business authorized by the permit.

(b) The department shall have the authority to suspend or revoke a permit for any of the reasons stated in section 6-521.

(c) If a permit is suspended or revoked, the permittee shall have the right to appeal the revocation or the suspension to the city manager or his designee in writing within ten days of the suspension or revocation. The decision of the city manager or his designee shall be final.

(Code 1985, § 6-111)

Sec. 6-523. Enforcement.

In addition to the authority under this article to deny, to suspend, or to revoke a permit, any or all of the following methods shall be available for enforcing this article:

(1) City law enforcement officers shall have the authority to issue citations in the same manner as described in section 2-24 as if it were fully stated in this article. A civil penalty of up to $500.00 may be levied against any person for a violation of each section of this article for which a citation has been issued. Each day's violation shall be a separate and distinct offense. Nothing in this article shall preclude any other lawful enforcement action by an officer.

(2) Further, if a vendor with a permit has a permit revoked, the coordinator may reject any new application for any kind of permit under this article for a 12-month period from the date of conviction or revocation.

(3) Any remedies available to the county department of environmental health or any other county department responsible for enforcing laws pertaining to the activities carried out by this article shall be available to such personnel to enforce this article.

(4) This article may be enforced by any of the remedies enumerated in G.S. 160A-175, and each day's violation shall be a separate and distinct violation.

(Code 1985, § 6-112; Ord. No. 274, § 3, 3-28-2022; Ord. No. 992, § 2, 6-23-2025)

Sec. 6-524. Exception and city manager's authority.

This article and its requirements, rights or privileges shall not apply in any respect to any market, festival or activity, arts and crafts exhibit or other similar events sanctioned by the city council's Tryon Street Mall closing policy or by the city manager or his designee.

(Code 1985, § 6-113)

Sec. 6-525. Permit on public plaza.

(a) *Required; application.* Any person who wishes to conduct an activity in any of the public plazas located within the Tryon Street Mall, including, but not limited to, those public plazas hereby designated as Polk Parks, Independence Square Plaza and Arequipa Park, shall first make application to Charlotte Center City Partners. If the proposed activity is in accordance with the city's public plaza regulations, such person shall be issued a permit which shall authorize the requested use.

(b) *Violation.* Every permit granted under this section shall be in the possession of the person to whom it was granted at all times. It shall be unlawful for any person to vend in any of the public plazas set out in subsection (a) of this section, or otherwise designated by the city manager or his designee, without a valid permit. It shall also be unlawful for any person to fail to produce upon request or otherwise present a valid permit to a law enforcement officer. Failure to produce a valid permit upon request shall constitute a violation of this section and may result in the immediate removal of such person from the public plaza.

(c) *Purpose.* The purpose of issuing permits is to schedule activities to avoid conflicts in the use of the public plazas and to ensure that any person who uses the public plaza does so in accordance with the public plaza's regulations.

(Code 1985, § 6-114)

Sec. 6-526. Behavior.

No person shall lie or sleep in a prone position on seats, tables or benches located in the Tryon Street Mall as defined in section 6-513.

(Code 1985, § 6-115)

Secs. 6-527—6-560. Reserved.

ARTICLE XI. TOWING AND BOOTING BUSINESSES*

Sec. 6-561. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Booting service includes any person or other entity, whether licensed or not, that engages in or who owns or operates a business which engages, in whole or in part, in the booting or immobilization of motor vehicles for compensation.

Completed trespass tow means a trespass tow resulting in the complete removal of the motor vehicle from a private parking lot or private property.

Motor vehicle means a Class A, B, or C motor vehicle as defined in G.S. 20-4.01(23).

Private parking lot means any parking lot or area owned by a private entity or individual that provides parking spaces for a fee or requires the permission of the owner, lessee or agent before a person may park at that location. A private parking lot includes vehicle parking spaces in an apartment or condominium complex. A private parking lot does not include the driveway, lawn or what is commonly referred to as the yard, of property owned or leased as a family residence.

Tow means to haul, carry, pull along, or otherwise transport or remove a motor vehicle by means of another vehicle.

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*__Editor's note—__**Editor's note—**Ord. No. 6095, § 1, adopted November 23, 2015, amended article XI in its entirety to read as herein set out. Formerly, article XI pertained to similar subject matter, and derived from Ord. No. 4608, § 1, adopted February 28, 2011.

Towing or tow service includes any person or other entity, whether licensed or not, that engages in or who owns or operates a business which engages, in whole or in part, in the towing or removal of motor vehicles for compensation.

Trespass towing or *trespass tow* means the towing or removal of a motor vehicle, without the consent of the motor vehicle's owner or operator, that is parked on a private parking lot without the property owner's or agent's consent.

Wheel lock means a boot, wheel lock or any other device that is attached to a motor vehicle that is manufactured and designed to immobilize the motor vehicle.

(Ord. No. 6095, § 1, 11-23-2015)

Cross reference—Definitions generally, § 1-2.

Sec. 6-562. Towing of vehicles for compensation.

No towing service shall conduct a trespass tow of a motor vehicle from a private parking lot for compensation when the point of origin of the tow is within the jurisdictional limits of the city without complying with the provisions of this article.

(Ord. No. 6095, § 1, 11-23-2015)

Sec. 6-563. Trespass towing of vehicles from private parking lots; signs required.

(a) It shall be unlawful to tow or remove or immobilize by use of any wheel lock or other method, a motor vehicle that is parked on private property or private parking lot without the permission of the owner or lessee of the motor vehicle unless notice is posted in accordance with the provisions of this section on the private property from which the towing, removal, or immobilization occurs. The notice shall meet the following requirements:

(1) The notice must be in the form of a sign structure and not less than 24 inches by 24 inches and not larger than six square feet and constructed of metal, plastic or other type of material that is enduring in nature. The notice shall be prominently posted on the private property at each access or curb cut allowing vehicle access to the property and within five feet of the street right of way line. If there are no curb or access barriers, notices shall be posted not less than every 50 feet facing the frontage of the public street and facing the private parking lot. In addition, a sign not less than 12 inches by 18 inches in size may be posted with lettering on both sides at each parking space from which an unauthorized vehicle could be towed, removed, or immobilized.

(2) The notice shall clearly display the following:

a. In not less than one and one-half inch high letters red in color on a contrasting white background, the words "tow-away-zone" or "towing enforced."

b. In not less than one inch high letters red in color on a contrasting white background, a statement that parking is never authorized by stating "private property - no parking" or where parking is permitted under limited circumstances, by stating "authorized parking only" or "leased parking only", or "parking for _____ customers only", or "parking for residents only", or a similar phrase that specifically identifies the conditions under which someone may park on the property. If parking is only allowed for a specified time, then the sign shall specifically state the days and hours when parking is permitted.

c. In not less than one-half inch high letters red in color on a contrasting white background, the phone number that a person can call to retrieve the towed vehicle and the name and address of the storage facility where the vehicle is stored.

d. In not less than one-half inch high letters red in color on a contrasting white background, the maximum fees and charges for booting or immobilizing a vehicle by use of a

wheel lock, securing a vehicle to a tow truck by a hook, chain, cable or similar device, a completed trespass tow, and storing a towed vehicle; a statement that credit and debit cards may be used for payment; and the amount or percent of additional fees and charges which may be added for the use of credit and debit cards.

(3) The sign displaying the required notices shall be permanently installed with the bottom of the sign not less than three feet above ground level and the top of the sign not more than eight feet above ground level.

(Ord. No. 6095, § 1, 11-23-2015)

Sec. 6-564. Booting service; fees.

(a) Any booting service engaged in the booting or immobilization of a motor vehicle on a private parking lot shall upon the request of the vehicle owner or operator, display and exhibit a photo identification card issued by the booting service. The photo identification card shall contain a picture of the employee, the first name of the employee, and the name, address and telephone number of the booting service. This subsection shall not apply to booting services in uniform which contains the first name of the employee and the name of the booting service.

(b) Booting service motor vehicles shall be marked with the name and address of the booting service on each side of the vehicle in letters not less than three inches in height. This subsection shall not apply to motor vehicles subject to G.S. 20-101(d) or 49 C.F.R. Part 390.

(c) A booting service must accept cash and at least two major credit and debit cards.

(Ord. No. 6095, § 1, 11-23-2015)

Sec. 6-565. Trespass towing of vehicles from private parking lots; practices.

(a) Any towing service that has initiated a trespass tow by, securing the motor vehicle to the tow truck by a hook, chain, cable or similar device, but has not completely removed the trespass motor vehicle from the private parking lot, shall upon the request of the vehicle owner or operator, release said vehicle upon payment of the fees and charges noticed pursuant to subsection 6-563(a)(2)d.

(b) Any towing service that is engaged in a trespass tow shall, upon request of the owner or operator of the motor vehicle, permit the owner or operator access to the trespass vehicle for the purpose of retrieving personal property from the vehicle. If personal items are removed from the motor vehicle by the towing service, then upon request those items will be returned to the owner or operator.

(c) Any towing service that engages in a trespass tow or any storage facility that receives motor vehicles that have been towed as a result of a non-consensual tow from private property shall accept cash and at least two major credit cards and any debit card for all fees and charges required to be noticed pursuant to this article. Upon request, the employee for the towing service or storage facility will provide a receipt to the owner or operator of the towed motor vehicle.

(d) Any towing service that engages in a trespass tow or any storage yard that receives motor vehicles that have been towed as a result of a non-consensual tow from private property shall have a person on call 24 hours every day who acknowledges requests to retrieve a towed motor vehicle within 15 minutes of receiving an inquiry from the owner or operator of the towed motor vehicle. If the owner or operator wishes to retrieve the motor vehicle, then the towing service or storage facility must make the vehicle available within 45 minutes of the request.

(e) The lot or facility to which a trespass towed vehicle is removed shall be located within the city limits of the City of Charlotte.

(f) No towing service shall remove a motor vehicle from a private lot from the hours of 7:00 a.m. to 7:00 p.m. unless the owner or agent of the private lot signs a contemporaneous specific written authorization for such removal which is presented to the wrecker driver of the towing service. The agent must be someone other than an employee of the towing service. The written authorization shall contain the reason for the

tow, the make, model, year, color, vehicle identification number (VIN) and license plate number. The wrecker driver shall contact the non-emergency number for the Charlotte-Mecklenburg Police Department and provide the above information. The motor vehicle will not be removed from the private lot until the driver has been advised of a complaint number.

(g) Subject to the express limitations described in this article, towing services and owners, lessees and agents of private parking lots shall be entitled to pursue all rights and remedies available at law regarding the enforcement and collection of past due charges for parking violations.
(Ord. No. 6095, § 1, 11-23-2015)

Sec. 6-566. Interference with a towing service.

It shall be unlawful for anyone to obstruct or interfere with a towing service that is carrying out a trespass tow on private property or a tow conducted pursuant to a contract with the city except:

(1) When the owner or operator verbally requests the towing service to release the motor vehicle pursuant to this article;

(2) When the owner or operator verbally requests the towing service to release the motor vehicle pursuant to the provisions of a towing contract with the city; or

(3) When the owner or operator verbally requests the towing service to retrieve personal property from their motor vehicle.

(Ord. No. 6095, § 1, 11-23-2015)

Sec. 6-567. Penalty.

Any person who violates a provision of this article may be assessed a civil penalty of $100.00 by a police officer pursuant to section 2-24.
(Ord. No. 6095, § 1, 11-23-2015; Ord. No. 274, § 3, 3-28-2022)

Secs. 6-568—6-579. Reserved.

ARTICLE XII. RESIDENTIAL RENTAL REGISTRATION AND REMEDIAL ACTION PROGRAM*

Sec. 6-580. Purpose.

The purpose of this article is to establish a registration requirement for owners of residential rental property when excessive levels of disorder activity have occurred on or in the property. In addition, the city desires to establish a method to hold owners of residential rental property accountable for failing to use effective methods to reduce disorder activity on their property. It is not the intent of this article to determine the rights and liabilities of persons under agreements to which the city is not a party. This article shall not be construed to alter the terms of any lease or other agreement between a landlord and a tenant or others relating to property that is the subject of this article; provided that no provision of any lease or other agreement shall be construed to excuse compliance with this article. Additionally, a violation of this article shall not in and of itself create a negligence per se standard or otherwise expand existing liability in tort for either a landlord or a tenant.
(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-581. Definitions.

The following words, terms and phrases when used in this article shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Disorder activity means activity occurring on or in a residential rental property categorized as either reported violent crimes, or certain types of disorder-related activities as listed in the appendix of this article entitled "Appendix A—Disorder Activity." A domestic violence call for service is not a disorder activity.

Disorder activity count means a calculation as set forth in the appendix of the article entitled

*__Editor's note—__Ord. No. 4890, § 1, adopted May 29, 2012, amended article XII in its entirety to read as herein set out. Formerly, article XII, sections 6-580—6-596 pertained to the residential rental remedial action program and derived from Ord. No. 4307, § 1, adopted November 9, 2009.

"Appendix B—Calculation" assigned to a residential rental property that represents the amount of disorder activity occurring within a specified time period in or on the property.

Disorder risk threshold means, for each residential rental property category, the disorder activity count for the residential rental property that is at the 96th percentile of residential rental properties within the residential rental property category.

In need of remedial action (INRA) means a designation by the police official that a residential rental property has been identified for enforcement action under this article.

Manager means the person, persons or legal entity appointed or hired by the owner to be responsible for the daily operation of the residential rental property.

Owner means the person, persons or legal entity that holds legal title to a residential rental property.

Police official means a person designated by the chief of police who is primarily responsible for the administration of this article.

Registered Agent means the person identified by the owner of the residential rental property in the registration filed pursuant to this article who is authorized to receive legal process and/or notice required or provided for in this article.

Remedial action plan means a written plan agreed upon and signed by both the police official and owner whereby the owner agrees to implement remedial measures on a residential rental property whose disorder activity count exceeds the disorder risk threshold for its residential rental property category.

Remedial measures means mandatory and voluntary measures as stated within the remedial action plan manual, a copy of which is on file at the city clerk's office.

Residential rental property means property that contains a single-family rental dwelling unit or multi-family rental dwelling units for use by residential tenants including but not limited to the following: mobile homes, mobile home spaces, town homes and condominium unit(s). A rental dwelling unit includes property that is provided to an individual or entity for residential purposes upon payment of rent or any other consideration in lieu of rent.

Residential rental property category means residential Rental Properties will be categorized by the number of residential units contained in the property as follows:

Category 1—One unit

Category 2—Two to nine units

Category 3—Ten to 49 units

Category 4—50 to 99 units

Category 5—100 to 149 units

Category 6—150 to 199 units

Category 7—200 to 249 units

Category 8—250 to 299 units

Category 9—300 or more units

(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-582. Registration of residential rental property.

(a) Each owner of residential rental property that falls at or above the disorder risk threshold shall register by providing the following information to the designated police official:

(1) The address(s) for the residential rental property which shall include the street name(s), number(s) and zip code;

(2) The name(s), business and personal address, telephone number and e-mail address of the owner;

a. If the property is owned by multiple natural persons, then the required information shall be that of one person who has legal authority to act on behalf of the other owners.

b. If the property is owned by a corporation, whether foreign or domestic, then the required information shall be that of a registered agent and of an officer who has authority to act on behalf of the corporation.

c. If the property is owned by a partnership, then the required information shall be that of the managing partner and one alternate who have legal authority to act on behalf of the partnership.

d. If the property is owned by an unincorporated association or any other legal entity not mentioned above, then the required information shall be that of a person who has legal authority to act on behalf of that association or entity.

(3) The number of units located on the residential property.

(b) The address(s) required in subsection (a)(2) shall not be a public or private post office box or other similar address.

(c) An owner whose property is found to be INRA shall notify the police official of all purchaser information within 30 days from the date of change of ownership. Purchaser information shall include the name, address, phone number and e-mail address for the purchaser.

(d) Each residential rental property parcel shall be registered separately.
(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-583. Disorder risk threshold and disorder activity count.

The police official shall determine the disorder activity count for each residential rental property and the disorder risk threshold for each residential rental property category on a quarterly calendar basis. These determinations shall be made using the disorder activity during the previous calendar quarter.
(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-584. Notification of registration and mandatory meeting.

(a) The owner of residential rental property that falls at or above the disorder risk threshold shall be sent a notice no later than 15 days after the disorder risk threshold is calculated for that quarter by certified mail to the name and address registered with the department or if the property is not registered, then to addresses listed at the Mecklenburg County's Office of Tax Assessor for that property.

(b) The notice shall include the following information:

(1) The registration requirements contained in section 6-582; and

(2) The date, time and location for the mandatory initial meeting between the police official and the owner; and

(3) The disorder activity count for the residential rental property; and

(4) A statement that the owner may provide additional evidence at the initial mandatory meeting to be considered by the police official; and

(5) A detailed summary of the disorder activity that has occurred on or in the property.

(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Editor's note—Ord. No. 9536, § 1, adopted March 25, 2019, amended the title of § 6-584 to read as herein set out. The former § 6-584 title pertained to notification of mandatory meeting.

Sec. 6-585. Mandatory initial meeting.

(a) A mandatory initial meeting shall be held between the owner and the police official within 15 days from the date the notice was sent to the owner of the property unless otherwise agreed by the owner and police official. The notice shall be

sent to the business or personal address listed on the registration or if the property is not registered, then to addresses listed at the Mecklenburg County's Office of Tax Assessor for that property. The initial meeting may be held in person or by telephone. In the event there are multiple property owners, the owner attending the initial meeting must have power of attorney to execute the remedial action plan on behalf of the other owners.

(b) At the mandatory initial meeting, the attendance of the police official and the owner is required. Nothing in this Section prohibits the owner and police official from voluntarily continuing the mandatory initial meeting. The police official and the owner shall at a minimum review the following:

(1) Residential rental property registration requirements;

(2) The data that established the disorder activity count for that property;

(3) Any relevant evidence provided by the owner that may establish that the property does not fall at or above the disorder risk threshold;

(4) Whether or not the owner knew or should have known that the disorder activity was occurring on the property.

(c) The police official may adjust the disorder activity count upon a finding that there is clear and convincing evidence to do so, or as otherwise required by law. In the event that the adjusted disorder activity count for the property falls at or above the disorder risk threshold, then the property will be designated in need of remedial action (INRA). The owner and police official shall develop and sign a remedial action plan and the property will be set for a three month review date pursuant to section 6-586. In the event the adjusted disorder activity count is below the disorder risk threshold, then no further action shall be taken by the police official, and residential rental property registration shall not be required. Any property that is required to pay a civil penalty shall do so within seven days after the conclusion of the mandatory meeting.

(d) In the event the owner fails to attend the initial meeting without just cause, the police official shall review all the evidence concerning the property pursuant to subsections (b) and (c) of this section and determine whether the disorder risk threshold is accurate and determine if further action is warranted.

(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-586. Remedial action plan and review.

(a) At the first quarterly review, the owner and police official shall review the disorder activity in or on the property since the date of the remedial action plan and determine the disorder activity count for the property during that time period. If the disorder activity count is no longer at or above the disorder risk threshold, then the designation of INRA will be removed and no further review requirements or registration shall be required. Nothing in this section prohibits the owner and police official from voluntarily continuing the implementation of an agreed plan of action. If the disorder activity count continues to fall at or above the disorder risk threshold, then the owner and the police official may amend the remedial action plan and a second quarterly month review date will be set.

(b) At the second quarterly month review, the owner and police official shall review the disorder activity in or on the property since the date of the amended remedial action plan and determine the disorder activity count for the property during that time period. If the disorder activity count is no longer at or above the disorder risk threshold, then the designation of INRA will be removed and no further review requirements or registration shall be required. Nothing in this section prohibits the owner and police official from voluntarily continuing the implementation of an agreed plan of action. If the disorder activity count continues to fall at or above the disorder risk threshold, then the police official and the owner shall amend and sign the remedial action plan and a third quarterly month review date will be set.

(c) At the third quarterly month review, the owner and police official shall review the disorder activity in or on the property since the date of

the amended remedial action plan and determine the disorder activity count for the property during that time period. If the disorder activity count is no longer at or above the disorder risk threshold, the designation of INRA will be removed and no further review requirements or registration shall be required. Nothing in this section prohibits the owner and police official from voluntarily continuing the implementation of an agreed plan of action. If the disorder activity count continues to fall at or above the disorder risk threshold, then the police official shall determine whether the owner has complied in good faith with the remedial action plans.

(1) In determining whether the owner has acted in good faith, the police official shall weigh the following factors:

a. Whether the owner has regularly met with the police official;

b. Whether the owner has exhausted all resources reasonably available to the owner in order to comply with the terms of the remedial action plans;

c. Whether the owner has intentionally ignored a term of a remedial action plan; and

d. Whether the disorder activity on the property constitutes a public nuisance.

(2) If there is clear and convincing evidence that the owner has been found to have acted in good faith, then the police official may remove the designation of INRA and continue to work with the owner. A property that continues to fall at or above the disorder risk threshold will be referred to the city attorney's office for a determination as to whether a public nuisance action or any other legal or equitable remedy is warranted.

(d) All remedial action plans will be based on the procedures and practices set forth in the CMPD Remedial Action Plan Manual; A Guide to Managing Rental Properties to Prevent Crime.
(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-587. INRA designation binding on subsequent owner.

The designation of a property as INRA and the application of the procedures set forth in this article shall be binding upon all subsequent owners or other transferees of an ownership interest in the rental residential property.
(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-588. Enforcement, remedies and penalties.

(a) The following violations of this article may be enforced by the issuance of a civil penalty in the amount provided:

(1)	Failing to register residential rental property as required by section 6-582.	$50.00
(2)	Providing materially false or misleading residential rental property registration information.	50.00
(3)	Failing to attend the mandatory initial meeting or any other quarterly meeting after notice has been timely sent pursuant to section 6-585. .	50.00

(b) An additional late fee civil penalty in the amount of $50.00 may be assessed if the initial civil penalty is not paid or appealed within 30 days from the date of issuance.

(c) The remedies provided herein are not exclusive and may be exercised singly, simultaneously, or cumulatively. In addition, the remedies provided herein may be combined with any other remedies authorized by law and exercised in any order. This article may be enforced by an appropriate equitable remedy issuing from a court of competent jurisdiction.

(d) Notwithstanding that an owner of rental registration property has been issued a civil penalty for a violation of this article or the owner

has failed to attend the mandatory initial meeting as set forth in section 6-585, the owner shall not commit the following acts:

(1) Refuse or fail to comply with any order of the city to repair a dwelling pursuant to section 11-38 of the housing code; or

(2) Terminate the utility services of any occupants or otherwise violate the rights of residential tenants under G.S. Ch. 42, Art. 2A, 5, or 6.

(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-589. Adoption of remedial action plan manual.

The remedial action plan manual, a copy of which is on file in the office of the city clerk, is hereby adopted. The city council hereby finds and determines the remediation strategies set out therein to be reasonable and appropriate to address the public health, safety and welfare issues addressed by this article entitled the "Remedial Action Plan Manual; A Guide to Managing Rental Properties to Prevent Crime." The chief of police or his designee is hereby authorized to amend the remedial action plan manual.

(Ord. No. 4890, § 1, 5-29-2012; Ord. No. 9536, § 1, 3-25-2019)

Sec. 6-590. Appeals.

Appeals of decisions by a police official to issue civil penalties pursuant to this article are governed by G.S. 160A-424(f) and shall be taken by the owner to the housing appeals board as provided in section 5-38, except that the police official shall function as the code enforcement official thereunder.

(Ord. No. 9536, § 1, 3-25-2019)

ARTICLE XIII. MISCELLANEOUS

Sec. 6-591. Sunday sales.

In accordance with G.S. 18B-1004, 160A-205.3, and other applicable law, it shall be lawful on any licensed premises located in the corporate limits of the City of Charlotte to sell malt beverages, unfortified wine, fortified wine, and mixed beverages beginning at 10:00 A.M. on Sunday pursuant to the licensed premises' permit issued under G.S. 18B-1001.

(Ord. No. 9139, § 1, 7-24-2017)

Chapter 7

CEMETERIES*

Sec. 7-1.	Purpose.
Sec. 7-2.	Powers and duties of city manager.
Sec. 7-3.	Requirements for purchase of burial rights.
Sec. 7-4.	Unused lots; publication of notice.
Sec. 7-5.	Schedule of charges.
Sec. 7-6.	Perpetual care fund.
Sec. 7-7.	Place of burial.
Sec. 7-8.	Validation of use of existing cemeteries; establishment of new cemeteries restricted.
Sec. 7-9.	Payment.
Sec. 7-10.	Disinterment; reinterment.
Sec. 7-11.	Monuments and markers.
Sec. 7-12.	Trespassing.

*__Cross reference—__Streets, sidewalks and other public places, ch. 19.

__State law references—__Cemeteries generally, G.S. 65-1—65-36.8; municipal cemeteries, G.S. 65-37—65-40; powers of municipalities regarding cemeteries, G.S. 160A-341 et seq.

Sec. 7-1. Purpose.

Cemeteries are for the burial of human dead only.
(Code 1985, § 7-1)

Sec. 7-2. Powers and duties of city manager.

(a) *Management and control.* The city manager shall have general management and control of the cemeteries and burial places owned, operated and maintained by the city. The manager may create publish and enforce rules and guidelines, for public use and operations, maintenance, and visitation of cemeteries. An accurate copy of such rules and guidelines shall be maintained at all times in the office of the city clerk and in the office of the cemetery supervisor.

(b) *Burial of indigent persons and unclaimed remains.* The city manager shall lay out one section for burial of indigent persons and unclaimed remains. The manager shall coordinate with local agencies to fund these burials, and the manner of burial provided shall be at the discretion of the manager.
(Code 1985, § 7-2; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Sec. 7-3. Requirements for purchase of burial rights.

(a) *Payment.* Any person may select in the cemeteries described in section 7-2(a) any lot or portion thereof, except where no subdivision is allowed, to which no other person has acquired burial rights, and obtain from the cemetery supervisor upon payment of the cost of such lot or portion thereof a receipt (a copy of which the purchaser should retain for his or her permanent record) showing amount paid and purposes to which applied and setting forth the lot or portion of a lot purchased, location and other data.

(b) *Receipts.* The receipt provided for in subsection (a) of this section shall be sent to the city's central cashier, and a copy shall be given to the purchaser for his or her permanent record.
(Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Editor's note—Ord. No. 9207, § 1(Exh. A), adopted Nov. 13, 2017, amended § 7-3 title to read as set out herein. The former § 7-3 title pertained to requirements for purchase of burial space.

Sec. 7-4. Unused lots; publication of notice.

(a) When a lot or part thereof in the cemeteries described in section 7-2(a) shall remain without any interment therein for 100 years, and the purchaser or his assignee shall have died, and no relative of them is known, the lot or part thereof shall revert to the city when conditions as set out in subsection (b) of this section have been complied with.

(b) The city council shall give notice once a week for four weeks in a newspaper published in the city, and if no relative of the purchaser or his assignee appears within 30 days from the last day of publication, then the lot or part of lot thereof, as the case may be, shall revert to the city.
(Code 1985, § 7-4; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Sec. 7-5. Schedule of charges.

A schedule of all cemetery charges shall be made available to all funeral directors and monument dealers in the county. In addition a copy of all current charges shall be posted in the offices of the supervisor of the cemeteries division.
(Code 1985, § 7-5)

Sec. 7-6. Perpetual care fund.

(a) *Definition.* The term "perpetual care" means the cutting of grass upon plots in the cemeteries described in subsection (b) of this section at reasonable intervals, the pruning of shrubs and trees that may be placed by the city, the general preservation of the lots, grounds, walks, roadways, boundaries and structures, to the end that such grounds shall remain and be reasonably cared for as cemetery grounds forever. The term "perpetual care" shall in no case be construed as meaning the maintenance, repair or replacement of any grave markers placed upon lots or grave spaces, the planting of flowers or ornamental plants; the reconstruction of any bronze, marble, granite or concrete work on any section or lot or any portion or portions thereof in the cemetery, mausoleum or other buildings or structures, caused by any natural occurrence or human activity whatsoever, whether the damage be direct or collateral.

(b) *Established.* A fund, known as the perpetual care fund, shall be established for the purpose of perpetually caring for and beautifying the city cemeteries described in section 7-2(a). The city treasurer may accept gifts and bequests to the fund.

(c) *Management of fund.* The principal of the fund shall be invested in the same manner as other city funds.

(d) *Expenditure of income.* Perpetual care expenditure shall be limited to the income received from the investments of the fund with no part of the principal being expended.
(Code 1985, § 7-6; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Sec. 7-7. Place of burial.

No person shall be buried within the corporate limits of the city other than in established cemeteries licensed by the state cemetery commission, in church cemeteries, or in memorial structures on state-owned property that is a part of the university system of the state.
(Code 1985, § 7-7)

Sec. 7-8. Validation of use of existing cemeteries; establishment of new cemeteries restricted.

The cemeteries or places of burial now located and maintained as such as of May 19, 1975, within the limits of the city by a corporation or association for the purpose of affording burial places for the dead, and for maintaining the graves therein are hereby expressly authorized to be used and maintained for such purpose.
(Code 1985, § 7-8; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Sec. 7-9. Payment.

All payments for charges shall be made by check, money order, cashier check, credit card, or any other method of payment subsequently approved by the finance director.
(Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Editor's note—Ord. No. 9207, § 1(Exh. A), adopted Nov. 13, 2017, repealed the former § 7-9, and enacted a new § 7-9 as set out herein. The former § 7-9 pertained to extension of credit and derived from Code 1985. § 7-9.

Sec. 7-10. Disinterment; reinterment.

(a) A person who desires to have removed from his lot the remains of a person interred therein shall obtain a disinterment permit from the health department. Disinterment shall be scheduled only on weekdays during the morning hours.

(b) Any person desiring to have reinterred the remains of a person brought from another cemetery or burial place shall furnish the cemetery supervisor with a certificate from the health department, setting forth, if possible, the name, age, sex, condition (married or single), cause and date of death, and residence of deceased, and name and location of former burial place. The cemetery staff, upon receiving the charges fixed therefor, shall schedule the reinterment of the remains.

(c) Any such disinterment or reinterment shall be scheduled as determined by the cemetery supervisor.
(Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Editor's note—Ord. No. 9207, § 1(Exh. A), adopted Nov. 13, 2017, repealed the former § 7-10, and enacted a new § 7-10 as set out herein. The former § 7-10 pertained to disinterment; approval required and derived from Code 1985, § 7-10.

Sec. 7-11. Monuments and markers.

All monuments and markers to be placed in city-owned cemeteries must conform to the requirements as set forth by the city manager in the publication entitled "City of Charlotte, Cemetery Rules and Guidelines." Cemetery staff shall construct all foundations for markers and monuments and shall set all markers.
(Code 1985, § 7-12; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Editor's note—Ord. No. 9207, § 1(Exh. A), adopted Nov. 13, 2017, repealed the former §§ 7-11 and 7-13, and renumbered former §§ 7-12 and 7-14 as §§ 7-11 and 7-12 as set out herein. The historical notations has been retained with the amended provisions. The former §§ 7-11 and 7-13 pertained to reinterment; requirements and charges and derived from Code 1985, §§ 7-11 and 7-13.

Sec. 7-12. Trespassing.

It shall be unlawful for any person to trespass upon or to go across cemeteries or cemetery lots

belonging to the city, between sunset and sunrise except for the purpose of governmentally authorized cemetery business or maintenance. (Code 1985, § 7-14; Ord. No. 9207, § 1(Exh. A), 11-13-2017)

Editor's note—See the editor's note to § 7-11.

State law reference—Trespass on public lands, G.S. 14-130.

Chapter 8

FIRE PREVENTION AND PROTECTION*

Article I. In General

Sec. 8-1. Fire code adopted; bureau of fire prevention established and duties.
Sec. 8-2. Fire marshal's appointment.
Sec. 8-3. Inspectors.
Sec. 8-4. Issuance of notice of violations by fire inspectors.
Sec. 8-5. Penalties.
Sec. 8-6. Fire limits.
Sec. 8-7. Fire department rules and regulations governing fire flow, water demand, fire hydrants, fire connections and unattended service stations.
Sec. 8-8. Reserved.
Sec. 8-9. Reserved.
Secs. 8-10—8-33. Reserved.

Article II. Permits and Fees

Sec. 8-34. Permit application; fee schedule.

***Charter reference—**Fire protection, § 6.81 et seq.

Cross references—Buildings and building regulations, ch. 5; fire hydrants; authorized users; permit required for private user, § 23-139; restrictions on use of private fire hydrants, § 23-141.

State law reference—Fire prevention in municipalities, G.S. 160A-291—160A-293.

ARTICLE I. IN GENERAL

Sec. 8-1. Fire code adopted; bureau of fire prevention established and duties.

The North Carolina Fire Code, as amended from time to time, is hereby adopted and incorporated by reference as though fully set out in this chapter. The fire code shall be enforced by the bureau of fire prevention in the fire department, which is hereby established and which shall be operated under the supervision of the chief of the fire department.
(Code 1985, § 8-2; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—Ord. No. 9756, § 1(Exh. A), adopted Feb. 24, 2020, repealed the former § 8-1, and renumbered §§ 8-2—8-8 as 8-1—8-7, as set out herein. The former § 8-1 pertained to the fire department's mission and derived from the Code 1985, § 8-1. The historical notation has been retained with the amended provisions for reference purposes.

Sec. 8-2. Fire marshal's appointment.

The fire marshal in charge of the bureau of fire prevention shall be appointed by the chief of the fire department.
(Code 1985, § 8-3; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—See editor's note to § 8-1.

Sec. 8-3. Inspectors.

The chief of the fire department may detail such members of the department as inspectors as shall from time to time be necessary.
(Code 1985, § 8-4; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—See editor's note to § 8-1.

Sec. 8-4. Issuance of notice of violations by fire inspectors.

(a) State-certified fire inspectors of the fire department are empowered to issue notices of violation when such fire inspectors have reasonable cause to believe that any person has violated any provision of the state fire code, as amended, or of this chapter. The notice of violation may be delivered in person to the violator or, if the violator cannot be readily found, the notice of violation may be mailed. The notice of violation shall specify the penalty to be imposed on the violator and shall direct the violator to appear before the city's violations officer within 15 days to pay the penalty or, alternatively, to pay the penalty by mail. The penalty imposed shall be $50.00 for violations of the state fire code or of this chapter. However, violations of section 1003.6, means of egress continuity, and violations of section 901.8, removal or tampering with fire protection equipment, of the state fire code shall subject the offender to a penalty of $200.00, instead of $50.00. A violation of section 107.6 of the state fire code, Overcrowding, shall be deemed a life safety violation and shall subject the offender to a penalty of $500.00.

(b) The notice of violation may specify a period during which the violator must correct the violation. If the violation is not corrected within the specified time, the violator shall be guilty of a new and separate offense.

(c) If the violator does not pay the penalty within 15 days after issuance of the notice of violation, a delinquency charge of $10.00 shall be added to the amount specified in the notice of violation, and notice of the delinquency charge shall be mailed to the violator. The delinquency notice shall also inform the violator that a criminal summons will be issued against him if the specified penalty and the delinquency charge are not paid within five days after the date of the delinquency notice.

(d) If the penalty and delinquency charge are not paid within the time allowed, the fire marshal may have a criminal summons issued against the violator for the violation of the state fire code or of this chapter. Upon conviction, the violator shall be subject, in addition to any criminal penalty the court may impose pursuant to the provisions contained in the state fire code or pursuant to section 8-6 of this chapter, to the penalty specified in the notice of violation and the delinquency charge.

(e) Nothing in this section shall preclude the issuance of an arrest warrant where appropriate.
(Code 1985, § 8-5; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—See editor's note to § 8-1.

Sec. 8-5. Penalties.

(a) Any person who shall violate or fail to comply with any section of this chapter or of the state fire code, as adopted, amended or augmented by this chapter; who shall violate or fail to comply with any order made under this chapter or the state fire code; or who shall build in violation of any detailed statement of specifications or plans submitted under this chapter or the state fire code, or any certificate or permit issued thereunder, shall be guilty of Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4. The imposition of one penalty for any violation shall not excuse the violation or permit it to continue, and all such violations shall be corrected within the time specified pursuant to section 8-5(b) of this chapter.

(b) The application of the penalties in subsection (a) of this section shall not be held to prevent the enforced removal of prohibited conditions.

(Code 1985, § 8-6; Ord. No. 9756, § 1(Exh. A), 2-24-2020; Ord. No. 274, § 4, 3-28-2022)

Editor's note—See editor's note to § 8-1.

Sec. 8-6. Fire limits.

Pursuant to state laws, the fire limits of the city shall be shown on a map dated September 8, 1986, such map being on record in the office of the city clerk.

(Code 1985, § 8-7; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—See editor's note to § 8-1.

Sec. 8-7. Fire department rules and regulations governing fire flow, water demand, fire hydrants, fire connections and unattended service stations.

The fire department provisions entitled, "City of Charlotte Fire Department Rules and Regulations Governing Fire Flow, Water Demand, Fire Hydrants, Fire Connections and Unattended Service Stations," dated December 20, 1993, as amended (referred to as "regulations") are hereby adopted and incorporated as if fully set out in this chapter, and the provisions thereof shall be controlling within the city limits. The chief of the fire department is hereby authorized to approve all revisions or amendments to the regulations for the city as may be necessary from time to time, and such revisions or amendments shall also be incorporated as if fully set out at length in this chapter. Such revisions or amendments shall supersede all previous provisions and shall be controlling within the city limits. A copy of the regulations, as amended, shall be on file in the office of the fire department and the office of the city clerk.

(Code 1985, § 8-8; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—See editor's note to § 8-1.

Sec. 8-8. Reserved.

Editor's note—See editor's note to § 8-1.

Sec. 8-9. Reserved.

Editor's note—Ord. No. 9756, § 1(Exh. A), adopted Feb. 24, 2020, repealed § 8-9, which pertained to the fraternity and sorority houses and derived from the Code 1985, § 8-9.

Secs. 8-10—8-33. Reserved.

ARTICLE II. PERMITS AND FEES

Sec. 8-34. Permit application; fee schedule.

Applications for permits required pursuant to chapter 1 of the North Carolina State Fire Code, adopted in this chapter shall be made to the fire marshal on forms provided by the city. All applications shall be accompanied by the applicable permit fee as established by the city. The required permit fees shall be set out in a fee schedule. Printed schedules of the permit fees shall be available to the public at the fire marshal's office and shall be on file in the city clerk's office. The fire marshal is authorized to waive the permit fee for governmental, religious, or charitable organizations.

(Code 1985, § 8-26; Ord. No. 9756, § 1(Exh. A), 2-24-2020)

Editor's note—Ord. No. 9756, § 1(Exh. A), adopted Feb. 24, 2020, renumbered § 8-36 as 8-34, as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

Chapter 9

RESERVED*

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 9 and replaced it with the Unified Development Ordinance in Chapter 24. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 9 pertained to floodplain regulations and was derived from Ord. No. 4912, adopted June 25, 2012; Ord. No. 5294, § 1, adopted Jan. 27, 2014; Ord. No. 5988, §§ 1, 2, adopted July 27, 2015; Ord. No. 9399, adopted Sept. 10, 2018; Ord. No. 93, § 1(Exh. A), adopted June 28, 2021; Ord. No. 192, §§ 1—3, adopted Dec. 13, 2021.

Chapter 10

HEALTH AND SANITATION*

Article I. In General

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Sec. 10-2. Smoking in city-owned buildings.
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Sec. 10-35. Solid waste services fee.
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Sec. 10-119. Appliances.
Sec. 10-120. Hazardous waste.
Secs. 10-121—10-134. Reserved.

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*__Editor's note—__Ord. No. 9151, § 1(Exh. A), adopted Sept. 11, 2017, repealed the former Ch. 10, §§ 10-1, 10-31, 10-32, 10-61—10-66, 10-96—10-115, 10-141—10-142, 10-171—10-174, 10-201—10-214, 10-241—10-243, 10-271—10-282, and enacted a new Ch. 10 as set out herein. The former Ch. 10 pertained to similar subject matter and derived from Code 1985, §§ 10-3, 10-16—10-22, 10-29—10-48, 10-60—10-63, 10-70—10-83, 10-90—10-92, 10-136—10-147; Ord. No. 2447, §§ 2—5, adopted Nov. 24, 2003; Ord. No. 2760, § 1, adopted Oct. 11, 2004; Ord. No. 2562, §§ 1, 2, adopted March 22, 2004; Ord. No. 3438, §§ 1, 2, adopted Nov. 27, 2006; Ord. No. 3655, § 1, adopted July 23, 2007; Ord. No. 3733, § 1, adopted Nov. 12, 2007; Ord. No. 5090-X, § 1(Exh. A), adopted April 22, 2013; Ord. No. 5950, adopted June 8, 2015;

__Charter references—__Drainage and sanitation, § 6.101 et seq.; refuse disposal, § 7.41.

__Cross references—__Animals, ch. 3; buildings and building regulations, ch. 5; floods, ch. 9.

__State law references—__Local health departments, G.S. 130A-34 et seq.; local health director, G.S. 130A-40; authority to abate public health nuisances, G.S. 160A-193.

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Secs. 10-158—10-164. Reserved.

Division 5. Removal and Disposition of Abandoned Vehicles, Hazardous Vehicles and Junked Motor Vehicles

Sec. 10-165. Abandoned vehicles.
Sec. 10-166. Hazardous vehicles.
Sec. 10-167. Junked motor vehicles.
Sec. 10-168. Notice prior to removal; pretow notice.
Sec. 10-169. Post tow notice and probable cause hearing.
Sec. 10-170. Removal of vehicle reclamation.
Sec. 10-171. Disposition of vehicles.
Sec. 10-172. Protection against criminal and civil liability.
Sec. 10-173. Exceptions.

ARTICLE I. IN GENERAL

Sec. 10-1. Definitions.

The following words, terms and phrases, and their derivatives, when used in this chapter, shall have the meanings ascribed to them in this chapter, except where the context clearly indicates a different meaning:

Appliances means refrigerators, ranges, water heaters, freezers, unit air conditioners, washing machines, dishwashers, clothes dryers, and other similar domestic and commercial appliances.

Administrative policy means the SWS document that provides guidance, information, and procedures for items to be collected by SWS or its agents.

Building material means any items, materials, or substances used in the construction, demolition, or renovation of a structure. Examples of building materials include, but are not limited to, lumber, brick, stone, carpet, plumbing materials, plaster, concrete, roofing, floor coverings, or gutters.

Bulky waste means items that cannot be placed securely within a container. Examples of bulky waste include, but are not limited to, items such as household furnishings, household appliances, mattresses, box springs, tires, lawn equipment (i.e. mowers, rototillers, wheelbarrows), and similar household items.

Business enterprise means a sole proprietorship, corporation, professional corporation, nonprofit corporation, limited liability company, limited partnership, limited liability partnership, or any other partnership whether or not formed under the laws of the State of North Carolina. All foreign business enterprises must be licensed by the Secretary of State of North Carolina to do business in North Carolina.

Chronic offender means, as set forth in G.S. 160A-200.1, four or more violations of article III in the previous calendar year by the same property owner on any premises within the city.

City means City of Charlotte.

Code enforcement means the division of the city's housing and neighborhood services department or any subsequent city department.

Commingled waste means any residential solid waste or small business garbage mixed with hazardous waste, industrial waste, or nonresidential waste.

Container means large waste container, personal waste container, and small waste container.

County tax administrator means the Mecklenburg County assessor's office, the Mecklenburg County tax collector's office, or any of their successors or assigns.

Curbside means the portion of premises that is adjacent to or adjoining a roadway.

Foul odors mean offensive odors emanating from, but not limited to, garbage, or dead animals.

Garbage means all putrescible wastes, including animal offal and carcasses, and recognizable industrial by-products, but excluding sewage and human waste.

Graffiti means any imagery made by a perpetrator that defaces a structure, or place. Examples of graffiti include, but are not limited to, writings, drawings, inscriptions, figures or marks of paint, ink, chalk, dye, or other similar substances regardless of the content, or other similar substances regardless of the nature of materials used in the commission of the defacing act.

Hazardous vehicle means a motor vehicle exhibiting any of the following:

(1) A breeding ground or harbor for mosquitoes or other insects, snakes, rats, or other pests.

(2) A point of weed or other vegetation overgrowth.

(3) A point of collection for pools or ponds of water.

(4) A point of concentration of gasoline, oil or other flammable or explosive materials.

(5) So located that there is a danger of the motor vehicle falling or turning over.

(6) A place in which debris, bottles, or other solid waste is discarded and is present within or around the motor vehicle.

(7) A source of danger for children either through entrapment in areas of confinement that cannot be opened from the inside or from exposed surfaces of metal, glass, or other rigid materials.

(8) The creation of another similar condition or circumstance which exposes the general public to safety or health hazards.

Hazardous waste means a solid waste, or combination of solid wastes, which because of its quantity, concentration, physical characteristics, chemical characteristics, or infectious characteristics may (i) cause or significantly contribute to an increase in mortality or an increase in serious irreversible or incapacitating reversible illness, or (ii) may pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, disposed of, or otherwise managed.

Heavily wooded lots means any premises being densely wooded with trees, shrubs, and overgrowth where equipment cannot maneuver because of the density of the area.

Industrial waste means solid waste generated by manufacturing processes or industrial processes that is not hazardous waste.

Junk means any item which creates a littered condition outside of an enclosed structure and in whole or part is rusted, wrecked, broken, junked, dismantled, or in inoperative condition. Any junk item completely enclosed in a structure is not subject to this definition. Examples of junk include, but are not limited to, dilapidated furniture, appliances, machinery, equipment, building materials, automotive parts, tires, or other similar items.

Large waste container means a dumpster, compactor, open-top container, and detachable receptacle that is used for collecting, storing, or transporting residential solid waste. A large waste container has a minimum capacity of two cubic yards and picked up by a specially equipped truck for transporting the waste materials to the disposal site. This is a receptacle that is not a city-issued receptacle.

Large waste container-eligible development means 30 or more residential units in a residential development approved by the city prior to January 1, 2018, or 12 or more residential units in a residential development approved by the city after January 1, 2018. For this definition, any calculation of the number of the residential units shall include those residential units in duplexes, triplexes, quadraplexes, apartments, condos, townhomes, and/or residential units sharing a common wall or roof. This definition excludes detached single-family dwellings.

Lawful place and manner means strict compliance with the city's Unified Development ordinance.

Litter means any discarded materials that accumulate on a premises in an untidy manner.

Maximum allowance means the total amount of solid waste generated by a residential unit or nonresidential unit that could be collected by the city.

Motor vehicle means all machines designed or intended to travel over land or water by self-propulsion or while attached to any self-propelled vehicle.

Naturalistic landscape means a carefully designed and intentionally maintained area of vegetation that reflects an ecosystem native to the southeastern United States using regionally native and adapted plant species.

Nonresidential unit means any place or area that is not a dwelling, domicile, or used as a residence. Examples of a nonresidential unit include, but are not limited to, any use that is retail, manufacturing, wholesale, institutional, religious, government, or a nonprofit organization.

Nonresidential waste means any solid waste generated by a nonresidential unit. Examples of nonresidential waste include, but are not limited to, discarded building materials, any byproduct resulting from land disturbing activities, and large quantities of sod.

Nuisance means something that is dangerous or prejudicial to the public health or public safety.

Person means any natural person, owner, agent, corporation, partnership, association, firm, receiver, guardian, trustee, executor, administrator, fiduciary, occupant, lessee, tenant, or representative or group of individuals or entities of any kind.

Personal waste container means any receptacle that is not a city-issued receptacle.

Persons with disabilities means any person who has a physical or mental impairment which substantially limits one or more major life activities and has a record of such an impairment.

Pollinator habitat means a landscape area designed to support pollinator species, including bees, butterflies, moths, and birds. It consists of a diverse selection of plants primarily native to the southeastern United States that provide nectar, pollen, and habitat across multiple seasons and is maintained without the use of pesticides to protect pollinator health.

Premises means private or public lots or parcels of land, sidewalks, rights-of-way, grass strips, or curbs up to the edge of the pavement of any roadway or public right-of-way.

Public rights-of-way means any land that is dedicated or otherwise legally established for public use.

Recyclables means any process by which solid waste or materials which would otherwise become solid waste are collected, separated, or processed, and reused or returned to use in the form of raw materials or products. Recyclables include glass jars, bottles, aluminum cans, steel cans, plastic soda and liquor bottles, newspapers and inserts, plastic milk and water jugs, spiral paper cans.

Repeat offender means, as set forth in G.S. 160A-200.1, four or more repeated violations of article III in the previous calendar year by the same property owner on the same premises within the city.

Residential solid waste means any solid waste generated by a residential unit. Examples of residential solid waste include, but are not limited to, recyclables and other solid waste.

Residential unit means a dwelling used by one or more natural persons as a residence, home, or domicile. The term does not include hotels, motels, inns, tourist camps, or other similar places that are required to collect a room occupancy tax.

Responsible person means, except as specified in section 10-141, any person owning the property, acting as manager or agent for the property, or in possession or control of the property (i.e. tenant, occupant, or lessee) shall be responsible for complying with this article and correcting any violation.

Roadway means, pursuant to G.S. 20-4.01(13), the entire width between property or right-of-way lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter of right for the purposes of vehicular traffic. The terms "highway" and "street" and their cognates are synonymous.

Sign means the displaying of any symbol, logo, insignia, handbill, or advertisement for a person to read.

Small business garbage means any accumulation of paper, cardboard, packaging materials, rags, or accumulations of incidental garbage other than household trash, which is associated with the operation of stores, offices, churches, and commercial establishments.

Small waste container means the city-issued receptacle.

Small waste container-eligible development means 29 or less residential units in a residential development approved by the city prior to January 1, 2018, or 11 or less residential units in a residential development approved by the city after January 1, 2018. For this definition, any calculation of the number of the residential units shall include those residential units in duplexes, triplexes, quadraplexes, apartments, condos, town-

homes, and/or residential units sharing a common wall or roof. This definition excludes detached single-family dwellings.

Solid waste means accumulations that may be collected by SWS consisting of any combination of small business garbage, garbage, residential solid waste, bulky waste, yard waste, recyclables, and junk.

Solid waste services means the city's department responsible for the collection of garbage, recyclables, yard waste, and bulky items from residential units and the collection of small business garbage from business enterprises. This may also be identified as SWS.

SWS department head means the director of solid waste services.

Special Tax District #1 means a section of the city bounded by 1-77, Brookshire Freeway, and the John Belk Freeway (1-277).

Unified Development Ordinance approval means any approval of a premises for purposes of zoning, subdivision, or development by the City's Planning, Design and Development department, or other designated department of the city.

Yard waste means solid waste consisting solely of vegetative matter resulting from landscaping maintenance. Examples of yard waste include, but are not limited to, grass, weeds, leaves, tree trimmings, plants, shrubbery prunings, and such other similar materials.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1033, § 1, 10-27-2025; Ord. No. 1084, § 1(Exh. A), 2-9-2026; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-2. Smoking in city-owned buildings.

(a) As used in this section, the term "smoking" shall mean the inhaling, exhaling, burning or carrying of a lighted pipe, cigarette or other combustible tobacco product.

(b) Smoking shall not be permitted within any building owned by the city or within any building or space leased by the city. The manager or person in charge of the building shall conspicuously post signs within the building stating that smoking is not permitted. For example, the foregoing shall apply, but shall not be limited to, the following buildings and facilities: the Charlotte-Mecklenburg Government Center, Old City Hall Building, fire stations, Ovens Auditorium, the old and new Convention Center, the Coliseum, the Independence Arena, the North Carolina Blumenthal Performing Arts Center, the Mint Museum, Discovery Place, the Afro-American Cultural Center and Charlotte-Douglas International Airport. However, the manager or person in charge of a city-owned or -leased building may, in his discretion, designate smoking areas within the facility if he determines that it is feasible to adequately contain and ventilate the smoke from such smoking areas. The location and size of the smoking areas, if any, shall be determined by the manager or person in charge. Signs shall be conspicuously posted in any area designated as a smoking area.

(c) No person shall smoke in a nonsmoking area in a city-owned or -leased building or smoke in any city-owned or -leased vehicle in violation of subsection (c). Any person who continues to smoke in any nonsmoking area or in any city-owned or -leased vehicle in violation of subsection (c) following notice by the person in charge or his designee that smoking is not permitted shall be subject to a civil penalty in the amount of $50.00. If the penalty is not paid or appealed within 30 days of its issuance, a delinquency charge of $25.00 shall be added to the amount of the penalty. This civil penalty and delinquency charge may be recovered by the city in a civil action in the nature of a debt if the violator does not pay the full amount within 15 days after the imposition of the delinquency charge. This subsection shall not apply to public transportation vehicles, which shall be governed by section 15-272.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Secs. 10-3—10-24. Reserved.

ARTICLE II. SOLID WASTE SERVICES*

Sec. 10-25. Purpose; conflicts.

This article is determined and declared to be a health, sanitary, and safety measure necessary for the promotion, protection, and preservation of the health, safety, and general welfare of the people of the city. Whenever this article conflicts with any other portion of the city Code, this article shall prevail with respect to any matters relating to solid waste services.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-26. Authority of department head.

(a) The SWS department head shall have the discretion to implement the aim and intent of this ordinance by determining:

(1) The appropriate type, quantity, or size of any container for the provision of service by the city pursuant to section 10-30.

(2) Whether any item constitutes bulky waste or junk under section 10-33.

(3) Whether the collection of an item could impair or affect the health and safety of city employees or any of the city's agents.

(4) The maximum allowance permitted to be placed in a container for collection service.

(5) The maximum allowance permitted to be placed at curbside.

(6) Whether any specific item of nonresidential waste should be excluded from any service pursuant to section 10-30(b) and section 10-30(c).

(b) When evaluating a property and/or residential development for service eligibility by the city, the SWS department head may take into consideration its size, density, configuration, and Unified Development Ordinance approval date. If no space or inadequate space is set aside for containers on the premises in accordance with Article 21 of the Unified Development Ordinance and prior to any Unified Development Ordinance approval, then the premises shall not be eligible for service by the city or any of the city's agents.

(c) Any changes to the initial Unified Development Ordinance approval of development configurations, lot lines, phase lines, or variations in forms or timing of ownership, which may be approved under any provisions of the Unified Development Ordinance, will not enable a person to receive a different form of service under section 10-30 and 10-31 than the service the person received after the initial approval.

(d) Collection schedules shall be determined by the department head and may be altered to observe holidays or for emergency situations.

(e) The SWS department head shall have the authority to decline to perform any collection services if the solid waste:

(1) Is not prepared in accordance with this article.

(2) Exceeds the maximum weight and/or amount that two collection personnel would be reasonably expected to lift and load into a collection vehicle.

(3) Cannot be placed on or in the collection vehicle due to its size.

(f) The SWS department head shall have the authority to investigate whether a person is exceeding the maximum allowance. Any solid waste above the maximum allowance will not be collected by the city or any of the city's agents.

(g) The SWS department head shall have the authority to assess a purchase price for any small waste container.

(h) The SWS department head shall have the authority to develop and revise an administrative policy which explains how items shall be prepared to facilitate collection services.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-27. Interference with authorized personnel prohibited.

It shall be unlawful to interfere, harass, or otherwise impede any person authorized by the city to carry out the duties and responsibilities

*__State law references—__Solid waste management, G.S. 130A-290 et seq.; authority to regulate the placing of trash and refuse within the municipal limits, G.S. 160A-303.1.

set forth in this article. A law enforcement official shall have the authority to arrest a person for violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-28. Unauthorized collection prohibited.

It shall be unlawful for any person to collect, pick up, or cause to be collected or picked up, any solid waste unless the person is authorized by the city.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-29. Ownership of materials.

All solid waste, which is properly placed at curbside for collection, is deemed to be abandoned and become the property of the city or its agents.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-30. Types of primary service.

(a) *Residential solid waste services.*

(1) This service shall be provided to city facilities and the following residential units: detached single-family dwellings, accessory dwelling units, small waste container-eligible development, and large waste container-eligible development.

(2) Any residential solid waste shall be in an amount less than the maximum allowance.

(3) If a premises includes both residential units and nonresidential units, then the nonresidential units on the premises are prohibited from receiving service pursuant to section 10-30(a).

(b) *Small business garbage.*

(1) This service shall be provided to any business enterprise only generating nonresidential waste and in an amount less than the maximum allowance.

(2) If a premises includes both residential units and nonresidential units, then the nonresidential units on the premises are prohibited from receiving service pursuant to section 10-30(a) but may receive service pursuant to section 10-30(b) if deemed eligible.

(c) *Special tax district #1 small business garbage.*

(1) This service shall be provided to any business enterprise only generating nonresidential waste and in an amount less than the maximum allowance.

(2) Nothing in this section shall mandate or imply an entitlement to multiple same-day collections or more than once per day collection service.

(3) If a premises includes both residential units and nonresidential units, then the nonresidential units on the premises are prohibited from receiving service pursuant to section 10-30(a) but may receive service pursuant to section 10-30(c) if deemed eligible.

(d) *Persons with disabilities solid waste service.*

(1) This service allows for collection of small waste containers in an amount less than the maximum allowance for a person with a disability, where undertaking the act of moving and removing a small waste container would clearly and seriously threaten that person's health.

(2) A valid medical verification form must be submitted to SWS and must be approved before a person can receive this service.

(3) A valid medical verification may be requested subsequently by the city to determine a person's continued eligibility. If more than 60 days have passed since the city requested a medical verification and a medical verification has not been provided, then the city may discontinue this service.

(4) This service shall not be provided to any premises receiving service pursuant to section 10-30(b) or section 10-30(c).

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-31. Types of waste container.

(a) *Small waste container.*

(1) Residential units that are detached single-family dwellings and accessory dwelling units, are eligible to receive small waste containers for service pursuant to section 10-30(a), section 10-30(d), and section 10-32(b).

(2) Small waste container-eligible developments are eligible to receive small waste containers for service pursuant to section 10-30(a), section 10-30(d), and section 10-32(b).

(3) A business enterprise is eligible to receive a small waste container for service pursuant to section 10-30(b) and section 10-30(c).

(4) Any other residential units that have been issued a small waste container and have been receiving service pursuant to section 10-30(a) prior to January 1, 2018.

(5) No person shall use or permit the use of any small waste container except for its intended use.

(6) Garbage shall be drained of all liquid and enclosed in securely tied plastic bags before it is placed into any small waste containers.

(7) Small waste containers shall be placed at the curbside no earlier than the day before collection and no later than 6:00 a.m. on the day of collection for service pursuant to section 10-30(a) and section 10-32(b). Any small waste container shall be removed by 11:59 p.m. on the day of collection.

(8) Small waste containers shall be placed at the curbside no earlier than the day before collection and no later than 6:00 a.m. on the day of collection for service pursuant to section 10-30(b). Any small waste containers left at the curbside shall be removed by 11:59 p.m. on the day of collection.

(9) Small waste containers shall be placed at any designated location by 7:00 a.m. on the day of collection for service pursuant to section 10-30(c). Any small waste containers left at the curbside shall be removed by 5:00 p.m. on the day of collection.

(10) A small waste container must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, bulky waste, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing a small waste container along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

(11) A small waste container will not be collected if collection personnel:

i. Have to unlock or open a door.

ii. Have to unlock a gate or similar obstacle and lack the necessary access code.

iii. Encounter a vicious or aggressive animal.

iv. Are denied reasonable access by parked motor vehicles, equipment, or other objects.

v. Would be required to ascend or descend multiple steps to obtain access to any small waste container.

vi. Observe that damage to the small waste container would prevent collection service from occurring.

(b) *Personal waste container.*

(1) Any person may use a personal waste container for service pursuant to section 10-32(a).

(2) Any personal waste container shall be placed at the curbside no earlier than the day before collection and no later than 6:00 a.m. on the day of collection for service pursuant to section 10-32(a). Any personal waste container shall be removed by 11:59 p.m. on the day of collection.

(3) A personal waste container must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, bulky waste, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing a personal waste container along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

(c) *Large waste container.*

(1) Large waste container-eligible developments and city facilities must obtain large waste containers in order to receive service pursuant to section 10-30(a).

(2) Large waste containers should be kept in a good state of repair.

(3) No objects, obstructions, or motor vehicles should hinder the collection of any large waste container.

(4) Garbage shall be drained of all liquid and enclosed in securely tied plastic bags before it is placed into any large waste containers.

(5) To the extent that a large waste container may be rolled to a location for collection, any large waste container shall be placed at the curbside no earlier than the day before collection and no later than 6:00 a.m. on the day of collection for service pursuant to section 10-30(a). Any large waste container shall be removed by 11:59 p.m. on the day of collection.

(6) To the extent that a large waste container may be rolled to a location for collection, any large waste container must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, bulky waste, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing a large waste container along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-32. Types of secondary collection services.

(a) *Yard waste collection service.*

(1) Items shall be placed at the curbside no earlier than the day before collection and by no later than 6:00 a.m. on the day of collection. Any personal waste container or bag shall be removed by 11:59 p.m. on the day of collection.

(2) This service shall be provided to the following residential units: detached single-family dwellings and accessory dwelling units.

(3) This service may be provided to any small waste container-eligible development if the small waste container-eligible development uses small waste containers pursuant to section 10-31(a) for any service pursuant to section 10-30(a).

(4) Yard waste shall be placed in any personal waste containers or bags as required by the SWS department head at the curbside for collection. Any bag containing yard waste shall not be secured or tied.

(5) Yard waste must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, bulky waste, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing a yard waste along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

(b) *Recyclables.*

(1) Requirements for any detached single-family dwelling, accessory dwelling units, and any small waste container-eligible development that uses small waste containers.

i. A small waste container must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, bulky waste, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing a small waste container along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

ii. A small waste container will not be collected if collection personnel:

1. Have to unlock or open a door.
2. Have to unlock a gate or similar obstacle and lack the necessary access code.
3. Encounter a vicious or aggressive animal.
4. Are denied reasonable access by parked motor vehicles, equipment, or other objects.
5. Would be required to ascend or descend multiple steps to obtain access to any small waste container.
6. Observe that damage to the small waste container would prevent collection service from occurring.

(2) Requirements for large waste container-eligible development and any small waste container-eligible development that uses large waste containers.

i. All recyclables shall be placed in personal waste containers authorized by the city and/or provided by the city's agents.

ii. Any personal waste container and any overflow materials shall be segregated from all other solid waste at the collection location.

iii. Any personal waste container is the responsibility of the city's agents to maintain or replace.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-33. Collection of bulky waste and junk.

(a) Collection of bulky waste and junk must be scheduled with the city before collection can occur. Any person requesting collection of bulky waste and junk must obtain a date of collection from the city.

(b) Bulky waste and junk shall be placed at the curbside no earlier than the day before the day of collection and by no later than 6:00 a.m. on the day of collection.

(c) Bulky waste and junk must be placed at ground level, within six feet of the curbside and at least three feet away from each other or other obstacles such as mailboxes, telephone poles, automobiles, trees, etc., or in a location specified by the SWS department head. A person should use reasonable care and caution when placing bulky waste and junk along the curbside and should avoid interfering with the access to or denying the use of a sidewalk by others.

(d) No collection of bulky waste and junk will be provided for:

(1) Commercially related activities involving, but not limited to, building material, appliances, and equipment. Such commercially related activities are the responsibility of the person owning, leasing, or possessing the premises.

(2) Any person receiving service pursuant to section 10-30(b) and section 10-30(c).

(3) Oxygen tanks and other medical equipment.

(4) Propane tanks.

(5) Parts of campers, boats, camper shells, and trailers.

(6) Automotive parts including, but not limited to, motors, doors, fenders, car seats, or batteries.

(7) Oil tanks used for household purposes.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-34. Restrictions on the collection of specific items.

(a) *Appliances.* An appliance shall be emptied of its contents before it will be collected pursuant to section 10-33.

(b) *Ashes.* Any ashes must be wetted, cool to the touch, and placed in a plastic bag that is securely tied. No collection of ashes pursuant to section 10-30 will occur unless this provision is met.

(c) *Broken and sharp items.* All dangerous items and/or waste materials of an injurious nature shall not be placed in a container for disposal or collected pursuant to section 10-33 unless they are securely wrapped and marked so as to prevent injury to the collection personnel. These dangerous items and/or waste materials of an injurious nature include, but are not limited to, broken glass, light bulbs, sharp pieces of metal, fluorescent tubes, and television tubes.

(d) *Building materials.*

(1) The following building materials may be collected pursuant to section 10-33 if the residential unit's repair or renovation does not result from contractual work or commercially related activities:

i. Wooden pallets only if they are broken into smaller pieces (i.e. the size of boards or lumber) with nails removed or bent down.

ii. Large plumbing materials.

iii. Space heaters.

iv. Hot water heaters.

v. Collapsed accessory buildings.

vi. Guttering.

vii. Doors.

viii. Windows.

ix. Lumber and boards.

x. Plywood, paneling, and pressboard.

xi. Carpet and padding.

xii. Gauge fence wire.

(2) The city will not collect any of the following: dirt; rocks; boards with nails protruding; natural stone countertops; duct or sheet metal material; concrete blocks; brick; natural stone floor coverings; fence posts with concrete adhered to them; pipe posts with concrete adhered to them; sand; concrete; central air conditioning unit; heating units; pallets not prepared pursuant to section 10-34(d)(1)(i); ceramic tile; sheet rock; or roofing or plaster.

(e) *Christmas trees.* Any artificial Christmas trees shall be collected pursuant to section 10-33. All natural Christmas trees shall be collected as yard waste pursuant to section 10-32(a).

(f) *Contagious disease material.*

(1) If highly infectious diseases have occurred in a residential unit or at other places, then any items exposed to highly infectious diseases shall not be placed in any containers for collection pursuant to section 10-30 nor scheduled for collection of bulky waste and junk pursuant to section 10-33.

(2) Any items exposed to highly infectious diseases shall be removed pursuant to the supervision and direction of the local health department.

(3) Where the local health director finds and declares the existence of an epidemic, or finds and declares that an epidemic is threatened, all solid waste collected by city or any of the city's agents shall be taken immediately to the disposal site and shall be disposed of as the local health director and SWS department head may order.

(g) *Dead animals.*

(1) A person owning or possessing a dead animal, which weighs in excess of 100

pounds, shall be responsible for the removal and disposal of the dead animal.

(2) If a person's ownership or possession of the dead animal cannot be identified and the dead animal is in the roadway or near the curbside, then SWS shall remove the dead animal upon notification of its existence.

(h) *Fifty-five-gallon drums.* No 55-gallon drum or larger shall be collected or used as a container for any service pursuant to section 10-30, section 10-32, and section 10-33.

(i) *Glass.* All glass in windows, doors, mirrors, and other items with large expanses of glass must have the glass taped at minimum with an "X" mark from corner to corner and with a "t" from top to bottom so it will not shatter during collection for service pursuant to section 10-33.

(j) *Hypodermic instruments.* Any hypodermic syringe, hypodermic needle, or any instrument or device for making hypodermic injections shall be:

(1) Broken, disassembled, destroyed, or otherwise rendering such device inoperable and incapable of reuse; and,

(2) Placed in either a milk jug, coffee can with a lid, or such similar canister with a sealed top; and,

(3) Prepared for collection in a manner to avoid the possibility of causing injury to collection personnel.

(k) *Industrial waste.* No industrial waste shall be placed in containers or collected by the city or the city's agents. Industrial waste shall be collected, removed, and disposed of by the operator of the factory, plant, or business enterprise creating or causing the same.

(l) *Large furniture items.* Any large furniture items shall be dismantled prior to collection for service pursuant to section 10-33.

(m) *Lawn mowers.* Gasoline and oil must be removed from all push mowers prior to collection for service pursuant to section 10-33. No ride on mowers will be collected by the City.

(n) *Paint cans.* All paint cans shall have lids removed, contain no wet paint, and double bagged prior to collection for service pursuant to section 10-30. Kitty litter or sand may be added to solidify paint material.

(o) Pet waste shall be enclosed in double plastic bags and securely tied prior to placement in any small waste container or large waste container.

(p) Soiled diapers shall be enclosed in double plastic bags and securely tied prior to placement in any small waste container or large waste container.

(q) Soiled kitty litter shall be enclosed in double plastic bags and securely tied prior to placement in any small waste container or large waste container.

(r) *Tires.* All tires from the following shall be eligible for collection for service pursuant to section 10-33: bicycles; automobiles; motorcycles; large vans; mini vans; and small pickup trucks. Tires from large trucks, from farm equipment, or on any rim shall not be eligible for collection.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-35. Solid waste services fee.

(a) *Purpose.* This fee is for the provision of services set forth in section 10-30(a), section 10-30(d), section 10-32, and section 10-33.

(b) *Eligibility and ownership date.*

(1) The fee shall be imposed upon any premises receiving service pursuant to section 10-30(a), section 10-30(d), section 10-32, and section 10-33 by the city or the city's agents as of January 1.

(2) The premises' ownership shall be determined as of January 1 for each successive fiscal year.

(3) Any changes to the premises' ownership between January 2 and December 31 will not cause the premises to lose its eligibility for imposition of the fee.

(4) No fee shall be imposed by the city upon any premises if the premises receives service from a business enterprise providing solid waste collection service.

(c) *Administration.*

(1) The fee shall be:

i. Billed with property taxes; and,

ii. Payable in the same manner as property taxes; and

iii. Collected in any manner by which delinquent personal or real property taxes can be collected.

(2) The fee may be billed by a separate bill if:

i. Property taxes are not levied upon the premises.

ii. The structure is exempted from property taxation.

(3) If a fee should have been assessed during a fiscal year but was not assessed, then the city may levy the unassessed fee for the year in which discovered and for any of the preceding five years during which it escaped assessment.

(4) If there are multiple owners of a premises and such multiple owners are assessed separately for the property taxes, then the fee shall be levied on a ratable basis in accordance with the percentage of interest owned by the multiple owners.

(5) The fee shall be a lien on real and personal property under the same rules as set forth in G.S. 105-355, 160A-314.1, and other sections of the Machinery Act.

(6) The county tax administrator may promulgate additional rules and regulations necessary for the implementation of this section not inconsistent with the specific provisions set forth in this section.

(d) *Adjustments*.

(1) Notice of exception

i. Any property owner, whom is assessed a fee, may file a notice of exception in writing with the county tax administrator. The notice of exception should include documentation supporting the property owner's argument. The filing of a notice of exception shall not relieve a property owner of the obligation to pay the fee prior to the date interest accrues.

ii. The county tax administrator shall provide a copy of the notice of exception to the SWS department head. A hearing may be scheduled. The SWS department head shall determine if the fee is or is not owed by the property owner. The SWS department head shall issue a written decision to the property owner and provide a copy to the county tax administrator.

iii. If the SWS department head determines the fee is owed, the property owner shall have 15 days from the receipt of the written decision to appeal to the city manager's office. The city manager's office shall review the information and determine if the fee is or is not owned by the property owner. The city manager's office shall issue a written decision to the property owner and provide a copy to the SWS department head and the county tax administrator.

iv. If a written decision is favorable to the property owner, then the city shall issue a refund.

(2) If a fee has been assessed in an amount that is in excess of the amount established by city, then the city shall refund, rebate, or credit an appropriate amount to any affected property owner.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Sec. 10-36. Small business garbage fee.

(a) *Purpose and eligibility.* This fee is for the provision of services set forth in section 10-30(b) and section 10-30(c).

(b) *Administration.* The fee can be billed as an invoice that is due within 30 days after issuance in order to commence any service pursuant to section 10-30(b) and section 10-30(c).

(c) *Adjustments.*

(1) Notice of refund request.

i. Any person, whom is assessed a fee, may file a notice in writing with the SWS department head. The notice should include documentation supporting the person's argument.

ii. If the SWS department head determines the fee is owed, the person shall have 15 days from the receipt of the written decision to appeal to the city manager. The city manager's office shall review the information and determine if the fee is or is not owned by the property owner. The city manager's office shall issue a written decision to the property owner and provide a copy to the SWS department head.

iii. If a written decision is favorable to the person, then the city shall issue a refund.

(2) If a fee has been assessed in an amount that is in excess of the amount established by the city, the city shall refund, rebate, or credit an appropriate amount to any affected person or property owner.

(Ord. No. 1111, § 1(Exh. A), 4-13-2026)

Secs. 10-37—10-99. Reserved.

ARTICLE III. PUBLIC HEALTH NUISANCES

DIVISION 1. ADMINISTRATION AND ENFORCEMENT*

Sec. 10-100. Authority.

(a) Code enforcement shall be responsible for the administration and enforcement of the provisions of this article, except as otherwise stated. Nothing in this article shall be construed to limit the legal authority of the officers of the city's police department to enforce ordinances or carry out their other duties.

(b) Each and every violation of this article shall constitute a separate and distinct offense.

(c) A code enforcement inspector shall have the following authority:

(1) To enter upon a premises.

(2) To obtain an administrative search and inspection warrant, if necessary, as provided in G.S. 15-27.2 in order to conduct any necessary inspection of premises and to obtain evidence to determine whether there are any violations of the provisions of this article.

(3) To issue a notice of violation pursuant to section 10-101 and/or impose civil penalties pursuant to section 10-102.

(4) To enter upon or authorize an independent contractor to enter upon and clean up premises in violation of this article.

(5) To enter upon a premises to summarily remove, abate, or remedy everything in the city limits that is considered by ordinance to be either dangerous or prejudicial to the public health or which has been declared to be a nuisance.

(6) To determine whether any violation of this article has been fully remedied.

(7) To charge the responsible person with a violation of this article which may be punishable by a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.

(8) To apply to the appropriate court for an injunction and order of abatement which would require the responsible person correct any unlawful condition relating to this article existing on the premises.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 278, § 3, 4-4-2022)

*__Cross reference—__Administration, ch. 2.

Sec. 10-101. Notice of violation.

(a) Except as provided in subsection (c) of this section, code enforcement shall notify the responsible person of any violation of this article and give the responsible person a specified time to correct the violation. If the violation is not corrected within the time specified, code enforcement shall initiate enforcement proceedings as described in this article.

(b) A notice of violation shall be given in writing and mailed or hand delivered to the address listed for the responsible person in the Mecklenburg County real estate records. Service of any written notice of violation is complete by hand delivering the notice or by depositing the notice in first class mail.

(c) Exceptions.

(1) Any notice of violation for a junked motor vehicle, abandon motor vehicle, or hazardous motor vehicle shall conform to section 10-168.

(2) No written notice of violation is required for section 10-115.

(3) No written notice of violation will be given when code enforcement has the authority to summarily remove, abate, or remedy a violation of this article.

(4) When a person has failed to comply with a notice of violation as described above, code enforcement shall not be required to provide subsequent further notices of violation to that person with regard to the current violation on the premises before taking any of the enforcement actions authorized by this article.

(5) No notice of violation or time to correct a violation shall be provided for any chronic offender or repeat offender for all subsequent violations.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-102. Civil penalty.

(a) A written notice of assessment shall be delivered to the responsible person at the address listed in the Mecklenburg County real estate records. Service of any written notice of assessment is complete by hand delivering the notice or by depositing the notice in first class mail.

(b) A civil penalty issued to a chronic offender or repeat offender shall be $250.00 for the fourth offense and $500.00 for the fifth offense and subsequent offenses.

(c) Code Enforcement's investigative and administrative costs and any independent contractor's costs may be assessed as a civil penalty to the responsible person for the violation.

(d) Such civil penalty shall be due and payable to the city no later than 30 days after the notice of assessment has been served. Failure to pay the civil penalty or file an appeal within 30 days of service of the notice assessment shall result in an additional penalty of $50.00.

(e) If the civil penalty is not paid, the city shall levy a lien against the premises in an amount equal to the civil penalty as provided by the authority of charter section 6.103. The city shall provide notice, by regular mail, to the property owner within five days of levying a lien on the premises.

(f) Code enforcement may collect civil penalties in a civil action in the nature of a debt.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-103. Interference with authorized personnel prohibited.

(a) It shall be unlawful for any person to interfere, harass, or otherwise impede a code enforcement inspector when conducting an investigation under the authority of a lawfully issued administrative search warrant or when otherwise carrying out the enforcement provisions of this article. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) A law enforcement official shall have the authority to arrest any natural person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-104. Adjudicatory hearing.

(a) Any person who has been assessed a civil penalty for a violation of this article or who is a person entitled to claim possession of a towed motor vehicle may request an appeal hearing. Such request must be made in writing, filed with code enforcement within 30 days of the notice of assessment or motor vehicle tow, and state the reasons why the civil penalty or motor vehicle tow should not have occurred. Failure to request an appeal hearing in the time and manner specified shall constitute a waiver of the right to contest the penalty or motor vehicle tow.

(b) A person requesting a hearing must post a bond equal to the amount of the civil penalty and must submit the bond with the person's request for a hearing. No bond is required for any appeals of towed motor vehicle.

(c) Any hearing shall be scheduled within a reasonable amount of time after the person's notice of appeal and bond has been received by Code enforcement.

(d) Each hearing officer shall: be appointed by the department head; preside over the appeal hearing; receive evidence and testimony during the appeal hearing; and render a determination upon the evidence presented during the appeal hearing. For towed motor vehicles only, the issue is whether or not probable cause existed for the towing. If the hearing officer finds that probable cause did exist, the charge for towing and storage continues. If the hearing officer finds that probable cause did not exist, the charge for towing and storage is rescinded.

(e) Any aggrieved party may seek judicial review of the decision by filing a written petition in the nature of certiorari within 30 calendar days after receipt of the decision, but not thereafter, with the Mecklenburg County superior court.

(f) For towed motor vehicles only, any aggrieved party may seek judicial review of the decision by appealing within 30 calendar days after receipt of the decision, but not thereafter, to Mecklenburg County district court.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Secs. 10-105—10-114. Reserved.

DIVISION 2. COLLECTION SERVICES

Sec. 10-115. Placing or removing items from curbside.

(a) Any person who places solid waste, building materials, yard waste, bulky waste, junk, dead animals, small waste containers, or personal waste containers at curbside more than one day before the day of the scheduled collection may be issued a civil penalty the amount of $150.00.

(b) Any Person who fails to remove solid waste, building materials, yard waste, bulky waste, junk, dead animals, small waste containers, or personal waste containers from curbside by 11:59 p.m. on the day of scheduled collection may be issued a civil penalty the amount of $150.00.

(c) Any person who fails to properly prepare or containerize solid waste for curbside collection may be issued a civil penalty in the amount of $150.00.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-116. Large waste containers.

(a) No large waste containers shall be stored in front of a business, a residence, the building line closest to the roadway or on public rights-of-way. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) Cleaning up spilled materials shall be the responsibility of the property owner or occupant and shall occur immediately after any such spillage or overflow occurs. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-117. Unauthorized use of small waste containers prohibited.

No person shall use or permit the use of any small waste container except for its intended

use. A civil penalty in the amount of $150.00 may be issued to any person who violates this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-118. Improperly prepared items or items ineligible for collection.

(a) Any person who improperly prepares appliances, ashes, 55-gallon drums, tires, or hypodermic instruments for collection may be issued a civil penalty in the amount of $150.00.

(b) Any person who places any contagious disease material, industrial waste, or hazardous waste out for collection shall be issued a civil penalty in the amount of $150.00.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-119. Appliances.

It shall be unlawful for any person to leave outside any building in a place accessible to children any appliance without it being strapped or locked so that it is impossible for a child to obtain access to it. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-120. Hazardous waste.

(a) It shall be unlawful for any person to dispose of hazardous waste or to hire or otherwise arrange for a person to dispose of hazardous waste upon another person's premises without the consent of the owner of that premises. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) The responsible person shall be strictly liable, without regard to fault or negligence, for damages or for any equitable remedies to persons or premises resulting from such unlawful disposal of hazardous waste. Damages shall include the cost of the removal of such hazardous waste to a lawfully designated disposal site.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Secs. 10-121—10-134. Reserved.

DIVISION 3. MAINTENANCE OF PREMISES AND LITTER CONTROL

Sec. 10-135. Unauthorized accumulations.

It shall be unlawful for any person to scatter, cast, throw, blow, place, sweep, or deposit anywhere within the city any litter in such a manner that it may be carried or deposited upon any roadway, sidewalk, alley, body of water, sewer, parkway, lot, or premises. Any unauthorized accumulation of litter is hereby declared to be a public nuisance and is prohibited. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-136. Neglect of a premises.

It shall be unlawful for a person to neglect a premises or create a dilapidated condition on property. Violation of this section may be evidenced by:

(i) Causing or allowing the accumulation of unsightly litter, overgrown weeds and grass, yard waste, foul odor, dead animals, Junk, unsecured appliances, or potentially dangerous devices to remain on or emanate from a premises. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(ii) Creating a littered condition by leaving materials which are partially or wholly rusted, wrecked, dismantled, junked or otherwise in an inoperative condition and which are not completely enclosed within an enclosed structure. Examples of such materials include, but are not limited to, dilapidated furniture, appliances, machinery, equipment, building materials, automotive parts, tires, or any other items. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

This section shall not apply to authorized junk dealers or establishments permitted to engage in repair, rebuilding, reconditioning, or salvaging of equipment.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-137. Uncovered motor vehicles.

(a) It shall be unlawful for a person to operate a motor vehicle transporting loose materials that lacks a suitable cover to prevent offensive odors from escaping and loose materials from being dropped, blown, or spilled. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) It shall be unlawful for any person to operate, park, stand, or use upon a roadway any motor vehicle used to transport loose materials for commercial purposes, unless the motor vehicle is properly identified by lettering on both sides indicating the name of the business enterprise or person. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(c) This section shall not apply to the transportation of poultry or livestock or silage or other feed grain used in the feeding of poultry or livestock.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-138. Illegal dumping.

It shall be unlawful to dispose of or discard any litter, junk, etc. on any premises without the owner's permission. A civil penalty in the amount of $500.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-139. Construction and demolition sites.

It shall be unlawful for any construction contractor, demolition contractor, and/or property owner to fail to provide on-site containers for loose debris, paper building material waste, scrap building material, and other trash produced by those working on the site. All such material shall be kept in a reasonably clean and litter-free condition. Construction sites shall be kept clean and orderly at all times. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-140. Obstruction of rights-of-way.

(a) It shall be unlawful to allow vegetation on any premises to protrude or hang so as to obstruct the safe passage of pedestrians or motor vehicles. This section shall not apply to the removal of fallen trees, dead trees, shrubbery, bushes, etc., on a premises where such do not protrude into the pedestrian/motor vehicle passageway. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) It shall be unlawful to park a motor vehicle upon a roadway at any time or for a limited time during restricted collection times as posted by the city department of transportation and referred to in section 14-216. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(c) It shall be unlawful to allow yard waste, bulky waste, and/or junk to obstruct the safe passage of pedestrians or motor vehicles. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-141. Signs within public rights-of-way and on public property.

(a) It shall be unlawful for any person to attach, place, paint, write, stamp, or paste any sign within 11 feet of the edge of the pavement of any roadway or alley.

(b) It shall be unlawful for any person to attach, place, paint, write, stamp, or paste any sign within any public rights-of-way.

(c) It shall be unlawful for any person to attach, place, paint, write, stamp or paste any sign upon any post, pole, tree, tree stake or guard, shrub, or fire hydrant.

(d) It shall be unlawful for any person to attach, place, paint, write, stamp or paste any sign upon anything else within 11 feet of the edge of any public rights-of-way, upon any bridge or overpass within the city limits, or upon other public property including, but not limited to, traffic medians.

(e) *Exceptions.* This section shall not apply to the following signs:

(1) Signs regulating traffic.

(2) Signs required to be posted by law.

(3) Warning signs and no trespassing signs.

(4) Signs indicating bus stops, metered vehicle stands under Code section 22-159, and similar transportation facilities.

(5) Signs not exceeding four square feet in area giving information concerning the location or use of accessory off-street parking facilities or loading and unloading facilities.

(6) Signs authorized by governmental agencies, including interactive informational and wayfinding kiosks.

(7) Signs permitted by the state board of transportation along roadways. Proof of permission must be shown upon request.

(8) Nothing in this section shall apply to the painting of house numbers on the curbside done with the prior approval of the city.

(9) Nothing in this section shall apply to the installation of a plaque, plate, statue, or monument on public property with the approval of the city council.

(10) Nothing in this section shall apply to the removal of an illegally placed sign which is in violation of this section.

(11) A violation of any provision of this section shall not constitute an infraction or misdemeanor punishable under G.S. 14-4.

(f) *Responsible person.* The responsible person for any signs in violation of subsection (a) through (d) is defined as follows:

(1) In the case of a sign advertising a service, product, dwelling, or event, the responsible person shall be deemed the person hosting or organizing the event or the person attaching, placing, painting, writing, stamping, or pasting any sign. Violation of this section shall subject the responsible person to a civil penalty of $100.00 per sign.

(2) In the case of a campaign sign for political office, the individual whose candidacy the sign supports shall be deemed the responsible person for posting campaign signs. Violation of this section shall subject the responsible person to a civil penalty of $100.00 per sign.

(3) In the case of a campaign sign regarding a ballot measure, the responsible person shall be deemed the president or chief officer of the organization advocating its position concerning the ballot measure. Violation of this section shall subject the responsible person to a civil penalty of $100.00 per sign.

(4) In the case of any other sign not described in subsections (1)—(3), the responsible person shall be deemed to be the person who is named on the sign or whose phone number, web site address, physical address, or electronic mail ("e-mail") address appears on the sign. Violation of this section shall subject the responsible person to a civil penalty of $100.00 per sign.

(5) Any person deemed the responsible person, as set forth in subsections (1)—(4) above, may notify code enforcement that another person is liable. In such case, the person shall provide the name, address, and signed consent of such other responsible person within seven calendar days after a notice of assessment is issued.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1033, § 1, 10-27-2025)

Sec. 10-142. Graffiti.

(a) *Graffiti prohibited.* It shall be unlawful for any person to write, paint, inscribe, scratch, scrawl, spray, place or draw graffiti of any type on any public or private building, structure, sidewalk, or any other real or personal property. It shall be unlawful for any responsible person to fail to remove or effectively obscure any graffiti upon such property.

(b) *Exemption.* Subsection (a) shall not be construed to prohibit temporary, easily removable chalk or other water-soluble markings on public or private sidewalks, roadways, or other paved surfaces which are used in connection with traditional children's activities. Traditional children's activities include drawings or bases for stickball, kickball, handball, hopscotch or similar activities. Nor shall subsection (a) be construed to prohibit temporary, easily removable chalk or other water soluble markings used in connection with any lawful business or public purpose or activity.

(c) *Emergency removal.* The city may remove or cause the graffiti to be removed at its expense if the city determines that any graffiti is a danger to the health, safety, or welfare of the public and is unable to provide a notice of violation to the responsible person, or if the city determines that any graffiti contains profanity, obscene language, or obscene imagery.

(d) *Costs and liens.* If the responsible person fails to remove or effectively obscure the graffiti within seven days from receipt of the notice of violation, the city may cause the graffiti to be removed or effectively obscured and charge the responsible person for the expenses incurred by the city in removing the graffiti. The city may sue in a court of competent jurisdiction to recover all such expenses, which shall include, but not be limited to, all administrative personnel costs, attorney's fees and costs related to enforcing this section; and/or the city may record a lien in the public records of the county, which lien shall be for all such expenses, and the amount of the lien shall bear interest from the date of recording.

(e) *Repair/restoration.* In no case shall the city paint or repair any area obscured by graffiti more extensively than where the graffiti itself is located. The city shall not be required to restore the obscured area to its original condition (i.e., color, texture, etc.).

(f) *Action by court.* Any person convicted of a violation shall be fined not less than $250.00 for a first offense and $500.00 for second and subsequent offenses. In determining the fine to be imposed, the court may consider the efforts, if any, taken by the responsible person to remove or effectively obscure the graffiti during the preceding calendar year. The mandatory fine provided in this section shall not apply to a property owner, agent, manager, or possessor of property if such property owner, agent, manager or possessor has been victimized two or more times by graffiti within any calendar year and, during such time, has removed or effectively obscured such graffiti from the property in a timely manner.

(g) *Restitution.* In addition to any other punishment imposed, the court shall order the person convicted of a violation of this section to make restitution to the victim for the damage or loss suffered by the victim as a result of the offense. The court may determine the amount, terms, and conditions of the restitution.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Secs. 10-143—10-154. Reserved.

DIVISION 4. WEEDS, GRASS, LEAVES AND UNDERGROWTH

Sec. 10-155. Overgrown vegetation.

(a) It shall be unlawful for the owner and/or occupant of a premises to fail to cut overgrown grass, weeds, and other vegetation when the grass, weeds, and other vegetation is of a height greater than 12 inches. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) Vacant lots adjacent to improved property, except as defined as heavily wooded lots, shall be cut in their entirety. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(c) Vacant lots over one acre shall have a 100-foot buffer area cut adjacent to the nearest premises. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(d) It shall be the duty of the owner and occupant to cut and remove all grass, weeds, and other overgrowth vegetation as often as necessary so as to comply with this provision of this division.

(e) Properly maintained pollinator habitats and naturalistic landscapes registered with the City are exempt from the provisions of this section.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017; Ord. No. 1084, § 1(Exh. A), 2-9-2026)

Sec. 10-156. Accumulation of leaves, grass clippings, etc., on public ways.

(a) It shall be unlawful for any person to blow, place, allow to be placed, or to permit the accumulation of yard waste within public rights-of-way, or on an area that pedestrians would be expected to use to walk upon parallel to a roadway. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) This section shall not apply to the accumulation of leaves along a curbside of a public rights-of-way for the purpose of collection by a private leaf-collecting contractor.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-157. Heavily wooded lots.

(a) It shall be unlawful for a person to restrict the visibility of a heavily wooded lot if the heavily wooded lot is used for the purpose of assignation, prostitution, gambling, illegal possession of alcoholic beverages, illegal sale of alcoholic beverages, illegal possession of narcotic drugs as defined in the North Carolina Controlled Substances Act, illegal sale of narcotic drugs as defined in the North Carolina Controlled Substances Act, or repeated acts which create and constitute a breach of the peace. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(b) It shall be the duty of the owner to cut and remove all trees, grass, weeds, and other vegetation as often as necessary so as to comply with this provision of this code and to improve the visibility of the heavily wooded lot. A civil penalty in the amount of $150.00 may be issued to any person in violation of this section.

(c) This section shall apply only to heavily wooded lots that are located in residentially zoned districts of the city as specified by the zoning ordinance. Residentially zoned districts include, but are not limited to single-family, multifamily, urban residential, and UMUD zoning districts.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Secs. 10-158—10-164. Reserved.

DIVISION 5. REMOVAL AND DISPOSITION OF ABANDONED VEHICLES, HAZARDOUS VEHICLES AND JUNKED MOTOR VEHICLES*

Sec. 10-165. Abandoned vehicles.

(a) It shall be unlawful to leave a motor vehicle on any roadway if the motor vehicle has not moved for seven days or more.

(b) It shall be unlawful to leave a motor vehicle on property owned or operated by the city for longer than 24 hours.

(c) It shall be unlawful to leave a motor vehicle on private property without the consent of the owner, occupant, or lessee for longer than two hours.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-166. Hazardous vehicles.

It shall be unlawful for the owner of a motor vehicle or for the owner, lessee, or occupant of the premises upon which the motor vehicle is located to leave or allow to remain on the premises any motor vehicle which is a hazardous motor vehicle.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-167. Junked motor vehicles.

(a) *Purpose.* G.S. 160A-303.2 authorizes the city to regulate and to prohibit junked motor vehicles on public grounds and on private property.

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*__Cross reference—__Motor vehicles and traffic, ch. 14.

__State law references—__Removal and disposal of junked and abandoned motor vehicles by municipalities, G.S. 160A-303; regulation of abandonment of junked motor vehicles, G.S. 160A-303.2.

Pursuant to that authority, the city council finds that such regulation, restraint or prohibition is necessary and desirable to promote or enhance the:

(1) Quality of urban attractiveness and the aesthetic appearance of the city.

(2) Protection of property values throughout the city.

(3) Preservation of the livability and the attractiveness of neighborhoods.

(4) Promotion of tourism, conventions and other opportunities for economic development for the city.

(5) Attractiveness of the city's roadways which present the primary, public visibility to visitors and to passersby of the city.

(b) *Determination.* In determining whether a motor vehicle constitutes a junked motor vehicle, code enforcement shall take into consideration, but not be limited to, whether the motor vehicle cannot be self-propelled or moved in the manner in which it was originally intended to move, whether the motor vehicle is partially dismantled or wrecked, whether the motor vehicle does not display a current license plate, or whether any other specific evidence would support a finding that the motor vehicle violates this section. If such a determination is made, then the inspector shall state that basis in writing.

(c) *Unlawful acts.*

(1) It shall be unlawful to have more than one junked motor vehicle on a premises.

(2) It shall be unlawful for anyone to fail to comply with the locational requirements or the concealment requirements of this section.

(d) *Permitted concealment or enclosures.*

(1) *One junked motor vehicle.* One junked motor vehicle in its entirety can be located in the rear yard, as defined by the city's zoning ordinance (appendix A to this Code), if the junked motor vehicle is entirely concealed by an acceptable canvas covering. A canvas covering must remain in good repair and must not be allowed to deteriorate.

(2) *More than one junked motor vehicle.* Any additional junked motor vehicles must be kept in a garage or building structure that provides a complete enclosure so that the junked motor vehicle cannot be seen from a roadway or abutting premises.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-168. Notice prior to removal; pretow notice.

(a) Any junked motor vehicle, abandoned motor vehicle, or hazardous motor vehicle found to be in violation of this division may be removed to a storage area.

(b) Such motor vehicle shall be towed after notice is provided by posting a notice of violation on the motor vehicle. Such notice of violation shall be affixed to the windshield or some other conspicuous place on the motor vehicle. The notice shall state that the motor vehicle will be removed by the city on a specified date, no sooner than seven days after the notice of violation is affixed to the motor vehicle, unless the vehicle is brought into compliance by the owner or legal possessor prior to that time.

(c) The requirement that the notice of violation be affixed to an abandoned motor vehicle, hazardous motor vehicle, or junked motor vehicle at least seven days prior to removal may be omitted in those circumstances where there is a special need for prompt action.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-169. Post tow notice and probable cause hearing.

When an abandoned motor vehicle, junked motor vehicle, or hazardous motor vehicle is removed, the city shall give notice to the registered owner as required by G.S. 20-219.11 (a) and (b). Such notice shall inform the owner of the owner's right to a probable cause hearing.

(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-170. Removal of vehicle reclamation.

(a) When any junked motor vehicle, abandoned motor vehicle, or hazardous motor vehicle is removed, code enforcement shall provide in its notice the information required by G.S. 44A-4(f), 20-114(c) and 44A-4(c).

(b) A person reclaiming a towed motor vehicle shall make payment to the city for the costs of removal and storage. When a person presents payment to reclaim a motor vehicle, the city shall not accept such payment until and unless the person signs a form that states that the person understands that the motor vehicle must be removed on the release date shown on the receipt.

(c) If the person wishes to pay for additional days of storage beyond the date of payment, then the person shall be permitted to do that and such payment for additional days shall be nonrefundable. A person shall not be permitted to reclaim a motor vehicle after the release date shown on the receipt. If a person has not reclaimed the motor vehicle by the release date, then the person shall have to return to the city and make further payment for the days of storage beyond the release date shown on the receipt.

(d) Upon presentation of a paid receipt from the city and a driver's license, registration card, or proof of title to a towing contractor by a person, the towing contractor shall be authorized to release the motor vehicle to that person if the person is reclaiming the motor vehicle on or before the release date shown on the paid receipt.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-171. Disposition of vehicles.

(a) The city shall have the authority to authorize the disposition of abandoned motor vehicles, junked motor vehicles, and hazardous motor vehicles by a sales procedure as provided in G.S. 44A-4(c) and, as applicable, G.S. 44A-5 and 44A-6, except that no hearing in addition to a probable cause hearing is required. If no one purchases the motor vehicle at the sale, and if the value of the motor vehicle is less than the amount of the lien, the city may authorize the destruction of the motor vehicle.

(b) Code enforcement shall have the authority to authorize the disposition of a motor vehicle immediately if the owner of the motor vehicle signs a consent form authorizing code enforcement to sell or to dispose of the motor vehicle immediately without complying with any statutory requirements pertaining to the disposition of such motor vehicles.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-172. Protection against criminal and civil liability.

No person shall be held to answer to any civil or criminal action to any owner or other person legally entitled to the possession of any abandoned motor vehicle, lost or stolen motor vehicle, for disposing of such motor vehicle as provided in this division.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Sec. 10-173. Exceptions.

(a) This division shall not apply to any motor vehicle in an enclosed building or any motor vehicle on the premises of a business enterprise being operated in a lawful place and manner if the motor vehicle is necessary to the operation of the business enterprise.

(b) This division shall not apply to any motor vehicle in an appropriate storage place or depository maintained in a lawful place and manner by the city.

(c) This division shall not apply to a motor vehicle kept or stored at a bona fide automobile graveyard or junkyard, as defined in G.S. 136-141 et seq.
(Ord. No. 9151, § 1(Exh. A), 9-11-2017)

Chapter 11

HOUSING*

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*__Editor's note—__Ord. No. 9651, § 1, adopted October 14, 2019, amended chapter 11 in its entirety to read as herein set out. Formerly, chapter 11 pertained to similar subject matter, and derived from Ord. No. 3784, § 1(Exh. A), adopted January 14, 2008.

__Charter reference—__Unsafe buildings, § 6.61.

__Cross references—__Administration, ch. 2; buildings and building regulations, ch. 5; fair housing, § 12-106 et seq.

__State law reference—__Minimum housing standards, G.S. 160D-1201 et seq.

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ARTICLE I. IN GENERAL

Sec. 11-1. Short title.

The rules and regulations prescribed by this chapter shall be known and may be cited as "The Housing Code of the City of Charlotte" and may be referred to in this chapter as "this code."
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-2. Findings; purpose.

(a) Pursuant to G.S. 160D-1201, it is hereby found and declared that there exist in the city's jurisdiction dwellings which are unfit for human habitation due to dilapidation; defects increasing the hazard of fire, accidents and other calamities; lack of ventilation, light and sanitary facilities; and other conditions rendering such dwellings unsafe or unsanitary, dangerous and detrimental to the welfare of the residents of the city.

(b) In order to protect the health, safety and welfare of the residents of the city as authorized by G.S. 160D-200; 160D-202; 160D-903, it is the purpose of this chapter to establish minimum standards and requirements for the initial and continued occupancy of all buildings used for human habitation as expressly authorized by G.S. 160D-1201—160D-1212. This section does not replace or modify requirements otherwise established for the construction, repair, alteration or use of buildings, equipment or facilities, except as provided in this chapter.

(c) The purpose of this chapter is to arrest, remedy and prevent the decay and deterioration of places of habitation and to eliminate blighted neighborhoods by providing standards for places of habitation for the protection of the life, health, safety, welfare and property of the general public and owners and occupants of places of habitation.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-3. Scope.

Except as otherwise provided in this chapter, the sections of this chapter are applicable to all dwellings, roominghouses and lodging establishments within the jurisdiction of the city regardless of when such units were constructed, altered, repaired, or improved.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-4. Definitions.

(a) The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration, as applied to a building or structure, means a change or rearrangement in the structural parts or in the exit facilities; an enlargement, whether by extending on a side or by increasing in height; or the moving from one location or position to another; and the term "alter" in its various moods and tenses and its participle refers to the making of an alteration.

Apartment means a room or suite of rooms occupied or which is intended or designed to be occupied as the home or residence of one individual, family or household for housekeeping purposes.

Approved, as applied to a material, device or mode of construction, means approved by the inspector under this chapter or by other authority designated by law to give approval in the matter in question.

Area:

(1) As applied to the dimensions of a building, means the maximum horizontal projected area of the building.

(2) As applied to the dimensions of a room, means the total square footage of floor area between finished walls.

Basement means a story with 50 percent or more of its cubical volume below finished grade.

Building means any structure having a roof supported by column or walls used or intended for supporting or sheltering any use or occupancy. The term "building" shall be construed as if followed by the phrase "or part thereof."

Cellar means a portion of a building located partly or wholly underground having an

inadequate access to light and air from windows located partly or wholly below the level of the adjoining ground.

Close means securing the building so that unauthorized persons cannot gain entrance to the building.

Code enforcement official means the person who has been designated, in writing, by the city manager to enforce this chapter.

Demolish means the demolition and removal of the entire building, leaving the property free and clear of any debris and without holes or pockets which may retain water.

Deteriorated as it applies to dwellings and roominghouses means that a dwelling or roominghouse is unsafe or unfit for human habitation and can be repaired, altered or improved to comply with all of the minimum standards of fitness established by this chapter at a cost not in excess of 65 percent of its physical value, as determined by a finding of the inspector.

Deteriorated as it applies to lodging establishments means that a lodging establishment is unsafe or unfit for human habitation and can be repaired, altered or improved to comply with all of the minimum standards of fitness established by this chapter at a cost not in excess of 50 percent of its physical value, as determined by a finding of the inspector.

Dilapidated, as it applies to dwellings and roominghouses, means that a dwelling or roominghouse is unsafe or unfit for human habitation and cannot be repaired, altered or improved to comply with all of the minimum standards of fitness established by this chapter at a cost not in excess of 65 percent of its physical value, as determined by a finding of the inspector.

Dilapidated, as it applies to lodging establishments, means that a lodging establishment is unsafe or unfit for human habitation and cannot be repaired, altered or improved to comply with all of the minimum standards of fitness established by this chapter at a cost not in excess of 50 percent of its physical value, as determined by a finding of the inspector.

Dwelling means any building, structure, manufactured home or mobile home, or part thereof, used and occupied for human habitation or intended to be so used, and includes any outhouses and appurtenances belonging thereto or usually enjoyed therewith, except that it does not include any manufactured home or mobile home, which is used solely for a seasonal vacation purpose.

Dwelling unit means any room or group of rooms located within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking and eating.

Extermination means the control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food by poisoning, spraying, fumigating, trapping or by any other recognized and legal pest elimination methods approved by the inspector.

Garbage means the byproduct of animal or vegetable foodstuffs resulting from the handling, preparation, cooking and consumption of food, or other matter which is subject to decomposition, decay, putrefaction or the generation of noxious or offensive gases or odors, or which, during or after decay, may serve as breeding or feeding material for flies, insects or animals.

Governing body means the city council.

Habitable room means a room occupied by one or more persons for living, eating, or sleeping, but does not include bathrooms, toilet compartments, laundries, serving and storage pantries, halls, corridors, basements, and other spaces that are not used frequently or during extended periods.

Infestation means the presence, within or around a place of habitation, of any insects, rodents or other pests in such number as to constitute a menace to the health, safety or welfare of the occupants or to the public.

Inspector means any person who is authorized by the code enforcement official to conduct inspections for the purpose of enforcing this chapter.

Lodging establishment means any hotel, motel, inn, tourist home, or other place providing lodging accommodations for pay. For purposes of this chapter, the term lodging establishment does not include any hotel, motel, inn, tourist home, or other place providing lodging accommodations for pay that is licensed or permitted by the state or the Mecklenburg County Department of Public Health pursuant to G.S. ch. 130A.

Lodging unit means a room or suite in any hotel, inn, tourist home, or other place providing lodging accommodations for pay designed for the temporary housing of paying guests. For purposes of this chapter, a lodging unit does not include a room in or suite in any hotel, inn, tourist home, or other place providing lodging accommodations for pay designed for the temporary housing of paying guests that is licensed or permitted by the state or the Mecklenburg County Department of Public Health pursuant to G.S. ch. 130A.

Manufactured home and *mobile home* mean a structure as defined in G.S. 143-145(7).

Multiple dwelling means any dwelling containing three or more dwelling units.

Occupant means any person over one year of age living, sleeping, cooking or eating in, or having actual possession of, a place of habitation.

Operator means any person who has charge, care or control of a building or part thereof, in which dwelling units, rooming units or lodging units are let.

Owner has the meaning specified in G.S. 160D-1202.

Parties in interest has the same meaning specified in G.S. 160D-1202.

Pier means a masonry support extending from the ground and footing to and supporting the building or portion thereof. Pier sizes and spacing shall conform to the specifications of the state building code.

Place of habitation means any dwelling, dwelling unit, roominghouse, rooming unit, lodging establishment or lodging unit.

Plumbing means and includes all of the following supplied facilities and equipment: gas pipes, gas-burning equipment, water pipes, mechanical garbage disposal units (mechanical sink grinders), waste pipes, water closets, sinks, installed dishwashers, lavatories, bathtubs, shower baths, installed clothes washing machines, catchbasins, drains, vents and any other similar supplied fixtures, together with all connections to water, sewer or gas lines.

Public authority means any housing authority or any officer who is in charge of any department or branch of the government of the city, county, or state relating to health, fire, building regulations, or other activities concerning places of habitation or other buildings in the city.

Public space means that space within any place of habitation which is open to use by the general public.

Rooming unit means a room or group of rooms forming a single habitable unit used or intended for use for living and sleeping, but not for cooking or eating purposes.

Roominghouse means any dwelling containing one or more rooming units, in which space is let by the owner or operator to three or more persons who are not husband and wife, son or daughter, mother or father or sister or brother of the owner or operator.

Rubbish means combustible and noncombustible waste materials except garbage. The term includes paper, rags, cartons, boxes, wood, excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metals, mineral matter, glass, crockery, dust, and the residue from the burning of wood, coal, coke and other combustible material.

State building code means the North Carolina State Building Code or any superseding regulation.

Supplied means paid for, furnished, provided by, or under the control of the owner or operator.

Temporary housing means any tent, trailer or other structure used for human shelter which is designed to be transportable and which is not

attached to the ground, to another structure, or to any utilities system on the same premises for more than 30 consecutive days.

Tenant means any person who, alone or jointly or severally with others, occupies a residential building under a lease or holds a legal tenancy in a building.

Unfit for human habitation means that conditions exist in a place of habitation which violate or do not comply with one or more of the minimum standards of fitness, or with one or more of the responsibilities of owners and occupants established by this chapter.

(b) Whenever the terms "dwelling," "dwelling unit," "roominghouse," "rooming unit," "lodging establishment," "lodging unit," "place of habitation" and "premises" are used in this chapter, they shall be construed as though followed by the phrase "or any part thereof."
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Cross reference—Definitions generally, § 1-2.

State law references—Similar provisions, G.S. 160D-102; 160D-1101; 160D-1202.

Sec. 11-5. Buildings unfit for human habitation declared nuisance.

All buildings or portions of buildings which are used or intended for use as places of habitation and which are, under this chapter, unfit for human habitation are hereby declared to be a public nuisance and shall be repaired or rehabilitated to the standards of this chapter or demolished in accordance with the procedure set forth in this chapter.
(Ord. No. 9651, § 1, 10-14-2019)

Secs. 11-6—11-30. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

Sec. 11-31. Duties of code enforcement official.

The code enforcement official is hereby designated as the officer to enforce this chapter and to exercise the duties and powers prescribed in this chapter. It shall be the duty of the code enforcement official to:

(1) Investigate the conditions and inspect places of habitation located in the city in order to determine which places of habitation are unfit for human habitation and for the purpose of carrying out the objectives of this chapter with respect to such places of habitation;

(2) Take such action, together with other appropriate departments and agencies, public and private, as may be necessary to effect rehabilitation of housing which is deteriorated;

(3) Keep a record of the results of inspections made under this chapter and an inventory of those places of habitation that do not meet the minimum standards of fitness prescribed in this chapter; and

(4) Perform such other duties as may be prescribed in this chapter.

(5) Comply with the conflict of interest standards as required by G.S. 160D-109.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-32. Powers of code enforcement official.

The code enforcement official is authorized to exercise such powers as may be reasonably necessary or convenient to carry out and effectuate the purpose and provisions of this chapter, including the following powers in addition to others granted:

(1) Investigate the conditions in the city in order to determine which places of habitation therein are unfit for human habitation;

(2) Administer oaths and affirmations, examine witnesses and receive evidence;

(3) Enter upon premises for the purpose of making examinations and inspections, provided, such entries shall be made in

such manner as to cause the least possible inconvenience to the persons in possession;

(4) Appoint and fix the duties of such officers, agents and employees as he deems necessary to carry out the purposes of this chapter; and

(5) Delegate any of his functions and powers under this chapter to other officers and other agents.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-33. Reserved.

Sec. 11-34. Inspections; duty of owners and occupants.

For the purpose of making inspections, the code enforcement official is hereby authorized to enter examine and survey, at all reasonable times, all places of habitation and premises after sufficiently identifying himself. The owner or occupant of every place of habitation, or the person in charge thereof, shall give the code enforcement official free access to such place of habitation and its premises, at all reasonable times for the purpose of such inspection, examination and survey. Every occupant of a place of habitation shall give the owner thereof, or his agent or employee, access to any part of such place of habitation and its premises, at all reasonable times for the purpose of making such repairs or alterations as are necessary to effect compliance with this chapter or with any lawful order issued pursuant to this chapter.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-35. Administrative liability.

Except as may otherwise be provided by statute or local law or ordinance, no city officer, agent or employee charged with the enforcement of this chapter shall be personally liable for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties under this chapter unless he acted with actual malice.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-36. Responsibilities of owners and occupants.

(a) *Generally.* The relative responsibilities of the owners, operators and occupants of places of habitation shall be as follows:

(1) *Public spaces.* Every owner of a building shall be responsible for maintaining, in a reasonably clean and sanitary condition, the shared or public spaces of the building and premises thereof.

(2) *Cleanliness.* Every occupant shall be responsible for maintaining, in a reasonably clean and sanitary condition, that part of the dwelling unit and premises which he occupies and controls.

(3) *Infestation.* Every occupant of a dwelling or roominghouse shall be responsible for the extermination of any insects, rodents, or other pests infesting the dwelling unit or rooming unit provided, however, that the owner shall be responsible for such extermination if, as a consequence of violations of the standards of fitness, the dwelling unit, rooming unit or lodging unit is not reasonably impervious to pests.

(4) *Rubbish and garbage.* Every occupant shall be responsible for disposing of his rubbish and garbage in a clean and sanitary manner by placing it in adequate facilities for such disposal.

(5) *Plumbing.* Every owner or operator shall be responsible for providing adequate operable plumbing facilities, including an adequate water heater, and for maintaining such facilities in efficient operating condition; every occupant shall be responsible for exercising reasonable care in the use of such facilities and for maintaining such facilities in a clean and sanitary condition.

(6) *Heating.* Every owner or operator shall be responsible for providing adequate operable facilities and appliances supplying heat throughout the dwelling unit, rooming unit or lodging unit in compliance with the standards of fitness; every

occupant shall be responsible for exercising reasonable care in the use of such facilities and appliances.

(7) *Care of premises.* No occupant shall willfully destroy, deface or otherwise impair any of the facilities or equipment of the owner on the premises which he occupies and controls, or any part of the building itself.

(b) *Responsibility for violations.* Every owner shall remain ultimately responsible for violations of responsibilities imposed upon him by this chapter or any other ordinance, although a similar responsibility may also be imposed upon the occupant and although the occupant may have agreed to bear the responsibility imposed by ordinance upon the owner.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-37. Enforcement of responsibilities of owners and occupants.

Upon discovering in any building a condition resulting from noncompliance with section 11-36, the inspector is hereby authorized to order, to take, or otherwise to cause to be taken, such remedial action as is necessary to correct such condition.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-38. Procedure for enforcement.

(a) *Preliminary investigation; notice; hearing.* Whenever a petition is filed with the code enforcement official by a public authority or by at least five residents of the city at least 18 years of age charging that any place of habitation is unfit for human habitation, or whenever it appears to the code enforcement official, upon inspection, that any place of habitation is unfit for human habitation, he shall, if his preliminary investigation discloses a basis for such charges, issue and cause to be served upon the owner of and parties in interest in such place of habitation a complaint stating the charges and containing a notice that a hearing will be held before the code enforcement official at a place therein fixed, not less than ten nor more than 30 days after the serving of such complaint. The owner or any party in interest shall have the right to correct the violation or to file an answer to the complaint and to appear in person, or otherwise, and give testimony at the place and time fixed in the complaint. Notice of such hearing shall also be given to at least one of the persons signing a petition relating to such place of habitation. Any person desiring to do so may attend such hearing and give evidence relevant to the matter being heard. The rules of evidence prevailing in courts of law or equity shall not be controlling in the hearing before the code enforcement official.

(b) *Procedure after hearing.* After the notice and hearing provided for in subsection (a), the code enforcement official shall state in writing his determination whether such place of habitation is unsafe or unfit for human habitation and, if so, whether it is deteriorated or dilapidated.

(1) If the code enforcement official determines that the place of habitation is deteriorated, he shall state in writing his findings of fact in support of such determination and shall issue and cause to be served upon the owner and parties in interest thereof an order directing and requiring the owner to repair, alter, and improve such place of habitation to comply with the minimum standards of fitness established by this chapter within a specified period of time, not to exceed 90 days. Such order may also direct and require the owner to vacate and close such place of habitation while such repairs, alterations and improvements are being made. Upon application by the owner of a dwelling within the specified period of time, the code enforcement official may grant extensions of up to one year if such dwelling is occupied by its owner, or up to 180 days for all other places of habitation, for good cause shown.

(2) If the code enforcement official determines that a place of habitation is dilapidated, he shall state in writing his findings of fact to support such determination and shall issue and cause to be served upon the owner and parties in interest thereof an order directing and requiring the owner to vacate and close the place of habitation and to remove or demolish the

place of habitation within a specified period of time, not to exceed 90 days, unless the owner elects to proceed under the procedures set forth in this subsection, or unless an application for an extension of up to 90 days is applied for by the owner and granted by the code enforcement official for good cause shown.

(3) Within ten days from the date of the order determining that the building is dilapidated, the owner may notify the code enforcement official in writing of his intent to make such repairs or alterations to the place of habitation so as to comply with the minimum standards of fitness. Upon receipt of an owner's written intent to repair the place of habitation within the time provided in this subsection, the code enforcement official shall issue supplemental order directing the owner to commence and complete the repairs or alterations necessary to comply with the minimum standards of fitness. The code enforcement official shall allow a reasonable period of time for the owner to make such repairs or alterations, but in no event shall the period of time allowed for such repairs or alterations be less than 30 days nor more than 90 days unless an extension of up to 90 days is granted by the code enforcement official for good cause shown. Upon application by the owner within the specified period of time, the code enforcement official may grant extensions of up to one year for an owner-occupied dwelling, or up to 180 days for all other places of habitation for good cause shown.

(4) If the owner fails to give notice of either an intent to repair as provided in this subsection or notice of appeal of the decision of the code enforcement official to the housing appeals board within the time specified for such an appeal, the code enforcement official shall proceed in accordance with subsection (c)(1).

(5) The code enforcement official shall cause the complaint and notice issued under subsection (a) and the findings of fact and order issued under this subsection to be filed in the notice of lis pendens in the office of the clerk of the county superior court. From the date and time of indexing by the clerk of court, the complaint and notice of hearing or findings of fact and order shall be binding upon the successors and assigns of the owners of and parties in interest in the place of habitation. A copy of the notice of lis pendens shall be served upon the owners and parties in interest in the place of habitation at the time of filing in accordance with G.S. 160D-1206. The notice of lis pendens shall remain in full force and effect until it is cancelled. The code enforcement official shall have the authority to notify the clerk of court to cancel the notice of lis pendens when the code enforcement official determines that there no longer is a need for the notice to remain in effect.

(6) Whenever a determination is made pursuant to subsection (b)(2) that a dwelling must be vacated and closed or removed or demolished, under this section, notice of the order shall be given by first class mail to any organization involved in providing or restoring dwellings for affordable housing that has filed a written request for such notices. A minimum period of 45 days from the mailing of such notice shall be given before removal or demolition by action of the code enforcement official, to allow the opportunity for any organization to negotiate with the owner to make repairs, lease, or purchase the property for the purpose of providing affordable housing. The code enforcement official or the city clerk shall certify the mailing of the notices, and the certification shall be conclusive in the absence of fraud. Only an organization that has filed a written request for such notices may raise the issue of failure to mail such notices, and the sole remedy shall be an order requiring the code enforcement official to wait 45 days before causing removal or demolition.

(c) *Failure to comply with order.* Procedures for the failure to comply with the order are as follows:

(1) *In personam remedy.* If the owner of any deteriorated place of habitation shall fail to comply with an order of the code enforcement official to repair, alter, or improve the place of habitation within the time specified therein, or if the owner of a dilapidated place of habitation shall fail to comply with an order of the code enforcement official to vacate and close, and remove or demolish the place of habitation within the time specified therein, the code enforcement official may submit to the city council, at its next regular meeting, a resolution directing the city attorney to petition the superior court for an order directing such owner to comply with the order of the code enforcement official as authorized by G.S. 160D-1208.

(2) *In rem remedy.* After failure of an owner of a deteriorated place of habitation, or of a dilapidated place of habitation to comply with an order of the code enforcement official within the time specified therein, if injunctive relief has not been sought or has not been granted as provided in subsection (c)(1), the code enforcement official may submit to the city council an ordinance ordering the code enforcement official to cause such place of habitation to be repaired, altered, improved or vacated and closed and removed or demolished, as provided in the original order of the code enforcement official and, pending such removal or demolition, to placard such place of habitation as provided by G.S. 160D-1203(4), (5), and section 11-40.

(3) *Civil action to remove occupant.* If any occupant fails to comply with an order to vacate a place of habitation the code enforcement official may file a civil action in the name of the city to remove such occupant. Such action shall be filed and conducted in accordance with G.S. 160D-1203(8).

(d) *Appeals from order of code enforcement official.* An appeal from any decision of the code enforcement official may be taken by any person aggrieved thereby. Any appeal from the code enforcement official must be taken within ten days after the rendering of the decision or service of the order by filing with the code enforcement official and with the housing appeals board a notice of appeal that shall specify the grounds upon which the appeal is based. Upon the filing of any notice of appeal, the code enforcement official shall forthwith transmit to the housing appeals board all the papers constituting the record upon which the decision appealed from was made. When an appeal is from a decision of the code enforcement official refusing to allow the person aggrieved thereby to do any act, the code enforcement official's decision shall remain in force until modified or reversed. When an appeal is from a decision of the code enforcement official requiring the person aggrieved to do any act, the appeal shall have the effect of suspending the requirement until the hearing of the board unless the code enforcement official certifies to the board, after the notice of appeal is made, that, by reason of the fact stated in the certificate, a copy of which shall be furnished to the appellant and other parties in interest, a suspension of this requirement would cause imminent peril to life or property. When the code enforcement official issues such a certificate, the requirement shall not be suspended except by a restraining order which may be granted for due cause shown upon not less than one day's written notice to the code enforcement official by the board or by a court of record upon petition made pursuant to G.S. 160D-1208(f) and subsection (e). The board shall fix a reasonable time for the hearing of all appeals and cross appeals, shall give due notices to all parties in interest and shall render its decision within a reasonable time. Any party may appear in person or by agent or attorney and present evidence. The board may reverse, affirm, wholly or partly, or modify the decision or order appealed from and may make such decision and order as in its opinion ought to be made in the matter. All board meetings shall have a quorum present of at least three members, and the vote of at least three members shall be required for a decision

on an appeal or cross appeal. The board shall have the power in passing upon appeals and cross appeals where there are practical difficulties or hardships to adapt the application of this chapter to the necessities of the individual case to the end that the general purposes of the law and justice shall be done. Every decision of the board shall be subject to review by proceedings in the nature of certiorari instituted within 15 days of the service of the decision of the board on the person who filed the appeal.

(e) *Petition to superior court by owner.* Any person aggrieved by an order issued by the code enforcement official or a decision rendered by the board shall have the right, within 30 days after issuance of the order or rendering of the decision, to petition the superior court for a temporary injunction restraining the code enforcement official pending a final disposition of the cause, as provided by G.S. 160D-1208(d).
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-39. Methods of service of complaints and orders.

(a) Complaints or orders issued by the code enforcement official pursuant to this chapter shall be served upon persons either personally or by certified mail. When service is made by certified mail, a copy of the complaint or order may also be sent by regular mail. Service shall be deemed sufficient if registered or certified mail is unclaimed or refused, but the regular mail is not returned by the post office within ten days after the mailing. If regular mail is used, a notice of the pending proceedings shall be posted in a conspicuous place on the premises affected.

(b) If the identities of any owners or the whereabouts of persons are unknown and cannot be ascertained by the code enforcement official in the exercise of reasonable diligence, or, if the owners are known but have refused to accept service by registered or certified mail, and the code enforcement official makes an affidavit to that effect, the serving of the complaint or order upon the owners or other persons may be made by publication in a newspaper having general circulation in the city at least once no later than the time at which personal service would be required under this chapter. When service is made by publication, a notice of the pending proceedings shall be posted in a conspicuous place on the premises thereby affected.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-40. In rem action by code enforcement official; placarding.

(a) After the failure of an owner of a place of habitation to comply with an order of the code enforcement official issued pursuant to this chapter and upon adoption by the city council of an ordinance authorizing and directing him to do so, as provided by G.S. 160D-1203(4)and subsection 11-38(c), the code enforcement official shall proceed to cause such place of habitation to be repaired, altered or improved to comply with the minimum standards of fitness established by this chapter, or to be vacated and closed and removed or demolished, as directed by the ordinance of the city council, and shall cause to be posted on the main entrance of such place of habitation a placard with the following words: "This building is unfit for human habitation, the use or occupation of this building for human habitation is prohibited and unlawful."

(b) Each such ordinance shall be recorded in the office of the register of deeds in the county wherein the property is located and shall be indexed in the name of the property owner in the grantor index as provided by G.S. 160D-1203(4).
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-41. Costs a lien on premises.

(a) As provided by G.S. 160D-1203(7) and section 6.61 of the Charter, the amount of the cost of any repairs, alterations, or improvements, or vacating and closing, or removal or demolition, caused to be made or done by the code enforcement official pursuant to section 11-40 or 11-46 shall be a lien against the real property upon which such cost was incurred. Such lien shall be filed, have the same priority, and be

enforced and the costs collected as provided by G.S. 160A-216 et seq. and section 6.61 of the Charter.

(b) If a dwelling or other structure is removed or demolished by the code enforcement official, he shall sell the materials of the dwelling or other structure and any personal property, fixtures, or appurtenances found in or attached to the dwelling or other structure and shall credit the proceeds of the sale against the cost of the removal or demolition. Any balance remaining shall be deposited in the superior court by the code enforcement official, shall be secured in a manner directed by the court, and shall be disbursed by the court to the persons found to be entitled thereto by final order or decree of the court.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-42. Alternative remedies.

Neither this chapter nor any of its sections shall be construed to impair or limit in any way the power of the city to define and declare nuisances and to cause their abatement by summary action or otherwise. Enforcement by any remedy provided in this chapter shall not prevent enforcement by any other remedy provided in this chapter or in other ordinances or laws.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-43. Housing appeals board.

(a) There is hereby continued a housing appeals board to which appeals may be taken from decisions or orders of the code enforcement official, as provided in this chapter. The board shall consist of five members to be appointed and to serve as provided in this section.

(b) Appointments and qualifications of board members shall be as follows:

(1) The mayor shall appoint two members, one of whom must be a person who owns and occupies as his principal residence a dwelling located in the city within a city area.

(2) The city council shall appoint three members, one of whom must be a person who maintains his principal place of residence in a rental dwelling that is located within the city within a city area and one of whom must be person who owns, or is employed by, a firm that is engaged in the construction or management of housing.

(3) A member who qualifies for membership under subsections (b)(1) or (b)(2) at the time of his appointment shall continue to be so qualified for the remainder of his term, regardless of any change in circumstances relating to such qualification.

(4) For purposes of this subsection, the term "city within a city area" means the area that has been designated as such by the Charlotte-Mecklenburg Planning Commission. If there should cease to be such a designation, the term shall mean the area that was last designated as such.

(c) Appointments of members of the housing appeals board shall be for staggered terms.

(d) Each appointment of a member shall be for a term of three years, except as provided in subsection (e). Every member of the board shall continue to hold office until his successor is chosen and qualified. After the appointments provided for in subsection (c), each member shall be appointed to succeed a specified predecessor, and the term of the new member shall begin as of the scheduled date for termination of the predecessor's term, even if the predecessor has held over, under the authority of this subsection, beyond the scheduled termination date. Each member's successor shall be appointed by the authority (mayor or city council) that appointed the departing member. This subsection shall not apply when a member leaves office prior to the scheduled end of his term.

(e) When a board member leaves office prior to the scheduled end of his term, the authority (mayor or city council) that appointed the departing member shall appoint his replacement. The term of such an appointment shall be for the remaining term of the departing member.

(f) The board shall have power to elect its own officers, to fix the times and places of its meetings, and to adopt necessary rules of procedure and any other rules and regulations which it deems necessary for the proper discharge of its duties. Any rules of procedure adopted by the board shall be consistent with the provisions of G.S. chapter 160D and kept on file at the office of the city clerk and posted on the City of Charlotte website. The board shall perform the duties prescribed by this chapter and shall keep an accurate record of all its proceedings as required by G.S. 160D-308. No person may serve more than two terms as a member of the board. Attendance at meetings and continued service on the board shall be governed by the attendance policies established by the city council.

(g) Each member shall take an oath of office before starting their duties as required by G.S. 160D-309.

(h) Each member shall comply with the conflict of interest standards as specified in G.S. 160D-109.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Sec. 11-44. Conflict with other provisions.

If any provision, standard or requirement of this chapter is found to be in conflict with any other section of this chapter or any provision of any other city ordinance, the provision which establishes the higher standard or more stringent requirement for the promotion and protection of the health and safety of the residents of the city shall prevail.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-45. Violations; penalty.

(a) It shall be unlawful for the owner of any place of habitation to fail, neglect or refuse to repair, alter or improve the place of habitation or to vacate and close and remove or demolish the place of habitation, upon order of the code enforcement official duly made and served as provided in this chapter, within the time specified in such order; each day that any such failure, neglect or refusal to comply with such order continues shall constitute a separate and distinct offense. It shall be unlawful for the owner of any place of habitation, with respect to which an order has been issued pursuant to subsection 11-38(b), to occupy or permit the occupancy of the place of habitation after the time prescribed in such order for its repair, alteration or improvement or its vacation and closing, and removal or demolition, and each day that such occupancy continues after such prescribed time shall constitute a separate and distinct offense.

(b) Any owner of a:

(1) Dwelling, except an owner who occupies the dwelling as his principal place of residence, or

(2) Roominghouse, except when the owner resides in the roominghouse,

who fails to comply with an order of the code enforcement official to repair, alter or improve the dwelling or roominghouse or to vacate and close and remove or demolish the dwelling or roominghouse within the time specified in the order, shall be subject to a civil penalty in the amount of $100.00 for the first day of noncompliance and $100.00 for each day thereafter until the dwelling is brought into compliance with the order. The civil penalty may be recovered by the city in a civil action in the nature of a debt if the owner does not pay the penalty within 30 days after the initial day of noncompliance.

(c) Any owner of a lodging establishment who fails to comply with an order of the code enforcement official to repair, alter or improve the lodging establishment, within the time specified in the order, shall be subject to a civil penalty in the amount of $1,000.00 for the first day of noncompliance and $100.00 for each day thereafter until the lodging establishment is brought into compliance with the order. The civil penalty may be recovered by the city in a civil action in the nature of a debt if the owner does not pay the penalty within 30 days after the initial day of noncompliance.

(d) The code enforcement official in his discretion may agree, in writing only, to release, in whole or in part, an owner from liability for the civil penalty imposed pursuant to subsections (b)

and (c) if the owner voluntarily agrees, as consideration for the release, to convey to the city, or to some other person or organization, the property from which the civil penalty arose upon such terms and conditions as the owner and the code enforcement official might agree.

(e) It shall be unlawful for the owner of a place of habitation that is imminently dangerous to health or safety to collect rent from another person who occupied the place of habitation at the time it became imminently dangerous to health or safety or to permit any other person to begin occupancy of such place of habitation. A place of habitation is imminently dangerous to health or safety if it is in violation of any one of the following minimum standards of fitness.

(1) Rotted, fire damaged, or insect damaged steps, flooring, or structural supports, as provided in subsections 11-79(b) and 11-83(b)(1).

(2) Fire hazard in a chimney that is in use, as provided in section 11-81.

(3) Unsafe wiring, as provided in subsection 11-82(e).

(4) Unsafe ceiling or roof, as provided in subsections 11-83(e)(1), (e)(7), (f)(1), (f)(5).

(5) No potable water supply, as provided in subsection 11-80(h).

(6) No operable heating equipment, as required by subsection 11-81(b), during November, December, January, February, or March.

(7) No operable sanitary facilities, as provided in subsections 11-80(i) and (j).

(8) Severe rat infestation where the place of habitation is not impervious to pests, as provided in subsection 11-84(c).

(9) No safe, continuous, and unobstructed exit from the interior of the building to the exterior at street or grade level, as provided in subsection 11-79(c).

(10) No access provided to all rooms within a dwelling unit without passing through a public space, as provided in subsection 11-77(m).

(11) Any window or door providing access to any dwelling unit or rooming unit lacking an operable lock or the owner failing to provide a change of locks or keys to a new tenant of such dwelling unit or rooming unit, as provided in subsections 11-77(o) and 11-78(g).

(12) No operable smoke detector or alarm, as provided in subsection 11-77(q).

(13) Every place of habitation shall comply with the current county health regulations governing carbon monoxide alarms, [as provided in subsection] 11-77(r)

(g) It shall be unlawful for the owner of a place of habitation who has received a complaint and notice authorized by subsection 11-38(c) with regard to the place of habitation, or has gained knowledge by other means that the code enforcement official has issued such a complaint and notice regarding the place of habitation to permit another person, other than a person who occupied the place of habitation at the time of the issuance of the complaint and notice, to occupy the place of habitation without first informing such person, in writing, of the issuance of the complaint and notice and providing him with a copy of such complaint and notice.

(h) It shall be unlawful for the owner of a place of habitation who has received a final code enforcement order, after all periods for appeal to the housing appeals board and petitions to the court have expired pursuant to section 11-38, to fail to comply with such order. However, with respect to an order to vacate and close and remove or demolish the place of habitation, no civil penalty shall accrue, notwithstanding subsections (b) and (c), nor shall any criminal liability attach until 30 days following the relocation of the occupants of the places of habitation.

(i) In addition to any other penalty imposed by this chapter, any person who violates subsection (e), (g), or (h) shall be guilty of a misdemeanor and shall be punished as provided in section 2-21. Except as provided in this subsection, there shall not be any criminal liability for violation of any section of this chapter.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-46. Abandoned structures.

(a) Any abandoned structure that is a health or safety hazard as a result of the attraction of insects or rodents, conditions creating a fire hazard, dangerous conditions constituting a threat to children, or frequent use by vagrants as living quarters in the absence of sanitary facilities shall be repaired, closed, or demolished. It shall be unlawful for the owner of an abandoned structure to allow the abandoned structure to become or to remain a health or safety hazard as defined in this subsection.

(b) The code enforcement official shall have the authority to attempt to accomplish the repair, closing, or demolition of unsafe abandoned structures through the procedures set out in section 11-38, except that if the estimated cost to repair the structure is 50 percent or more of its value, the structure shall be considered dilapidated, and the code enforcement official shall order that it be demolished and removed.

Upon the failure of the owner of an unsafe abandoned structure to comply with an order of the code enforcement official to repair, close, or demolish such structure, the code enforcement official shall present the matter to the city council. If the city council finds that the abandoned structure is unsafe pursuant to subsection (a), it may adopt an ordinance ordering the code enforcement official to cause such abandoned structure to be repaired, closed, or demolished. Each such ordinance shall be recorded as provided in section 11-40, and the cost of any repair, closing, or demolition caused to be made by the code enforcement official shall be a lien on the premises as provided in section 11-41.

(c) For purposes of subsections (a) and (b), the term "abandoned structure" shall mean any structure that has not been occupied or used, by its owner or by some person acting under authority of its owner, for a continuous period of 30 days or longer.

(d) If the city council shall have adopted an ordinance, or the code enforcement official shall have issued an order, ordering a dwelling to be repaired or vacated and closed, as provided in subsection 11-38(b)(1), and if the owner has vacated and closed such dwelling and kept such dwelling vacated and closed for a period of one year pursuant to the ordinance or order, if the city council shall find that the owner has abandoned the intent and purpose to repair, alter, or improve the dwelling in order to render it fit for human habitation and that the continuation of the dwelling in its vacated and closed status would be inimical to the health, safety, morals, and welfare of the city in that the dwelling would continue to deteriorate, would create a fire and safety hazard, would be a threat to children and vagrants, would attract persons intent on criminal activities, would cause or contribute to blight and the deterioration of property values in the area, and would render unavailable property and a dwelling which might otherwise have been made available to ease the persistent shortage of decent and affordable housing in this state, the city council may, after the expiration of such one-year period, enact an ordinance and serve such ordinance on the owner, setting forth the following:

(1) If it is determined that the repair of the dwelling to render it fit for human habitation can be made at a cost not exceeding 50 percent of the then-current value of the dwelling, the ordinance shall require that the owner either repair or demolish and remove the dwelling within 90 days; or

(2) If it is determined that the repair of the dwelling to render it fit for human habitation cannot be made at a cost not exceeding 50 percent of the then-current value of the dwelling, the ordinance shall require the owner to demolish and remove the dwelling within 90 days.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-47. Unsafe buildings.

(a) When it appears to the code enforcement official that a building is especially dangerous to life because of its liability to fire or because of bad condition of walls, overloaded floors, defective construction, decay, unsafe wiring or heating system, inadequate means of egress, or other

causes, the code enforcement official may exercise the powers granted by G.S. 160D-1119—160D-1122.

(b) An order issued by the code enforcement official under the authority of this section shall be certified by the city clerk and filed in the record of lis pendens, as provided in section 6.61 of the Charter.

(c) Upon the failure by the owner of the affected building to comply with an order issued under the authority of this section, further enforcement of the order shall be pursuant to the procedures provided in sections 11-38(c)—(e), 11-40 and 11-41.

(d) In addition to other authority granted by this section, the code enforcement official may exercise the authority granted by G.S. 160D-1119.
(Ord. No. 9651, § 1, 10-14-2019; Ord. No. 93, § 2(Exh. B), 6-28-2021)

Secs. 11-48—11-75. Reserved.

ARTICLE III. MINIMUM STANDARDS OF FITNESS FOR PLACES OF HABITATION

Sec. 11-76. Compliance with article prerequisite to occupancy.

(a) Every place of habitation used as a human habitation, or held out for use as a human habitation, shall comply with all of the minimum standards of fitness and all of the requirements of this article. No person shall occupy as owner-occupant, or let to another for occupancy or use as a human habitation, any place of habitation which does not comply with all of the minimum standards of fitness for human habitation and all of the requirements of this article. All work shall be done in a workmanlike manner.

(b) All structural repairs or alterations to places of habitation and all new construction of places of habitation shall be performed in compliance with all applicable requirements of the state building code.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-77. Space and use.

(a) At least one room in the dwelling shall contain not less than 150 square feet.

(b) A kitchen-dining room combination, if any, shall be not less than 100 square feet.

(c) A first bedroom, if any, shall be not less than 100 square feet.

(d) A second bedroom, if any, shall be not less than 70 square feet.

(e) There shall be at least 70 square feet in each habitable room.

(f) There shall be at least 150 square feet of floor space in habitable rooms for the first occupant in each dwelling unit; at least 100 square feet for each additional occupant each of the next three occupants; and at least 50 square feet for each additional occupant over the number of four. (Children one year of age and under shall not be counted.)

(g) There shall be at least 80 square feet of bedroom floor space for the first occupant; at least 20 square feet for the second occupant; and at least 30 square feet for each additional occupant over the number of two. (Children one year of age and under shall not be counted.)

(h) The provisions of subsections (a) through (g) shall not apply to lodging establishments. If the code enforcement official determines, in his sole discretion, that the occupancy of a habitable room in a lodging establishment is such that it contributes to an unsafe and unsanitary condition of the habitable room, then such lodging establishment shall be in violation of this chapter.

(i) Those habitable rooms which must be included to meet the foregoing minimum space requirements shall be at least seven feet wide in any part with at least one-half of the floor area having a ceiling height as prescribed by the state building code. Not more than 50 percent of the required area may have a sloped ceiling less than the height prescribed by the state building code with no portion of the required areas less than five feet in height. If any room has a furred ceiling, the prescribed ceiling height is required for at least 50 percent of the area thereof, but in

no case shall the height of the furred ceiling be less than that prescribed by the state building code.

(j) No basement shall be used as a habitable room or housing unit unless:

(1) The floor and walls are impervious to leakage of underground and surface runoff water and are insulated against dampness and condensation.

(2) The total window area in each room is equal to at least the window area sizes prescribed for habitable rooms. (See section 11-78 for light and ventilation requirements.)

(3) Such required window area is located entirely above the grade of the ground adjoining such window area unless provided with adequate window wells.

(4) The total of openable window area in each room is equal to at least the area prescribed for habitable rooms (see sec-

tion 11-78 for light and ventilation requirements), except where there is supplied some other device affording adequate ventilation and approved by the inspector.

(k) Toilet and bathing facilities shall be enclosed.

(l) There shall be no holes or excessive cracks in walls, ceilings, outside doors or outside windows.

(m) Access shall be provided to all rooms within a dwelling unit without passing through a public space.

(n) Doors shall be provided at all doorways leading to bedrooms, toilet rooms, and bathrooms and all rooms adjoining a public space. All interior doors and hardware shall be in good condition, and free from defects or damage which prevents the door from operating as intended.

(o) All doors providing access to any place of habitation shall have operable locks, and, in the case of dwellings and dwelling units, the owner or operator shall provide a change of locks or keys for new tenants.

(p) All doors opening to the outside shall be reasonably weathertight.

(q) There shall be installed in every dwelling unit, rooming unit and lodging unit an operable smoke detector or alarm.

(r) Every dwelling and roominghouse shall comply with the current county health regulations governing carbon monoxide alarms.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-78. Light and ventilation.

(a) The window-glazed area in each habitable room of a dwelling or dwelling unit shall not be less than eight percent of the floor area or eight square feet, whichever is greater.

(b) The openable window area in each habitable room in a dwelling shall be equal to at least one-half of the minimum allowance window area and facing directly to the outside for ventilation unless the room is served by an approved ventilating system.

(c) All windows and doors opening to the outside shall be adequately screened unless the room is served by an approved ventilating system. Screens shall fit openings snugly, and the screen mesh shall not be torn or otherwise defective.

(d) Screens shall not be permanently fixed to the window frame or sash.

(e) In bathrooms containing more than one water closet, the window area shall be at least three square feet of glazed area. Where adequate windows cannot be provided, metal ducts with at least 72 square inches in open area and extending from the ceiling through the roof, or mechanical ventilation to the outside, shall be provided

(f) Every public hall and inside stairway in every multifamily dwelling or place of habitation shall be adequately lighted at all times with an illumination of at least three footcandles per square foot in the darkest portion of the normally traveled stairs and passageways.

(g) All windows and doors in dwellings and roominghouses opening to the outside shall be reasonably weathertight, free of cracked or broken glass, and shall have operable locks. If the windows in a lodging establishment are designed to open to the outside, such windows shall be reasonably weathertight and shall have operable locks. Any glazed area shall be glass.

(h) Window bars, grills, or other impediments to escape in case of fire shall not be permitted at habitable room windows, except as permitted by the state building code.

(i) Kitchen exhaust equipment shall be operable, maintained, and vented to the exterior. Ductless range hoods are not required to be vented to the exterior.

(j) Clothes dryer vents and ducts shall terminate on the exterior where possible. Screens of a type that may trap lint shall not be installed at the termination. All ductwork shall be properly supported and free of obstructions which impede air flow.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-79. Exit requirements.

(a) There shall be two main exits, each at least 30 inches wide and six feet eight inches high, easily accessible to the occupants of each dwelling or dwelling unit. All exit doors must be easily operable and remotely located. (See the state building code for exemptions.)

(b) Platforms, steps, and/or handrails provided to serve exits shall be maintained in safe condition.

(c) There shall be a safe, continuous and unobstructed exit from the interior of the building to the exterior at street or grade level.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-80. Plumbing facilities.

(a) All plumbing to be installed shall be installed in accordance with the state building code.

(b) All plumbing shall be connected to the city sanitary sewer system where available or to another approved system.

(c) All fixtures shall be operable.

(d) There shall be no broken water closet bowls.

(e) Water closets shall not be loose or leaking. Water closet flush mechanisms shall be maintained in operating condition.

(f) No leaks shall be in a shower stall floor and/or wall.

(g) There shall be facilities for furnishing adequate hot water to each tub or shower, lavatory, and kitchen sink. All water heaters shall be in good condition, operate as intended, and comply with the current state building code and the requirements of the home inspector licensure board for water temperature and flow.

(h) There shall be installed a potable water supply inside the building for each dwelling unit.

(i) There shall be installed a water closet, tub or shower, lavatory and sink for each dwelling unit. The kitchen sink shall be at least 12 inches by 16 inches by six inches. Kitchen and bathroom faucets shall be sealed to prevent leakage.

(j) There shall be separate toilet facilities for each dwelling unit.

(k) Toilet and bathing facilities shall be protected from the weather.

(l) All water piping shall be protected from freezing by proper installation in protected space.

(m) Soil and water pipes shall be supported with no broken or leaking pipes.

(n) Every water closet compartment floor surface and bathroom floor surface shall be so constructed and maintained as to be reasonably impervious to water and so as to permit such floor to be readily kept in a clean and sanitary condition.

(o) A lodging unit shall not be required to have a kitchen sink, but if such lodging unit contains a kitchen sink it shall meet the requirements of this section.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-81. Heating facilities, ventilation, and air conditioning.

(a) Every building and every dwelling unit shall be weatherproof and capable of being adequately heated, and the heating equipment in every dwelling or dwelling unit shall be maintained in good order and repair.

(b) Every place of habitation shall have facilities for providing heat in accordance with either of the following:

(1) *Central and electric heating systems.* Every central or electric heating system shall be of sufficient capacity so as to heat all habitable rooms, bathrooms and water closet compartments in every place of habitation to which it is connected to a minimum temperature of 68 degrees Fahrenheit measured at a point three feet above the floor with an outside temperature of 20 degrees Fahrenheit.

(2) *Other heating facilities.* Where a central or electric heating system is not provided, or is inadequate, each dwelling and dwelling unit shall be provided with sufficient chimneys flues, or gas vents, with heating appliances connected, so as to heat

all habitable rooms to a minimum temperature of 68 degrees Fahrenheit measured three feet above the floor with an outside temperature of 20 degrees Fahrenheit.

(c) All electric, gas and oil heating equipment installed on the premises shall be listed by Underwriters' Laboratories, Inc., or American Gas Association and installed in accordance with the provisions of the state heating code.

(d) There shall be no loose bricks in chimneys.

(e) There shall be no holes in flues.

(f) There shall be no hanging masonry chimneys.

(g) Thimbles shall be grouted in tightly.

(h) Thimbles shall not be broken or cracked.

(i) Thimbles shall be high enough for the stovepipe to rise one-quarter inch per foot minimum.

(j) The hearth shall be at least 16 inches deep and eight inches beyond each side of the fireplace opening.

(k) No combustible materials shall be within seven inches of the top and seven inches of either side of the fireplace opening.

(l) Fireplaces shall be closed with masonry when the chimney is used as a flue for a stove.

(m) A stove shall be within six feet of a thimble serving it.

(n) No combustible material shall be within 12 inches of a stovepipe.

(o) No stovepipe shall be through combustible walls.

(p) In multiple dwellings and roominghouses with central heat, the furnace room shall be enclosed with material having at least a one-hour fire protection rating.

(q) Fireplaces, freestanding kerosene heaters, freestanding electric space heaters, and vent free gas appliances may be used for supplementary heating only and not for basic heat.

(r) When air conditioning or cooling facilities are provided, such facilities and components shall be properly installed, safely operable, and maintained to perform as originally intended.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-82. Electrical facilities.

(a) In places of habitation, no receptacles, ceiling fixtures, or other fixtures shall be hanging loose.

(b) All switches and receptacles shall be safely operable.

(c) Every habitable room shall contain not less than two wall-type electrical convenience receptacles.

(d) There shall be installed in every habitable room, bathroom, laundry room, hallway, stairway and furnace room at least one supplied ceiling or wall-type electrical light fixture; provided, further, that the ceiling light fixture may be omitted in the living room and bedrooms, provided three electrical convenience receptacles are installed, one of which is controlled from a wall switch.

(e) There shall be no unsafe wiring.

(f) There shall be no drop or extension cords in excess of six feet in length.

(g) No circuits shall be overloaded.

(h) Fuses shall be sized correctly and not bridged out.

(i) All wiring to be installed shall be in accordance with the National Electrical Code.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-83. Structural standards.

(a) *Foundation.* Foundations shall conform to the following:

(1) Beneath the building there shall be firm ground, which is reasonably dry, properly drained and no water running under the building.

(2) There shall be sound footings, adequate bearing.

(3) There shall be sound piers, no loose mortar or masonry.

(4) There shall be no piers in which the plumbline from the top center falls outside the middle one-third of the pier base.

(5) There shall be no isolated solid masonry piers exceeding in height ten times the least dimension of the pier.

(6) There shall be no wood stiff-knee piers.

(7) There shall be masonry underpinning on all dwelling units with ventilation as required by the state building code.

(8) All masonry block and brick foundation systems or components shall have mortared or bonded joints.

(9) Every crawlspace door, doorway, or hatchway shall be maintained to prevent the entrance of rainwater and surface drainage water.

(10) Screening shall be provided for all crawlspace vents or openings.

(b) *Floors.* Floors shall conform to the following:

(1) There shall be no decayed, termite-damaged, fire-damaged, broken, overloaded or sagging sills.

(2) Sills shall be properly supported and reasonably level.

(3) Joists and beams shall not be overloaded, sagging or broken and shall be structurally sound and not likely to cause structural weakness in the future.

(4) Maximum spans for floor joist, beams and sills, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(5) Flooring shall be weathertight without holes or excessive cracks which permit air to penetrate rooms.

(6) Flooring shall be reasonably smooth and not decayed, fire damaged or worn through.

(7) There shall be no loose flooring.

(8) Floors shall be reasonably level.

(9) Floor covering or finishing shall be reasonably smooth, weathertight, and not worn through.

(c) *Exterior walls.* Exterior walls shall conform to the following:

(1) There shall be no wall in which the plumbline from the top center of studs falls outside the base plate at any point along the wall.

(2) Maximum spacing for studding, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(3) Studs shall be structurally sound and not likely to cause structural weakness in the future.

(4) There shall be no broken or cracked structural members.

(5) All siding shall be weathertight, with no holes or excessive cracks or decayed boards, or siding material which permit air to penetrate rooms.

(6) There shall be no loose siding.

(7) There shall be no deterioration because of lack of preventive maintenance consisting of painting, waterproofing, and repair.

(d) *Interior walls.* Interior walls shall conform to the following:

(1) Interior finish shall be free of holes and excessive cracks which permit air to penetrate rooms and, if painted or papered, shall be free of chips or excessive peeling.

(2) There shall be no walls in which the plumbline from the top center of studs falls outside the base plate at any point along the wall.

(3) Interior wall finishes and trim shall be free of stains or moisture damage caused by leaks from roofing, or other sources

(4) There shall be no loose plaster, loose boards, or other loose wall materials.

(5) There shall be no cardboard, newspaper or highly combustible or improper wall finish; all wall materials shall be of the same or similar quality and material.

(6) Maximum spacing for studding, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(7) Studs shall be structurally sound and not likely to cause structural weakness in the future.

(8) There shall be no broken or cracked studs or other structural members.

(e) *Ceilings.* Ceilings shall conform to the following:

(1) There shall be no joists, or beams which are decayed, broken, sagging, or improperly supported at the ends.

(2) Maximum spacing for ceiling joists, providing they show signs of sagging and being weak, shall comply with the requirements of the state building code.

(3) Maximum spans for ceiling joists, providing they show signs of being weak or overloaded, shall comply with the requirements of the state building code.

(4) There shall be no holes or excessive cracks which permit air and dust to penetrate rooms.

(5) Interior ceiling finishes and trim shall be free of stains or moisture damage caused by leaks from roofing, or other sources.

(6) There shall be no loose plaster, boards, gypsum wallboard, or other ceiling finish.

(7) There shall be no cardboard, newspaper, highly combustible or improper ceiling finish; all ceiling materials shall be of the same or similar quality and material.

(8) Ceiling joists, and beams shall be structurally sound and not likely to cause structural weakness in the future.

(f) *Roofs.* Roofs shall conform to the following:

(1) There shall be no rafters or framing members which are decayed, broken, improperly supported at the ends, or likely to cause structural weakness in the future,

(2) No rafters shall be seriously damaged by fire.

(3) Rafters shall be properly braced and tied four feet on center maximum.

(4) The attic shall be ventilated as required by the state building code.

(5) Sheathing shall not be loose and shall be structurally sound and not likely to cause structural weakness in the future.

(6) There shall be no loose roof covering, no holes, and no leaks causing damage to the structure or rooms.

(7) There shall be a minimum of class C roof covering.

(8) There shall be proper flashing at walls or chimneys, and roof penetrations

(9) The roof shall be sound, tight, and have no defects that admit water.

(10) Roof drainage shall be adequate to prevent dampness or deterioration at the walls or interior of the structure. Roof drains, gutters, downspouts and leaders shall be maintained free of obstructions, and designed to discharge water away from the structure.

(g) *Porches.* Porches shall conform to the following:

(1) The floor, ceiling, and roof shall be equal to requirements set forth in this section, except sills, joists, and floors need not be level if providing drainage of floors; floors need not be weathertight; the ceiling height may be seven feet; and the attic need not be vented.

(2) Every porch, terrace or entrance platform 30 inches or more above the adjacent finished grade shall be equipped with railings or guards not less than 36 inches high, unless other effective barriers provide adequate safety. Guard opening limitations shall conform to the requirements of the state building code

(3) If post and railings are provided, they shall be structurally sound and not likely to cause structural weakness in the future.

(h) *Stairs and steps.* Stairs and steps shall conform to the following:

(1) Stairs and steps shall be free of holes, grooves, and cracks large enough to constitute accident hazards.

(2) Stairwells and flights of stairs more than four risers high shall have rails not less than two feet six inches measured vertically from the nose of the treads to the top of the rail.

(3) Every rail shall be firmly fastened and maintained in good condition.

(4) No flight of stairs shall be settled more than one inch out of its intended position or pulled away from supporting or adjacent structures.

(5) Supports shall not sag and shall be structurally sound and not likely to cause structural weakness in the future.

(6) Every stair riser shall be reasonably uniform in height, and treads shall be reasonably uniform in front to back width, sound and securely fastened in position and strong enough to bear a concentrated load of at least 300 pounds without danger of breaking through.

(7) Every exit stairway, deck porch, landing, balcony, exit, and all appurtenances shall be structurally sound with proper anchorage, and capable of supporting imposed loads.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-84. Property maintenance.

(a) *Building structure.* The building structure of a place of habitation shall be maintained as follows:

(1) Exterior wood surfaces not inherently resistant to deterioration shall be treated with a protective coating of paint or other suitable preservative with sufficient frequency to prevent deterioration.

(2) Floors, walls, ceilings, and fixtures shall be maintained in a clean and sanitary condition.

(b) *Open areas.* Open areas shall be maintained as follows:

(1) Surface and subsurface water shall be appropriately drained to protect buildings and structures and to prevent development of stagnant ponds.

(2) Fences and other accessory buildings shall be maintained in safe and substantial condition or demolished.

(3) Yards and courts shall be kept clean and free of physical hazards, rubbish, trash, garbage, junked vehicles, vehicle parts and other similar material.

(4) There shall be no heavy undergrowth or accumulation of plant growth which is noxious or detrimental to health.

(c) *Infestation.* Grounds, buildings and structures shall be maintained free of infestation by rodents, insects and other pests.

(d) *Garbage and rubbish.* There shall be adequate sanitary facilities and methods used for the storage, handling, and disposal of garbage and rubbish.

(e) Kitchen and bathroom countertops and cabinets shall be covered by nonabsorbent material and maintained so as to easily be kept clean and in sanitary condition.

(f) All kitchen and bathroom cabinet doors and drawers shall operate as intended.

(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-85. Insulation.

Every dwelling, including multiple dwellings, of three stories or less in height, shall have installed in the ceiling or, for a dwelling of more than one story, in the ceiling of the top story, insulation to a minimum-resistance value of R-19. Except as specified in this section, the insulation shall be installed in accordance with the requirements of the state building code.

(Ord. No. 9651, § 1, 10-14-2019)

Secs. 11-86—11-115. Reserved.

ARTICLE IV. MINIMUM STANDARDS APPLICABLE TO ROOMINGHOUSES

Sec. 11-116. Applicability.

All of the sections of this chapter and all of the minimum standards and requirements of this chapter shall be applicable to roominghouses and to every person who operates a roominghouse or who occupies or lets to another for occupancy any rooming unit in a roominghouse, except as provided in the following sections of this article.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-117. Water closet, hand lavatory and bath facilities.

At least one water closet, lavatory basin, and bathtub or shower, properly connected to an approved water and sewer system and in good working condition, shall be supplied for each four rooming units within a roominghouse whenever such facilities are shared. All such facilities shall be located within the residence building served and shall be directly accessible from a common hall or passageway and shall be not more than one story removed from any of the persons sharing such facilities. Every lavatory basin and bathtub or shower shall be supplied with hot and cold water at all times. Such required facilities shall not be located in a cellar.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-118. Minimum floor area for sleeping purposes.

Every room in a roominghouse occupied by one occupant shall contain at least 70 square feet of floor area, and every room occupied for sleeping purposes by more than one occupant shall contain at least 50 square feet of floor area for each additional occupant 12 years of age and over and at least 35 square feet of floor area for each additional occupant under 12 years of age.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-119. Sanitary conditions.

The operator of every roominghouse shall be responsible for the sanitary maintenance of all walls, floors and ceilings, and for the sanitary maintenance of every other part of the roominghouse. The operator shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building within which the roominghouse is contained is leased or occupied by the operator.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-120. Sanitary facilities.

Every water closet, flush urinal, lavatory basin, and bathtub or shower required by section 11-117 shall be located within the roominghouse and within a room which affords privacy and is separate from the habitable rooms, and which is accessible from a common hall and without going outside the roominghouse or through any other room therein.
(Ord. No. 9651, § 1, 10-14-2019)

Secs. 11-121—11-145. Reserved.

ARTICLE V. MINIMUM STANDARDS APPLICABLE TO LODGING ESTABLISHMENTS

Sec. 11-146. Applicability.

All of the sections of this chapter and all of the minimum standards and requirements of this chapter shall be applicable to lodging establishments and to every person who operates a lodging establishment or who occupies or lets to another for occupancy any lodging unit, except as provided in the following sections of this article, or as expressly otherwise excluded in this chapter.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-147. Water closet, hand lavatory and bath facilities.

At least one water closet, lavatory basin, and bathtub or shower, properly connected to an approved water and sewer system and in good working condition, shall be supplied for each

lodging unit. Every lavatory basin and bathtub or shower shall be supplied with hot and cold water at all times.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-148. Interior space dimensions.

Interior space dimensions shall comply with all applicable requirements of the state building code.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-149. Sanitary conditions.

The operator of every lodging establishment shall be responsible for the sanitary maintenance of all walls, floors and ceilings, and for the sanitary maintenance of every other part of the lodging establishment. The operator shall be further responsible for the sanitary maintenance of the entire premises where the entire structure or building within which the lodging establishment is contained is leased or occupied by the operator.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-150. Sanitary facilities.

Every water closet, flush urinal, lavatory basin, and bathtub or shower required by section 11-80 shall be located within a room which affords privacy and is separate from the habitable room, and which is accessible from a common hall and without going outside the hotel/motel room.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-151. Means of egress.

(a) Means of egress shall comply with all applicable requirements of the state building code.

(b) Deadbolt locks, if any, on exterior doors shall be operable from the exterior by the use of a key, card, or combination and from the inside by a knob or lever without the use of a key, card, or combination or special knowledge or effort to operate; no person shall install a deadbolt lock on a hotel room or motel room door that does not comply with all applicable laws.

(c) There shall be conspicuously displayed immediately adjacent to or on the inside of every exit door from a sleeping room, a diagram depicting two evacuation routes.
(Ord. No. 9651, § 1, 10-14-2019)

Sec. 11-152. Fire resistance.

Walls, floors, ceilings, doors and windows shall comply with all applicable requirements of the state building code if damaged or constructed of highly flammable material.
(Ord. No. 9651, § 1, 10-14-2019)

Chapter 12

HUMAN RELATIONS*

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*__Charter reference—__Fair housing, § 6-151 et seq.
__Cross reference—__Administration, ch. 2.
__State law reference—__Municipal authority to enact human relations program, G.S. 160A-492.

ARTICLE I. IN GENERAL

Secs. 12-1—12-25. Reserved.

ARTICLE II. CHARLOTTE-MECKLENBURG COMMUNITY RELATIONS COMMITTEE*

Sec. 12-26. Creation.

(a) There is hereby created the Charlotte-Mecklenburg Community Relations Committee (referred to as "the committee") to consist of 45 members. The mayor shall appoint eight members of the committee, the city council shall appoint 16 members of the committee, and the county board of commissioners shall appoint 21 members of the committee. The mayor and the chairman of the board of commissioners shall designate one member as chairperson of the committee and one member as vice-chairperson.

(b) The term of office for each member of the committee shall be three years, except that a member whose term has expired may remain a member until his successor is appointed. A member chosen to fill a vacancy created by any cause other than the expiration of a term shall be appointed for the unexpired term of the member whom he is to succeed. A member of the committee is eligible for reappointment; provided, however, no person shall serve in succession more than two full terms as a member.

(c) Twenty-three members of the committee shall constitute a quorum for conducting all business of the committee, except as provided otherwise by law. Vacancies on the committee shall not impair the ability of the remaining members to exercise the powers of the committee, provided that the quorum requirement is met.

(d) A member of the committee may be removed by the mayor and chairman of the board of county commissioners for inefficiency, neglect of duty, misconduct or malfeasance in office, after being given a written statement of the charges and an opportunity to be heard thereon.

(e) Attendance of meetings and continued service on the committee by members appointed by the mayor shall be governed by the attendance policies established by the city council. Vacancies resulting from a member's failure to attend the required number of meetings shall be filled as provided for in subsection (b) of this section.

(f) The committee may appoint persons or organizations to assist it for such terms and purposes as the committee may determine and may take all other actions necessary to carry out the powers and responsibilities granted and imposed by this article.
(Code 1985, § 12-16)

Sec. 12-27. Powers.

Within the limitations provided by law, the community relations committee created under this article has the power to:

(1) Maintain an office in the county;

(2) Appoint an executive director and other necessary employees;

(3) Cooperate or contract with individuals and state, local and other agencies, both private and public, including agencies of the federal government and of other states;

(4) Accept public grants or private gifts, bequests, or other payments;

(5) Study problems in the areas of human and community relations and make the results thereof available to the public;

(6) Promote equality of opportunity for all citizens;

(7) Promote understanding, respect and goodwill among all citizens;

(8) Provide channels of communication among the various racial, religious and ethnic groups in the county; and

(9) Render at least annually a written report to the mayor and to the city council and to the chairman and the board of county commissioners. The report may contain recommendations of the committee for

*__State law reference—__Authority to appoint a community relations committee, G.S. 160A-492.

legislation or other actions to eliminate or reduce discrimination with respect to protected class(es).

(Code 1985, § 12-17; Ord. No. 7056-X, § 2, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 2, 8-9-2021)

Sec. 12-28. Conciliation division created.

(a) Seven members of the community relations committee created by this article shall be appointed by the mayor to serve as the conciliation division of the committee. One of the committee members shall be designated by the mayor as chairperson of the conciliation division and another as vice-chairperson.

(b) The term of office of each member of the conciliation division is coterminous with his term as a member of the committee. A member of the conciliation division is eligible for reappointment.

(c) Three members of the conciliation division constitute a quorum. A vacancy in the conciliation division does not impair the authority of the remaining members to exercise the powers of the conciliation division.

(Code 1985, § 12-18)

Sec. 12-29. Powers of conciliation division.

Within the limitations provided by law, the conciliation division of the community relations committee created by this article has the power to:

(1) Use the facilities and staff of the committee created under this article, as authorized by the committee, to effectuate the purposes and policies of this chapter;

(2) Receive, initiate, seek to conciliate, and hold hearings on complaints alleging violations of this chapter;

(3) Provide information on alternate avenues and technical support for relief on complaints alleging violations of this chapter, including those provided under applicable federal and state law;

(4) Approve or disapprove plans to eliminate or reduce discrimination with respect to a protected class;

(5) Furnish technical assistance required by persons subject to this chapter to further compliance with this chapter;

(6) Render at least annually a comprehensive written report to the committee created by this article and to the mayor and the city council.

(Code 1985, § 12-19; Ord. No. 7056-X, § 2, 2-22-2016, eff. 4-1-2016; Ord. No. 8195, § 2, 12-21-2016; Ord. No. 115, § 2, 8-9-2021)

Sec. 12-30. Complaint procedure.

(a) Any person claiming a violation of article III or IV of this chapter may file with the conciliation division a sworn complaint stating that a violation has been committed, setting forth the facts upon which the complaint is based, and setting forth facts sufficient to enable the conciliation division to identify the person charged (referred to as "the respondent"). The conciliation division or a member of the conciliation division or the staff shall properly review the allegations of discriminatory practice set forth in the complaint and shall, within ten days, furnish the respondent with a copy of the complaint. The complaint must be filed within one year after the alleged violation occurs. The conciliation division or a member of the conciliation division or the staff shall initiate a review of the complaint within a reasonable time.

(b) Not later than 30 days after the complaint is filed, unless for good reason the time is extended for an additional 30 days by the conciliation division, the conciliation division shall determine whether there is reasonable cause to believe that the respondent has violated article III or IV of this chapter.

(c) If the conciliation division finds that there is no reasonable cause to believe the respondent has violated article III or IV of this chapter, the chairperson shall, within a reasonable time, inform the complaining party, the city attorney, and the respondent of the conciliation division's findings.

(d) If the conciliation division finds that there is reasonable cause to believe the respondent has violated article III or IV of this chapter, the conciliation division may endeavor, by conference and conciliation with the respondent, to reach a voluntary elimination of the alleged, unlawful practice. The conciliation division, or any of its employees, shall not make public, without the written consent of the complaining party and the respondent, information concerning efforts in a particular case to voluntarily eliminate an alleged and unlawful practice by conference and conciliation.

(e) If there is reasonable cause to believe that the respondent has violated article III or IV of this chapter and the alleged violation has not been voluntarily eliminated by conference and conciliation within a period of 90 days from the filing of the complaint, the complaint shall be referred to the city attorney for appropriate action after the complainant and respondent shall be so notified.
(Code 1985, § 12-20; Ord. No. 115, § 2, 8-9-2021)

Sec. 12-31. Other civil remedies.

An election to proceed by making a complaint with the conciliation division by a person alleging a violation of article III or IV of this chapter shall not foreclose the right to proceed with any civil remedies available. Violation of articles III or IV of this chapter shall not be punishable as a crime under G.S. 14-4 or any other law.

Nothing in articles III or IV of this chapter shall be interpreted or applied so as to create any unique requirement, power, or duty or liability in conflict with any existing federal or state law or either the federal or state constitutions. Other than an assertion that a respondent employer is not a covered employer due to the size of its employee workforce, any and all legal rights, remedies and defenses to a charge of discrimination recognized under applicable federal and state law shall also be applicable to a charge of discrimination under this chapter.

Nothing in the requirements of articles III and IV of this chapter shall deny the use of constitutionally or otherwise legally protected speech nor shall the requirements of articles III and IV of this chapter deny any entity or individual their constitutional or statutory protections against compelled speech or expression.
(Code 1985, § 12-21; Ord. No. 115, § 2, 8-9-2021)

Sec. 12-32. No private cause of action.

Violations of articles III or IV of this chapter is not intended to create, and does not create, any individual right, privilege, or benefit, whether substantive or procedural, enforceable at law or in equity by any party against the City of Charlotte, its agencies, departments or any other entities, or any officers, elected officials, employees, or agents thereof, or against the Charlotte-Mecklenburg Community Relations Committee (as that term is defined in this chapter) or any other person, employer or respondent.
(Ord. No. 115, § 2, 8-9-2021)

Secs. 12-33—12-55. Reserved.

ARTICLE III. PUBLIC ACCOMMODATIONS

Sec. 12-56. Declaration of policy.

It is hereby declared to be the policy of the city in the exercise of its licensing and police powers, and under the authority of section 6.41 of the Charter and state law for the preservation of the peace and protection of the health, safety and welfare of persons in the city, to prohibit discriminatory practices in places of public accommodations as defined in section 12-57.
(Code 1985, § 12-36; Ord. No. 8194, § 2, 12-19-2016; Ord. No. 8195, §§ 1, 2, 12-21-2016)

Sec. 12-57. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Gender identity and *gender expression* means having or being perceived as having gender-related or being perceived as having gender-related identity, expression, appearance, or behavior, whether or not that identity, expres-

sion, appearance, or behavior is different from that traditionally associated with the sex assigned to that individual at birth.

Natural hairstyle means any hair texture, color, type or style of wear historically associated with race or national origin.

Protected class means a person's race, color, gender, religion, national origin, ethnicity, age, familial status, sex (including sexual orientation or gender identity), veteran status, pregnancy, natural hairstyle or disability.

Place of public accommodation means a business, accommodation, refreshment, entertainment, recreation, or transportation facility of any kind, whether licensed or not, whose goods, services, facilities, privileges, advantages or accommodations are extended, offered, sold or otherwise made available to the public. This term shall not include religious organizations.

Religious organization means a church, mosque, synagogue, temple, non-denominational ministry, interdenominational and ecumenical organization, religiously operated school, mission organization, faith-based social agency, association, society or other entity primarily devoted to the study, practice, or advancement of religion.

Sexual orientation means a person's actual or perceived emotional, romantic, or sexual attraction to other people which includes, but is not limited to, heterosexuality, homosexuality or bisexuality.

(Code 1985, § 12-37; Ord. No. 8194, § 2, 12-19-2016; Ord. No. 8195, §§ 1, 2, 12-21-2016; Ord. No. 115, § 3, 8-9-2021)

Cross reference—Definitions generally, § 1-2.

Sec. 12-58. Prohibited acts.

(a) It shall be unlawful to deny any person the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation because of a protected class.

(b) It shall be unlawful to make, print, circulate, post, mail or otherwise cause to be published a statement, advertisement, or sign which indicates that the full and equal enjoyment of the goods, services, facilities, privileges, advantages, and accommodations of a place of public accommodation will be refused, withheld from, or denied any person because of a protected class, or that any person's patronage of or presence at a place of public accommodation is objectionable, unwelcome, unacceptable, or undesirable because of a protected class; provided, however, this section does not apply to a private club or other establishment not, in fact, open to the public.

(Code 1985, § 12-38; Ord. No. 7056-X, § 3, 2-22-2016, eff. 4-1-2016; Ord. No. 8194, § 2, 12-19-2016; Ord. No. 8195, §§ 1, 2, 12-21-2016; Ord. No. 115, § 3, 8-9-2021)

Sec. 12-59. Reserved.

Editor's note—Ord. No. 115, § 3, adopted Aug. 9, 2021, repealed § 12-59, which pertained to prohibited sex discrimination and derived from Code 1985, § 12-39; Ord. No. 7056-X, § 2, adopted Feb. 22, 2016, eff. April 1, 2016; and Ord. No. 8195, § 2, adopted Dec. 21, 2016.

Secs. 12-60—12-80. Reserved.

ARTICLE IV. DISCRIMINATORY PRACTICES*

Sec. 12-81. Unlawful acts.

It shall be unlawful for a person or for two or more persons to conspire to:

(1) Discriminate against a person because he has opposed a discriminatory practice in a place of public accommodation, or because he has made a charge, filed a complaint, testified, assisted or participated in a proceeding or hearing under this chapter.

(2) Aid, abet, incite, or coerce a person to engage in a discriminatory practice in a place of public accommodation.

(3) Wilfully interfere with the performance of a duty or the exercise of a duty by the community relations committee created by article II of this chapter or one of its members or representatives.

*__State law reference—__Equal employment practices, G.S. 143-422.1 et seq.

(4) Wilfully obstruct or prevent a person from complying with this chapter or an order issued under this chapter.

(Code 1985, § 12-51; Ord. No. 8194, § 2, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 12-82. Attempt to commit discriminatory practice.

An attempt to commit, directly or indirectly, a discriminatory practice in a place of public accommodation is a discriminatory practice.

(Code 1985, § 12-52; Ord. No. 8194, § 2, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 12-83. Prohibited employment discrimination.

It shall be unlawful for any employer because of the protected class of any person, to fail or refuse to hire, discharge or otherwise discriminate against that person with respect to hire, tenure, promotion, transfer, compensation, terms, conditions, position or privileges of employment, or any matter directly or indirectly related to employment.

(a) All complaints of violation of this section shall be received by the conciliation division of the community relations committee.

(b) In lieu of commencing its review of the complaint as set forth in section 12-31 of this chapter, the conciliation division may, at its discretion, require complaints alleging violation of this section, to first be submitted to the applicable federal or state authority for review and appropriate action. Should the applicable federal or state authority determine that it does not have jurisdiction or authority over the subject matter of the complaint, the conciliation division shall commence its review of the complaint as set forth in article II of this chapter.

(Ord. No. 115, § 4, 8-9-2021)

Editor's note—Ord. No. 115, § 7, adopted Aug. 9, 2021, states Sections 12-83 and 12-84 "shall be effective on January 1, 2022."

Sec. 12-84. Exemptions to section 12-83.

Notwithstanding the foregoing the following are not discriminatory practices prohibited under article IV of this chapter:

(a) A religious organization that employs an individual to perform work associated with the religious organization that insists employees adhere to the tenets of the religious organization as a condition of employment.

An employee may express the employee's sincerely held religious or moral beliefs and commitments in the workplace in a reasonable, non-disruptive and non-harassing way on equal terms with similar types of expression of beliefs or commitments allowed by the employer in the workplace, unless the expression is in direct conflict with the essential business related interests or needs of the employer.

(b) Nothing in this article shall require an employer to hire or retain unqualified individuals or to retain employees when there is a legitimate non-discriminatory or non-retaliatory reason to terminate employment.

(c) Nothing in this article shall prohibit an employer from requiring an employee during the employee's hours of work to adhere to reasonable dress or grooming standards that are due to a business necessity and that are not prohibited by federal, state or local law.

(d) An employer that observes the conditions of bona fide seniority system or affirmative action plan that is not a pretext to evade the purposes of this article. An affirmative action plan is any plan devised to effectuate remedial or corrective action taken in response to past discriminatory practices against a historically marginalized group, or as otherwise required by federal or state law.

(Ord. No. 115, § 4, 8-9-2021)

Editor's note—See editor's note to § 12-83.

Secs. 12-85—12-105. Reserved.

ARTICLE V. FAIR HOUSING*

Sec. 12-106. Title.

This article shall be known and may be cited as the "Fair Housing Ordinance" of the city.
(Code 1985, § 12-66)

Sec. 12-107. Purpose.

The general purposes of this article are to:

(1) Provide for execution within the city of the policies embodied in title VIII of the Federal Civil Rights Act of 1968, as amended.

(2) Secure for all persons within the city freedom from discrimination because of race, color, religion, national origin, sex, handicap or familial status in real estate transactions.

(Code 1985, § 12-67)

Sec. 12-108. Effect of article on other ordinances.

Nothing contained in this article shall be deemed to repeal any other section of this Code or other city ordinance relating to discrimination because of race, color, religion, national origin, sex, handicap or familial status, but all such ordinances and portions thereof in conflict with this article are repealed to the extent of such conflict.
(Code 1985, § 12-68)

Sec. 12-109. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Committee means the Charlotte-Mecklenburg Community Relations Committee.

Discriminatory practice means an act that is unlawful under this article.

***Charter reference—**Fair housing, § 6-151 et seq.

Cross reference—Housing, ch. 11.

State law reference—State Fair Housing Act, G.S. 41A-1 et seq.

Dwelling means any building, structure, manufactured home or mobile home, or portion thereof which is occupied as, or designed or intended for occupancy as, a residence by one or more families, and any vacant land which is offered for sale or lease for the construction or location thereon of any such building, structure, or portion thereof.

Dwelling unit means any room or group of rooms located within a dwelling and forming a single, habitable unit with facilities which are used or intended to be used for living, sleeping, cooking and eating.

Familial status means one or more individuals, who have not attained the age of 18 years, being domiciled with:

(1) A parent or other person having legal custody of such individual; or

(2) The designee of such parent or other person having such custody with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of an individual who has not attained the age of 18 years.

Family includes a single individual.

Handicap means, with respect to a person:

(1) A physical or mental impairment which substantially limits one or more major life activities;

(2) A record of having such an impairment; or

(3) Being regarded as having such an impairment;

but such term does not include current, illegal use of or addiction to a controlled substance, as defined in section 102 of the Controlled Substances Act (21 USC 82).

National origin includes the national origin of an ancestor.

Person includes one or more individuals, political subdivisions of the state and instrumentalities thereof, including the city or any governmental entity or agency thereof, partnerships, associations, corporations, legal representatives, mutual companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers, or any other legal or commercial entity.

Real estate broker and *real estate salesperson* mean a person, whether licensed or not, who, on behalf of others, for a fee, commission, salary, or other valuable consideration, or who, with the intention or expectation of receiving or collecting a fee, commission, salary, or other valuable consideration, lists, sells, purchases, exchanges, rents, or leases real property, or the improvements thereon, including options; who negotiates or attempts to negotiate on behalf of others such an activity or who advertises or holds himself out as engaged in such activities; who negotiates or attempts to negotiate on behalf of others a loan secured by mortgage or other encumbrances upon real property; who is engaged in the business of listing real property in a publication; or a person employed by or acting on behalf of any of these.

Real estate transaction includes the sale, exchange, rental, or lease of real property, or of an interest therein.

Real property includes buildings, structures, real estate, lands, tenements, leaseholds, cooperatives, condominiums, and hereditaments, corporeal and incorporeal, or any interest therein.
(Code 1985, § 12-69)

Cross reference—Definitions generally, § 1-2.
State law reference—Similar provisions, G.S. 41A-3.

Sec. 12-110. Discriminatory practices unlawful.

It is unlawful to commit or to attempt to commit, directly or indirectly, a discriminatory practice as defined in this article.
(Code 1985, § 12-70)

Sec. 12-111. Discrimination in real estate transactions.

Except where exempted pursuant to section 12-113 of this article, it shall be unlawful to:

(1) Refuse to sell or rent or receive or fail to transmit a bona fide offer to engage in a real estate transaction because of race, color, religion, sex, familial status or na-

tional origin of a person or any other person residing with that person or of friends or associates of that person.

(2) Refuse to negotiate or engage in a real estate transaction with a person because of race, color, religion, sex, familial status or national origin of a person or any other person residing with that person or of friends or associates of that person.

(3) Otherwise make unavailable or deny a dwelling based on discrimination because of the race, color, religion, sex, familial status or national origin of a person or any other person residing with that person or of friends or associates of that person.

(4) Discriminate against a person in the terms, conditions or privileges of a real estate transaction or in the provision of services or facilities in connection therewith because of the race, color, religion, national origin, sex or familial status of a person or of any other person residing with that person or of friends or associates of that person.

(5) Represent to any person that real property is not available for inspection, sale, rental or lease when, in fact, it is so available or fail to bring a property listing to a person's attention or refuse to permit a person to inspect real property because of the race, color, religion, national origin, sex, handicap or familial status of a person or of any other person residing with that person or of friends or associates of that person.

(6) Make, print, circulate, post, mail or cause to be so published a statement, advertisement or sign or use a form of application for a real estate transaction or make a record or inquiry in connection with a prospective real estate transaction which indicates, directly or indirectly, an intent to make a limitation, preference or discrimination based on race, color, religion, national origin, sex, handicap or familial status of a person or of any other person residing with that person.

(7) Offer, solicit, accept, use or retain a listing of real property with the understanding that a person may be discriminated against in a real estate transaction or in the provision of facilities or services in connection therewith because of race, color, religion, sex, handicap, familial status or national origin of a person or any other person residing with that person or of friends or associates of that person.

(Code 1985, § 12-71)

Sec. 12-112. Discrimination based on disability.

(a) For the purposes of this article, discrimination based on disability includes the following:

(1) A refusal to permit, at the expense of the handicapped person, reasonable modifications of existing premises occupied or to be occupied by such person if such modifications may be necessary to afford such person full enjoyment of the premises; except that, for a rental, the landlord may, where it is reasonable to do so, condition permission for a modification on the renter's agreeing to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted;

(2) A refusal to make reasonable accommodations in rules, policies, practices or services when such accommodations may be necessary to afford such person equal opportunity to use and enjoy a dwelling; or

(3) In connection with the design and construction of covered multifamily dwellings for first occupancy after March 13, 1991, a failure to design and construct those dwellings in such a manner that:

a. The dwellings have at least one building entrance on an accessible route unless it is impractical to do so because of the terrain or unusual characteristics of the site.

b. With respect to dwellings with a building entrance on an accessible route:

1. The public use and common use portions of such dwellings are readily accessible to and usable by handicapped persons;

2. All the doors designed to allow passage into and within all premises within such dwellings are sufficiently wide to allow passage by handicapped persons in wheelchairs; and

3. All premises within such dwellings contain the following features of adaptive design with:

i. An accessible route into and through the dwelling;

ii. Light switches, electrical outlets, thermostats and other environmental controls in accessible locations;

iii. Reinforcements in the bathroom walls to allow later installation of grab bars; and

iv. Usable kitchens and bathrooms such that an individual in a wheelchair can maneuver about the space.

Compliance with requirement 1, section 5, Guidelines of Department of Housing and Urban Development Fair Housing Accessibility Guidelines (24 CFR 1) suffices to satisfy the requirements of subsection (a)(3)a of this section.

Compliance with the appropriate requirements of the American National Standards Institute for buildings and facilities providing accessibility and usability for physically handicapped people (commonly cited as "ANSI A117.1") or comparable standards suffices to satisfy the requirements of subsection (a)(3)b.3 of this section except where the city's building standards exceed those requirements.

For purposes of this subsection, covered multifamily dwellings shall be deemed to be designed and constructed for first occupancy on or before March 13, 1991, if they are occupied by that date or if the last building permit or renewal thereof for those dwellings is issued on or before January 13, 1990. As used in this subsection, the term "covered multifamily dwellings" means buildings consisting of four or more units if such buildings have one or more elevators and ground floor units in other buildings consisting of four or more units.

(b) Except where exempted pursuant to section 12-113 of this article, it shall be unlawful to discriminate:

(1) In the sale or rental or otherwise make unavailable or deny a dwelling to any buyer or renter because of a handicap of:

a. That buyer or renter;

b. A person residing in or intending to reside in that dwelling after it is sold, rented or made available; or

c. Any person associated with that buyer or renter.

(2) Against any person in the terms, conditions or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection with such dwelling because of a handicap of:

a. That person;

b. A person residing in or intending to reside in that dwelling after it is so sold, rented or made available; or

c. Any person associated with that person.

(Code 1985, § 12-72)

Sec. 12-113. Exemptions.

(a) The provisions of section 12-111, other than subsection (6), do not apply:

(1) To the rental of a dwelling unit in a building containing dwelling units for not more than four families living independently of each other if the lessor resides in one of those dwelling units.

(2) To the rental of a room in a dwelling unit by an individual if the lessor resides therein.

(3) With respect to discrimination based on sex, the rental or leasing of dwelling units in single-sex dormitory property.

(4) With respect to discrimination based upon religion, dwelling units owned and operated for other than a commercial purpose by a religious organization, association, or society, or any nonprofit institution or organization operated, supervised, or controlled by or in conjunction with a religious organization, association, or society; the sale, rental or occupancy of such dwelling unit being limited or preference being given to persons of the same religion unless membership in such religion is restricted because of race, color, national origin, sex, handicap or familial status.

(5) To any person subject to this article who adopts and carries out a plan to eliminate present effects of past discriminatory practices or to ensure equal opportunity in real estate transactions if the plan is part of a conciliation agreement entered into by that person under this article and is filed with the Charlotte-Mecklenburg Community Relations Committee under the rules of the committee and the committee has not disapproved the plan.

(b) With respect to discrimination based upon familial status, nothing in this article limits the applicability of any reasonable city, state or federal restrictions regarding the maximum number of occupants permitted to occupy a dwelling unit, nor does any section in this article regarding familial status apply with respect to housing for older persons.

(1) As used in this subsection, housing for older persons means housing:

a. Provided under any local, state, or federal program that the United States Secretary of Housing and Urban Development determines is specifically designed and operated to assist elderly persons, as defined in the local, state, or federal program;

b. Intended for, and solely occupied by, persons 62 years of age or older; or

c. Intended and operated for occupancy by persons 55 years of age or older and:

1. At least 80 percent of the occupied units are occupied by at least one person who is 55 years of age or older;

2. The housing facility or community publishes and adheres to policies and procedures that demonstrate the intent required under this subsection; and

3. The housing facility or community complies with rules issued by the United States Secretary of Housing and Urban Development for verification of occupancy, which shall:

i. Provide for verification by reliable surveys and affidavits; and

ii. Include examples of the types of policies and procedures relevant to the determination of compliance with the requirement of subsection (b)(1)c.2 of this section. Such surveys and affidavits shall be admissible in administrative and judicial proceedings for the purposes of such verification.

(2) Housing shall not fail to meet the requirements for housing for older persons by reason of:

a. Persons residing in such housing as of December 28, 1995, who do not meet the age requirements of subsection (b)(1)b or (b)(1)c of this section, provided that new occupants of such

housing meet the age requirements of subsection (b)(1)b or (b)(1)c of this section; or

b. Unoccupied units, provided that such units are reserved for occupancy by persons who meet the age requirements of subsection (b)(1)b or (b)(1)c of this section.

(3) Nothing in this article prohibits conduct against a person because such person has been convicted by any court of competent jurisdiction of the illegal manufacture or distribution of a controlled substance as defined in section 102 of the Controlled Substance Act (21 USC 802).

(4) a. A person shall not be held personally liable for monetary damages for a violation of this article if such person reasonably relied, in good faith, on the application of the exemption under this subsection relating to housing for older persons.

b. For the purposes of this subsection, a person may show good-faith reliance on the application of the exemption only by showing that:

1. Such person has no actual knowledge that the facility or community is not, or will not be, eligible for such exemption; and

2. The facility or community has stated formally, in writing, that the facility or community complies with the requirements of such exemption.

(Code 1985, § 12-73)

Sec. 12-114. Discrimination in residential real-estate-related transactions.

(a) It shall be unlawful for any person whose business includes engaging in residential real-estate-related transactions to discriminate against any person in making available such a transaction or in the terms or conditions of such a transaction because of race, color, religion, national origin, sex, handicap or familial status.

(b) As used in this section, the term "residential real-estate-related transaction" means:

(1) The making or purchasing of loans or providing other financial assistance:

a. For purchasing, constructing, improving, repairing or maintaining a dwelling; or

b. Secured by residential real estate; or

(2) The selling, brokering or appraising of residential real property.

(Code 1985, § 12-74)

State law reference—Similar provisions, G.S. 41A-4(b1).

Sec. 12-115. Discrimination in provision of brokerage services.

It shall be unlawful to deny any person access to or membership or participation in any multiple listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings, or to discriminate against him in the terms or conditions of such access, membership, or participation, on account of race, color, religion, sex, handicap, familial status, or national origin.

(Code 1985, § 12-75)

State law reference—Similar provisions, G.S. 41A-4(d).

Sec. 12-116. Other unlawful practices.

(a) It is an unlawful practice for any person against whom a complaint has been filed under this article to fail to preserve or to fail to make available to the Charlotte-Mecklenburg Community Relations Committee or its duly authorized representative any evidence or possible sources of evidence with regard to that complaint.

(b) It is an unlawful practice for a person, for profit, to induce or attempt to induce any person to sell or rent any real property by representations regarding the entry or prospective entry into the neighborhood of a person of a particular race, color, religion, national origin, sex, handicap or familial status.

(c) Restrictive covenants and conditions are subject to the following:

(1) Every provision in an oral agreement or a written instrument relating to real prop-

erty which purports to forbid or restrict the conveyance, encumbrance, occupancy or lease thereof to individuals of a specified race, color, religion, national origin, sex, handicap or familial status is a discriminatory practice and is void.

(2) Every condition, restriction, or prohibition, including a right of entry or possibility of reverter, which directly or indirectly limits the use or occupancy of real property on the basis of race, color, religion, national origin, sex, handicap or familial status is a discriminatory practice and is void, except a limitation of use on the basis of religion of real property held by a religious or charitable organization operated, supervised or controlled by a religious institution or organization and used for religious or charitable purposes.

(3) It is an unlawful practice to insert in a written instrument relating to real property a provision that is void under this section or to honor or attempt to honor such a provision in the chain of title.

(d) It is an unlawful practice for a person, as a party to a conciliation agreement made under this article, to violate the terms of the agreement.

(e) It is an unlawful practice to:

(1) Retaliate or discriminate in any manner against a person because he has opposed a practice declared unlawful by this article or because he has made a charge, filed a complaint, testified, assisted or participated in any manner in any investigation, proceeding, or hearing under this article;

(2) Aid, abet, incite, compel or coerce a person to engage in any of the acts or practices declared unlawful by this article;

(3) Obstruct or prevent a person from complying with this article or any order issued under this article;

(4) Resist, prevent, impede, or interfere with the committee or any of its members or representatives in the lawful performance of duty under this article; or

(5) Coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of or on account of his having exercised or enjoyed, or on account of his having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this article.

(Code 1985, § 12-76)

Sec. 12-117. Acting for another person no defense.

It shall be no defense to a violation of this article by a person that the violation was requested, sought, or otherwise procured by another person.

(Code 1985, § 12-77)

Sec. 12-118. Enforcement, relief.

(a) An action alleging a violation of this article may be filed in the superior court of the 26th judicial district of the state (referred to as "court") by the Charlotte-Mecklenburg Community Relations Committee. Such an action may also be filed by an aggrieved person not later than two years after the occurrence or termination of an alleged discriminatory practice. If the committee has filed an action, an aggrieved person's timely motion to intervene shall be granted.

(b) If it shall be determined by the court that a discriminatory practice has occurred, an order shall issue granting relief to those persons who have suffered the effects of such discrimination. Before relief may be granted, it shall not be necessary for the court to find that intentional discrimination has occurred. It shall be sufficient that the respondent's action or failure to act was intentional and has resulted in unlawful discrimination.

(c) The court may grant as relief, as it deems appropriate, any permanent or temporary injunction, temporary restraining order, or other order, and may award to the plaintiff actual damages, including compensation for humiliation and embarrassment, and punitive damages, together with court costs and reasonable attorney's fees in the case of a prevailing plaintiff.

(d) Any party aggrieved by a final order of the court may appeal to the state court of appeals. (Code 1985, § 12-78)

Sec. 12-119. Additional powers of committee.

The Charlotte-Mecklenburg Community Relations Committee shall, in addition to its powers as set forth in article II of this chapter, have power to:

(1) Receive, initiate, investigate, seek to conciliate and conduct hearings on complaints filed under this article; make recommendations to parties named in such complaints; and approve or disapprove plans to eliminate or reduce the effects of discriminatory practices and monitor compliance with such plans.

(2) Require answers to interrogatories and the production of documents and other tangible things for the purpose of inspection, copying or translating; administer oaths and examine witnesses under oath or affirmation and compel the attendance of witnesses at hearings, depositions and other examinations by members of the committee or its agents and the production of documents and other tangible things. Witnesses whose depositions are taken or who are summoned before the committee or its agents shall be entitled to the same witness and mileage fees as are paid to witnesses in the courts of this state.

(3) Submit to parties in a complaint requests for admission of the truth of any matter, not privileged, that is relevant to the complaint. A request for admission submitted under the authority of this subsection shall be governed, so far as practically possible, by the procedures for requests for admission provided in the North Carolina Rules of Civil Procedure, except that any admission made by a party under this subsection shall be for the purpose of the pending complaint, any subsequent public hearing by the committee upon the complaint, and any subsequent civil action, arising from the complaint, filed by the committee or by any aggrieved person pursuant to section 12-118 of this article.

(4) Apply to the court, upon the failure of any person to respond to or comply with a lawful interrogatory, subpoena, request for admission, or request for the production of relevant evidence or possible sources of evidence, for an order requiring such person to respond to or comply with the interrogatory, subpoena, request for admission, or request for the production of relevant evidence or possible sources of evidence. The court shall have jurisdiction to issue such order after notice to all proper parties. On petition of the person to whom the subpoena is directed, the court may vacate or modify the subpoena.

(5) Apply to the court for appropriate temporary or preliminary relief pending final disposition of a complaint if the committee concludes that such action is necessary to carry out the purposes of this article.

(6) Adopt, promulgate, amend, and rescind such rules and regulations to effectuate the purposes and policies of this article and the policies and practices of the committee in connection therewith, including regulations requiring the posting or inclusion in advertising material of notices prepared or approved by the committee, and regulations as to filing, approval or disapproval of plans to eliminate or reduce the effects of discriminatory practices. The committee may authorize any member or member of its staff to exercise the powers of the committee set forth in this article in the performance of its official duties as specified in this article and the rules and regulations. Such rules and regulations shall be approved by the city council and shall only be adopted, amended or rescinded after holding a public hearing, notice of which shall be published once at least ten days before the date of the hearing in a newspaper published within the jurisdiction of the local govern-

ing body. A copy of the text of the proposed rule, amendment or rescission shall be available for public inspection and copying at the offices of the committee.

(Code 1985, § 12-79)

Sec. 12-120. Procedures for conciliation.

(a) Under this article, a person claiming to be aggrieved by a discriminatory practice, his agent or a member of the Charlotte-Mecklenburg Community Relations Committee may file a written complaint with the committee within one year after the alleged violation occurred or terminated, setting forth the facts upon which the complaint is based and setting forth facts sufficient to enable the committee to identify the person charged (referred to as "respondent"). Upon the filing of a complaint, the committee shall:

(1) Serve notice upon the complainant acknowledging the filing and advising the complainant of the time limits and choice of forums provided under the law; and

(2) Promptly serve notice of the complaint on the respondent, advising the respondent of his procedural rights and obligations under this article, together with a copy of the complaint. The respondent may file an answer to the complaint.

(b) The committee shall begin the investigation of a complaint within 30 days after receipt of the complaint and shall complete the investigation within 100 days after receipt unless it is impractical to do so. If the investigation is not completed within that time, the committee shall notify the complainant and respondent in writing of the reason for not doing so. The committee shall make final administrative disposition of a complaint within one year after the receipt of a complaint unless it is impractical to do so. If the committee is unable to do so, it shall notify the complainant and respondent, in writing, of the reasons for not doing so.

(c) If it is decided by the committee that, based on the results of its investigation, there is not reasonable cause to believe the respondent has engaged in a discriminatory practice, the committee shall notify the complainant and the respondent in writing of its decision within ten days after such decision has been made. A finding of no reasonable cause by the committee shall not preclude the complainant's private right of action.

(d) Unless the committee has notified the complainant and the respondent that there is not reasonable cause to believe the respondent has engaged in a discriminatory practice, the committee shall endeavor to eliminate the alleged discriminatory practice by conference, conciliation and persuasion. Any conciliation agreement arising out of conciliation efforts by the committee shall be an agreement between the respondent and the complainant and shall be subject to the approval of the committee. Each conciliation agreement shall be made public unless the complainant and the respondent otherwise agree and the committee determines that disclosure is not required to further the purposes of this article.

(e) A conciliation agreement negotiated by the committee may include, but is not limited to, the following:

(1) Sale, exchange, lease, rental, assignment, or sublease of real property to a person.

(2) Extension to all persons of the full and equal enjoyment of the advantages, facilities, privileges and services of the respondent.

(3) Reporting as to the manner of compliance.

(4) Posting of notices in conspicuous places in the respondent's place of business in a form prescribed by the court or the committee.

(5) Payment to the complainant of actual damages, including compensation for humiliation and embarrassment, and reasonable attorney's fees.

(f) At any time but not later than one year from the date of a conciliation agreement, the committee shall investigate whether the terms of the agreement are being complied with by the respondent. Upon deciding that the terms of the agreement are not being complied with by the respondent, the committee shall take appropriate action to ensure compliance.

(g) Hearings shall be conducted as follows:

(1) Unless the committee has decided that there is no reasonable cause to believe that a discriminatory practice has occurred, or unless it has negotiated a conciliation agreement, the committee shall hold a hearing, after proper notice and under rules and procedures adopted by the committee under this article, at which the presence of the complainant, the respondent, and any witnesses and records designated by the committee may be required.

(2) If the committee determines as a result of the hearing that the respondent has not engaged in a discriminatory practice, the committee shall state its findings of fact and conclusions of law and shall issue an order dismissing the complaint and furnish a copy of the order to the complainant, the respondent, the city attorney, and such other persons as the committee deems proper.

(3) If the committee determines that the respondent has engaged in a discriminatory practice, the committee shall state its findings of fact and conclusions of law and, if a conciliation agreement has not been negotiated, shall file an action alleging a violation of this article in the court. A copy of the findings and of any negotiated conciliation agreement shall be delivered to the complainant, the respondent, the city attorney, and such other persons as the committee deems proper.

(h) After a finding is made by the committee following a hearing, the committee may publish or cause to be published the name of a person whom it has determined to be engaged in a discriminatory practice and the terms of any conciliation agreement.

(i) Every person subject to this article shall make, keep, and preserve records relevant to the determination of whether discriminatory practices have been or are being committed, such records being maintained and preserved in a manner and to the extent required under the Civil Rights Act of 1968 and any regulations promulgated thereunder. Nothing in this article shall be interpreted to require the making, keeping, and preserving of records other than and except as required under the Civil Rights Acts of 1968 and any regulations promulgated thereunder.

(j) In connection with a complaint filed under this article, the committee or its designated representative shall have access at any reasonable time to premises, records and documents relevant to the complaint, and the right to examine, photograph, and copy evidence.

(k) Neither a complaint filed pursuant to this article nor the results of the committee's investigations, discovery, or attempts at conciliation, in whatever form prepared and preserved, shall be subject to inspection, examination, or copying under G.S. ch. 132.

(l) The provisions of G.S. 143-318.9 et seq. shall not be applicable to the activities of the committee to the extent that it is receiving a complaint or conducting an investigation, discovery, or conciliation pertaining to a complaint filed pursuant to this article.

(m) No portion of this article shall be construed to authorize the committee to make a final determination concerning the allegations of a complaint. The committee's authority and power shall not exceed receiving, investigating and attempting to conciliate complaints, monitoring compliance with the terms of conciliation agreements, and, where warranted, commencing an action in the court alleging the violation of this article and any other powers granted in section 12-119 by this article.

(Code 1985, § 12-80)

Chapter 13

LICENSES*

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Secs. 13-1—13-25. Reserved.

Article II. Business and Occupational Licenses

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Division 2. Schedules

Sec. 13-76. License tax schedules.

***Cross references—**Businesses and trades, ch. 6; sidewalk dining, § 19-271 et seq.; vehicles for hire, ch. 22; zoning, app. A.

State law references—Municipal regulation and licensing of businesses, trades, etc., G.S. 160A-194; privilege license taxes, G.S. 160A-211; taxation, G.S. ch. 105, G.S. 160A-206; tax collector, G.S. 105-349 et seq.

ARTICLE I. IN GENERAL

Secs. 13-1—13-25. Reserved.

ARTICLE II. BUSINESS AND OCCUPATIONAL LICENSES

DIVISION 1. GENERALLY

Sec. 13-26. Purpose.

(a) The purpose of this article is to raise funds for general municipal purposes. Therefore, it should be construed to require payment of the maximum tax permitted for the privilege of carrying on a business, trade, profession, calling or occupation within the corporate limits of the city.

(b) A license issued pursuant to this article reflects that the appropriate tax has been paid. Issuance of a license does not constitute regulatory approval and does not excuse a licensee from compliance with any other applicable ordinance, regulation, or statute. By issuing a license, the city has not determined that the recipient is in compliance with any applicable local, state or federal regulation or law or that the recipient is otherwise engaged in a legal activity or operating a business in a legal manner.

(c) This article does not prevent the city from imposing license taxes on additional businesses, from increasing or decreasing the amount of any license tax, or from regulating any business taxes.
(Code 1985, § 13-16)

Sec. 13-27. Who must pay tax.

Each person who conducts or engages in all trades, occupations, professions, businesses, and franchises physically located within the city.
(Code 1985, § 13-17; Ord. No. 5406, § 1, 6-9-2014)

Sec. 13-28. Notice to taxpayer presumed.

Each person who conducts a business may be subject to a business license. It is the duty of the taxpayer to verify what his requirements are. If licenses are not paid, the proceedings allowed by law may be taken against such business. This notice shall be conclusively presumed, whether or not such persons have actual notice.
(Code 1985, § 13-17.1)

Sec. 13-29. Exemptions.

(a) *Generally.* Except as otherwise provided in this section or by state law, no person is exempt from the payment of a privilege license tax levied by this article.

(b) *Charitable organizations.* A person who operates a business for a religious, educational, civic, patriotic, charitable or fraternal purpose, when the entire gross income of the business is used for such a purpose, is exempt from paying any privilege license tax levied by this article.

(c) *Blind persons and members of the armed forces and merchant marine.* Blind persons and persons who serve in the United States armed forces or the merchant marine are exempt from paying any privilege license tax levied by this article to the extent provided by G. S. 105-249 and G. S. 105-249.1.
(Code 1985, § 13-18)

Sec. 13-30. Period; due date.

(a) *Annual.* Unless otherwise specified, the license issued pursuant to this article is valid for the 12-month period beginning July 31 and ending June 30. The tax is due and payable no later than July 1 of each year. However, if a person begins a business after July 1 of a year, the tax for that year shall be due and payable before the business is begun.

(b) *Periods shorter than one year.* If the section of this article levying the privilege license tax applicable to the particular business so provides, a license may be issued for a period of one day, one week, or some comparable period of less than a full year. A person may not commence a business conducted within the city and taxed under such a provision until the privilege

license tax due is paid, and may not continue such business beyond the period for which the license is issued.
(Code 1985, § 13-19; Ord. No. 5406, § 2, 6-9-2014)

Sec. 13-31. Proration of tax.

If a business is begun after December 31 and before July 1 the amount of tax due is half the amount otherwise due unless otherwise provided.
(Code 1985, § 13-20; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-32. Application.

(a) All persons, before engaging in any business, trade, profession, calling or occupation, or doing any act on which a license tax is imposed by this article, shall, except as provided in this section apply in writing on the form designated to the tax collector for a license. Such application must be signed by an official or designated representative.

(b) Each new application or an established business moving to a new location must be approved as to zoning requirements by the city.

(c) Each applicant must comply with other sections of this article concerning health, police, fire or building standards department requirements as provided.

(d) Each applicant for a license under section 13-16, category 179, "Escort, dating service or similar type business," must have a valid unrevoked escort service permit or dating service permit issued pursuant to chapter 6, article IV. In addition, upon receipt of notice that an escort service permit or dating service permit has been revoked pursuant to section 6-306, the tax collector shall revoke a license issued under this article to such business.
(Code 1985, § 13-21)

Sec. 13-33. Change in the business during the tax year; fee for reissuance of license.

A licensee under this article shall report a change in the information contained in the license application to the tax collector within ten days after the change occurs. If information shown on the license itself is affected thereby, the licensee shall surrender the license to the tax collector when reporting the change. The tax collector shall reissue a license reflecting the change upon payment of a fee as established from time to time. The license shall be subject to cancellation for failure to comply with this section.
(Code 1985, § 13-22)

Sec. 13-34. Tax based on gross receipts.

(a) *Requirement.* Except as provided in subsection (d) of this section if a license tax required by this article is based upon the gross receipts, an applicant for a business privilege license shall be required to submit the amount of its gross receipts from the license tax year immediately preceding in such detail and in such manner as the office of the tax collector may require.

(b) *Procedures.* When a license tax required under this article is based on gross receipts, the licensee will compute its license tax by applying all gross receipts per location to the rate established in this section and purchase a license per location. The licensee, however, may be subject to additional license taxes which the state authorizes the city to levy, depending on the licensee's business, and for which a separate license must be purchased. If the licensee is required to obtain multiple classifications, these revenues may be deducted from the total gross receipts. New businesses and/or businesses that have not been in business 12 months must give a good-faith 12-month projection of their gross receipts.

(c) *Definitions.* The term "gross receipts," as used in this section, shall mean all earnings, receipts, fees, commissions, broker's charges, rentals and income whatsoever arising from or growing out of the conduct of the business, occupation or profession licensed under this article during the license tax year immediately preceding the license tax year for which the tax is being computed, without any deduction whatsoever, unless otherwise expressly provided.

(d) *Exception.* Any business that pays the maximum annual tax on its gross receipts shall not be required to submit the amount of its gross receipts in order to purchase a license.

(e) *Confidentiality of information.* All information regarding gross receipts or other information furnished or secured under the authority of this article shall be kept in strict confidence by the office of the tax collector, its officials and employees, and shall not be subject or open to public inspection, except as provided in this article. The aforementioned shall be utilized solely by the office of the tax collector, its officials and employees for administering the provisions of this article. However, summaries of such information may be shared with appropriate city officials and employees for purposes of research and analysis.
(Code 1985, § 13-23; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-35. Duty to determine whether tax due.

(a) Each person has the duty to determine whether the business he conducts is taxed under this article, and if so, whether that tax has been paid for the current tax year.

(b) No license shall be transferable or assignable.

(c) A separate license is required and a separate privilege license tax must be paid for each place of business unless two or more places of business under common ownership are contiguous to each other, communicate directly with and open into each other and are operated as a unit.
(Code 1985, § 13-24; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-36. Tax collector's authority to investigate.

If the tax collector has reason to believe that a person is conducting a business in the city in violation of this article, he shall conduct an investigation to determine the person's tax liability.
(Code 1985, § 13-25)

Sec. 13-37. Duty to keep books.

Each person who conducts a business taxed under this article, whose license is based on gross sales/receipts, shall keep all records and books necessary to compute his tax liability. If a person fails to keep books and records as required, the collector shall make his own determination of that person's tax liability from the information available to him.
(Code 1985, § 13-26; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-38. Duty to permit inspection.

Each person who conducts business in this city shall permit the tax collector, or his agent, to inspect the business premises during normal business hours to determine the nature of the business conducted there and to examine the books and records to determine the nature and amount of business transacted.
(Code 1985, § 13-27)

Sec. 13-39. Duty to post.

(a) A licensee under this article shall post the license conspicuously in the place of business licensed. Failure to post this license shall raise the presumption of not being a licensed business.

(b) If there is no regular place of business, the license must be kept where it may be inspected at all times by the proper city officials.

(c) Each coin-operated machine, device, or other equipment for which a city privilege license is required shall have affixed thereto in a conspicuous place, a sticker as provided by the for collector, indicating that the privilege license tax has been paid. Failure to display this sticker shall raise a presumption that the machine, device or other equipment is operated by the owner, and/or tenant of the premises, whereupon such person shall be responsible for payment of all city taxes and penalties which may be due and payable.

(d) Every coin-operated machine, equipment or device on which a city privilege license is required shall have affixed thereto in a conspicuous place, identification showing the name and address of the owner, operator, distributor or other person responsible for such coin-operated machine. Failure to display this information

shall indicate the machine or device is owned by the operator on the location, as set forth in subsection (c) of this section.
(Code 1985, § 13-28; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-40. Refunds for discontinued business.

Except as otherwise provided, there shall be no refund of license taxes to businesses licensed under this article that are discontinued during the license year.
(Code 1985, § 13-29)

Sec. 13-41. Refunds for licensees entering armed forces.

Any licensee under this article who enters the armed forces of the United States and, as a result thereof, the operation of the business for which the license was issued ceases and terminates and who, within 30 days after an induction into such armed forces, makes an application to the tax collector of the city for same, shall be entitled to a return of the license fee in proportion to the number of full months remaining in the license period.
(Code 1985, § 13-30)

Sec. 13-42. Reasons for refusal or revocation.

The collector shall refuse to issue or shall revoke a license required by this article for any of the following reasons:

(1) The applicant misrepresents a fact relevant to the amount of tax due or the qualifications for a license.

(2) The applicant refuses to provide information necessary to compute the amount of tax due.

(3) The applicant fails or refuses to provide all information called for in the application.
(Code 1985, § 13-31)

Sec. 13-43. Penalties; revocation.

(a) All license taxes imposed by this article excluding beer, wine, taxicabs and the tax imposed in section 13-47, shall be due and payable in advance by August 1, and if any person conducts any business without first paying such tax and obtaining a license by that date, there shall be assessed an additional tax equal to five percent of the amount prescribed for the license per month or fraction thereof until paid, not to exceed 25 percent of the amount so prescribed.

(b) No license shall be granted until the license tax plus the additional tax assessed has been paid. The addition of five percent per month on the amount of such license tax shall not exempt the delinquent from the penalties prescribed in this article in case of delinquency.

(c) All licenses imposed on businesses under section 13-31 shall be paid prior to the beginning of such business. If not paid within 30 days, the penalties provided in subsections (a) and (b) of this section shall apply from the date such business began.

(d) Upon the revocation of any license, it shall be unlawful for the person to whom such license was granted to continue to conduct such business.
(Code 1985, § 13-32; Ord. No. 5406, § 3, 6-9-2014; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Sec. 13-44. Enforcement actions.

(a) *Equitable remedies.* The city may seek an injunction against any person conducting a business in violation of this article.

(b) *Garnishment and levy remedies.* The tax collector may set forth the sale of tangible personal property (levy) or attach wages, rents, bank deposit and other compensation (garnish) to eliminate any delinquent license tax in accordance with G.S. 105-368 and G.S. 160A-207.

(c) *Duplicate copy.* Upon satisfactory proof that a license has been lost or destroyed, the tax collector shall furnish a duplicate for a fee as established from time to time.
(Code 1985, § 13-33; Ord. No. 274, § 5, 3-28-2022)

Sec. 13-45. Taxpayer's remedies.

(a) *Assertions of valid defense.* Any taxpayer asserting a valid defense to the enforcement of the collection of any license levied in this article shall proceed as provided in this section:

(1) A valid defense shall include the following:

a. A license imposed through clerical error.

b. An illegal license.

c. A license levied for an illegal purpose.

(2) If the license has been paid, the taxpayer, at any time within three years after such license became due, may make a demand for a refund of the license paid by submitting to the city council a written statement of his defense and a request for a refund thereof.

(b) *Action of governing body.* Upon receiving a taxpayer's written statement of defense and request for release or refund, the city council shall within 90 days after receipt of such request determine whether the taxpayer has a valid defense to the license imposed or any part thereof and shall either release or refund that portion of the amount that is determined to be in excess of the correct license liability or notify the taxpayer in writing that no release or refund will be made. The action of the city council on applications for refunds shall be recorded in its minutes. If a refund is made, the finance department shall forward such refund to the tax collector, who shall note on all records the amount of refund, check number and date.

(c) *Suit for recovery of license taxes.* If within 90 days after receiving a taxpayer's request for refund or under subsection (a) of this section, the city council has failed to refund the full amount requested by the taxpayer, has notified the taxpayer that no refund will be made, or has taken no action on the request, the taxpayer may bring a civil action against the city for the amount claimed. Such action may brought at any time within three years from the expiration of the period in which the city council is required to act.

(d) *Civil action.* Civil action brought pursuant to subsection (c) of this section shall be brought in the appropriate division of the general court of justice in the county. If, upon the trial, it is determined that the license or any part of it was illegal, or levied for an illegal purpose, or excessive as a result of a clerical error, judgment shall be rendered therefor with interest thereon at six percent per annum plus costs. The judgment shall be collected as in other civil actions. (Code 1985, § 13-34)

Sec. 13-46. Free licenses prohibited; exception.

No free license under this article shall be granted except to disabled veterans for peddling, provided such peddling is done on foot and not from any vehicle. Any such person must be approved by the county director of veterans affairs in order for the license to be granted. (Code 1985, § 13-35)

Sec. 13-47. Privilege tax on motor vehicles.

(a) *Imposed; scope.* Each motor vehicle licensed by the state which is resident within the city as of the date of license issuance or renewal shall be subject to an annual privilege tax of $30.00; provided at least $10.00 of the tax per year per vehicle shall be dedicated to and may only be expended for mass transit systems and mass transit-related activities. For purposes of determining whether the motor vehicle is resident within the city, the provisions of the Machinery Act (G.S. 105-271 et seq.) shall be applicable. Motor vehicle privilege taxes shall be subject to proration, release and refund in the same manner as are ad valorem taxes on motor vehicles pursuant to G.S. 105-330 et seq.

(b) *Exception for the elderly.* Any resident who is 65 years or older in the month in which his automobile registration expires may qualify, upon application, within 30 days of tax due date for a partial refund in the amount of $15.00, provided such resident's disposable income does not exceed $11,000.00. The qualifying disposable income will be adjusted automatically in the future to conform to any changes in the state's elderly

exemption threshold. Qualified elderly residents are to pay initially the entire $30.00 tax per vehicle; processing of the refund by the Charlotte-Mecklenburg tax collector will result in a check in the amount of $15.00 per vehicle being mailed to qualified elderly residents. If the vehicle is in both husband and wife's name, their combined disposable income must not exceed $11,000.00. For the purpose of this section, the term "disposable income" shall mean their adjusted gross income as defined for state income tax purposes in G.S. 105-134.5, plus all other moneys received from every source, other than gifts or inheritances received from a spouse, lineal ancestors or lineal descendants.

(c) *Administration enforcement.* The city may delegate to the county tax supervisor the authority to issue all or part of the tax bills for the tax imposed and may delegate to the Charlette-Mecklenburg tax collector the authority to collect all or part of the tax imposed in this section; and if so appointed, the tax supervisor, the tax collector and the county board of equalization and review shall respectively have the powers of listing, assessing, discovery, collection, levy, attachment, garnishment, release and rebate authorized to them under the Machinery Act to the same extent as such powers and authorities are available for the listing, assessing and collection of ad valorem taxes under the Machinery Act. The interest and penalties set forth in the Machinery Act shall be applicable to the listing, assessing and collection of the tax imposed in this section.

(d) *Due date.* For vehicles subject to the ad valorem property tax, the tax imposed in this section is due and payable on the same date that the property tax is due. For vehicles exempt from the ad valorem property tax but subject to the 1.5 percent tax on the gross receipts from the retail shortterm rental or lease of such vehicles, the tax imposed in this section is due and payable on the same date that the January gross receipts tax return is due.
(Code 1985, § 13-36)

Sec. 13-48. Privilege tax on garage and attic sales.

(a) *Restriction.* It shall be unlawful for any person to conduct more than four garage or attic sales in a residentially zoned area at any given address to any given name in any one fiscal year. Each sale may be held for two consecutive days.

(b) *Enforcement.* Zoning inspectors or police officers are empowered to enforce this section, including the issuance of citations.

(c) *Penalties and remedies.* A citation for the first offense of conducting an unlicensed or unlawful sale shall be $25.00, the second offense shall be for $50.00, and the third or any subsequent offense shall be for $100.00. The citation may be enforced, if unpaid, by either the issuance of a criminal summons, or it shall constitute a civil penalty to be recovered by the city in a civil action in the nature of a debt. Use of citations as a means of enforcement shall not preclude the city from exercising any other remedy by the immediate issuance of a criminal summons or the securing of an injunction, nor shall it prohibit a police officer from exercising any of his unlawful authority.
(Code 1985, § 13-37)

Secs. 13-49—13-75. Reserved.

DIVISION 2. SCHEDULES

Sec. 13-76. License tax schedules.

Any classification with an asterisk (*) placed before it must have health department permits.

Schedule A — Privilege License Taxes Based on Gross Sales/Receipts/Income

Businesses that are taxed under this schedule will use the formula below to calculate the tax amount due. In addition to paying on a gross receipts tax there may be other tax classifications required listed in schedule B and schedule C.

(105) All businesses, trades, professions, game devices or other undertaking, prosecuted for profit or gain, $0.60 per $1,000.00 of annual gross receipts: $50.00 minimum, $10,000.00 maximum.

Schedule B — Privilege License Taxes Limited Under North Carolina General Statutes

Listed below are classifications of business activities governed within the North Carolina Revenue Laws. Businesses conducting these activities are taxed under this schedule in addition to schedule A and schedule C if applicable.

(102) Advertising (outdoor). $35.00

Every person who is engaged in the business of outdoor advertising by means of signboards, poster boards or printed bulletins or any other outdoor advertising devices erected upon grounds, walls or roofs of buildings, or other advertising

(109) Auto garage $12.50

(111) Auto service station and accessories $12.50

Every person engaged in the servicing of motor vehicles, trailers or semitrailers, or engaged in servicing, selling or delivering to the user or consumer parts, tires, tools, batteries, electrical equipment or supplies, motor fuels or lubricants, any or all of the above. Provided that such license tax shall be paid for each place of business so operated or maintained, each

(112) Auto accessories at wholesale

(a) Every person engaged in receiving, buying, selling, distributing, exchanging or delivering automotive accessories, parts, tires, tools, fuels, lubricants, batteries or other automotive equipment or supplies, any or all of the above at wholesale, for each place of business $37.50

(b) Plus, for each tank wagon or truck operated on public streets . $25.00

(c) Every person engaged in the business of selling wholesale and having no place of business but selling to retail dealers by use of some form of vehicle $25.00

The term "wholesale" shall apply to those who receive, buy, sell, distribute, exchange or deliver to retail dealers, or sell otherwise to the consumer.

(115) Amusements $25.00

(124) Barbers (each). $2.50

(125) Beauty parlors (each) $2.50

(126) *Beer licenses, from May 1 to April 30, not prorated

(a) On-premises $15.00

(b) Off-premises $5.00

(c) Wholesale beer $37.50

(d) Wholesale wine and beer. $62.50

Chain stores per state revenue act. Subject to approval of police department.

(127) Bicycles, each dealer or agent selling, renting or repairing $25.00

(128) Boardinghouses, per room . $1.00

Minimum $25.00

(129) Bowling alleys, whether used or not, each alley $10.00

(131) Building contractor $10.00

(144) Chain store, each store over one, in addition to merchants' tax $50.00

(148) Circuses, dog and pony shows, and like amusements, per day $25.00

(150) Collection or claim agencies $50.00

Every person engaged in the business of operating for profit a collection agency for the purpose of collecting bills, notes, or to pay other indebtedness from one person in favor of another

(173) Electric light companies, furnishing electric light or power $3,000.00

(174) Electricians $50.00

(175) Elevators or sprinkler systems, selling and/or installing $100.00

(177) Employment agencies $100.00

(180) Express railway company, state revenue act $75.00

(188) Firearms (rifles, handguns, etc.)

(a) Firearms sale and/or manufacturers, including, but not limited to, rifles, handguns, shotguns, etc. $50.00

(b) Weapons, dealers in bowie knives, dirks, slingshots, leaded canes, iron or metallic knuckles or similar weapons. $200.00

(201) Games, for sports or plays operated for profit (golf, putt-putt) $25.00

(212) Heating contractors, hot air and air conditioning $50.00

(213) Hotels, motels

Every person engaged in the business of operating any hotel or motel, tourist court, tourist home or similar place advertising in any manner for transient patronage, or soliciting such business, in the city:

For each room $1.00

Minimum tax $25.00

(a) The lobby, clubroom, office, dining room, kitchen and rooms occupied by the owner or lessee of the premises, or members of his family, for his or their personal or private use, shall not be counted in determining the number of rooms for the basis of the tax.

(b) The tax provided for in this section shall apply whether the rental charges are made to patrons on a daily, weekly, biweekly or monthly basis. It is immaterial as to any particular room whether such room is occupied by a permanent guest.

(219B) Ice cream at retail $2.50

(241) Laundries, launderettes, and similar type businesses. $50.00

Each steam or electric laundry, including wet or damp wash laundry, and each business supplying or renting clean linen or towels or wearing apparel

(243) Loan companies, personal . $100.00

Persons lending money on personal securities, such as household and kitchen articles, watches, jewelry, automobiles, etc., by mortgage, pledge or otherwise, pawnbrokers excepted

(254) Manicuring, each $2.50

(265) Merchant itinerant, cash or money order $100.00

Merchant, other than an established retail merchant in

county, who transports goods to a building, vacant lot or alley, etc., and offers for sale at retail for less than six consecutive months

(268A) Motion picture shows, indoor, per screen $200.00

(269) Motorcycle dealers $12.50

Every person engaged in buying, selling, servicing, distributing or exchanging motorcycles, motorcycle supplies or equipment, for each place of business so operated

(270) Motor vehicle dealers

(a) Every person engaged in buying, selling or exchanging motor vehicles, trailers, semitrailers, tires, tools, batteries, electrical equipment, fuels, lubricants or automotive equipment, for each place of business so operated at retail and/or wholesale $25.00

(b) Seasonal, temporary, transient or itinerant nature, each location . . $300.00

(271) Music box (juke box) each . $5.00

License must be attached to machine before being placed in operation

(287) Oil dealers in lubricating

(a) Benzine, naphtha, gasoline and other products of like kind $50.00

(b) Or on each tank, wagon or truck operated on the public streets $25.00

(299) Pawnbrokers $275.00

(300) Peddlers cash or money order $25.00

(a) Person who travels from place to place with inventory and offers for sale at retail the actual inventory, occupying no space for more than 30 minutes during any 24-hour period. Must comply with chapter 6 of this Code and state regulations.

(b) Farmers selling their own produce must apply for grower's certification . . . . . Exempt

(301) Phonographs, tapes, recorders, etc.

(a) Each dealer or agent . . $5.00

(b) Service or repair $5.00

(302) Piano and or organ dealers $5.00

(304) Plumbers $50.00

(305) Pool tables, pocket billiards, or bagatelle tables, unless used for private amusement alone without charge, per location $25.00

The above tax shall apply whether the pool tables are operated by slot or otherwise.

(308) Pressing clubs (dry cleaning) $50.00

Includes nonresident and coin-operated dry cleaning machines

(318) Radio and/or TV

(a) Each dealer or agent . . $5.00

(b) Repair or service $5.00

(320) Restaurants

(a) Seating capacity of four customers or fewer $25.00

(b) Seating capacity of five or more $42.50

(335) Shooting galleries..... $25.00

Whether used or not a place for any other games or play with or without name (unless used for private amusement or exercise alone, without charge)

(336) Sign erectors, sign hangers $35.00

Construction, repairing, repainting or erecting any sign on walls, buildings or roofs, or hanging or supported steps over streets or sidewalks, any and all work in which is used ladders or scaffolding

(338) Skating rinks/swimming pools..... $25.00

(339) Slot machines

No license tax shall be charged upon or issued for a slot machine illegal under the state law, but this same schedule is to apply to any not illegal

(a) Pinball machines and other amusement games and devices, per location $25.00

(b) Each panorama or other machine for the showing of small motion pictures, whether with or without music, and requiring a deposit of more than $0.09 ..... $25.00

(341) Sundries (soft drinks, tobacco)..... $4.00

The sundries license shall be procured and tax paid on any one or more of the following business activities:

(a) Sale of sandwiches in drugstores, service stations or any stands or places not licensed and taxed as a restaurant.

(b) Operating, maintaining or placing on location any of the following types of dispensers or machines:

(1) Dispensers of cigarettes or other tobacco products.

(2) Dispensers of soft drinks.

(3) Dispensers of food or other merchandise.

(4) Weighing machines.

(c) Operating a soda fountain or soft drink stand.

(d) Retailing or jobbing cigarettes, cigars, chewing tobacco, snuff or any other tobacco product.

License for each location, regardless of the number of activities engaged in

(342) Specialty markets (flea markets)..... $200.00

Person who rents space, other than permanent retail store, to someone selling retail

(350) Telegraph companies, state revenue act $50.00

(351) Trailer parks $12.50

(358) Undertakers..... $50.00

(363) Video games, each machine $5.00

Each electronic video game's serial number must be shown on the application. The license must be shown in a conspicuous place.

(364) Video movies, selling, leasing, furnishing and/or distributing. G.S. 105-102.5 $25.00

(373) Wine license, from May 1 to April 30, not prorated:

(a) *On-premises..... $15.00

(b) Off-premises $10.00

(c) Wholesale wine..... $37.50

(d) Chain stores, per state revenue act, subject to approval of police department

Schedule C—Privilege License Taxes Limited by City Ordinance

Business categories in the schedule are specifically taxed. Businesses conducting these activities are taxed under this schedule in addition to schedule A and schedule B if applicable.

(122) Bankrupt or fire stock $450.00

Every itinerant salesman or merchant who shall expose for sale, either on the street or in a house rented temporarily for that purpose, any goods, wares or merchandise, bankrupt stock, or fire stock, not being a regular merchant in the city, shall apply for in advance and procure a license for the privilege of transacting such business.

(143) Catering trucks, each truck $50.00

Selling tobacco, soft drinks, wrapped sandwiches and prepared food from a truck; does not include sale of ice cream and must be approved by health department.

(146) Christmas trees $50.00

Dealers in Christmas trees and perishable Christmas decorations, not prorated, each lot

(155) Coupon books $200.00

(202) Garage sales, per day..... $5.00

See section 13-48. Valid only for day or days issued and not transferable; cash or money order only

(220) Ice cream vendors, each vehicle..... $75.00

Ice cream and flavored ice products peddlers who retail from a cart, truck, wagon or other type vehicle.

(272) Miscellaneous

Every person engaged in business carried on or enjoyed within the corporate limits of the city shall apply for and pay a privilege license tax unless specifically exempted by a local, state or federal authority. In those cases where the privilege license tax amount cannot be determined by any other means, the tax administrator shall determine the tax amount due using the following basis:

(a) One to five full- or part-time employees at any one time during the year $150.00

(b) Six to 15 full- or part-time employees at any one time during the year $500.00

(c) Sixteen to 25 or more full- or part-time employees at any one time during the year.. $1,000.00

(d)	Twenty-six or more full- or part-time employees at any one time during the year	$2,000.00

The tax is not subject to be prorated for a period of less than one year. The number of full- or part-time employees to be used in determining this tax shall be the maximum number of full- or part-time employees working out of this business location at any one time during the license year and shall include owners, management and persons compensated in any way, including commission for work done at or for this business location.

(307)	Pushcarts	$50.00
(341)	Taxicabs	$15.00

Subject to approval of police department and city Code. In addition to city tax of $20.00 per vehicle January 1 through December 31. As of January 31, delinquent license fees and/or penalties shall become the responsibility of the taxicab company under which it operates.

(Ord. No. 4166, § 1, 5-11-2009; Ord. No. 8194, § 3, 12-19-2016; Ord. No. 8195, § 1, 12-21-2016)

Chapter 14

MOTOR VEHICLES AND TRAFFIC*

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*__Charter reference—__Traffic and parking, art. II.

__Cross references—__Ground rules for motor vehicles, § 4-3; offenses and miscellaneous provisions, ch. 15; noise from motor vehicles, § 15-67; traffic in public parks, § 15-134; police, ch. 16; streets, sidewalks and other public places, ch. 19; vehicles for hire, ch. 22.

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ARTICLE I. IN GENERAL

Sec. 14-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

ADA means the Americans with Disabilities Act.

Bicycle means as defined in G.S. 20-171.8.

Commercial Vehicle, Large means as defined in Article 2.3 of the Charlotte Unified Development Ordinance.

Commercial Vehicle, Light means as defined in Article 2.3 of the Charlotte Unified Development Ordinance.

Commercial Vehicle, Medium means as defined in Article 2.3 of the Charlotte Unified Development Ordinance.

Crosswalk means:

(1) That portion of a roadway ordinarily included within the prolongation or connection of the lateral lines of sidewalks at intersections.

(2) Any portion of a roadway distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Department means the city department of transportation.

Director means the director of the department of transportation or his designees.

Driver means the operator of a vehicle, as defined in this section. The terms "driver" and "operator" and their cognates are synonymous.

Electric assisted bicycle means a bicycle with two or three wheels that is equipped with a seat or saddle for use by the rider, fully operable pedals for human propulsion, and an electric motor of no more than 750 watts, whose maximum speed on a level surface when powered solely by such a motor is no greater than 20 miles per hour.

Electric standup scooter means a device with no more than three 12-inch or smaller diameter wheels that has handlebars, is designed to be stood upon by the user while riding, and is powered by an electric motor that is capable of propelling the device with or without human propulsion at a speed no greater than 15 miles per hour on a paved level surface. The device shall not exceed 50 pounds in weight.

Electric vehicle supply/service equipment (EVSE) means the equipment designed and used for the purpose of transferring energy from the electric supply system to a plug-in electric vehicle. "EVSE" may deliver either alternating current or, consistent with fast charging equipment standards, direct current electricity. "EVSE" is synonymous with "electric vehicle charging station.

Gross vehicle weight rating (GVWR) means the value specified by the manufacturer as the maximum loaded weight of a vehicle. The gross vehicle weight rating of a combination vehicle is the gross vehicle weight rating of the power unit plus the gross vehicle weight rating of the towed unit. When a vehicle is determined by an enforcement officer to be structurally altered from the manufacturer's original design, the license weight or the total weight of the vehicle or combination of vehicles may be deemed as the gross vehicle weight rating for the purpose of enforcing this chapter.

Highway means the entire width between property or right-of-way lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter of right for the purposes of vehicular traffic. The terms "street" and "highway" and their cognates are synonymous.

Intersection means the area embraced within the prolongation of the lateral curblines or, if none, the lateral boundary lines of the roadways of two or more highways which join one another at any angle whether or not one such highway crosses the other. Where a highway includes two roadways 30 feet or more apart, every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. If such intersecting highway

also includes two roadways 30 feet or more apart, every crossing of two roadways of such highways shall be regarded as a separate intersection.

Median means that portion of a street or highway, which physically separates the lanes of vehicular traffic.

Motor vehicle means every vehicle, which is self-propelled, and every vehicle designed to run upon the highways, which is pulled by a self-propelled vehicle. This does not include mopeds as defined in G.S. 20-4.01(27)j, electric-assisted bicycles, or electric standup scooters.

Official time standard. Whenever certain hours are named in this chapter, they shall mean standard time or daylight saving time as may be in current use in the city.

Official traffic control devices means all signs, signals, markings and devices, whether temporary or permanent, not inconsistent with this chapter, placed or erected by proper authority for the purpose of regulating, warning or guiding traffic or parking, including parking meters.

Official traffic signal means any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Operator means a person in actual physical control of a vehicle which is in motion or which has the engine running. The terms "operator" and "driver" and their cognates are synonymous.

Park means the standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

Pedestrian means any person afoot.

Plug-in electric vehicle means as defined in G.S. 20-4.01(28b).

Police officer means any officer of the Charlotte-Mecklenburg Police Department and any other officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

Private road and *private driveway* mean every road or driveway not open to the use of the public as a matter of right for the purpose of vehicular traffic.

Public bicycle path means as defined in G.S. 20-171.8.

Railroad means a carrier, including the city, of persons or property upon cars, other than streetcars, operated upon stationary rails.

Right-of-way means the privilege of the immediate use of the roadway.

Roadway means that portion of a street improved, designed or ordinarily used for vehicular travel, exclusive of the shoulder. If a highway includes two or more separate roadways, the term "roadway" refers to any such roadway separately but not to all such roadways collectively.

Safety zone means the traffic island or other space officially set aside within a highway for the exclusive use of pedestrians and which is so plainly marked or indicated by proper signs as to be plainly visible at all times while set apart as a safety zone.

Sidewalk means that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

Standing means any stopping of a vehicle, whether occupied or not.

Stop, when required, means complete cessation of movement.

Stop and *stopping,* when prohibited, mean any stopping of a vehicle except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic control sign or signal.

Street means a highway, as defined in this section. The terms "street" and "highway" and their cognates are synonymous.

Traffic means pedestrians, ridden or herded animals, vehicles, streetcars, and other conveyances either singly or together while using any street for purposes of travel.

Vehicle means every device in, upon, or by which any person or property is or may be transported or drawn upon a street or highway, except devices moved by human power or used exclusively upon fixed rails or tracks. For the purposes of this chapter, bicycles, electric assisted bicycles, and electric standup scooters shall be deemed vehicles. Every rider of a bicycle, electric assisted bicycle, or electric standup scooter upon a highway shall be subject to the sections of this chapter applicable to the driver of a vehicle except those which by their nature can have no application. This term shall not include a device which is designed for and intended to be used as a means of transportation for a person with a mobility impairment, or who uses the device for mobility enhancement, is suitable for use both inside and outside a building, including on sidewalks, and is limited by design to 15 miles per hour when the device is being operated by a person with a mobility impairment, or who uses the device for mobility enhancement. This term shall not include an electric personal assistive mobility device as defined in G.S. 20-4.01(7b).
(Code 1985, § 14-1; Ord. No. 2667, § 1, 8-23-2004; Ord. No. 3655, § 2, 7-23-2007; Ord. No. 9490, § 1.A, 1-14-2019; Ord. No. 649, § 1, 11-13-2023)

Cross reference—Definitions generally, § 1-2.

Sec. 14-2. Emergency vehicles; exemptions.

(a) The sections of this chapter regulating the operation, parking, and standing of vehicles shall not apply to:

(1) Police, fire department and fire patrol vehicles, or ambulances and rescue squad emergency service vehicles, or public transportation vehicles when an exemption from such sections is reasonably necessary in the actual discharge of official duties and responsibilities; or

(2) Vehicles of public service corporations when an exemption from such sections is reasonably necessary in the actual installation or repair to public service equipment on or above streets and sidewalks.

(b) This section shall not operate to relieve the driver of any such vehicle from the duty to drive with due regard for the safety of all persons and property using the streets, nor shall this section protect the driver of any such vehicle from the consequences of his reckless disregard of the safety of others.

(c) This section shall not operate to relieve the driver of any such vehicle from the duty to always ensure an accessible path that meets ADA standards for pedestrians.
(Code 1985, § 14-3; Ord. No. 3655, § 3, 7-23-2007; Ord. No. 649, § 1, 11-13-2023)

Sec. 14-3. Use of coasters, roller skates and similar devices.

It shall be unlawful to go on roller skates, inline skates, a skateboard, or riding in or by means of any coaster, toy vehicles, or similar devices upon any roadway except while crossing a street on a crosswalk.
(Code 1985, § 14-9)

Sec. 14-4. Clinging to moving vehicles.

It shall be unlawful for any person riding upon any bicycle, electric assisted bicycle, electric standup scooter, motorcycle, coaster, sled, roller skates, or any toy vehicle to attach such or himself to any streetcar or moving vehicle upon any roadway.
(Code 1985, § 14-10; Ord. No. 9490, § 1.A, 1-14-2019)

Sec. 14-5. Removal of glass or injurious substances dropped from wrecked or damaged vehicles.

It shall be unlawful for any person removing a wrecked or damaged vehicle from a highway to fail to remove any glass or other injurious substance dropped upon the highway from such vehicle.
(Code 1985, § 14-11)

Sec. 14-6. Duty upon striking street fixtures or traffic control devices.

The driver of any vehicle involved in an accident resulting only in damage to features or traffic control devices legally upon or adjacent to a street or highway shall:

(1) Take reasonable steps to locate and notify the owner or person in charge of such property of such fact and of his name and address and of the registration of the vehicle he is driving;

(2) Upon request and if available exhibit his operator's or chauffeur's license; and

(3) Make a report of such accident.

(Code 1985, § 14-12)

Sec. 14-7. Boarding or alighting from moving vehicle.

It shall be unlawful to board or alight from any vehicle while such vehicle is in motion.

(Code 1985, § 14-13)

Sec. 14-8. Unlawful riding.

It shall be unlawful to ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This section shall not apply to any employee engaged in the necessary discharge of duty or to persons riding within truck bodies in space intended for merchandise.

(Code 1985, § 14-14)

Sec. 14-9. Traffic control by off-duty officers.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Off-duty police officer means a police officer who is not currently engaged in duty assignment.

Traffic control officer means a law enforcement officer appointed pursuant to G.S. 20-114.1.

(b) *Permit required.* It shall be unlawful for any person or other public or private entity (referred to as "entity") to engage or employ an off-duty police officer or traffic control officer to regulate or control traffic in or along any public street within the corporate limits without a valid unexpired private traffic control permit issued by the director pursuant to this section. Each day that an entity violates this subsection shall constitute a separate offense.

(c) *Application for permit and requirements.* A private traffic control permit application and a private traffic control permit shall be subject to the following:

(1) An application shall be submitted to the department and shall include, at a minimum, the following:

a. The name and address of the entity;

b. The name and address of the site location;

c. The type of traffic control sought; and

d. The hours and days that the traffic control would be utilized.

(2) In deciding whether to issue a permit, the department shall consider, among other things, whether the requested traffic control services fairly serve the interests of all motorists and promote the preservation of public safety.

(3) A permit shall require the entity to indemnify and hold the city harmless from and against any liability of the off-duty officer or traffic control officer, including, but not limited to, wrongful death, bodily injury or property damage that is proximately caused by the negligence of the off-duty police officer or traffic control officer while directing or controlling traffic for compensation for the entity at the designated site location.

(4) A permit shall require the entity to provide proof of insurance with coverage and limits prescribed by the department.

(5) A permit shall be kept on the premises of the approved site location.

(6) The director may revoke any permit issued under this section based upon a determination that the continued control or regulation of traffic at the site location unnecessarily interferes with the public safety or convenience.

(7) An entity shall be required to pay application and permit fees, the amount of which shall be established pursuant to section 2-1 of this Code.

(d) *Exceptions.* This section shall not apply to the use of off duty-police officers or traffic control officers when such use is required or approved through a separate city permitting process.

(e) *Duties and responsibilities maintained.* Nothing contained in this section shall prevent or prohibit any on-duty or off-duty police officer, law enforcement officer or traffic control officer from exercising and fulfilling all duties and responsibilities of his position.
(Code 1985, § 14-26)

Sec. 14-10. Child protection helmets.

(a) No person under the age of 16 shall use, operate or be a passenger on a bicycle, electric assisted bicycle, inline skates, roller skates, skateboard, or scooter on a public roadway, public bicycle path or other public right-of-way unless the person wears a protective helmet of good fit, fastened securely upon the head with the straps of the helmet.

(b) No person under the age of 16 shall operate an electric standup scooter on a public roadway, public bicycle path or other public right-of-way unless the person wears a protective helmet of good fit, fastened securely upon the head with the straps of the helmet.

(c) It shall be unlawful for a parent or guardian to knowingly allow his child or ward to so operate or ride a bicycle, electric assisted bicycle, electric standup scooter, inline skates, roller skates, skateboard, or scooter without wearing a protective helmet of good fit, fastened securely upon the head with straps of the helmet.

(d) Such helmet shall meet or exceed the safety standards set forth by the U.S. Consumer Products Safety Commission, the American National Standards Institute, or the Snell Memorial Foundation.

(e) A civil penalty may be waived as to any first-time violator upon presentation of evidence that the violator has purchased or procured an approved helmet and demonstrated the intention of using the helmet as required by law.
(Code 1985, § 14-108; Ord. No. 9490, § 1.A, 1-14-2019)

Secs. 14-11—14-35. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

DIVISION 1. GENERALLY

Sec. 14-36. Director's authority.

Under this chapter the director is authorized to:

(1) Determine and provide for the installation, removal, relocation and change of official traffic control devices in accordance with accepted traffic engineering principles and standards. All traffic control devices shall conform to the manual and specifications approved by the state board of transportation or a resolution adopted by the city council. All traffic control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic control devices.

(2) Establish speed limits as authorized by G.S. 20-141 and G.S. 20-141.1.

(3) Establish high occupancy vehicle lanes as authorized by G.S. 20-146.2.

(4) Modify the method of turning at intersections as authorized by G.S. 20-153.

(5) Provide for the control of vehicles as authorized by G.S. 20-158.

*__Cross reference—__Administration, ch. 2.

(6) Designate main-traveled or through highways and streets and erect yield signs as authorized by G.S. 20-158.1.

(7) Regulate traffic by means of traffic or semaphores or other signaling devices on any portion of the highway where traffic is heavy or continuous as authorized by G.S. 20-169(1).

(8) Prohibit other than one-way traffic upon certain highways as authorized by G.S. 20-169(2).

(9) Regulate the speed of vehicles on highways in public parks as authorized by G.S. 20-169(4).

(10) Designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and place and maintain appropriate markings, signs, barriers or other devices, both illuminated and nonilluminated, to give notice thereof, regardless of the centerline of the roadway.

(11) Mark lanes for traffic on street pavements at such places as deemed advisable, consistent with the city traffic ordinances.

(12) Determine those intersections at which drivers of vehicles shall not make a right, left or U-turn and place proper signs at such intersections.

(13) Place pavement markings, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections.

(14) Install and maintain speed humps and other traffic calming devices.

(15) Determine the location of passenger zones and freight loading zones and place and maintain appropriate signs indicating the zones and stating the hours during which this subsection is applicable.

(16) Establish bus stops and taxicab stands and stands for other passenger common-carrier motor vehicles on public streets.

(16a) Establish public bicycle paths.

(17) With the approval of the city manager or the manager's designated representative, make regulations necessary to make effective the provisions of the city traffic ordinances and make and enforce temporary regulations to cover emergencies or special conditions.

(18) Make temporary rules regulating traffic or test traffic control devices under actual conditions of traffic.

(19) Designate and maintain, by appropriate devices, marks, or lines, pedestrian crosswalks.

(20) Establish pedestrian safety zones.

(21) Determine the location, height, spacing and intensity of streetlights to be placed on city streets, city parking lots and other city property as deemed necessary. At no time will any part of any light be blocked out or obliterated by any device that limits the output of such light.

(22) Exercise the powers and perform the duties provided in this chapter over the streets and roads at Charlotte/Douglas International Airport.

(23) Establish truck routes.

(24) Prohibit or regulate on-street parking with signs and parking meters.

(25) Establish and eliminate residential parking permit zones.

(26) Issue permits authorizing the applicant to move a vehicle over the city streets, when the length, width or height of the vehicle exceeds the maximum specified in G.S. 20-39 et seq. The permit shall at all times be carried in the vehicle to which it refers and shall be open to inspection by any law enforcement officer. The director may also specify terms and conditions of the permit, including, but not limited to, the time, place, and manner of operation of the vehicle.

(Code 1985, §§ 14-57—14-60, 14-62—14-72, 14-123, 14-125, 14-131, 14-132, 14-185, 14-219; Ord. No. 649, § 2, 11-13-2023)

Secs. 14-37—14-60. Reserved.

DIVISION 2. PENALTIES AND ENFORCEMENT

Sec. 14-61. Civil penalties.

(a) Except as set forth in subsection (b) of this section, and unless otherwise provided, a violation of this chapter may be enforced by the issuance of a civil penalty in the amount of $25.00.

(b) Notwithstanding subsection (a) of this section, as provided in section 2-21, the following violations may be enforced by the issuance of a civil penalty in the amount of $100.00:

(1) Rush hour parking violation, as provided in section 14-216(a)(1) or 14-159(b).

(2) Leaving unattended vehicle violation, as provided in section 14-221.

(3) Handicapped parking, as provided in section 14-216(a)(2).

(4) Blocking curb cut, as provided in section 14-216(a)(3).

(5) Fire hydrant parking, as provided in section 14-216(a)(4).

(6) Fire station parking, as provided in section 14-216(a)(5).

(7) Fire lane parking, as provided in section 14-216(a)(6).

(8) Pedicabs, as provided in section 14-254.

(9) Traffic control by off-duty officers, as provided in section 14-9.

(10) Parking in public bicycle path, as provided in section 14-131.

(11) Parking violation on a street that the streetcar operates on, as provided in section 14- 216(a)(7a).

(12) Commercial vehicle parking, as provided in section 14-156 and 14-157.

(13) Obstructing traffic, as provided in section 14-126.

(14) Parking in space reserved for plug-in electric vehicle while charging, as provided in section 14-216(a)(26).

(15) Parking without loading or unloading, as provided in section 14-219.

(16) Parking on a sidewalk, as provided in section 14-216(a)(9).

(c) An additional late fee civil penalty in the amount of $25.00 may be assessed if the initial civil penalty is not paid or appealed within 30 days from the date of issuance.

(d) Each hour that a vehicle remains illegally parked in a metered or time-limited space, as provided in section 14-216(a)(8), is a separate violation and is subject to the issuance of an additional parking ticket and an additional civil penalty.

(Code 1985, § 14-81(a), (b); Ord. No. 2447, § 6, 11-24-2003; Ord. No. 274, § 6, 3-28-2022; Ord. No. 649, § 2, 11-13-2023)

Sec. 14-62. Reserved.

Editor's note—Ord. No. 649, § 2, adopted Nov. 13, 2023, repealed § 14-62, which pertained to misdemeanors and infractions and derived from Code 1985, § 14-81(c).

Sec. 14-63. Towing and impoundment of vehicles authorized.

(a) Whenever a police officer or other authorized city employee or agent finds a motor vehicle that has been wrecked or disabled upon the public streets or ways of the city, or upon city property, or that may have been parked in violation of a city ordinance or state law, such individual may have the vehicle towed from the area.

(b) A police officer may have a vehicle removed to a police storage area if:

(1) The vehicle has been involved in a hit and run accident;

(2) The vehicle was the subject of theft;

(3) The vehicle was being used in the commission of a felony;

(4) The vehicle has been parked in a prohibited parking area in violation of a city ordinance or state law; or

(5) The driver was operating the vehicle without a driver's license or while subject to an impairing substance.

(Code 1985, § 14-47)

Sec. 14-64. Towing of illegally parked vehicles.

Any illegally parked vehicle may be towed. Any vehicle that has been towed for a parking violation is to be held until the towing fee and penalties related to all outstanding parking tickets and penalties owed to the city are paid in full or a bond is posted in the amount of the towing fee and all outstanding parking tickets and penalties. Payment of the towing fee and all outstanding parking tickets and penalties shall not constitute a waiver of a person's right to contest the towing or the outstanding parking tickets and penalties.

(Code 1985, § 14-82)

Sec. 14-65. Wheel locks.

(a) An illegally parked vehicle for which there are three or more outstanding, unpaid, and overdue parking tickets for a period of 90 days or more may be immobilized through the use of wheel locks. Any vehicle that has been immobilized is to remain immobilized until an immobilization fee and penalties related to all outstanding parking tickets and penalties owed to the city are paid in full or a bond is posted in the amount of the immobilization fee and all outstanding parking tickets and penalties. Payment of the immobilization fee and all outstanding parking tickets and penalties shall not constitute a waiver of a person's right to contest the immobilization or the outstanding parking tickets and penalties.

(b) If a wheel lock is attached to a vehicle, a notice shall be affixed to the windshield or other part of the vehicle so as to be readily visible. The notice shall warn that the vehicle has been immobilized and that any attempt to move the vehicle may result in damage thereto. The notice shall also state the total amount of civil penalties due for parking tickets which are overdue, unpaid, and attributable to such vehicle and that an immobilization fee is also being charged. The address and telephone number to be contacted to pay the charges and have the wheel lock removed shall also be listed. The city shall not be responsible for any damage to an immobilized vehicle resulting from unauthorized attempts to free or move that vehicle.

(c) The director is authorized to establish and revise, from time to time, an immobilization fee in an amount that does not exceed $50.00.

(Code 1985, § 14-83)

Sec. 14-66. Appeals.

A violation enforced through the issuance of a civil penalty may be appealed pursuant to section 2-25 of this Code.

(Code 1985, § 14-84)

Secs. 14-67—14-95. Reserved.

ARTICLE III. TRAFFIC CONTROL SIGNS, SIGNALS AND DEVICES*

Sec. 14-96. Display of unauthorized signs, signals, or markings.

(a) It shall be unlawful to place, maintain, or display upon or in view of any street or highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic control device or railroad sign or signal, which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any traffic device or any railroad sign or signal.

(b) It shall be unlawful to place or maintain any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information of a type that cannot be mistaken for official signs.

*__State law reference—__Authority, G.S. 20-158, 136-31.

(c) Every such prohibited sign, signal, or marking is hereby declared to be a public nuisance, and the city may remove the sign, signal, or marking or cause it to be removed without notice.
(Code 1985, § 14-220)

Sec. 14-97. Interference with official devices or railroad signs or signals.

It shall be unlawful for any person without lawful authority to attempt to or in fact alter, deface, injure, knock down, or remove any official traffic control device or any railroad signs or signals or any inscription, shield or insignia thereon or any other part thereof, or to activate a device to change a traffic control signal at an intersection for a purpose other than to facilitate crossing at the intersection.
(Code 1985, § 14-221)

Secs. 14-98—14-125. Reserved.

ARTICLE IV. OPERATION OF VEHICLES*

DIVISION 1. GENERALLY

Sec. 14-126. Stop when traffic obstructed.

It shall be unlawful for the operator of any vehicle to enter an intersection or marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indicating to proceed.
(Code 1985, § 14-122)

Sec. 14-127. Stopping in obedience to direction of school crossing guard or patrol.

It shall be unlawful for the operator of any vehicle to fail to stop and remain stopped in obedience to any hand signal, flag, stop sign or audible signal given by a school crossing guard or school patrol in the performance of his duties.
(Code 1985, § 14-134)

Sec. 14-128. Turns at intersecting streets; unlawful procedure.

(a) It shall be unlawful for the operator of a vehicle traveling upon a street that is intersected by another street to turn from such street for the purpose of entering the intersecting street except at and through an intersection. Turns at the intersection shall be made in accordance with applicable traffic rules and regulations. The purpose and intent of this section is to make it unlawful for the operator of any vehicle to turn from one street onto property which abuts on one or more of the intersecting streets in order to enter the intersecting street. This section shall not apply to the operator of a vehicle who turns from one street onto property abutting such street for the purpose of stopping at a business or other establishment located thereon.

(b) Operation of a vehicle in the manner described in subsection (a) of this section, without stopping at a business or other establishment, shall be deemed prima facie evidence of the driver's intent to violate this section.
(Code 1985, § 14-135)

Sec. 14-129. Oversized vehicles.

It shall be unlawful for any person to operate, drive, stop, stand, or park a vehicle over the city streets, when the length, width or height of the vehicle exceeds the maximum specified in G.S. ch. 20, article 3, without a permit or in violation of the terms and conditions of the permit issued pursuant to subsection 14-36(26).
(Code 1985, § 14-57(f); Ord. No. 649, § 3, 11-13-2023)

Sec. 14-130. Driving on sidewalk.

It shall be unlawful to operate, drive, stop, stand, or park a vehicle upon any sidewalk or sidewalk area except at a permanent or temporary driveway. This provision shall not be applicable to non-motorized bicycles, electric assisted bicycles operated at a speed of no more than 15 miles per

*__State law reference—__Operation of vehicles and rules of the road, G.S. 20-138.1 et seq.

hour, and electric standup scooters, which may be operated on sidewalks, except as provided in section 14-251.
(Ord. No. 2667, § 2, 8-23-2004; Ord. No. 9490, § 1.C, 1-14-2019; Ord. No. 649, § 3, 11-13-2023)

Sec. 14-131. Blocking or obstructing public bicycle paths.

It shall be unlawful to operate, drive, stop, stand or park a motor vehicle on or across a designated bicycle path, except when it is reasonable and necessary:

(a) To enter or leave a driveway; or

(b) To enter or leave a legal curbside parking space; or

(c) To cross an intersection; or

(d) To make a turn within an intersection; or

(e) To comply with the direction of any law enforcement officer or other person authorized to enforce this rule; or

(f) To avoid an obstacle that leaves fewer than ten feet available for the free movement of vehicular traffic.

Notwithstanding any other ordinance, no person shall drive a vehicle on or across a designated bicycle lane in such manner as to interfere with the safety and passage of persons operating bicycles thereon.
(Ord. No. 649, § 3, 11-13-2023)

Secs. 14-132—14-155. Reserved.

DIVISION 2. COMMERCIAL VEHICLES

Sec. 14-156. Posted truck restrictions.

It shall be unlawful to operate, drive, stop, stand, or park a large commercial vehicle as defined in Article 2-3 of the Charlotte Unified Development Ordinance on a street or any portion of a street in violation of a posted truck restriction or prohibition.
(Ord. No. 649, § 3, 11-13-2023)

Sec. 14-157. Commercial trucks in residential zones.

It shall be unlawful to operate, drive, stop, stand, or park a large or medium commercial vehicle upon any street in a residentially zoned district other than for the sole and exclusive purpose of loading or unloading of materials, performing work of a temporary nature, or gaining access to other streets in the area for the same purposes. This section shall not apply to the operator of a vehicle that is being used in furtherance of a governmental or public purpose.
(Code 1985, § 14-183.1); Ord. No. 649, § 3, 11-13-2023)

Sec. 14-158. Truck routes.

(a) All large commercial vehicles entering the city destined to any point outside the city and not taking on or discharging any goods, wares, or merchandise within the city limits shall travel exclusively on established truck routes and on the parts of such truck routes as shall constitute the shortest and most direct route from the point of entrance into the city and departure from the city.

(b) All large commercial vehicles entering the city destined to any point within the city shall travel exclusively on established truck routes to the nearest point on such truck routes to their destination and, upon discharging their load, shall return to the nearest truck route for their movement out of the city or to some other point within the city.

(c) All large commercial vehicles that leave the nearest point on an established truck route to a destination off a truck route using city streets shall have a bill of lading, a delivery slip, or evidence to show point of destination or origin.

(d) It shall be unlawful for the operator of a large commercial vehicle to fail to comply with the requirements of this section.
(Code 1985, § 14-22; Ord. No. 649, § 3, 11-13-2023)

Sec. 14-159. Downtown commercial vehicle restrictions.

(a) It shall be unlawful to operate, drive, stop, stand or park a large or medium commercial vehicle to engage in through truck traffic on any

public street located within the area bounded by I-277 and I-77 other than Graham Street, Brooklyn Village Avenue, McDowell Street, or 11th Street.

(b) It shall be unlawful to operate, drive, stop, stand, or park a large or medium commercial vehicle on a public street in the area bounded by I-277 and I-77 between the hours of 7:00 a.m. to 9:00 a.m. or 4:00 p.m. to 6:00 p.m. Monday through Friday without a permit issued pursuant to subsection (c) of this section or in violation of the terms of a permit issued pursuant to subsection (c) of this section.

(c) Upon request, the city may issue a downtown commercial vehicle permit to allow for a variance from subsection (b) of this section. In deciding whether to issue a permit, the city shall consider the need for the requested variance in light of the possible disruption to rush hour traffic resulting from the variance. A permit may include terms and conditions that specify, among other things, the time of day, number of days, days of the week, location, and manner of operation of the variance. The city retains the right to revoke a permit issued pursuant to this subsection at any time.
(Code 1985, § 14-24; Ord. No. 649, § 3, 11-13-2023)

Secs. 14-160—14-185. Reserved.

DIVISION 3. TRAFFIC CONTROL PHOTOGRAPHIC SYSTEMS

Sec. 14-186. Definitions.

In addition to the definitions set forth in section 14-1, the following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

In operation means operating in good working condition.

System location means the approach to an intersection toward which a photographic, video or electronic camera is directed and is in operation.

Traffic control photographic system means an electronic system consisting of a photographic, video or electronic camera and a vehicle sensor installed to work in conjunction with an official traffic control and to automatically produce photographs, video or digital images of each vehicle violating a standard traffic control.

Vehicle owner means the person identified by the state division of motor vehicles as the registered owner of a vehicle.
(Code 1985, § 14-226)

Cross reference—Definitions generally, § 1-2.

Sec. 14-187. Administration; citations for violations.

(a) The department shall administer the traffic control photographic program and shall maintain a list of system locations where traffic control photographic systems are installed.

(b) Any citation for a violation of G.S. 20-158 issued by an officer of the Charlotte-Mecklenburg Police Department at a system location shall be treated in the same manner as prescribed in this division.

(c) The citation shall clearly state the manner in which the violation may be appealed. The citation shall be processed by city officials or agents and shall be forwarded by personal service or first class mail to the owner's address as given on the motor vehicle registration.
(Code 1985, § 14-227)

Sec. 14-188. Offense.

(a) It shall be unlawful for a vehicle to cross the stop line at a system location when the traffic signal for that vehicle's direction of travel is emitting a steady red light, or for a vehicle to violate any other traffic regulation specified in G.S. 20-158.

(b) The owner of a vehicle shall be responsible for a violation unless the owner can furnish evidence that the vehicle was, at the time of the violation, in the care, custody, or control of another person. The owner of the vehicle shall not be responsible for the violation if the owner

of the vehicle, within 30 days after notification of the violation, furnishes the officials or agents of the city either of the following:

(1) An affidavit stating the name and address of the person or company who had the care, custody, and control of the vehicle; or

(2) An affidavit stating that the vehicle involved was, at the time, stolen. The affidavit must be supported with evidence that supports the affidavit, including insurance or police report information.

(c) Subsection (b) of this section shall not apply, and the registered owner of the vehicle shall not be responsible for the violation, if notification of the violation is given to the registered owner of the vehicle more than 90 days after the date of the violation.

(d) For purpose of this division, notification of the violation shall be deemed to have to have been given on the date that the citation is issued.
(Code 1985, § 14-228; Ord. No. 2343, § 1, 7-28-2003)

Sec. 14-189. Penalty.

A violation detected by a traffic control photographic system shall be deemed a noncriminal violation for which a civil penalty of $75.00 shall be assessed, and for which no points authorized by G.S. 20-16(c) shall be assigned to the owner or driver of the vehicle nor insurance points as authorized by G.S. 58-36-65. The owner of the vehicle shall be issued a citation which shall clearly state the manner in which the violation may be challenged, and the owner shall comply with the directions on the citation. The citation shall be processed by officials or agents of the city and shall be forwarded by personal service or first class mail to the address given on the motor vehicle registration. If the owner fails, within 30 days of notification of the violation, to pay the civil penalty, appeal the citation, or respond in accordance with section 14-188(b), the owner shall have waived the right to contest responsibility for the violation, and shall be assessed an additional civil penalty of $100.00. The city may establish procedures for the collection of these penalties and may enforce the penalties by civil action in the nature of debt.
(Code 1985, § 14-229; Ord. No. 2343, § 2, 7-28-2003; Ord. No. 1171, § 1, 6-22-2026)

Sec. 14-190. Appeals.

A notice of appeal may be filed within 30 days after notification of the violation under this division and must be accompanied by an appeal bond in an amount equal to the civil penalty. Appeals shall be heard through an administrative process established by the city department of transportation, which process shall include the right to a quasi-judicial hearing. The hearing officer's decision is subject to review in the superior court of the county by proceedings in the nature of certiorari, which proceeding must be initiated within 30 days of issuance of the hearing officer's written decision.
(Code 1985, § 14-230; Ord. No. 2343, § 3, 7-28-2003)

Secs. 14-191—14-200. Reserved.

DIVISION 4. PHOTOGRAPHIC SPEED-MEASURING SYSTEMS

Sec. 14-201. Definitions.

In addition to the definitions set forth in section 14-1, the following words, terms, and phrases, when used in this division, shall have the meaning ascribed to them in this section, except where the context clearly indicates a different meaning:

Photographic speed-measuring system means a speed-measuring system that works in conjunction with a photographic, video, or electronic camera to automatically measure the speed and produce photographs, video or digital images of vehicles violating a speed limit or speed restriction.

Vehicle owner means the person identified by the state division of motor vehicles, or the comparable agency of another state, as the registered owner of a vehicle.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-202. Administration.

(a) The Charlotte-Mecklenburg Police Department shall administer the photographic speed-measuring program in accordance with G.S. 160A-300.4, Use of photographic speed-measuring systems.

(b) A photographic speed-measuring system shall be approved, calibrated, and tested for accuracy in accordance with G.S. 8-50.3.

(c) Any photographic speed-measuring system shall be identified by appropriate advance warning signs conspicuously posted not more than 1,000 feet from the location of a photographic speed-measuring system. All advance warning signs shall be consistent with a statewide standard adopted by the department of transportation.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-203. Offense.

(a) It shall be unlawful for a person to drive a vehicle on a public street in the city in excess of the posted speed limit, as set forth in G.S. 20-141.

(b) It shall be a unlawful for a person to drive a vehicle on a public street in the city in excess of the posted speed limit within a school zone, as set forth in G.S. 20-141.1.

(c) The owner of a vehicle shall be responsible for a violation unless the owner can furnish evidence that the vehicle was, at the time of the violation, in the care, custody, or control of another person. The owner of the vehicle shall not be responsible for the violation if the owner of the vehicle, within 30 days of notification of the violation, furnishes the officials or agents of the city either of the following:

(1) An affidavit stating the name and address of the person or company who leased, rented, or otherwise had the care, custody, and control of the vehicle; or

(2) An affidavit stating that the vehicle involved was, at the time of the violation, stolen or in the care, custody, or control of some person who did not have permission of the owner to use the vehicle. The affidavit must be supported by evidence such as insurance or police report information.

(d) Subsection (c) of this section shall not apply, and the registered owner of the vehicle shall not be responsible for the violation, if notification of the violation is given to the registered owner of the vehicle more than 90 days after the date of the violation.

(e) For the purpose of this division, "notification of the violation" shall be deemed to have been given on the date that the citation is issued.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-204. Penalty.

A violation detected by a photographic speed-measuring system shall be deemed a noncriminal violation for which a civil penalty of $50.00 shall be assessed, and for which no points authorized by G.S. 20-16(c) shall be assigned to the owner or driver of the vehicle, nor insurance points as authorized by G.S. 58-36-65. If the owner of the vehicle fails, within 30 days of notification of the violation, to pay the civil penalty, appeal the citation, or respond in accordance with subsection 14-203(c), the owner shall have waived the right to contest responsibility for the violation, and shall be assessed an additional civil penalty of $50.00. The city may establish procedures for the collection of these penalties and may recover the penalties by civil action in the nature of a debt.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-205. Civil citation requirements and processing.

(a) The owner of the vehicle shall be issued a citation written in both English and Spanish, clearly stating the manner in which the violation may be challenged and containing both a street address within the city and a local or toll-free telephone number at which the owner may challenge the citation.

(b) The citation shall be processed by officials or agents of the city and shall be forwarded by personal service or certified mail to the address given on the motor vehicle registration.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-206. Appeals.

(a) The owner of the vehicle has the right to object to the citation or penalty issued by filing a notice of appeal at the address listed on the citation. The notice of appeal must be filed within 30 days and be accompanied with an appeal bond in the amount equal to the civil citation. Alternatively, notice of appeal may also be given by calling the toll-free number listed on the citation and by posting an appeal bond in an amount equal to the civil citation penalty prior to the date of hearing.

(b) Appeals shall be heard through a nonjudicial administrative hearing process established by the city. The administrative hearing process shall include methods for challenging the violation or penalty either in person, at the street address provided on the citation, or through the telephone, at the number provided on the citation. A Spanish-speaking person shall be available to assist both at the street address and through the telephone number.

(c) The administrative hearing decision is subject to review in the Superior Court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for certiorari shall be filed within 30 days after the date that the hearing officer's written decision is issued.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-207. Results of photographic speed-measuring instruments; admissibility.

(a) The results of the use of a photographic speed-measuring system shall be admissible as evidence in a nonjudicial administrative hearing held pursuant to section 14-206 for the purpose of establishing the speed of the vehicle detected.

(b) Notwithstanding the provisions of subsection (a) of this section, the results of a photographic speed-measuring system are not admissible unless all of the following are established:

(1) The photographic speed-measuring system employed was approved for use by the North Carolina Criminal Justice Education and Training Standards Commission and the Secretary of Crime Control and Public Safety pursuant to G.S. 17C-6.

(2) The photographic speed-measuring system had been calibrated and tested for accuracy in accordance with the standards established by the North Carolina Criminal Justice Education and Training Standards Commission and the Secretary of Crime Control and Public Safety for that particular system.

(3) At the time the results were obtained, the photographic speed-measuring system was being operated by a sworn law enforcement officer who has been certified by the North Carolina Criminal Justice Education and Training Standards Commission under G.S. 17-6(a).

(c) All photographic speed-measuring systems shall be calibrated and tested in accordance with standards established by the North Carolina Criminal Justice Education and Training Standards Commission and the Secretary of Crime Control and Public Safety. A written certificate by a technician certified by the North Carolina Criminal Justice Education and Training Standards Commission showing that a test was made within the required testing period and that the system was accurate shall be competent and prima facie evidence of those facts in a non-judicial administrative hearing held pursuant to section 14-206. Where the results of a photographic speed-measuring system are sought to be admitted during a hearing, notice shall be taken of the rules approving the photographic speed-measuring system and the procedures for calibration or testing for accuracy of the system.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-208. Use of proceeds from citations.

The clear proceeds from the citations issued pursuant to this ordinance shall be paid to the county school fund. Clear proceeds shall mean the funds remaining after paying for the lease, lease-purchase, or purchase of the photographic speed-measuring system; paying for operation of the system, either by the city or by a contractor; paying for a program to provide public aware-

ness of the system; and paying any administrative costs incurred by the city related to the use of the system.
(Ord. No. 2581, § 1, 4-12-2004)

Sec. 14-209. Use of photographic speed measuring systems only in selected corridors.

The photographic speed-measuring systems may only be used in the following corridors within the city:

(1) South Boulevard between Interstate 485 and Scaleybark.

(2) Independence between Briarcreek and Sardis Road North.

(3) East W.T. Harris between The Plaza and Idlewild.

(4) Tryon Street from 36th to Orr Road.

(5) Tryon Street between Mallard Creek Church Road and University City Boulevard.

(6) Eastway between Independence and Sugar Creek.

(7) West W.T. Harris between North Tryon Street and Technology Drive.

(8) Albemarle Road between Independence and Lawyers.

(9) Central between Albemarle and Briar Creek.

(10) Monroe Road between Sardis Road North and Wendover.

(11) Providence between McKee and Providence Country Club.

(12) Highway 51 between Park Road and Alexander Road.

(13) Sharon Amity between Lyttleton Drive and East W.T. Harris.

(14) Billy Graham Parkway between Interstate 85 and Woodlawn.

(Ord. No. 2581, § 1, 4-12-2004)

Secs. 14-210—14-215. Reserved.

ARTICLE V. STOPPING, STANDING AND PARKING*

Sec. 14-216. Illegal parking.

(a) It shall be unlawful to stop, stand, or park a vehicle:

(1) On a street or on any public property owned or leased by the city in violation of an official traffic control device when such traffic control device gives notice of restrictions or prohibitions on parking.

(2) In a space designated with a sign for handicapped persons when the vehicle does not display the distinguishing registration plate, windshield placard, or disabled veteran registration plate or placard issued pursuant to G.S. 20-37.6 or G.S. 20-79.4.

(3) So as to obstruct a curb ramp or curb cut.

(4) In front of or within 15 feet of a fire hydrant.

(5) Within 20 feet of the driveway entrance to any fire station when such entrance is within 75 feet of the fire station.

(6) In an area designated as a fire lane.

(7) In a marked off parking space in a manner that its overall dimensions are not entirely within the parking space as marked off.

(7a) On streets that a streetcar operates, in a marked-off parking space in a manner that the vehicle's overall dimensions are not entirely within the parking space as marked off and prevents or will prevent the streetcar from operating continuously along the street.

(8) In any metered space without making proper payment therefor or in any time-limited space for longer than the time allowed. Each hour or portion of an hour that a vehicle remains parked in the

*__Cross reference—__Off-street parking and loading, app. A, § 12.201 et seq.

__State law references—__Authority to regulate or prohibit parking, G.S. 160A-301; parking prohibited in specific places, G.S. 20-162.

same time-limited or metered space without making proper payment following the issuance of a parking ticket shall constitute a separate violation subject to the issuance of an additional parking ticket and additional civil penalty to be applied to such vehicle.

(9) On a sidewalk. This provision shall not be applicable to non-motorized bicycles, electric assisted bicycles, or electric standup scooters.

(10) On a street in front of a public or private driveway.

(11) Within an intersection.

(12) On a crosswalk.

(13) On a street within 20 feet of a crosswalk at an intersection.

(14) On a street within 30 feet upon the approach to any flashing signal, stop sign, or traffic control signal located at the side of a roadway.

(15) On a street between a safety zone and the adjacent curb or within 30 feet of the points on the curb immediately opposite the ends of a safety zone unless the traffic authority indicates length by signs or markings.

(16) On a street within 50 feet of the nearest rail of a railroad crossing.

(17) On a street alongside or opposite any street excavation or obstruction when such stopping, standing, or parking would obstruct traffic.

(18) On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

(19) Upon any bridge or other elevated structure upon a street or within a street tunnel.

(20) On a street median, unless the vehicle is disabled, and then only temporarily for a period not to exceed 24 hours.

(21) On a street other than parallel with the edge of the roadway, headed in the direction of traffic, and with the curbside wheels of the vehicle within 12 inches of the edge of the roadway, unless authorized to do otherwise by appropriate signs.

(22) On a street so as to leave available less than ten feet of the width of the roadway, if such roadway has designated thereon traffic lanes.

(23) On a street within the marked traffic lane area so as to leave available less than ten feet of the width of the right one-half of the roadway for the free movement of vehicular traffic.

(24) Within a public alley in such a manner under such conditions as to leave available less than ten feet of the width of the roadway for the free movement of vehicular traffic.

(25) Between the curb or edge of the pavement of a street and the front building line of a single family detached, duplex, triplex, or quadraplex dwelling unit projected to the side lot other than completely upon an improved driveway or improved parking pad. For purposes of this subsection, "improved" means surfaced with concrete, asphalt, gravel, or any other material commonly used for the parking of vehicles, but not including grass or dirt. The prohibition of this section shall not apply:

a. On lots where parking is not permitted on adjacent streets surrounding the property and the front building line of the dwelling unit is less than 20 feet from the back of the curb line or edge of pavement, or the lot width at the front building line is less than 25 feet; or

b. In conjunction with special events involving family or social gatherings provided such events do not occur more frequently than once a week.

(26) Within any space marked as reserved for "electric vehicle parking while charging only" unless the vehicle is a plug-in

electric vehicle that is plugged into the electric vehicle charging station for that space.

(27) Within any public bicycle path, as provided in section 14-131.

(b) The prohibitions in this section shall not apply to emergency and public service vehicles whose operators are performing services for which they are responsible, nor do these prohibitions apply to vehicles belonging to persons under contract with the city to perform a public service. These exceptions, however, shall apply only when an emergency situation requires that such vehicles park in the prohibited areas. This section shall not operate to relieve the driver of any such vehicle from the duty to always ensure an accessible path that meets ADA standards for pedestrians.
(Code 1985, §§ 14-175, 14-179; Ord. No. 2456, § 1, 11-24-2003; Ord. No. 3412, § 1, 10-23-2006; Ord. No. 9490, § 1.D, 1-14-2019; Ord. No. 649, § 4, 11-13-2023)

Editor's note—Ord. No. 2456, adopted November 24, 2003, states that subsection (25) shall not be effective until April 1, 2004.

Sec. 14-217. Standing or parking for certain purposes.

(a) It shall be unlawful to stop, stand, or park a vehicle on a street for the principal purpose of:

(1) Advertising;

(2) Displaying the vehicle for sale;

(3) Washing, greasing or repairing such vehicle except repairs necessary by emergency; or

(4) Storage of such vehicle.

(b) For the purpose of this section, a vehicle shall be deemed to have been left on the street for the principal purpose of storage when that vehicle has been standing in one place for a continuous period of more than 72 hours. This subsection shall apply to a vehicle that is left standing in front of its owner's residence only when the vehicle does not have a license plate or has an expired license plate.
(Code 1985, §§ 14-177, 14-178)

Sec. 14-218. Standing for loading only.

(a) It shall be unlawful to stop, stand, or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger loading zone during the hours specified for a period not to exceed three minutes.

(b) It shall be unlawful to stop, stand, or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of materials at any place marked as a loading zone during the hours when the provisions applicable to loading zones are in effect. In no case shall a stop for loading and unloading of materials exceed the posted time limit, which time shall be no more than 30 minutes.
(Code 1985, § 14-182)

Sec. 14-219. Certain vehicles to be parked only for loading and unloading.

(a) It shall be unlawful to park any of the following vehicles on a street and/or city property or right-of way along the street at any time except when engaged in loading and unloading:

(1) Interurban and intraurban motorbuses operating as passenger carriers and medium and large commercial vehicles as defined in Article 2.3 of the Unified Development Ordinance.

(2) Private vehicles whose overall dimensions, including any trailer attached thereto, are more than 80 inches in width or 30 feet in length.

(b) Because of the public necessity to transport students to elementary and secondary schools, all school buses are exempted from subsection (a) of this section.

(c) Notwithstanding subsection (a) of this section, it shall be unlawful to park, stand, load or unload any of the vehicles in subsection (a)(1) and (2) of this section on a public street in the area bounded by I-277 and I-77 between the

hours of 7:00 a.m. to 9:00 a.m. or 4:00 p.m. to 6:00 p.m. Monday through Friday, as provided in Section 14-159(b).
(Code 1985, § 14-183; Ord. No. 649, § 4, 11-13-2023)

Sec. 14-220. Vehicles blocking streets.

(a) It shall be unlawful to operate a vehicle in such manner as to prevent the use of any street or portion thereof for the purpose of travel for a period of time longer than five minutes. It shall be unlawful to stop a vehicle within an intersection or on a crosswalk for the purpose of receiving or discharging passengers.

(b) It shall be unlawful to head in or back a vehicle at any angle to the curb while engaged in loading or unloading or storage so that any part of the vehicle shall extend past the parking lane if parking is permitted.

(c) When parking adjacent to an intersection, no vehicle shall be allowed to extend past the curb or lateral edge of the roadway. Storage, loading and unloading shall be done with the vehicle parked parallel to the curb only.

(d) At locations where parking is prohibited during certain hours, it shall be unlawful to load or unload from that side of the street during the time of the parking prohibition.
(Code 1985, § 14-15)

Cross reference—Streets, sidewalks and other public places, ch. 19.

Sec. 14-221. Leaving unattended vehicle.

It shall be unlawful for an operator or person in charge of a vehicle to leave such vehicle unattended on any street, alley, other public property, new or used car lot, or on any private parking lot to which the general public is invited and at which there is no attendant, without first stopping the engine, locking the ignition, and removing the ignition key from the vehicle. However, this section shall not be applicable to vehicles:

(1) Used for public transportation;

(2) Used for delivery and emergency purposes; or

(3) Owned and operated for governmental purposes by the city, county or state.

(Code 1985, § 14-180)

Sec. 14-222. Use of slugs or substitutes in parking meters.

It shall be unlawful to deposit a slug or other substitute for a coin of the United States or city-issued parking meter token in any city parking meter.
(Code 1985, § 14-201)

Sec. 14-223. Tampering with or injuring parking meters.

It shall be unlawful to deface, injure, tamper with, open or willfully break, destroy, or impair the usefulness of any city parking meter, except that duly authorized persons may make necessary collections and repairs.
(Code 1985, § 14-202)

Sec. 14-224. Residential parking permit zones.

(a) *Study.* Upon citizen request or on its own initiative, the city may study the feasibility and desirability of establishing or eliminating one or more residential parking permit zones. A study shall consider, among other things:

(1) The effect on the safety of residents of the area under consideration from intensive use by nonresidents for parking of vehicles.

(2) The need of the residents of the area to obtain adequate on-street parking adjacent to or close by their places of residence.

(3) The difficulty or inability of residents of the area to secure adequate on-street parking adjacent to or close by their places of residence because of widespread use of available parking spaces in that area by nonresident transient motorists.

(4) The impact of major public facilities and programs on the health, safety, and welfare of the residents of the area and any unreasonable burdens placed on those residents in securing adequate on-street

parking and gaining access to their places of residence by virtue of such facilities and programs.

(5) The likelihood of alleviating, by use of a parking permit system, any problem of unavailability of residential parking spaces.

(6) The desire of the residents in the area for the institution of a parking permit system and the willingness of those residents to bear the administrative costs incidental to the issuance of permits authorized by this section.

(7) The fact that the residents of a contemplated parking permit area have contributed to the cost of construction and/or improvement of streets and roads in such area either by the direct assessment of costs or indirectly to the extent such costs are reflected in purchase or rental prices paid by those residents.

(8) The need for some parking spaces to be available in the area under consideration for use by visitors and the general public.

(9) Such other factors as the director shall deem relevant.

(b) *Public hearing.* A public hearing may be held in accordance with the following:

(1) Following the completion of a study conducted pursuant to subsection (a) of this section, the director may conduct a public hearing at which time interested persons may appear and be heard.

(2) Within 45 days following the close of the public hearing, the director shall decide whether to propose the designation of the area under consideration as a residential parking permit zone or to remove the designation of an established residential parking permit zone.

(c) *Petition and designation.* Procedures for submitting a petition and designation of the zone are as follows:

(1) If the director proposes to establish a residential parking permit zone, residents within the area proposed for the designation may petition for the establishment of the zone. Petitions shall be on forms prepared and promulgated by the director. Petitions shall be submitted to the director who shall determine their sufficiency. Any insufficient petition shall be remanded to the individual submitting it, with instructions for correction of deficiencies.

(2) No residential parking permit zone shall be established unless at least 75 percent of the households within the proposed zone have properly signed a petition.

(3) Upon establishment of a residential parking permit zone, the director shall cause to be posted parking signs in the zone, which signs shall prescribe times, locations and conditions under which parking may be by permit only.

(4) The director shall have authority to promulgate regulations necessary to the administration of this program, including, but not limited to, the issuance, display, renewal, revocation, and replacement of decals, and the establishment of reasonable fees for the users of the program.

(Code 1985, § 14-185)

Sec. 14-225. Violations.

(a) The registered owner of a vehicle that is found to be in violation of section 14-216, 14-217, 14-218, 14-219, 14-220, or 14-221 shall be prima facie responsible for such violation and subject to the penalty therefor.

(b) Notwithstanding subsection (a) of this section, the registered owner of a leased or rented vehicle shall not be prima facie responsible for a violation if, within 30 days of actual notification of the issuance of a civil penalty, the owner provides sworn evidence that the vehicle was, at the time of the violation, leased or rented to another person, along with the name and address of the person who leased or rented the vehicle, in which case the person who leased or rented the vehicle shall be prima facie responsible for the violation. Furthermore, if notification was first given to the owner of a vehicle that was, at the

time of the violation, leased or rented to another person, after 90 days have elapsed from the date of the violation, the owner is not required to provide the name and address of the lessee or renter, and the owner shall not be held responsible for the violation.
(Code 1985, § 14-184; Ord. No. 2447, § 7, 11-24-2003)

Secs. 14-226—14-250. Reserved.

ARTICLE VI. BICYCLES, ELECTRIC ASSISTED BICYCLES, AND ELECTRIC STANDUP SCOOTERS*

Sec. 14-251. Riding on sidewalks.

It shall be unlawful to operate a bicycle, electric assisted bicycle, or electric standup scooter upon the public sidewalks located within the area bounded by Church Street, Stonewall Street, College Street and 7th Street. In the interest of public safety, the director shall be authorized to prohibit the operation of bicycles, electric assisted bicycles, and electric standup scooters on other sidewalks located in high pedestrian traffic areas. However, police officers acting in the discharge of their official duties are permitted to operate bicycles, electric assisted bicycles, and electric standup scooters upon all of the public sidewalks in the city.
(Ord. No. 9490, § 1.E, 1-14-2019)

Sec. 14-252. Riding on handlebars prohibited.

It shall be unlawful for the operator of a motorcycle or bicycle when upon a street to carry any other person upon the handlebars, frame or tank of any such vehicle or for any person to so ride upon any motorcycle or bicycle.
(Code 1985, § 14-102)

*__Editor's note—__Ord. No. 9490, § 1.E, adopted Jan. 14, 2019, amended the title of Art. VI to read as herein set out. The former Art. VI title pertained to bicycles.

__Cross reference—__Streets, sidewalks and other public places, ch. 19.

__State law reference—__Operation of bicycles, G.S. 20-171.1 et seq.

Sec. 14-253. Brakes required.

It shall be unlawful to operate a bicycle, electric assisted bicycle, or electric standup scooter on a street, alley, sidewalk or public highway of the city, unless it is equipped with a braking system in sufficient working order to control and stop the movement of the bicycle, electric assisted bicycle, or electric standup scooter.
(Code 1985, § 14-103; Ord. No. 9490, § 1.E, 1-14-2019)

Sec. 14-254. Pedicabs.

(a) *Definition.* As used in this section, the term "pedicab" means a device with three or more wheels which is pedaled by one individual and is used for, or is capable of, transporting passengers in seats or a platform. This definition shall not include the following:

(1) A bicycle built for two where the operators are seated one behind the other;

(2) The operation of a bicycle with trainer or beginner wheels affixed thereto;

(3) A wheelchair or other vehicle with the purpose of operation by or for the transportation of a handicapped person; or

(4) A tricycle built for a child or an adult with a seat for only one operator and no passenger.

(b) *Applicability of section.* For the purposes of this chapter, pedicabs shall be deemed vehicles, and every operator of a pedicab upon a highway shall be subject to the sections of this chapter applicable to the driver of a vehicle except those that by their nature can have no application.

(c) *Brakes required.* It shall be unlawful to operate a pedicab on a street, alley, sidewalk or public highway of the city unless it is equipped with a braking system in sufficient working order to control and stop the movement of the pedicab.

(d) *Lamps required if used at night.* It shall be unlawful to operate a pedicab on a street, alley, sidewalk or public highway of the city at night, unless it is equipped with a lamp on the front exhibiting a white light visible under normal

atmospheric conditions from a distance of at least 300 feet to the front, and with at least two reflex mirrors or lamps on the rear, each exhibiting a red light visible under like conditions from a distance of 200 feet to the rear.

(e) *Operation on sidewalks.* It shall be unlawful to operate a pedicab upon the public sidewalks in the city.
(Code 1985, § 14-107)

Sec. 14-255. [More than one person riding upon an electric standup scooter prohibited.]

It shall be unlawful for more than one person to ride upon an electric standup scooter at a time.
(Ord. No. 9490, § 1.E, 1-14-2019)

Sec. 14-256. Impoundment of bicycles, electric assisted bicycles, and electric standup scooters.

The director, her designee, or any law enforcement officer of this city may impound any bicycle, electric assisted bicycle, or electric standup scooter operated or parked in violation of the provisions of this chapter, retain possession of the same until ownership is established, issue a civil penalty in accordance with section 14-61; and dispose of the vehicle if ownership is not established and civil penalties are not paid within 90 days of issuance; provided that nothing herein contained shall be construed to limit the authority of law enforcement officers to take into custody any bicycle, electric assisted bicycle, or electric standup scooter believed to be stolen.
(Ord. No. 9490, § 1.E, 1-14-2019)

Secs. 14-257—14-280. Reserved.

ARTICLE VII. PEDESTRIANS*

Sec. 14-281. Unsafe pedestrian movement.

It shall be unlawful for a pedestrian to step suddenly, run or jump into the path of a moving vehicle when such vehicle is so close as to constitute a hazard; provided, however, this shall not be construed to relieve the operator of a vehicle of his responsibility as defined in this chapter.
(Code 1985, § 14-151(c))

Sec. 14-282. Standing, sitting, or lying on streets or median strip.

(a) It shall be unlawful for any person to stand, sit, lie, or loiter in a roadway or median strip for any purpose other than crossing the roadway.

(b) It shall be unlawful for any person to stand, sit, lie, or loiter in any street or highway, including the shoulders or median strip, but excluding sidewalks, for any purpose other than crossing the roadway.

(c) A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Ord. No. 720, § 1, 2-12-2024)

Editor's note—Ord. No. 720, § 1, adopted Feb. 12, 2024, repealed the former § 14-282, and enacted a new § 14-282 as set out herein. The former § 14-282 pertained to soliciting from street or median strip and derived from Code 1985, § 14-155.

Sec. 14-283. Running or jogging on public streets, highways.

It shall be unlawful to run or jog in any public street or highway open to motor vehicle traffic other than in a safety zone, during the time from one-half hour after sunset to one-half hour before sunrise, or at any other time when there is not sufficient natural light to render discernible persons, vehicles and substantial objects on the street or highway at a distance of 500 feet ahead, unless such person is wearing reflective clothing or a reflective device. The reflective clothing or reflective device shall be worn on the person and shall be of sufficient size and reflective capacity to be seen at a distance of not less than 500 feet to the person's front and rear, when illuminated by two standard automobile headlights operating at the lawful lower beam setting. For the

*__State law reference—__Pedestrians' rights and duties, G.S. 20-172 et seq.

purposes of this section, the public street or highway shall not include the sidewalk or a crosswalk.
(Code 1985, § 14-157)

Cross reference—Streets, sidewalks and other public places, ch. 19.

Secs. 14-284—14-310. Reserved.

ARTICLE VIII. RAILROADS*

Sec. 14-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Electric signal system means a standard highway flashing light signal system, maintained in good condition for 24 hours per day.

Flagman means an employee of a railway company who shall protect a crossing and, by means of a flag or other appropriate device, give reasonable warning to all persons using or about to use such crossing that a train is approaching such crossing. Such flagman may accompany the train but shall flag the crossing before the train starts across the street.

Prefabricated grade crossing means a rail crossing constructed of a manufactured product of rubber, plastic or other material that is designed to provide a smooth transition between the grade of a street and the grade of a rail line.

Watchman means an employee of a railway company stationed at a crossing during the period of time specified who shall give reasonable warning to all persons using or about to use such crossing that a train is approaching such crossing.
(Code 1985, § 17-1)

Cross reference—Definitions generally, § 1-2.

*__State law reference—__Railroads, G.S. 62-220—62-247.

Sec. 14-312. Applicability.

Sections 14-313 through 14-323 shall not apply to any railroad operated by the city.
(Ord. No. 3655, § 4, 7-23-2007)

Editor's note—Ord. No. 3655, § 4, adopted July 23, 2007, amended § 14-312 in its entirety to read as herein set out. Formerly, § 14-312 pertained to speed limits, and derived from the Code of 1985, § 17-2.

State law reference—Right of appeal by railroads from an ordinance fixing speed of trains, G.S. 62-239.

Sec. 14-313. Watchmen, flagmen, gates, signals.

(a) All electric signal systems installed on public street railroad crossings within the city shall be maintained in good working condition 24 hours a day by the appropriate railway company.

(b) A watchman or flagman shall be used to protect all crossings on public streets within the city when trains and/or locomotives are being used on the crossings, except where an electrical signal system is present and in working condition.
(Code 1985, § 17-3)

Sec. 14-314. Construction of tracks or switches.

No railroad company or private person shall construct any railroad track, sidetrack, or switch in the public right-of-way without petitioning and obtaining the consent of the city council, or its designee, and entering into an encroachment agreement pursuant to city regulations. All such railroad companies and private persons shall submit plans for the location of any line of railway in the public right-of-way with its petition to the city, for its approval, before beginning any work. Such petition shall be submitted and fees paid according to the policies established by the city. Any railroad track, sidetrack, or switch in the public right-of-way must be maintained by the railroad company or private person in compliance with ADA standards for the public right-of-way.
(Code 1985, § 17-4; Ord. No. 649, § 5, 11-13-2023)

Sec. 14-315. Relocation of tracks.

If the location or grade of any street or public alley in the city is changed, any railroad company having tracks or switches on, across, or along such street or public alley shall relocate and share equally with the city the expense of relocating such tracks or switches as directed by the city engineer. The cost of maintaining and repairing such areas after construction shall be borne by the railroad company.
(Code 1985, § 17-5)

Sec. 14-316. Construction and maintenance of tracks level with street.

Railroad tracks in or crossing streets within the city shall be constructed and maintained by the owner, lessee or operator thereof in such a way that the top of the rail shall be on a level with the surface of the street, and such track or rail shall not be raised or lowered without the consent of the city engineering department. Space within such tracks shall be constructed by the owner, lessee, or operator of the tracks on a level with the tops of such tracks. If there is any change in the grade, the owner, lessee, or operator thereof shall give 30 days' notice to the city, and all costs for materials shall be borne by the owner, lessee, or operator with the labor for asphalting for the street surface to be provided by the city. If, however, a prefabricated grade crossing is installed, the city will provide the materials, and the railroad will provide the labor. Where the prefabricated grade crossing has been requested by the city and installed by the railroad and is in need of repair, the railroad will do the repair and bill the city for materials only. Any work done under this section must be installed to meet the satisfaction of the city in compliance with the ADA standards for public right-of-way and is subject to inspection and acceptance by the city.
(Code 1985, § 17-6; Ord. No. 649, § 5, 11-13-2023)

Sec. 14-317. Repair and maintenance of crossings.

Every railroad company whose tracks cross any streets in the city shall fix and keep in good repair and condition such crossing in the space covered by its right-of-way, in accordance with the ADA standards for public right-of-way and directions of the city engineer and the city council.
(Code 1985, § 17-7; Ord. No. 649, § 5, 11-13-2023)

Sec. 14-318. Repair and maintenance of paving and other permanent improvements.

All railroad companies and all persons using any part of the streets shall be and hereby are required to keep in repair and good condition, and in compliance with the ADA standards for public right-of-way, all paving and other permanent improvements laid within, between, and on each side (that is, over the entire width of such parts of the streets which they have been, or will be, required to pave or improve) of any track belonging to or used by them on any and all streets in the city. Whenever any railroad company or person is ordered, in writing, by the city council or its designee, to repair or put in proper condition any part of the paving or permanent improvements laid within, between, or along any track, such repairs and the putting of the street in proper condition, so as not to interfere with traffic or the use of the street, shall be done by the companies or persons using the tracks within the time specified by giving written notice to the city council or its designee. The costs of maintaining and repairing such areas shall be borne by the railroad company or private owner.
(Code 1985, § 17-8; Ord. No. 649, § 5, 11-13-2023)

Sec. 14-319. Construction and repair of roadbed and tracks.

All railroad companies shall so construct and keep in repair their roadbeds and tracks in compliance with the ADA standards for public right-of-way, so as not to interfere with, or render inconvenient, travel or traffic over the streets and sidewalks where such roadbeds or tracks are located.
(Code 1985, § 17-9; Ord. No. 649, § 5, 11-13-2023)

Sec. 14-320. Maintenance of ditches or gutters.

Every railroad company whose tracks extend within the city limits shall keep the ditches or gutters on both sides of and between such tracks on its right-of-way clear of grass, weeds, trash, garbage and filth of every kind, and graded so that the water will not stand or become stagnant in such ditches or along such tracks.
(Code 1985, § 17-10)

Sec. 14-321. Obstructing street crossings for certain time.

Any railroad company or any agent or employee thereof that stops or permits any train, car or locomotive to be stopped across any of the city streets so as to hinder or delay the free passage of vehicles or persons for a longer time than five minutes shall be subject to a penalty of $100.00 for each violation, except that this shall not apply to trains or cars in motion, other than those engaged in switching activities.
(Code 1985, § 17-11)

Sec. 14-322. Removal of obstructions.

It shall be the duty of all persons, railroad or other companies, to clear the streets and sidewalks of any material or obstruction placed upon them by any person or company or any of their employees, when the material or obstruction interferes with or impedes the travel or traffic on any street. All such materials or obstructions must be guarded at night by proper lights.
(Code 1985, § 17-12)

Sec. 14-323. Opening of crossings for emergency vehicles.

It shall be the duty of all railroad companies, and the engineers and employees of all railroad companies in the city, when any engine, train, or train of cars is across or on any street, upon the approach of firefighters or other emergency vehicles, to disconnect or remove such cars or train and clear the street crossing immediately to allow the firefighters and/or the other emergency vehicles to pass without any delay.
(Code 1985, § 17-13)

Sec. 14-324. Boarding trains while in motion.

It shall be unlawful for any person, except railroad employees on duty, to catch hold of or get on or off any railroad car, engine, or train while the car, engine, or train is in motion.
(Code 1985, § 17-14)

Sec. 14-325. Playing or loitering about railroad property.

It shall be unlawful for any person to play or loiter about the railroad tracks, shops or depots within the city limits. A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 17-15; Ord. No. 278, § 4, 4-4-2022)

Sec. 14-326. Bicycle riding, walking restricted.

It shall be unlawful for any person to ride a bicycle or any other vehicle or to walk along the right-of-way of any railroad tracks at any time within the city.
(Code 1985, § 17-16)

Chapter 15

OFFENSES AND MISCELLANEOUS PROVISIONS*

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*__Cross references—__Motor vehicles and traffic, ch. 14; police, ch. 16.

__State law reference—__State criminal code, G.S. ch. 14.

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ARTICLE I. IN GENERAL

Sec. 15-1. Distribution of handbills, advertisements, letters, pamphlets or other materials.

(a) It shall be unlawful for any person to throw, deposit, place or distribute any handbills, advertisements, cards, circulars, leaflets, folders, banners, letters, magazines or pamphlets in or upon private property, except by: (i) handing the material to the occupant; (ii) placing or depositing such material behind the outer door; (iii) securely attaching the material to the doorknob or door handle; or (iv) placing the material on the porch or stoop, provided that it shall be wrapped, bound or lock-folded in such a manner so as to prevent the material from being blown or scattered. This subsection shall not apply to the distribution of the United States mail or to newspapers.

(b) It shall be unlawful for any person to deposit in, paste on, or attach to any motor vehicle any handbills, advertisements, cards, circulars, leaflets, folders, banners, letters or pamphlets or to cause such materials to be deposited in, pasted on or attached to any motor vehicle, without the consent of the owner. Nothing contained in this subsection shall prohibit the attachment to a motor vehicle of a citation or public safety information issued or published by or on behalf of the city.
(Code 1985, § 15-1)

Sec. 15-2. Curb service sale of beer and wine prohibited during certain hours.

It shall be unlawful for any person licensed to sell beer or wine to sell or offer for sale, by curb service or carhop, any beer or wine in the corporate limits from the hour of 1:00 p.m. on each Sunday until 7:00 a.m. on the following Monday.
(Code 1985, § 15-2)

State law references—State law regulating hours of sale, G.S. 18B-1004; delegation of limited authority to municipalities, G.S. 18B-1004(d).

Sec. 15-3. Beer and wine consumption; possession of open container; disposal of containers.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Beer means the same as the term "malt beverage," as defined by G.S. ch. 18B.

Open container means a container that has a broken seal or a container other than the manufacturer's unopened original container.

Public street means any highway, road, street, avenue, boulevard, or other way within and under the control of the city and open to public use, including the sidewalks of any such street.

Rapid transit rail platform has the meaning set forth in section 15-270.

Wine means the same as the term "unfortified wine," as defined by G.S. ch. 18B.

(b) *Consumption in public.* Except as permitted in chapter 19 article IX, chapter 15 article XV, and subsection (f) of this section, no person shall consume any beer or wine upon or within the limits of any public street or sidewalk in the city or upon any rapid transit rail platform.

(c) *Consumption on private premises.* It shall be unlawful for any person to consume any wine or beer upon the private business premises of another without permission of the owner or person in control of such premises.

(d) *Possession of open container in public.* Except as permitted in chapter 19 article IX, chapter 15 article XV, and subsection (f) of this section, it shall be unlawful for any person to possess an open container of beer or wine upon or within the limits of any public street or sidewalk in the city or upon any rapid transit rail platform.

(e) *Container disposal.* It shall be unlawful for any person to drop, throw, cast or deposit any used wine or beer container upon any public

street or sidewalk or upon the private business premises of another without permission of the owner or person in control of such premises.

(f) *Exception; permit required.* Consumption of beer and wine is permitted during any community-sponsored public function, festival or celebration being conducted within a public street, sidewalk or other publicly owned area pursuant to a written permit issued by the city manager or his duly authorized designee. This permit, when issued, will also allow the sale, service and distribution of beer and wine on designated streets, sidewalks and areas reserved for the event, subject to all applicable ABC regulations. However, before such permit is issued under this section, the city manager or his duly authorized designee shall designate the boundaries of the event and temporarily close those streets within the boundaries for general public use.

(g) *Application for permit.* Application forms for the permit referred to in subsection (f) of this section are available from the department of transportation or the risk management division and must be filed at least 21 days prior to the opening day of the event.

(h) *Violations.* A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-3; Ord. No. 3655, § 5, 7-23-2007; Ord. No. 373, § 1, 8-22-2022; Ord. No. 720, § 2, 2-12-2024)

Sec. 15-4. Reserved.

Editor's note—Ord. No. 3655, § 6, adopted July 23, 2007, repealed § 15-4 in its entirety, which pertained to public transportation vehicles; acts prohibited; rules of conduct, and derived from the Code of 1985, §§ 15-4, 15-5.

Sec. 15-5. Reserved.

Editor's note—Ord. No. 2761, § 2, adopted October 11, 2004, repealed § 15-5 in its entirety, which pertained to carnivals and derived from the Code of 1985, § 15-6.

Sec. 15-6. Congregating on bridges; climbing railings, signposts or other posts.

It shall be unlawful for persons to congregate on the bridges in the city in such a manner as to block the passage of traffic thereon or to climb the railings of such bridges or to climb any signpost, telephone post or other posts.
(Code 1985, § 15-7)

Sec. 15-7. Unauthorized persons on parking lots.

It shall be unlawful for any person to remain on any property which is used primarily as a parking lot for vehicles where a fee for use is charged unless such person has a vehicle parked on the property, is employed by the owner or manager of the property, or has other lawful business on such property, provided such property is prominently marked by a posted notice which is easily seen from a distance of 50 feet which states substantially as follows: "No person shall remain on any property which is used primarily as a parking lot for vehicles where a fee for use is charged unless such person has a vehicle parked on the property, or is employed by the owner or manager of the property, or has lawful business on said property. Charlotte Code § 15-7."
(Code 1985, § 15-11)

Sec. 15-8. Trespassing on motor vehicles.

(a) It shall be unlawful for any person to enter into or upon the vehicle of another by use of force or by threatened use of force.

(b) It shall be unlawful for any person to enter into or upon the vehicle of another after having been forbidden to do so or to remain in or upon such vehicle after having been requested to leave by the owner or any other person in lawful possession thereof.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-12; Ord. No. 720, § 2, 2-12-2024)

Sec. 15-9. Obstructing view of pool or billiard rooms or bowling alleys.

It shall be unlawful to obstruct, or allow to be obstructed, any door or window of any pool room, billiard room or bowling alley which opens upon

any public street or alleyway of the city with any screen, colored glass, or any other device which will interfere with or cut off the view of the interior of any such room or place from such public street or alleyway.
(Code 1985, § 15-13)

Sec. 15-10. Maintenance of adequate drainage facilities.

It shall be unlawful for any person within the city limits to allow the drainage facilities on his property to become clogged, blocked or in a state of disrepair so as to obstruct or interrupt the flow of natural waters on his property, create standing water thereon, or cause flooding of neighboring properties.
(Code 1985, § 15-18)

Sec. 15-11. Operation of vehicles on school grounds.

It shall be unlawful for any person to operate a minibike, trail bike or go-cart on school grounds at any time. It shall also be unlawful for any person to park or operate any licensed motor vehicle on school grounds except in areas specifically designated for such purpose.
(Code 1985, § 15-20)

Sec. 15-12. Animals prohibited on school grounds.

It shall be unlawful for any person to ride or graze any horse or any other animal on school grounds at any time.
(Code 1985, § 15-21)

Cross reference—Animals, ch. 3.

Sec. 15-13. Shooting.

(a) It shall be unlawful for any person, except an officer of the law, to shoot any firearm in the city, except in a licensed shooting gallery or as further provided in this section. However, the city manager or his designee is hereby authorized to grant temporary approval to persons desiring to shoot blanks in any firearm upon finding that the shooting will be conducted in a safe manner. Any person desiring to shoot live ammunition in any firearm may do so only with the permission and approval of the city council upon its finding that the shooting will be conducted in a safe manner.

(b) It shall be unlawful for any person in the city, to shoot with bow and arrow or to shoot missiles of any description from slings, spring guns or instruments of any kind, except in a licensed shooting gallery or range or by permission of the city council.

(c) All business establishments within the city that sell firearms shall be required to provide the purchaser of any firearm with a copy of this section at the time of the purchase. The city shall prepare and make available sufficient copies of this section to the business establishments.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-22; Ord. No. 274, § 7, 3-28-2022)

State law reference—Authority to regulate the discharge of firearms, G.S. 160A-189.

Sec. 15-14. Possession of dangerous weapons.

(a) For the purposes of this section, the term "dangerous weapon" shall be defined as any object or device designed or intended to be used to inflict serious injury upon persons or property, including, but not limited to, firearms; knives of any kind or type having a blade in excess of 3½ inches in length, except when used solely for preparation of food, instruction or maintenance; razors and razor blades, except when used solely for personal shaving; metallic knuckles; clubs, blackjacks and nightsticks; dynamite cartridges, bombs, grenades, mines and other powerful explosives; slingshots; shurikins; stun guns; and loaded canes.

(b) It shall be unlawful for any person to carry, possess or have within his immediate access any dangerous weapon while in or upon any real property owned (except property owned by the city and leased to some other person or organization), leased, as lessee, or otherwise

temporarily controlled by the city, whether such property is located within or outside the corporate city limits.

(c) This section shall not apply to the following persons while acting lawfully and within the scope of their duties and authority:

(1) Law enforcement officers.

(2) Officers and soldiers of the armed forces, militia and national guard.

(3) Any person who carries a dangerous weapon onto the premises of Charlotte/Douglas International Airport for the sole purpose of shipping the weapon by air in compliance with federal and state laws and regulations.

(4) Persons specifically authorized by state or federal law to carry firearms in the performance of their jobs.

(5) Any other person authorized, in writing, by the city manager or his designee to carry or possess dangerous weapons while in or upon specified public property. The city manager may promulgate guidelines for the issuance of permits for the possession of dangerous weapons on public property. The purpose of the guidelines shall be to ensure that permits are issued only for lawful purposes and in circumstances which present no threat to the safety and welfare of any person.

(d) This section shall not prohibit the lawful possession or carrying of dangerous weapons on the public streets and sidewalks, except as provided in section 15-18.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-23; Ord. No. 274, § 7, 3-28-2022)

Sec. 15-15. Public solicitation and begging regulated.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Accosting means approaching or speaking to someone in such a manner as would cause a reasonable person to fear imminent bodily harm or the commission of a criminal act upon his or her person, or upon property in his or her immediate possession.

After dark means from one half hour after sunset until one half hour before sunrise. The times of sunset and sunrise will be established by the times listed in The Charlotte Observer or another publication of similar distribution.

Beg, solicit or panhandle includes, without limitation, use of the spoken, written, or printed word, or other acts as are conducted in the furtherance of the purpose of immediately collecting contributions for the use of oneself or others. As used in this ordinance, the word "solicit," and its forms, includes begging and panhandling.

Financial institution means a bank, trust company, savings and loan association, credit union, check-cashing business or other entity principally engaged in the business of lending money or receiving or soliciting money on deposit.

Forcing oneself upon the company of another means:

(1) Continuing to solicit in close proximity to the person addressed after the person to whom the solicitation is directed has made a negative response, either verbally, by physical sign, by attempting to leave the presence of the person soliciting, or by other negative indication;

(2) Blocking the passage of the person solicited; or

(3) Otherwise engaging in conduct that could reasonably be construed as intending to compel or force a person to accede to a solicitation.

(b) *Prohibited acts.* It shall be unlawful for any person to beg, solicit or panhandle on a public sidewalk, public right of way or within a public park owned by the city:

(1) By accosting another, or by forcing oneself upon the company of another;

(2) Within 20 feet of the entrance to any financial institution or any automated teller machine, regardless of whether or not such automated teller machine is located at or near a financial institution;

(3) Within 20 feet of any outdoor dining area or outdoor merchandise area, provided such areas are in active use at the time;

(4) Within 20 feet of any transit stop or taxi stand;

(5) While the person being solicited is standing in line waiting to be admitted to a commercial establishment;

(6) By touching the person being solicited without that person's consent; or

(7) After dark by means of verbal communication.

(c) *Public transportation vehicle.* It shall be unlawful for any person to beg, solicit or panhandle on a public transportation vehicle.

(d) *Penalty.* Any person who violates any of the provisions of this section shall be guilty of a misdemeanor as provided in G.S. 14-4 and, upon conviction, shall be subject to a maximum fine of $500.00, or imprisonment, or both.

(Ord. No. 2457, § 1, 11-24-2003)

Editor's note—Ord. No. 2457, § 1, adopted November 24, 2003, amended § 15-15 in its entirety to read as herein set out. Formerly, § 15-15 pertained to begging or soliciting alms by accosting or forcing oneself upon company of another, and derived from the Code of 1985, § 15-24.

State law reference—Authority to regulate begging, G.S. 160A-179.

Sec. 15-16. Littering public places.

(a) *Prohibited.* It shall be unlawful for any person to throw, scatter, place, drop, or otherwise dispose of any litter, garbage, refuse, grass, shrubbery, tree clippings, bottles, cans or containers of any kind, cigarette butts, cigars, drink containers, gum or candy wrapper paper or plastic products, discarded fruit, or other similar items upon any sidewalk, median strip, alleyway, street or street right-of-way, or grass strip of the city or upon the floors of any public halls, theaters, auditoriums or arenas, or public transportation vehicles, rapid transit rail platforms, or any portion of the public transportation system as defined in section 15-270. However, this section does not apply to those materials required to be placed for collection on the grass strip or curbside by chapter 10.

(b) *Citation and civil penalty.* A citation for a civil penalty of $50.00 shall be issued for a violation of this section. If such civil penalty is not paid or appealed within 30 days from the date of issuance, an additional late fee civil penalty in the amount of $50.00 shall apply. A violation enforced through the issuance of a civil penalty may be appealed pursuant to section 2-25.

(Code 1985, § 15-25; Ord. No. 3655, § 7, 7-23-2007)

Cross reference—Streets, sidewalks and other public places, ch. 19.

Sec. 15-17. Littering from a vehicle.

(a) *Prohibited.* It shall be unlawful for any person to throw, scatter, drop, or otherwise dispose of any cigarette butts, cigars, drink containers, gum or candy wrapper, paper or plastic products, discarded fruit, or other similar items from a vehicle or any other mode of transportation upon any public street, public property, public median, or private property not owned by that person.

(b) *Presumption.* When any such item is thrown, scattered, spilled, dropped or otherwise disposed of from a vehicle, the operator thereof shall be presumed to have committed such offense.

(c) *Citation and civil penalty.* A citation for a civil penalty of $25.00 shall be issued for a violation of this section. The citation shall be subject to a delinquent penalty of $10.00 if the citation is not paid.

(Code 1985, § 15-25.1)

Sec. 15-18. Reserved.

Editor's note—Ord. No. 2624, § 4, adopted June 14, 2004, repealed § 15-18 in it's entirety, which pertained to picketing and derived from the Code of 1985, § 15-26.

Sec. 15-19. Sniffing of model glue for purpose of becoming intoxicated.

(a) *Definition.* As used in this section, the term "model glue" shall mean any glue or cement of the type commonly used in the building of model airplanes, boats, and automobiles, containing toluol, hexane, trichlorethylene, acetone, toluene, ethyl acetate, methyl ethyl ketone, trichloroethane, isopropanol, methyl isobutyl ketone, methyl cellosolve acetate, cychlohexanone, or other solvent or chemical having the property of releasing toxic vapors.

(b) *Inhalation of fumes.* No person shall, for the purpose of causing a condition of intoxication, euphoria, excitement, exhilaration, stupefaction, or dulling of the senses or nervous system, intentionally smell or inhale the fumes from any model glue; provided, however, that this subsection shall not apply to the inhalation of any anesthesia for medical or dental purposes.

(c) *Possession or transfer for unlawful purpose.* No person shall, for the purposes of violating or aiding another to violate any subsection of this section, intentionally possess, buy, sell, transfer possession, or receive possession of any model glue.

(d) *Use by minors.* The use of model glue by minors is restricted as follows:

(1) Except as provided in subsection (d)(3) of this section, no person under 16 years of age shall possess or buy any model glue.

(2) Except as provided in subsection (d)(3) of this section, no person shall sell or transfer possession of any model glue to another person under 16 years of age.

(3) A person may sell or transfer possession of model glue to a person under 16 years of age for model building or other lawful use where such minor has in his possession and exhibits the written consent of his parent or guardian. A person may sell and transfer possession of model glue to a person under 16 years of age where the glue is sold, delivered, or given away simultaneously with and as part of a kit used for the construction of model airplanes, model boats, model automobiles, model trains, or other similar models.

(Code 1985, § 15-27)

Sec. 15-20. State of emergency; proclamation; curfew authorized; restrictions; contracts authorized.

(a) A "state of emergency" shall be deemed to exist whenever, during times of great public crisis, disaster, rioting, catastrophe, or similar public emergency, for any reason, municipal public safety authorities are unable to maintain public order or afford adequate protection for lives, safety or property.

(b) If an existing or threatened state of emergency occurs endangering the lives, safety, health and welfare of the people within the city, or threatening damage to or destruction of property, the mayor is hereby authorized and empowered to issue a public proclamation declaring to all persons the existence of such a state of emergency and, in order more effectively to protect the lives and property of the people within the city, to place in effect any or all of the restrictions authorized in this section, including the authority to define and impose a curfew.

(c) The mayor is hereby authorized and empowered to limit by the proclamation the application of all or any part of such restrictions to any area specifically designated or described within the corporate limits and to specific hours of the day or night, and to exempt the following from all or any part of such restrictions:

(1) Law enforcement officers, firefighters and other public employees;

(2) Doctors, nurses, employees of hospitals and other medical facilities;

(3) On-duty military personnel, whether state or federal;

(4) On-duty employees of public utilities, public transportation companies, and newspaper, magazine, radio broadcasting, and television broadcasting corporations operated for profit; and

(5) Such other classes of persons as may be essential to the preservation of public order and immediately necessary to serve the safety, health, and welfare needs of the people within the city.

(d) The mayor shall proclaim the end of such state of emergency or all or any part of the restrictions imposed as soon as circumstances warrant or when directed to do so by the city council.

(e) During the existence of a proclaimed state of emergency, the mayor may, by proclamation, prohibit or regulate any or all of the following:

(1) The possession, off one's own premises, of explosives, any substance which by itself or in combination with other substances could be used to make an explosive device or weapon of mass destruction, firearms, ammunition, or dangerous weapons of any kind, and prohibit or regulate the purchase, sale, transfer or other disposition thereof.

(2) The buying or selling of beer, wine, or intoxicating beverages of any kind, and their possession or consumption off one's own premises.

(3) Any demonstration, parade, march, vigil or participation therein from taking place on any of the public ways or upon any public property.

(4) The sale of gasoline, kerosene, naphtha, or any other explosive or inflammable fluids or substances or any substance which, by itself or in combination with other substances, could be used to make an explosive device or weapon of mass destruction.

(5) Travel upon any public street, alley, or roadway or upon any other public property, except by those in search of medical assistance, food or other commodity or service necessary to sustain the well-being of themselves or their families or some member thereof.

(6) The participation in or carrying on of any business activity, and the keeping open of places of business, places of entertainment, and any other places of public assembly.

(f) Any proclamation may be extended, altered, or repealed in any particular during the continued or threatened existence of a state of emergency by the issuance of a subsequent proclamation.

(g) During the existence of a proclaimed state of emergency, it shall be unlawful for any person to violate any provision of any restriction imposed by any proclamation authorized by this section. A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.

(h) During the existence of a proclaimed state of emergency involving the health and safety of the people or their property, the city manager is authorized to award contracts for construction or repair work and for the purchase of apparatus, supplies, materials or equipment without regard to the amount of such a contract and without complying with G.S. 143-129, provided that the expeditious award of such a contract is reasonably necessary to address the effects of such emergency. In the absence of the city manager, the following officials shall have the same authority as is provided in this section to the city manager: the deputy city manager, any assistant city manager or the chief purchasing official. The city manager shall submit a report to the city council summarizing all contracts awarded pursuant to this section as soon as reasonably possible after the state of emergency has ended. (Code 1985, § 15-28; Ord. No. 274, § 7, 3-28-2022)

State law reference—Authority to enact ordinances dealing with states of emergency, G.S. 14-288.12.

Sec. 15-21. Misrepresentation of affiliations by salespersons.

It shall be unlawful for any person, for the purpose of selling any goods, merchandise, services or any other thing to the public, to assert or represent in any way that the person is approved by or affiliated with the state or any agency thereof, the city, the chamber of commerce, the

Better Business Bureau or any other similar organization or agency, when in fact no such approval or affiliation exists.
(Code 1985, § 15-29)

Sec. 15-22. Termination of delivery of unsolicited printed material.

(a) *Purpose.* This section is enacted for the purposes of:

(1) Protecting the privacy of residents of the city; and

(2) Preventing conditions tending to encourage burglaries of temporarily unoccupied premises.

(b) *Definition.* For the purpose of this section, "unsolicited printed material" shall mean handbills, advertisements, circulars, leaflets, folders, pamphlets, newspapers, magazines, or other printed matter distributed or delivered to private property without the consent of the person in control of the property.

(c) *Exemption.* Nothing in this section shall apply to the delivery of the U.S. mail.

(d) *Notification.* If the person in control of private property wishes the delivery of unsolicited printed material discontinued, he may request the person responsible for the printing, publishing or distribution to stop delivery by sending such request in writing by certified mail to the appropriate person. The request shall become effective 14 days after receipt of the request. Continued delivery of unsolicited printed material by a person after such request becomes effective shall, upon the second delivery, be unlawful and a violation of this section, provided the second delivery occurs within 180 days after the request becomes effective.

(e) *Enforcement.* The person making the request for discontinuance of the delivery of unsolicited printed material shall be responsible for initiating the enforcement of any violation of this section.
(Code 1985, § 15-30)

Sec. 15-23. Loitering for the purpose of engaging in drug-related activity.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Known unlawful drug user, possessor or seller means a person who has been convicted in any court within this state of any crime involving the use, possession or sale of any substance referred to in the North Carolina Controlled Substances Act, G.S. 90-86 et seq., or who has been convicted of any violation of any substantially similar law of any other state or of the United States.

Public place means:

(1) Any public street, public highway, public sidewalk, public vehicular area as defined in G.S. 20-4.01, public park and/or plaza, other publicly owned or leased property, public transportation facility, school and school grounds or property;

(2) Common areas of apartment and condominium communities;

(3) Common areas of public housing projects;

(4) Any place of business or amusement which is open to the public;

(5) Any private property which adjoins any of the areas described in subsections (1) through (4) of this definition and to which the public has ready access;

(6) Any other property which is open to the public, whether publicly or privately owned; and

(7) Any motor vehicle in or on the areas described in this definition.

Repeatedly means three or more times.

(b) *Prohibited; violation determination.* It shall be unlawful for a person to remain or wander about in a public place for the purpose of engaging in a violation of any provision of the North Carolina Controlled Substances Act, G.S. 90-86 et seq. The following conduct or factors can be considered in determining whether a person is

remaining or wandering in a public place for the purpose of violating any provision of G.S. 90-86 et seq.:

(1) Repeatedly beckoning to, stopping or attempting to stop passersby or attempting to engage passersby in conversation;

(2) Repeatedly stopping or attempting to stop motor vehicles;

(3) Repeatedly interfering with the free passage of other persons;

(4) Being a known unlawful drug user, possessor or seller;

(5) Repeatedly passing to or receiving from passersby, whether on foot or in a vehicle, money or objects;

(6) Attempting to flee or evade a police officer;

(7) Being at a location frequented by persons who use, possess or sell controlled substances;

(8) Occupying a vehicle which is registered to a known unlawful drug user, possessor or seller or which has been recently involved in illegal drug-related activity; or

(9) Stopping, conversing with the occupant of, handing money or any object to the occupant of or receiving money or any object from the occupant of a vehicle which is registered to a known unlawful drug user, possessor or seller or which has been recently involved in illegal drug-related activity.

(c) *Possible arrest; penalty.* No arrest or charge is permitted under this section unless the circumstances establish probable cause to believe that the person intended to violate one or more of the provisions of G.S. 90-86 et seq.
(Code 1985, § 15-31)

Sec. 15-24. Sale of drug stem intended for illegal drug use.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Controlled substance means any substance controlled by the North Carolina Controlled Substances Act as set forth in G.S. 90-86 et seq.

Drug stem means objects that facilitate the ingestion and/or inhalation of crack cocaine, crank methamphetamine or any other controlled substance as defined by the North Carolina Controlled Substances Act. A "drug stem" is further defined as a two- to six-inch-long tube, one-eighth-inch to three-quarter-inch in diameter and that is made of glass, metal or ceramic or any other material. Drug stems include, but are not limited to, glass vials or tubes which may contain novelty items of insignificant value or may contain items that are not, in the normal course of business, packaged in such a manner.

Sell and *sale* mean the commercial transfer of ownership, possession or use of a drug stem in the regular course of wholesale or retail business for consideration of any type.

(b) *Determination.* In determining whether an object is a drug stem, the following factors, in addition to all other relevant evidence, may be considered:

(1) Statements by any person, owner, or by anyone in control of the object concerning its use.

(2) Prior convictions, if any, of any person, owner, or of anyone in control of the object, for violation of the federal or state controlled substances acts.

(3) The proximity of the drug stem, in time and space, to a controlled substance.

(4) The existence of any residue of a controlled substance on the drug stem.

(5) The proximity of the drug stem to other drug paraphernalia as defined by the North Carolina Drug Paraphernalia Act as set forth in G.S. 90-113.20 et seq.

(6) Instructions, oral or written, provided with the drug stem concerning its use.

(7) Descriptive materials accompanying the drug stem explaining or depicting its use.

(8) Advertising concerning its use.

(9) The manner in which the drug stem is displayed for sale.

(10) The existence and scope of legitimate uses of the drug stem in the community.

(11) Expert testimony concerning whether the drug stem is primarily used for introducing a controlled substance into the human body.

(12) The intent of the owner or other person in control of the drug stem to deliver it to persons whom he knows or reasonably should know intends to use the object to facilitate a violation of the North Carolina Controlled Substances Act.

(13) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise.

(c) *Sale of drug stem.* It is a violation of this section for any person or retail establishment to sell, or to possess with intent to sell, a drug stem knowing that it will be used to ingest, inhale or otherwise introduce into the human body a controlled substance.

(d) *Defense.* It is a defense to a violation of this section that the drug stem is primarily designed and used for a legitimate purpose unrelated to the ingestion of a controlled substance into the human body.

(e) *Penalty; additional remedies.* The penalty and additional remedies for violation of this section shall be as follows:

(1) *Civil penalty; injunctive relief.* Any person who violates any subsection of this section shall be subject to a civil penalty of $50.00 for each violation or injunctive relief to restrain the person from continuing the violation or threat of violation, or both injunctive relief and a civil penalty. Upon application for injunctive relief and a finding that a person is violating or threatening to violate any subsection of this section, the superior court shall grant injunctive relief to restrain the violation. Failure to pay the civil penalty or file an appeal within 30 days after notification of the violation shall result in an additional penalty of $50.00. The city may establish procedures for the collection of the civil penalties and may enforce the penalties by a civil action in the nature of a debt.

(2) *Continuing violations.* Each day of violation of any subsection of this section shall constitute a separate offense.

(3) *Forfeiture of drug stem.* Any item sold or possessed with the intent to sell by any person, after a court has adjudicated such an item to constitute drug paraphernalia as defined by this section, shall be subject to forfeiture of the drug stem to the city upon order of the court entered in any injunction proceedings instituted under the authority of this section or in a separate forfeiture action instituted by the city.

(f) *Appeal.* A notice of appeal shall be filed within 30 days after notification of the violation. The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the citation. Appeals shall be heard through an administrative process established by the Charlotte-Mecklenburg Police Department. An individual desiring a hearing must post a bond equal to the amount of the civil penalty before an appeal hearing will be scheduled. The hearing officer's decision is subject to review in the superior court of the county by proceedings in the nature of certiorari.

(Code 1985, § 15-32; Ord. No. 2447, §§ 8, 9, 11-24-2003)

Sec. 15-25. Fingerprinting required in all pawn transactions.

(a) Definitions. The following words, terms and phrases shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Fingerprint means to require an individual to lace a clear, unsmeared impression in ink of the index finger of each hand on a pawn ticket to be submitted to the Charlotte-Mecklenburg Police Department.

Pawn or *pawn transaction* means a written bailment of personal property as security for a debt, redeemable on certain terms within 180 days, unless renewed, and with an implied power of sale on default.

Pawnbroker means any person engaged in the business of lending money on the security of pledged goods and who may also purchase merchandise for resale from dealers and traders, as well as any employee or agent of such person.

Pledgor means any person who deposits with or delivers tangible personal property into the possession of a pawnbroker in the course of his business in connection with a pawn transaction.

(b) It shall be the duty of a pawnbroker to fingerprint the pledgor in connection with every pawn transaction. It shall be unlawful for a pawnbroker to fail to perform said duty. In addition to the remedies provided in section 2-21, the pawnbroker's license may be revoked for a violation of this section, as permitted under G.S. 91A-6.
(Ord. No. 3413-X, § 1, 10-23-2006)

Sec. 15-26. Camping and other activity prohibited on public property.

(a) Definitions. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Camp or *camping* means the use of city property for living accommodation purposes such as sleeping, or making preparations to sleep (including the laying down of bedding for the purpose of sleeping), or storing personal belongings, or placing any tents or a temporary shelter on city property for living accommodation purposes.

Temporary shelter means tents, tarps, or any type of structure or cover that provides partial shelter from the elements.

(b) It shall be unlawful for anyone to camp on any public property owned by the city including public rights-of-way and sidewalks.

(c) Camping as defined in this section is deemed a public nuisance and the city may summarily remove a temporary shelter, bedding or personal belongings.

(d) It shall be unlawful to light or use a campfire or bonfire on public property except as may be specifically authorized by a permit.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Ord. No. 4814(a), § 1, 1-23-2012; Ord. No. 278, § 5, 4-4-2022)

Sec. 15-27. Possession of obstruction devices prohibited; placing objects in roadway, public right-of-way prohibited.

(a) It shall be unlawful for any person, other than governmental employees in the performance of their duty, to possess any obstruction object or instrument with the intent to obstruct a public road, public sidewalk, public right-of-way, entrance or exit to private property or any other area open to the public. Obstruction object or instrument as used in this section means a device commonly known as a "lock box" or "sleeping dragon" or any of the components of such a device including' but not limited to: pipes, tubes, wire handcuffs, chains, carabiners, or padlocks, or containers either weighted or not.

(b) It shall be unlawful for any person, other than governmental employees in the performance of their duty, to place any instrument, tripod, bipod or other pole or object with the intent to obstruct pedestrian or vehicular movement on a

public road, public sidewalk, public right-of-way, entrance or exit to private property, or any other area open to the public.

(c) It shall be unlawful for any person, other than governmental employees in the performance of their duty, to attach themselves to another person, building, vehicle or fixture with the intent to obstruct pedestrian or vehicular movement on a public road, public sidewalk, public right-of-way, entrance or exit to private property or any other area open to the public.

(d) Obstruct as used in this section means to interfere with pedestrian or vehicular movement on a public road way, public sidewalk, public right-of-way, entrance or exit to private property, or any other area open to the public.
(Ord. No. 4814(a), § 1, 1-23-2012)

Sec. 15-28. Possession and dispersal of noxious substances.

(a) It shall be unlawful for any person to possess any noxious substance with the intent to use the noxious substance to interfere with a lawful assembly or to interfere with emergency services or to interfere with a person's right of entry or right to leave a place.

(b) It shall be unlawful for any person to throw, emit, or cause to be used as a projectile, or otherwise disperse any noxious substance.

(c) Noxious substance as used in this section means any substance that is harmful or destructive or foul or offensive to human beings, such as but not limited to garbage, trash, refuse, animal parts or fluids, manure, urine, feces or other organic waste by-products.
(Ord. No. 4814(a), § 1, 1-23-2012)

Sec. 15-29. Police lines and barricades.

(a) Officers of the Charlotte-Mecklenburg Police Department are authorized to establish police lines and barricades to preserve the public peace, arrest offenders and to protect the rights of persons and property.

(b) It shall be unlawful for anyone to intentionally cross over a police line or barricade.
(Ord. No. 4814(a), § 1, 1-23-2012)

Sec. 15-30. Kindling bonfires.

It shall be unlawful for anyone to set a fire on any public street, avenue, highway, public property or right-of-way unless expressly allowed by a permit. A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Ord. No. 4814(a), § 1, 1-23-2012; Ord. No. 274, § 7, 3-28-2022)

Sec. 15-31. Attachments to public and private property.

It shall be unlawful to hang, fasten, or attach any rope, wire, chain, sign, banner, or electrical device or power cord to any public or private property including buildings, bridges, overpasses, vehicles, construction equipment, memorials, utility poles or artwork unless express permission has been granted by the owner or manager of the property.
(Ord. No. 4814(a), § 1, 1-23-2012)

Secs. 15-32—15-50. Reserved.

ARTICLE II. HIGH-FREQUENCY POLICE RADIO SETS AND AUTOMATIC CALLING DEVICES

Sec. 15-51. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

High frequency police radio receiving set means any radio receiving set capable of transmitting or receiving any police radio messages.
(Code 1985, § 15-46(a))

Cross reference—Definitions generally, § 1-2.

Sec. 15-52. Equipping vehicle or operating inside city.

It shall be unlawful for any person to equip or operate inside the city any motor vehicle with a high frequency police radio receiving set, unless such motor vehicle is being used by the federal, state, city or county government; by a law enforce-

ment officer; or a permit for the use of the high frequency police radio receiving set shall be granted as prescribed in this article.
(Code 1985, § 15-46(b))

Sec. 15-53. Permit—Application; issuance; annual renewal required.

(a) Any person desiring a permit to operate a high frequency police radio receiving set in a motor vehicle inside the city shall file an application with the chief of police of the Charlotte-Mecklenburg Police Department or his designee in writing, stating the name of the applicant and the license number, engine number, model and make of the motor vehicle in which it is desired to install such set. Such person shall furnish a photograph of the applicant and his fingerprints. The application shall also state the reason why it is desired to install such set.

(b) If the chief of police or his designee finds that the application shows a need for the set, that the set will be used for a lawful purpose, and that the public interest will be served by a granting of the application, the chief of police or his designee shall issue a permit for installation and use of the set.

(c) An application must be filed and a new permit must be secured for each year a high frequency police radio receiving set is used.
(Code 1985, § 15-47)

Sec. 15-54. Same—Transferability; required for removal of set to another vehicle; duty to report change of license number.

(a) Any permit issued under section 15-53 shall not be transferable to any person, and any high frequency police radio receiving set authorized to be installed and used by any such permit shall not be placed in any other motor vehicle than the one described in the application for such permit without first obtaining a permit from the chief of police or his designee for the removal of such set to the other motor vehicle. No fee shall be charged for such removal permit.

(b) If a license number of any motor vehicle in which a high frequency police radio receiving set has been permitted is changed, the owner of such vehicle shall notify the chief of police or his designee of such change within five days after the change is made.
(Code 1985, § 15-48)

Sec. 15-55. Followup or interference with police radio calls.

It shall be unlawful for the operator of any motor vehicle, other than city officers and police and fire department officers in the line of duty, to follow up and answer police radio calls or to in any way interfere with police officers answering such radio calls.
(Code 1985, § 15-49)

Sec. 15-56. Automatic calling devices.

(a) It shall be unlawful for any person to use or operate, attempt to use or operate, or install any device or combination of devices that will, upon activation, either mechanically, electronically or by any other automatic means, initiate an intrastate call and deliver a recorded message to any emergency telephone number assigned to any police or fire communication center in the city.

(b) The term "telephone number" includes any additional number assigned by a public utility company engaged in the business of providing communication services and facilities to be used by means of a rotary or other system to connect the subscriber to such primary number when the primary telephone number is in use.
(Code 1985, § 15-50)

Secs. 15-57—15-60. Reserved.

ARTICLE III. NOISE*

Sec. 15-61. Loud, disturbing noises prohibited generally; noise buffers.

(a) It shall be unlawful for any person to intentionally produce, intentionally cause to be produced, or intentionally participate in producing any unreasonably loud and disturbing noise in the city.

(b) The following are unlawful in the city:

(1) While within 150 feet of the property line of a school where classes or other educational activities are occurring: (i) to produce amplified sound or (ii) to intentionally produce, intentionally cause to be produced, or intentionally participate in producing any sound so unreasonably loud that, because of its volume, it disturbs or threatens to imminently disturb those classes or activities.

(2) While within 150 feet of the property line of a church, temple, synagogue, or other house of worship where a service is occurring: (i) to produce amplified sound or (ii) to intentionally produce, intentionally cause to be produced, or intentionally participate in producing any sound so unreasonably loud that, because of its volume, it disturbs or threatens to imminently disturb that service. This subsection shall apply only if the house of worship has posted at least one sign that is visible from the public streets and sidewalks adjacent to the house of worship and that provides notice that a service is occurring. The house of worship shall bear the cost of those signs, and the signs shall comply with all applicable regulations.

(3) While within 150 feet of the property line of a health care facility that is open or otherwise caring for patients: (i) to produce amplified sound or (ii) to intentionally produce, intentionally cause to be produced, or intentionally participate in producing any sound so unreasonably loud that, because of its volume, it unreasonably disturbs, injures, or endangers the health, peace, or safety of patients in the facility. "Health care facility," as used in this subsection, includes, but is not limited to, hospitals, physicians' offices, walk-in medical centers, medical diagnostic centers, medical clinics, surgical centers, and any facilities that are licensed, certified or otherwise authorized to provide health care services in this state. "Health care facility" shall not include residential homes, convalescent homes or other facilities that provide long-term residency. This subsection shall apply only if the health care facility has posted at least one sign that is visible from the public streets and sidewalks adjacent to the facility, that identifies the location as a "Health Care Facility Quiet Zone," and that contains a citation to this ordinance provision. The health care facility shall bear the cost of those signs, and the signs shall comply with all applicable regulations.

(c) For purposes of this section, to produce amplified sound means to intentionally produce, intentionally cause to be produced, or intentionally participate in producing any sound by using a bullhorn, megaphone, loudspeaker, or any other mechanical or electronic device to the extent that the device is used to produce unreasonably loud or raucous sound.

(d) In determining whether a noise or sound is unreasonably loud for purposes of this section, factors that may be considered include, but are not limited to: (1) its volume, (2) the volume of background noise, if any, in the area where it is produced, (3) its proximity to residences or other developments where people sleep, (4) the zoning and character of the area where it is produced, (5) the time of day or night that it is produced, (6)

***Editor's note—**Ord. No. 4663, § 1, adopted May 23, 2011, amended article III, §§ 15-61—15-68 in its entirety to read as herein set out. Formerly, article III pertained to similar subject matter and derived from the Code of 1985, §§ 15-66—15-73.

State law reference—Authority to regulate noise, G.S. 160A-184.

its duration, and (7) whether it is recurrent, intermittent, or constant. The determination of whether a noise or sound is unreasonably loud shall be made without considering the content of any message conveyed by the noise or sound.

(e) This section shall not apply to: (1) the sirens of police or other emergency vehicles, (2) horns or other warning signals used in a bona fide attempt to avoid an imminent automobile accident, or (3) any amplified sound or other noise that is produced within an enclosed building and not audible outside of that building.

(f) It shall be no defense to a violation of this section that the noise or sound produced in violation of this section: (1) complied with any other provision of this Code, including any provision authorizing the use of sound amplification equipment or (2) was produced pursuant to any permit issued by the city authorizing the use of sound amplification equipment.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Editor's note—Ord. No. 9585, § 1, adopted June 24, 2019, amended the title of § 15-61 to read as herein set out. The former § 15-61 pertained to loud, disturbing noises prohibited generally.

Sec. 15-62. Measurement.

For the purpose of determining db(A)s as referred to in this article, the noise shall be measured on the A-weighting sale on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute.

For the purpose of determining db(C)s as referred to in this article, the noise shall be measured on the C-weighting sale on a sound level meter of standard design and quality having characteristics established by the American National Standards Institute.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-63. Sounds impacting residential life.

(a) It shall be unlawful to carry on the following activities in any residentially zoned area of the city or within 300 feet of any residentially occupied structure in any zone of the city:

(1) The operation of a front-end loader for refuse collection between the hours of 9:00 p.m. and 7:00 a.m.

(2) The operation of construction machinery between the hours of 9:00 p.m. and 7:00 a.m.

a. "Construction machinery" shall include but not be limited to the use of the following:

1. Air compressors.
2. Pile drivers.
3. Sledgehammers.
4. Bulldozers.
5. Front-end loader/Backhoes.
6. Cranes.
7. Steam or electric hoists.
8. Off-road construction vehicles other than trucks.
9. Pumps.
10. Pneumatic tools.
11. Blasting.
12. Power tools.
13. Tunneling machines.
14. Construction devices with internal combustion engines.
15. Construction devices that emit impulsive sound.
16. Construction devices that create vibration.
17. Metal plates used in street construction to temporarily cover excavations.
18. Any other construction devices or related activities.

(3) The operation of garage machinery between the hours of 9:00 p.m. and 7:00 a.m.

(4) The operation of lawn mowers and other domestic tools out-of-doors between the hours of 9:00 p.m. and 7:00 a.m.

(b) Any mechanical noise other than that regulated in subsection (a) which registers more than 70 db(A) at the nearest complainant's property line is a violation.

Noise Reference Chart

Type	*Decibels dB(A)*
Whisper	30
Normal conversation/ laughter	50-65
Vacuum Cleaner at 10 feet	70
Washing machine/ dishwasher	78
Motorcycle	88
Lawnmower	85-90
Train	100
Jackhammer/power saw	110
Thunderclap	120
Stereo/boom box	110-120
Nearby jet takeoff	130

(c) This section shall not apply to:

(1) Emergency operations designed to protect the public health and safety; or

(2) Work by city crews or city contractors in a right-of-way or utility easement when the department responsible for the work has determined that it is necessary to undertake the work between the hours of 9:00 p.m. and 7:00 a.m.:

a. In order to avoid unreasonably impacting the flow of traffic (this determination shall be made in consultation with the Charlotte Department of Transportation);

b. In order to avoid unreasonably disrupting the provision of a utility service; or

c. Because of a North Carolina Department of Transportation requirement.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-64. Amplified sound.

(a) It shall be unlawful to:

(1) Operate or allow the operation of any sound amplification equipment so as to create sounds registering 55 db(A) between 8:00 a.m. and 9:00 p.m. Sunday through Thursday or between 8:00 a.m. and 11:00 p.m. on Friday or Saturday or 50 db(A) at any other time, as measured anywhere within the boundary line of the nearest residentially occupied property.

(2) As to multifamily structures including apartments, condominiums, or other residential arrangements where boundary lines cannot readily be determined, operate or allow the operation of any sound amplification equipment so as to create sounds registering 55 db(A) between 8:00 a.m. and 9:00 p.m. Sunday through Thursday or between 8:00 a.m. and 11:00 p.m. on Friday or Saturday or 50 db(A) at any other time, as measured from any point within the interior of another residential unit in the same complex or within the boundary line of the nearest residentially occupied property.

(3) Operate or allow the operation of any sound amplification equipment in the public right-of-way, including streets or sidewalks, or in the public city controlled parks: (i) without having actual on-site possession of a permit issued by the Charlotte-Mecklenburg Police Department; (ii) so as to produce sounds registering more than 75 db(A) ten feet or more from any electromechanical speaker between the hours of 8:00 a.m. and 9:00 p.m. Sunday through Thursday or between 8:00 a.m. and 11:00 p.m. on Friday or Saturday; or (iii) at times other than those specified in (ii). Sound amplification equipment operated pursuant to this subsection may not be located more than ten feet off the ground. In addition to the person operating or allowing the operation of sound amplification

equipment in violation of this subsection, the person to whom the permit was issued must be present at the location and during the times permitted and shall be liable for any and all violations.

An application for a permit pursuant to this subsection shall: (i) be submitted to the Charlotte-Mecklenburg Police Department at least one full business day but no more than seven calendar days before the permit time requested; and (ii) specify the proposed location of the sound amplification equipment and the date and time that the sound amplification will begin and end. Permits shall be issued on a first come, first served basis. A permit shall not be issued for a location that is within: (a) 100 feet of another location for which a permit has been issued for the same time, (b) 100 feet of the area permitted for a public assembly pursuant to article XI of this chapter unless issued to the holder of the public assembly permit, or (c) 150 feet of the property line of a school, church, temple, synagogue, other house of worship, or health care facility as defined in section 15-61(b)(3), for any time during which amplified sound is prohibited in that area under section 15-61(b).

The use of mobile sound amplification equipment (e.g., a car radio, unless the vehicle is parked) shall be exempt from the permitting requirement of this subsection and the prohibition of (iii) in the first paragraph of this subpart, however sounds produced during the times otherwise prohibited in (iii) in the first paragraph of this subpart may not register more than 60 db(A) ten feet or more from the equipment. Sound amplification produced in conjunction with public assembly permit shall be exempt from this entire subsection.

(b) The limitations on the operation of sound amplification equipment in subsection (a) of this section shall not apply to the operation of horns, sirens, or other emergency warning devices actually being used in emergency circumstances, or to the operation of sound amplification equipment regulated pursuant to section 15-65.1 or in accordance with a permit issued pursuant to section 15-65 or section 15-65.2.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-65. Permits for additional amplification.

(a) *Application.* An application for a permit for additional amplification on private property under this section shall be submitted to the Charlotte-Mecklenburg Police Department at least ten business days in advance of the planned use. The application shall designate and provide contact information for an individual person who shall be in control of the sound amplification equipment and ensure that its use complies with the terms of the permit. Activities regulated under subsection 15-64(a)(3) and section 15-65.1 shall not be eligible for an additional amplification permit under this section.

(b) *Notice of tentative approval.* Upon tentative approval, the applicant for a permit shall be responsible for giving written notice of the name, nature, date, and time period of the event, and the name of and contact information for the permit holder to the occupants of each property within 1,000 feet of the property for which the permit has been granted. The notice shall be hand delivered to each occupant or, if the occupant is unavailable, affixed to the front door of the building or business or residential unit at least 72 hours in advance of the event. The permit shall not be actually granted and issued until the applicant submits a notarized statement to the Charlotte-Mecklenburg Police Department that such notices have actually been so delivered.

(c) *Limits on hours.* Permits for additional amplification at a property, or adjacent properties under common ownership, shall be limited to 15 hours in a calendar year. Permits issued pursuant to this section may allow additional amplification only between 8:00 a.m. and 9:00 p.m. Sunday through Thursday and between 8:00 a.m. and 11:00 p.m. on Friday or Saturday.

(d) *Sound limits.* In no event shall a permit be granted which allows the creation of sounds registering more than 70 db(A) anywhere within the boundary line of the nearest residentially occupied property.

(e) *Denial; issuance of exceptional permit.* If an applicant has been denied a permit under this section and believes the denial is illegal by virtue of applicable state or federal law, he shall promptly submit a copy of the denied permit application together with a short statement of the reasons he believes he is entitled to a permit to the city manager or his designee. The city manager or his designee shall have the discretion to grant an exceptional permit waiving locational, time, and/or db(A) requirements, upon his determination that the applicant has made a substantial showing of legal entitlement. Any such exceptional permit shall be promptly reported to the city council.

(f) *[Violation.]* It shall be unlawful to violate the restrictions or requirements of this section or the terms of a permit issued pursuant to this section.
(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-65.1. Outdoor amplification and music at commercial establishments.

(a) Except in accordance with a permit issued pursuant to section 15-65.2, it shall be unlawful for any commercial establishment (including but not limited to a restaurant, bar, or nightclub) to operate or allow the operation of sound amplification equipment out of doors or directed out of doors or to allow live acoustic music out of doors or directed out of doors other than during the times listed below or so as to create sounds registering in excess of:

(1) 85 db(C) Sunday through Thursday between 8:00 a.m. and 9:00 p.m.;

(2) 60 db(C) Sunday through Thursday between 9:00 p.m. and 2:00 a.m. the following day;

(3) 85 db(C) Friday or Saturday between 8:00 a.m. and 11:00 p.m.; or

(4) 60 db(C) between 11:00 p.m. and 2:00 a.m. the following day.

An establishment may be cited for violating this section only if the enforcing authority determines that the sound being produced is, using a reasonable person standard and taking into consideration the day of week and time of day, unreasonably loud and disturbing to the quiet enjoyment and use of residentially occupied property. For purposes of this section, hotels, motels, other short-term accommodations shall be considered residentially occupied property.

(b) The decibel limits prescribed in this section shall be measured at the property line of the commercial property at which the sound is being generated.

(c) An establishment that has been determined to be non-cooperative pursuant to subsection 15-65.3(e) shall be subject to enhanced civil penalties pursuant to subsection 15-68(5) and, after two violations of this section within one year after having been determined to be non-cooperative shall not operate or allow the operation of sound amplification equipment out of doors or directed out of doors or allow live acoustic music out of doors or directed out of doors for a period of 18 months after the second violation. The 18-month prohibition shall apply to the establishment and the property on which the establishment is located.
(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-65.2. Permits for large outdoor music facilities.

(a) For purposes of this section, a "large outdoor music facility" means a facility with a capacity of 1,000 or more persons and that offers musical entertainment at least five times a year.

(b) A large outdoor music facility may, but is not required to, submit an application for a large outdoor music facility permit to Housing and Neighborhood Services (H&NS). After consulting with the applicant and investigating the design and layout of the facility, its proximity to residentially zoned property, and the nature of any intervening property, H&NS shall issue a

permit that contains restrictions and requirements designed to strike an appropriate balance between the legitimate use and operation of the facility and the noise impacts on residential life. These restrictions and requirements may include, but are not limited to, restrictions on days of week or hours of operation, number of events, operational rules and restrictions, self-monitoring and reporting requirements, and design or structural requirements. Permits issued pursuant to this section shall be for a term of not more than one year and shall expire on December 31. In the event that H&NS determines that the facility's approved zoning plan adequately regulates the use and operation of the facility in terms of its potential noise impact on residential life, H&NS may incorporate the zoning plan into a permit.

(c) A facility that has been issued a permit pursuant to this section shall not be subject to the provisions of section 15-65.1.

(d) It shall be unlawful for a large outdoor music facility to violate the terms of a permit issued pursuant to this section.
(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Sec. 15-65.3. Chronic commercial, construction, and industrial noise.

(a) The purpose of this section is to establish a collaborative process through which the city and a business that has been identified as a chronic source of objectionable noise (i.e., "chronic noise producer") will develop and implement a noise mitigation plan intended to bring the noise to acceptable levels. A chronic noise producer is an establishment that, because of the sound generated by or at the business or construction site, is an annoyance to adjacent or nearby residences, lodgings, schools, businesses, or other places where people may congregate with a reasonable expectation of undisturbed activity.

(b) The chief of police (or designee) may designate a construction site, commercial, or industrial business as a "chronic noise producer." In making such a designation, the chief of police (or designee) shall take into consideration the following factors:

(1) The number and frequency of valid noise complaints;

(2) The proximity and physical relationship between the business and complaining locations;

(3) The severity of sound events, both observed or measured;

(4) The times and days of the week of sound events;

(5) The offender's history of cooperation and efforts to alleviate the surrounding problem; and

(6) The history and context of the location, including whether the sound producing activity predates the occupation of the complaining locations and whether the sound producing location is located in what is generally recognized as an entertainment area.

Upon designation, the chief of police (or designee) shall inform the business that it has been designated a chronic noise producer and refer the business to Housing and Neighborhood Services (H&NS) along with the information that established the basis for the designation.

(c) Upon receiving a chronic noise producer referral, H&NS shall schedule a mandatory initial meeting with the offender that has been designated a chronic noise producer. At the initial meeting, H&NS and the business shall review the information that formed the basis for the designation and any evidence or information concerning the complained of noise provided by the business. Following the initial meeting, H&NS shall determine whether a mitigation plan is warranted. If H&NS determines that a mitigation plan is not warranted, it shall notify the business and CMPD of that determination and no further action shall be taken.

(d) If H&NS determines that use of a mitigation plan is warranted, H&NS and the business shall together develop and sign a noise mitigation plan. The plan may include, among other things:

(1) Restrictions on days of week or hours of noise producing activity;

(2) Placement, orientation, and operation of sound producing activity or equipment;

(3) Structural changes including but not limited to sound attenuation and baffling;

(4) Self-monitoring and reporting requirements;

(5) A schedule for implementation; and

(6) A schedule for review for possible revision or termination of the plan.

(e) In the event that a business designated as a chronic noise producer: (i) fails or refuses to participate in good faith in the development of a noise mitigation plan; (ii) refuses to agree to a noise mitigation plan; or (iii) fails to implement or comply with an agreed to noise mitigation plan, H&NS may designate the business as non-cooperative and shall notify the business and CMPD of that determination. Should a business designated as non-cooperative cure the basis for the designation, H&NS shall remove the designation and notify the business and CMPD of that determination.

(f) In the event that a noise enforcement action is taken against a business that has been designated a chronic noise producer, evidence regarding the business' participation in the development and implementation of and compliance with the noise mitigation plan shall be relevant to any prosecution or administrative or judicial review or appeal of the enforcement action. Specifically, the business' participation and compliance shall be a mitigating factor and may, but is not required to be a justification for dismissing the enforcement action. A business that has been designated by H&NS as non-cooperative shall not be entitled to the benefits of this subsection unless the designation has been removed.

(g) Appeals. A business that has been designated a chronic noise producer or non-cooperative may appeal such designation within ten days after receiving notice of such designation. Appeals shall be heard by the city manager or the city manager's designee who shall not be an employee of CMPD or H&NS. The appellant shall have the right to present evidence at said hearing. A ruling on appeal is subject to review in the superior court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been sent to the appellant.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019)

Editor's note—Ord. No. 9585, § 1, adopted June 24, 2019, amended the title of § 15-65.3 to read as herein set out. The former § 15-65.3 pertained to chronic commercial and industrial noise.

Sec. 15-66. Animals.

It shall be unlawful for any person to own, keep or have in his possession, or harbor, any dog, other animal or bird which, by frequent or habitually howling, yelping, barking or otherwise, causes loud noises and produces seriously annoying disturbance to any person or to the neighborhood.

(Ord. No. 4663, § 1, 5-23-2011)

Sec. 15-67. Motor vehicles.

It shall be unlawful to operate or allow the operation of any motor vehicle in the city:

(1) Which has had its muffler-exhaust and/or other noise-control equipment removed, altered or maintained in such disrepair as to create unreasonably loud and disturbing noises.

(2) By engaging in jackrabbit starts, spinning tires, racing engines, or other operations which create unreasonably loud and disturbing noises.

(3) Off the boundaries of a public street for racing or other operations which create unreasonably loud and disturbing noises.

(Ord. No. 4663, § 1, 5-23-2011)

Cross reference—Motor vehicles and traffic, ch. 14.

Sec. 15-68. Enforcement and penalties.

Where there is a violation of any section of this article, the city, at its discretion, may take one or more of the following enforcement actions:

(1) The violator may be assessed a civil penalty for violations of this article by a police officer. The violator shall be assessed a civil penalty of $100.00 for the first violation. For the second violation within one-year of the first violation a civil penalty of $500.00 shall be assessed. For their third and subsequent violation(s) within one-year of the first violation a civil penalty of $1,000.00 shall be assessed. For purposes of this subsection, a civil penalty for a violation may be assessed each calendar day.

(2) The violator of this article may be charged with a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 as stated in G.S. 160A-175 and G.S. 14-4.

(3) A civil action seeking an injunction and order of abatement may be directed toward any person creating or allowing the creation of any unlawful noise, including the owner or person otherwise having legal or actual control of the premises from which it emanates.

(4) A police officer may issue a notice of violation, as provided in section 2-24 of this Code, subjecting the violator of subsection 15-63(a)(1) to a civil penalty of $200.00 for their first violation, $500.00 for their second violation, and $1,000.00 for their third and subsequent violation(s) within one year from the initial violation. Violations of subsection 15-63(a)(1) shall be determined by location of the offense and not by the company as a whole. For the purposes of this subsection, the term "violator" means either the operator of the front-end loader; the employer of the operator; or the company, partnership, corporation or other person or entity which owns, possesses or controls the front-end loader utilized by the operator.

(5) The violator may be assessed a $1,000.00 civil penalty for any violation of section 15-61 or section 15-65.1 that occurs within one year after the commercial establishment has been determined to be "non-cooperative" pursuant to subsection 15-65.3(e). After two such violations, the prohibition on sound amplification and live acoustic music established in subsection 15-65.1(c) shall apply.

(6) If a violator fails to pay any civil penalty within 30 days after it is assessed, a late fee of $50.00 shall apply. The City may recover the civil penalty, together with all costs allowed by law, by filing a civil action in the General Court of Justice in the nature of a suit to collect a debt.

(Ord. No. 4663, § 1, 5-23-2011; Ord. No. 9585, § 1, 6-24-2019; Ord. No. 274, § 7, 3-28-2022)

Sec. 15-69. Severability.

Without limiting any other provision in this Code providing for the severability of any Code provisions, it is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses and phrases of this article are severable, and if any phrase, clause, sentence, paragraph or section of this article shall be declared unconstitutional or invalid by the valid judgment or decree of any court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this article, since the phrases, clauses, sentences, paragraphs and sections of this article would have been enacted by the city council without the incorporation into this article of any such unconstitutional or invalid phrase, clause, sentence, paragraph or section.

(Ord. No. 9585, § 1, 6-24-2019)

Secs. 15-70—15-80. Reserved.

ARTICLE IV. OFFENSES AGAINST PUBLIC MORALITY AND DECENCY*

Sec. 15-81. Prostitution.

As authorized by the provisions of G.S. 14-208, the city council hereby finds that prostitution is a serious problem within the city. Accordingly, any person who shall be deemed guilty of prostitution in the first degree, as set forth in G.S. 14-207, shall be guilty of a class 1 misdemeanor.
(Code 1985, § 15-86)

Sec. 15-82. Masturbation in public.

It shall be unlawful for any person to willfully masturbate in any public place, including, but not limited to, any public restroom facility, in the presence of any other person.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-87; Ord. No. 720, § 2, 2-12-2024)

Sec. 15-83. Urination and defecation on certain property prohibited.

It shall be unlawful for any person to urinate or defecate on any public place, sidewalk, street, alleyway or right-of-way, or in any public building, except in toilet facilities, or on any private property. Having the written permission of the owner or person in lawful possession shall constitute an affirmative defense to the charge of urinating or defecating on private property.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-88; Ord. No. 720, § 2, 2-12-2024)

Secs. 15-84—15-115. Reserved.

*__State law reference—__Offenses against public morality and decency, G.S. 14-177 et seq.

ARTICLE V. PUBLIC MONUMENTS

Sec. 15-116. Short title.

This article shall be known and may be cited as the "City of Charlotte Public Monuments Ordinance."
(Code 1985, § 15-116)

Sec. 15-117. Purpose.

The purpose of this article is to provide for the identification, establishment, maintenance and production of those things which merit designation as monuments for the use, education and view of the general public in order to remind the citizens of this community, its visitors and tourists of the rich historic, cultural and natural heritage of the city.
(Code 1985, § 15-117)

Sec. 15-118. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Monument means any object, structure, or thing by which the memory of a person, thing, idea, art, science or event is intended to be preserved or perpetuated and which is or is to be permanently erected, placed or located for such purpose on property which is owned by or proposed to be dedicated to the city.
(Code 1985, § 15-118)

__Cross reference—__Definitions generally, § 1-2.

Sec. 15-119. Exempt monuments and plaques.

(a) Monuments or plaques erected pursuant to the authority of the historic properties commission are not intended to be covered by this article and are therefore exempt from this article.

(b) Plaques erected by any administrative city department on municipal buildings, bridges or other public improvements are not intended to be covered by this article and are therefore exempt from this article.
(Code 1985, § 15-119)

Sec. 15-120. Prohibitions.

(a) No monument shall be erected, placed or located on property owned by the city except in compliance with the requirements of this article.

(b) No person shall deface, demolish, alter or remove any monument without the expressed written approval and consent of the city council. Violation of this section shall be a misdemeanor. (Code 1985, § 15-120)

Sec. 15-121. Procedure for erection of monument on public property.

(a) Any person who proposes to erect any monument, as defined in section 15-118 of this article, shall first file an application with the city clerk. The city clerk shall then route the application to the appropriate staff departments for review. Such application shall contain such information and supporting documents as are required by the city manager and the city council.

(b) After the application has been determined to be complete and in proper form, the city council shall set the matter for public hearing.

(c) Notice shall be given of the date on which such hearing shall be held. This notice shall be published once in a local newspaper of general circulation. The notice shall provide that the council may, in its discretion, make changes in the requested proposal for the erection or dedication of a monument without resort to further notice or hearing. Such notice for public hearing shall be given at least ten days and not longer than 60 days prior to the date set for hearing.

(d) Designated staff members of the appropriate departments, referred to as "the staff," shall attend the public hearing and, following the hearing, prepare a review to be submitted to the city council. Members of the staff and council may ask questions of any person at any time during the public hearing.

(e) Unless such time is extended by the council, the staff shall tender its review to the council by transmitting it to the city manager within 30 days after the date of the hearing.

(f) The request shall then be decided by the council within a reasonable time and at a regular council meeting. The decision of the city council shall be conclusive and final; provided, however, that nothing shall be designated as a monument by the city council unless such thing is erected, placed or located on property owned by or dedicated to and accepted by the city for such purposes not inconsistent with such designation. (Code 1985, § 15-121)

Sec. 15-122. Standards for review.

As to each application for a monument, the staff and council shall review, investigate, evaluate and make recommendations and decisions in regard to the appropriateness and adequacy of each proposal based upon, but not limited to, the following standards:

(1) The monument shall have historic, aesthetic or special character or interest to the general public and shall not be limited in interest to a special group or persons. The council shall consider the local and general significance and prominence of the things to be memorialized.

(2) The monument's location shall be compatible with its surroundings, and its establishment shall not have a negative impact on environmental integrity. The council shall avoid undue concentrations of monuments.

(3) The monument must be of enduring quality and character, and materials used in creating and establishing each monument shall reflect such quality and character.

(4) The care and maintenance of the monument shall not require a disproportionate expenditure of public funds.

(Code 1985, § 15-122)

Secs. 15-123—15-130. Reserved.

ARTICLE VI. CONDUCT IN PUBLIC PARKS

Sec. 15-131. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Department means the city engineering and property management department.

Director means the key business executive of the engineering and property management department or his designee.

Park means a park, reservation, playground, or any other area or structure in the city owned, leased, or used by the city and devoted to active or passive recreation, including property owned by others and devoted to park purposes under the jurisdiction of the department, including, without limitation, the Charlotte-Mecklenburg Board of Education.

Vehicle means any wheeled conveyance, whether motor-powered, animal-drawn, or self-propelled, except wheelchairs and similar vehicles, baby carriages and vehicles in the service of the city parks.

(Code 1985, § 15-136)

Cross reference—Definitions generally, § 1-2.

Sec. 15-132. Park property.

(a) *Buildings and other property.* No person in a park shall:

(1) Wilfully mark, deface, disfigure, adulterate, injure, tamper with, or displace or remove any buildings; bridges; tables; benches; fireplaces; railings; fountains, ponds or other bodies of water; paving or paving material; water lines or other public utilities or parts or appurtenances thereof; fences; signs, notices or placards, whether temporary or permanent; receptacles; monuments; stakes, posts, or other boundary markers; or other structures, improvements or equipment, facilities or park property or appurtenances whatsoever, either real or personal.

(2) Force entry into any restroom or washroom that is locked or bolted; and no person over the age of five years shall use any restroom, washroom, or locker room designated for the opposite sex.

(3) Dig or remove any soil, rock or stones, except in areas designated for that purpose, or any trees, shrubs, plants, plantings, grass, down-timber or other wood or materials; or make any excavation by tool, equipment, blasting, or other means or agency.

(4) Construct or erect any building or structure of whatever kind, whether permanent or temporary in character, or run or string any public service utility into, upon or across such lands, except on special written permit issued under this article.

(b) *Trees, shrubbery, lawns.* No person in a park shall:

(1) Damage, cut, carve, transplant or remove any tree or plant or injure the bark or pick the flowers or seeds of any tree or plant; attach any rope, wire, or other contrivance to any tree or plant; or tie or hitch an animal to any tree or plant.

(2) Climb, stand or sit upon monuments, vases, fountains, railings, fences, gun-carriages, trees or upon any other property not designated or customarily used for such purposes.

(c) *Wild animals, birds.* No person in a park shall:

(1) Hunt, molest, harm, frighten, kill, trap, chase, tease, shoot or throw missiles at any animal, reptile or bird; remove or possess the young of any wild animal or the eggs or nest or young of any reptile or bird; except that snakes known to be deadly poisonous, such as rattlesnakes, moccasins, coral snakes, or other deadly reptiles, may be killed on sight.

(2) Give or offer or attempt to give to any animal or bird any tobacco, alcohol or other known noxious substances.

(Code 1985, § 15-137)

Sec. 15-133. Sanitation.

No person in a park shall:

(1) Throw, discharge, or otherwise place or cause to be placed in the waters of any fountain, pond, or other body of water in or adjacent to any park or any tributary stream, storm sewer, or drain flowing into such waters any substance, matter or thing, liquid or solid, which will or may result in the pollution of such waters.

(2) Dump, deposit or leave any bottles, broken glass, ashes, paper, boxes, cans, dirt, rubbish, waste, garbage or refuse, or other trash anywhere on the park grounds; except such matter may be placed in proper receptacles where provided. Where receptacles are not provided, all such rubbish or waste shall be carried away from the park by the person responsible for its presence and properly disposed of elsewhere.

(Code 1985, § 15-138)

Sec. 15-134. Traffic.

No person in a park shall:

(1) Fail to comply with all applicable sections of the motor vehicle traffic laws of the state and ordinances of the city in regard to equipment and operation of vehicles.

(2) Fail to obey all police officers, such officers being hereby authorized and instructed to direct traffic whenever and wherever needed in the parks in accordance with this article and such supplementary regulations as may be issued subsequently by the director.

(3) Fail to observe carefully all traffic signs indicating speed, direction, caution, stopping or parking, and all others posted for proper traffic control and to safeguard life and property.

(4) Drive any vehicle on any area except the paved park roads or parking areas or such other areas as may on occasion be specifically designated as temporary parking areas by the director.

(5) Park a vehicle in other than an established or designated parking area, and such use shall be in accordance with the posted directions and with the instructions of any police officer who may be present.

(6) Operate any all-terrain vehicle, trail bike, go-cart or minibike at any location within any park other than such places, if any, as are specifically designated for such purpose by the department, except that regularly licensed vehicles and operators may have access to streets and roadways within parks to the same extent as public streets, subject to the traffic rules of this article.

(7) Ride a bicycle on other than the right-hand side of a paved vehicular road or path designated for that purpose or fail to keep in single file when two or more bicycles are operating as a group. A bicyclist shall be permitted to wheel or push a bicycle by hand over any grassy area or wooded trail or on any paved area reserved for pedestrian use.

(8) Ride any other person over the age of six years on a single passenger bicycle in any park.

(9) Leave a bicycle lying on the ground or paving or set against trees or in any place or position where other persons may trip over or be injured by it.

(Code 1985, § 15-139)

Cross reference—Motor vehicles and traffic, ch. 14.

Sec. 15-135. Recreational activities.

(a) *Bathing, swimming, etc.* No person in a park shall swim, bathe, wade or ice skate in or on any waters or waterways in or adjacent to any park.

(b) *Boating.* No person in a park shall bring into or operate any boat, raft, or other watercraft, whether motor-powered or not, upon any waters.

(c) *Other activities.* No person in a park shall:

(1) Take part in or abet the playing of any games or activities involving thrown, or otherwise propelled, injurious objects such as balls, stones, arrows, javelins or model airplanes. The playing of rough or comparatively dangerous games such as football, baseball, golf and quoits is prohibited. Roller skating, roller blading and skateboarding are prohibited.

(2) Ride a horse or other animal.

(3) Participate in any activity for which an admission or fee is charged without having paid the full admission or fee so payable.

(Code 1985, § 15-140)

Sec. 15-136. Behavior.

No person in a park shall:

(1) a. Consume any malt beverage or unfortified wine, as defined in G.S. ch. 18B, except pursuant to a permit issued by the director or his designee in accordance with policies established by the director.

b. Possess or consume any fortified wine or spirituous liquor, as defined in G.S. ch. 18B, except where such possession and consumption is specifically authorized by G.S. ch. 18B and by a permit issued by the director or his designee in accordance with policies established by the director.

(2) Possess, use or consume any illegal drugs or be under the influence of any illegal drugs while in a park.

(3) Build or attempt to build a fire, or throw or otherwise scatter lighted matches, burning cigarettes or cigars, tobacco paper or other flammable material, within any park area.

(4) Enter an area posted as "closed to the public," nor shall any person use or abet the use of any area in violation of posted notices.

(5) Lie or sleep in a prone position on seats, tables or benches.

(6) Disturb or interfere with the activities of any other person occupying an area of a park with the intent to disrupt the activities of the other person.

A violation of this section may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.

(Code 1985, § 15-141; Ord. No. 720, § 2, 2-12-2024)

Sec. 15-137. Merchandising, advertising and signs.

No person in a park shall:

(1) Expose, offer for sale or advertise any article or service, except regularly licensed concessionaires acting by and under the authority and regulation of the director, and/or unless a permit for such has been issued by the director.

(2) Paste, glue, tack or otherwise post any sign, placard, advertisement or inscription whatever, except as authorized by the director.

(Code 1985, § 15-142)

Sec. 15-138. Park operating policy.

(a) Except for unusual and unforeseen emergencies as determined by the director, parks shall be open to the public every day of the year during designated hours. The opening and closing hours for each individual park shall be determined by the department and shall be posted therein for public information.

(b) Any section or part of any park may be declared closed to the public by the director at any time and for any interval of time, either temporarily or at regular and stated intervals (daily or otherwise) and either entirely or merely to certain uses, as the director shall find reasonably necessary.

(c) A permit shall be obtained from the director before participating in any park activity which the department shall from time to time designate as requiring such a permit.

(1) A person seeking issuance of a permit under this subsection shall file an application with the director. The application shall state the following:

a. The name and address of the applicant.

b. The name and address of the person, corporation or association sponsoring the activity, if any.

c. The day and hours for which the permit is desired.

d. The park or portion thereof for which such permit is desired.

e. An estimate of the anticipated attendance.

f. Any other information which the director shall find reasonably necessary to a fair determination as to whether a permit should issue under this subsection.

(2) The director shall issue a permit when he finds that:

a. The proposed activity or use of the park will not unreasonably interfere with or detract from the general public enjoyment of the park.

b. The proposed activity or use will not unreasonably interfere with or detract from the promotion of public health, welfare, safety and recreation.

c. The proposed activity or use is not reasonably anticipated to incite violence, crime or disorderly conduct.

d. The proposed activity or use will not entail unusual, extraordinary or burdensome expense or police operation by the city.

e. The facilities desired have not been reserved for use at the date and hour required in the application.

(3) Within 14 days after receipt of an application, the director shall advise an applicant in writing of his reasons for refusing a permit, and any aggrieved person shall have the right to appeal in writing within seven days, to the office of the city manager, which shall consider the application under the standards set forth in subsection (c)(2) of this section and sustain or overrule the director's decision, within seven days. The decision of the city manager or his designee shall be final.

(4) A permittee shall be bound by all park rules and regulations and all applicable ordinances fully as though the rules and regulations were inserted in the permit.

(5) The director shall have the authority to revoke a permit upon a finding of violation of any rule or ordinance or upon good cause shown.

(6) The director shall establish a fee schedule for the use of park equipment and park facilities subject to the approval of the city manager or his designee. The fees shall be reviewed annually, and the city manager or his designee is authorized to make such adjustments in the fees as he deems appropriate. An accurate copy of the fee schedule shall be posted in a conspicuous place in the office of the department.

(Code 1985, § 15-143)

Sec. 15-139. Enforcement.

(a) Officers of the Charlotte-Mecklenburg Police Department shall enforce this article and shall have the authority to eject from any park any person acting in violation of this article or any section of this Code or any law of the state.

(b) When there is a violation of any section of this article, the city, in its discretion, may take one or more of the following courses of action:

(1) A penalty of $25.00 may be levied against any person who violates any section of this article.

(2) The violator may be charged with a misdemeanor and be subject to any penalty prescribed by section 2-21.

(3) The city may apply to the appropriate court for an injunction or any other allowable civil penalty.

(Code 1985, § 15-144)

Secs. 15-140—15-150. Reserved.

ARTICLE VII. YOUTH PROTECTION*

Sec. 15-151. Purpose.

The purpose of this article is to protect juveniles from victimization and exposure to criminal activity by establishing a curfew for juveniles under the age of 16 years in the city. This article is intended to reinforce and promote the role of the parent in raising and guiding children and promote the health, safety, and welfare of both juveniles and adults by creating an environment offering better protection and security for all concerned.

(Code 1985, § 15-145)

Sec. 15-152. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Direct route means the shortest reasonable path of travel or a commonly used route to reach a final destination without any detour or stop along the way.

Emergency means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or death. This term also includes any action that is reasonably necessary in order to respond to the medical needs of a family member of the juvenile, regardless of whether the juvenile's action is taken in order to prevent death or serious bodily injury.

Establishment means any privately owned place of business operated for profit to which the public has access or is invited, including, but not limited to, any place of amusement or entertainment.

Guardian means a person who is court appointed to be the guardian of a juvenile.

Juvenile means any person under the age of 16 years.

Owner/operator means any individual, firm, association, partnership or corporation operating, managing or conducting any establishment, including the employees, members or partners of an association or partnership and the officers of a corporation.

Parent means a person who is a natural parent, adoptive parent, foster parent, stepparent or another person, or a person to whom legal custody has been given by court order.

Public place means any place that is generally open to and used by the public or a substantial group of the public, whether it be publicly or privately owned, including, but not limited to, streets, sidewalks, highways, alleys, rights-of-way, public vehicular areas and parking lots, transportation facilities, theaters, restaurants, shops, bowling alleys, schools and school grounds, places of business and amusement, playgrounds, parks, similar areas that are open to the public, and other common areas open to or accessible to the public.

Remain means to linger or stay in a public place, to fail to leave the premises when requested to do so by a police officer, or to fail to leave the premises of an establishment when requested to do so by the owner/operator or employee of the premises.

Restricted hours. The time of night referred to in this article is based upon the prevailing standard of time, whether Eastern Standard

*__State law reference—__*Authority to adopt ordinances imposing a curfew on persons of any age less than 18, G.S. 160A-198.

Time or Eastern Daylight Saving Time, generally observed at that hour by the public in the city. *Restricted hours* means:

On any day of the week, 10:00 p.m. until 6:00 a.m. of the following day for ages 12 and under; and

On any day of the week, 11:00 p.m. until 6:00 a.m. of the following day for ages 13, 14 and 15.

(Code 1985, § 15-146; Ord. No. 4791, § 1, 11-28-2011)

Cross reference—Definitions generally, § 1-2.

Sec. 15-153. Offenses.

Except as provided by section 15-154, the following offenses constitute a violation of this article:

(1) A juvenile commits an offense by being present in or remaining in any public place or on the premises of any establishment within the city during the restricted hours.

(2) A parent or guardian of a juvenile commits an offense if he knowingly permits, or by insufficient control, allows the juvenile to remain in any public place or on the premises of any establishment within the city during the restricted hours. The term "knowingly" includes knowledge that a parent should reasonably be expected to have concerning the whereabouts of a juvenile in that parent's legal custody. This requirement is intended to hold a neglectful or careless parent up to a reasonable community standard of parental responsibility through an objective test. It shall, therefore, be no defense that a parent was completely indifferent to the activities or conduct or whereabouts of such juvenile.

(3) The owner, operator, or any employee of an establishment commits an offense if he knowingly allows a juvenile to remain upon the premises of the establishment during the restricted hours. The term "knowingly" includes knowledge that an operator or employer should reasonably be expected to have concerning the patrons of an establishment. The standard for "knowingly" shall be applied through an objective test: whether a reasonable person in the operator's or employee's position should have known that the patron was a juvenile in violation of this article.

(4) It shall be a violation of this article for any person 16 years of age or older to aid or abet a juvenile in the violation of subsection (1) of this section.

(5) It shall be a violation of this article for a parent or guardian to refuse to take custody during the restricted hours of a juvenile for whom the parent or guardian is responsible.

(Code 1985, § 15-147)

Sec. 15-154. Exceptions.

A juvenile who is in a public place or establishment during the restricted hours shall not be in violation of this article if the juvenile is:

(1) Accompanied by his parent or guardian.

(2) Accompanied by an adult 21 years of age or older authorized by the parent or guardian of such juvenile to take the parent's or guardian's place in accompanying the juvenile for a designated period of time and purpose within a specified area.

(3) On an errand using a direct route, at the direction of the juvenile's parent or guardian, until 10:30 p.m. for juveniles under the age of 13 and 11:30 p.m. for juveniles ages 13—15.

(4) In a motor vehicle with parental consent engaged in interstate travel through the city or originating or terminating in the city.

(5) Traveling in a motor vehicle with a parent or guardian, or traveling in a motor vehicle with an adult 21 years of age or older authorized by the parent or guardian of such juvenile to take the parent's or guardian's place in accompanying the juvenile for a designated period of time and purpose within a specified area.

(6) Engaged in a lawful employment activity, or using a direct route to or from a place of employment.

(7) Reacting or responding to an emergency.

(8) Attending or traveling to or from, by direct route, an official school, religious, or recreational activity that is supervised by adults and sponsored by a public or private school, the city or other governmental entity, a civic organization, or another similar entity that accepts responsibility for the juvenile.

(9) Exercising First Amendment rights protected by the United States Constitution such as the free exercise of religion, freedom of speech, and the right of assembly.

(10) Married or emancipated.

(11) When authorized, by special permit from the chief of police or his designee carried on the person of the juvenile thus authorized, as follows: When necessary nighttime activities of a juvenile may be inadequately provided for by other sections of this article, recourse may be had to the chief of police, or his designee, either for a regulation as provided in subsection (12) of this section or for a special permit as the circumstances warrant. Upon the findings of reasonable necessity for the use of a public place to the extent warranted by a written application signed by a juvenile, and by a parent of the juvenile, if feasible, stating (i) the name, age and address of the juvenile; (ii) the name, address, and telephone number of a parent thereof; (iii) the height, weight, sex, color of eyes and hair and other physical characteristics of the juvenile; (iv) the necessity that requires the juvenile to remain upon a public place during the restricted hours otherwise applicable; (v) the public place; and (vi) the beginning and ending of the period of time involved by date and hour, the chief of police or his designee may grant a permit in writing for the juvenile's use of a public place at such hours as in the opinion of the chief of police may reasonably be necessary and consistent with the purposes of this article.

(12) When authorized, by regulation issued by the chief of police or his designee in other similar cases of reasonable necessity, similarly handled as set forth in subsection (11) of this section but adapted to reasonably necessary nighttime activities of more juveniles than can readily be dealt with on an individual special permit basis. Normally such regulation by the chief of police or his designee permitting use of public places should be issued sufficiently in advance to permit appropriate publicity through news media and through other agencies, such as the schools, and shall define the activity, the scope of the use of the public places permitted, the period of time involved not to extend more than one hour beyond the time for termination of the activity, and the reason for finding that the regulation is reasonably necessary and is consistent with the purposes of this article.

(Code 1985, § 15-148; Ord. No. 4791, § 1, 11-28-2011)

Sec. 15-155. Defense.

It is a defense to prosecution under section 15-153(3) that the owner, operator, or employee of an establishment promptly notified the police department that a juvenile was present on the premises of the establishment during the restricted hours and refused to leave.

(Code 1985, § 15-149)

Sec. 15-156. Enforcement.

(a) Before taking any enforcement action under this article, a police officer shall ask the apparent offender's age and reason for being in the public place or establishment during restricted hours.

(b) The officer shall not prepare a juvenile arrest report, issue a citation, or make an arrest under this article unless the officer reasonably believes that an offense has occurred and that,

based on any response and other circumstances, no exception or defense in section 15-154 or 15-155 is present.
(Code 1985, § 15-150)

Sec. 15-157. Penalties.

(a) A juvenile who violates any section of this article is subject to being adjudicated delinquent. The court may, in its discretion, impose any dispositional alternatives that are provided in the state juvenile code for any juvenile who is delinquent.

(b) A violation under this article by any person other than a juvenile may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Code 1985, § 15-151; Ord. No. 278, § 5, 4-4-2022)

Secs. 15-158—15-185. Reserved.

ARTICLE VIII. FALSE ALARMS

Sec. 15-186. Purpose.

The city council finds that excessive false alarms unduly burden the Charlotte-Mecklenburg Police Department and waste limited police resources. The purpose of this article is to establish reasonable expectations of alarm users and to ensure that alarm users are held responsible for their use of alarm systems. It is not the intent of the city council in adopting this article to create new or expand existing legal obligations of the city or the Charlotte-Mecklenburg Police Department or to establish a special duty or special relationship between the city or the Charlotte-Mecklenburg Police Department and alarm users or persons who own real or personal property or are physically present at or in the vicinity of property monitored by an alarm system.
(Code 1985, § 15-155)

Sec. 15-187. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm company means a person subject to the licensing requirements of G.S. ch. 74D and engaged in selling, leasing, installing, servicing or monitoring alarm systems.

Alarm permit means a permit issued by the city allowing the operation of an alarm system within the city.

Alarm signal means a detectable signal, either audible or visual, generated by an alarm system, to which the police are expected to respond.

Alarm system means any single device or assembly of equipment designed to signal the occurrence of an illegal or unauthorized entry or other activity requiring immediate attention and to which the police department is expected to respond, but does not include alarms installed in motor vehicles, fire alarms, domestic violence alarm, or alarms designed to elicit a medical response.

Alarm user means any person, corporation, partnership, proprietorship, governmental or educational entity or any other entity owning or leasing an alarm system, or on whose premises an alarm system is maintained for the protection of such premises.

Automatic dial protection device means an automatic dialing device or an automatic telephone dialing alarm system and shall include any system which, upon being activated, automatically initiates to the Charlotte-Mecklenburg Police Department a recorded message or code signal indicating a need for police response.

City means the City of Charlotte or its agent.

False alarm means the activation of an alarm system through mechanical or electronic failure, malfunction, improper installation, or the negligence of the alarm user, his employees or agents, and signals activated to summon police personnel unless law enforcement response was cancelled by the alarm user or his agent before police personnel arrive at the alarm location. An alarm is false within the meaning of this article when, upon inspection by the Charlotte-Mecklenburg Police Department, evidence indicates that

no unauthorized entry, robbery, or other such crime was committed or attempted in or on the premises which would have activated a properly functioning alarm system. Notwithstanding the foregoing, a false alarm shall not include an alarm which can reasonably be determined to have been caused or activated by unusually violent conditions of nature nor does it include other extraordinary circumstances not reasonably subject to control by the alarm user. In addition, an alarm activated during an alarm system testing procedure shall not be considered a false alarm if the alarm user first notifies and receives permission from the user's alarm company, or designee, to test the system.

Permit year means a 12-month period beginning on the day and month on which an alarm permit is issued.

Runaway alarm means an alarm system that produces repeated alarm signals that do not appear to be caused by separate human action.
(Code 1985, § 15-156)

Cross reference—Definitions generally, § 1-2.

Sec. 15-188. Alarm permit required.

(a) *Permit required.* No person shall use an alarm system without first obtaining a permit for such alarm system from the city. Each alarm permit shall be assigned a unique permit number.

(b) *Application.* The permit shall be requested on an application form provided by the city. An alarm user has the duty to obtain an application from the city.

(c) *Transfer of possession.* When the possession of the premises at which an alarm system is maintained is transferred, the person obtaining possession of the property shall file an application for an alarm permit within 30 days of obtaining possession of the property. Alarm permits are not transferable.

(d) *Reporting updated information.* Whenever the information provided on the alarm permit application changes, the alarm user shall provide correct information to the city within 30 days of the change. In addition, each year after the issuance of the permit, permit holders will receive from the city a form requesting updated information. The permit holder shall complete and return this form to the city when any of the requested information has changed.

(e) *Multiple alarm systems.* If an alarm user has one or more alarm systems protecting two or more separate structures having different addresses, a separate permit shall be required for each structure.
(Code 1985, § 15-157)

Sec. 15-189. Prohibited acts.

(a) It shall be unlawful to activate an alarm system for the purpose of summoning police when no burglary, robbery, or other crime dangerous to life or property is being committed or attempted on the premises, or otherwise to cause a false alarm.

(b) It shall be unlawful to install, maintain, or use an audible alarm system which can sound continually for more than 15 minutes.

(c) It shall be unlawful to install, maintain, or use an automatic dial protection device that reports, or causes to be reported, any recorded message to the Charlotte-Mecklenburg Police Department.

(d) An alarm company shall provide the permit number for the alarm system that produced the alarm signal at the time the alarm company notifies the Charlotte-Mecklenburg Police Department of an alarm signal to facilitate dispatch.
(Code 1985, § 15-158)

Sec. 15-190. Enforcement of provisions.

(a) *Excessive false alarms.* It is hereby found and determined that three or more false alarms within a permit year is excessive, constitutes a public nuisance, and shall be unlawful. Civil penalties for false alarms within a permit year may be assessed against an alarm user as follows:

Third through fifth false alarm. .	$50.00
Sixth false alarm.	100.00
Seventh false alarm	100.00
Eighth false alarm	250.00
Ninth false alarm	250.00

Tenth and over false alarm 500.00

(b) *Other civil penalties.* Violations of section 15-188 and section 15-189 may be enforced through the assessment of civil penalties in the amount of $100.00.

(c) *Payment of civil penalties.* Civil penalties shall be paid within 30 days from the date of the invoice.

(d) *Discontinuance of police response.* The failure of an alarm user to make payment of any civil penalty assessed under this section within 30 days from the date of the invoice shall result in discontinuance of police response to alarm signals that may occur at the premises described in the alarm user's permit until payment is received. The Charlotte-Mecklenburg Police Department may in its discretion discontinue police responses to alarm signals from what appears to be a runaway alarm.

(e) *Equitable remedy.* The city may enforce the provisions of this article by applying to a court of competent jurisdiction for an injunction, abatement order or any other appropriate equitable remedy.

(f) *Noncriminal violation.* A violation of any of the provisions of this article shall not constitute a misdemeanor or infraction punishable pursuant to G.S. 14-4.
(Code 1985, § 15-159)

Sec. 15-191. Appeals.

(a) *Appeals process.* Assessments of civil penalties and other enforcement decisions made under this article may be appealed by filing a written notice of appeal with the city within 30 days after the date of notification of the assessment of civil penalties or other enforcement decision. The failure to give notice of appeal within this time period shall constitute a waiver of the right to contest the assessment of penalties or other enforcement decision. Appeals shall be heard through an administrative process established by the Charlotte-Mecklenburg Police Department. The hearing officer's decision is subject to review in the superior court of the county by proceedings in the nature of certiorari.

(b) *Appeal standard.* The hearing officer shall review an appeal from the assessment of civil penalties or other enforcement decisions using a preponderance of the evidence standard. Notwithstanding a determination that the preponderance of the evidence supports the assessment of civil penalties or other enforcement decision, the hearing officer shall have the discretion to dismiss or reduce civil penalties or reverse any other enforcement decision where warranted.
(Code 1985, § 15-160; Ord. No. 2447, § 10, 11-24-2003)

Secs. 15-192—15-230. Reserved.

ARTICLE IX. PUBLIC ART PROGRAM

Sec. 15-231. Title.

This article will be known and may be cited as the Charlotte public art program.
(Ord. No. 2308, § 1(15-211), 5-27-2003)

Sec. 15-232. Purpose and intent.

The city accepts responsibility for expanding the opportunity for its citizens to experience art in public places. The city also recognizes that the inclusion of public art in appropriate capital improvements projects will promote the cultural heritage and artistic development of the city, enhance the city's character and identity, contribute to economic development and tourism, add warmth, dignity, beauty and accessibility to public spaces, and expand the experience and participation of citizens with visual arts. A policy is therefore established to direct that funding for the inclusion of works of art in certain capital improvement projects constructed by the city be allocated through this public art program that supercedes and replaces the joint public art program previously operated by the Charlotte-Mecklenburg Public Art Commission that had been established through resolutions duly adopted by the city and the county.
(Ord. No. 2308, § 1(15-212), 5-27-2003)

Sec. 15-233. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Artist means any professional practitioner in the arts, generally recognized by critics and peers as a professional in the field as evidenced by his/her education, experience and artwork production.

Artwork means original works, produced by an artist pursuant to this article and approved by the public art commission, in a variety of media. Artwork may be permanent, temporary, or functional, may stand alone or be integrated into the architecture or landscaping and should encompass the broadest range of expression, media and materials. Artwork shall not include reproductions of original works of art.

ASC means the Arts and Science Council — Charlotte/Mecklenburg, Inc., or its affiliated designee approved by the city, which assists in the administration of the public art program described in this article in accordance with an annual contract with the city and the public art commission.

Capital improvement program means the city's program for advance planning of capital development.

Capital improvement project means any capital project paid for wholly or in part by the city for the construction or substantial renovation of any building, facility or open space to which the public is generally invited, including projects in the business corridor program that are funded from the capital improvement program. For purposes of this article, a substantial renovation project is one that has been included in the capital improvement program.

Construction costs means the total amount appropriated for a capital improvement project (including funding from outside sources which permit the acquisition of artwork for the eligible project with such funds) less the actual costs of: (i) real property acquisition, (ii) demolition of existing structures, (iii) environmental remediation, (iv) equipment costs, (v) change orders to Eligible Projects, and (vi) legal, design and accounting fees.

Eligible fund means a source of funds for a capital improvement project from which city expenditures for public art are not prohibited as an object of expenditure.

Eligible project means any capital improvement project with the exception of (i) those projects that have statutory, contractual or other legal restrictions that prohibit expenditures for artwork from all portions of the project funds, and (ii) those art in transit projects that are governed by the guidelines established by the metropolitan transit commission for CATS' capital programs. The city council reserves the right to exclude certain projects from consideration as an eligible project or to limit the percentage of construction costs appropriated for artwork on an eligible project on a case-by-case basis.

Public art account means a specially designated account or accounts established by the city to fund the public art program as set forth in section 15-244.

Public art allocation means the amount of funds identified on a line item in the project budget for an eligible project that shall be allocated to the public art account for use in accordance with this article.

Public art collection means the entirety of artwork in city-owned places that have been acquired by the city through the public art program, and its predecessor program as a result of the public art resolutions of November 23, 1981, and May 10, 1993, which preceded the ordinance from which this article is derived.

Public art commission and *Commission* mean the Charlotte/Mecklenburg Public Art Commission described in section 15-234.

(Ord. No. 2308, § 1(15-213), 5-27-2003)

Cross reference—Definitions generally, § 1-2.

Sec. 15-234. Public art commission established; function.

There is hereby established a commission to be known as the public art commission which shall have the powers and duties as set forth in

this article in order to oversee and administer a public art program that will ensure the inclusion of artwork in appropriate capital improvement projects for the city to enhance the artistic and cultural development of the city. The public art commission also administers a public art program for the county pursuant to an ordinance duly adopted by the board of county commissioners on December 17, 2002. This reestablishment of the public art commission shall supercede and replace the Charlotte-Mecklenburg Public Art Commission previously established through resolutions duly adopted by the city and the county.
(Ord. No. 2308, § 1(15-214), 5-27-2003)

Sec. 15-235. Composition; appointment of members.

The public art commission shall be composed of no less than nine and no more than 12 members, three of which will be appointed by the city, three of which will be appointed by the board of county commissioners, and the remainder of which will be appointed by the board of directors of the arts and science council. Two of the members appointed by the city shall be appointed by city council and the mayor shall appoint the other member. The members of the commission shall be appointed as follows:

	City	*County*	*ASC*
Visual arts or design professionals			3
Representatives of the business sector	1	1	
Representatives of the education field	1	1	
Representatives of the community	1	1	

(Ord. No. 2308, § 1(15-215), 5-27-2003)

Sec. 15-236. Terms of members; removal, etc.

(a) Members of the public art commission shall serve for three-year terms and may serve a maximum of two consecutive full terms, plus any partial term to which they may have been appointed. Member terms shall be appointed on a staggered basis so that no more than three of the minimum nine appointed seats become vacant at one time.

(b) Any member serving in a position for which the term has expired shall continue to serve until the member's successor in that position is appointed and qualified. Any vacancy in a position shall be filled for the unexpired term.

(c) Any member appointed by the city who fails to attend the requisite number of meetings as set out in the boards and commissions attendance policy adopted by the city council shall be automatically removed from the commission. Vacancies resulting from a member's failure to attend the required number of meetings shall be filled as provided in this section. The city clerk will notify the mayor and council if a city-appointed member is absent the requisite number of the meetings, and appointment will be made by the appointing authority to fill that vacancy.

(d) Current members of the previously established Charlotte-Mecklenburg Public Art Commission shall serve out their remaining term and upon the expiration of such term, replacement members shall be appointed by the same entity that appointed the retiring member according to the fields designated in section 15-235.
(Ord. No. 2308, § 1(15-216), 5-27-2003)

Sec. 15-237. Compensation of members.

Members of the public art commission shall serve without compensation from the city or any firm, trust, donation or legacy to or on behalf of the city, provided, however, that a member of the commission, or the firm, company or corporation with whom the member is associated, shall not be precluded from receiving compensation from the city under any contract for services rendered which have no relation to the member's duties as a member of the commission.
(Ord. No. 2308, § 1(15-217), 5-27-2003)

Sec. 15-238. Chairman.

The chairman of the public art commission shall be elected by a majority of the members of the commission and shall hold such office for one year or until a successor has been elected and qualified. The chairman may serve as a member of the board of directors of the arts and science council if so elected.
(Ord. No. 2308, § 1(15-218), 5-27-2003)

Sec. 15-239. Role of arts and science council.

The arts and science council — Charlotte/Mecklenburg, Inc., is a nonprofit organization that provides services and programs to the city pursuant to an annual agency contract. The public art commission shall utilize the services of the arts and science council to administer the public art program.
(Ord. No. 2308, § 1(15-219), 5-27-2003)

Sec. 15-240. Administrative procedures.

The public art commission in conjunction with the city's finance department and the arts and science council shall prepare guidelines and specifications for the administrative procedures that are necessary to accomplish the purposes set forth in this article.
(Ord. No. 2308, § 1(15-220), 5-27-2003)

Sec. 15-241. Consultation with city officers and department staffs.

City officers and staffs of city departments may consult and advise with the public art commission from time to time on matters coming within the scope of this article, and the commission may consult and advise with such city staffs and officers.
(Ord. No. 2308, § 1(15-221), 5-27-2003)

Sec. 15-242. Solicitation of gifts of art and funds.

The public art commission shall have the authority to solicit gifts of art on behalf of the city and to encourage public-spirited citizens to contribute funds, as well as permanent works of art, to the city and thereby help to beautify the city and the public buildings and grounds situated therein.
(Ord. No. 2308, § 1(15-222), 5-27-2003)

Sec. 15-243. Powers and duties.

(a) Subject to the provisions of this article, the public art commission shall be responsible for administering the city's public art program with the assistance of arts and science council, including the establishment of policies and guidelines, the designation of appropriate sites for artwork, the determination of an art budget for eligible projects, the selection of artists and commissioning works of art, review of the design, execution and placement of artwork and the removal of artwork from the city collection.

(b) The public art commission, with the assistance of arts and science council, shall prepare an annual fiscal year work plan for approval by the city council which shall include at least the following: (i) a description of the artwork completed, obtained or commenced in the previous year; (ii) a description of the capital improvement projects designated for inclusion of public art in the upcoming year and of the funding source; (iii) a budget for the income and expenditures for such projects; and (iv) a general description of the public art plan for the upcoming year. The city council shall have final approval of the annual work plan and budget for the public art program. The annual work plan shall be contingent upon the availability of funds for capital projects.

(c) The public art commission shall work together with the city and the arts and science council to examine all artwork or a design or model of same which are proposed for permanent or longterm placement on city property or are to become the property of the city by purchase, gift or otherwise, except for those works to be placed in a museum or gallery, to determine an appropriate space for the placement of such artwork. In any case in which the city and the commission cannot agree on the location of placement of such works, the city's determination shall be final.

(d) Prior to moving or removing any artwork placed in, on or about city property pursuant to the public art program, the city shall submit such proposed change to the public art commission for a report and recommendation about a new space for the artwork or alternatives to moving it. In any case in which the city and the commission cannot agree on issues related to the relocation or removal of the artwork, the city's determination shall be final. The commission shall not be required to make recommendations regarding the temporary placement of artwork on city property.

(e) To encourage broad community participation in the public art program and to ensure artwork of the highest quality, the public art commission may solicit the participation of community representatives and professionals in the visual arts and design fields as part of the artist and art work selection process for particular public art projects in accordance with the size and complexity of the projects. These advisors may assist the commission in the selection of artists, project oversight and other related purposes, but shall have no vote on matters coming before the public art commission.

(f) During the design phase of the artwork, the public art commission shall advise the appropriate city departments through the city manager concerning the maintenance requirements of every artwork, recommend to the responsible department the type, frequency and extent of maintenance required to preserve the quality and value of every artwork, and inspect such maintenance work for the guidance of the city departments concerned. It is the responsibility of the site manager or appropriate department head to provide for the maintenance of artwork in their routine site maintenance program. Any proposed artwork which is determined by the commission or demonstrated by an appropriate city department head to require extraordinary operations or maintenance expense shall be reviewed with the city manager and approved by city council prior to proceeding with the fabrication and construction of the artwork.
(Ord. No. 2308, § 1(15-223), 5-27-2003)

Sec. 15-244. Funds for public artwork.

(a) All allocations of funds for eligible projects shall include an amount equal to one percent of the projected construction costs at the time the project is included in the city's capital improvement program to be used for the selection, acquisition, commissioning and display of artwork. No allocation shall be made for eligible projects with an estimated expenditure of less than the threshold amount for which formal bidding procedures are required pursuant to G.S. 143-129. If the source of funding, applicable law governing any particular eligible project or the expenditure of such funds precludes art as a permissible expenditure, the amount of funds so restricted shall be excluded from the construction costs in determining the amount to be allocated as provided in this section.

(b) The city's finance director shall establish a special fund designated the public art account into which funds appropriated as set out in subsection (a) of this section (the public art allocations) or derived from gifts or donations to the city for public art shall be deposited. For the budget year that the city council appropriates funding for the eligible project and that the eligible project is instituted, the public art allocations shall be deposited into the public art account in accordance with procedures established by the city's finance director.

(c) Monies collected in the public art account shall be budgeted and expended in the same manner as other city revenues and used for projects commissioned pursuant to this article. Each disbursement from such account or from other appropriations for artwork shall be recommended by the public art commission and authorized in accordance with applicable law and accounting principles governing expenditures from the city's budget. Separate accounts shall be established whenever funds are required to be used at a designated capital improvement project.

(d) From the effective date of this section, applications for capital improvement projects to granting authorities shall include amounts for artwork as specified in this section, insofar as permissible by the granting authority.
(Ord. No. 2308, § 1(15-224), 5-27-2003)

Sec. 15-245. Uses of funds.

Funds allocated in accordance with this article may be used for the selection, acquisition, purchase, commissioning, fabrication, placement, installation, exhibition or display of artwork. To the extent practical, artist selection should be concurrent with selection of the architect or designer to ensure integration of the artwork into the project architecture. If a particular eligible project is deemed inappropriate for the placement of artwork by the public art commission or by city council, if not otherwise prohibited by law, the funds appropriated for artwork may be used at other more appropriate public sites.
(Ord. No. 2308, § 1(15-225), 5-27-2003)

Sec. 15-246. Public art acquisition.

Disbursement of funds from the public art account to pay for artwork acquired pursuant to this article shall be made in accordance with procedures established by the city's finance director, but shall at least include the submission from the public art commission of an accurate and complete invoice resulting from a contract with an artist. The invoice for such artwork may include a commission fee of 15 percent of the cost of the artwork for services rendered in connection with the acquisition and installation of the artwork.
(Ord. No. 2308, § 1(15-226), 5-27-2003)

Sec. 15-247. Ownership of artwork.

All artwork acquired pursuant to this article shall be acquired in the name of the city and title shall vest in the city.
(Ord. No. 2308, § 1(15-227), 5-27-2003)

Sec. 15-248. Decriminalization.

A violation of this article shall not constitute an infraction or misdemeanor punishable under G.S. 14-4.
(Ord. No. 2308, § 1(15-228), 5-27-2003)

ARTICLE X. CARNIVALS

Sec. 15-249. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Appeals official means the city manager or his designee.

Carnival means an enterprise engaged in the operation of mechanical rides subject to regulation by the state department of labor, together with one or more of the following: amusement or skill devices, concessions, side shows or other features ordinarily operated or exhibited at what is commonly known and accepted as a traveling or itinerant carnival show. The term shall not include a public assembly permitted pursuant to section 19-312 of this Code, nor shall the term include an amusement park having a permanent or fixed location.

Permit official means the person or persons designated by the chief of police as being responsible for issuing permits under this article.
(Ord. No. 2761, § 1, 10-11-2004)

Sec. 15-250. Carnival permit.

(a) *Permit required.* No carnival is permitted to operate unless a permit has been obtained pursuant to this section. Notwithstanding the foregoing, a permit is not required for a carnival operated solely and directly by and for the sole benefit of a governmental entity or an organization that is exempt from taxation under Section 501(c)(3), 501(c)(4), 501(c)(8), 501(c)(10), 501(c)(19), or 501(d) of the Internal Revenue Code and is exempt under similar provisions of the general statutes as a bona fide nonprofit charitable, civic, religious, fraternal, patriotic or veteran's organization.

(b) *Permit application.* An application for a carnival permit shall be made in writing on a form prescribed by the permit official at least 30 days before the commencement of the carnival.

The application shall contain the following:

(1) The name, home and business address and telephone number, and date of birth for the person in charge of the carnival and the name of the organization with which that person is affiliated or on whose behalf the person is applying (collectively "applicant");

(2) The name(s), home and business address(es), home and business telephone number(s), and date(s) of birth for the individual(s) who shall be designated as the on-site operator(s) of the carnival;

(3) If the owner of the real property upon which the carnival will be operated is not the applicant, the name, home and business address and telephone number of the owner of the real property upon which the carnival is to be operated and a copy of the lease or rental agreement;

(4) The date(s), time(s) and place of the carnival, including the date and time that the carnival will be erected and disassembled;

(5) The anticipated number of persons attending the carnival, and the basis on which this estimate is made;

(6) A list of the number and type of mechanical rides, amusement or skill devices, side shows and concession booths that will be at the carnival;

(7) A list of the number and type of animals, if any, that will be at the carnival and all necessary health certificates for such animals;

(8) Such other information, attachments, and submissions that are requested on the application form; and

(9) Payment of a nonrefundable application fee established pursuant to section 2-1 of this Code.

(c) *Permitting criteria.* An application for a carnival permit may be denied or an issued carnival permit may be revoked for any of the following reasons:

(1) The application is not fully completed and executed;

(2) The applicant has not tendered the required application fee;

(3) The application contains a material falsehood or misrepresentation;

(4) The applicant is legally incompetent to contract or to sue and be sued;

(5) The applicant has previously made material misrepresentations regarding the operation of a carnival;

(6) The applicant has previously permitted a violation or has violated the terms of a carnival permit issued to or on behalf of the applicant;

(7) The applicant has not obtained the business license(s) required, under chapter 13 of this Code, for the operation of the carnival;

(8) The operation of the carnival would not be in compliance with all applicable zoning regulations;

(9) The operation of the carnival would not be in compliance with all applicable fire codes and regulations; or

(10) The operation of the carnival would present an unreasonable danger to the public health or safety based on a failure to adequately provide for the protection of the persons employed at or attending the carnival, the maintenance of the public order in and around the carnival, and/or emergency vehicle access to the carnival.

In addition, a permit shall include a description of all perimeter and access controls, internal security, and emergency medical or fire services which may be required by the permit official, as set forth in subsection (d). A permit may be revoked if such requirements are not met at all times during the operation of the carnival.

(d) *Carnival security.* The applicant shall be responsible for hiring and paying off-duty law enforcement officers or special police officers commissioned under Chapter 74E of the general statutes to provide internal security for the carnival and for hiring and paying necessary emergency medical technicians and fire personnel.

The permit official shall determine the appropriate perimeter and access controls for the carnival, such as fencing or barriers, the number of officers needed for internal security, the number of emergency medical technicians

and fire personnel needed, and the time when such services shall commence and end, taking into consideration the following:

(1) The proposed location of the carnival, including the size of the area in which the carnival is to take place and its surroundings;

(2) The time of day that the carnival is to take place;

(3) The date(s) and day(s) of the week the carnival is to take place;

(4) The estimated number of persons attending the carnival;

(5) The number of mechanical rides, amusement devices, side shows, and concession booths to be operated at the carnival;

(6) Whether alcohol will be served, live music offered, or retail sales stations provided at the carnival, and the number and location of alcohol service stands, music stages, and retail stands;

(7) Prior experience(s) with the applicant or operator of the subject carnival or with carnivals similar in nature.

(e) *Time and notice of decision.* The permit official shall approve or deny an application within 20 days of receipt. A notice of denial shall clearly set forth the grounds upon which the permit was denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

(f) *Appeals.*

(1) An applicant may appeal the denial of an application or revocation of a permit in writing within five days after notice of the denial or revocation has been received. Within two business days, or such longer period of time agreed to by the applicant, the appeals official shall hold a quasi-judicial hearing on whether to issue the permit or uphold the denial or revocation. The applicant shall have the right to present evidence at said hearing. The decision to issue or uphold the denial or revocation shall be based solely on the approval criteria set forth in this section. The appeals official shall render a decision on the appeal within two business days after the date of the hearing.

(2) The decision of the appeals official is subject to review in the superior court of the county by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after the applicant has received notice of the decision. Unless good cause exists to contest a petition for writ of certiorari, the city shall stipulate to certiorari no later than five business days after the petitioner requests such a stipulation. The city shall transmit the record to the court no later than five business days after receiving the order allowing certiorari. Notwithstanding the provisions of any local rule of the reviewing court that allows for a longer time period, the city shall file its brief within 15 days after it is served with the petitioner's brief. If the petitioner serves his brief by mail, the city shall add three days to this time limit, in accordance with G.S. 1A-1, rule 5. If the local rule is subsequently amended to provide for a shorter time period for the filing of any brief, then the shorter time period shall control. The North Carolina Rules of Appellate Procedure shall govern an appeal by an applicant from the superior court of the county.

(Ord. No. 2761, § 1, 10-11-2004; Ord. No. 2831, §§ 1, 2, 11-22-2004)

Sec. 15-251. Violations; penalty.

(a) It shall be unlawful for any person to violate any provision of this article or to violate any term or condition of a carnival permit issued pursuant to this article.

(b) It shall be unlawful for any person to operate or cause to be operated a carnival without a valid carnival permit.

(c) It shall be unlawful for any person to operate or cause to be operated a carnival and said person knows or should know that the permit for that carnival has been revoked.

(d) Any violation of any provision of this article may be punishable as a Class 3 misdemeanor and be subject to a maximum fine not to exceed $500.00 pursuant to G.S. 160A-175 and G.S. 14-4.
(Ord. No. 2761, § 1, 10-11-2004; Ord. No. 278, § 5, 4-4-2022)

Sec. 15-252. Civil injunction.

In addition to prosecution for criminal violations, any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175.
(Ord. No. 2761, § 1, 10-11-2004)

ARTICLE XI. PROSTITUTION-EXCLUSION ZONES

Sec. 15-253. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Appeals official means the city manager, or his designee.

Arrest means to place a person under actual or constructive restraint or to take a person into custody for the purpose of charging that person with an offense.

Conviction means an adjudication of guilt following a trial or a plea of guilty or no contest in a criminal case.

Essential needs mean food, physical care, and medical attention.

Prostitution-exclusion zone means an area of the city as designated by city council under this article, which is an area where the number of arrests for any of the offenses enumerated in section 15-255 for the preceding 12-month period is significantly higher than that for other similarly sized geographic areas of the city that are not located within a prostitution-exclusion zone.

Right-of-way means the area on a public roadway, highway, street, bicycle lane, or sidewalk, and associated adjacent land, in which the city has a property interest, whether by easement or fee and regardless of how acquired or established, for public travel purposes.

Travel means the movement on foot or within a vehicle within a prostitution-exclusion zone from one point to another without delay other than to obey traffic control devices.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-254. Designation of prostitution-exclusion zones.

(a) If the city council designates an area as a prostitution-exclusion zone, council shall do so by ordinance. The designation shall be valid for a period of three years and three months.

(b) The chief of police of the Charlotte-Mecklenburg Police Department is directed to report to city council at least 90 days before the end of the three year and three month period, as to whether there is a need to reauthorize or reconfigure the prostitution-exclusion zones enumerated in section 15-260.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-255. Civil exclusions.

(a) A person is subject to exclusion for a period of 90 days from any public right-of-way within a prostitution-exclusion zone if that person has been arrested and a magistrate has issued a magistrate's order, pursuant to G.S. 15A-511(c), based upon probable cause to believe that the person has committed any of the following offenses within that prostitution-exclusion zone, unless the offense was committed entirely within a private residence:

(1) Maintain or operate a conveyance for the purpose of prostitution or assignation, in violation of G.S. 14-204(1);

(2) Occupy a conveyance or permit a conveyance to be used for the purpose of prostitution or assignation, in violation of G.S. 14-204(2);

(3) Receive, offer or agree to receive any person into a conveyance for the purpose of prostitution or assignation, in violation of G.S. 14-204(3);

(4) Direct, take or transport, or offer or agree to take or transport any person to any place, structure, or building or to any other person, with knowledge or reasonable cause to know that the purpose of such directing, taking, or transporting is prostitution or assignation, in violation of G.S. 14-204(4);

(5) Procure or solicit, or offer to procure or solicit for the purpose of prostitution or assignation, in violation of G.S. 14-204(5);

(6) Enter or remain in any conveyance for the purpose of prostitution or assignation, in violation of G.S. 14-204(6);

(7) Engage in prostitution or assignation, or aid or abet prostitution or assignation, in violation of G.S. 14-204(7);

(8) Loitering for the purpose of engaging in prostitution or crime against nature, in violation of G.S. 14-204.1;

(9) Crime against nature, in violation of G.S. 14-177; or

(10) Soliciting crime against nature, in violation of G.S. 14-177 and the common law of the state.

The aforesaid 90-day exclusion will cease immediately if the person arrested or otherwise taken into custody for the offenses listed above is subsequently acquitted of the charge(s) or said charge(s) is/are dismissed.

(b) A one-year exclusion from any public right-of-way within a prostitution-exclusion zone shall take effect upon the date of conviction for any of the offenses enumerated in subsection (a) if that offense was committed within that prostitution-exclusion zone. The fact that a conviction is being appealed shall not stay the exclusion.

(c) A one-year exclusion from any public right-of-way within a prostitution-exclusion zone shall be a condition of deferred prosecution for any person entering the deferred prosecution program of the division of community corrections for any of the offenses enumerated in subsection (a) if that offense was committed within that prostitution-exclusion zone. There shall be no right of appeal from the issuance of such an exclusion.

(d) Except as allowed under subsection 15-258(c), a person excluded from a prostitution-exclusion zone under authority of this section may not enter that prostitution-exclusion zone except to:

(1) Attend a meeting with an attorney;

(2) Attend a scheduled initial interview with a social service provider;

(3) Comply with court- or corrections-ordered obligations;

(4) Contact criminal justice personnel at a criminal justice facility;

(5) Attend any administrative or judicial hearing relating to an appeal of:

a. The person's notice of exclusion; or

b. The denial, revocation, or amendment of the person's variance;

(6) Travel through that prostitution-exclusion zone on a public transportation vehicle; or

(7) Travel through that prostitution-exclusion zone on the I-77, I-277, I-85 or I-485 freeways within its boundaries.

(e) While in a prostitution-exclusion zone, a person who is otherwise excluded may travel only directly to and from the obligations enumerated in subsection (d).

(f) If an excluded person is in the prostitution-exclusion zone from which that person is excluded, in violation of the exclusion during the exclusion period, that person is subject to arrest for second degree trespass pursuant to G.S. 14-159.13.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-256. Issuance of exclusion notices.

The chief of police and his designees are the persons in charge of the public rights-of-way in the prostitution-exclusion zones for purposes of issuing notices of exclusion in accordance with this article.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-257. Procedure.

(a) If a person is arrested and a magistrate has issued a magistrate's order, pursuant to G.S. 15A-511(c), based upon probable cause to believe that the person has committed any of the offenses enumerated in subsection 15-255(a) within a prostitution-exclusion zone, the chief of police or his designees shall exclude that person from that prostitution-exclusion zone. Every person excluded shall be provided a notice of exclusion and variances.

(b) At the time a person is issued a notice of exclusion from a prostitution-exclusion zone, the chief of police or his designees shall issue those variances described in subsections 15-258(c)(2) through (6), and may do a preliminary review with the excluded person of the need for an additional variance and may issue a general variance pursuant to the process described in subsection 15-258(c).

(c) The notice of exclusion shall be in writing and a copy delivered to the excluded person. The notice of exclusion shall specify the following:

(1) The area designated as a prostitution-exclusion zone in section 15-260 from which that person is excluded; and

(2) Information concerning the right to appeal the exclusion to the appeals official.

(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-258. Appeal and variances.

(a) Appeal of notice of exclusion, denial of variance, denial of amendment to variance, and revocation of variance. A person to whom a notice of exclusion is issued, whose request for a variance or an amendment to a variance is denied, or whose variance is revoked, shall have a right to appeal as follows:

(1) Appeals shall be made to the appeals official.

(2) Copies of documents in the city's control which are intended to be used at the hearing shall be made available, upon request, to the appellant.

(3) An appeal of a 90-day notice of exclusion must be filed, in writing, within five calendar days following issuance of the notice of exclusion.

(4) An appeal of a one-year conviction-based exclusion must be filed, in writing, within five calendar days following the date of conviction.

(5) An appeal of:

a. A denial of a request for a variance; or

b. A denial of a request for an amendment to a variance; or

c. A revocation of a variance must be filed, in writing, within five calendar days following the action regarding the variance.

(6) Within five business days after the receipt of the appeal, or such longer period of time as agreed to by the appellant, the appeals official shall hold a quasi-judicial hearing on an appeal and shall render a decision on the appeal at the conclusion of the hearing. The decision of the appeals official shall be based solely on the criteria set forth in this section.

(7) A 90-day exclusion shall not take effect during the time that an appeal of the 90-day exclusion is pending. If no appeal is taken, the initial 90-day exclusion shall take effect at 12:01 a.m. on the sixth calendar day following the issuance of the notice of exclusion.

(8) A one-year conviction-based exclusion shall take effect at 12:01 a.m. on the calendar day following the date of conviction and, notwithstanding an appeal of

the exclusion, shall remain in effect unless the appeals official issues a contrary decision.

(9) At the hearing on an appeal of a 90-day exclusion, the city shall have the burden to show by a preponderance of the evidence that the appellant committed any of the offenses enumerated in subsection 15-255(a), and that the conduct supporting the exclusion occurred within a prostitution-exclusion zone.

(10) At the hearing on an appeal of a one year conviction-based exclusion, the city shall have the burden to show by a preponderance of the evidence that the appellant committed any of the offenses enumerated in subsection 15-255(a), and that the conduct supporting the exclusion occurred within a prostitution-exclusion zone.

(11) At the hearing on an appeal of a denial of a request for a variance provided in subsection 15-258(a)(5)a., the city shall have the burden to show by a preponderance of the evidence that the denial was in accordance with this section.

(12) At the hearing on an appeal of a denial of a request for an amendment to a variance provided in subsection 15-258(a)(5)b., the city shall have the burden to show by a preponderance of the evidence that the denial was in accordance with this section.

(13) At the hearing on an appeal of a revocation of a variance provided in subsection 15-258(a)(5)c., the city shall have the burden to show by a preponderance of the evidence that any of the conditions enumerated in this section supporting revocation existed at the time of revocation.

(14) At the hearing on an appeal of a 90-day exclusion, the following shall be prima facie evidence that the exclusion was based on probable cause to believe that the appellant committed any of the offenses enumerated in subsection 15-255(a):

a. A determination by a judicial official having jurisdiction over the offense that forms the basis for the exclusion, that probable cause existed to arrest the person to whom the initial 90-day notice of exclusion was issued for violation of any of the offenses enumerated in subsection 15-255(a); or

b. Criminal process charging the person to whom a 90-day notice of exclusion was issued, for violation of any of the offenses enumerated in subsection 15-255(a).

(15) At the hearing on an appeal of a one year conviction-based exclusion, a judgment of conviction for any of the offenses that formed the basis for the exclusion, as enumerated in subsection 15-255(a), shall be conclusive evidence that the described conduct occurred.

(b) *Review of decision of appeals official.* The decision of the appeals official is subject to review in the superior court of the county by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after the appellant has received notice of the decision. Unless good cause exists to contest a petition for writ of certiorari, the city shall stipulate to certiorari no later than five business days after the petitioner requests such a stipulation. The city shall transmit the record to the court no later than five business days after receiving the order allowing certiorari. Notwithstanding the provisions of any local rule of the reviewing court that allows for a longer time period, the city shall file its brief within 15 days after it is served with the petitioner's brief. If the petitioner serves his brief by mail, the city shall add three days to this time limit, in accordance with G.S. 1A-1, rule 5. If the local rule is subsequently amended to provide for a shorter time period for the filing of any brief, then the shorter time period shall control. The

North Carolina Rules of Appellate Procedure shall govern an appeal by an appellant from the superior court of the county.

(c) *Variances.* Variances shall be granted, denied, amended, or revoked in accordance with the following provisions:

All variances shall be in writing, for a specific period and only to accommodate a specific purpose, all of which shall be stated on the variance.

The purpose of the variance is to allow only travel to and from locations within a prostitution-exclusion zone according to the terms of the variance. The variance must be carried on the person while in a prostitution-exclusion zone in order to be effective and must be presented to a Charlotte-Mecklenburg Police Department officer upon request.

An excluded person shall make a request for a variance during regular business hours at the Charlotte-Mecklenburg Police Department division office that was responsible for the arrest that resulted in the exclusion or at the main headquarters building.

(1) *General variance.* The chief of police or his designees may, for any reason, grant an excluded person a variance from an exclusion at any time during an exclusion period. Except as described in subsection 15-257(b), an appropriate variance shall be granted to an excluded person who presents a plausible need to engage in any non-criminal activity that is not associated with the behavior supporting the person's exclusion. A variance granted under this subparagraph allows travel within the prostitution-exclusion zone only in accordance with the terms specified in the variance.

(2) *Residential variance.* The chief of police or his designees shall grant a residential variance to an excluded person. A residential variance allows travel within the prostitution-exclusion zone directly to or from the person's residence.

(3) *Essential needs variance.* The chief of police or his designees shall grant an essential needs variance to an excluded person. An essential needs variance allows travel within the prostitution-exclusion zone in accordance with the terms of the variance:

a. To access a public or private place within the prostitution-exclusion zone that provides an essential need;

b. When the essential need sought by the excluded person cannot reasonably be accessed by the excluded person without entering the prostitution-exclusion zone.

(4) *Employment variance.* The chief of police or his designees shall grant an employment variance to an excluded person. An employment variance allows an excluded person to travel to, from or for work within the prostitution-exclusion zone in accordance with the terms of the variance if the excluded person:

a. Is an owner, principal, agent or employee of a place of lawful employment located in the prostitution-exclusion zone; or

b. Is required to perform employment-related services in the prostitution-exclusion zone.

(5) *Social services variance.* The chief of police or his designees shall grant a social services variance to an excluded person. A social services variance allows travel within the prostitution-exclusion zone in accordance with the terms of the variance if the excluded person:

a. Is in need of social services in the prostitution-exclusion zone;

b. The social services are sought for reasons relating to the health or well-being of the excluded person; and

c. The social services agency has written rules and regulations prohibiting the unlawful use and sale of controlled substances by their clients.

(6) *Educational variance.*

a. The chief of police or his designees shall grant an educational variance to an excluded person. An educational variance allows travel within the prostitution-exclusion zone in accordance with the terms of the variance:

1. To enroll as a student at an educational facility located within the prostitution-exclusion zone; or

2. To attend school at an educational facility located within the prostitution-exclusion zone.

b. The chief of police or his designees may grant an educational variance to an excluded person to allow travel within the prostitution-exclusion zone in accordance with the terms of the variance if the excluded person will be enrolled at an educational facility within the prostitution-exclusion zone if the variance is granted.

(d) *Revocation or amendment of variances.* Variances may be revoked or amended in accordance with the following provisions:

(1) A variance may be revoked or amended for the following reasons:

a. The excluded person provided false information in order to obtain the variance;

b. There is probable cause to believe the person has committed any of the offenses enumerated in subsection 15-255(a) in the prostitution-exclusion zone subsequent to the issuance of the variance;

c. If the circumstances giving rise to the issuance of the variance no longer support a continuation of the variance or a term thereof; or

d. If the person has new circumstances that would support amending the variance.

(2) Residential variance exception:

a. A residential variance may be revoked only if the applicant provided false residential information in order to obtain the variance; or

b. If the circumstances giving rise to the issuance of the variance no longer support the continuation of the variance.

(e) It shall be unlawful for any person to violate any term of any variance issued pursuant to this section.

(f) It shall be unlawful for any person to fail to carry a variance on his person or to present a variance to a Charlotte-Mecklenburg Police Department officer upon request while that person is in a prostitution-exclusion zone.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-259. Penalty.

Any person who violates any provision of this article shall be guilty of a misdemeanor as provided in G.S. 14-4.
(Ord. No. 2913, § 1, 2-28-2005)

Sec. 15-260. Listing of prostitution-exclusion zones.

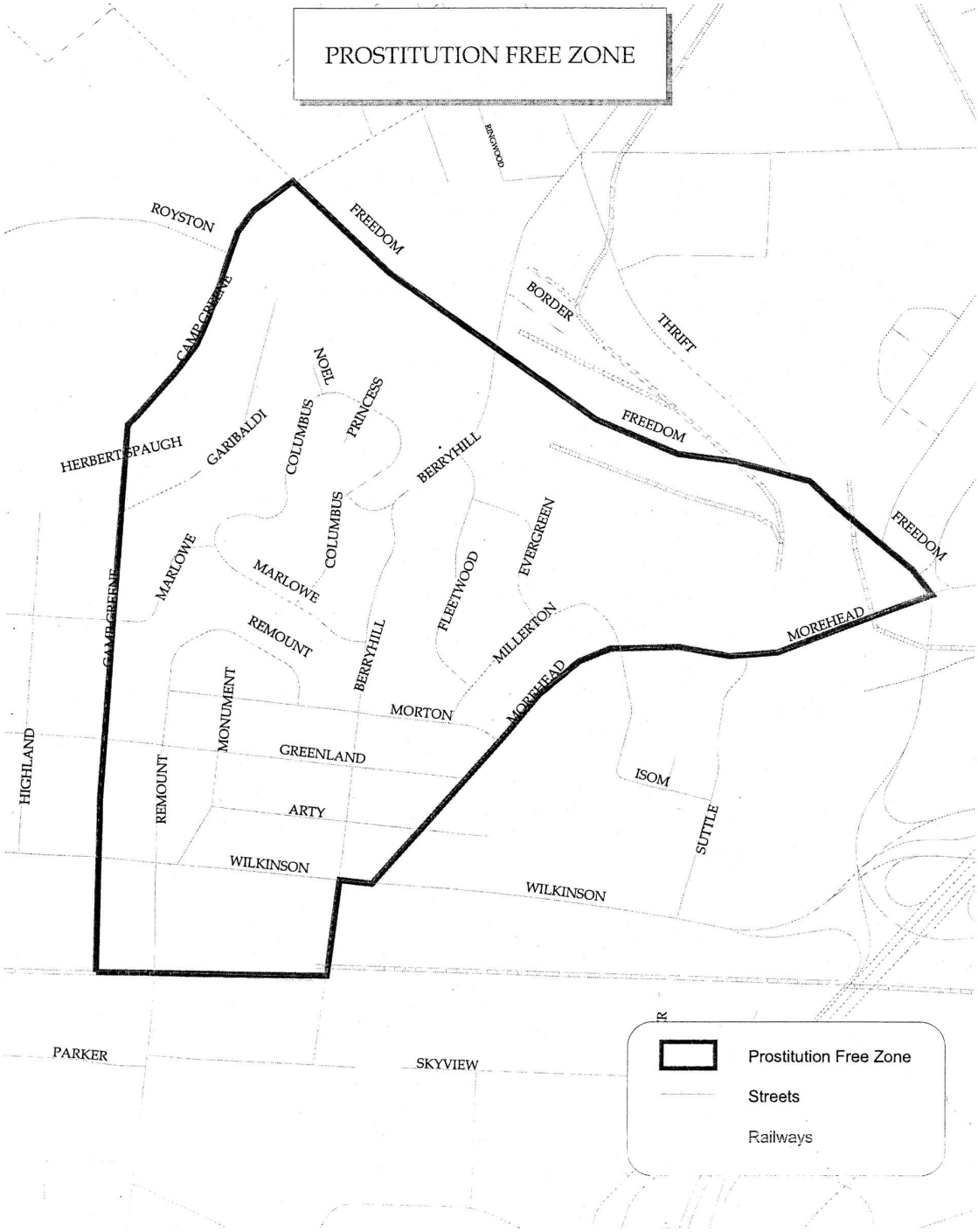
The following description shall comprise the boundaries of the prostitution-exclusion zones listed, and the prostitution-exclusion zones shall include the entire area on and within the listed boundaries.

Metro Zone: Beginning within the northerly intersection of Camp Greene Street and Freedom Drive, said point also being described as the intersection point of the northerly right-of-way margin of Camp Greene Street and the northerly right-of-way margin of Freedom Drive; thence in a southeasterly direction crossing said Camp Greene Street along and with the northerly right-of-way margin of said Freedom Drive to a point located on the westerly right-of-way margin of Berryhill Road; thence crossing said Berryhill Road continuing in a southeasterly direction along and with the northerly right-of-way

margin of Freedom Drive to a point located on the westerly right-of-way margin of Thrift Road, said point being located within the northwesterly intersection of said streets; thence crossing over the Thrift Road and Freedom Drive intersection along and with the extension of the aforesaid northerly right-of-way margin of said Freedom Drive to a point located on the easterly right-of-way margin of Thrift Road, also being the northerly right-of-way margin of Freedom Drive; thence in a southeasterly direction continuing along and with the northerly right-of-way margin of said Freedom Drive to a point located on the northwesterly right-of-way margin of Woodruff Place; thence crossing said Woodruff Place continuing in a southeasterly direction along and with the northerly right-of-way margin of Freedom Drive to a point located on the northwesterly right-of-way margin of Walnut Avenue; thence crossing over the Walnut Avenue and Freedom Drive intersection to a point located on the southeasterly right-of-way margin of said Walnut Avenue, said point marking the beginning of a curve to the left having a radius of 100 feet and an arc length of 168.72 feet, as shown on Map Book 3, Page 225, as recorded in the Mecklenburg County Register of Deeds Office; thence along and with said curve 168.72 feet to a point located on the northerly right-of-way margin of West Morehead Street; thence crossing said West Morehead Street in a south southwesterly direction to a point located on the southerly right-of-way margin of said street and also being located on the easterly right-of-way margin of Freedom Drive; thence crossing said Freedom Drive in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the easterly right-of-way margin of Bryant Street (not open); thence crossing said Bryant Street (not open) continuing in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the easterly right-of-way margin of Suttle Avenue; thence crossing said Suttle Avenue continuing in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the easterly right-of-way margin of Julian Price Place; thence crossing said Julian Price Place continuing in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the easterly right-of-way margin of Morton Street; thence crossing said Morton Street continuing in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the easterly right-of-way margin of Arty Avenue; thence crossing said Arty Avenue continuing in a southwesterly direction along and with the southerly right-of-way margin of West Morehead Street to a point located on the northerly right-of-way margin of Wilkinson Boulevard; thence crossing said Wilkinson Boulevard continuing in a southwesterly direction with the southerly right-of-way margin of West Morehead Street (extended) to a point located on the southerly right-of-way margin of said Wilkinson Boulevard; thence along and with the southerly right-of-way margin of Wilkinson Boulevard in a westerly direction to a point located on the easterly right-of-way margin of Berryhill Road; thence leaving the said southerly right-of-way margin of Wilkinson Boulevard in a southerly direction along and with the easterly right-of-way margin of said Berryhill Road to a point located in the centerline of the Norfolk Southern Railroad right-of-way; thence leaving the easterly right-of-way margin of Berryhill Road and crossing said road in a westerly direction along and with the center line of the Norfolk Southern Railroad right-of-way to a point located on the easterly right-of-way margin of Remount Road; thence crossing said Remount Road continuing in a westerly direction along and with the center line of the Norfolk Southern Railroad approximately 411 feet to the southwest corner of Tax Parcel 117-011-09, also described as #2501 Wilkinson Boulevard; thence leaving the center line of the Norfolk Southern Railroad in a northerly direction along and with the westerly property line of Tax Parcel 117-011-09 approximately 434 feet to a point, said point being the westerly most corner of said Tax Parcel 117-011-09 and also being the

southwest corner of Tax Parcel 117-011-10, also described as #2533 Wilkinson Boulevard; thence continuing in a northerly direction along and with the westerly property line of said Tax Parcel 117-011-10 approximately 150 feet to a point, said point being the northwest corner of said Tax Parcel 117-011-10, being located on the southerly right-of-way margin of Wilkinson Boulevard; thence crossing said Wilkinson Boulevard in a northerly direction to a point located on the northerly right-of-way margin of said Wilkinson Boulevard and the westerly right-of-way margin of Camp Greene Street; thence continuing in a northerly direction along and with the westerly right-of-way margin of said Camp Greene Street to a point located on the southerly right-of-way margin of Greenland Avenue; thence crossing said Greenland Avenue continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to a point located on the southerly right-of-way margin of Marlowe Avenue; thence crossing said Marlowe Avenue continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to a point located on the southerly right-of-way margin of Seabrook Drive; thence crossing said Seabrook Drive continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to a point located on the southerly right-of-way margin of Herbert Spaugh Lane; thence crossing said Herbert Spaugh Lane continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to a point located on the southerly right-of-way margin of Weyland Avenue; thence crossing said Weyland Avenue continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to a point located on the southerly right-of-way margin of Royston Road; thence crossing said Royston Road continuing in a northerly direction along and with the westerly right-of-way margin of Camp Greene Street to the point and place of beginning.

(Ord. No. 2913, § 1, 2-28-2005)


PROSTITUTION FREE ZONE
RINGWOOD
ROYSTON
FREEDOM
CAMP GREENE
BORDER
THRIFT
NOEL
PRINCESS
COLUMBUS
GARIBALDI
HERBERT SPAUGH
BERRYHILL
FREEDOM
FREEDOM
MARLOWE
MARLOWE
COLUMBUS
EVERGREEN
FLEETWOOD
CAMP GREENE
REMOUNT
BERRYHILL
MILLERTON
MOREHEAD
MOREHEAD
MONUMENT
MORTON
HIGHLAND
GREENLAND
REMOUNT
ISOM
ARTY
SUTTLE
WILKINSON
WILKINSON
PARKER
SKYVIEW
Prostitution Free Zone
Streets
Railways

Secs. 15-261—15-269. Reserved.

ARTICLE XII. PUBLIC TRANSPORTATION SYSTEM

Sec. 15-270. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Proof of fare payment means the ticket or receipt, if any, valid for the status of the passenger and the time of use, given to a person by the city upon the tender of the proper fare for a specific public transportation service.

Public transportation system means any property, real or personal, owned, leased, or controlled by the city and used to operate, maintain or provide public transportation services by rail, motor vehicle, or any other means of conveyance. "Public transportation system" shall also include any property, real or personal, owned, leased, or controlled by the city and used to operate, maintain or provide rapid transit services.

Public transportation vehicle means any vehicle operated as part of the city's public transportation system including, but not limited to, buses, special transportation vehicles, trolleys, and passenger rail vehicles. For the purposes of this section, the term "public transportation vehicle" does not include any van operated as a part of the city's commuter vanpool program.

Rapid transit rail platform means real property owned or controlled by the city that is generally open for public use as an embarkation/disembarkation area or waiting area for any rail component of the public transportation system, including adjoining stairways, ramps, elevators, and attached equipment or fixtures.
(Ord. No. 3655, § 9, 7-23-2007)

Sec. 15-271. Proper fare and proof of fare payment.

(a) *Proper fare.*

(1) It shall be unlawful for any person to enter any public transportation vehicle for the purpose of riding therein and fail or refuse to pay the usual and proper fare.

(2) It shall be unlawful for any person to willfully enter or remain within any designated fare zone of the public transportation system either for purposes other than obtaining public transportation or without having paid the usual and proper fare.

(b) *Proof of fare payment.*

(1) It shall be unlawful for any person to fail to provide proof of fare payment while upon a public transportation vehicle when proof is requested by an authorized employee of the city, an authorized agent of the city, or a peace officer.

(2) It shall be unlawful for any person to fail to provide proof of fare payment while within a designated fare zone of the public transportation system, when proof is requested by an authorized employee of the city, an authorized agent of the city, or a peace officer.

(Ord. No. 3655, § 9, 7-23-2007; Ord. No. 4085, § 1, 1-8-2009)

Sec. 15-272. Public transportation vehicles; acts prohibited; rules of conduct.

(a) *Acts prohibited.* It shall be unlawful for any person to commit any of the following acts while in or on any public transportation vehicle anywhere within the state:

(1) Smoke or carry a lighted cigar, cigarette, pipe, or spit the residue of any other tobacco product including chewing tobacco;

(2) Consume any alcoholic beverage, as defined by G.S. ch. 18B, or possess an open container of any alcoholic beverage;

(3) Engage in any behavior that is disruptive, disturbing or exceeds a reasonable tolerance for the vehicle, including the use of profanity or abusive language that is likely to cause an immediate breach of the peace, or operate a digital or other

audio device used to receive and amplify or reproduce sound, unless the device is connected to an earphone or earphones;

(4) Take any animal onto the vehicle or allow any animal under his or her control to enter the vehicle; provided that this subsection (a)(4) does not apply to an assistance animal, especially trained for that purpose, while being so employed by a person with a disability or in training activities;

(5) Carry, possess, or have within his or her immediate access any dangerous weapon as established in subsection 15-14(a); this subsection (a)(5) shall not apply to those persons listed in subsection 15-14(c);

(6) Possess or transport gasoline, kerosene, propane, or similar flammable liquid or combustible material or other dangerous substances;

(7) Litter, as defined and prohibited by section 15-16;

(8) Vandalize the vehicle by writing, marking, or scribbling upon or otherwise defacing or causing destruction of the vehicle in any manner;

(9) Beg, solicit or panhandle as defined and prohibited by section 15-15;

(10) Excrete any bodily fluid or matter, including projecting spittle.

(b) *Application.* Pursuant to G.S. 160A-312(b), the provisions of this section shall apply to public transportation vehicles operated anywhere within the state.
(Ord. No. 3655, § 9, 7-23-2007)

Sec. 15-273. Rapid transit rail platforms and other public transportation system related property.

It shall be unlawful for any person to commit any of the following acts while in or on any rapid transit rail platform:

(1) Lie or sleep in a prone position on seats, tables or benches located on any rapid transit rail platform;

(2) Stand, sit, lie, or be within two feet of the rail side edge of the platform at anytime except when actually embarking or disembarking from a public transportation rail vehicle. This prohibition shall not apply to Charlotte Area Transit System (CATS) agents or employees in the discharge of their duties;

(3) Consume any alcoholic beverage, as defined by G.S. ch. 18B, or possess an open container of any alcoholic beverage;

(4) Engage in any behavior that is disruptive, disturbing or exceeds a reasonable tolerance in a manner that obstructs the public's access or use of the public transportation system;

(5) Litter, as defined and prohibited by section 15-16;

(6) Vandalize the platform by writing, marking, or scribbling upon or otherwise defacing or causing destruction of the platform in any manner;

(7) Beg, solicit or panhandle as defined and prohibited by section 15-15;

(8) Excrete any bodily fluid or matter, including projecting spittle;

(9) Ride upon any vehicle or device, including skates and skateboards, in a manner so as to place any person or property, including the rider, at an appreciable risk of injury.
(Ord. No. 3655, § 9, 7-23-2007)

Sec. 15-274. Other public transportation system related property.

It shall be unlawful for any person to commit any of the following acts while in or on any part of the public transportation system other than public transportation vehicles or rapid transit rail platforms:

(1) Enter or be present upon any areas not open to the public (generally or at that time) and posted as such, without proper authorization and purpose;

(2) Consume any alcoholic beverage, as defined by G.S. ch. 18B, or possess an open container of any alcoholic beverage;

(3) Engage in any behavior that is disruptive, disturbing or exceeds a reasonable tolerance in a manner that obstructs the public's access or use of the public transportation system;

(4) Litter, as defined and prohibited by section 15-16;

(5) Vandalize the property by writing, marking, or scribbling upon or otherwise defacing or causing destruction of the property in any manner.

(6) Beg, solicit or panhandle as defined and prohibited by section 15-15;

(7) Excrete any bodily fluid or matter, including projecting spittle (except in toilet facilities);

(8) Ride upon any vehicle or device, including skates and skateboards, in a manner so as to place any person or property, including the rider, at an appreciable risk of injury.

(Ord. No. 3655, § 9, 7-23-2007)

Sec. 15-275. Enforcement and penalties.

(a) *Violations.* Any person violating any section of this article shall be guilty of a class 3 misdemeanor. Additionally, a violation of any section of this article may be enforced by the issuance of a civil penalty in the amount of $50.00. If such civil penalty is not paid or appealed within 30 days from the date of issuance, an additional late fee civil penalty in the amount of $50.00 shall apply. A violation enforced through the issuance of a civil penalty may be appealed pursuant to section 2-25.

(b) *General rules of conduct.* Nothing in this article is intended to limit or restrict the city's authority to establish other customary and usual rules of conduct to promote the safety and welfare of or enhance the comfort and enjoyment of the public transportation system's users. The Charlotte Area Transit System (CATS) key business unit shall be responsible for promulgating general rules of conduct as herein authorized. The failure to abide by any such rule may be deemed a trespass pursuant to subsection (c).

(c) *Notice of violation; trespassing.* An authorized employee or agent of the city or a peace officer shall issue a warning to any person violating any general rule of conduct established in accordance with subsection (b). A person's continued violation of any general rule of conduct after having received the above warning shall constitute the crime of trespass.

(Ord. No. 3655, § 9, 7-23-2007)

Sec. 15-276. Administration.

The Charlotte Area Transit System (CATS) key business unit shall be responsible for the administration and enforcement of the provisions of this article and may duly authorize city employees and agents to request proof of fare payment and to designate fare zones.

(Ord. No. 3655, § 9, 7-23-2007; Ord. No. 4085, § 2, 1-8-2009)

Secs. 15-277—15-300. Reserved.

ARTICLE XIII. HOTEL AND MOTEL REQUIREMENTS*

Sec. 15-301. Regulation of lodging establishments.

(a) *Definitions.*

Amenity program means a program provided for approved customers for convenient check-in and registration.

Government issued identification means a valid driver's license, state or federal identification card or passport.

Lodging establishment means a hotel, motel, inn, tourist home, or other place that provides lodging accommodations to guests for pay.

*__Editor's note__—Ord. No. 3784, § 1, adopted January 14, 2008, enacted provisions intended for use as article XII, §§ 15-261—15-264. To preserve the style of this Code, and at the discretion of the editor, said provisions have been redesignated as article XIII, §§ 15-301—15-304.

Lodging unit means a room or suite in any hotel, motel, inn, tourist home or other place providing lodging accommodation for pay designed for the temporary housing of a guest.

Registered guest means a person who pays, registers and occupies a lodging unit at a particular lodging establishment.
(Ord. No. 3784, § 1, 1-14-2008)

Sec. 15-302. Prohibited acts.

(a) It shall be unlawful for any lodging establishment, person, owner, operator, general manager, night clerk or person responsible for the day to day operations of a lodging establishment to:

(1) Fail to number or designate in a plain and conspicuous manner each lodging unit. Such number or designation shall be placed on the outside of each lodging unit and no two lodging units shall bear the same number or designation, unless clearly designated as to a building, wing, or other identifier.

(2) Allow a guest to register or check in at the lodging establishment who does not provide a valid credit card or government issued identification except when a reservation is established by a confirmation number, or provided by an amenity program, kiosk, or on-line system.

(3) Charge a registered guest an hourly rate for a lodging unit except if:

i. The hourly extension was granted by the lodging establishment to accommodate a late check out; or

ii. The hourly extension is a partial day rate granted for flight layovers or other travel delays; or

iii. The hourly rate is established by a written company policy.

(4) Block 911 calls from a guest room.

(5) Knowingly allow a person to remain or return to the premises of the lodging establishment, or provide or continue to provide lodging to a registered guest or other person only where the registered guest or other person is participating in observable criminal activity in or on the property. This section does not apply to a lodging establishment if it is currently taking legal action to remove the registered guest or other person or has provided the registered guest or other person written notice to leave within a reasonable time period or the registered guest or other person has been notified to leave and has refused to leave.

(Ord. No. 3784, § 1, 1-14-2008; Ord. No. 9489, § 1, 1-14-2019)

Sec. 15-303. Guest registration information—Confidentiality.

Any guest registration obtained by police while conducting a criminal investigation shall be confidential and will not be released to the public except upon a receipt of a court order.
(Ord. No. 3784, § 1, 1-14-2008)

Sec. 15-304. Penalty.

A violation of this article may be punishable as a civil penalty in the amount of $100.00 pursuant to section 2-24.
(Ord. No. 3784, § 1, 1-14-2008; Ord. No. 274, § 7, 3-28-2022)

Secs. 15-305—15-309. Reserved.

ARTICLE XIV. RESERVED*

Secs. 15-310—15-313. Reserved.

ARTICLE XV. SOCIAL DISTRICTS

Sec. 15-314. Purpose and application.

Pursuant to the provisions of G.S. 160A-205.4 and Article 3 of G.S. ch. 18B, one or more social districts may be created within the city.

(1) Social districts shall be created, designated, and managed in accordance

*__Editor's note—__Ord. No. 9117, § 1, adopted June 26, 2017, repealed Art. XIV, §§ 15-310—15-313, which pertained to extraordinary events and derived from Ord. No. 4814(b), § 1, adopted Jan. 23, 2012.

with the requirements contained in G.S. ch. 18B and section 15-3 of the Charlotte Code of Ordinances.

(2) The provisions and terms contained in this article shall be applicable to each established social district in section 15-322. Under no circumstances shall any social district operate outside of the hours of 10:00 a.m. and 10:00 p.m. daily. At all other times, the provisions and terms contained in this article are not in effect and all provisions of state and local laws concerning the possession and consumption of alcoholic beverages shall be in full force and effect.

(3) Any alcoholic beverage purchased for consumption in a social district shall:

(i) Only be consumed in that social district; and

(ii) Be disposed of before the person in possession of the alcoholic beverage exits the social district.

(4) The city shall publish standards and provisions governing the process and rules for establishing and maintaining social districts. Any permittee that wishes to petition the city for the creation of a social district shall apply in accordance with the process prescribed in the standards and provisions pursuant to section 15-320. The permittee shall be responsible for operating its business in accordance with all city and state ordinances, laws, rules, and regulations governing social districts generally and the social district management and maintenance plan in section 15-322.

(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-315. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Customer means a person who purchases an alcoholic beverage from a permittee that is in a social district.

Mixed-use development means an integrated development containing both residential and nonresidential uses and adhering to a comprehensive plan and located on a single tract of land, or on two or more tracts of land which may be separated only by a privately maintained street or other right-of-way, or which may be contained in a single building.

Multi-tenant establishment means a building or structure, or multiple buildings and structures on the same property, or within the same planned development project, that may be subject to a common declaration of restrictive covenants administered by a common property owners' association, and under common ownership, control, or property owners' association governance, that contains or contain multiple businesses that sell food, goods, services, or a combination of food, goods, and services, and that include or are connected by common areas. The term multi-tenant establishment includes a mixed-use development.

Non-permittee business means a business that is located in a social district and does not hold any North Carolina Alcoholic Beverage Control Commission (ABC) permit.

Open container means a container that has a broken seal or a container other than the manufacturer's unopened original container.

Permittee means a person holding any of the following ABC permits:

(1) An on-premises malt beverage permit issued pursuant to G.S. 18B-1001(1).

(2) An on-premises unfortified wine permit issued pursuant to G.S. 18B-1001(3).

(3) An on-premises fortified wine permit issued pursuant to G.S. 18B-1001(5).

(4) A mixed beverages permit issued pursuant to G.S. 18B-1001(10).

(5) A wine shop permit issued pursuant to G.S. 18B-1001(16).

(6) A distillery permit issued pursuant to G.S. 18B-1100(5).

Person means an individual, firm, partnership, association, corporation, limited liability company, other organization or group, or other combination of individuals acting as a unit.

Premises means a fixed permanent establishment, including all areas inside or outside the licensed establishment, where the permittee has control through a lease, deed, or other legal process.

Public street means any highway, road, street, avenue, boulevard, or other way within and under the control of the city or state and open to public use, including the sidewalks of any such street.

Social district means a defined area in which a person may consume alcoholic beverages sold by a permittee. A social district may include both indoor and outdoor areas of businesses within or contiguous to the defined area during the days and hours established for the social district pursuant to section 15-314. A social district may include privately owned property, including permittees and non-permittee businesses, and multi-tenant establishments, and public streets, crosswalks, or parking areas whether or not the streets or parking areas are closed to vehicle traffic.
(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-316. Sale of open containers of alcoholic beverages in social districts.

It shall be unlawful for a permittee located in a social district to sell open containers of alcoholic beverages and allow customers to exit its licensed premises to the social district unless the permittee meets the following requirements:

(1) Permittee is located in an ABC approved and City of Charlotte adopted social district.

(2) The permittee shall only sell an open container of an alcoholic beverage for consumption in the social district and off the premises of the permittee in a container that meets all of the following requirements:

a) The container clearly identifies the permittee from which the alcoholic beverage was purchased.

b) The container clearly displays a logo or some other mark that is unique to the social district in which it will be consumed.

c) The container is not comprised of glass.

d) The container displays, in no less than 12-point font, the statement, "Drink Responsibly - Be 21."

e) The container shall not hold more than 16 fluid ounces.

(3) Nothing in this section shall be construed to authorize the sale and delivery of alcoholic beverage drinks in excess of the limitation set forth in G.S. 18B-1010.

(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-317. Responsibilities of non-permittee businesses in social districts.

Any non-permittee business that is part of a social district and allows customers to bring alcoholic beverages onto its premises is not responsible for enforcement of G.S. ch. 18B but must comply with the following requirements:

(1) Clearly post signage at any exits that do not open to the social district indicating that alcoholic beverages may not be taken past that point.

(2) Post the uniform signage provided to the non-permittee business indicating that customers may bring alcoholic beverages onto the premises of the non-permittee business during the days and hours that the social district is active.

(3) Allow law enforcement officers access to the areas of the premises accessible by customers during the days and hours that the social district is active.

(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-318. Requirements for possession and consumption of open containers of alcoholic beverages in social districts.

Except where otherwise allowed by local ordinance, it shall be unlawful to possess or consume an open container of an alcoholic beverage in a social district during the hours established for the social district pursuant to section 15-314 unless:

(1) The alcoholic beverage is purchased from a permittee located in the social district;

(2) The customer-purchased open container of alcoholic beverage is in a container meeting the requirements set forth in section 15-316 of this article, except for open containers sold by a permittee for consumption on the permittee's premises;

(3) The person does not possess at one time open containers of alcoholic beverages in the social district in excess of the number of alcoholic beverages that may be sold and delivered by a retail permittee as set forth in G.S. 18B-1010;

(4) The person does not enter the premises of a non-permittee business in the social district with an open container of an alcoholic beverage unless the non-permittee business has the uniform sign for the social district as set forth in section 317 displayed; or

(5) The person disposes of any open container of an alcoholic beverage purchased from a permittee in the person's possession prior to exiting the social district unless the person is reentering the licensed premises of the permittee where the alcoholic beverage was purchased.

Notwithstanding G.S. 18B-300 and G.S. 18B-301, a permittee or non-permittee business may allow a customer to possess and consume on the business's premises alcoholic beverages purchased from a permittee in the social district.
(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-319. Multi-tenant establishments.

Permittees and non-permittee businesses in a multi-tenant establishment located within a social district may participate in the social district regardless of whether the multi- tenant establishment has a common area entertainment ABC permit.
(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-320. Standards and provisions.

The city manager or designee is authorized to adopt, amend, and repeal standards and provisions governing the application process and requirements for the establishment, management, and maintenance of social districts. Before beginning to operate, each social district's management and maintenance plan shall be approved by city council. It shall be unlawful to operate a social district in violation of the standards and provisions adopted pursuant to this section.
(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-321. Exceptions.

For the health and safety of the general public, the city manager or designee shall have the authority to temporarily suspend the days and hours of operation of a social district.
(Ord. No. 373, § 2, 8-22-2022)

Sec. 15-322. Established social districts.

(a) Plaza Midwood Social District. The Plaza Midwood Social District shall be established and is designated as shown on a map dated October 5th, 2023 that is available in the Office of the City Clerk. Signage and/or markings shall be posted clearly delineating the boundaries of the social district. Days and hours of operation shall be between the hours of 10:00 a.m. and 10:00 p.m., Monday through Sunday.

(b) Reserved.
(Ord. No. 373, § 2, 8-22-2022; Ord. No. 646, § 1, 10-23-2023)

Chapter 16

POLICE*

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Article II. Department

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Sec. 16-27. Composition.
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Division 2. Citizens Review Board

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Sec. 16-64. Miscellaneous.

*__Cross references—__Administration, ch. 2; motor vehicles and traffic, ch. 14; offenses and miscellaneous provisions, ch. 15.
__State law references—__Municipal law enforcement, G.S. 160A-281 et seq.; public records, G.S. 132-1 et seq.

ARTICLE I. IN GENERAL

Secs. 16-1—16-25. Reserved.

ARTICLE II. DEPARTMENT*

DIVISION 1. GENERALLY

Sec. 16-26. Control and supervision.

The chief of police of the Charlotte-Mecklenburg Police Department, subject to the general supervision of the city manager, is held responsible for the discipline, good order and proper conduct of the department.
(Code 1985, § 16-16)

Sec. 16-27. Composition.

The personnel of the police department shall consist of a chief of police and such other officers and employees as may be authorized from time to time by the council.
(Code 1985, § 16-17)

Sec. 16-28. Power and authority.

(a) Law enforcement officers of the city shall have all powers and authorities, which are or may be vested in them by the laws of this state and by this Code. Such powers shall include, but not necessarily be limited to, the enforcement of state statutes and sections of this Code affecting the peace and well-being of the city.

(b) By empowering other city personnel to administer and enforce certain sections of this Code, the city council in no way intends to limit, nor does it limit, the power of law enforcement officers of this city to administer and enforce sections of this Code by the issuance of citations or by any other lawful means.
(Code 1985, § 16-18)

Sec. 16-29. Appointment and compensation of members.

Members of the police department shall be appointed by the city manager from the appropriate register prepared by the civil service board, and they shall be entitled to such pay and allowances as may from time to time be fixed by the council.
(Code 1985, § 16-19)

Sec. 16-30. Workers compensation for Charlotte-Mecklenburg Police Reserve Officers.

(a) A Charlotte-Mecklenburg Reserve Officer who is injured while undergoing official training or while performing official law enforcement duties on behalf of the city, shall be entitled to benefits pursuant to law under the North Carolina Workers' Compensation Act.

(b) Nothing in this section prohibits the city from asserting a defense or from entering into negotiations with any party.
(Ord. No. 3666-X, § 1, 8-27-2007)

Secs. 16-31—16-55. Reserved.

DIVISION 2. CITIZENS REVIEW BOARD†

Sec. 16-56. Creation; composition; terms; compensation; appointments; vacancies; quorum; removal.

(a) There is hereby established a citizens review board to be composed of 11 members: five members to be appointed by the city council, three members to be appointed by the mayor and three to be appointed by the city manager. The appointing authorities shall strive to appoint a board that represents the diversity of the community.

(b) Candidates for the board may be interviewed by a panel comprised of a representative from the community relations committee, the citizens review board, and the city manager's office to assess core characteristics necessary to serve on the board. Such panels shall provide their assessments to the relevant appointing authority.

*__Charter reference—__Civil service, § 4.61.

†__Editor's note—__Ord. No. 5259, § 1, adopted November 25, 2013, amended division 2 in its entirety to read as herein set out. Formerly, division 2 pertained to similar subject matter, and derived from the Code of 1985, §§ 16-34—16-42; Ord. No. 1779, § 1, adopted March 26, 2001, and Ord. No. 2344, § 1, adopted July 28, 2003.

(c) Members must be continually domiciled within the county and must be registered to vote within the county. Current and former city employees, and the spouse, parents, and children of a current or former CMPD officer, shall not be eligible to serve on the board.

(d) Board members shall attend and successfully complete the Charlotte-Mecklenburg Police Department's Citizens' Academy and receive training on relevant legal, policy and cultural awareness issues as required by the city manager. This training must be completed prior to any board appointee serving as a member of the board. In addition, each members of the board shall participate in at least four hours of training each calendar year, which training may include a four-hour "ride-along" with a CMPD officer.

(e) Individuals with a felony conviction or a Class A1 misdemeanor conviction shall not be eligible to serve on the board. In addition, individuals with a Class 1 or Class 2 misdemeanor conviction within three years of their nomination for appointment shall be ineligible to serve. Further, conviction of or a plea of nolo contendere to a felony, a Class A1 misdemeanor, a Class 1 misdemeanor, or a Class 2 misdemeanor during the term of office shall automatically terminate membership on the board, irrespective of any appeals. Board members charged with a felony, a Class A1 misdemeanor, a Class 1 misdemeanor, or a Class 2 misdemeanor during a term of office shall be automatically suspended until disposition of the charge, and a quorum shall be established from the remaining membership.

(f) Prior to serving, each board member must sign a confidentiality agreement that is satisfactory to the city and which shall require that members maintain as confidential any information classified as confidential by state law or otherwise classified as confidential by the city.

(g) The members shall serve staggered terms of office for three years, with no member serving more than two consecutive terms.

(h) The board shall elect a chairperson and vice-chairperson from the membership.

(i) When a vacancy occurs, the original appointing authority shall appoint a person to serve for the unexpired term of the vacant position.

(j) Six members shall constitute a quorum in order to hold business meetings and hearings. Members are required to attend all business meetings and hearings in accordance with the attendance policies promulgated by the city council. Vacancies resulting from a member's failure to attend the required number of meetings shall be filled as provided in this section.

(k) All members shall serve without compensation.

(l) Members of the board shall be subject to removal from office by a two-thirds vote of the city council.
(Ord. No. 5259, § 1, 11-25-2013; Ord. No. 9118, § 1, 6-26-2017; Ord. No. 1032, § 1(Exh. A), 10-27-2025)

Sec. 16-57. Meetings.

(a) The citizens review board shall hold regular meetings as scheduled by resolution of the board. The affirmative vote of a majority, a quorum being present, shall be required before any recommendation is made on any matter considered. A majority vote shall be required for any decision made by the board.

(b) Special meetings may be called by the chairperson to carry out any duties described in section 16-58 by giving each member notice in writing, by providing personal notice, or by leaving notice at the member's residence not less than 72 hours prior to the time set for the meeting.
(Ord. No. 5259, § 1, 11-25-2013)

Sec. 16-58. Duties and responsibilities.

(a) The citizens review board shall:

(1) Serve as an advisory board to the chief of police, the city manager, and the city council.

(2) Hear appeals by the citizens who filed complaints of disciplinary dispositions imposed by the chief of police or his designee relating to allegations of

misconduct against a sworn police officer. The board may hear appeals of complaints regarding alleged violations of the following rules: response to resistance (use of force), unbecoming conduct, arrest, search and seizure, arbitrary profiling, and neglect of duties. In addition, the disposition of the review of any discharge of a firearm by an officer which results in the death or injury of a person may be appealed to this board by the person injured or the next of kin if death occurs. When a death results and there is no next of kin, any member of the city council or the chairperson of the community relations committee may file an appeal pursuant to section 16-59. The disciplinary actions that may be reviewed shall include the findings of the chief of police that an allegation has been categorized as: sustained, not sustained, exonerated, or unfounded. The dispositions that may be reviewed for the discharge of firearms shall include: justified, not justified, or accidental. The board may review only appeals of citizen complaints arising from incidents that occur after the effective date of the ordinance from which this section derives. The board may not review appeals of decisions of the city manager or the civil service board. No hearing conducted under this division is intended to supplant civil or criminal remedies or proceedings, nor civil service proceedings under Section 4.61 of the City Charter.

(3) The board, in its discretion, also may make recommendations to the chief of police and the city manager concerning policies, procedures or training of police officers.

(4) As required by state law, maintain as confidential all personnel information to which the members gain access as a member of the board. In addition, board members shall be required to execute and adhere to a confidentiality agreement that is satisfactory to the city.

(b) The citizens review board shall promulgate rules and regulations to effect its exercise of authority under this division and shall keep such rules and regulations on file with the city clerk.

(Ord. No. 5259, § 1, 11-25-2013; Ord. No. 5948, § 1, 6-8-2015; Ord. No. 9921, § 1(Eh. A), 10-26-2020)

Sec. 16-59. Request for appeal hearing.

(a) Under this division, all complaints will be investigated by the police department. Upon completion of an investigation, the chief of police shall, consistent with state law, notify the complainant by certified letter of the disposition of the complaint. The complainant also shall be informed of his right to appeal the decision of the department to the citizens review board.

(b) All appeals to the citizens review board must be made on a form approved by the board and filed with the city clerk's office. The request must state the nature of the incident and the basis on which the complainant contends that the action taken by the chief of police was in error. The citizen may seek the assistance of the community relations committee in drafting and filing his appeal. The citizen must file this appeal within 30 calendar days of receiving written notice of the disposition of the complaint. The citizen must provide a valid current address for the purpose of all notifications required to be made pursuant to this division.

(c) Upon receiving a request for an appeal hearing, the chairperson of the board shall direct the chief of police to deliver the entire internal affairs case file to the city clerk for delivery to the members of the citizens review board. The chairperson may request additional information from the complainant if deemed necessary.

(d) The board may elect not to hear an appeal under this division if civil, criminal or civil service proceedings are instituted and pending.

(Ord. No. 5259, § 1, 11-25-2013)

Sec. 16-60. Hearing.

(a) Upon receiving a request for an appeals hearing, the board shall hold a hearing within 45 calendar days of the request. Notwithstanding

the foregoing, the board may elect not to hear an appeal under this division if civil, criminal or civil service proceedings are instituted and pending.

(b) The hearing shall be conducted in closed session to ensure compliance with all applicable laws, including those related to the confidentiality of criminal information or intelligence and personnel matters. The parties may be represented at the hearing by counsel or any other person of their choice.

(c) The hearing will begin with the complainant and the department respectively, each in the absence of the other and the other's representatives, presenting statements of facts to the board. Following receipt of the statements of facts, the board may, in its discretion, request additional statements, material, or information from the complainant and/or the department. After receiving the parties' statements and any additional material or information provided. the board shall conduct deliberations in the absence of the complainant and the department.

(d) Following the deliberations contemplated in subsection (c), in a public session, and consistent with subsection 16-58(a)(4), the chairperson shall indicate whether the board has decided to conduct additional evidentiary fact-finding and, if so, shall announce the date, time and place of the proceedings. In order to conduct additional evidentiary fact-finding, the board must determine that there is substantial evidence of error regarding the disposition of the disciplinary charges entered by the chief of police. The chairperson shall notify the complainant and other involved parties in writing of the decision and, if evidentiary fact-finding proceedings are to be held, also shall advise all parties in writing of the reasons for the decision to hold evidentiary fact-finding proceedings.

(e) If the citizens review board decides to conduct evidentiary fact-finding proceedings, those proceedings shall be concluded within 45 calendar days of the date of the decision to hold them pursuant to section 16-60. Should the complainant or the department desire to continue the evidentiary fact-finding proceedings to a date other than that set by the board, the complainant or the department shall submit a written request for a change of the date of the proceedings, stating the reason for the request. The chairperson shall approve or disapprove such request, provided that such request is received by the board at least seven calendar days prior to the date set for the evidentiary fact-finding proceedings. For good cause, the chairperson may continue the proceedings from time to time, but all appeals must be concluded within 60 calendar days from the date of the decision to hold an evidentiary fact-finding proceeding.

(f) Evidentiary fact-finding proceedings shall be conducted as follows:

(1) All witnesses must testify under oath.

(2) All of the proceedings before the board shall be recorded.

(3) All parties involved shall have the right to be represented by counsel or any other person of their choice.

(4) The board shall receive and evaluate evidence which may include testimony of the complainant, officers, and other witnesses, and documentary and physical evidence. The complainant shall offer evidence first in support of his appeal. The department shall have the right to cross examine the complainant and his witnesses. Thereafter, the department shall have the right to offer evidence, and the complainant shall have the right to cross examine the department's witnesses. At the conclusion of all the evidence, the complainant or his representative, followed by the department, may make a closing statement.

(5) Members of the board may question witnesses or request additional information or further investigation at any point in the process.

(6) Members who, in a particular case, have a conflict of interest shall not attend or participate in the proceedings and decision-making process.

(g) At the conclusion of the evidentiary fact-finding proceedings, the board shall determine whether, by the greater weight of the evidence, the chief of police clearly erred by:

(1) Finding in a disciplinary action that allegations were sustained, not sustained, exonerated or unfounded; or

(2) Finding in connection with the discharge of a firearm that the officer's action was justified, not justified, or accidental.

(h) Upon conclusion of the appeal process, the complainant shall be notified in writing of the decision of the board who were present at the hearing and, to the extent permitted by applicable law, the reasons for the decision.
(Ord. No. 5259, § 1, 11-25-2013)

Sec. 16-61. Reserved.

Sec. 16-62. Action by chief of police and city manager.

(a) The chief of police shall review the determination and findings of fact of the citizens review board and any other information at his disposal. The chief of police shall take such action as he deems appropriate, consistent with state law and city policy. The chief of police will then, within 14 calendar days of the receipt of the board's recommendations, report his decision to the city manager.

(b) The city manager shall review the decision of the chief of police and, within 14 calendar days of the receipt of the decision of the chief of police, take such action as he deems appropriate, consistent with state law, and shall advise the chief of police of any intended action.

(c) The city manager shall notify all parties, including the citizens review board, of the decision of the city manager consistent with state law and city policy. The city manager also shall advise the city council of the outcome of the appeal. Notifications made under this subsection must be made within 14 calendar days of the date that the decision of the city manager was initially communicated to the chief of police.
(Ord. No. 5259, § 1, 11-25-2013; Ord. No. 1032, § 1(Exh. A), 10-27-2025)

Sec. 16-63. City clerk's duties; meeting places; staff.

(a) Under this division the city clerk shall:

(1) Act as secretary to the citizens review board;

(2) Keep the minutes of its meetings;

(3) Be custodian of all papers and records pertaining to the business of the board; and

(4) Perform such other duties as the board may require.

(b) The city council shall provide sufficient and reasonable rooms and use of public buildings for meetings and hearings of the board as may be necessary.

(c) The city manager shall assign staff to support the functions of the citizens review board.
(Ord. No. 5259, § 1, 11-25-2013)

Sec. 16-64. Miscellaneous.

(a) The citizens review board shall make a semiannual and an annual report of its actions for each preceding year. These reports shall be kept in the files of the board and a copy delivered to the chief of police, city manager, city council and the community relations committee.

(b) The board shall receive annually a report from the police chief concerning all complaints against department personnel and the disposition of such complaints.

(c) The board shall recommend changes to the citizens review process to city council as deemed appropriate and approved by a majority of the board.

(d) The board shall promote its visibility within the community by adopting procedures to educate citizens about the board process, and enhance citizen participation through process and procedural changes as deemed appropriate.

(e) The board shall conduct legal, policy and cultural awareness training for its members, in addition to that provided pursuant to subsection 16-56(c), on a continuing basis as deemed appropriate.
(Ord. No. 5259, § 1, 11-25-2013)

Chapter 17

RESERVED*

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 17 and replaced it with the Unified Development Ordinance in Chapter 24. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 17 pertained to soil erosion and sedimentation control and was derived from Code 1985, §§ 18-21—18-36, 18-39; Ord. No. 4051, §§ 1—10, adopted Oct. 27, 2008; Ord. No. 93, § 3(Exh. C), adopted June 28, 2021.

Chapter 18

STORMWATER*

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ARTICLE I. IN GENERAL

Sec. 18-1. Short title.

This chapter will be known and may be cited as the "Charlotte Stormwater Ordinance."

Sec. 18-2. Statutory authorization.

The state legislature has, in G.S. 160A-314 et seq., authorized cities to establish a stormwater management program.

Sec. 18-3. Findings and statement of purpose.

The city council makes the following findings:

(1) Stormwater poses a serious threat to the public health, safety, and welfare. This threat cannot be eliminated entirely. Factors affecting this threat which are beyond the city's control include the following:

a. Frequency and intensity of precipitation events;

b. The topography in and around the city;

c. The types of soils and other geologic structures found in and around the city;

d. The body of law established under state and federal authority concerning water rights generally and including, but not limited to, navigable and nonnavigable waters, surface waters, and underground waters;

e. Unauthorized interference with the city's stormwater drainage system; and

f. The amount of impervious surfaces associated with a reasonable level of development.

(2) The management of stormwater can reduce this threat through:

a. Constructing, operating and maintaining needed facilities;

b. Regulating and controlling the use and development of land to reduce the adverse effects of stormwater; and

c. Improvements to the quality of groundwater, streams, rivers, and lakes in and around the city.

(3) a. In order to provide an effective and longterm approach to stormwater management, an adequate funding source must be identified.

b. Equitable and adequate funding is provided by a system of charges that is related to the quantity (volume) of stormwater runoff from developed land.

(Code 1985, § 18-1)

Sec. 18-4. Unlawful to obstruct flow of stormwater runoff.

It shall be unlawful for any person to place, cause to be placed or permit to be placed any obstruction on or within any portion of the city's stormwater drainage system. For purposes of this section, the term "obstruction" shall mean anything which, by itself or in conjunction with any other thing, impedes or tends to impede the flow of stormwater.
(Code 1985, § 18-13)

Secs. 18-5—18-35. Reserved.

ARTICLE II. RATES AND CHARGES

Sec. 18-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Base rate charge means the fixed portion of stormwater service charges applied to each stormwater account to recover fixed costs such as billing and accounting for stormwater service charges and other related expenses.

CMU means the Charlotte-Mecklenburg Utility.

Committee means the stormwater advisory committee (SWAC) as established by the joint resolution of the city council and the board of county commissioners, together with any amendments thereto.

Customer means the person to which a bill for stormwater service charges is sent.

Detached dwelling unit means developed land containing one structure which is not attached to another dwelling unit and which contains one or more rooms with a bathroom and kitchen facilities designed for occupancy by one family and includes houses, manufactured homes, and mobile homes located on individual lots or parcels of land. Developed land may be classified as a detached dwelling unit despite the presence of incidental structures associated with residential uses such as garages, carports or small storage buildings. The term "detached dwelling unit" does not include developed land containing structures used primarily for nonresidential purposes, manufactured homes and mobile homes located within manufactured home or mobile home parks, or other multiple-unit properties.

Developed land means property altered from a natural state by construction or installation of more than 640 square feet of impervious surfaces.

Impervious surfaces means those areas within developed land which prevent or significantly impede the infiltration of stormwater into the soil. Common impervious surfaces include, but are not limited to, rooftops, sidewalks, walkways, patio areas, driveways, parking lots, storage areas, brick or concrete pavers, and other surfaces which prevent or significantly impede the natural infiltration of stormwater into the soil.

Manager means the manager of stormwater services or his designee.

Other residential and nonresidential land means any developed land not fitting the definition of detached dwelling unit. Other residential and nonresidential land includes, but is not limited to, attached single-family houses, duplexes, townhouses, condominiums, apartments, boardinghouses, hotels and motels, churches, commercial properties which include dwelling units, manufactured home or mobile home parks, commercial and office buildings, storage areas, parking lots and other impervious areas, parks, recreation properties, public and private schools and universities, hospitals and convalescent centers, office buildings, airports, agricultural uses involving impervious surfaces, water reservoirs, and water and wastewater treatment plants.

Service rate charge means the portion of stormwater service charges applicable to a parcel of developed land which is generally reflective of a parcel's impact on the cost of providing services and facilities to properly control stormwater runoff quantity. The service rate charge will vary from one parcel of developed land to another based upon the amount of impervious surfaces.

Undeveloped land means land that does not meet the definition of developed land.
(Code 1985, § 18-2)

Cross reference—Definitions generally, § 1-2.

Sec. 18-37. Stormwater advisory committee.

In addition to any authority granted to the stormwater advisory committee (SWAC or committee) by other ordinances of the city or the county, and in accordance with the provisions of the interlocal agreement regarding the structure and responsibilities of the committee, the committee will have the following charges and duties, to be carried out in accordance with this article:

(1) *Policy.* The committee shall review and recommend to the city council stormwater management policies, policy changes, long range plans, and their budgetary and rate impacts.

(2) *Capital improvements and operations program.* The committee shall review and comment to the city council on the annual capital improvement program and operating budget and review and make comments on proposed midyear changes to the program.

(3) *Appeals.* The committee shall hear appeals and reach decisions on service charges, credits and adjustments; and hear appeals

and make recommendations to the city council on the application, modification, and enforcement of stormwater policies.

(4) *Council and staff response.* The committee shall respond to the city council and city staff requests for advice on matters related to stormwater services.

(5) *Reporting.* The committee shall present the city council with an annual report of key actions and issues.

(Code 1985, § 18-10)

Sec. 18-38. Systems operation.

Stormwater service charges will be determined and modified, from time to time, so that the total revenues generated by such charges will be used to pay the principal of and interest on the debt incurred for stormwater purposes and such expenses as are reasonably necessary or convenient in the construction, operation, and maintenance of the stormwater system.

(Code 1985, § 18-3)

Sec. 18-39. Stormwater service charges.

(a) Pursuant to an interlocal agreement entitled "Agreement for Operation of a Single Storm Water System within Mecklenburg County," which became effective January 1, 1994, the city manager shall request the county to set and revise, from time to time, the service rate charge agreed to and adopted by both governing bodies. Upon the expiration or termination of such interlocal agreement, the city council shall establish the service rate charge and base rate charge.

(b) Payment will be applied to a customer's bill in the following order:

(1) Civil penalties assessed pursuant to this chapter;

(2) Delinquent fees for water and/or sewer;

(3) Stormwater; and

(4) Water and/or sewer.

(Code 1985, § 18-4; Ord. No. 7035, § 1, 1-26-2016)

Sec. 18-40. Exemptions and credits applicable to service charges.

(a) Except as provided in this section, no public or private property shall be exempt from stormwater service charges or receive a credit or offset against such service charges. No exemption or reduction in stormwater service charges shall be granted based on the age, tax or economic status, race, or religion of the customer, or other condition unrelated to the cost of providing stormwater services and facilities.

(b) The following exemptions from stormwater service charges shall be allowed:

(1) Undeveloped land.

(2) Public road rights-of-way which have been conveyed to and accepted for maintenance by the city or state and are available for use in common by the general public for motor vehicle transportation, but this exemption shall not apply to any other uses of developed land for public purposes, such as, but not limited to, offices, airports, maintenance yards, water and wastewater treatment plants and water reservoirs, parking lots or garages, parks, recreation facilities, libraries, schools, colleges, universities, social service centers, public housing, hospitals, convalescent centers, and other developed land used for public purposes. This exemption also shall not apply to internal site roadways within such public facilities; to private roads or drives; or to internal roads, drives, and parking areas in privately owned properties.

(3) Railroad tracks, but this exemption shall not apply to railroad stations, maintenance buildings, or other developed land used for railroad purposes.

(c) The following credits shall be allowed:

(1) Other residential and nonresidential land and residential homeowners' associations which provide measures to mitigate the impacts of runoff on the stormwater system will be eligible for one or more credits to the service rate charge, proportional to the extent those measures

address the impacts of peak discharge and total runoff volume from the site. Portions of the service rate charge are available for credit as follows:

a. Peak discharge, 40 percent.

b. Total runoff volume, 60 percent.

(2) The Credit Application Instruction Manual (manual) is approved by the city council and on file with the city clerk and shall be followed in establishing applicable credits to a customer's service rate charge.

(3) Each credit allowed against the service rate charge is conditioned on continuing compliance with the city's performance standards as set forth in the Credit Application Instruction Manual and/or the Charlotte-Mecklenburg Land Development Standards Manual existing at the time of construction of such facilities and may be rescinded for noncompliance with these standards.

(4) Each credit for which a customer applies shall be subject to review and approval by the manager. The manager may approve or reject any application for a credit in whole or in part.

(5) If 100-percent credit is given for the service rate charge, no stormwater service charges will be levied for the affected property.

(Code 1985, § 18-5; Ord. No. 7035, § 2, 1-26-2016)

Sec. 18-41. Bills mailed or delivered.

A stormwater bill will either be sent through the United States mail or delivered by an alternate method, notifying each customer of the amount of the bill, the date the payment is due and the date when past due. Failure to receive a bill is not justification for nonpayment. The owner of each parcel of developed land shall be ultimately obligated to pay such fee.
(Code 1985, § 18-6)

Sec. 18-42. Delinquent fees and charges; conditions; notice.

(a) Current stormwater service charges are due when billed and are considered delinquent if not paid within 25 days of the billing date.

(b) If, at the time of next billing, the account has an unpaid balance:

(1) A late charge of 1½ percent will be assessed against the unpaid balance. This charge shall be called a late payment-variable charge.

(2) If the customer does not inform the revenue division, billing center, of any complaint concerning accuracy of the bill constituting the past-due balance, and if the customer does not pay the past-due balance within ten days from the most recent billing date, the account is delinquent, and the city may pursue such remedies as are available.

(Code 1985, § 18-7)

Sec. 18-43. Complaints regarding bill.

(a) A customer having a grievance or complaint that a stormwater service bill is excessive must file written or verbal notice with the revenue division, billing center. If it is determined that the bill is in error, an adjustment will be made accordingly.

(b) No adjustment will be made for more than a three-year period.
(Code 1985, § 18-8)

Sec. 18-44. Backbilling.

If a customer is underbilled for stormwater service charges or if no bill is sent for developed land, the city may backbill up to three years.
(Code 1985, § 18-9)

Sec. 18-45. Appeal.

Any customer who believes the sections of this article have been applied in error may appeal in the following manner:

(1) An appeal must be filed in writing with the manager. At the discretion of the manager, the appeal shall include a survey

prepared by a registered land surveyor and such other information that shows the total property area, the impervious surface area, and any other features or conditions which influence the hydrologic response of the property to rainfall events.

(2) Using the information provided, the manager shall conduct a technical review based on the general criteria contained in the manual. The manager may adjust the service rate charge as long as the adjustment is in conformance with the general purpose and intent of the manual, including an adjustment to the charge for a detached dwelling unit. At the conclusion of the review, the manager shall issue a written determination stating whether an adjustment to the service rate charge is appropriate and, if so, the amount of such adjustment. If the adjustment is for 100 percent of the service rate charge, no stormwater service charges will be levied for affected property.

(3) An appeal may be taken from any decision of the manager which is adverse to the customer by giving notice of appeal to the manager within 30 days after service of the manager's written decision on the customer. Notice of the appeal shall be given by the customer by delivery of a written statement to the manager stating the grounds for the appeal. The manager shall transmit to the stormwater advisory committee and the customer all documents constituting the record upon which the manager's decision was made along with the notice of appeal. When an appeal is from a decision authorizing an adjustment to the customer's bill, the manager's decision shall remain in effect until and unless reversed or otherwise modified by the committee. The committee shall fix a reasonable time for the hearing of an appeal, shall give due notice of such hearing to the customer and the manager, and shall render its decision within a reasonable time. The customer and the manager may appear in person or by agent or attorney before the committee and present evidence. The committee may reverse or affirm, wholly or partly, or may modify the decision of the manager and may make such decision as, in its opinion, ought to be made in the matter. To this end, the committee shall have all the powers of the manager. When practical difficulties or unnecessary hardships would result from carrying out the strict letter of this article, the committee shall have the power in passing upon appeals to vary or modify any of the sections of this article so that the spirit of this article shall be observed, public safety and welfare secured, and substantial justice done. The committee shall keep accurate records of all of its proceedings. Either the customer or the manager may seek the review of any decision by the committee in proceedings in the nature of certiorari initiated within 15 days after service of the decision of the committee.

(4) All decisions of the manager and the committee shall be served on the customer personally or by registered or certified mail. Service shall be based upon the billing address of the customer.

(5) No adjustment to a customer's bill may be made by the manager or the committee for more than the three-year period immediately preceding the date that the customer's appeal is received by the manager.

(Code 1985, § 18-11)

Sec. 18-46. Limitations of responsibility.

(a) The city shall be responsible only for the portions of the stormwater drainage system which are in city-maintained street rights-of-way and permanent storm drainage easements conveyed to and accepted by the city in accordance with the terms of those easements. Repairs and improvements to the drainage system shall be in accordance with established standards, policies, and schedules.

(b) The city's acquisition of storm drainage easements and/or the construction or repair by the city of drainage facilities does not constitute a warranty against stormwater hazards, including, but not limited to, flooding, erosion, or standing water.
(Code 1985, § 18-12; Ord. No. 857, § 1, 10-14-2024)

Secs. 18-47—18-75. Reserved.

ARTICLE III. STORMWATER POLLUTION*

Sec. 18-76. Statutory and general authorization.

The state legislature has, in NCGS § 160A-459, authorized cities to adopt and enforce a stormwater control ordinance to protect water quality and control water quantity.

As a result, the City of Charlotte ("City") implements, administers, and enforces the provisions of the Charlotte Stormwater Pollution Control Ordinance.

The director of the City of Charlotte department that is responsible for management of the city's NPDES MS4 stormwater permit is charged with the implementation, administration, and enforcement of this article. The director shall determine the authorized representatives(s), policies, procedures, and guidelines necessary for the effective implementation, administration, and enforcement of this article.
(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-77. Definitions.

The following words, terms and phrases, whether shown in uppercase or lowercase, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Charity vehicle washing means vehicle washing performed to raise money to be used for purposes other than making a profit.

City means the City of Charlotte, North Carolina.

Commercial means activity or property devoted in whole or in part to commerce, that is, the exchange and buying and selling of commodities or services.

Day(s) means calendar day(s), including Saturdays, Sundays and holidays, unless otherwise specified.

Director means the person appointed by the city to lead the department that is responsible for management of the city's NPDES MS4 stormwater permit, and who is charged with certain duties and responsibilities by this article, or that person's duly authorized representative(s).

Discharge or *discharged* means the addition, release, or disposal of non-stormwater or any pollutant, whether in solid, liquid, or gaseous form, either directly or indirectly to the stormwater system or the waters of the state.

EPA means the United States Environmental Protection Agency or other duly authorized official of the Agency, including its successors.

High PAH pavement product means a product, material or substance that contains greater than 0.1% (1,000 ppm) PAH by weight and is intended for use on an asphalt or concrete surface. High PAH pavement product may contain coal tar, coal tar pitch volatiles, RT-12, refined tar, steam-cracked petroleum residues, heavy pyrolysis oil, steam-cracked asphalt, pyrolysis fuel oil, heavy fuel oil, ethylene tar, ethylene cracker residue, or a variation of those substances assigned the chemical abstracts service (CAS) numbers 65996-92-1, 65996-93-2, 65996-89-6, 8007-45-2, 64742-90-1, or 69013-21-4.

Illicit connection means any physical connection, actual or potential flow discharge, or other condition that could allow non-stormwater or a pollutant to enter the stormwater system or the

*__Editor's note—__*Ord. No. 3941, § 1, adopted June 9, 2008, amended article III in its entirety to read as herein set out. Formerly, article III, §§ 18-76—18-88 pertained to similar subject matter, and derived from the Code of 1985, §§ 18-51—18-62.

waters of the state. Examples of illicit connection include, but are not limited to: Wastewater lines such as those from washing machines or sanitary sewers; and pipes, drains, hoses, ditches, troughs, etc. Carrying wastewater, washwater or any other non-stormwater or pollutant from a facility, dwelling, building, vehicle, operation, or property, except as allowed pursuant to section 18-81 of this article.

Illicit discharge means any discharge not composed entirely of stormwater that may directly or indirectly enter the stormwater system or the waters of the state, except as allowed pursuant to section 18-81 of this article. Examples of illicit discharge include, but are not limited to: oil; grease; household and industrial chemical waste; sanitary sewage; wastewater; paint; paint washwater; garbage; yard waste; animal waste; food waste; cooking oil/grease, swimming pool/hot tub/spa water containing pollutants; concrete; concrete equipment washwater; commercial vehicle washwater; heated water; soaps/detergents; sediment/silt or any other discarded or abandoned substances or waste materials.

Incidental means occurring by chance or without intention or calculation; also, occasional, minor, casual or subordinate in significance or nature.

MS4 means municipal separate storm sewer system.

NCGS means North Carolina General Statute(s).

Non-stormwater means any flow that is not from a form of natural precipitation.

NPDES discharge permit means the National Pollutant Discharge Elimination System Permit issued pursuant to the federal Clean Water Act, 33 USC 1251 et seq.

PAH means polycyclic aromatic hydrocarbons.

Person(s) means any individual, partnership, firm, association, agency, joint venture, company, trust, estate, corporation, board, cooperative, interstate body, commission, institution, utility, governmental entity, NPDES permittee, or other legal entity or their legal representatives, agents or assigns.

Pollutant means any substance that alters the chemical, physical, biological, thermal and/or radiological integrity of water.

Potable water means water that is suitable for human consumption.

State, when referring to regulatory authority, means the North Carolina Department of Environmental Quality or any duly authorized representative thereof; otherwise, it means the State of North Carolina.

Stormwater means any flow of water occurring during or following any form of natural precipitation and resulting therefrom.

Storm water advisory committee means the Charlotte-Mecklenburg Storm Water Advisory Committee as established by the joint resolution of the City of Charlotte Council and the Board of Mecklenburg County Commissioners, together with any amendments thereto.

Stormwater system means the network of curbs, gutters, inlets, catch basins, manholes, pipes, ditches, swales, ponds, detention and retention basins, and other natural or manmade facilities and appurtenances that serve to collect and convey stormwater through and from a given drainage area to the waters of the state. For purposes of this article only, the stormwater system includes the city's municipal stormwater system and privately owned and operated stormwater systems on private property that discharge or flow to the city's municipal stormwater system or the waters of the state.

Uncontaminated means not containing any pollutants.

Unmodified potable water means potable water that does not contain any pollutants or chemical agents such as detergents, acids, degreasers, surfactants or other agents added to or mixed with it, regardless of whether the added/mixed agent is labeled as, or is generally considered to be environmentally safe and/or biodegradable.

Violation means an act, action, allowance, or occurrence that fails to comply with any prohibition or requirement set forth in this article.

Violator means the person(s), determined by the director, to be responsible for the violation.

Washwater is a subset of "wastewater" and means any water or liquid discharged after and as a result of conducting washing or cleaning activity.

Wastewater means any water or other liquid, other than uncontaminated stormwater or uncontaminated potable water, discharged after use. Examples of wastewater include, but are not limited to: water discharged after use generally for industrial or manufacturing process; sewage treatment; or water used for washing, flushing, or cleaning.

Waters of the state is as defined in NCGS § 143-212(6) as may be amended from time to time in compliance with federal and state law.
(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-78. Purpose.

The purpose of this article is to meet the requirements of the city's NPDES MS4 stormwater permit and to support the protection of surface water quality resources within the city's jurisdiction by controlling the discharge of pollutants to the stormwater system and making it illegal for non-stormwater or pollutants to be discharged to the stormwater system or the waters of the state. This article is supplemental to and in no way replaces regulations, rules, statutes, and laws administered by the state or federal government.

The objectives of this article are:

(1) To regulate the discharge of pollutants to the stormwater system and the waters of the state;

(2) To prohibit illicit discharges and illicit connections to the stormwater system and the waters of the state; and

(3) To establish legal authority to carry out all investigation, inspection, surveillance, monitoring, enforcement and penalty procedures necessary to ensure compliance with this article.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-79. Jurisdiction.

The provisions of this article shall apply to the area encompassed within the city corporate limits.
(Ord. No. 3941, § 1, 6-9-2008)

Sec. 18-80. Prohibitions.

(a) *Illicit discharge(s).* No person shall cause or allow the discharge of non-stormwater or any pollutant, either directly or indirectly, to the stormwater system, the waters of the state, or upon the land in a manner or amount that is likely to reach the stormwater system or the waters of the state except as allowed pursuant to section 18-81 of this article. Upon discovery, the violator shall immediately: collect and remove the non-stormwater or pollutant(s); restore all affected areas to their pre-discharge condition; and implement actions to prevent further discharges of non-stormwater or pollutants.

(b) *Illicit connection(s).* No person shall install, maintain or use any connection to the stormwater system or the waters of the state for the discharge of non-stormwater or a pollutant; or shall cause non-stormwater or a pollutant to be discharged or conveyed through any connection to the stormwater system or the waters of the state unless the discharge is an allowable discharge pursuant to section 18-81 of this article. Upon discovery of the illicit connection, the violator shall immediately remove the connection and restore all affected areas to their pre-connection condition in a manner to prevent any discharges of non-stormwater or a pollutant to the stormwater system. This prohibition expressly includes, without limitation, illicit connection(s) made in the past, regardless of whether the connection was permissible under law or practices applicable or prevailing at the time of connection.

(c) *Accidental discharge(s).* Accidental discharge(s), as described in this subsection, shall be a violation. If an accidental discharge to

the stormwater system or the waters of the state occurs, the person responsible for the violation shall immediately collect and remove the discharge and restore all affected areas to their pre-discharge condition. The person responsible for the violation shall immediately notify the director, and other local, state, and federal authorities as appropriate, of the accidental discharge by telephone or other mode of instantaneous communication. The notification shall include the location of the discharge, type of pollutant, volume, time of discharge and corrective action(s) taken. Such notification shall not relieve the person responsible for the violation of any of the expenses related to removal, restoration, loss, damages or any other liability that may be incurred as a result; nor shall such notification relieve the person responsible for the violation from other liability that may be imposed by this article or any other applicable regulations, rules, statutes, or laws.

(d) *Improper storage, handling, or processing of materials.* No person shall store, handle, or process any material upon the land in any manner or method that would allow the material to deposit a pollutant upon the land which may become intermixed with stormwater entering the stormwater system or the waters of the state.

(e) *Failure to comply.* Failure to comply with any requirements or corrective actions set forth in a notice of violation, notice of civil penalty assessment, compliance order, or any other notice or order issued pursuant to section 18-83 of this article, shall be a violation of this article. Said violation may be enforced against the violator as a discrete violation of this article or as a factor in conjunction with other enforcement remedies and penalties.

(f) *Use of high PAH pavement products prohibited.* No person shall use, or permit to be used, a high PAH pavement product within the city. For the purposes of this subsection, the term "high PAH pavement product" means a product, material or substance that contains greater than 0.1% (1,000 ppm) polycyclic aromatic hydrocarbons (PAH) by weight, and, is intended for use on an asphalt or concrete surface, including but not limited to, a driveway, playground, parking area, sidewalk, pathway, or roadway.*

(g) *Obstruction.* No person shall obstruct, hamper, or interfere with the director while carrying out official duties authorized by this article. Upon presentation of credentials, necessary arrangements shall be made to allow the director immediate access onto premises or into an area protected by security measures. Any obstruction to the safe and easy access to property, a facility, equipment, or enclosure on property, or to monitoring devices shall immediately be removed. Denial of access or unreasonable delays in providing safe and reasonable access or removing obstructions shall be a violation of this article. Said violation may be enforced against the violator as a discrete violation of this article or as a factor in conjunction with other enforcement remedies and penalties.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-81. Allowable incidental discharges of non-stormwater.

Stormwater is the only discharge permitted in the stormwater system or the waters of the state with exception of the following allowable incidental non-stormwater discharges; provided that said discharges do not negatively impact surface water quality. Allowable incidental non-stormwater discharges include:

(1) Water line flushing, provided the discharge does not cause an exceedance of surface water quality standards;

(2) Landscape irrigation;

(3) Diverted stream flows;

(4) Uncontaminated groundwater infiltration (as defined at 40 CFR § 35.2005(20));

(5) Uncontaminated, pumped groundwater;

(6) Rising groundwaters;

*__Editor's note—__As per § 2, Ord. No. 9802, adopted May 26, 2020, this section shall become effective July 1, 2020, with the exception of this subsection (f) of section 18-80, which shall become effective January 1, 2021.

(7) Discharges from uncontaminated potable water sources;

(8) Collected infiltrated stormwater from foundation drains or footing drains;

(9) Air conditioning condensate from residential or commercial units;

(10) Irrigation water (does not include reclaimed water as described in 15A NCAC 2H.0200);

(11) Uncontaminated springs;

(12) Uncontaminated, collected groundwater and infiltrated stormwater from basement or crawl space pumps;

(13) Lawn watering;

(14) Swimming pool and hot tub/spa discharges, provided that the discharge does not contain chlorine, bromine, salt, or any other treatment chemicals. These discharges do not include swimming pool or hot tub/spa filter backwash discharge or saltwater pool discharge, which are expressly prohibited;

(15) Street washwater only when unmodified potable water is used;

(16) Flows from emergency fire and rescue operations other than those resulting from negligence on the part of the person who owned or controlled the pollutant. This allowance does not include discharge flows from fire and rescue training operations;

(17) Single-family residential and charity vehicle washing (*see note below);

(18) Flows from riparian habitats and wetlands;

(19) NPDES permitted discharges authorized by NCDEQ, EPA, or delegated local authority, provided said discharges are in compliance with the requirements, conditions and discharge limitations of the permit;

(20) Dye testing, using suitable dyes, for verifying cross-connections, tracing plumbing lines, determining flow direction or rate and for similar purposes, provided that verbal notification by non-governmental entities is provided to the director prior to testing;

(21) Water used for removal of stormwater system blockages only when unmodified potable water is used; and

(22) Splash pad (spray ground) water from a potable water source only; refer to subsection 18-81(14) if the water is treated with chemicals used similarly for a swimming pool or hot tub/spa.

*Designated vehicle wash areas at multi-family residential complexes are not allowed if they connect, directly or indirectly, to the stormwater system or the waters of the state. Charity vehicle washing performed by the same organization or at the same location on a routine basis (more than one time in a 30-day period) is not allowed under this article.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Editor's note—Ord. No. 9802, § 1(Exh. A), adopted May 26, 2020, changed the title of § 18-81 from "Permitted incidental non-stormwater flows" to read as set out herein.

Sec. 18-82. Powers and authority for inspection.

(a) *Authority to inspect and monitor.* The director, bearing proper identification, may enter upon public or private properties at all reasonable times to inspect, investigate, or monitor activities and conditions subject to this article. Persons occupying premises to be inspected shall allow the director ready access at all times to all parts of the premises to perform investigation, inspection, monitoring, records examination, copying, photography, video recording or other duties. The director shall have the right to set up on a person's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a person has security measures in force that would require identification and clearance before entry into the premises, the person shall make arrangements with security personnel so that, upon presentation of identification, the director will be permitted to enter and perform their specific duties and responsibilities without delay.

(b) *Search warrants.* Should the occupant of private property refuse to permit such reasonable access, the director may proceed to obtain an administrative search warrant pursuant to NCGS § 15-27.2, or its successor, to conduct investigations and determine compliance with this article.

(c) *Confidential information.*

(1) To the extent permitted by applicable law and except as otherwise provided in this section, information and data on a person obtained from reports, questionnaires, permit applications, permits, monitoring programs and inspections shall be available to the public or other government agencies without restriction, unless the person specifically requests, and is able to demonstrate to the satisfaction of the director, that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the person. Any such request must be asserted at the time of submission of the information or data.

(2) To the extent permitted by applicable law, when requested by a person furnishing a report, the portions of a report that might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon request to governmental agencies for uses related to this article provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report.

(3) Documents that are not public records and the information set forth therein may be withheld and released only as provided by applicable law.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-83. Enforcement, remedies and penalties.

(a) *Remedies not limited.* The remedies provided herein are not exclusive; may be exercised singly, simultaneously, or cumulatively; may be combined with any other remedies authorized under the law; and may be exercised in any order.

(b) *Notice of violation.* Any person who conducts an act or action, allows directly or indirectly, acts in concert, participates, directs, or assists directly or indirectly in the creation of a violation of this article is subject to the issuance of a written notice of violation.

(1) *Content of notice.* Except in emergencies, as described in subsection 18-83(k), upon the director's determination that a violation has occurred, the director shall provide to each person against whom remedial action or penalties may be pursued, written notice that describes:

a. The location of the violation;

b. The nature of the violation;

c. A general description of the remedies and penalties that may be incurred;

d. The action(s) needed to correct the violation, which shall include, as applicable, requirements to:

1. Immediately cease any discharge contributing to the violation;

2. Collect, remove, and properly dispose of the discharge material;

3. Restore areas affected by the violator's discharge(s) to their pre-Violation condition; and

4. Take appropriate corrective and/or preventive actions to prevent further illegal discharges;

e. A deadline, if required, by which corrective actions must occur;

f. How to provide explanatory or additional information to the director;

g. A contact person with whom the violation can be discussed;

h. How to request a meeting with the director for certain violations as described in subsection 18-83(b)(3); and

i. When deemed necessary by the director, the notice may also require the violator to provide a written response explaining the actions taken to correct the violation, restore affected areas, and to prevent future violations.

Only one such notice shall be required to each violator, regardless of the number of remedies or penalties that are pursued or the timing of their institution. In addition, no time period or deadline for compliance need be given for obstructing, hampering or interfering with an authorized representative(s) while in the process of carrying out official duties under this article.

Said notice shall further advise the violator that should the violator fail to remediate or restore the affected area(s) within the established deadline, the restoration work may be done by the city or a contractor designated by the city pursuant to subsection 18-83(j), and the expense thereof shall be charged to the violator.

(2) *Service.* The notice may be served by United States Postal Service certified mail, United States Postal Service regular mail, special service delivery, hand delivery, or by any means authorized under NCGS § 1A-1, Rule 4 of the North Carolina Rules of Civil Procedure. Refusal to accept the notice shall not relieve the violator's obligation to comply with this article.

(3) *Meeting with the director.* If the violator makes a timely request for a meeting with the director during the time period set forth in the notice, such meeting shall be scheduled at a time determined at the discretion of the director, prior to imposing any enforcement remedy or civil penalty. The violator shall have the opportunity to present any information relevant to the violation or proposed remedy or penalty at the meeting, both orally and/or in writing.

(c) *Civil penalties.*

(1) Any person who conducts an act or action, allows directly or indirectly, acts in concert with, participates, directs, or assists directly or indirectly in the creation of a violation of this article is subject to a civil penalty. A civil penalty may be assessed for the time period from the date the violation first occurs until the date that the violation ceases, as verified by the director.

(2) The maximum civil penalty for each violation of this article is $10,000.00 per day. Each day of violation shall constitute a separate violation.

(3) Except in emergencies, as described in subsection 18-83(k), no penalty shall be assessed until the person alleged to be in violation has been served written notice of the violation as described in subsection 18-83(b). Refusal to accept the notice shall not relieve the violator of the obligation to pay such penalty.

(4) Penalties may be assessed concurrently with a notice of violation for any of the following:

a. Obstructing, hampering or interfering with the director who is in the process of carrying out official duties under this article;

b. A repeated or continuing violation for which a notice of violation was previously served to the person responsible for the violation; or

c. Willful or intentional violation of this article.

(5) In determining the amount of a civil penalty, the director shall consider any relevant aggravating and mitigating factors including, but not limited to the following:

a. Degree and extent of harm caused by the violation;

b. Whether money was or could have been saved by non-compliance;

c. Whether the violation was committed willfully or intentionally;

d. Prior record of the violator in complying or failing to comply with this article or any other water pollution control ordinance or regulation;

e. Cost of rectifying the damage;

f. Whether the violator took reasonable measures to comply with this article;

g. Knowledge of the requirements by the violator and/or reasonable opportunity or obligation to obtain such knowledge;

h. Whether the violator voluntarily took reasonable measures to restore any areas damaged by the violation;

i. Whether the violator reported the violation to the director or other appropriate authority; and

j. Technical and economic reasonableness of reducing or eliminating the violation.

(6) The director shall determine the amount of the civil penalty, including city administration costs, to be assessed under this section and shall make written demand for payment upon the person in violation and shall set forth a description of the violation for which the penalty was imposed. Notice of said civil penalty assessment shall be issued pursuant to subsection 18-83(b)(2) of this article. If a violator does not pay a civil penalty assessed by the director within 30 days after it is due, or does not request a hearing as provided pursuant to section 18-84 of this article, the director may request the city attorney to institute a civil action to recover the amount of the civil penalty. The civil action shall be brought in Mecklenburg County Superior Court or in any other court of competent jurisdiction. Such civil actions must be filed within three years of the date the notice of civil penalty assessment was served on the violator.

(7) A civil penalty assessment that is not contested is due within 30 days from when the violator is served with a notice of civil penalty assessment. A civil penalty assessment that is contested is due at the conclusion of the administrative and judicial review of the civil penalty assessment.

(8) Civil penalties collected pursuant to this article, less city administration costs, shall be remitted to the Charlotte-Mecklenburg School System.

(9) In no case shall the maximum civil penalty per day exceed the amount as specified in subsection 18-83(c)(2).

(10) A violation of this article shall not constitute a misdemeanor or infraction punishable under NCGS § 14-4, but instead shall be subject to the civil penalties fixed by this section.

(d) *Cost recovery.* The director may also recover from the violator:

(1) Costs to restore damaged property based on restoration costs incurred by the city, which include, but are not limited to, cleanup costs, permanent devaluation of the property, value of animal and plant life damaged, and city administrative costs.

(2) Compensation for damage to or destruction of the stormwater system.

(e) *Compliance agreement.* The director may enter into compliance agreements, assurances of voluntary compliance, or other similar documents establishing an agreement with the person responsible for the violation. Such agreements will include specific actions to be taken by the person in violation to correct the non-compliance within a time period specified by the agreement. Compliance agreements shall have the same force and effect as compliance orders issued pursuant to subsection 18-83(f).

(f) *Compliance order.* When the director finds that any person has violated or continues to violate any section of this article, an order may be issued to the violator directing that they do one, or a combination, of the following:

(1) Comply with the sections of this article in accordance with a time schedule set forth in the order;

(2) Take appropriate remedial or preventive actions for a continuing or threatened Violation of any section of this article, including installation and proper operation of adequate structures/devices and/or implementation of procedures and management practices; and

(3) Pay a civil penalty for violating any section of this article.

(g) *Cease and desist order.* Cease and desist orders may be issued as follows:

(1) If the director finds that any person has violated or continues to violate any section of this article, an order issued pursuant to this article, or any other provision of applicable law, the director may issue an order requiring such person to cease and desist all such violations and direct such person to perform any one or more of the following:

a. Comply immediately with all sections of this article, an order issued pursuant to this article, or other applicable law; and

b. Take appropriate remedial and preventive actions for a continuing or threatened violation of any section of this article, a compliance agreement issued pursuant to this article, an order issued pursuant to this article, or any other provision of applicable law.

(2) The director may include in such order the payment of a civil penalty for violating any section of this article, or for violating a compliance agreement or order issued pursuant to this article.

(h) *Withholding of inspections, permits or other approvals.* The director may withhold or condition upon compliance with this article, building inspections; permits for development or other improvements; and requests for plan approval for zoning, subdivision, other development or construction until a violator with ownership or management of the property for which permits or approvals are sought has fully complied with this article and all actions taken pursuant to this article.

(i) *Restoration of areas affected by failure to comply.* The director may require a person responsible for a violation to restore all areas affected by the violation to their pre-violation condition in order to minimize the detrimental effects of the resulting impacts. This authority is in addition to any other enforcement remedies authorized by this article.

(j) *Abatement by the city.* If a violation has not been corrected pursuant to the requirements set forth in the notice of violation, or in emergency situations as described in subsection 18-83(k), or by other allowable remedies, or in the event of an appeal pursuant to section 18-84 of this article, within ten days of the decision of the storm water advisory committee to uphold the decision of the director, then the city or a contractor designated by the city may enter upon the subject premises and is authorized to take any and all measures necessary to abate the violation and/or restore impacted areas to their pre-violation condition in order to minimize the detrimental effects of the resulting impacts. It shall be unlawful for any person in possession or control of any premises to refuse to allow the city or its designated contractor to enter upon the premises for the purposes set forth above.

The person in violation will be notified of the cost of abatement, including administrative costs. If the specified amount is not paid within 30 days of receipt of the notification, the director may request the city attorney to institute a civil action to recover the specified amount. The civil action shall be brought in Mecklenburg County Superior Court or in any other court of competent

jurisdiction. Such civil actions must be filed within three years of the date said notice was served on the violator.

(k) *Emergencies.* If delay in correcting a violation would seriously threaten the effective enforcement of this article or pose an immediate threat or danger to the public health, safety, or welfare, or to the environment, including but not limited to, the waters of the state, then the director may order the violator to immediately cease and abate the violation. Any person ordered to cease such violation or to abate such violation shall do so immediately. The director may seek immediate enforcement through any remedy or penalty authorized in this article or other applicable law, including but not limited to, abatement of the violation pursuant to subsection 18-83(j) of this article.

(l) *Injunctive relief.*

(1) Whenever the director has reasonable cause to believe that any person is violating or threatening to violate this article, the director may, either before or after the institution of any other action or proceeding authorized by this article, authorize the city attorney to institute a civil action in the name of the city for injunctive relief to restrain the violation or threatened violation. The action shall be brought pursuant to NCGS § 160A-175 in Mecklenburg County Superior Court.

(2) Upon determination by a court that an alleged violation is occurring or is threatened, the court shall enter such orders or judgments as are necessary to abate the violation or to prevent the threatened violation. The institution of an action for injunctive relief under this subsection shall not relieve any party to such proceedings from any civil penalty prescribed for violations of this article.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-84. Appeal process.

(a) Issuance of a notice of violation, assessment of a civil penalty, cease and desist order and/or compliance order.

(1) The issuance of a notice of violation and/or notice of civil penalty assessment by the director shall entitle the person responsible for the violation of the article ("petitioner") to a public hearing before the storm water advisory committee ("committee") if such person submits written demand for a hearing to the clerk of the committee ("clerk") within 30 days of the receipt of the notice. The demand for a hearing filed with the clerk shall be accompanied by a filing fee as established by the committee. In the demand for a hearing on a civil penalty assessment, the petitioner must state separately each reason why such penalty should not be assessed or, if the petitioner contends that the civil penalty was assessed in an improper amount, each reason why the amount of the penalty is improper. Each assessment of a civil penalty that has been included in a demand for a hearing in accordance with this subsection is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances: the assessment of the civil penalty is approved or is modified by the committee; or the petitioner and the director agree on the assessment of the civil penalty. This subsection shall not be construed to stay any section of this article or other applicable law.

(2) The issuance of a compliance order and/or cease and desist order by the director shall entitle petitioner to a public hearing before the committee if such petitioner submits written demand for a hearing to the clerk within the following schedule:

a. Within 20 days of the receipt of a compliance order issued pursuant to subsection 18-83(f) of this article;

b. Within ten days of the receipt of a cease and desist order issued pursuant to subsection 18-83(g) of this article.

The demand for a hearing filed with the clerk shall be accompanied by a filing fee as established by the committee. In the demand for a hearing on the issuance of such an order, the petitioner must identify separately each provision of the order that is improper and every basis for such contention. Each provision of an order that has been included in a demand for a hearing in accordance with this subsection is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances: such provision is approved or is modified by the committee; or the petitioner and the director agree on the terms of the order. This subsection shall not be construed to stay any section of this article or other applicable law.

(3) The director, at their discretion, may grant an extension to the deadline for filing a demand for a hearing before the committee.

(4) Failure to timely file such demand(s) and fee(s) within the applicable deadline, including any extension granted by the director, shall constitute a waiver of any rights to appeal under this article and the committee shall have no jurisdiction to hear the appeal.

(5) Within five days of receiving the petitioner's demand for a hearing, the clerk shall notify the chairman of the committee ("chairman") of the request for hearing. As soon as possible after the receipt of said notice, the chairman shall set a time and place for the hearing and notify the petitioner by mail of the date, time and place of the hearing. The time specified for the hearing shall be either at the next regularly scheduled meeting of the committee from the submission of the notice, or as soon thereafter as practical, or at a special meeting. The hearing shall be conducted pursuant to the provisions of subsection 18-84(b) of this article.

(6) Any party aggrieved by the decision of the committee with regard to the issuance of a notice of violation, notice of assessment of a civil penalty, cease and desist order or compliance order shall have 30 days from the receipt of the decision of the committee to file a petition for review in the nature of certiorari in superior court with the Clerk of Mecklenburg County Superior Court.

(b) *Hearing procedure.* The following provisions shall be applicable to any hearing conducted by the committee pursuant to subsection 18-84(a).

(1) At the hearing, petitioner and the director shall have the right to be present and to be heard, to be represented by counsel, and to present evidence through witnesses and competent testimony relevant to the issue(s) before the committee.

(2) Rules of evidence shall not apply to a hearing conducted pursuant to this article and the committee may give probative effect to competent, substantial and material evidence.

(3) At least seven days before the hearing, the parties shall exchange a list of witnesses intended to be present at the hearing and a copy of any documentary evidence intended to be presented. The parties shall submit a copy of this information to the clerk. Additional witnesses or documentary evidence may not be presented except upon consent of both parties or upon a majority vote of the committee.

(4) Witnesses shall testify under oath or affirmation to be administered by the court reporter or another duly authorized official.

(5) The procedure at the hearing shall be such as to permit and secure a full, fair and orderly hearing and to permit all relevant, competent, substantial and material evidence to be received therein. A full record shall be kept of all evidence taken or offered at such hearing. Both the representative for the director and for the petitioner shall have the right to cross-examine witnesses.

(6) At the conclusion of the hearing, the committee shall render its decision on the evidence submitted at such hearing and not otherwise.

a. If, after considering the evidence presented at the hearing, the committee concludes by a preponderance of the evidence that the grounds for the director's actions (including the amount assessed as a civil penalty) with regard to either issuing a notice of violation, assessing a civil penalty, issuing a cease and desist order or issuing a compliance order are true and substantiated, the committee shall uphold the action on the part of the director.

b. If, after considering the evidence presented at the hearing, the committee concludes by a preponderance of the evidence that the grounds for the director's actions (including the amount assessed as a civil penalty) are not true and substantiated, the committee shall, as it sees fit, either reverse or modify any civil penalty assessment, order, requirement, decision or determination of the director. The committee bylaws will determine the number of concurring votes needed to reverse or modify any order, requirement, decision or determination of the director. If the committee finds that the violation has occurred, but that in setting the amount of a civil penalty or setting order directives the director has not considered or given appropriate weight to either mitigating or aggravating factors, the committee shall either decrease or increase the per day civil penalty within the range allowed by this article, or modify order directives, as appropriate to the case. Any decision of the committee that modifies the amount of the civil penalty or an order directive shall include, as part of the findings of fact and conclusions of law, findings as to which mitigating or aggravating factors exist and the appropriate weight that should have been given to such factors by the director in setting the amount of the civil penalty or in issuing orders.

(7) The committee shall keep minutes of its proceedings, showing the vote of each member upon each question and the absence or failure of any member to vote. The decision of the committee shall be based on findings of fact and conclusions of law to support its decision.

(8) The committee shall send a copy of its findings and decision to the applicant/petitioner and the director. If either party contemplates an appeal to a court of law, the party may request and obtain, at that party's own cost, a transcript of the proceedings.

(9) The decision of the committee shall constitute a final decision.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Sec. 18-85. Severability.

If any section(s) or subsection(s) of this article is/are held to be invalid or unenforceable, all other sections and subsections shall nevertheless continue in full force and effect.

(Ord. No. 3941, § 1, 6-9-2008; Ord. No. 9802, § 1(Exh. A), 5-26-2020)

Secs. 18-86—18-100. Reserved.

ARTICLE IV. RESERVED*

Secs. 18-101—18-213. Reserved.

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 18, Article 4, and replaced it with the Unified Development Ordinance in Chapter 24. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 18, art. IV pertained to post-construction stormwater and was derived from Ord. No. 3764, §§ 1(101), 1(102), 1(103), 1(104), 1(105), 1(107), 1(108), 1(109), 1(110), 2(201), 2(202), 2(203), 2(205), 3(301), 3(302), 3(303), 3(304), 3(305), 3(306), 3(307), 3(308), 4(401), 4(402), 5(501), 5(502), 5(503), 5(504), 5(505), 6(601), 6(602), 6(603),

6(604), 6(605), 6(606), 7(701), 7(702), 7(703), 8, adopted Nov. 26, 2007; Ord. No. 4752, adopted Oct. 10, 2011; Ord. No. 5339, adopted April 28, 2014; Ord. No. 5498, adopted Oct. 27, 2014; Ord. No. 7062, § 1, adopted 3-14-2016; Ord. No. 93, § 4(Exh. D), adopted June 28, 2021.

Chapter 19

STREETS, SIDEWALKS AND OTHER PUBLIC PLACES*

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*__Cross references—__Any ordinance dedicating, naming, establishing, locating, relocating, opening, widening, paving, etc., any street or public way in the city saved from repeal, § 1-8(6); any ordinance providing for local improvements and assessing taxes for such improvements saved from repeal, § 1-8(9); any ordinance establishing or prescribing street grades in the city saved from repeal, § 1-8(16); aviation, ch. 4; buildings and building regulations, ch. 5; use of streets for cable communications, § 6-140; peddlers, § 6-431 et seq.; cemeteries, ch. 7; floods, ch. 9; motor vehicles and traffic, ch. 14; vehicles blocking streets, § 14-220; riding bicycles, § 14-251 et seq.; running or jogging on public streets, highways, § 14-283; littering public places, § 15-16; stormwater, ch. 18; subdivisions, ch. 20; trees, ch. 21; vehicles for hire, ch. 22; water, sewers and industrial waste discharge restrictions, ch. 23; zoning, app. A.

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ARTICLE I. IN GENERAL

Sec. 19-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Director/engineer means the director of the department of transportation and/or the city engineer or their designees. When authority is granted to the director/engineer, the director of the department of transportation and the city engineer may, by administrative agreement or practice, determine whether the authority is to be exercised jointly or by one, with or without consultation with the other.

Right-of-way means the area on, below, and above an existing or proposed public roadway, highway, street, bicycle lane, or sidewalk, and associated adjacent land, in which the city has a property interest, whether by easement or fee and regardless of how acquired or established, for public travel and utility purposes. For purposes of this chapter, the term "right-of-way" does not include property held or acquired primarily for the purpose of the movement of public transit vehicles, including railroad rights-of-way.

Cross reference—Definitions generally, § 1-2.

Sec. 19-2. Damaging or moving guide stakes or markers; failure to conform.

It shall be unlawful for any person to damage, move or cause to be moved any of the stakes or markers set as guides for locating or grading any lots, streets, sidewalks or drains or to fail to conform to such stakes or markers, by locating or grading in any way different from or contrary thereto.
(Code 1985, § 19-5)

Sec. 19-3. Heavy equipment; scattered stones.

(a) It shall be unlawful for any person to drive, run or operate any tractor, machine or heavy vehicle of any character upon or over any paved street, sidewalk, curb or gutter in such a manner so as to damage the permanent pavement, sidewalk, curb or gutter.

(b) It shall be unlawful for any person to throw or scatter any stones or other hard substances upon, or allow stones or other hard substances to migrate onto, any paved street, sidewalk, curb or gutter so as to damage the permanent pavement, sidewalk, curb or gutter.

(c) The city may require the person responsible for damaging the pavement, sidewalk, curb or gutter in violation of this section to repair or restore the pavement, sidewalk, curb or gutter within a reasonable period of time, which time shall be set in consideration of the harm or risk created by the damage and the effort and expense of repair. The city may, at its option, make any or all repairs or restorations to the pavement, sidewalk, curb or gutter and charge the expense of the repairs and restorations to the person responsible for the damage.
(Code 1985, § 19-14)

Sec. 19-4. Potentially dangerous fences.

It shall be unlawful to erect or maintain, or cause to be erected or strung, any barbed wire fence, or plain wire, stakes or other obstructions, on the line or border of any sidewalk or street or so close thereto as to be likely to injure any person within the city limits.
(Code 1985, § 19-21)

Sec. 19-5. Congregating on sidewalks.

It shall be unlawful for any persons to congregate, crowd together, stand around or move slowly about so as to impede, hamper, interfere or obstruct the free passage or movement of pedestrians along or upon any sidewalk within the city; provided, however, that, this section shall not be construed to prohibit peaceful and lawful picketing.
(Code 1985, § 19-26)

Sec. 19-6. Gutters and drains.

It shall be unlawful to obstruct or in any way interfere with any gutter, ditch, or other man-made or natural water drains located in the

right-of-way. The city may require the person who has placed or who maintains an obstruction in violation of this section to remove the obstruction and repair or restore the drain within a reasonable period of time, which time shall be set in consideration of the harm or risk created by the obstruction and the effort and expense of removal. The city may, at its option, remove an obstruction and charge the expense of the removal, restoration, and repair to the person who placed or maintained the obstruction.
(Code 1985, § 19-28)

Sec. 19-7. Responsibility for dirt and debris on streets and sidewalks.

It shall be unlawful for the contractor in charge of a construction project, or for any person who undertakes, on his own, the removal and conveyance of any dirt, mud, construction materials or other debris, to allow any dirt, mud, construction materials or other debris to be deposited upon any street or sidewalk and then to fail to remove the dirt, mud, construction materials or other debris from the street or sidewalk. Any contractor or any person violating or failing, refusing or neglecting to comply with this section shall be punished by a fine not to exceed $50.00, or imprisonment for not more than 30 days, for each and every offense. By authority of G.S. 160A-175(g), each day's continuing offense shall be a separate and distinct offense. This section may be enforced by any one, or all, or a combination of the remedies authorized and prescribed by G.S. 160A-175. This section shall be administered and enforced by the community improvement division of the solid waste department.
(Code 1985, § 19-30)

Sec. 19-8. Local improvements; corner lots; partial exemption from assessment.

(a) Whenever local improvements are made under assessment procedures along both sides of a corner lot at the same time or within a period of ten years, such corner lot, if used for residential purposes or if undeveloped and zoned for residential use, shall be exempt from a second assessment within such ten-year period in an amount equivalent to the cost assessable against:

(1) Seventy-five percent of the frontage last improved;

(2) If improved at the same time, 75 percent of the longest frontage; or

(3) In either case, the per-front-foot cost of such improvement times 50, whichever is less.

(b) The cost of such exemption shall be borne by the city.
(Code 1985, § 19-35)

Sec. 19-9. Walkways prerequisite to tearing down, remodeling or repairing buildings.

It shall be unlawful for any person, his agent, licensee, or permittee, to tear down any buildings or remodel or repair, or cause to be torn down, remodeled or repaired, any building, until such person, his agent, or licensee or permittee shall have first erected or caused to be erected a suitable walkway, under the direction of the director of transportation and building inspector, so as not to interfere with pedestrians or the general traveling public and, further, to protect such pedestrians or traveling public from bodily harm and danger.
(Code 1985, § 19-36)

Sec. 19-10. Playing games in streets.

It shall be unlawful for any person to play any game on any public street in the city.
(Code 1985, § 19-38)

Secs. 19-11—19-35. Reserved.

ARTICLE II. ADMINISTRATION*

Sec. 19-36. Authority of director/engineer.

In addition to the authority granted elsewhere in this chapter, the director/engineer is authorized to:

(1) Administer and enforce this chapter.

*__Cross reference—__Administration, ch. 2.

(2) Locate, stake, mark, and map rights-of-way; streets; sidewalks; street boundaries of lots; and the grade of streets, sidewalks and drains.

(3) Name and rename streets.

(4) Approve and execute encroachment agreements.

(5) Adopt, amend, and repeal rules and regulations governing driveway connections to public streets and issue and revoke driveway connection permits.

(6) Adopt, amend, and repeal rules and regulations governing street and sidewalk excavations and issue and revoke excavation permits.

(7) Adopt, amend, and repeal the Charlotte Land Development Standards Manual (CLDSM).

(Code 1985, §§ 19-3, 19-4, 19-7, 19-51; Ord. No. Ord. No. 93, § 5(Exh. E), 6-28-2021)

Sec. 19-37. Conflicts of interest.

For the purposes of this article, the following conflicts of interest standards shall apply:

(1) *Administrative staff.* No staff member shall make a final decision on an administrative decision required by this chapter if the outcome of that decision would have a direct, substantial, and readily identifiable financial impact on the staff member or if the applicant or other person subject to that decision is a person with whom the staff member has a close familial, business, or other associational relationship. If a staff member has a conflict of interest under this section, the decision shall be assigned to the supervisor of the staff person or such other staff person as may be designated by the development regulation or other ordinance. No staff member shall be financially interested or employed by a business that is financially interested in a development subject to regulation under this article unless the staff member is the owner of the land or building involved. No staff member or other individual or an employee of a company contracting with a local government to provide staff support shall engage in any work that is inconsistent with his or her duties or with the interest of the local government, as determined by the local government.

(2) *Familial relationship.* For purposes of this section, a "close familial relationship" means a spouse, parent, child, brother, sister, grandparent, or grandchild. The term includes the step, half, and in-law relationships.

(Ord. No. 93, § 5(Exh. E), 6-28-2021)

Sec. 19-38. Inspections and investigations of sites.

(a) Administrative staff of the city are authorized to inspect the sites subject to this chapter to determine compliance with this chapter, the terms of applicable development approval, or rules or orders adopted or issued pursuant to this chapter. In exercising this power, staff are authorized to enter any premises within the jurisdiction of the local government at all reasonable hours for the purposes of inspection or other enforcement action, upon presentation of proper credentials; provided, however, that the appropriate consent has been given for inspection of areas not open to the public or that an appropriate inspection warrant has been secured.

(b) If, through inspection, it is determined that a property owner or person in control of the land has failed to comply or is no longer in compliance with this chapter or rules or orders issued pursuant to this chapter, the city may issue a written notice of violation. As specified by G.S. 160D-404(a), the notice of violation shall be delivered to the holder of the development approval and to the landowner of the property involved, if the landowner is not the holder of the development approval, by personal delivery, electronic delivery, or first-class mail and may be provided by similar means to the occupant of the property or the person undertaking the work or activity. The notice of the violation may be posted on the property. The person providing the notice of violation shall certify that the notice was provided, and the certificate shall be deemed conclusive in the absence of fraud. A notice of

violation shall identify the nature of the violation and shall set forth the measures necessary to achieve compliance with this chapter. The notice shall inform the person whether a civil penalty will be assessed immediately or shall specify a date by which the person must comply with this chapter. The notice shall advise that failure to correct the violation within the time specified will subject that person to the civil penalties as provided in section 21-124 or any other authorized enforcement action.

(c) The city shall have the power to conduct such investigation as it may reasonably deem necessary to carry out its duties as prescribed in this chapter, and for this purpose may enter at reasonable times upon any property, public or private, for the purpose of investigating and inspecting the sites subject to this chapter as specified by G.S. 160D-403(e) and subsection (a) of this section.
(Ord. No. 93, § 5(Exh. E), 6-28-2021)

Secs. 19-39—19-65. Reserved.

ARTICLE III. RESERVED*

Secs. 19-66—19-95. Reserved.

ARTICLE IV. NUMBERING OF BUILDINGS†

Sec. 19-96. Purpose and intent.

The display of a street address number on each residential, commercial or institutional building is required:

(1) To serve as a navigation reference to expedite response by fire, police, medical and other public safety responders in emergencies,

(2) To enable address identification from vehicles moving at the prevailing speed on adjacent roadways to maintain traffic flow.

(3) To facilitate mail and package deliveries; and

(4) To associate real property with tax, zoning and other government records.

(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-97. General requirements.

(a) It shall be the duty of each owner of a residential, institutional or commercial building to display the proper street address on the front thereof.

(b) One and two family dwellings shall display street address numbers on the structure that are at least four inches (102mm) in height with a minimum stroke width (line thickness) of 0.5 inch (12.7 mm) and be clearly legible from the nearest travel way.

(c) Except where the fire marshal has determined that they are not adequately legible from the road, structures displaying address numbers which are three inches high or more and which were erected prior to the passage of this section of the code may remain in place until they are removed for renovation or any other reason, at which time they must be brought into conformance with subsections (b) and (d).

(d) Except where provided in subsection (c) above, commercial, multi-family and institutional buildings shall display street address numbers at least four inches in height or one inch in height for every ten feet of distance between the displayed number and the centerline of the

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 19, Article 3, and replaced it with the Unified Development Ordinance in Chapter 24. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 19, art. III pertained to driveway connections and was derived from Code 1985, §§ 19-52—19-54, 19-57—19-61; and Ord. No. 93, § 5(Exh. E), adopted June 28, 2021.

†__Editor's note—__Ord. No. 2375, § 1, adopted September 8, 2003, amended article IV, §§ 19-101—19-107 in its entirety to read as herein set out. Formerly, article IV pertained to similar subject matter and derived from the Code of 1985, §§ 19-96—19-101.

__Cross reference—__Buildings and building regulations, ch. 5.

adjacent roadway, whichever is greater. Maximum number size will not exceed 1.5 times the required size and not exceed 30 inches total.

(e) Should the commercial, multi-family or institutional structure be too far from the public or private travel way for required numbers to be seen, the property owner shall also erect, where the main driveway to the building intersects the public travel way, an additional set of numerals which can be easily read from vehicles traveling at the prevailing speed on the roadway.

(f) On lots adjoining more than one street, placement of address numbers on structures shall make clear to which street or road the number refers. Where this cannot be attained by choice of placement location, both the street name and number shall be displayed (e.g., 234 Bay Street).
(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-98. Assignment of numbers.

Mecklenburg County's director of land use and environmental services and/or his agent shall be responsible for assigning proper street address numbers. Property owners shall apply by telephone, mail or in person to the LUESA mapping and addressing department for the assignment of the proper address.
(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-99. Applicable rules.

The following rules shall apply in the numbering of buildings:

(1) The reference streets for numbering are:

a. North Tryon Street from Trade Street to Charlotte City Limits; thence along U.S. Highway 29 to the Cabarrus County line.

b. South Tryon Street from Trade Street to Camden Road; thence along Camden Road to the Southern Railroad; thence along the Southern Railroad south to the beginning of Nations Crossing Road; crossing I-77 and running along Marshall Air Drive; thence along Nations Ford Road to the York County Line.

c. West/Trade Street from Tryon Street to Rozzelles Ferry Road; thence along Rozzelles Ferry Road to Valleydale Road; thence along Mount Holly Road to the Gaston County line.

d. East Trade Street from Tryon Street to South McDowell Street; thence along South McDowell Street to East Fourth Street; thence along East Fourth Street to Randolph Road; thence along Randolph Road to Sardis Road; thence along Sardis Road to Matthews Township Parkway; thence along Matthews Township Parkway to John Street in Matthews; thence south along John Street to the Union County Line.

(2) Streets intersecting these streets shall begin at number 100, the second block shall begin at number 200, the third block shall begin at number 300, and so on.

(3) Going away normally from these reference streets the even numbers shall be on the right hand side and the odd numbers shall be on the left hand side.

(4) Lots, which do not have frontage on the street being numbered but achieve access off that street shall be numbered based upon where their access intersects the street.

(5) Other streets not intersecting reference streets and streets which are not extensions which intersect these reference streets shall, on the end of the street nearest a reference street begin with a block number which corresponds with an adjacent parallel street which does intersect one of these reference streets, and the same system, of numbering the block is to be followed out as noted in subsection (2), assigning a new 100 (or block number) to each block. If a block is 800 feet long or more with no intersecting street in between, then a new block number shall begin at the most logical place for a street to be cut through it, or

half-way between the long block corners, or, if the street is long enough without intersecting streets, then new block numbers shall begin at intervals of 500 feet.

(6) A new block number is to be assigned to each block that enters the street being numbered, regardless of whether the street continues across it, and the block number shall change directly opposite the point where this dead end street enters the street being numbered. In case of a slight offset in intersecting streets, then the block number will change at the street intersections instead of directly opposite each entering street.

(7) Upon annexation by the city, city street names shall be extended to the new city limits and property owners shall receive street name change notification from the land use and environmental services agency.

(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-100. Owner or occupant's duty to number upon notice.

(a) Implementation of mechanized systems and their reconciliation with existing paper records may require a change of assigned address for a property or structure. To assure the properly integrated functioning of public safety systems, the assigned address used in the county's master address table shall always become the permanent referent address for the property.

(2) Within 30 days of the receipt of a notice from the director of land use and environmental services and/or his agent assigning an address to a particular building, the owner or occupant of the building shall display, or cause to be displayed, the assigned address.

(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-101. Removing, defacing or allowing incorrect numbers to remain.

It shall be unlawful for any person to remove or deface a street address which is displayed in accordance with section 19-97 of this article. It shall also be unlawful to allow an incorrect street address to remain on a building.

(Ord. No. 2375, § 1, 9-8-2003)

Sec. 19-102. Enforcement; penalties.

A violation of this article shall also be a violation of the city's fire code. Fire inspectors and fire officers of the rank of captain or above shall be responsible for the enforcement of this article, and a violation thereof shall be subject to the penalties provided for in sections 8-5 and 8-6.

(Ord. No. 2375, § 1, 9-8-2003)

Secs. 19-103—19-135. Reserved.

ARTICLE V. NON-UTILITY STREET CUTS AND LANE CLOSURES*

Sec. 19-136. Utility exception.

The provisions of this article shall not apply to a utility as defined in section 19-332 or a person acting on behalf of a utility. A utility is instead subject to article XIII.

(Ord. No. 3730, § 3, 10-22-2007)

Editor's note—Ord. No. 3730, § 3, adopted October 22, 2007, amended § 19-136 in its entirety to read as herein set out. Formerly, § 19-136 pertained to connections of underground mains, pipes and conduits before street paving, and derived from the Code of 1985, § 19-6.

Sec. 19-137. Permit required.

No person shall dig or make any excavation in or close or fill in any city street or sidewalk for any purpose whatever, without first making an application for and obtaining the written permission of the city manager or his representative.

(Code 1985, § 19-76; Ord. No. 3730, § 4, 10-22-2007)

Sec. 19-138. Bond.

(a) No license or permit for excavation shall be issued to any person until such person shall have filed a bond, in an amount determined by

*__Editor's note—__Ord. No. 3730, § 2, adopted October 22, 2007, changed the title of article V from "utilities, street cuts and lane closures" to "Non-utility street cuts and lane closures."

the director/engineer, which shall be posted with the city. The bond shall cover and embrace any work, opening or excavation done or performed under any such permit or license issued during a period of 12 months after the date of such bond. Such bond shall indemnify the city from all claims, suits, actions and proceedings of every character, which may be brought against it for any injuries or damages to person or property received or sustained by any person resulting from any accident that may occur upon any work or excavation done by authority of any such license or permit, whether caused by the negligence of such licensee or permittee, his agent, servant or employees, or otherwise; from any unforeseen contingency that may occur; or from any act of omission or commission of such licensee or permittee, his agent, servant or employees, during the performance of any such work or excavation; and to guarantee payment to the city for inspection fees and any work done by the city caused by the work done under the permit, whether for street resurfacing, the correction of defective work, correction of work not done according to city ordinances, or otherwise.

(b) The bond required in subsection (a) of this section shall not be exacted or collected from any person doing or performing any work or excavation by virtue and under authority of any contract with the city for such work or excavation.
(Code 1985, § 19-77)

Sec. 19-139. Duty of excavator to notify fire department and city engineer; limitations on openings.

(a) Every person making an opening pursuant to this article shall notify the city engineer and fire department in writing when a street is closed, or about to be closed, for the purpose of making a cut, and the city manager or his representative shall notify the fire department in writing when the street is opened for travel.

(b) Every person making an opening shall work diligently and continuously to complete the work.

(c) No opening or cut shall at any one time exceed in length two city blocks or extend across more than one-half of the width of any street. Upon completion of the cut, including tests and approval of the plumbing inspector in the cases regulated by the city plumbing, such person shall immediately backfill, remove surplus material and repave the opening according to instructions from and under the supervision of the city engineer and open the street or sidewalk for travel before proceeding with construction in the adjacent block or other half of the street.

(d) If the applicant elects that the city do the backfilling or any part of the repairs, he shall immediately notify the office of the city engineer when the opening is ready for the city forces to begin work. In this case the city assumes the responsibility for any barricading or lighting of only that portion of the opening on which repairs have actually begun.
(Code 1985, § 19-78)

Sec. 19-140. Inspection by city engineer.

All work done and performed in opening or excavating and refilling and repairing any street or sidewalk opened or excavated under this article shall be subject to the inspection of the city engineer or his assistants. The work shall be done in accordance with specifications to be furnished by him and shall not be considered as completed, nor shall such licensee or permittee be released from his liability to restore the street or sidewalk to the condition in which it was before such work or excavation was commenced, until its final condition is approved by the city engineer and the city council.
(Code 1985, § 19-79; Ord. No. 3730, § 5, 10-22-2007)

Sec. 19-141. Restoration and resurfacing of streets and sidewalks.

Any street or sidewalk opened or excavated under any permit or license shall be restored to the condition in which it was before such work or excavation was commenced, by and at the expense of the person to whom such permit or license was issued. All such excavations made in permanently improved streets shall be filled and tamped

preparatory to the resurfacing and shall be resurfaced by the city, under the direction of the city engineer, and such permittee or licensee shall pay the cost thereof.
(Code 1985, § 19-80)

Sec. 19-142. Repairs made by city.

The city may, at its option, make any or all repairs to the street under this article, including the backfilling of the opening. The applicant will be charged for any work performed by the city.
(Code 1985, § 19-81)

Sec. 19-143. Safety measures—Barricades; flags and signs; red lights.

Every person making an opening or excavation in or near any street or sidewalk shall fence or barricade the opening or excavation in accordance with standards established by the city engineer and the city department of transportation in the handbook entitled "Work Area Traffic Control Handbook" (WATCH) or any successor thereto.
(Code 1985, § 19-82)

Sec. 19-144. Same—Walkway.

It shall be unlawful for any person, his agent, licensee, or permittee, to make any excavations in or upon any sidewalks until such person, his agent, or licensee or permittee shall have first erected or caused to be erected a suitable walkway, under the direction of the city engineer and building inspector, so as not to interfere with pedestrians or the general traveling public and, further, to protect such pedestrians or traveling public from bodily harm and danger.
(Code 1985, § 19-83)

Secs. 19-145—19-170. Reserved.

ARTICLE VI. RESERVED*

Secs. 19-171—19-205. Reserved.

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 19, Article 6, and replaced it with the Unified Development Ordinance in Chapter 24. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 19, art. VI pertained to sidewalks and drainage facilities and was derived from Code 1985, § 19-141—19-149; Ord. No. 9322, § 1, adopted April 23, 2018; and Ord. No. 93, § 5(Exh. E), adopted June 28, 2021.

ARTICLE VII. DECORATIVE SIGNS†

Sec. 19-206. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Decorative sign means a pictorial representation, including illustrations, words, numbers, or decorations; emblem; flag; banner; pennant, that promotes or celebrates the city, its neighborhoods, civic institutions, or public activities or events in the city. Decorative signs may either be designed and displayed by the city directly, or may be donated to the city on a permanent basis or for a limited period of time.
(Ord. No. 4687, § 1, 6-27-2011)

Cross reference—Definitions generally, § 1-2.

Sec. 19-207. Purpose.

This article is intended to provide for temporary and permanent decorative signs within public rights-of-way and to exempt such signs from the provisions contained in the Unified Development Ordinance in chapter 24 of this Code. Decorative signs are regulated in accordance with these standards in order to:

(1) Make it clear that decorative signs under this article constitute government speech and that the city does not intend to create a public forum for private speech;

(2) Provide standards and guidelines regarding the donation and display of banners, flags, pennants and other decorative and informative signs on public rights-of-way;

(3) Restrict the display of decorative signs which:

a. Overloads the public's capacity to receive information;

†__Editor's note—__Ord. No. 4687, § 1, adopted June 27, 2011, amended article VII in its entirety to read as herein set out. Formerly, article VII pertained to decorative signs in municipal service districts 1, 2 and 3, and derived from the Code of 1985, §§ 19-161(a)—(g).

b. Violate privacy; or

c. Increases the probability of accidents by distracting attention or obstructing vision;

(4) Establish guidelines which include, but are not limited to, size, materials, location, erection and removal of decorative signs.

(Ord. No. 4687, § 1, 6-27-2011; Ord. No. 1033, § 2, 10-27-2025)

Sec. 19-208. Prohibited sign devices.

No decorative sign may be lighted, may flash, or may make noise, unless it is part of a city-approved interactive informational and wayfinding kiosk as defined in section 10-1 of this Code.
(Ord. No. 4687, § 1, 6-27-2011; Ord. No. 1033, § 2, 10-27-2025)

Sec. 19-209. Location, size, and placement of signs.

(a) Decorative signs are permitted to be displayed upon public street frontages provided signs:

(1) Do not impede vehicular visibility;

(2) Do not obstruct regular building signs;

(3) Do not interfere with the display of windows on private property; and

(4) Otherwise comply with the applicable sections of this Code and provisions contained in this policy.

(b) When donated signs are placed on, in, or above public rights-of-way, written consent of the director/engineer shall be required. Such consent shall be based on a review that will include, but not be limited to, sign design, location, placement, and safety.

(c) Decorative signs placed on property other than the city's (e.g., utility poles, pedestrian and railroad bridges) shall require the written consent of the property owner.
(Ord. No. 4687, § 1, 6-27-2011)

Sec. 19-210. Erection and removal of signs.

For donated signs, erection and removal of a decorative sign is the responsibility of the donor, and all costs must be borne by the donor or charged to the donor by the city, if the decorative sign is not removed within the prescribed time, and the city itself must remove the sign. The erection or removal of decorative signs that requires the closure of any street, travel lane, or sidewalk area requires prior approval by the city's department of transportation. All such closures must conform to the current edition of the department of transportation's Work Area Traffic Control Handbook (WATCH).
(Ord. No. 4687, § 1, 6-27-2011)

Sec. 19-211. Insurance; liability.

Any person or organization donating, installing, displaying, or dismantling decorative signs pursuant to this article shall save and hold harmless the city from any and all liability or damage to any person or property caused or occasioned by such process. Those installing, displaying, or dismantling signs must obtain and provide evidence to the city's department of transportation of comprehensive general liability insurance with limits established by the city's risk management division per occurrence, annual aggregate on bodily injury and property damage to insure their liability. Such policy shall indemnify the city as provided in this subsection. A certificate of insurance shall be issued prior to the beginning of any work. The certificate of insurance shall be furnished to the city containing the provision that 30 days' written notice will be given to the city prior to cancellation or change to the required coverages and that failure to provide such notice shall impose an obligation and liability upon the issuing company, its agents, or representatives.
(Ord. No. 4687, § 1, 6-27-2011)

Sec. 19-212. Administration.

The director/engineer shall promulgate policies and guidelines governing the approval and display of decorative signs to ensure that signs appropriately promote or celebrate the city, its

neighborhoods, civic institutions, or public activities or events in the city, and to protect public safety and welfare, including ensuring against hazards, traffic problems, and visual blight. Such policies and guidelines shall include, but are not limited to specifications as to the number, size, materials, printing processes, supporting structures, and hanging and removal. The director/engineer shall have the authority to waive specific rules when (1) the decorative sign substantially complies with the rules; and (2) the director/engineer determines that the waiver will not have any adverse effect on public safety and welfare. No decorative sign may be displayed without the prior approval of the director/engineer.
(Ord. No. 4687, § 1, 6-27-2011)

Sec. 19-213. Unlawful acts.

It shall be unlawful for anyone to place or cause to be placed a decorative sign within public rights-of-way without complying with the following:

(1) This article;

(2) The policies and guidelines for the display and approval of decorative signs; and

(3) Any other requirements or conditions stated in a written approval for a decorative sign.

(Ord. No. 4687, § 1, 6-27-2011; Ord. No. 93, § 5(Exh. E), 6-28-2021)

Secs. 19-214—19-240. Reserved.

ARTICLE VIII. OBSTRUCTIONS AND ENCROACHMENTS

Sec. 19-241. Obstructions.

It shall be unlawful to place or maintain an unnecessary obstruction in the public right-of-way. The city may require the person who has placed or maintains an obstruction in violation of this section to remove the obstruction and repair or restore the right-of-way within a reasonable period of time, which time shall be set in consideration of the harm or risk created by the obstruction and the effort and expense of removal. In addition, the city may summarily remove an obstruction and charge the expense of the removal, restoration, and repair to the person who placed or maintained the obstruction.
(Code 1985, § 19-25(a))

Sec. 19-242. Encroachment agreements.

It shall be unlawful to place or maintain a fixed object in the public right-of-way without first obtaining an encroachment agreement from the city, unless the placement or maintenance of the fixed object has been approved through a separate city permitting process. This section shall not apply to the placement and maintenance of mailboxes and utility facilities.

Sec. 19-243. Certificate to builder; penalty for building without certificate.

Any person building or about to build any house, building, fence or wall or construct any sidewalk or pavement along the border or bounding on any of the city streets or sidewalks shall have such located and graded and the boundaries thereof adjoining such street fixed and certified to by the director/engineer. A fence or wall described in this section shall not exceed height restrictions as provided in the zoning ordinance in appendix A to this Code or within required sight distance triangles at intersections as provided in section 19-245. It shall be unlawful to build or maintain a house, building, fence, wall, sidewalk or pavement in violation of this section.
(Code 1985, § 19-4)

Sec. 19-244. Grates on sidewalks.

It shall be unlawful for any person to erect or maintain an open grate or vault door in a sidewalk or right-of-way without first obtaining approval of the city council upon recommendation of the director/engineer. This section shall not apply to utility manhole and handhold covers.
(Code 1985, §§ 19-16, 19-19)

Sec. 19-245. Obstructions to cross visibility at intersections deemed nuisance; abatement procedures.

(a) In order to promote and conserve the public health and safety and pursuant to the police powers of the city and the power to prevent and abate public nuisances as conferred upon the city by state law, it is hereby declared to be a public nuisance for a person owning and/or having the legal control of any land within the corporate limits to maintain or permit upon any such land any fence, sign, billboard, shrubbery, bush, tree, mailbox or other object, or any combination thereof, which obstructs the view of motorists using any street or the approach to any street intersection so as to constitute a traffic hazard or a condition dangerous to the public safety.

(b) The restrictions set forth in this section shall apply to both of the following triangles of land:

(1) That triangle bounded by the curb edges, or edges of pavement where there is no curb, measured along the curb edge, or edge of pavement where there is no curb, 50 feet from the midpoint of the radius of the curb edge, or edge of pavement where there is no curb, in each direction and the diagonal line connecting the further ends of such 50-foot lengths.

(c) Within such triangles, and except as provided in subsection (d) of this section, it shall be unlawful to install, set out or maintain, or allow the installation, setting out, or maintenance of, any sign, hedge, shrubbery, tree, natural growth, earthen berm, or other object of any kind which obstructs cross visibility at a level between 30 inches and 72 inches above the level of the center of the adjacent intersection.

(d) Subsection (c) of this section shall not apply to the following:

(1) Permanent buildings.

(2) Existing natural grades that, by reason of natural topography, rise 30 or more inches above the level of the center of the adjacent intersection.

(3) Trees having limbs and foliage trimmed in such manner that no limbs or foliage extend into the area between 30 inches and 72 inches above the level of the center of the adjacent intersection.

(4) Fire hydrants, public utility poles, street markers, governmental signs, and traffic control devices.

(e) Where compliance with this section in the described triangles or at the heights described alone is insufficient to prevent a dangerous condition, the transportation director may designate further measures which must be taken by the owner or other responsible person to eliminate such dangerous condition. Such measures shall be designed to provide an adequate sight and stopping distance for persons approaching the intersection at prevailing speeds and may include the removal of obstructions at different heights or in areas outside the triangles established in subsection (b) of this section.

(f) If the provisions of any other law, ordinance or regulation of the city or of the state shall be in conflict with this section, the more stringent provision shall control.

(g) The administration of this section shall be under the direction of the transportation director who shall investigate violations, issue such notices and orders as are required in this section, and perform such other duties as may be necessary to the enforcement of this section.

(h) Any obstruction to cross visibility maintained in violation of this section shall be deemed to be a public nuisance inconsistent with and detrimental to the public safety and shall be abated in accordance with the following procedure:

(1) The transportation director shall cause to be served by certified mail a written notice and order of abatement upon the owner, tenant and/or person having legal control of the premises upon which such obstruction exists.

(2) Such obstruction shall be removed within ten days from the date of receipt of such notice and order.

(3) Any person receiving such notice and order may, within ten days from receipt thereof, request, in writing, a hearing before the city manager or his designee. If any person receiving such notice and order does not comply with the order and does not request, in writing, a hearing before the city manager or his designee within the ten-day period, the transportation director may request, in writing, that the city manager or his designee fix the date of the hearing and notify the person upon whom the notice and order have been served of the time and place of such hearing. If, after such hearing, the city manager or his designee finds that the obstruction in question does in fact constitute a public nuisance, the city manager or his designee shall order that such nuisance be abated within ten days from the date of such order. Upon failure by any person to comply with such order of the city manager or his designee, the transportation director shall cause the removal of such obstruction by city forces and/or an independent contractor. The cost of such removal shall be billed to the owner and/or person having legal control of the land. If unpaid for more than 30 days, such cost shall become a lien against the property from which such obstruction is removed. The transportation director shall have authority to file the lien on the public records of the county and to cancel the lien when paid.

(i) In addition to the other remedies provided in this section, the city shall be entitled to seek a judicial injunction and order of abatement or other equitable remedy to secure the enforcement of this section, regardless of whether the city manager has held or been requested to hold a hearing or the city manager or city council has declared the condition a nuisance.
(Code 1985, § 19-16; Ord. No. 374, § 3, 8-22-2022)

Secs. 19-246—19-270. Reserved.

ARTICLE IX. SIDEWALK DINING*

Sec. 19-271. Permits generally.

The director of transportation or his designee may enter into encroachment agreements for the serving of food and beverages on city sidewalks on the following conditions:

(1) Dining is for waiter service only;

(2) No permanent fixtures, facilities or encroachments are affixed to the sidewalk or installed within the city right-of-way;

(3) A cover charge is not charged for sidewalk dining;

(4) No business, product, or advertising signing is placed on any encroaching item; and

(5) The sidewalk is free from litter, food products and other items.

(Code 1985, § 19-24(a))

Sec. 19-272. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Permanent encroachment means all items of privately owned personalty affixed, connected, attached or fastened to any public sidewalk or right-of-way.

Restaurant means an establishment in the business of regularly and customarily selling food, primarily to be eaten on the premises, including businesses that are referred to as "restaurants," "cafeterias," "cafes," "lunchstands," "grills," "snack bars," "fast food businesses" and other establishments, such as drugstores, which have a lunchcounter or other section where food is sold to be eaten on the premises. This definition does not include food vendors.

Restaurant operator means the person operating a restaurant and associated sidewalk cafe. As used in this article, this definition includes

*__Cross references__—Businesses and trades, ch. 6; licenses, ch. 13.

the owner and manager, if different from the owner, of the restaurant and associated sidewalk cafe.

Temporary encroachment means all items of privately owned personalty situated on, but not affixed, connected, attached or fastened to, any sidewalk or public right-of-way.
(Code 1985, § 19-24(b))

Cross reference—Definitions generally, § 1-2.

Sec. 19-273. Encroachment agreement.

Any restaurant operator who desires to offer sidewalk dining shall execute an encroachment agreement with the city, which agreement shall contain, but not be limited to, the following:

(1) The name, address, and telephone number of the restaurant desiring to operate sidewalk dining.

(2) The name, address, and telephone number of the restaurant operator.

(3) The type of food and beverage, or food product, to be sold and served for the sidewalk dining.

(4) The hours of operation of the restaurant and the proposed hours of operation of sidewalk dining.

(5) A scaled drawing or site plan showing the following:

a. The section of sidewalk or right-of-way to be used for the dining.

b. The section to be kept clear for pedestrian use.

c. The existing curbline and right-of-way line.

d. The proposed placement of the tables, chairs and other furnishings on the sidewalk.

(6) Evidence of adequate insurance, as determined by the city, to hold the city harmless from claims arising out of the operation of the sidewalk dining.

(7) An indemnity statement whereby the restaurant operator agrees to indemnify and hold harmless the city and its officers, agents, and employees from any claim arising from the operation of the sidewalk dining.

(8) A copy of all permits and licenses issued by the state, county or city, including health and ABC permits, if any, necessary for the operation of the restaurant or business, or a copy of the application for the permit if no permit has been issued. This requirement includes any permits or certificates issued by the city for exterior alterations or improvements to the restaurant.

(9) Such additional information as may be requested by the director of transportation or his designee to determine compliance with this article.

(10) A fee as determined by the city to cover the cost of processing and investigating the application and issuing the permit.

(Code 1985, § 19-24(c))

Sec. 19-274. Issuance of encroachment agreement.

An encroachment agreement for the operation of sidewalk dining may not be issued unless the agreement is complete and unless the following requirements are met:

(1) Sidewalk dining must be associated with an operating restaurant such that it is under the same management and shares the same food preparation facilities, restroom facilities and other customer convenience facilities as the restaurant.

(2) Sidewalk dining must be clearly incidental to the associated restaurant business. Seating capacity of sidewalk dining may not constitute more than 50 percent of the total seating capacity of the associated restaurant.

(3) The placement of tables, chairs and other furnishings as shown in the drawing required in section 19-273(5) must be done in such a manner that at least six feet of unobstructed paved space, as measured from the street-side edge of the sidewalk, remains on the sidewalk

for the passage of pedestrians in the uptown mixed use and neighborhood services zoning districts and at least five feet of unobstructed paved space in all other zoning districts.

(4) The restaurant seeking approval for sidewalk dining must front on and open onto the sidewalk proposed for the sidewalk dining. The placement of tables, chairs, and other furnishings may not extend beyond the sidewalk frontage of the associated restaurant unless as provided in section 19-275(5) and (6) of this article.

(5) The tables, chairs, and other furnishings used in sidewalk dining shall be removed daily from the sidewalk at the close of the associated restaurant's business day.

(6) The operation or furnishings associated with sidewalk dining shall not result in any permanent alteration to or encroachment upon any street, sidewalk, or to the exterior of the associated restaurant.

(Code 1985, § 19-24(d))

Sec. 19-275. Placement of furnishings.

Furnishings for sidewalk dining:

(1) Shall not be within ten feet of any driveway or alleyway;

(2) Shall not be within 15 feet of a fire hydrant or standpipe;

(3) Shall not be within ten feet of a crosswalk or the intersection of right-of-way lines (property lines) at a street intersection;

(4) Shall not be at any location which obstructs underground utility access points, ventilation areas, meters, accessible ramps or other facilities provided for physically challenged persons, a building access or exit, or any emergency access or exitway;

(5) Shall not be in front of an adjacent property, without the written approval of the adjacent business or property owner;

(6) Shall not be in front of an adjacent display window, without the written approval of the business or property owner; and

(7) Shall have other conditions that may be necessary as determined by the director of transportation.

(Code 1985, § 19-24(e))

Sec. 19-276. Denial/revocation of encroachment agreement.

The director of transportation or his designee may deny or revoke an encroachment agreement, pursuant to this article, if he finds that the granting or continuation of the agreement would not be in the public's interest or if he finds that the restaurant operator has:

(1) Made a deliberate misrepresentation or provided false information in the encroachment agreement;

(2) Operated sidewalk dining at the location in such a manner as to create a public nuisance or to constitute a hazard to the public health, safety, or welfare, specifically to include failure to keep the sidewalk clean and free of refuse;

(3) Failed to maintain any health, business or other permit or license required by law for the operation of the restaurant business; or

(4) Failed to uphold the terms of the encroachment agreement.

(Code 1985, § 19-24(f))

Sec. 19-277. Reservation of rights.

The city reserves the right to cease part or all of any sidewalk dining pursuant to this article in order to allow construction, maintenance, or repair of any street, sidewalk, utility, or public building, by the city, its agents or employees or by any governmental entity or public utility, and to allow for the use of the street or sidewalk in connection with parades, civic festivals, and other events of a temporary nature, as permitted by the city. The city also reserves the right to amend, alter, or change the encroachment agreement upon further review and consideration for

reasons of public safety, adopted public policy, or operational concerns without any costs to the city. In such event, the director of the department of transportation will notify the restaurant operator by certified mail of amendments to the agreement. These amendments will require an execution of a new agreement within the time period specified in the notice. Failure to enter into a new encroachment agreement pursuant to this section will result in automatic termination of the agreement.
(Code 1985, § 19-24(g))

Sec. 19-278. Term and transfer of encroachment agreements.

(a) Agreements issued in accordance with this article shall remain in effect for a period of one year. If modifications of the original drawing or site plan as required in section 19-273(5) are desired, a new drawing must be submitted and approved by the director of transportation or his designee before another agreement may be approved.

(b) Encroachment agreements entered into pursuant to this article shall not be transferable or assignable.
(Code 1985, § 19-24(h))

Secs. 19-279—19-300. Reserved.

ARTICLE X. PICKETING*

Sec. 19-301. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Picket or *picketing* means to make a public display or demonstration of sentiment for or against a person or cause, including protesting which may include the distribution of leaflets or handbills, the display of signs and any oral communication or speech, which may involve an effort to persuade or influence, including all expressive and symbolic conduct, whether active or passive.

Sidewalk means that portion of the street right-of-way which is designated for the use of pedestrians and may be paved or unpaved and shall include easements and rights of ways.

Street means the entire width between property or right-of-way lines of every way or place of whatever nature, when any part thereof is open to the use of the public as a matter or right, for the purposes of vehicular traffic, including that portion that is known as the shoulder of the roadway and the curb. The terms "highway" and "street" and their cognates are synonymous as used herein.
(Ord. No. 2621, § 1, 6-14-2004)

Sec. 19-302. Notice of intent to picket.

(a) *Notification required.* The organizer of a picket that the organizer knows, or should reasonably know will be by a group of 50 or more individuals shall give notice of intent to picket to the chief of police or designee at least 48 hours before the beginning of the picket. The notice of intent to picket shall include the following information:

(1) The name, address and contact telephone number for the organizer of the picket;

(2) The name, address and contact telephone number of the person giving notice of intent to picket if different from the organizer;

(3) The name of the organization or group sponsoring the picket;

(4) The location where the picket is to take place;

(5) The date and time the picket will begin and end; and

(6) The anticipated number of participants, and the basis on which this estimate is made.

*__Editor's note—__Ord. No. 2621, § 1, adopted June 14, 2004, amended article X in its entirety to read as herein set out. Formerly, article X pertained to parades and derived from Ord. No. 2459, § 1, adopted December 8, 2003. For provisions pertaining to parades, the user's attention is directed to article XI.

(b) *Receipt of notification.* Upon notice of intent to picket given in accordance with subsection (a), the chief of police or designee shall immediately issue a receipt of notice. The receipt shall contain all information stated in the notice. The organizer of a picket shall be responsible for maintaining the receipt, and shall present it when so requested by a law enforcement officer or other city official.

(c) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 2621, § 1, 6-14-2004)

Sec. 19-303. Picketing regulations.

(a) Picketing may be conducted on public sidewalks, at the Old City Hall lawn, the Charlotte-Mecklenburg Government Center plaza, Polk Park, Independence Square Plaza, Arequipa Park, any other city-controlled park, or other city-owned areas normally used or reserved for pedestrian movement, including easements and rights-of-way, and shall not be conducted on the portion of the public roadway used primarily for vehicular traffic.

(b) Notwithstanding subsection (a), picketing may not be conducted:

(1) On a median strip; or

(2) At a location directed, focused, or targeted at a particular private residence.

(c) Picketing shall not disrupt, block, obstruct or interfere with pedestrian or vehicular traffic or the free passage of pedestrian or vehicular traffic into any driveway, pedestrian entrance, or other access to buildings, which abut the public sidewalks.

(d) Written or printed placards or signs, flags, or banners carried by individuals engaged in picketing shall be of such a size and/or carried on the sidewalks or other city-owned areas, as to allow safe and unobstructed passage of pedestrian or vehicular traffic. The staff or pole on which a sign, flag, or banner may be carried shall be made of corrugated material, plastic, or wood, and shall not exceed 40 inches in length and shall not be made of metal or metal alloy. If made of wood, the staff or pole shall be no greater than three-fourths inch in diameter at any point. A staff or pole must be blunt at both ends.

(e) If more than one group of picketers desire to picket at the same time at or near the same location, law enforcement officers may, without regard to the purpose or content of the message, assign each group a place to picket in order to preserve the public peace. Members of a group shall not enter an area assigned to another group. Priority of location shall be based upon which group of picketers arrived first.

(f) Spectators of pickets shall not physically interfere with individuals engaged in picketing. Picketers and spectators of pickets shall not speak fighting words or threats that would tend to provoke a reasonable person to a breach of the peace.

(g) Picketers and picketing shall be subject to all applicable local, state and federal laws including, but not limited to:

(1) The city's noise ordinance;

(2) The city's handbill ordinance;

(3) G.S. § 14-225.1 (obstructing justice);

(4) G.S. § 14-277.2 (weapons);

(5) G.S. § 14-277.4 (health care facilities); and

(6) G.S. § 14-288.4 (disorderly conduct).

(h) Nothing in this section prohibits a law enforcement officer from issuing a command to disperse in accordance with North Carolina General Statute § 14-288.5 in the event of a riot or disorderly conduct by an assemblage of three or more persons.

(i) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 2621, § 1, 6-14-2004; Ord. No. 4815, § 1, 1-23-2012)

Secs. 19-304—19-310. Reserved.

ARTICLE XI. PUBLIC ASSEMBLIES AND PARADES*

Sec. 19-311. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Appeals official means the city manager, or his designee who shall be a deputy or assistant city manager.

Demonstration means a public display of sentiment for or against a person or cause, including protesting.

Festival means an outdoor concert, fair, community event, or similar event that is primarily commercial and/or recreational in nature.

Parade means an athletic event, march, procession or other similar activity consisting of persons, animals, vehicles or things, or any combination thereof, that disrupts the normal flow of traffic upon any public street. A funeral procession is not a parade.

Permit official means the person or persons designated by the city manager as being responsible for issuing and revoking permits under this

*__Editor's note__—See note at article X.

article. The city manager may designate different persons as the permit official for different categories of permitted events and for different facilities or locations.

Public assembly means:

(1) A festival or demonstration which is reasonably anticipated to obstruct the normal flow of traffic upon any public street and that is collected together in one place; and

(2) A festival on the Old City Hall lawn, the Charlotte-Mecklenburg Government Center Plaza, or in Polk Park, Independence Square Plaza, Arequipa Park or any other city-controlled park.

(Ord. No. 2621, § 2, 6-14-2004; Ord. No. 4815, § 2, 1-23-2012)

Sec. 19-312. Public assembly and parade permits.

(a) *Permit required.* No public assembly or parade is permitted unless a permit allowing such activity has been obtained, and remains unrevoked, pursuant to this section.

(b) *Permit application.* An application for a public assembly or parade permit shall be made in writing on a form prescribed by the Permit official at least 30 days before the commencement of the event. Notwithstanding the preceding sentence, the permit official shall consider an application that is filed less than 30 days before the commencement of the proposed event where the purpose of such event is a spontaneous response to a current event, or where other good and compelling causes are shown.

The application must contain the following:

(1) The name, address, and telephone number for the person in charge of the proposed event and the name of the organization with which that person is affiliated or on whose behalf the person is applying (collectively "applicant");

(2) The name, address, and telephone number for an individual who shall be designated as the responsible planner and on-site manager for the event;

(3) The date, time, place, and route of the proposed event, including the location and time that the event will begin to assemble and disband, and any requested street closings;

(4) The anticipated number of persons and vehicles, and the basis on which this estimate is made;

(5) A list of the number and type of animals that will be at the event and all necessary health certificates for such animals;

(6) Such other information, attachments, and submissions that are requested on the application form; and

(7) Payment of a nonrefundable application fee established pursuant to section 2-4 of this Code.

(c) *Permitting criteria.* An application may be denied or revoked for any of the following reasons:

(1) The application is not fully completed and executed;

(2) The applicant has not tendered the required application fee or has not tendered other required user fees, indemnification agreements, insurance certificates, or security deposits within times prescribed;

(3) The application contains a material falsehood or misrepresentation;

(4) The applicant is legally incompetent to contract or to sue and be sued;

(5) The applicant has on prior occasions made material misrepresentations regarding the nature or scope of an event;

(6) The applicant has previously permitted a violation or has violated the terms of a public assembly or parade permit issued to or on behalf of the applicant;

(7) The applicant has on prior occasions damaged city property and has not paid in full for such damage;

(8) A fully executed prior application for the same time and place has been received, and a permit has been or will be granted

to a prior applicant authorizing uses or activities which do not reasonably permit multiple simultaneous events;

(9) The proposed event would conflict with previously planned programs organized, conducted, or sponsored by the city and previously scheduled at or near the same time and place;

(10) The proposed event would present an unreasonable danger to the public health or safety;

(11) The proposed event would substantially or unnecessarily interfere with traffic;

(12) The event would likely interfere with the movement of emergency equipment and police protection in areas contiguous or in the vicinity of the event.

(13) There would not, at the time of the event, be sufficient law enforcement and traffic control officers to adequately protect participants and non-participants from traffic related hazards in light of the other demands for police protection at the time of the proposed event;

(14) The applicant has not complied or cannot comply with applicable licensure requirements, ordinances or regulations concerning the sale or offering for sale of any goods or services;

(15) The use or activity intended by the applicant is prohibited by law;

(16) For non-First Amendment protected public assemblies or parades, the following criteria shall also apply:

a. The cultural and/or educational significance of the event;

b. The extent to which the event contributes to the economic revitalization and business development of the city;

c. The impact and/or cost of the event to city support services;

d. The impact of the event to the public health, safety and welfare;

e. The impact of the event on business and resident populations within or adjacent to the proposed event site;

f. The evaluation of any previous event produced by the event organizer with regard to planning, quality, public safety, and payment of invoices;

g. The frequency and timing of the event or similar events.

Unless subject to (c)(16), noting in this section shall authorize the permit official to deny or revoke a permit based upon political, social, or religious grounds or reasons, or based upon the content of the views expressed.

The permit official may attach reasonable conditions to any permit approval.

(d) *Costs and fees.* The applicant shall be responsible for hiring and paying off-duty law enforcement officers, or reimbursing the city for the costs of providing on-duty law enforcement officers, to appropriately police street closures. For festivals, the applicant shall be additionally responsible for hiring and paying off-duty law enforcement officers and fire/EMS personnel, or reimbursing the city for the costs of providing on-duty law enforcement officers and fire/EMS personnel, to provide internal festival safety and security.

The permit official, in consultation with the Charlotte-Mecklenburg police and fire departments, shall determine the number of officers and fire/EMS personnel needed to appropriately police street closures and for internal safety and security, and the time when such services shall commence and end, taking into consideration the following:

(1) The proposed location of the special event or route of the parade;

(2) The time of day that the public assembly or parade is to take place;

(3) The date and day of the week proposed;

(4) The general traffic conditions in the area requested, both vehicular and pedestrian. Special attention is given to the rerouting of the vehicles or pedestrians normally using the requested area;

(5) The number of marked and unmarked intersections along the route requested, together with the traffic control devices present;

(6) If traffic must be completely rerouted from the area, then the number of marked and unmarked intersections and the traffic control devices are to be taken into consideration;

(7) The estimated number of participants;

(8) The estimated number of viewers;

(9) The nature, composition, format and configuration of the special event or parade;

(10) The anticipated weather conditions;

(11) The estimated time for the special event or parade;

(12) For festivals, whether alcohol will be served, live music offered, or retail sales stations provided, and the number and location of alcohol service stands, music stages, and retail stands.

In addition, for festivals located inside I-277, the applicant shall reimburse the city for the costs of providing street and sidewalk cleaning, trash receptacle placement, trash removal, and trash disposal.

Notwithstanding the foregoing, the city may provide the services required by this subsection at no cost, or at a reduced cost, to the applicant should the city desire to provide such support to the public assembly or parade. Such action is not a waiver of a regulatory requirement based upon political, social, or religious grounds or reasons, or based upon the content of the views expressed, but instead is an affirmative act of city association or speech.

(e) *Time and notice of decision.* The permit official shall approve or deny an application within 20 days of receipt. A notice of denial or revocation shall clearly set forth the grounds upon which the permit was denied or revoked and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit. Where an application is denied because the proposed event would conflict with another event that has or will be approved, the permit official shall propose an alternative place, if available for the same time, or an alternative time, if available for the same place.

(f) *Appeals.*

(1) An applicant may appeal the denial or revocation of an application in writing within ten days after notice of the denial has been received. Within five business days, or such longer period of time agreed to by the applicant, the appeals official shall hold a quasi-judicial hearing on whether to issue the permit or uphold the denial or revocation. The applicant shall have the right to present evidence at said hearing. The decision to issue or uphold the denial or revocation shall be based solely on the approval criteria set forth in this section. The appeals official shall render a decision on the appeal within five business days after the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

(2) The decision of the appeals official is subject to review in the Superior Court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after the applicant has received notice of the decision. Unless good cause exists to contest a petition for writ of certiorari, the city shall stipulate to certiorari no later than five business days after the petitioner requests such a stipulation. The city shall transmit the record to the court no later than five business days after receiving the order allowing certiorari. Notwithstanding the provisions of any local rule of the reviewing court that allows for a longer time period, the city shall file its brief within 15 days after it is served with the petitioner's

brief. If the petitioner serves his or her brief by mail, the city shall add three days to this time limit, in accordance with North Carolina General Statute 1A-1, Rule 5. If the local rule is subsequently amended to provide for a shorter time period for the filing of any brief, then the shorter time period shall control. The North Carolina Rules of Appellate Procedure shall govern an appeal by an applicant from the Superior Court of Mecklenburg County.

(g) It shall be unlawful for any person to violate any provision of this section or to violate any term or condition of a permit issued pursuant to this section.
(Ord. No. 2621, § 2, 6-14-2004; Ord. No. 4815, § 3, 1-23-2012)

Sec. 19-313. Public assembly and parade regulations.

(a) It shall be unlawful to unreasonably hamper, obstruct, impede, or interfere with a public assembly or parade, or with any person, vehicle, or animal participating or used in the public assembly or parade.

(b) It shall be unlawful for the operator of a motor vehicle to drive between vehicles or persons comprising a parade when such vehicles or persons are in motion and are conspicuously designated as a parade.

(c) Spectators of a public assembly or parade and persons attending or participating in a public assembly or parade picketing shall be subject to all applicable local, state and federal laws including, but not limited to G.S. § 14-277.2 (weapons).

(d) Nothing in this section prohibits a law enforcement officer from issuing a command to disperse in accordance with North Carolina General Statute § 14-288.5 in the event of a riot or disorderly conduct by an assemblage of three or more persons.
(Ord. No. 2621, § 2, 6-14-2004)

Secs. 19-314—19-320. Reserved.

ARTICLE XII. VALET PARKING

Sec. 19-321. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

Valet operator means:

(1) A person whose business is served by valet parking service;

(2) A person who provides valet parking service and

(3) Any employee or agent of a person described in (1) or (2) who provides, or participates in the provision of, valet parking service.

For purposes of this article, valet operator shall not mean the city or a person acting on behalf of the city.

Valet parking service means accepting possession of a vehicle on the right-of-way for the purpose of parking the vehicle for the operator or retrieving a parked vehicle and returning it to the operator on the right-of-way, regardless of whether a fee is charged.
(Ord. No. 3360, § 1, 8-28-2006)

Sec. 19-322. Permits.

(a) *Permit required.* No valet parking service is permitted unless a permit allowing such activity has been issued pursuant to this section.

(b) *Permit application.* An application for a valet parking permit shall be made in writing on a form prescribed by the director/engineer. The application must contain the following:

(1) The name, address, and telephone number of the business to be served by the valet parking service and, if separate from the business to be served, the owner/operator of the valet parking service;

(2) A written justification of the need for valet parking service by the business to be served;

(3) A scale drawing of the location and limits of the proposed valet parking service activities, including an identification of any on-street parking spaces or loading zones that would be affected by the activities;

(4) An operation plan that includes the days and times when valet parking services will be provided;

(5) An indemnity and release form as prescribed by the director/engineer;

(6) Proof of insurance as required by the director/engineer;

(7) Any other information reasonably required by the director/engineer; and

(8) Payment of a non-refundable application fee established pursuant to section 2-1.

The permit application requirements of this section shall also apply to permit renewals.

(c) *Permitting criteria.* The director/engineer shall issue or deny a valet parking permit taking into consideration the following factors:

(1) Whether the application is complete;

(2) The extent to which the valet parking service might unreasonably disrupt the flow of pedestrian and vehicular traffic, including the location of the proposed valet parking service in relationship to traffic control devices;

(3) The extent to which the valet parking service might unreasonably interfere with or impinge upon on-street parking;

(4) The proximity of traditional on-street and off-street parking to the business to be served by the valet parking service; and

(5) The proximity and relationship to any other previously permitted valet parking service.

A permit shall specify:

(i) The business served;

(ii) The location and limits of the valet parking service activities;

(iii) The days and times when the valet parking service is permitted;

(iv) Any additional restrictions or requirements regarding the location or operation of the valet parking service;

(v) Identification tag requirements for valet operators;

(vi) The permit expiration date; and

(vii) Any other conditions on the permit.

A permit shall not be valid until the applicant has paid a right-of-way use fee established by the director/engineer taking into consideration the amount of right-of-way and other public property and facilities occupied by the valet parking service and potential lost meter revenue.

(d) *Modification and revocation.* The city may modify or revoke a permit issued pursuant to this section at any time and for any reason.

(e) *Temporary suspension.* The city may temporarily suspend a permit issued pursuant to this section when warranted by traffic conditions or anticipated traffic conditions.

(f) *No rights established.* Nothing in this article is intended to establish any legal right to provide a valet parking service or any legal property interest in a valet parking permit.
(Ord. No. 3360, § 1, 8-28-2006)

Sec. 19-323. Violations.

(a) It shall be unlawful for a valet operator to provide or engage in valet parking service without a valid valet parking permit issued pursuant to this article. A valet parking permit that has expired or that has been suspended or revoked is not a valid permit.

(b) It shall be unlawful for a valet operator to provide or engage in valet parking service in violation of the terms and conditions of a valet parking permit that pertains to the valet parking service.

(c) It shall be unlawful for a valet operator to stop or direct traffic.
(Ord. No. 3360, § 1, 8-28-2006)

Sec. 19-324. Enforcement.

(a) Any person who violates subsection 19-323(a) shall be subject to a civil penalty of $1,000.00 for each day during which such violation occurs.

(b) Any person who violates subsections 19-323(b) or (c) shall be subject to a civil penalty of $100.00 for each violation.

(c) A violation of this article shall not constitute an infraction or misdemeanor punishable under G.S. 14-4.
(Ord. No. 3360, § 1, 8-28-2006)

Sec. 19-325. Appeals.

The denial, modification, revocation, or suspension of a valet parking permit, or the issuance of civil penalties, may be appealed within ten days after notice of such action. Appeals shall be heard by the city manager or the city manager's designee. A ruling on appeal is subject to further review in the Superior Court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been sent to the appellant.
(Ord. No. 3360, § 1, 8-28-2006)

Secs. 19-326—19-330. Reserved.

ARTICLE XIII. UTILITY RIGHT-OF-WAY USE*

DIVISION 1. GENERALLY

Sec. 19-331. Purpose.

The purpose of this article is to provide for the proper management of the public rights-of-way in order to preserve the health, safety, and welfare of the citizens of the city. Specifically, this article is intended to provide for the reasonable regulation of the owners of public and private utility facilities located in the public rights-of-way, and the time, place and manner in which such utility facilities are located and worked upon.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-332. Definitions.

Utility means a company that owns and provides services to customers through utility facilities located in the right-of-way. This definition shall include the city for purposes of the city's ownership of water, waste water, and stormwater utility facilities.

Utility facility means a pole, tower, water main or line, sanitary sewer pipe or line, stormwater pipe or structure, gas pipe or gas line, telecommunications line or equipment, power line, conduit, or any like structure.
(Ord. No. 3730, § 1, 10-22-2007)

Secs. 19-333—19-335. Reserved.

DIVISION 2. STANDARDS AND PERMITS

Sec. 19-336. Utility right-of-way master permit required.

(a) It shall be unlawful to own any utility facility located in, on, under, or above the right-of-way without a valid and un-expired utility right-of-way master permit issued by the city. A utility right-of-way master permit shall, among other things:

(1) Grant to the holder of the permit the general right to have utility facilities in the right-of-way provided, however, that the master permit does not constitute a permit for any particular installation, maintenance, repair, or removal of a utility facility;

(2) Specify the term of the permit (which term shall typically be for the one-year period, or portion of a one-year period, the expires on June 30);

(3) Provide for the removal of abandoned utility facilities;

*__Editor's note—__Ord. No. 3730, § 1, adopted October 22, 2007, enacted provisions intended for use as article XII. Inasmuch as there are already provisions so designated, and at the discretion of the editor, said provisions have been redesignated as article XIII.

(4) Acknowledge the city's right to require the removal or relocation of utility facilities when necessitated by a public need;

(5) Provide for the defense and indemnification of the city, its officers, and employees for claims and suits arising out of the use of the right-of-way;

(6) Require proof of suitable levels of insurance coverage;

(7) State the rights, if any, to assign or transfer rights or obligations without the prior consent of the city;

(8) Acknowledge the city's full retention of its police power;

(9) Provide for the registration of all contractors who work in the right-of-way on behalf of the owner; and

(10) Provide for the preparation, maintenance and maps of utility facilities located within the city.

(b) Exceptions. The holder of an unrevoked and unexpired franchise issued by the city shall not be required to obtain a utility right-of-way master permit for purposes of the utility facilities located in the rights-of-way that are used for the purpose authorized by the franchise. This section shall not apply to the city.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-337. Powers reserved.

A utility right-of-way master permit does not constitute a grant of all governmental approval necessary for the use and enjoyment of utility facilities located in the rights-of-way. A utility right-of-way master permit is not a franchise. With respect to the holder of a utility right-of-way master permit, the city fully retains its franchising and police power authority and the holder of a utility right-of-way master permit is not relieved of its obligation to obtain all necessary franchises and permits and to comply with all other legal requirements.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-338. Utility facility installation, maintenance, repair, and removal.

(a) The key business executive of the department of transportation is authorized to adopt, amend, and repeal standards and provisions governing the installation, maintenance, repair, and removal of utility facilities in, on, under, and over the rights-of-way. The standards and provisions shall, among other things, specify those types of activities that:

(1) Require a utility work permit;

(2) Do not require a utility work permit but must be done in accordance with the standards set forth in the standards and provisions; and

(3) Are exempt.

The standards and provisions shall also address emergency situations and activities.

(b) It shall be unlawful to install, maintain, repair, or remove any utility facility in the right-of-way in violation of the standards and provisions adopted pursuant to subsection (a).

(c) It shall be unlawful to install, maintain, repair, or remove any utility facility in the right-of-way without a utility work permit if the standards and provisions adopted pursuant to subsection (a) require a utility work permit for such activities.

(d) Any owner of utility facilities located in the right-of-way shall maintain a map of such facilities.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-339. Utility pavement/sidewalk cuts.

(a) The key business executive of the department of transportation is authorized to adopt, amend, and repeal standards and provisions governing the making, excavation, filling, repair, and closing of a utility pavement/sidewalk cut. The standards and provisions may provide that certain activities may be undertaken only in accordance with a utility work permit issued pursuant to such standards and provisions. The standards and provisions shall also address emergency situations and activities.

(b) It shall be unlawful to make, excavate, fill, repair, or close a utility pavement cut in violation of the standards and provisions adopted pursuant to subsection (a).

(c) It shall be unlawful to make, excavate, fill, repair, or close a utility pavement cut without a utility work permit if the standards and provisions adopted pursuant to subsection (a) require a permit for such activities.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-340. Lane closure/traffic control.

(a) The key business executive of the department of transportation is authorized to adopt, amend, and repeal standards and provisions governing the closing of any portion of the right-of-way to vehicular, pedestrian or other traffic, including standards and requirements for warning and controlling traffic including, but not limited to, development and enforcement of a Work Area Traffic Control Handbook (WATCH). The standards and provisions may provide that certain closings or traffic warning and control activities may be undertaken only in accordance with a utility work permit issued pursuant to such standards and provisions. The standards and provisions shall also address emergency situations and activities.

(b) It shall be unlawful for any person to close any portion of the right-of-way to vehicular, pedestrian, or other traffic in violation of the standards and provisions adopted pursuant to subsection (a).

(c) It shall be unlawful for any person to close any portion of the right-of-way to vehicular, pedestrian, or other traffic without a utility work permit if the standards and provisions adopted pursuant to subsection (a) require a utility permit for such closing.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-341. Additional violations.

(a) Except in an emergency, it shall be unlawful to authorize a contractor to perform work regulated by this article without first registering such contractor with the city.

(b) If a contractor is performing work on a utility facility in the right-of-way, it shall be unlawful for the contractor to fail or refuse to properly identify the Utility on whose behalf the contractor is performing the work when requested to do so by the director/engineer.

(c) If a subcontractor is performing work on a utility facility in the right-of-way, it shall be unlawful for the subcontractor to fail or refuse to properly identify the contractor on whose behalf the subcontractor is performing the work when requested to do so by the director/engineer.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-342. Fees and deposits.

Permit and other regulatory and nonregulatory use fees, including but not limited to utility right-of-way master permit fees, utility work permit fees, street cut patch fees, and pavement degradation fees, to be charged for the governmental activities undertaken pursuant to this division shall be established and revised in accordance with section 2-1.

A cash deposit, letter of credit or warranty bond may be required in an amount prescribed by the city to guarantee the completion of work in accordance with all rules and regulations.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-343. Process for amending rules and regulations.

Prior to amending the standards and provisions authorized in sections 19-338, 19-339, and 19-340, the key business executive of the department of transportation shall provide written notice of such proposed amendments to all utilities that hold a valid and unexpired utility right-of-way master permit and provide a reasonable opportunity to comment at least 30 days before the effective date of such amendments.
(Ord. No. 3730, § 1, 10-22-2007)

Secs. 19-344, 19-345. Reserved.

DIVISION 3. ENFORCEMENT AND APPEALS

Sec. 19-346. Administration and enforcement.

(a) This article shall be administered and enforced by the director/engineer.

(b) A violation of this article shall not constitute a misdemeanor or infraction punishable under G.S. 14-4. Any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175. Notwithstanding the foregoing, the violation of a stop work order issued pursuant to section 19-338 shall constitute a misdemeanor punishable under G.S. 14-4.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-347. Civil penalties.

The following civil penalties are established:

(1)	Violation of subsection 19-338(b)	$ 100.00
(2)	Violation of subsection 19-338(c)	1,000.00
(3)	Violation of subsection 19-339(b)	100.00
(4)	Violation of subsection 19-339(c)	1,000.00
(5)	Violation of subsection 19-340(b)	100.00
(6)	Violation of subsection 19-340(c)	1,000.00
(7)	Violation of subsection 19-331(a)	100.00

Civil penalties authorized by this section may be assessed against the utility on whose behalf work is being performed and against the contractor or subcontractor who is performing such work.

Billings not paid within 30 days will be assessed a late fee of one percent of the unpaid balance per month.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-348. Administrative enforcement.

(a) *Stop work orders.* A stop work order shall be in writing, state the work to be stopped, state the reasons therefore, and state the conditions under which the work may be resumed. A stop work order may be issued for:

(1) Working in the right-of-way without a valid and unexpired utility right-of-way master permit or unrevoked and unexpired franchise issued by the city as required by section 19-336;

(2) Use of a contractor that has not been registered with the city other than in an emergency;

(3) Violation of subsection 19-338(c);

(4) Violation of subsection 19-340(c);

(5) Failure to comply with subsection 19-338(b) within a reasonable period of time after notification of such non-compliance;

(6) Failure to comply with subsection 19-340(b) within a reasonable period of time after notification of such non-compliance;

(7) Violation of subsection 19-341(b);

(8) Violation of subsection 19-341(c).

(b) *Permit denials.* The city may refuse to issue utility work permits required by this article to a utility that does not possess a valid and unexpired utility right-of-way master permit or unrevoked and unexpired franchise as required by section 19-336 or to a utility that is in violation of the terms and conditions of a utility right-of-way master permit or franchise.

The city may refuse to issue utility work permits required by this article to a utility that has not paid civil penalties within 45 days after the date the penalties were assessed if the company has not appealed the assessment, or within 45 days of a final decision on appeal.

The city may refuse to issue utility work permits required by this article to a utility that has not paid costs assessed pursuant to subsection (c) within 45 days of the assessment.

(c) *Cost of remediation.* In the event that a utility fails to properly repair and restore the right-of-way as required by this article, the city may provide of the repair and restoration and charge the cost to the utility.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-349. Appeals.

(a) Any person whose utility work permit application has been denied or who has been assessed a civil penalty may appeal such decision within ten days after notice of such denial or civil penalty assessment. A utility that has been charged repair and restoration costs pursuant to subsection 19-348(c) may appeal such decision within ten days after the city invoices such charge. Appeals shall be heard by the city manager or the city manager's designee who shall not be an employee of the department of transportation. The appellant shall have the right to present evidence at said hearing.

(b) A ruling on appeal is subject to review in the Superior Court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been sent to the appellant.
(Ord. No. 3730, § 1, 10-22-2007)

Sec. 19-350. Reserved.

ARTICLE XIV. NEWSRACKS*

Sec. 19-351. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Modular newsrack means a newsrack that contains multiple separate enclosed compartments to accommodate at any one time the display and sale or distribution of multiple distinct and separate newspapers, magazines, periodicals or other publications.

Newsrack means a self-service or coin operated box, container, storage unit or other dispenser installed, used or maintained for the display and sale or distribution newspapers, magazines, periodicals or other publications to the public.

Publisher means the person who publishes a newspaper, magazine, periodical or other publication that is displayed and offered for sale or distribution in a newsrack.

Sidewalk means that portion of the street right-of-way which is improved and designated for the use of pedestrians.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-352. Scope of regulation.

This article applies to newsracks located in public street rights-of-way. Newsracks located on private property, or on other governmentally owned or controlled property including, but not limited to, public transit facilities, are not subject to regulation under this article.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-353. Publisher registration.

(a) Prior to placing, or permitting the placement of a newsrack on a sidewalk, the publisher shall register with the city by providing the following information:

(1) Name, mailing address, telephone number, and e-mail address of the publisher and, if the publisher is not located in the city, a designated agent located in the city; and

(2) Name and frequency of publication of the newspapers, magazines, periodicals, or other publications to be sold or distributed from the newsracks.

(b) A publisher shall update registration information required to be provided pursuant to subsection (a) within five days of any change of information.

*__Editor's note—__*Section 2 of Ord. No. 4125, adopted February 23, 2009, states the following: "Sections 19-351, 19-356, and 19-358 shall become effective upon adoption. The remaining sections shall become effective July 1, 2009."

(c) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-354. Maintenance.

(a) Newsracks must at all times be maintained in a neat and clean condition and in good repair.

(b) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-355. Locational restrictions.

(a) No person shall place, install, or maintain, or permit the placement, installation, or maintenance of a newsrack in the public right-of-way:

(1) Other than on a sidewalk;

(2) Within 24 inches of the back of curb or, if there is no curb, within 24 inches of the edge of the street pavement;

(3) At a location that leaves less than 48 inches of clear passage along the sidewalk for pedestrians;

(4) Within 30 feet of the ballast curb line of a railroad or light rail track;

(5) If on the street side of a sidewalk, within ten feet of a sign that demarks a public transportation stop;

(6) Within four feet of a fire hydrant;

(7) On or within four feet of a driveway, crosswalk, or crosswalk extension;

(8) If on the street side of a sidewalk within municipal service districts 1, 2, 3, and 4, within the limits of a loading zone; or

(9) At a location that interferes with or impairs the sightline of drivers at intersections.

Notwithstanding the foregoing, the city may approve locations that do not comply with these restrictions when conditions warrant.

(b) Newsracks shall not be bolted or otherwise fixed to the ground or tied, chained, or otherwise fixed to a tree, traffic control device, sign, bench, bus shelter, parking meter, or pole. Newsracks may be chained or otherwise connected to each other for security purposes.

(c) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-356. Center city modular newsrack zone.

(a) The city manager is authorized to establish a center city modular newsrack zone in which the city will install one or more modular newsracks, and to amend the boundaries of such zone. All portions of the center city modular newsrack zone must be within municipal service district 3.

(b) The director/engineer is authorized and directed to develop regulations for assigning spaces for rent within a modular newsrack when demand for available spaces warrants such assignment. The regulations shall differentiate between paid and unpaid publications and shall:

(1) Be content-neutral;

(2) Allocate spaces through a lottery or similar method;

(3) Include provisions for periodically reallocating spaces; and

(4) Provide that allocated spaces are not transferable.

(c) Other than a modular newsrack owned by the city, no person shall place, install, or maintain, or permit the placement, installation, or maintenance of a newsrack in the public right-of-way within the center city modular newsrack zone.

(d) It shall be unlawful for any person to violate any provision of this section.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-357. Miscellaneous.

(a) The city may order the removal of newsracks located in public street rights-of-way within specified areas of the city for special events or other anticipated mass gatherings when the Charlotte Mecklenburg Police Department determines that the presence of the newsracks would pose an

unreasonable threat to the public health, safety, or welfare. Notice of an order issued pursuant to this subsection shall be given to each affected publisher (or designated agent) at least ten business days before said event or gathering and shall specify the period of time during which the newsracks must be removed. Notwithstanding the preceding sentence, if it is not practical to give notice at least ten business days before said event or gathering, the city shall give such advance notice as is practicable. In the event that a newsrack is not removed in accordance with an order issued pursuant to this subsection, the city may remove and store the newsrack. Upon removal, the city shall notify the publisher that the newsrack has been removed and the location of and procedure for reclaiming the newsrack. In the event that the publisher does not reclaim the newsrack within 45 days of notification of removal, the newsrack will be deemed to have been abandoned and may be disposed of by the city.

(b) A newsrack or an allocated space in a modular newsrack that remains empty for a period of 30 consecutive days shall be deemed abandoned. The city may summarily remove an abandoned newsrack. Upon removal, the city shall notify the publisher that the newsrack has been removed and the location of and procedure for reclaiming the newsrack. In the event that the publisher does not reclaim the newsrack within 45 days of notification of removal, the newsrack may be disposed of by the city. An abandoned space within a modular newsrack may be reallocated to another publisher/publication.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-358. Regulatory and nonregulatory user fees.

The city manager is authorized to establish fees in accordance with section 2-1 for reasonable modular newsrack rental fees, newsrack material removal fees, and newsrack removal and storage fees.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-359. Administration and enforcement.

(a) This article shall be administered and enforced by the director/engineer.

(b) The city may issue a notice of violation to a publisher for any apparent violation of this article. Unless the violation is willful or a repeated violation, if the newsrack is brought into compliance within 15 business days after issuance of the notice of violation, the city shall dismiss the notice of violation and no penalty shall be incurred. In the event that a newsrack is not brought into compliance within 15 business days after a notice of violation has been issued, the city may summarily remove the newsrack. Notwithstanding the preceding sentence, in the event that a newsrack poses an immediate threat to the public health or safety, the city may summarily remove the newsrack without prior notice. Upon removal, the city shall notify the publisher that the newsrack has been removed, the reason for removal, and the location of and procedure for reclaiming the newsrack. In the event that the publisher does not reclaim the newsrack within 45 days of notification of removal, the newsrack will be deemed to have been abandoned and may be disposed of by the city.

(c) A violation of this article shall not constitute a misdemeanor or infraction punishable under G.S. 14-4. Any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175.

(d) Any person who willfully or repeatedly violates this article or fails to remedy a violation within 15 business days after a notice of violation has been issued, shall be subject to a civil penalty of $50.00.
(Ord. No. 4125, § 1, 2-23-2009)

Sec. 19-360. Appeals.

(a) Any person who has been issued a notice of violation, been assessed a civil penalty, or whose newsrack has been removed pursuant to this article may appeal such decision within 30 days after receiving notice of the enforcement decision. Appeals shall be heard by the city manager or the city manager's designee who shall not be an employee of the department of transportation. The appellant shall have the right to present evidence at said hearing.

(b) A ruling on appeal is subject to review in the superior court of Mecklenburg County by proceedings in the nature of certiorari. Any petition for writ of certiorari for review shall be filed with the clerk of superior court within 30 days after notice of the decision has been sent to the appellant.
(Ord. No. 4125, § 1, 2-23-2009)

ARTICLE XV. SHARED-USE MOBILITY SYSTEMS

Sec. 19-361. Purpose.

The purpose of this article is to provide for the proper management of the public rights-of-way to preserve the health, safety, and welfare of the citizens of the city. Specifically, this article is intended to provide for the reasonable regulation of shared-use mobility systems operated in the public rights-of-way. It applies to all modes of dockless, shared transportation vehicles that are operated as part of a commercial enterprise. This article shall not apply to privately owned micromobility vehicles that are not operated as part of a commercial enterprise or shared-use system or scheme. This article also shall not apply to any mode of transport, business model, or device that requires a fixed or dedicated docking station or storefront for the rental or return of units or to any device or vehicle that is used by an individual with a mobility disability recognized by the Americans with Disabilities Act, for the purpose of locomotion.
(Ord. No. 9490, § 2.A, 1-14-2019; Ord. No. 93, § 5(Exh. E), 6-28-2021)

Sec. 19-362. Definitions.

Shared-use mobility system means one or more shared self-service dockless vehicles including bicycles, electric assisted bicycles, electric standup scooters, and/or devices similar in size, weight, and/or operation, offered for short-term rental by a shared-use mobility system operator for use in the public right-of-way by customers without the installation of any infrastructure. This definition shall not include motor vehicles as defined by section 14-1, for-hire vehicles as defined by section 22-101, or the transportation services offered by the Charlotte Area Transit System.

Shared-use mobility system operator means an individual or a public, private, or non-profit entity that manages a shared-use mobility system.
(Ord. No. 9490, § 2.A, 1-14-2019; Ord. No. 93, § 5(Exh. E), 6-28-2021)

Sec. 19-363. Permit required.

(a) It shall be unlawful to operate a shared-use mobility system within any public right-of-way without first obtaining a permit from the director. The permit shall, among other things:

(1) Specify the term of the permit;

(2) Acknowledge the city's right to require the removal or relocation of any device operating under the permit;

(3) Provide for the defense and indemnification of the city, its officers, and employees for claims and suits arising out of the use of the right-of-way;

(4) Require suitable levels of insurance coverage;

(5) State the rights, if any, to assign or transfer rights or obligations without the prior consent of the city; and

(6) Acknowledge the city's full retention of its police power.
(Ord. No. 9490, § 2.A, 1-14-2019)

Sec. 19-364. Administration and enforcement.

(a) This article shall be administered and enforced by the director.

(b) The director shall be authorized to:

(1) Issue permits;

(2) Develop and revise permit requirements and guidelines;

(3) Establish and amend the maximum and/or minimum allowable number of vehicles authorized under the permit;

(4) Establish and revise permit fees;

(5) Establish and revise regulatory fees in accordance with section 2-1.

(6) Revoke permits for good cause. Good cause shall, among other things, include:

a. Permittee failed to pay a fee and/or civil penalty within 30 days following notice of nonpayment;

b. Permittee violated any statute or ordinance governing operation of the devices covered under the permit; or

c. Permittee violated one or more conditions of the permit.

(c) The director, her designee, or any authorized employee of the city may impound any vehicle found in violation of this article and charge a civil penalty. The director or her designee is authorized to dispose of an impounded vehicle subject to this article if civil penalties are not paid within 90 days of issuance.
(Ord. No. 9490, § 2.A, 1-14-2019)

Sec. 19-365. Civil penalties.

(a) A violation of this article shall not constitute a misdemeanor or infraction punishable under G.S. 14-4. Any person who violates this article may be subject to all civil and equitable remedies stated in G.S. 160A-175.

(b) A violation of this article may be enforced by the issuance of a civil penalty in the amount of $25.00 per vehicle.

(c) An additional late fee civil penalty in the amount of $25.00 per vehicle may be assessed if the initial civil penalty is not paid or appealed within 30 days from the date of issuance.

(d) Civil penalties shall be issued against the permitee, permit holder, and/or business with ownership of the subject vehicles.
(Ord. No. 9490, § 2.A, 1-14-2019)

Sec. 19-366. Appeals.

A violation enforced through the issuance of a civil penalty may be appealed pursuant to section 2-25 of this Code.
(Ord. No. 9490, § 2.A, 1-14-2019)

Chapter 20

RESERVED*

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Chapter 20, and replaced it with the Unified Development Ordinance in Chapter 24 of the City Code. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former ch. 20 pertained to subdivisions and was derived from Ordinance No. 91, adopted June 21, 2021.

Chapter 21

TREES*

*__Editor's note—__Ordinance No. 92 was adopted by the Charlotte City Council on June 21, 2021. This amendment to the Trees Ordinance incorporates the new North Carolina legislation related to Chapter 160D required by the North Carolina General Statutes. To view Chapter 21, Tree Ordinance regulations, visit: https://www.charlottenc.gov/files/sharedassets/city/growth-and-development/getting-started/documents/tree_ordinance20210621.pdf.

Editor's note—Ordinance No. 375 was adopted by the Charlotte City Council on August 22, 2022, with Articles I, II. III, IV, and V of Chapter 21 effective on June 1, 2023. The remaining Articles were effective August 22, 2022. This text amendment deleted the development-related tree regulations, including definitions and regulatory applicability. The development-related tree regulations became part of the Unified Development Ordinance text amendment adopted on August 22, 2023, in Ordinance No. 374, with an effective date of June 1, 2023, and located in Chapter 24 of the City Code. The regulations remaining in the Tree Ordinance were updated by Ordinance 542. To view Chapter 21, Tree Ordinance regulations, visit: https://www.charlottenc.gov/Growth-and-Development/Getting-Started-on-Your-Project/Tree-Ordinance.

Editor's note—Ordinance No. 542 was adopted by the Charlotte City Council on May 15, 2023, with an effective date of June 1, 2023. This text amendment made minor text amendment modifications to the text amendment adopted in Ordinance No. 375. To view Chapter 21, Tree Ordinance regulations, visit: https://www.charlottenc.gov/Growth-and-Development/Getting-Started-on-Your-Project/Tree-Ordinance.

Chapter 22

VEHICLES FOR HIRE*

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Secs. 22-177—22-199. Reserved.

***Cross references—**Businesses and trades, ch. 6; licenses, ch. 13; motor vehicles and traffic, ch. 14; streets, sidewalks and other public places, ch. 19.

State law reference—Authority to regulate taxis and other vehicles for hire, G.S. 160A-304.

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Article I. IN GENERAL

Secs. 22-1—22-99. Reserved.

ARTICLE II. PASSENGER VEHICLES FOR HIRE*

DIVISION 1. PURPOSE, DEFINITIONS

Sec. 22-100. Purpose.

The purpose of this article is to regulate for-hire vehicles in order to preserve the health, safety, and welfare of the people in this city and the protection of their property. It shall be unlawful for any person to violate any of the sections of this article.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-101. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Words used in the singular number include the plural number and the plural number includes the singular number, unless the context of the particular usage clearly indicates otherwise.

(a) *Accessible vehicle* means a for-hire vehicle which: (i) is capable of transporting passengers with disabilities or physical impairments; (ii) through the use of a wheelchair boarding ramp, lift, and/or gate; (iii) at the side or rear of the vehicle; and (iv) is operated by a driver. An accessible vehicle shall not include any transportation services to passengers with disabilities or physical impairments being offered: (i) by any governmental agency as a public purpose; or (ii) by medical facilities exclusively to the patients of the medical facility. One accessible vehicle shall be equal to five metered vehicles.

(b) *Affiliation* means an employer-employee relationship or the contractual or permissive arrangement for the provision of for-hire service. An affiliation is presumed when a for-hire driver or for-hire vehicle owner uses a for-hire company's logo or insignia. This term may also be referred to as affiliated.

(c) *Agency vehicle* means a for-hire vehicle providing service pursuant to a written agreement with a governmental agency located within the city.

(d) *Article* means the passenger vehicle for-hire ordinance as amended by the Charlotte City Council.

(e) *Business enterprise* means a sole proprietorship, corporation, professional corporation, nonprofit corporation, limited liability company, limited partnership, limited liability partnership, or any other partnership whether or not formed under the laws of the State of North Carolina. All foreign business enterprises must be licensed by the Secretary of State of North Carolina to do business in North Carolina.

(f) *CDOT* means the city's department of transportation as defined in chapter 14 of the City Code.

(g) *City* means the Charlotte City Council, the City of Charlotte, and everything within its corporate limits.

(h) *Civil penalties* mean only those penalties levied under this article.

(i) *Company operating certificate* means the valid license issued pursuant to this article which has authorized a business enterprise to provide for-hire service.

*__Editor's note—__Ord. No. 9019, § 1, adopted Jan. 23, 2017, repealed the former Art. II, and enacted a new Art. II as set out herein. The former Art. II pertained to similar subject matter and derived from Ord. No. 4701, § 1(Exh. A), adopted Aug. 25, 2011; Ord. No. 4790, §§ 1 (Exh. A), 2(Exh. B), adopted Nov. 28, 2011; Ord. No. 4889, § 1, adopted May 14, 2012; Ord. No. 7056-X, § 4, adopted Feb. 22, 2016, effective April 1, 2016; Ord. No. 8065, § 1, adopted June 27, 2016; Ord. No. 8194, § 4, adopted Dec. 19, 2016; and Ord. No. 8195, §§ 1, 2, adopted Dec. 21, 2016.

(j) *Driver's permit* means the valid license issued pursuant to this article to any person which authorizes that person to provide for-hire service in a vehicle.

(k) *For-hire* means a transaction whereby any money, thing of value, charge tickets, surcharge, payment, pecuniary consideration or compensation, reward, donation, remuneration or profit is paid to, accepted by, or received by a person in exchange for the temporary use by or for the transportation of a person as a passenger, whether such is paid voluntarily or upon solicitation, demand, request, contract, agreement, or as a surcharge.

(l) *For-hire company* means a business enterprise who provides or has provided for-hire services in the city.

(m) *For-hire driver* means a person who operates, is operating, or has operated a for-hire vehicle while providing for-hire service in the city.

(n) *For-hire service* means any person that engages in a for-hire act and offers to transport any person from a point of origin within the city to any specific destination within the United States. For-hire services shall not include the transportation services offered by the Charlotte Area Transit System.

(o) *For-hire vehicle* means: (i) any vehicle licensed by and registered with the North Carolina Division of Motor Vehicles or equivalent South Carolina state agency; and (ii) any vehicle providing for-hire services. For purposes of this article, for-hire vehicles shall not include: (i) vehicles owned and/or operated by the Charlotte Area Transit System; or (ii) any for-hire vehicle permitted by the State of North Carolina or the United States of America.

(p) *For-hire vehicle owner* means any person whose name appears on the state-issued title of the for-hire vehicle.

(q) *Habitual criminal activity* means a person who has three or more convictions of a Class 2 misdemeanor or higher.

(r) *Habitual user of alcoholic beverages or drugs* means a person who has two or more of the following within a three-year period: (i) alcohol or drug related misdemeanors; or (ii) alcohol or drug-related violations of state law or city ordinance.

(s) *Habitual violator of traffic laws* means the accrual on a Person's driving record or driver's license of either: (i) eight points or more within a three-year period after a reinstatement of suspension; or (ii) six convictions of any type of traffic or moving offense.

(t) *Illegal third party* means a person: (i) that has not been issued a company operating certificate, vehicle operating permit, and/or driver's permit, and (ii) provides for-hire service within the city.

(u) *Licensee* means the person and/or the support provider issued a company operating certificate, vehicle operating permit, and/or driver's permit pursuant to this article.

(v) *Manifest* means a daily record that: (i) is in electronic or paper form (ii) is prepared by the for-hire driver or for-hire company representative; (iii) shows all trips made by the for-hire vehicle; (iv) shows the time and place where each trip originated; (v) the destination of each trip; (vi) the fare amount for each trip; and (vii) the number of passengers.

(w) *Metered vehicle* means a vehicle that: (i) is equipped with a meter; and (ii) calculates the for-hire service using the meter.

(x) *Nonmetered vehicle* means a vehicle that: (i) is not equipped with a meter; and (ii) calculates the for-hire service pursuant to a prearrangement.

(y) *On-demand* means for-hire service made indiscriminately and instantaneously by a metered vehicle on or along a roadway.

On-demand shall include, but shall not be limited to: (i) the hailing of a metered vehicle; (ii) any other oral request for a metered vehicle; (iii) the movement of a metered vehicle in search of or for the purpose of attracting passengers. No vehicle, other than a metered vehicle, shall be operated on-demand.

(z) *Operate, operating,* or *operated* means a person that is either: (i) sitting in the driver's seat of a for-hire vehicle regardless of whether the for-hire vehicle is stationary or moving; or (ii) has access to the interior of a for-hire vehicle; or (iii) the for-hire vehicle's owner; or (iv) has control over the for-hire vehicle. Personal or off-duty use of a for-hire vehicle must comply with section 22-161.

(aa) *Passenger vehicle for-hire board* means a board charged with carrying out the duties set forth in division 6 of this article. This term shall also be referred to as the PVH board.

(bb) *Person* means any individual, firm, partnership, association, corporation, governmental agency, business enterprise, or combination thereof of whatsoever form or character.

(cc) *Prearrangement* means a written or electronic agreement: (i) setting forth a fixed fee; (ii) to provide for-hire service; and (iii) prior to the trip's commencement. Prearrangement shall not include any activities constituting on-demand.

(dd) *Passenger vehicle for-hire decal* means an issued, nontransferable, numbered insignia providing exterior identification that a particular for-hire vehicle has a vehicle operating permit. This term shall also be referred to as the PVH decal.

(ee) *Passenger vehicle for-hire manager* means the city employee, agent, or contractor responsible for the enforcement and administration of the article. Any reference to PVH manager shall include any city employees, agents, or contractors designated by the PVH manager to assist in the enforcement and administration of this article. This term shall also be referred to as the PVH manager.

(ff) *Rate sheet* means the information displayed upon and within a metered vehicle that shall describe the schedule of fares and fees adopted by the PVH board.

(gg) *Special services permit* means a license issued by the PVH manager to a company operating certificate licensee that allows the company operating certificate licensee to provide an infrequent and unusual for-hire service different from the for-hire services described in this article. This infrequent and unusual for-hire service could require the pooling of unpermitted vehicles to service the needs created by one-time citywide tourism events, fixed for-hire service routes, geographically or time-of-day/limited service, or any other innovative for-hire services.

(hh) *Roadway* means any road, street, alley, avenue, highway, or any other public vehicular area within the city as they may exist or may be extended.

(ii) *Support provider* means the person that satisfies, or guarantees to satisfy, the requirements of sections 22-125(b) and 22-125(c)(4).

(jj) *Unique vehicle* means a for-hire vehicle that shall be, but limited to, either of the following: (i) registered as an antique vehicle with the North Carolina Division of Motor Vehicles; (ii) manufactured at least 35 years prior to its use as a for-hire vehicle; (iii) manufactured in a limited or small quantity; (iv) limousines that are stretched or have a lengthened wheelbase; (v) determined by the PVH manager based upon the vehicle's historical and sentimental value; or (vi) such other vehicle as determined by the PVH manager to be unique, vintage, or classic in nature.

(kk) *Vehicle* means every motorized device in, upon, or by which any person or property is or may be transported or drawn upon a roadway. This term shall not include electric personal assistive mobility devices as defined in G.S. 20-4.01(7a), mopeds, golf carts, motorized devices moved by human power, or motorized devices used exclusively upon fixed rails or tracks. A vehicle shall not include motor vehicles or motor vehicle carriers as defined in G.S. 62-259—62-279 or hotel courtesy vehicles that provide transportation services solely to patrons of the hotel.

(ll) *Vehicle operating permit* means: (i) any vehicle with a valid license issued pursuant to this article; (ii) any vehicle operated by a for-hire driver; (iii) any vehicle providing for-hire services by a person; and (iv) any vehicle registered with the North Carolina Division of Motor vehicles or equivalent South Carolina state agency.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Secs. 22-102—22-124. Reserved.

DIVISION 2. REQUIREMENTS FOR NEW APPLICATIONS/RENEWALS/REINSTATEMENTS

Sec. 22-125. Application requirements.

(a) All applications for a company operating certificate, vehicle operating permit, and/or driver's permit are to be submitted on forms provided by the PVH manager. Each application shall contain the following information:

(1) Be at least 18 years of age;

(2) For the last ten years, a person must disclose all addresses that the person has ever used or resided at.

(3) Each person must disclose all legal names that the person has ever used or any and all names the person has ever gone by.

(4) Reliable documentation evidencing the person's eligibility to be a licensee. Reliable documentation shall include, when necessary, a valid resident alien registration card, U.S. passport, certificate of naturalization or any other documents allowed under part 274(a)(2) of the Immigration and Naturalization Service Rules of the Immigration Reform and Control Act of 1986.

(5) If the application is being submitted by a business enterprise, then the business enterprise must submit a certified copy of its articles, bylaws, or operating agreement.

(6) If the person has been charged with any criminal offense or infraction, then the person must produce all criminal records and evidence of the court's judgment. If the application is being submitted by a business enterprise, then all criminal records of the officers, directors, and supervising employees, including the general manager, if any, shall be provided.

(7) At least once every three years, each person shall provide the person's fingerprints to the PVH manager for submission to state and national criminal databases for the person's criminal record. This information shall be kept privileged and confidential and shall not be a public record under G.S. ch. 132. The receipt of the person's criminal history by the PVH manager shall be used solely to determine eligibility for a company operating certificate, driver's permit, and/or vehicle operating permit.

(8) Evidence that for-hire service will be provided by the person and will not be provided by a different person; provided, however, the person may engage a support provider if the potential engagement is disclosed when the application is submitted for approval by the PVH manager.

(9) Any and all affiliations.

(b) Applications for a company operating certificate shall include these application requirements in addition to section 22-125(a):

(1) Certification that the person has the ability to provide for-hire service 24 hours a day, seven days a week throughout the city.

(2) Certification that the person has the ability to provide adequate supervision of for-hire drivers operating under the company operating certificate.

(3) Certification that a for-hire driver training program will have the following components:

(a) Instruction on city roadways and local landmarks;

(b) The requirements of a licensee under this article;

(4) Certification of a ten-panel drug testing program that will be administered to any for-hire driver. Thereafter, the drug testing program shall be administered at least once every three years to each for-hire driver.

(5) Provide evidence demonstrating that the person has met at least one of the for-hire vehicle requirements set forth below:

(a) Twenty-five metered vehicles.

(b) One nonmetered vehicle.

(c) One agency vehicle.

(6) A lawfully zoned depot or terminal on private property, if any.

(7) The uniform color scheme and logos painted or to be painted on the metered vehicle. This provision applies solely to company operating certificate involving a metered vehicle. This item is not subject to appeal.

(8) The for-hire company's name, for-hire vehicle number, and logo to be affixed with permanent paint or permanent decals on both sides and the rear of each metered vehicle. The placement of a valid telephone number on a for-hire vehicle shall be optional. Lettering on the for-hire vehicle shall be at least three by three inches in height and width.

(9) The for-hire company's name shall be affixed to the nonmetered vehicle's front license plate. PVH decals shall be affixed on windows at the for-hire vehicle's passenger entry doors. The placement of a valid telephone number on a for-hire vehicle shall be optional. Lettering on the for-hire vehicle shall be at least three by three inches in height and width.

(c) Applications for a company operating certificate and/or vehicle operating permit shall include these application requirements in addition to section 22-125(a):

(1) The number of each vehicle that is or will be a for-hire vehicle.

(2) The make, type, license plate number, and passenger capacity of each vehicle that is or will be a for-hire vehicle.

(3) An appropriate license plate issued by the North Carolina Division of Motor Vehicles or equivalent South Carolina state agency to be placed on the for-hire vehicle.

(4) Proof of financial responsibility as defined in G.S. 20-280.

(a) Each vehicle must be insured as a condition precedent to the operation of any for-hire vehicle on the roadways.

(b) Any proof of financial responsibility must name and/or describe every for-hire vehicle covered under its terms.

(c) The business enterprise issuing the proof of financial responsibility shall provide written notice to the PVH manager not less than 14 days prior to the cancellation, reduction in coverage, or other material change in the proof of financial responsibility.

(d) If a licensee receives a notice cancelling the proof of financial responsibility, then the PVH manager shall be notified by the licensee within one business day of receipt of the notice.

(e) Any proof of financial responsibility shall be conditioned upon the payment of any final judgment, within limits of the insurance policy, recovered by any person as a result

of the negligent operation of any for-hire vehicle under this article, regardless of the person operating the for-hire vehicle at the time of the injury or damage. Such insurance shall contain a provision for the continuing liability under the insurance to the full amount of the policy, notwithstanding any recovery thereon.

(f) If the for-hire vehicle is owned by a person who operates under the vehicle operating permit of another vehicle operating permit licensee, the other vehicle operating permit licensee shall be named as an additional insured in the policy covering the vehicle.

(5) Certification by each person that the for-hire vehicle shall be kept clean, in good mechanical condition, and in good physical condition

(6) The type of for-hire service authorized to provide.

(d) Applications for a driver's permit shall include these application requirements in addition to section 22-125(a):

(1) The person's medical, mental, and/or physical condition. The PVH manager shall have the authority to request a medical certification by a licensed practitioner regarding a person's ability to drive a for-hire vehicle.

(2) The person's physical description, including age, race, height, weight, eye color, and hair color.

(3) A valid North Carolina or South Carolina driver's license issued to the person or issued within seven days of the date of application.

(4) Permission from the company operating certificate licensee and the vehicle operating permit licensee to operate a for-hire vehicle for the company operating certificate licensee and/or vehicle operating permit licensee.

(5) A for-hire driver is exempt from the requirements of this article if the for-hire driver: (i) exclusively operates a for-hire vehicle permitted by the State of North Carolina or the United States of America; and (ii) ceases operating all for-hire vehicles covered by this article.

(e) Applications for a special service permit shall include these application requirements in addition to section 22-125(a) shall:

(1) Describe the special service or its nature in detail.

(2) Provide an explanation of why the proposed special service is necessary.

(3) Provide the proposed number of for-hire vehicles needed for the special service.

(4) Provide an explanation of why the existing number of for-hire vehicles by type is inadequate.

(5) Provide the number of for-hire vehicles presently operated by the company operating certificate licensee on the date of the application.

(f) An application for a company operating certificate, vehicle operating permit, and/or driver's permit may be submitted concurrently by the same person for review by the PVH manager.

(g) The person shall swear under penalty of perjury that the information submitted in the application is neither false nor misleading. Submitting, or causing to be submitted, false or misleading information is unlawful and shall be grounds for denial of an application.

(h) No application shall be accepted by the PVH manager if a person has a criminal summons or a criminal charge pending against the person at the time of application. For purposes of this subsection, pending criminal charges shall not include traffic infractions.

(i) No application for a company operating certificate, vehicle operating permit, driver's permit, or special service permit shall be approved until the application meets all requirements under this article.

(j) No application for a special service permit shall be accepted until after a company operating certificate has been issued to a person.
(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Sec. 22-126. Issuance.

(a) The city authorizes the PVH manager to issue a company operating certificate, vehicle operating permit, driver's permit, and/or special services permit to any person; provided, however, any issuance shall: (i) be subject to such conditions as the city may deem advisable or necessary in the public interest; (ii) comply with this article before the commencement of the for-hire service; and (iii) occur after payment of a regulatory fee provided by section 22-228.

(b) A separate company operating certificate, vehicle operating permit, and/or driver's permit shall be required for each type of for-hire service offered or to be offered by the person.

(c) Any driver's permit issued to a person shall show the following:

(1) The photograph and name of the driver's permit licensee;

(2) The issue date and expiration date; and

(3) Any affiliation.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-127. Expiration.

(a) All company operating certificates, vehicle operating permits, and driver's permits shall expire on a yearly basis on a date determined by the PVH manager.

(b) All special service permits shall be valid for at least seven days after issuance and shall expire on a date determined by the PVH manager but no later than one year after issuance.
(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Sec. 22-128. Renewal.

The PVH manager may renew a company operating certificate, vehicle operating permit, and driver's permit from year-to-year by appropriate endorsement thereon. Any application shall comply with the requirements of section 22-125.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-129. Transferability.

(a) The privilege of engaging in for-hire service in the city through a company operating certificate, vehicle operating permit, and/or driver's permit is personal to the specific licensee. The rights, requirements, and responsibilities which attach to the company operating certificate, vehicle operating permit, and/or driver's permit remain with its licensee at all times that for-hire service is being provided in the city.

(b) These rights, requirements and responsibilities which include, but are not limited to, the requirements of this article will remain unaffected by any agreement or contractual arrangement between licensees or any licensee and an illegal third party, regardless of the form or characterization of the agreement.

(c) Each company operating certificate, vehicle operating permit, and driver's permit shall not be transferable by the licensee without prior approval of the PVH manager. The PVH manager shall not approve any transfer that would not comply with section 22-125 or any restrictions placed by the city.

(d) No transfer shall be approved by the PVH manager if the company operating certificate licensee is a business enterprise and the company operating certificate licensee transfers a majority of its ownership interest in the business enterprise.
(Ord. No. 9019, § 1, 1-23-2017)

Secs. 22-130—22-149. Reserved.

DIVISION 3. OPERATIONS

Sec. 22-150. Required.

No person shall provide any for-hire service in the city without a valid company operating certificate, vehicle operating permit, and/or driver's permit.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-151. Types of service.

A company operating certificate licensee is authorized to provide the following types of service:

(a) *Metered vehicle.* A metered vehicle may provide the following types of service:

(1) *Exclusive ride.* For-hire service involving the transportation of a single party by a metered vehicle from a single origin to a single destination for compensation.

(2) *Group ride.* For-hire service involving the transportation of several passengers by a metered vehicle from a single origin to a single destination.

(3) *Shared ride.* For-hire service involving the transportation of several passengers by a metered vehicle from one or more points-of-origin to one or more destinations.

(b) *Nonmetered vehicle.* For-hire service offered pursuant to a prearrangement. No nonmetered vehicle shall operate or allowed to operate on-demand.

(c) *Agency vehicle.* For-hire service offered pursuant to a written agreement between the company operating certificate licensee and the governmental agency. No agency vehicle shall operate or allowed to operate on-demand.

(d) *Special service.*

(1) Any exemption to this article shall be noted on the special service permit.

(2) A special service permit licensee shall agree to be jointly and severally responsible for the conduct and actions of each person on the special service permit and shall ensure compliance with this article.

(3) Nothing contained in this section shall relieve the special service permit licensee from the requirements of chapter 4.

(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-152. Display of driver's permit, vehicle operating permit, and PVH decal.

(a) The for-hire driver shall place a copy of the driver's permit in the following location:

(1) In a metered vehicle, a copy of the driver's permit shall be displayed conspicuously at all times in the card frame attached to the back of the driver's seat or headrest area of the for-hire vehicle.

(2) In a nonmetered vehicle or an agency vehicle, a copy of the driver's permit shall be either clearly visible to a passenger seated in the rear seat of the for-hire vehicle or kept on the for-hire driver.

(b) The for-hire vehicle owner shall place a copy of the vehicle operating permit in a conspicuous location on the for-hire vehicle's dashboard.

(c) The for-hire vehicle owner shall place a copy of the latest state safety inspection in the for-hire vehicle's glove box.

(d) A PVH Decal shall be affixed as follows: (i) inside of the for-hire vehicle; (ii) on the front windshield; (iii) on the passenger's side; (iv) in the lower right corner; and (v) in plain view for any person outside the for-hire vehicle to see.

(e) No PVH decal shall be affixed to a for-hire vehicle until the requirement of section 22-152(b) above is met. No for-hire vehicle shall be operated without a PVH decal affixed thereto and issued pursuant to this article.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-153. Rates and charges, prearrangement, extra charges, amount of cash.

(a) The PVH board shall establish the rates, charges, and fare zones for metered vehicles pursuant to the procedures set forth in section 22-235(f)(3).

(b) Rates and charges for an agency vehicle will be established by the governmental agency contracting for for-hire service with the company operating certificate licensee.

(c) Rates and charges for a nonmetered vehicle will be established in one-hour increments with a minimum one-hour period without regard to whether the trip requires less than one hour or not. Each company operating certificate licensee shall file all rates and charges for its nonmetered vehicles with the PVH manager. The company operating certificate licensee shall have uniform rates. All rates and charges must be filed annually with the application for a company operating certificate. Rates and charges may be modified once after the filing of the application for a company operating certificate if a company operating certificate licensee petitions for a modification to its rates and charges. All rates and charges shall become effective at least 15 days after the rates and charges has been filed with the PVH manager.

(d) Prearrangement shall be demonstrated by showing a copy of a written or electronic reservation for for-hire service from a specific location, at a specific date and time, for travel to any specific destination. All persons must be able to present written or electronic proof of a reservation.

(e) No extra charge shall be made for the transportation of a person with a disability or for handling of manual wheelchairs, walkers, or other equipment reasonably necessary for the mobility of a person with a disability.

(f) No extra charge for excess baggage may be assessed unless authorized by the PVH board or filed with the rates and charges for nonmetered vehicles by a company operating certificate licensee. However, a reasonable charge may be assessed for excess baggage for any of the following:

(1) Three or more bags or parcels per person that are not ordinarily construed to be hand baggage.

(2) Large trunks accompanying a person that is not ordinarily construed to be hand baggage.

(3) Other bulky items that are not ordinarily construed to be hand baggage.

(g) A for-hire driver shall have a reasonable amount of cash in order to conduct business.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-154. Posting requirements.

(a) For metered vehicles, the rate sheet:

(1) Shall be conspicuously displayed inside the for-hire vehicle's passenger compartment on the back of the driver's seat or headrest area. The rate sheet also shall be conspicuously displayed outside of the for-hire vehicle.

(2) Shall be in a type written notice, impressed upon a contrasting background, in at least 18-point type.

(3) Must have language that complaints may be filed with the PVH manager and shall include the mailing address and telephone number of the PVH manager's office.

(4) Must display the rates and charges established by the PVH board.

(b) Nonmetered vehicles shall post within the nonmetered vehicle's passenger compartment a conspicuous notice stating that complaints may be filed with the PVH manager and shall include the telephone number for the PVH manager's office. In addition, nonmetered vehicles must include a provision in any written contract for prearrangement that complaints may be filed with the PVH manager and shall include the mailing address and telephone number of the PVH manager's office.

(c) A sign or notice containing the vehicle number, if any.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-155. Occupants.

(a) Anytime a for-hire vehicle is occupied by a passenger, then the for-hire vehicle shall not be occupied by any other person except the for-hire driver and any person accompanying the passenger.

(b) If the initial passenger consents to the metered vehicle offering a shared ride, then the additional passengers may be picked up prior to arriving at the destination of the initial pas-

senger; provided, however, the initial passenger consents to the amount of additional trip time required for the shared-ride as estimated in advance of commencing the shared-ride. A shared-ride shall not be offered to any person under 18 years of age and unaccompanied by a person 18 years of age or older unless the for-hire driver has permission prior to commencing the shared-ride from a person 18 years of age.

(c) This section shall not apply during authorized driver training.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-156. Passenger pays lawful fares; receipt furnished upon request.

(a) It shall be unlawful for any person providing for-hire service in the city to charge any rate that exceeds the rates filed with the PVH manager or set by the PVH board. However, this subsection is not intended to prohibit a passenger from giving a gratuity to the driver's permit licensee.

(b) No person shall use any for-hire service and willfully refuse to pay the fare prescribed therefore by law.

(c) When requested by a passenger, the for-hire driver shall provide an accurate and legible receipt to the passenger showing the vehicle operating permit number, name of the company operating certificate licensee, number on the driver's permit, the date, and the amount of fare paid. Refusal on the part of the for-hire driver to deliver such receipt upon request shall constitute a defense on behalf of a passenger charged with violating subsection (b).
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-157. Return of passenger's property.

(a) Upon finding property left by a passenger in a for-hire vehicle, the for-hire driver shall immediately notify, if possible, the passenger and return the property. If the for-hire driver cannot notify the passenger, then for-hire driver shall promptly deliver the property to the for-hire company.

(b) Upon delivery of the property to the for-hire company, the for-hire driver shall provide the for-hire company with any information available in regard to the property. The for-hire company shall record that information, including the time, date, name of for-hire driver, and for-hire vehicle number then attach such information to the property. The for-hire company shall hold the property in a secure place for three months.

(c) If requested by the for-hire driver who discovered the property, any unclaimed property in the possession of the for-hire company shall be returned to that for-hire driver within a time specified by the for-hire company which shall not exceed 30 days following the required holding period.

(d) No person shall withhold property pending payment.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-158. Conduct.

(a) No for-hire company, for-hire vehicle owner, and/or for-hire driver shall:

(1) Deceive or attempt to deceive any passenger who uses for-hire service in any manner, especially as to the destination or the rate of fare to be charged.

(2) Transport, or cause to be transported, any passenger to any place other than as directed by the passenger.

(3) Direct, encourage, or allow any for-hire driver to take a longer route than reasonably necessary to the requested destination; provided, however, the for-hire driver is so requested by the passenger or for shared-ride service provided for in section 22-151(a)(3).

(4) Refuse or neglect to transport any person requesting for-hire service on the basis of the time of day of the request or on the basis of the geographical area of the city to be served.

(5) Refuse or neglect to transport any person on the basis of a protected class as that term is defined in chapter 12 of this Code.

(6) Refuse or neglect to transport any person on the basis of disability when such for-hire service can be provided to a person with a disability with reasonable accommodation.

(7) Knowingly use, sell, handle, or transport illegal or controlled substances at any time while operating a for-hire vehicle. In addition, no for-hire driver shall give any information to any passenger as to where or how illegal or controlled substances may be obtained.

(8) Maintain, use, or possess a scanner or device capable of intercepting telephonic communications while operating a for-hire vehicle.

(9) Knowingly solicit, procure, or give information in regard to or transport any passenger to any person for the purpose of prostitution.

(10) Operate or allow a for-hire vehicle to be operated in a manner which threatens, endangers, or abuses a passenger or the general public.

(11) Fail or refuse to surrender the company operating certificate, vehicle operating permit, PVH decal, and/or driver's permit following a decision by the PVH manager.

(12) Provide prompt, efficient service and shall be courteous at all times to another person, to the PVH manager, and to any officer of the Charlotte-Mecklenburg Police Department.

(13) Fail to notify the PVH manager in writing of any change to the address or telephone number at least two business days before the effective date of the change.

(14) Not operate any for-hire vehicle for any person except the company operating certificate licensee shown on the driver's permit. Upon termination of the affiliation between the driver's permit licensee and the company operating certificate licensee, the driver's permit licensee shall surrender the driver's permit to the PVH manager within two business days.

(15) Not provide or allow to provide for-hire service while the company operating certificate, vehicle operating permit, PVH decal, and/or driver's permit has been suspended.

(b) A for-hire company and for-hire vehicle owner shall:

(1) Be responsible for affiliated for-hire driver complying with this article.

(2) Not allow any for-hire driver to operate a for-hire vehicle while consuming, while under the influence of, or while having the odor of an alcoholic beverage or controlled substance on or about the for-hire driver.

(3) Not provide or allow to provide for-hire service while the company operating certificate and vehicle operating permit has been suspended or revoked.

(4) Keep copies of the vehicle operating certificate in the for-hire vehicle at all times.

(5) Not utilize, whether knowingly or unknowingly, an illegal third party.

(c) A for-hire driver shall:

(1) Comply with all reasonable and lawful requests of the passenger as to the speed of travel and the route to be taken.

(2) Not allow the seating capacity of the for-hire vehicle to exceed the manufacturer's specifications.

(3) Make visual contact with an orderly person and form a belief that is reasonable under the circumstances that transporting such person might be unsafe for the for-hire driver, prior to the for-hire driver refusing or neglecting to transport the person requesting for-hire service.

(4) Display an "off-duty" placard prior to the for-hire driver refusing or neglecting to transport a person requesting for-hire service. Nothing contained in this subsection shall authorize a for-hire driver to refuse or neglect to transport any person as a pretext to the driver's noncompliance with section 22-158(a)(4), section 22-158(a)(5), and/or section 22-158(a)(6).

(5) Not operate a vehicle while consuming, while under the influence of, or while having the odor of an alcoholic beverage or controlled substance on or about the for-hire driver.

(6) Notify the PVH manager of a criminal offense or infraction: within two business days of being charged; or within two business days upon release from confinement. Driver's permit license must produce evidence of the disposition of the criminal case as soon as it is available.

(7) Specify any fare discounts authorized by the PVH board to metered vehicle passengers participating in a shared-ride.

(8) Advise of the probable time of delay, if for-hire service is not expected to be available within 15 minutes of the request or prearrangement.

(9) Not provide for-hire service continuously for more than 16 hours, meal time included, during any 24 hour period. Each for-hire driver shall enter the time commencing active duty and ending active duty in the daily manifest.

(10) Not solicit passengers (i) by any word, sign, signal (audible or otherwise) or gesture; (ii) to annoy any person, or (iii) while obstructing the movement of traffic or any person. However, for the duration that a metered vehicle is located in a metered vehicle stand, the for-hire driver may solicit passengers by word, sign, signal (audible or otherwise) or gesture. In such circumstances, the for-hire driver may solicit passengers from inside the for-hire vehicle or outside of the for-hire vehicle but within ten feet of the vehicle.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019; Ord. No. 115, § 5, 8-9-2021)

Sec. 22-159. Metered vehicle stands.

(a) The PVH manager and CDOT shall jointly establish and designate metered vehicle stands.

(b) Metered vehicles shall enter designated metered vehicle stands from the rear only, and each metered vehicle therein must be heading in the direction of the exit. No metered vehicle shall stop at a metered vehicle stand unless there is a vacancy therein. Unless a passenger requests otherwise, metered vehicles shall exit metered vehicle stands in the order in which they enter. A for-hire driver shall remain in the metered vehicles or within the metered vehicle stand so that normal operations of the metered vehicle stand are maintained. A for-hire driver may leave the metered vehicle stand only in an emergency or to assist passengers.

(c) No vehicle, except a metered vehicle, shall use metered vehicle stands in the city.

(d) A list of all metered vehicle stands in the city shall be kept on file with the PVH manager's office and shall be open to inspection by the public.

(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-160. Compliance with state law and ordinances; safety; parking.

(a) Every for-hire vehicle shall be operated in accordance with the laws of this state and the sections of this article and city ordinances and with due regard: for the safety, comfort and convenience of passengers; for the safe and careful transportation of property; and for the safety of the general public. Nothing in this subsection shall prohibit a for-hire driver from alighting to the sidewalk for the purpose of assisting passengers into or out of the for-hire vehicle.

(b) A for-hire vehicle shall not be operated at a rate of speed inconsistent with existing traffic regulations, road conditions, hazards at intersec-

tions and any other conditions then existing or in such manner or condition to endanger or to likely endanger the safety of passengers, pedestrians, or the person and property of others.

(c) No for-hire vehicle shall be permitted to park in a metered space as determined by CDOT. For purposes of this section, metered spaces include any spaces for which payment is required through either a parking meter or a parking pay station operated by the city. This subsection does

not restrict a for-hire vehicle from parking in a parking space that does not require payment to the city through meters or parking pay stations. This subsection does not apply if a for-hire driver complies with section 22-161 and remains a minimum of 20 feet from the parking space occupied by the for-hire vehicle.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-161. Off-duty placards.

An "off-duty" placard may be placed on the dashboard of for-hire vehicles. Any placard must be three inches by ten inches, with two-inch-high letters, and placed on a black on white background.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-162. Vehicle infotainment systems.

A for-hire vehicle may be equipped with a vehicle infotainment system for use by a passenger. A vehicle infotainment system may be of any size if installed by original manufacturer and cannot exceed 11 inches in height and 7.5 inches in length if installed by secondary manufacturer.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-163. Advertising.

(a) Nothing within this section authorizes the dissemination of obscene advertising on for-hire vehicles. Any and all obscene images are prohibited by .G.S 14-190.1 or similar state statute.

(b) Roof mounted advertising.

(1) Each for-hire vehicle may display one dual-sided advertising assembly that is mounted securely on the for-hire vehicle's roof area.

(2) No advertising assembly shall not exceed an overall height of 18 inches, obscure any required for-hire vehicle markings, obscure any color scheme of a metered vehicle, extend beyond the for-hire vehicle's roof area to either the front or rear windshield.

(c) Vehicle panel advertising.

(1) Advertisements may be attached to each for-hire vehicle in a permanent or temporary form.

(2) No advertisement shall be placed in a manner that:

i. Impairs the for-hire driver's range of vision when operating the for-hire vehicle.

ii. Impairs the use of a for-hire vehicle's safety features or devices.

iii. Obscures the for-hire company's name, logo, contact information, PVH decal, or other information required to be displayed under this article.

iv. Obscures any color scheme or rate sheet of a metered vehicle.

v. Adds weight, height, or length to the for-hire vehicle because the advertisement is attached to an apparatus or device, except as permitted by section 22-163(b).

vi. Violates any federal or state law or regulation.

vii. Adds or attempts to add advertising to the for-hire vehicle's roof, except as permitted by section 22-163(b).

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Sec. 22-164. Records.

(a) All reports shall be on a form furnished by the PVH manager.

(b) All accidents involving a for-hire vehicle shall be reported to the PVH manager by the next business day after the accident. The for-hire company, for-hire vehicle owner, and for-hire driver of the for-hire vehicle involved in an accident shall each be individually responsible for making the required report. A for-hire vehicle involved in an accident may be ordered out of for-hire service by the PVH manager and shall be repaired before being returned to for-hire service.

(c) Every for-hire company shall maintain a person's drug test results for a period of three years after the person has taken the drug test.

(d) Every for-hire company and for-hire vehicle owner shall maintain the following information:

(1) Name, driver's permit number, address of all affiliated for-hire driver;

(2) For-hire drivers who have completed a driver training program; and

(3) When more than one for-hire vehicle owner operates under the same company operating certificate, the for-hire company may keep the records required by this article on behalf of all for-hire vehicle owners operating under the company operating certificate. A failure of the for-hire company to comply with this section shall not relieve the other for-hire vehicle owners operating under the company operating certificate of responsibility for the records with respect to the vehicles operated by them. It is the intent of this section to impose such responsibilities upon each for-hire vehicle owners.

(e) Every for-hire company and for-hire driver shall maintain the following information:

(1) A manifest in a safe place for at least 90 days, and shall be made available for inspection by the PVH manager or any officer of the Charlotte-Mecklenburg Police Department.

(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-165. Contract arrangements between for-hire company, for-hire vehicle owners, and/or for-hire driver.

(a) Nothing contained in this article shall prohibit any person from owning or operating a for-hire vehicle affiliated with a for-hire company.

(b) The for-hire company indemnifies the city and holds the city harmless for any claim or cause of action against the city arising from the conduct of the for-hire driver.

(c) A for-hire company may enter into any contract, lease agreement or understanding with any for-hire driver as an independent contractor. Any contract, lease agreement, or understanding must contain the following:

(1) A payment arrangement between the for-hire driver and for-hire company for a fixed or determinable sum per day for the use of the for-hire vehicle. Nothing in this section restricts a for-hire driver from being entitled to all or a portion of the proceeds from for-hire service over and above the fixed or determinable sum.

(2) A for-hire driver shall comply with this article, and failure to comply may be considered by the for-hire company as a material breach of the contract, lease agreement, or understanding.

(3) Any leased for-hire vehicle has and maintains insurance as required by the city and the state.

(d) Nothing contained in this section shall prevent any for-hire company from paying a fixed fee or other compensation to another for-hire company for furnishing proof of financial responsibility required by this article, for use of terminal facilities, and/or for the privilege of operating under the name of the other for-hire company.

(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-166. For-hire vehicles at Charlotte Douglas International Airport.

(a) For-hire vehicles providing for-hire services at the Charlotte Douglas International Airport shall comply with the requirements set forth in chapter 4 as well as this chapter 22.

(b) If a for-hire vehicle is assessed a charge or fee when a passenger is picked up from and/or dropped off at Charlotte Douglas International Airport, then the for-hire driver may add a onetime fee in an identical amount to the charge or fee assessed for that pick up from and or drop off at Charlotte Douglas International Airport.

(c) Rights of appeal set forth under section 22-234 do not apply to the imposition or enforcement of regulations adopted pursuant to chapter 4.
(Ord. No. 9019, § 1, 1-23-2017)

Secs. 22-167—22-174. Reserved.

DIVISION 4. VEHICLE STANDARDS

Sec. 22-175. For-hire vehicle age limits.

(a) All for-hire vehicles shall be no older than ten years. Accessible vehicles and unique vehicles are exempt from the for-hire vehicle age requirements set forth herein. Any for-hire vehicle exceeding the for-hire vehicle age shall be removed immediately from for-hire service.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-176. For-hire vehicle requirements.

(a) *Minimum requirements.*

(1) Magnetic signs, temporary signs, or removable decals which display the name of for-hire company or for-hire vehicle number are prohibited.

(2) Paint colors used for lettering and numbering shall be of sharp contrast. The surface paint color applied to the for-hire vehicle should be evenly visible at a reasonable distance, especially at night with streetlights. Lettering or numbering shall not be acceptable where it has been painted upon sheetmetal or other material which can be removed or detached from the for-hire vehicle.

(3) All for-hire vehicles shall be clean, operable and in good repair.

(4) All for-hire vehicle trunk compartments shall be clean and empty.

(5) Each for-hire vehicle must have a minimum of three doors, two doors allowing entry to the driver's compartment of the for-hire vehicle and one door allowing entry to the passenger's compartment of the for-hire vehicle. Notwithstanding this subdivision, all doors of for-hire vehicle shall be operable from the inside and outside of the for-hire vehicle and constructed with a double or safety lock on each door.

(6) All upholstery covering or interior lining in any for-hire vehicles shall be substantially free of cuts or tears.

(7) Seat belts shall be provided for each passenger in the for-hire vehicle to the extent required as original equipment by the vehicle's manufacturer.

(8) A for-hire vehicle must comply with all state safety inspection standards.

(9) Windshield wiper and defroster operable and adequate.

(10) Mirrors free of cracks and defects.

(11) Windshield shall be clean and clear from both the outside and inside, free of cracks, chips, scratches or any other condition that reduces clarity of vision.

(12) Windows shall be intact and must open and close properly. No decals, posters, or other materials on windows, other than credit card acceptance decals and PVH decals. Windows gaskets shall not have any dry rot or leak.

(13) Heater and air conditioner operable. Heater must not produce smell of coolant in interior of vehicle. Air conditioner must cool interior air to 65 degrees Fahrenheit at the vent face without using the interior air recycle feature.

(14) Headlights, tail lights, parking lights, turn signal lights, brake lights, back-up lights, license plate lights, side lights and emergency flashers operable. Must also be covered with undamaged lenses of appropriate type and color.

(15) Door handles and locks. All doors shall operate easily, shall close securely from both the outside and inside of the vehicle, and shall be accessible to passengers. No devices that restrict the ability of a passenger from readily exiting the for-hire vehicle in an emergency are allowed.

(16) Braking system including emergency brake.

(17) Tires, including spare (with tire jack and handle), properly inflated and having minimum tread depth of 2/32-inch and free of defects. Spare tire and jack shall be properly secured using manufacturer's equipment in designated trunk area.

(18) For-hire vehicle wheels properly aligned with matching hubcaps or wheel covers unless the wheels are of a design which does not require hubcaps or wheel covers.

(19) Wheel rims of uniform type, size and color. Lug nuts must be attached.

(20) Horn operable; loud, clear sound.

(21) Interior panels properly secured, free of tears and dirt.

(22) Interior lights and driver instrument displays (speedometer, odometer, gear selection indicator, seat belt warning light, and engine warning system) operable.

(23) Floor covering. No metal showing and undamaged.

(24) Headliner clean, completely attached to interior ceiling and along edges.

(25) Seats clean, unbroken and fastened securely, no exposed springs, wires or framework.

(26) Seat belts for driver and each passenger position clean, accessible, and operable.

(27) Accelerator, brake, emergency brake, and clutch pedals. Rubber pads in good condition, no exposed metal.

(28) Bumpers, grills, and body molding. All bumpers and body moldings shall be in good condition and properly attached as when manufactured. No decals, bumper stickers or advertisements unless specifically authorized by this article or approved by the PVH manager.

(29) For-hire vehicle exterior clean, polished and well painted.

(30) Steering system. No excessive play in steering column or front wheel assemblies.

(31) Suspension system meets manufacturer's specifications, components provide steady ride without excessive bouncing.

(32) Transmission. No slippage, proper function of each gear including "park" position.

(33) Exhaust system. No exhaust leaks, no missing support for tail pipe.

(34) For-hire vehicle body shall be free from dents, rust and holes which impair its safety or appearance. Unacceptable body defects (dents, creases, blemishes, ripples, rust or holes) which impair the appearance or serviceability of the for-hire vehicle include:

i. A body defect six linear inches or greater and where the deepest point of depression is one-quarter inch or greater.

ii. A body defect three inches in width or greater and three inches in height or greater and where the deepest point of depression is one-quarter inch or greater.

iii. Any defect which is one-half inch at the deepest point of depression regardless of width or height (this includes any hole in the surface area).

iv. Exterior paint which is not uniform in color, does not completely cover the vehicle, or is not in compliance with approved color scheme.

v. Any body panel, trunk, or hood misalignment.

(b) *Additional minimum requirements for metered vehicles.*

(1) A metered vehicle shall be equipped with either a traditional meter or virtual meter facing towards a passenger seated in the rear of the for-hire vehicle.

i. Any meter shall be mounted in such a fashion that it does not present a sight obstruction.

ii. All meters shall be mounted in such a fashion that it does not present a hazard should a passenger riding in the right front seat be thrown against the for-hire vehicle dashboard. If the meter is not mounted so as to satisfy this requirement, the right front seat cannot be occupied by a passenger.

iii. If using a traditional meter, then it should be a size and design approved by the PVH manager and which conforms to National Institute of Standards and Technology (NIST) specifications as amended. No person shall use or permit a metered vehicle to provide for-hire service while the traditional meter's hardware is unsealed or its gear is not intact.

iv. If using a virtual meter in lieu of a traditional meter, then the virtual meter shall meet the applicable standards as established in the NIST specifications as amended.

(2) A top light of a design approved by the PVH manager. All toplights shall be equipped with a tamperproof switch and system of electrical distribution so:

i. The metered vehicle's vacant sign (or center section of toplight) will be lit when the Metered Vehicle has no passengers; or

ii. The metered vehicle's toplight will be unlit when the metered vehicle has a passenger and its meter indicator and tattle-tale lights are lit.

(3) Metered vehicles shall have an electronic card payment device which enables passengers to pay instantly for their fare. All electronic card payment devices shall be turned on, active, and usable for passengers to pay fares. Once a person becomes aware that the electronic card payment device is inoperable, the for-hire driver shall remove the for-hire vehicle from for-hire service within 20 hours.

(4) Metered vehicles shall have a global positioning system (GPS) that is usable for navigation by the for-hire driver.

(5) Any time a metered vehicle is occupied by a person other than the for-hire driver, the meter must be on and operating regardless of the actual fare charged. It shall be the duty of the for-hire driver to call to the passenger's attention the amount registered on the meter.

(6) It shall be unlawful to reduce the size of wheels or tires of a metered vehicle or to change the gears that operate the meter.

(c) Any for-hire vehicle found to be noncompliant with this article shall have such repairs and alterations made as may be required. No for-hire company, for-hire vehicle owner, and/or for-hire driver shall operate, or cause or permit to be operated, any such for-hire vehicle until all such repairs and alterations have been completed.

(d) All for-hire vehicle components and equipment, and their replacements, shall operate properly and meet original manufacturer's specifications.
(Ord. No. 9019, § 1, 1-23-2017)

Secs. 22-177—22-199. Reserved.

DIVISION 5.
DENIAL/SUSPENSION/REVOCATION

Sec. 22-200. Actions or events constituting a threat to public safety.

(a) The PVH manager shall deny, suspend, or revoke a company operating certificate, vehicle operating permit, and/or driver's permit upon the commission, conviction, guilty plea, or plea of no contest to any of the following:

(1) Any violation relating to the use, possession, manufacturer or sale of alcoholic beverages or any substance regulated by the North Carolina Controlled Substances Act, G.S. 90-86 et seq., or the North Carolina Toxic Vapors Act, G.S. 90-113.8A et seq.

(2) Any criminal act by a person against another person which may be classified as a felony. For example, but not limited to, murder, voluntary manslaughter, involuntary manslaughter; felony death by vehicle; felonious assaults and/or batteries; robbery; rape and other sex offenses.

(3) Prostitution, any sex offense, or offense involving moral turpitude.

(4) Any criminal assault involving the for-hire service.

(5) Felonious drug offenses.

(6) A violation of the Federal Immigration Act.

(7) Any felony where citizenship rights have not been restored as provided by state law.

(8) A violation pertaining to the public health, safety, welfare, morals, or the protection of life.

(9) Any comparable provisions of federal, territory or possession of the United States of America, other state, or other local law for section 22-200(a).

(a1) The PVH manager shall consider the following mitigating factors when evaluating an application for a company operating certificate, vehicle operating permit, and/or driver's permit under section 22-200(a). The presence of one or more mitigating factors may demonstrate that a person is not a threat to public safety. If the PVH manager denies the application pursuant to section 22-200(a), then the PVH manager shall document the reasons why the mitigating factor(s) was outweighed by other considerations. Mitigating factors include:

(1) Completing all probationary requirements.

(2) Having the person's citizenship rights restored as provided by state law.

(3) Not committing any additional criminal offenses listed in section 22-200(a).

(4) Engaging in mentor or volunteer programs aimed at reducing crime or lowering recidivism.

(5) Being released from incarceration at least two years prior to the date of application.

(6) Being charged or convicted at least 20 prior to the date of application for any criminal offense listed in section 22-200(a).

(7) The applicant committed any offense set forth in section 22-200(a) under duress, coercion, threat, mental capacity, or compulsion that significantly reduced the applicant's culpability.

(8) The applicant has made substantial or full restitution to the victim.

(9) The victim was more than 16 years of age and was a voluntary participant in the applicant's conduct or consented to it.

(10) The applicant aided in the apprehension of another felon or testified truthfully on behalf of the prosecution in another prosecution of a felony.

(11) Prior to arrest or at an early stage of the criminal process, the applicant voluntarily acknowledged wrongdoing in connection with the offense to a law enforcement officer.

(12) The applicant has been a person of good character or has had a good reputation in the community in which the defendant lives.

(13) The applicant has accepted responsibility for the applicant's criminal conduct.

(14) The applicant has entered and is currently involved in or has successfully completed a drug treatment program or an alcohol treatment program.

(15) Any other mitigating factor reasonably related to the purposes of sentences.

(b) The PVH manager may deny, suspend, or revoke a company operating certificate, vehicle operating permit, and/or driver's permit upon

the commission, conviction, guilty plea, or plea of no contest to any of the following within the last ten calendar years:

(1) Any criminal act by a person against another person which may be classified as misdemeanor.

(2) Any criminal act by a person involving property which may be classified as a felony or misdemeanor.

(3) An habitual violator of traffic laws.

(4) Any driving while impaired convictions.

(5) Two or more arrests for driving while impaired.

(6) Habitual criminal activity.

(7) Aided or abetted in the commission of any act listed in section 22-200(a).

(8) Gambling.

(9) Any crime or infraction involving the operation of a vehicle and resulting in an incapacitating class A injury to a person as determined by the traffic accident report or the person's death.

(10) Any comparable provisions of federal, territory or possession of the United States of America, other state, or other local law for section 22-200(b).

(11) A habitual user of alcoholic beverages or any substance regulated by the North Carolina Controlled Substances Act, G.S. 90-86 et seq., or the North Carolina Toxic Vapors Act, G.S. 90-113.8A et seq.

(12) An accumulation under G.S. 20-16 of 12 or more points within a three year period.

(c) The PVH manager may deny, suspend, or revoke a company operating certificate, vehicle operating permit, and/or driver's permit for any of the following:

(1) Submitting, or caused to be submitted, false or misleading information in the application.

(2) Does not continue to meet the qualifications pursuant to section 22-125;

(3) The revocation or suspension of a state-issued driver's license.

(4) Nonpayment of a civil penalty.

(5) Any complaints regarding the failure to conduct an electronic financial transaction while providing for-hire service.

(6) Any complaints regarding the ability to read, write and speak the English language.

(7) Noncompliance with this article in the operation of any for-hire vehicle.

(8) The for-hire vehicle owner does not operate a for-hire vehicle for a period of 30 consecutive days.

(9) An act committed with the intent to defraud passengers of for-hire service.

(10) The failure to notify the PVH manager about any notice canceling the proof of financial responsibility.

(11) Any acts committed by a for-hire driver.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Sec. 22-201. Suspension.

(a) Violations of this article that are determined to present a clear, substantial, and imminent hazard to life, safety, or property shall result is an immediate suspension.

(b) Each suspension by the PVH manager shall be for 30 days (i.e. one (1) calendar month).

(c) The PVH manager may issue up to two suspensions for a total of 60 days (i.e. two calendar months) within 12 months. Any further violations subjects a person to section 22-202.

(d) No company operating certificate, vehicle operating permit, and/or driver's permit shall be reinstated until the licensee satisfies section 22-125.

(e) If a licensee does not seek reinstatement within 15 days after the conclusion of the suspension period, then the PVH manager shall revoke the company operating certificate, vehicle operating permit, and/or driver's permit.

(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-202. Denial/revocation.

(a) No application by a person, whose company operating certificate, vehicle operating certificate, or driver's permit has been denied or revoked, shall be accepted by the PVH manager within two years from the date of the PVH manager's written decision. The two years shall not be tolled if any right of appeal is exercised.

(b) The two-year period shall not be reduced or lessened by the PVH manager or PVH board.

(c) When a company operating certificate, vehicle operating certificate, or driver's permit is revoked, the for-hire service shall cease and the company operating certificate, vehicle operating permit, driver's permit, and PVH decal for all for-hire vehicles shall be surrendered immediately to the PVH manager.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-203. No civil liability standard.

Nothing in this article shall be construed as establishing a standard for civil liability for the evaluation of prospective or current for-hire company, for-hire vehicle owners, and/or for-hire driver, and a violation of this article shall not be considered as evidence of negligence.
(Ord. No. 9019, § 1, 1-23-2017)

Secs. 22-204—22-224. Reserved.

DIVISION 6. ADMINISTRATION, ENFORCEMENT, APPEALS

Sec. 22-225. PVH manager's office created; PVH manager's duties, recommendations, and reports.

(a) The PVH manager's office is hereby created and it shall be administered by a PVH manager. The PVH manager is charged with the duties required of the PVH manager in this article.

(b) The PVH manager shall advise the city manager, or designee, on matters covered or incidentally involved in the operation or administration of this article. The PVH manager shall make such reports, including the annual PVH board report, to the city manager, or designee, and the city as may be required.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-226. Enforcement by police.

Officers of the Charlotte-Mecklenburg Police Department shall assist in the enforcement of this article. A police officer observing a violation of this article shall take necessary enforcement action to ensure the effective regulation of for-hire service in the city.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-227. Hearing on application.

The PVH manager may request additional documents or an informal hearing if the PVH manager is not convinced that a person meets all eligibility criteria and has provided all necessary information to the PVH manager for a company operating certificate, vehicle operating permit, and/or driver's permit.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-228. Fees.

(a) Regulatory fees to cover the administrative costs for obtaining, renewing, duplicating, transferring and reinstating a company operating certificate, vehicle operating permit, and/or driver's permit shall be collected. Also, a regulatory fee shall be collected for each PVH decal issued to a for-hire vehicle. Fees shall be approved by the City and placed on file with the PVH manager. Other fees permitted by law may also be collected.

(b) Fees for special service permit shall be set by the city.

(c) Notwithstanding subsection (a), reduced fees may be assessed for any accessible vehicle.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-229. Fare disputes.

(a) All disputes arising between the passenger and the for-hire driver to the proper fare shall be arbitrated first by the PVH manager.

(b) The PVH manager shall request all appropriate and necessary documentation to investigate the facts of the fare dispute. Both the passenger and for-hire driver shall have 20 days to respond to the PVH manager's request.

(c) If one person fails to respond within 20 days, then the PVH manager shall close the investigation and render a decision in favor of the responding person. If neither person responds, then the PVH manager shall close the investigation without rendering a decision.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-230. Random audits and inspections by the PVH manager.

(a) The PVH manager shall have the right, at any time and after displaying proper identification, to determine compliance with the article by:

(1) Entering into any for-hire vehicle.

(2) Requesting documentation from any licensee.

(b) The PVH manager may perform no more than three random audits or inspections within a calendar year.

(c) If a for-hire company, for-hire vehicle owner, or a for-hire driver fails or refuses to comply with a random audit of documentation within one business day after being requested to do so or with a random inspection, then the PVH manager may take such appropriate action authorized by this article.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-231. Civil penalty.

(a) *Procedure.*

(1) A Person must pay a civil penalty within 30 days after the PVH manager issues or mails the civil penalty. However, if a person files an appeal of the civil penalty, then the civil penalty must be paid prior to the hearing before the PVH board in the form of a bond.

(2) Any and all civil penalties assessed against a for-hire driver shall remain the obligation of the for-hire driver regardless of any change in affiliation with a for-hire company.

(3) The PVH manager shall notify the for-hire company of any civil penalties issued to a for-hire vehicle owner having an affiliation with the for-hire company.

(4) No company operating certificate, vehicle operating permit, and/or driver's permit shall be issued if any civil penalty assessed under this article against a person is unpaid.

(b) *Amount.*

(1) Each violation of this article shall be assessed a $100.00 civil penalty with each day's continuing violation constituting a separate and distinct offense.

(2) If multiple violations of the article occur, then the maximum civil penalty assessed will be $500.00 and each day's continuing violation shall be a separate and distinct offense.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019; Ord. No. 274, § 8, 3-28-2022)

Sec. 22-232. Additional remedies.

The city or PVH manager may seek enforcement of this article by instituting a civil action for injunctive relief, an abatement order, or any other appropriate relief in a court of competent jurisdiction in the county.
(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 274, § 8, 3-28-2022)

Sec. 22-233. Waiver.

PVH manager may issue a written waiver that a particular requirement under this article is not applicable because of the for-hire vehicle's design or the nature of the for-hire vehicle's operation. Any waiver must set forth specific findings justifying the waiver.
(Ord. No. 9019, § 1, 1-23-2017)

Sec. 22-234. Procedure for appeals.

(a) *Actions by an appellant.*

(1) A person aggrieved by the decision of the PVH manager or the issuance of a civil penalty shall submit a written notice of appeal within ten days of the PVH manager's decision or issuance of the civil penalty.

(2) A person shall submit a written notice of appeal on a form furnished by the PVH manager. The person should state the reason or basis for the appeal, why the alleged action is improper, and why the alleged action should be changed.

(3) For appeals of the issuance of a civil penalty, a person shall provide a bond covering the amount of the civil penalty.

(b) *Actions by PVH manager.*

(1) The PVH manager should schedule a hearing on the appeal to occur within a reasonable amount of time after the person submits the written notice of appeal.

(2) The PVH manager shall transmit all appropriate documents regarding the person's written notice of appeal to the PVH board chairperson or PVH board.

(c) If a written notice of appeal is submitted within the allowed time by a licensee, then the PVH manager's decision shall be stayed until the issuance of the PVH Board's written decision. However, the PVH manager's decision shall not be stayed if the PVH manager determines the alleged action would impose an immediate threat or danger to public health, safety or welfare. The PVH manager shall set forth the reasons in writing supporting the PVH manager's determination that the alleged action would impose an immediate threat or danger to public health, safety, or welfare. This section shall not apply to a person who is not a licensee.

(d) If no written notice of appeal is filed within the allowed time or a person fails to submit a bond, then the decision of the PVH manager or the issuance of a civil penalty shall be deemed proper and binding upon the person aggrieved.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019)

Sec. 22-235. PVH board.

(a) A PVH board is hereby established and is composed of five members with three members appointed by the city council and two members appointed by the mayor. The mayor shall designate a chairperson. Such appointments shall be made as follows:

(1) One representative of persons with disabilities appointed by city council;

(2) One representative of the hospitality/tourism industry appointed by city council;

(3) One company operating certificate licensee appointed by city council;

(4) One person, who uses for-hire services and has no financial interest in or business affiliation with either the for-hire services or hospitality/tourism industries, appointed by the mayor.

(5) One vehicle operating permit licensee or driver's permit licensee appointed by the mayor.

(b) All members of the PVH board shall serve without compensation.

(c) All terms of the PVH board shall be for three years with no member serving more than two consecutive terms. No more than two members shall have their terms expire in a given year.

(d) Majority of the appointed members shall constitute a quorum in order to conduct business or hearings. Any member who fails to meet attendance requirements specified by city council policy shall be automatically removed from the board.

(e) The PVH board shall hold regular meetings on a monthly basis, unless the meeting is cancelled by the chairperson of the PVH board.

(f) The PVH board shall have the following duties and responsibilities as set forth below:

(1) Hearing appeals from a person aggrieved by a decision of the PVH manager.

(2) Establishing the standard rate schedule, fare zones, and the charges for metered vehicles. Standard charges including, but are not limited to, waiting time, additional passengers, discharge of bodily fluids, or luggage. The PVH board shall hold a public hearing and provide notice of the public hearing prior to establishing new rate schedules, fare zones, or charges. Any new rate schedules, fare zones, or charges shall be effective on July 1 of each year. A current list of all rate schedules, fare zones, and other charges for all metered vehicles shall be kept on file at the PVH manager's office. The city council may, in its discretion, conduct a legislative review of any new rate schedules, fare zones, and other charges recently adopted by the PVH board.

(3) Reviewing petitions by a company operating certificate licensee for a midyear change to metered vehicle rate schedules, fare zones, and charges. The petitioning company operating certificate licensee shall have the burden of showing that such changes are necessary due to acts of God, substantial or unexpected increases in fuel costs, or events beyond the control of the company operating certificate licensee. A four-fifths vote of the PVH board is required to approve a petition for a midyear change. The city council may, in its discretion, conduct a legislative review of any new rate schedules, fare zones, and other charges recently adopted by the PVH board.

(4) Assessing the number of accessible vehicles having vehicle operating permits. Upon determining the number of accessible vehicles needed to accommodate the needs of the city, the PVH board may make recommendations to the city based on its findings. Upon reviewing the recommendation of the PVH board, the city may mandate a minimum number of accessible vehicles for each company operating certificate licensee providing for-hire service via metered vehicles.

(5) Evaluating, at least once every two years, whether limits should be imposed on the number of company operating certificates, vehicle operating permits and/or driver's permits to be issued by the city during any calendar year. Any recommendation shall be made to the city. The decision to limit the number of company operating certificates, vehicle operating permits, or driver's permits shall be solely within the discretion of the city following the recommendation of the PVH board. The city may impose limits where the public convenience so warrants. Limits imposed under this section shall be applied to any applications for company operating certificates, vehicle operating permits, or driver's permits after the city adopts the new limitation. The burden of showing that public convenience requires the issuance of company operating certificates, vehicle operating permits, and/or driver's permits rests with and shall be the responsibility of the person applying for it.

(6) The PVH board shall promulgate rules and procedures to carry out its responsibilities under this division and shall keep such rules and procedures on file with the city clerk.

(7) The PVH board may have any other responsibilities as assigned by the city.

(g) Procedure for appeals.

(1) If the appeal relates to the issuance of a civil penalty for less than $500.00, then only the chairperson of the PVH board is empowered to read, review, and evaluate any and all written evidence submitted by the PVH manager's office and the appealing person. Any written evidence shall be subject to a penalty of perjury. No oral testimony should be considered by the chairperson of the PVH board. If the chairperson finds an error in the

application of these regulations, then the civil penalty shall be reversed. If the chairperson does not find an error, then the civil penalty shall be affirmed. The chairperson may elect to refer an appeal relating to the issuance of a civil penalty to the full PVH board.

(2) If the appeal relates to a PVH manager's decision or the issuance of a civil penalty for more than $500.00, then the entire PVH board will receive, review, and evaluate written evidence and oral testimony from the PVH manager's office and the appealing person.

(3) If an appealing person fails to appear before the PVH board after being provided with a notice of hearing and no continuance has been granted, then the PVH board shall dismiss the person's appeal for a failure to prosecute the appeal. The appealing person is not entitled to a rehearing after dismissal of the appeal.

(4) Any appealing person shall have the right to representation by a person of his choice. The North Carolina Rules of Evidence, G.S. 8C, shall not strictly apply to the hearing, but the hearing shall afford the PVH manager's office and the appealing person an opportunity to offer evidence, cross-examine witnesses, and inspect documents. Hearsay evidence shall be considered only to the extent that the hearsay evidence would be permitted under the North Carolina Rules of Evidence G.S. 8C. Only sworn testimony shall be accepted and the chairperson of the PVH board, as well as any board member designated by the chairperson, shall have the authority to administer the oath as set forth for witnesses in a civil matter by G.S. 11-11. The hearing shall be recorded, and the PVH board's decision shall be in writing with copies provided to the PVH manager's office and the appealing person.

(5) The PVH board shall reverse or modify the specific order, requirement, decision, or determination under appeal only upon finding an error in the application of these regulations by the PVH manager. If the PVH board does not find an error, then the PVH manager's decision shall be affirmed.

(6) Decisions of PVH board shall be either: (i) affirming or reversing the PVH manager's decision; (ii) affirming or reversing the issuance of a civil penalty; (iii) imposing probationary status; or (iv) imposing such other lesser penalties as it deems just and appropriate. Decisions of the PVH board shall be subject to judicial review in a proceeding in the nature of certiorari instituted in the superior court of this county within 30 days after the PVH board.

(7) The mailing address listed on the written notice of appeal by the appealing person is presumed to be a valid and proper address for the appealing person to receive the PVH board's written decision.

(Ord. No. 9019, § 1, 1-23-2017; Ord. No. 9488, § 2(Exh. A), 1-14-2019; Ord. No. 274, § 8, 3-28-2022)

Secs. 22-236—22-249. Reserved.

Chapter 23

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*__Charter references—__Utilities regulation, § 6.121; water and sewers, § 7.21.

__Cross references—__Buildings and building regulations, ch. 5; floods, ch. 9; stormwater, ch. 18; streets, sidewalks and other public places, ch. 19; subdivisions, ch. 20; zoning, app. A.

__State law references—__Sanitary sewage disposal rules, G.S. 130A-333; ground absorption sewage disposal systems, G.S. 130A-343 et seq.; water and air resources, G.S. 143-211 et seq.; revenue bonds, G.S. 159-80 et seq.; public enterprises, G.S. 160A-311 et seq.

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ARTICLE I. IN GENERAL*

Sec. 23-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Charlotte-Mecklenburg Utilities (CMUD) means the Charlotte-Mecklenburg Utility Department.

Commercial users means those customers who desire water and/or sanitary sewer service for commercial use or for use in the transaction of their business.

Complete service connection means a three-quarter-inch or one-inch water service connection which consists of the connection to a public water main of a service line, a meter yoke, a meter box, required appurtenances, and a stubbed out connection point for connection of the applicant's private plumbing system. Water service connections larger than one inch consist of the connection to a public water main of a service line, a meter box or vault, piping to the property line, a valve at the property line, and other required appurtenances.

Director means the director of CMUD. The director or his designated representative is authorized to act on behalf of CMUD.

Late payment, fixed, means the customer service cost for processing a delinquent account listed on a delinquent account register.

Late payment, variable, means the cost of carrying outstanding balances in customer accounts.

Meter removal means the physical removal of the meter from the connections inside the meter box.

Partial service connection means connection to the water main, service line to the point of a future meter location and includes the meter box and other required appurtenances.

Temporary water users means water customers who are not the owners of the premises served and who desire water service for less than six months annually and for a given period of time.

Turnoff means the physical turnoff of the meter in the meter box.

Turnoff at main means the physical disconnection of the waterline at the water main.

Turn-on means the physical turn-on of the meter in the meter box.

Yoke removal means the physical removal of the yoke, located inside the meter box, that is used to secure the inlet and outlet pipes for meter installation.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Cross reference—Definitions generally, § 1-2.

Sec. 23-2. Deposit requirements.

(a) Under this chapter, deposits are not required from residential customers except those accounts which are delinquent under policies set by the city manager. Cash deposits are required from all commercial users in such amount as set by the city manager.

(b) If any user fails to pay the amount due for water and/or sewer service, according to the requirements of section 23-5, or for stormwater service, according to the requirements of article II of chapter 18 of this Code, the city shall have the right without further notice to the user to discontinue water and/or sewer service to the user and charge against the deposit the amount due.

(c) Any deposit will be held by the city to the credit of the customer, making the deposit as a guarantee that the bills will be paid for water and/or sewer services and for stormwater service as set forth in article II of chapter 18 of this Code. The deposit will be applied to the depositor's account balance in the order listed in subsection 23-3(5).

*__Editor's note—__**Ord. No. 5230, § 1(Exh. A), adopted October 28, 2013, amended article I in its entirety to read as herein set out. Formerly, article I pertained to similar subject matter, and derived from the Code of 1985, §§ 23-1—23-13; Ord. No. 2274, § 1, adopted March 24, 2003; Ord. No. 3603, §§ 1—3, adopted May 29, 2007; Ord. No. 4127, §§ 1, 2, adopted March 9, 2009; Ord. No. 4609, § 1, adopted February 28, 2011, and Ord. No. 5007, § 3, adopted November 26, 2012.

(d) Refunds of less than $1.00 will be withheld and will escheat to the state. Refunds will be processed upon receipt of specific written request and provision of a stamped, self-addressed envelope. No interest will be due on any amount held for a refund. Final bills for less than $1.00 will not be issued. The city manager may designate other amounts from time to time for escheat refunds or that will not be final billed.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-3. Schedule of water and sewer rates.

The water and/or sewer service user charge shall be a monthly charge based upon the water consumption of the property served, as measured by the water meter on the property, per 100 cubic feet of water used, except as set forth in the water and sewer rate methodology documents described in subsection 23-129(a). Meters will be read on a schedule set by the city manager, and water furnished shall be paid for according to the schedule of current rates, fees and charges by the following classifications:

(1) Rates for water and sewer furnished.

(2) Minimum fixed charge for water and for sewer per customer. The fixed customer service charge on each bill relates to providing basic servicing (e.g., meter reading, billing, etc.) of customer accounts, even if no water or sewer service is used during the billing period associated with the fixed customer service charge.

(3) Rates for private fire lines at the customer's request and application.

(4) Determination of rates for subsections (1) and (2) of this section shall be arrived at in accord with the water and sewer rate methodology documents and procedures described in detail in subsection 23-129(a);

(5) Payment will be applied to a customer's bill in the following order:

a. Civil penalties assessed pursuant to this chapter;

b. Delinquent fees for water and/or sewer;

c. Stormwater;

d. Sewer; and

e. Water.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-4. Delivery of bills.

A water and/or sewer bill will either be sent through the United States mail or delivered by an alternate method approved by the city manager, notifying all customers of the amount of the bill, the date the payment is due and the date when past due. Failure to receive a bill is not justification for nonpayment.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-5. Delinquent fees and charges; conditions; notice; appeals; water service termination actions.

(a) Current charges for water and/or sewer service are due when billed and are considered delinquent if not paid within 25 days of the billing date, except as otherwise approved by the city manager.

(b) If, at the time of next billing, the account has an unpaid balance:

(1) A late charge of one and one-half percent will be assessed against the unpaid balance. This charge shall be called a late payment-variable charge.

(2) If the customer does not inform the customer service division of any complaint concerning accuracy of the bill constituting the past due balance, and if the customer does not pay the past due balance within ten days from the most recent billing date, the account is delinquent, and water service is subject to termination.

(3) Notice of delinquency and of CMUD's intent to terminate service will be given in writing to the customer.

(c) If payment of the past due balance is not received by the deadline specified in the notice, a charge will be assessed to cover the costs of identifying the account as delinquent and of ini-

tiating the appropriate termination procedure. This charge shall be called a late payment fixed charge.

(d) If full payment of the past due balance is received between the specified deadline and the close of business on the workday preceding scheduled termination, a charge will be levied to recover costs associated with identifying the late payment and cancelling the termination order. This charge shall be called a delinquent processing charge and must be paid before the turnoff order will be rescinded.

(e) If the meter is turned off for nonpayment, service will not be restored until payment of the following charges and/or fees is received by the customer service division:

(1) Past due water and sewer charges.

(2) Past due service charges.

(3) Late payment charges (variable and fixed).

(4) The delinquent fee to cover the costs of turning the meter off and on.

(f) If the account carries a past due balance representing two or more months' bills, and if the meter was turned off during the previous delinquent cutoff cycle because of nonpayment, the meter may be removed, and the account may be finalized just as though the customer requested discontinuance of service. Any existing security deposit may be applied against the final bill. To have service restored, the customer must pay the following:

(1) All outstanding water and sewer bills.

(2) All outstanding service charges.

(3) Late payment charges (variable and fixed).

(4) Meter turnoff fee.

(5) Meter removal and installation fee.

(6) New security deposit, if applicable.

(g) Delinquent charges shall accrue for each occurrence and must be paid in addition to any outstanding amounts which may include, but are not limited to, the following:

(1) Water and sewer bills.

(2) Service charges.

(3) Late payment charges (variable and fixed).

(4) Meter turnoff/turn-on delinquent fee.

(5) Meter removal and installation fee.

(6) New security deposit, if applicable.

(h) When a customer has vacated the premises, leaving bills and/or charges unpaid, that customer will not be furnished water or sewer service elsewhere until all outstanding bills, charges and fees have been paid.

(i) CMUD is authorized to take the following other termination actions as necessary and to charge fees to recover the costs of such actions:

(1) *Meter removal.* The physical removal of a meter following unauthorized turn-on by a customer.

(2) *Unauthorized meter.* The physical removal of a meter assigned to a designated service location in the system but found in another service location.

(3) *Unauthorized device.* The physical removal of any unauthorized device used to obtain water service along with the yoke.

(4) *Turnoff at the main.* The disconnection of the service connection at the main to prevent the customer from installing unauthorized yokes, meters, pipes and other devices in order to obtain water services.

(j) The late payment charges (variable and fixed), the delinquent processing charge, the meter turnoff/turn-on fee, the meter removal and installation fee, as well as those fees applicable to the unauthorized obtainment of service described in subsection (i) of this section, are set forth in the schedule of current rates, fees and charges. Such charges may be reviewed and adjusted as necessary.

(k) For sewer-service-only customers:

(1) Charges will be billed in the same manner as water charges or water and sewer charges. They shall be subject to the same time limit for payment as water charges in addition to any and all penalties provided by law, including late payment charges (variable and fixed).

(2) CMUD may cut off sewer service to the property for failure to pay sewer charges.

(3) If service is discontinued, a delinquent fee shall be calculated which represents the actual cost of disconnection and the estimated cost of reconnection. This fee shall be called a delinquent sewer fee.

(4) To have service restored, the customer must pay all outstanding charges and the delinquent sewer fee.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-6. Complaints of erroneous or excessive water and/or sewer charges.

(a) A customer having a grievance or complaint that a water and/or sewer bill is erroneous or excessive must file written or verbal notice with the customer service division of CMUD. A reasonable opportunity will be provided to the customer to speak with a representative of the customer service division concerning such grievance or complaint prior to terminating water or sewer service or making any final determination on any adjustment, allowance or rebate. If it is determined that the amount of the bill is in error, an adjustment will be made accordingly.

(b) If leaks are found in the customer's plumbing and CMUD finds that leaky pipe fixtures caused the excessive bill, an allowance or rebate will be made for the excess for no more than two months, after evidence has been produced indicating that the leak has been stopped. The amount of such allowance or rebate will be determined as follows:

(1) *Water:* Adjustment made for 50 percent of the excess.

(2) *Sewer:* Adjustment made for 50 percent of the excess when water is returned to the sewer system for treatment, and 100 percent of the excess when water is not returned to the sewer system for treatment.

(c) Notwithstanding any other provision of this article, the director may adjust a water and/or sewer bill otherwise prepared in accordance with this article in such manner and in such amount as he determines to be just and equitable, based upon guidelines approved by the city manager.

(d) Notwithstanding the provisions of subsection (b) of this section, no allowance or rebate shall be made pursuant to subsection (b)(1) of this section during any time that a water shortage declaration is in effect as provided in article VII of this chapter.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-7. Charges for water or sewer service provided without prior knowledge of CMUD.

(a) If water has been obtained without the knowledge of CMUD, a bill will be made against the user or customer for the estimated amount of water used or for the quantity shown to have been used by the meter. If the water was obtained through any unauthorized meter or device, such service will be terminated immediately.

(b) If wastewater is discharged into the CMUD system without the actual knowledge of CMUD, a bill will be made against the user or customer for the estimated amount of the discharge or for the quantity of water shown to have been used by the meter. If the sewer service was obtained through any unauthorized device, such service may be terminated immediately.

(c) If a stopped, broken or damaged meter has not registered the actual usage of water, an estimated bill will be calculated based on prior usage. If there is no prior usage history, an estimated bill will be calculated based on a similar type of consumer. The customer service division may establish a schedule for payment of the bill, if the customer is not able to pay such bill in full in accordance with section 23-5.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-8. Accrual of charges until notification to cut off service.

Water being cut off by anyone other than CMUD personnel does not relieve the customer from paying for water and/or sewer service. Charges for water and/or sewer service will be calculated and collected until CMUD-is notified, either in

writing or in person, to cut off water service. The revenue division will collect all water and sewer service charges, as well as all interest, civil penalties and other fees authorized by this article. (Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-9. Charge for turning on or transferring account.

A customer desiring either to turn on or transfer water and/or sewer service from one service location to another will be turned on or transferred for a service charge, as set forth in the schedule of current rates, fees and charges. (Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-10. Surcharge for treatment of industrial wastes.

(a) All users discharging industrial wastes into the CMUD system shall be billed monthly for a surcharge, covering the entire cost to CMUD of treating all wastes having a COD in excess of 500 mg/l, suspended solids in excess of 250 mg/l and ammonia in excess of 20 mg/l. The surcharge shall be levied in addition to the existing sewer service charge.

(b) The amount of the surcharge shall be set forth in the schedule of current rates, fees and charges.

(c) The surcharge is to be derived in accordance with the water and sewer rate methodology documents described in section 23-129. The city manager shall fix the rate to be charged during the new fiscal year at the beginning of such fiscal year for the following:

(1) The COD in excess of 500 mg/l discharged into the system;

(2) Suspended solids in excess of 250 mg/l discharged into the system;

(3) Ammonia in excess of 20 mg/l discharged into the system;

(4) An industrial waste control charge per 100 cubic feet of wastewater discharged into the system; and

(5) A commercial volume charge per 100 cubic feet of wastewater discharged into the system.

(d) Pollutants of concern, and the established limit(s) for said pollutants of concern, to be surcharged are to be developed by a certified professional engineer, experienced in the methodology for determining treatment costs in wastewater treatment processes, pollutants of concern to be surcharged are to be developed in CMUD's sole discretion.

(e) The bill for such surcharge shall be prepared in accordance with sections 23-4 and 23-5 of this chapter. Such bill shall be payable as provided in section 23-5 of this chapter, and delinquent fees and charges shall be assessed and collected as set forth in section 23-5.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-11. Description of service user charges for properties using other than CMUD water.

(a) For a property which uses water, all or a part of which is from a source other than the CMUD water distribution system, there shall be a sewer user charge separate from, and in addition to, any charge based on the consumption of water from the CMUD water distribution system. Such separate or additional sewer charges shall be measured by the quantity of water from the source, other than the CMUD system, which is discharged into CMUD sewers from the property.

(b) The owner of such property shall install and maintain, at his expense, a meter to measure the quantity of water received from other than the CMUD water distribution system and discharged into CMUD sewers. No meter shall be installed or used for such purpose without the approval of CMUD, and the property owner shall pay for water discharged into CMUD sewers, as though all such water came from the CMUD water distribution system.

(c) If the property owner fails to install and maintain at his expense an approved meter, CMUD shall estimate the amount of water from sources other than the CMUD system which is discharged into CMUD sewers from the property. This estimate will be based on records of the consumption of similar properties or operations. If no applicable records are available, a formula, based on the usage of the property, will be

utilized to compute the estimated water discharged into CMUD sewers; and such property owner will be billed accordingly. Such bill shall be collectible and enforceable in the same manner as any other water and/or sewer bill of CMUD.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-12. Capacity charge.

Each applicant for water or sewer service shall pay the applicable capacity charge for the type and size of service connection requested. The capacity charge shall be arrived at in accordance with the water and sewer rate methodology documents as set forth in the schedule of current rates, fees and charges.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-13. Applicability of chapter.

This chapter shall apply to all customers and users of and to all portions of the city's water intake and treatment facilities, water distribution system, sewage treatment and disposal facilities and sewage collection system wherever located, both within and outside the corporate limits.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Secs. 23-14—23-40. Reserved.

ARTICLE II. SEWER CONNECTIONS AND USER CHARGES*

Sec. 23-41. Systems operations.

The sewage treatment and disposal facilities and sewage collection system shall be operated as, and considered to be, a single, integrated system. Any revenue collected by Charlotte Water shall be sufficient to meet: (i) the annual principal and interest payable and any associated fees on the debt incurred for construction of the sewer system and associated infrastructure; and (ii) the amount necessary for repairs, maintenance and operation of the system.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013; Ord. No. 464, § 1, 1-23-2023)

Sec. 23-42. Application for service.

Sewer service connections will be made to premises abutting on streets having sewer mains, upon application being made by the owner, or lessee, or the authorized agent of the property to be benefitted, and upon compliance with all requirements of CMUD.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-43. Conditions and charges for service connection and repairs.

The sewer service connections within the street right-of-way belong solely to the property owner and are the responsibility of the property owner or occupant and are subject to the following:

(1) The applicant shall designate with a marker the location of a new sewer service connection prior to the beginning of work. Where the lowest elevation of plumbing in the building is lower than the rim elevation of the nearest upstream manhole, the property owner is responsible for the installation, repair and maintenance of a backwater valve, as required by the applicable plumbing code.

(2) The charges for making a four-inch or smaller sewer service connection shall be arrived at in accordance with the water and sewer rate methodology documents and set forth in the schedule of current rates, fees and charges.

(3) The charges for making sewer service connections larger than four inches, or where manholes or creek crossings are required, will be determined according to the following procedure: Upon application for a sewer service connection, a design study will be made by CMUD personnel to determine the cost to furnish

*__Editor's note—__Ord. No. 5230, § 1(Exh. A), adopted October 28, 2013, amended article II in its entirety to read as herein set out. Formerly, article II pertained to similar subject matter, and derived from the Code of 1985, §§ 23-16—23-23, and Ord. No. 5007, § 3, adopted November 26, 2012.

the requested service. Payment of the determined cost is required prior to any construction work by CMUD.

(4) The property owner or user shall not perform, direct or permit the performance of any maintenance work within the street

right-of-way. Maintenance work required within the street right-of-way shall be performed by CMUD.

a. For sewer laterals that are unserviceable and are deemed to be a health hazard, CMUD will bear the costs to repair or replace the service. CMUD will also bear the cost of repairs due to trees existing within the street right-of-way, rodent problems and inflow and infiltration of extraneous waters.

b. The property owner or user will be charged the actual costs of labor, equipment and materials for repairs to service connections where it is determined by CMUD that actions by the property owner or user have necessitated repairs to the service connection.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-44. Responsibility for repair of plumbing appliances and private sewer lines.

(a) If any plumbing appliance becomes defective or out of repair in any manner, the plumbing appliance shall immediately be restored to proper working order or replaced with a properly working appliance.

(b) If any private sewer line becomes out of repair or clogged, the private sewer line shall be repaired or cleared of any obstruction by the property owner or occupant of the premises.

(c) Except as provided in section 23-43, the cost of any repair or replacement required by this section shall be at the expense of the property owner or occupant.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-45. Control and maintenance of meters or measuring devices.

All meters or other measuring devices installed or required to be used under this article shall be under the control of CMUD, except as provided in subsection 23-86(a). The owner of the property where the measuring device is installed shall be responsible for its maintenance and safekeeping, and all maintenance and repairs will be made at the owner's expense, including, without limitation, such calibrations as may be required by CMUD.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-46. Description of service user charges for users of CMUD water not discharged into CMUD sewer system.

(a) If a customer is charged for sewer service and uses water from the CMUD water distribution system that is not discharged into the CMUD sewer system for an industrial or commercial purpose, the quantity of water so used, and not discharged into the sewer system, shall be excluded from the calculation of the sewer service charge, provided the quantity of water so used and not discharged into the CMUD sewer system is measured by a device which is approved by CMUD and is installed and maintained at the owner's expense and provided that the water supply of such property is metered, and the owner pays for such water at the current metered rate.

(b) The sewer customer will pay a user charge based on water consumption. The charge is computed according to the water and sewer rate methodology documents using the quantity of water actually discharged into the CMUD sewer system. If, in the opinion of CMUD, it is not practical to install a measuring device to determine the quantity of water discharged into the sewer system, CMUD may calculate the percentage of metered water discharged into the sewer system. The quantity of water used to determine the sewer service charge shall be the percentage so calculated of the quantity measured by the water meter.

(c) Any dispute as to such calculation shall be submitted to the city manager after notice of the estimate is received. The city manager's decision on the matter shall be final.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-47. Maintenance and extension of system.

The sewer system shall be maintained by CMUD and extended and enlarged from time to time, in accordance with applicable law.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-48. Requirements for uncovering or connecting to public sewer.

It shall be unlawful for any person to uncover any portion of the CMUD sewer system for any purpose or to make connection with the CMUD sewer system, except with the consent and under the supervision of CMUD. No connection with the main sewer trunk lines shall be made without a special permit. It shall be the duty of CMUD to ensure full compliance with this section in relation to connections.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Secs. 23-49—23-75. Reserved.

ARTICLE III. WASTEWATER DISCHARGE RESTRICTIONS*

Sec. 23-76. Purpose and policy.

(a) This article sets forth uniform requirements for discharges to the POTW and enables the city and CMUD to comply with all applicable state and federal laws.

(b) The objectives of this article are to:

(1) Prevent the introduction of pollutants into the POTW which will interfere with the operation of the system or contaminate the resulting sludge;

(2) Prevent the introduction of pollutants into the wastewater which will pass through the POTW, inadequately treated, into receiving waters or any waters of the state or otherwise be incompatible with the POTW;

(3) Improve the opportunity to recycle and reclaim wastewater and sludges from the POTW;

(4) Protect the POTW personnel who may be affected by wastewater, gases, sludge, or effluent in the course of their employment as well as protect the general public; and

(5) Enable the city to comply with its NPDES and nondischarge permits conditions, sludge use and disposal requirements and any other federal and/or state laws to which the POTW is subject.

(c) This article provides for the regulation of discharges to the POTW through the issuance of permits to certain nondomestic users and through enforcement of general requirements for all users. This article authorizes monitoring and enforcement activities and requires user reporting.

(d) Except as otherwise provided, CMUD shall administer, implement and enforce this article.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-77. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Act and *the Act* mean the Federal Water Pollution Control Act, also known as the Clean Water Act, 33 USC 1251 et seq., as amended.

Ammonia (NH_3) means a nitrogen compound found in wastewaters, usually expressed as a concentration (milligrams per liter or mg/l).

Approval authority means the director of the Division of Water Resources of the North Carolina Department of Environment and Natural Resources or his designee.

*__Editor's note—__Ord. No. 5230, § 1(Exh. A), adopted October 28, 2013, amended article III in its entirety to read as herein set out. Formerly, article III pertained to similar subject matter, and derived from the Code of 1985, §§ 23-41, 23-43—23-55, 23-57—23-63; Ord. No. 4127, §§ 3—17, adopted March 9, 2009, and Ord. No. 4609, §§ 2—4, adopted February 28, 2011.

Authorized representative of the user means as follows:

(1) If the user is a corporation, authorized representative means:

a. The president, secretary, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy- or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production, or operation facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) If the user is a partnership or sole proprietorship, an authorized representative means a general partner or proprietor, respectively.

(3) If the user is a federal, state, or local government facility, an authorized representative means a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility or the designee.

(4) The individuals described in subsections (1) through (3) of this definition may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the user, and the written authorization is delivered to and received by the director.

(5) If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility, or overall responsibility for environmental matters for the company, a new authorization satisfying the requirements of this section must be submitted to director prior to or together with any reports to be signed by an authorized representative.

Biochemical oxygen demand, five-day (BOD_5), means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures, for five days at 20 degrees Celsius, usually expressed as a concentration (milligrams per liter or mg/l).

Boiler blowdown means the minimum discharge of recirculating water from a boiler for the purpose of discharging materials contained in the water, the further buildup of which would cause concentrations in amounts exceeding limits established by best engineering practice.

Building sewer means a sewer conveying wastewater from the premises of a user to the POTW.

Bypass means the intentional diversion of waste streams from any portion of one or more of the following user's facilities:

(1) Treatment;

(2) Metering; or

(3) Monitoring facilities.

Carbonaceous biochemical oxygen demand, five-day ($cBOD_5$), means the quantity of oxygen utilized in the biochemical oxidation of the carbonaceous compounds in organic matter under standard laboratory procedures, usually expressed as a concentration (milligrams per liter or mg/l).

Categorical standards and *national categorical pretreatment standards* mean national categorical pretreatment standards or pretreatment standards.

Chemical oxygen demand (COD) means the measure of the content of organic matter that is susceptible to oxidation by a strong chemical oxidant, usually expressed as a concentration (milligrams per liter or mg/l).

Control authority means Charlotte-Mecklenburg Utility Department (CMUD).

Domestic sewage and *domestic wastewater* mean the liquid waste generated from bathrooms, toilet rooms, kitchens and home laundries and other similar facilities.

Environmental Protection Agency (EPA) means the U.S. Environmental Protection Agency or, where appropriate, the term may be used as a designation for the administrator or other duly authorized official of the agency.

Food service establishment means any user engaged primarily or incidentally in the preparation of food for human or animal consumption, unless specifically excluded in this definition. The term "food service establishment" does not include any user discharging domestic wastewater from premises used exclusively for residential purposes, so long as the wastewater discharged by such user complies with subsections 23-79(a) and (b)(2), (6) and (16) of this article. The term "food service establishment" includes restaurants, motels, hotels, cafeterias, hospitals, schools, bars, delicatessens, meat processing operations, bakeries, and similar operations.

Grab sample means a sample which is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed 15 minutes.

Grease includes oils, fats, cellulose, starch, proteins, wax, or grease, whether emulsified or not. These are substances that may solidify or become viscous at temperatures between 32 degrees Fahrenheit and 150 degrees Fahrenheit (zero degrees and 65 degrees Celsius).

Grease interceptor and *grease trap* mean a device utilized to effect the separation of grease and oils from the wastewater effluent of a user. Such traps or interceptors may be of the outdoor or underground type normally of a 1,000-gallon capacity or more, or the under-the-counter package units which are typically less than 100-gallon capacity. For the purpose of this definition, the terms "trap" and "interceptor" are used interchangeably.

Grit interceptor means a chamber or other device in a wastewater line which causes the velocity of the flow of wastewater to be reduced so that grit and other heavier solids can settle to the bottom of the device for removal.

Holding tank waste means any waste from holding tanks, including, but not limited to, such holding tanks as vessels, chemical toilets, campers, trailers, septic tanks and vacuum pump tank trucks.

Indirect discharge means the discharge or the introduction of nondomestic wastewater or pollutants from any source, regulated under Section 307(b), (c), or (d) of the Act (33 USC 1317), into the POTW, including holding tank waste discharged into the system.

Industrial pump and haul waste means pump and haul waste containing industrial waste.

Industrial user (IU) means any person who is a source of indirect discharge.

Industrial waste means nondomestic wastewater, including, but not limited to, process or operational wastewater, groundwater remediation discharges, contaminated stormwater or surface water remediation discharges, and any other nondomestic liquid waste from industrial and commercial establishments.

Interference includes, but is not limited to a discharge which, alone or in conjunction with discharges from other sources, inhibits and/or disrupts the POTW collection system; its treatment processes and/or operations; and/or its sludge processes, use and/or disposal, which causes or contributes to a violation of any requirement of the Control Authority's and/or POTW's NPDES, collection system permits or non-discharge permits, or to the prevention of sewage sludge use or disposal in compliance with any of the following

statutory/regulatory provisions or permits issued there under, or any more stringent state or local regulations: Section 405 of the Act (33 USC 1345), or any criteria, guideline or regulations developed pursuant to the Solid Waste Disposal Act (SWDA) (42 USC 6901 et seq.), the Clean Air Act, the Toxic Substances Control Act, the Marine Protection Research and Sanctuary Act (MPRSA), or more stringent state criteria, including those contained in any state sludge management plan prepared pursuant to Title IV of the Solid Waste Disposal Act, applicable to the method of disposal or use employed by the POTW.

Local control document (LCD) means a document issued by CMUD allowing discharge of wastewater into the POTW in accordance with this article.

Medical waste means isolation wastes, infectious agents, human blood, blood products, other body fluids, pathological wastes, sharps, body parts or tissue, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

National Pollutant Discharge Elimination System permit and *NPDES permit* mean a permit issued pursuant to Section 402 of the Act (33 USC 1342) or pursuant to G.S. 143-215.1 by the state under delegation from the Environmental Protection Agency.

National prohibited discharge standard, prohibitive discharge standard and *prohibited discharges* mean absolute prohibitions against the discharge of certain substances. These prohibitions appear in section 23-79 of this article and are developed under the authority of Section 307(b) of the Act and 40 CFR 403.5.

New source means:

(1) Any building, structure, facility, or installation from which there is, or may be, a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located;

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction that has commenced if the owner or operator has:

a. Begun or caused to begin, as part of a continuous on-site construction program:

1. Any placement, assembly, or installation of facilities or equipment; or

2. Significant site preparation work, including clearing, excavation, or removal of existing buildings, structures, or facilities, which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities which are or equipment which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, contracts for feasibility,

engineering, and design studies do not constitute a contractual obligation under this subsection.

(3) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsection (1)b. or (1)c. of this definition but otherwise alters, replaces, or adds to existing process or production equipment.

Noncontact cooling water and *noncontact cooling wastewater* mean water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

Nondischarge permit means a permit issued by the state pursuant to G.S. 143-215.1 for a system or facility not discharging to the surface waters of the state.

Nondomestic sewage/wastewater means the liquid waste from sources not domestic in nature.

Oil means any mineral, animal, vegetable or synthetic pollutant that has the following, general characteristics: slippery, combustible, viscous, liquid or liquefiable at room temperature, and soluble in various organic solvents, such as ether, but not in water.

Oil/water separator means a device designed to separate and retain oils and other light density, volatile liquids from wastewater for proper disposal, rendering or recycling. For purposes of this article, an oil/water separator must have two access ports to allow proper inspection, sampling and cleaning.

Pass through means a discharge which exits the POTW into the waters of the state in quantities or concentrations which, alone or in conjunction with discharges from other sources, may cause a violation, including an increase in the magnitude or duration of a violation, of any requirement, or limit established in the control authority's (and/or POTW's, if different from the control authority) NPDES, collection system, or non-discharge permit or any downstream water quality standard even if not included in the permit.

Person means any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, government entity or any other legal entity, or their legal representatives, agents or assigns. This definition includes all federal, state, and local governmental entities.

pH means a measure of the acidity or alkalinity of a substance, expressed as standard units and calculated as the logarithm of the reciprocal of the concentration of the hydrogen ions in grams per liter of solution.

Pollutant means any waste as defined in G.S. 143-213.18, dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, industrial waste, municipal waste, agricultural waste, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD_5, $cBOD_5$, NH_3, COD, toxicity, metals or odor).

Pollutants of concern (POC) means any pollutant which might reasonably be expected to be discharged to the POTW in quantities which could pass through or interfere with the POTW, contaminate the sludge, or jeopardize any POTW worker's health and/or safety.

Pretreatment and/or *treatment* mean the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into a POTW. The reduction or alteration can be obtained by physical, chemical or biological processes; by process changes; or by other means, except by diluting the concentration of the pollutants. For the purposes of this article, equalization of flow shall be considered pretreatment.

Pretreatment program means the program for the control of pollutants introduced into the POTW in compliance with 40 CFR Chapter 1, Subchapter N, Part 403.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment, other than a pretreatment standard, imposed on or accepted by the user.

Pretreatment standards and *standards* mean prohibited discharge standards, categorical pretreatment standards, and local limits.

Publicly owned treatment works (POTW) means a treatment works or a combination thereof, as defined by Section 212 of the Act (33 USC 1292), which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature; any conveyances which convey wastewater to the POTW treatment plant; plant and sewer maintenance personnel; and microorganisms associated with the treatment process itself.

Publicly owned treatment works treatment plant means that portion of the POTW designed to provide treatment to wastewater.

Pump and haul waste means excess sludge from domestic septic tank systems, biological treatment plants with an NPDES permit and/or wastewater from portable sanitary privies, including domestic sewage and/or industrial waste.

Receiving water means the specific waters of the state receiving the effluent discharged from the POTW treatment plant.

Severe property damage means substantial physical damage to property, damage to the user's treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Significant industrial user (SIU) means any user of the POTW who:

(1) Discharges an average of 25,000 gpd or more of process wastewater to the POTW, excluding sanitary, noncontact cooling, and boiler blowdown wastewater; or

(2) Contributes process wastewater which makes up five percent or more of the NPDES or non-discharge permitted flow limit or organic capacity of the POTW treatment plant. In this context, organic capacity refers to BOD, TSS, and NH3; or

(3) Is required to meet a national categorical pretreatment standard; or

(4) Is found by CMUD, the Division of Water Quality or the Environmental Protection Agency to have the potential for impact, either singly or in combination with other contributing industrial users, on the wastewater treatment system, the quality of sludge, the system's effluent quality, or compliance with any pretreatment standards or requirements.

(5) Subject to division approval under 15A NCAC 02H .0907(b), the control authority may determine that an industrial user meeting the criteria in paragraphs (1) and (2) above has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standards or requirement, or for contributing to violations of the POTW's effluent limitations and conditions in its NPDES or non-discharge permit, or for contributing to violations of the POTW's receiving stream standard, or for limiting the POTW's sludge disposal options, and thus is not a significant industrial user.

(6) Subject to division approval under 15A NCAC 02H .0907(b), the control authority may determine that an industrial user meeting the criteria in paragraph (3) above meets the requirements of 40 CFR Part 403.3(v)(2) and thus is a non-significant categorical industrial user.

(7) Subject to division approval under 15A NCAC .0907(b), the control authority may determine that an industrial user meeting the requirements of paragraph (3) above meets the requirements of 40 CFR Part 403.12(e)(3) and thus is a middle tier significant industrial user. Sampling and

inspection requirements may be cut in half as per 40 CFR Parts 403.8 (f)(2)(v)(C) and 403.12(e)(3).

Significant noncompliance or *SNC* is the status of noncompliance of a SIU when one or more of the following criteria are met. Additionally, any industrial user which meets the criteria in section 23-77. Significant noncompliance (3) (4) or (8) shall also be SNC.

(1) Chronic violations of wastewater permit discharge limits, defined as those in which 66 percent or more of all of the measurements taken for the same pollutant parameter (not including flow) during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement including instantaneous limits as defined by 40 CFR Part 403.3(1);

(2) Technical review criteria (TRC) violations, defined as those in which 33 percent or more of all the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the a numeric pretreatment standard or requirement including instantaneous limits as defined in 40 CFR Part 403.3(1) multiplied by the applicable TRC (TRC = 1.4 for BOD_5, TSS, fats, oil and grease, and 1.2 for all other pollutants except flow and pH). TRC violations for pH are those measurements less than or equal to five S.U. or greater than or equal to 12.5 S.U., unless defined differently in a wastewater discharge permit issued by CMUD;

(3) Any other violation of a pretreatment standard or requirement as defined by 40 CFR Part 403.3(1) (daily maximum or longer-term average) that the control authority determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of the POTW personnel or the general public;

(4) Any discharge of a pollutant or wastewater that has caused imminent endangerment to human health, welfare or to the environment, or has resulted in the POTWs or control authority's exercise of its emergency authority under 40 CFR 403.8(f)(1)(vi)(B) and Section 23-95 of this SUO to halt or prevent such a discharge;

(5) Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local mechanism or enforcement order for starting construction, completing construction, or attaining final compliance;

(6) Failure to provide, within 45 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, or reports on compliance with compliance schedules;

(7) Failure to accurately report noncompliance; or

(8) Any other violation or group of violations which the control authority and/or the POTW determines may adversely affect the operation or implementation of the local pretreatment program to include, but not be limited to any violation of this article or permit issued in accordance with the city's pretreatment program.

Slug load or discharge means any discharge at a flow rate and/or concentration which has a reasonable potential to cause interference or pass-through, or in any other way violates the POTWs regulations, local limits, or industrial user permit conditions. This can include but is not limited to spills and other accidental discharges; discharges of non-routine, episodic nature; a non-customary batch discharge; or any other discharges that can cause a violation of the prohibited discharge standards in section 23-79.

Standard industrial classification (SIC) means a classification pursuant to the current Standard Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget.

State means the state department of environment and natural resources or any duly authorized representative thereof.

Stormwater means any flow occurring during or following any form of natural precipitation and resulting therefrom.

Suspended solids and *total suspended solids (TSS)* mean the total suspended matter that floats on the surface of, or is suspended in, water, wastewater or other liquids, and which is removable by approved laboratory filtering methods.

Toxic pollutant means any pollutant or combination of pollutants listed as toxic in the regulations promulgated by the administrator of the Environmental Protection Agency under the provisions of the Clean Water Act, Section 307(a), or other acts.

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards because of factors beyond the control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed pretreatment facilities, inadequate pretreatment facilities, lack of preventive maintenance, and/or careless or improper operation.

User means any person who contributes, causes or permits the contribution of wastewater into the POTW or proposes such a contribution.

Vehicle wash facility means a facility used to clean vehicles or equipment using water and/or cleaning compounds, with the resulting wastewater discharged directly or indirectly into the POTW.

Wastewater means the liquid and water-carried, industrial and/or domestic wastes from dwellings, commercial buildings, industrial facilities, mobile sources, treatment facilities and/or institutions together with any groundwater, surface water, and/or stormwater that may be present, whether treated or untreated, which are contributed to or permitted to enter the POTW.

Wastewater discharge permit means the permit required by section 23-87 of this article.

Water pollution means the manmade or man-induced alteration of the chemical, physical, biological and radiological integrity of water.

Waters of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Cross reference—Definitions generally, § 1-2.

Sec. 23-78. Abbreviations.

As used in this article, the following abbreviations shall have the designated meanings:

BMR	Baseline monitoring report
CFR	Code of Federal Regulations
COD	Chemical oxygen demand
gpd	Gallons per day
l	Liter
mg	Milligrams
mg/l	Milligrams per liter
µg/l	Micrograms per liter
mgd	Million gallons per day
NH_3	Ammonia-nitrogen
NOV	Notice of violation
NPDES	National Pollutant Discharge Elimination System
SWDA	Solid Waste Disposal Act, 42 USC 6701 et seq.
TSS	Total suspended solids
USC	United States Code

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-79. Prohibited discharge standards.

(a) *General prohibitions.* No user shall discharge or cause to be discharged into the POTW any pollutant or wastewater which causes interference or pass through. The general prohibitions in this section apply to all users of the POTW.

(b) *Specific prohibitions.* No user shall discharge or cause to be discharged into the POTW the following:

(1) Any pollutants which, either alone or by interaction with other pollutants, create a fire or explosive hazard in the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than

140 degrees Fahrenheit (60 degrees Celsius) using the test methods specified in 40 CFR 261.21.

(2) Solid or viscous pollutants, fats, oils, or greases from animal or vegetable origin in amounts which may cause obstruction to the flow or other interference in the POTW.

(3) Any wastewater having a pH less than 6.0 or greater than 12.0, or having any other corrosive property capable of causing damage or hazard to the POTW.

(4) Pollutants, including oxygen demanding pollutants ($cBOD_5$, BOD_5, COD, etc.), released in a discharge at a flow volume, flow rate and/or pollutant concentration which, either singly or by interaction with other pollutants, will cause interference with the POTW.

(5) Any noxious or malodorous liquids, gases or solids which, either singly or by interaction with other pollutants, are sufficient to create a public nuisance or hazard to life or are sufficient to prevent entry into the sewers for maintenance and repair.

(6) Any pollutant released in a discharge at a flow volume, flow rate and/or pollutant concentration which, either singly or by interaction with other pollutants, may cause the POTWs effluent or any product of the POTW, such as residues, sludges or scums, to be unsuitable for reclamation and recycling or to interfere with the reclamation process. In no case shall a substance discharged to a POTW cause the POTW to be in noncompliance with applicable local, state or federal sludge use or disposal guidelines.

(7) Any pollutant released in a discharge at a flow volume, flow rate and/or pollutant concentration, which will, either singly or by interaction with other pollutants, cause the POTW to violate any of its NPDES and/or state disposal system permits or the receiving water quality standards.

(8) Any discharge having a temperature greater than 150 degrees Fahrenheit (66 degrees Celsius) or which will inhibit biological activity in the POTW treatment plant resulting in interference but, in no case, a discharge which causes the temperature at the introduction into the POTW treatment plant to exceed 40 degrees Celsius (104 degrees Fahrenheit).

(9) Any pollutant which results in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute or chronic worker health and safety problems.

(10) Any wastewater containing any radioactive wastes or isotopes except as specifically approved by CMUD in compliance with applicable state or federal regulations.

(11) Any discharge at a flow rate which will cause interference with the POTW.

(12) Any pump and haul waste, except at discharge points designated by CMUD in accordance with section 23-81 of this article.

(13) Any waste stream which imparts color and passes through the POTW treatment plant, including, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts sufficient color to the POTW treatment plant's effluent, thereby violating any state or federal regulations pertaining to the effluent from the plant or the receiving water.

(14) Stormwater, surface water, groundwater, artisan well water, roof runoff, subsurface drainage, and swimming pool drainage, unless specifically authorized by CMUD.

(15) Any removed substances to include, but not be limited to, sludges, screening, or other residues from the pretreatment of wastewater.

(16) Petroleum oil, nonbiodegradable cutting oil, synthetic oil, or products of mineral oil origin, in amounts that will cause interference or pass through.

(17) Any indirect discharge which, alone or in combination with other wastewater, causes the treatment plant effluent to violate

state water quality standards for toxic substances as described in 15 A NCAC 2B .0200.

(18) Any pollutant that will emulsify grease or oil or cause grease or oil to solidify or become more viscous.

(19) At no time shall two successive readings on an explosion hazard meter, at the point of discharge into the POTW, or at any point in the POTW, be neither more than five percent nor any single reading over ten percent of the lower explosive limit (LEL).

(20) Any material that would be identified as hazardous waste according to 40 CFR Part 261 if not disposed of in a sewer, except as may be specifically authorized by CMUDD.

(c) *Processing and storage.* Pollutants, substances or wastewaters prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.

When CMUD determines that a user(s) is contributing to the POTW, any of the above enumerated substances in such amounts which may cause or contribute to interference of POTW operation or pass through, CMUD shall:

(1) Advise the user(s) of the potential impact of the contribution on the POTW in accordance with section 23-95; and

(2) Take appropriate actions in accordance with article III, and the sections contained therein, for such user to protect the POTW from interference or pass through.

(d) *National categorical pretreatment standards.* Users subject to categorical pretreatment standards are required to comply with applicable standards as set out in 40 CFR Chapter 1, Subchapter N, Parts 405—471:

(1) Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, CMUD may impose equivalent concentration or mass limits in accordance with 40 CFR 403.6(c).

(2) When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, CMUD shall impose an alternate limit using the combined wastestream formula in 40 CFR 403.6(e).

(3) A user may obtain a variance from a categorical pretreatment standard if the user can prove, pursuant to the procedural and substantive provisions in 40 CFR 403.13, that factors relating to its discharge are fundamentally different from the pretreatment standard.

(4) A user may obtain a net gross adjustment to a categorical standard in accordance with 40 CFR 403.15.

(e) *Specific pollutant limitations.* An industrial waste survey is required prior to a user discharging wastewater containing in excess of the following average discharge limits:

CBOD	250.0	mg/l
COD	500.0	mg/l
TSS	250.0	mg/l
NH_3	25.0	mg/l
Ammonia as N	20.0	mg/l
Arsenic	0.003	mg/l
Cadmium	0.003	mg/l
Chromium	0.05	mg/l (total chromium)
Copper	0.061	mg/l
Cyanide	0.015	mg/l
Lead	0.049	mg/l
Mercury	0.0003	mg/l
Nickel	0.021	mg/l
Silver	0.005	mg/l
Total Petroleum hydrocarbons	100.0	mg/l
Zinc	0.175	mg/l

Industrial waste survey information will be used to develop user-specific local limits when necessary to ensure that the POTWs maximum allowable headworks loading are not exceeded for particular pollutants of concern.

User-specific local limits for appropriate pollutants of concern shall be included in wastewater permits. CMUD may impose mass based limits in addition to, or in place of concentration based limits.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-80. Oil and grease; grit.

(a) Every food service establishment shall properly install, operate and maintain on its premises at its expense one or more grease interceptors or other facilities approved by CMUD to prevent the discharge of oil or grease into the POTW. CMUD may require any user to install on its premises at its expense one or more grease interceptors or other facilities approved by CMUD, if CMUD determines that the user has violated, or has the potential to discharge oil and grease into the POTW in violation of, subsections 23-79(a) or (b)(2), (6) or (16).

(b) Every user with the potential to discharge one or more of the following pollutants into the POTW, as determined by CMUD, shall be required to install an oil/water separator and grit interceptor approved by CMUD: oil, kerosene, gasoline, naphtha, wax, trisodium phosphate and any light-density and volatile liquid. Substances that will emulsify oil or grease shall not be used in any oil/water separator required by this section.

(c) Every user required to install an oil/water separator shall install a grit interceptor approved by CMUD. Every vehicle wash facility shall install an oil/water separator and a grit interceptor approved by CMUD. A grit interceptor required by this section or other applicable law shall be installed in a drainage line so that wastewater flows into the grit interceptor before entering an oil/water separator installed in accordance with this article.

(d) Wastewater, grease, grit and other materials removed in any manner from facilities required by this section or other applicable law shall be disposed of in accordance with applicable law and shall not be discharged directly or indirectly into the POTW or otherwise placed back into such facilities under any circumstances.

(e) A vehicle wash facility shall be designed, constructed, operated and maintained to prevent any direct or indirect entry of stormwater into the POTW.

(f) Grease interceptors, oil/water separators, grit interceptors and other approved facilities required by this section or other applicable law shall be cleaned, maintained and repaired regularly, as needed, by the user at its expense. The user shall maintain records in conformance with subsection 23-91(o) of this article concerning the dates and manner of its inspection, maintenance and repair of such facilities; and of its disposal of all wastewater, grease, oil, grit and other materials removed from such facilities in accordance with applicable law.

(g) Grease interceptors, oil/water separators, grit interceptors other approved facilities required by this section or other applicable law shall be designed and installed so that all portions are easily accessible for inspection, maintenance and sampling of the effluent from such facilities.

(h) Every user required by this section or other applicable law to install grease interceptors or other approved facilities shall adopt and implement procedures for handling sources of floatable oils, fat or grease generated by the user so that such pollutants are not discharged into the POTW in violation of this article. Notice of such procedures shall be permanently posted on the user's bulletin board or other prominent place.

(i) Every user required by this section or other applicable law to install oil/water separators shall adopt and implement procedures for the operation thereof. Notice of such procedures shall be permanently posted on the user's bulletin board or other prominent place.

(j) Every user required to install grease interceptors or other approved facilities by this section or other applicable law shall adopt and implement a plan to minimize the amount of grease, oil and waste food used or generated by the user.

(k) Every user required to install oil/water separators by this section or other applicable law shall adopt and implement a waste control plan based on best management practices for the disposal of grease, oils, solids and sludge removed from oil/water separators.

(l) Construction standards providing for the application of the requirements of this section to specific situations may be approved by the council. Such standards shall be enforced by CMUD. (Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-81. Pump and haul procedures.

(a) Any person proposing to discharge pump and haul waste to the POTW must first apply for and receive from the state department of environment and natural resources, solid waste division, pursuant to applicable septage management rules found in 15A NCAC 13B, a permit to operate a septage management firm and discharge such waste to the POTW. Any person proposing to discharge pump and haul waste into the POTW must also apply for and receive a local control document (LCD) to discharge such waste for each vehicle from which such waste may be discharged into the POTW. The application shall require such information to be provided as may be specified by CMUD. Failure to complete the application or to complete the application accurately will be a basis for denying an LCD or revoking any LCD issued in response to the application. A deposit shall be submitted with the application to guarantee payment of sewer charges. Such deposit is set forth in the schedule of current rates, fees, and charges. Charges for the discharge of pump and haul waste will be calculated and billed to the LCD recipient based on the volume and/or characteristics of the pump and haul waste discharged into the POTW. Pump and haul waste may be introduced into the POTW only by persons permitted to do so and only at locations designated by CMUD, and at such times as are established by CMUD.

(b) The LCD recipient shall be responsible for any and all damages resulting from improper handling and/or spillage.

(c) Each LCD issued pursuant to this section may be suspended or terminated by CMUD if the LCD recipient submitted false or misleading information on an application; violated any section of this article; violated any provision of a permit issued pursuant to this article; or violated any provision of applicable law concerning the introduction of wastewater into the POTW or any other publicly owned treatment works. Any suspended LCD may not be reissued for a period of two months, except upon such terms as are satisfactory to CMUD to prevent the occurrence of the conditions authorizing suspension or termination. Any terminated LCD may not be reissued for two years except upon such terms as are satisfactory to CMUD to prevent the occurrence of the conditions authorizing suspension or termination. A cease and desist order may include a provision revoking or terminating an LCD as set forth in this subsection.

(d) CMUD may require the owner or operator of a vehicle from which pump and haul waste is to be discharged to obtain a wastewater discharge permit in addition to the LCD required by subsections (a) and (b) of this section prior to such discharge. CMUD may require the generator of pump and haul waste to obtain a wastewater discharge permit prior to the discharge of such waste into the POTW.

(e) No industrial pump and haul waste may be introduced into the POTW unless the owner or operator of the vehicle from which such waste is to be discharged and the generator of such waste obtains a wastewater discharge permit. Ninety days after written notice to all LCD recipients, CMUD may prohibit the discharge into the POTW of all industrial pump and haul waste.

(f) In addition to the permits and LCDs required by this section, CMUD may require any person proposing to discharge industrial pump and haul waste into the POTW to provide an analysis of such waste prior to the discharge. CMUD may collect samples of any or all pump and haul waste prior to discharge to the POTW to ensure compliance with this article, applicable permits and applicable law. CMUD may at any time require an LCD recipient to collect a representative sample of a load of pump and haul waste and analyze for such pollutants as are specified by CMUD, at the LCD recipient's expense, prior to or during the discharge of the pump and haul waste into the POTW. For any sampling and analysis of pump and haul waste by CMUD, CMUD may include in the LCD recipient's next sewer bill the cost incurred by CMUD for such sampling and analysis.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-82. Pretreatment standards.

(a) *Rule of stringency.* The most stringent limitations and requirements on pretreatment of discharges to a POTW in effect, whether imposed

by the city, state or federal government, shall apply. The user will be required to implement such pretreatment as necessary to comply with the applicable standards.

(b) *Right of revision.* The city reserves the right to establish limitations and requirements which are more stringent than those required by either state or federal regulations if deemed necessary to comply with the objectives presented in section 23-76 or prohibitions in section 23-79 of this article.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-83. Pretreatment compliance.

(a) *Pretreatment facilities.* IUs shall provide wastewater treatment as necessary to comply with this article and wastewater permits issued under section 23-87 and shall achieve compliance with applicable standards and requirements within the time limitations as specified by the Environmental Protection Agency, the state or CMUD, whichever is most stringent. Any facilities necessary for compliance shall be provided, operated and maintained at the IU's expense. Detailed plans for the pretreatment facilities signed and sealed by a professional engineer of this state shall be delivered to and received by CMUD for review, and an authorization to construct shall be issued by CMUD prior to construction of the pretreatment facilities. The IU shall be solely responsible for the design, construction and operation of such pretreatment facilities as may be necessary to comply with this article. The review of such plans and operating procedures and the issuance of the authorization to construct will in no way relieve the IU from the responsibility of modifying the facilities as necessary to produce an effluent which complies with this article. Any subsequent changes in the pretreatment facilities or method of operation shall be reported to and be approved by CMUD prior to the IU's initiation of the changes.

(b) *Additional pretreatment measures.* Additional pretreatment measures are as follows:

(1) Whenever deemed necessary, CMUD may require an industrial user to restrict its discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate domestic sewage waste streams from industrial waste streams, and comply with such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this article. Suspension of wastewater treatment service shall be subject to subsection 23-95(f).

(2) CMUD may require any IU discharging into the POTW to install and maintain, on the IU's property and at the IU's expense, an authorized storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

(3) Grease, oil and/or sand interceptors shall be installed by the IU, at the IU's expense and on the IU's property, when necessary to comply with this article. All interceptor units shall be located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the IU at the IU's expense.

(4) CMUD may require an IU, who has the potential to discharge flammable substances to the POTW, to install, maintain, and operate, at the IU's expense, an authorized combustible gas detection meter.

(5) CMUD may require an IU, who has the potential to discharge wastewater in violation of pretreatment standards, to install, maintain, and operate, at the IU's expense, an authorized pH controller and meter related to pH.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-84. Excessive discharges and dilution.

(a) CMUD shall deny or set conditions on any new or increased discharges of flow or pollutants, or changes in the nature of discharges, when CMUD determines that such discharges by a user may exceed or have exceeded the applicable stan-

dards or limitations of the POTW, or may cause or have caused a violation of the NPDES permit in effect.

(b) No user shall ever increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate treatment to achieve compliance with the applicable pretreatment standards.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-85. Accidental discharge or slug discharge.

(a) Each SIU shall provide protection from accidental discharges and slug discharges of prohibited materials or other substances regulated by this article. Facilities to prevent accidental discharges and slug discharges of prohibited materials shall be provided and maintained at the owner's or user's expense. Detailed plans of the facilities and operating procedures must be delivered to and received by CMUD for review before construction of the facility. Completion of plans to address accidental discharges and slug discharges may be required before a wastewater discharge permit will be issued. Review of such plans and operating procedures shall not relieve the SIU from the responsibility of modifying the SIU's facilities as necessary to meet the requirements of this article.

(b) CMUD shall evaluate whether each SIU needs a plan or other action to control and prevent slug discharges and accidental discharges as defined in section 23-77 and/or if any current plan needs updating. CMUD may require any user to develop, deliver for review, and implement such plans or other specific actions. All SIU's must be evaluated within one year of being designated an SIU. Alternatively, CMUD may develop such a plan for any user.

(c) Plans for accidental discharges and slug discharges shall address, at a minimum, the following:

(1) Description of discharge practices, including nonroutine batch discharges;

(2) Description of stored chemicals;

(3) Procedures for notifying CMUD and the POTW treatment plant of any accidental discharge, as required in subsection 23-91(f); and

(4) Procedures to prevent the adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants including solvents, and/or measures and equipment for emergency response.

(d) All SIUs are required to notify the POTW immediately of any changes at its facility affecting the potential for spills and other accidental discharge, discharge of a non-routine, episodic nature, a non-customary batch discharge, or a slug load. Also see subsections 23-91(e) and (f).
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-86. Structure required.

(a) *Monitoring facilities.* CMUD may require industrial users to provide and operate, at the IU's expense, monitoring facilities for the inspection and sampling of the IU's industrial waste discharge. CMUD may require an IU to install, operate and maintain, at the IU's expense, CMUD-authorized flow measuring equipment at the monitoring facility. Sampling and measuring equipment shall be maintained at all times in a safe and proper operating condition at the expense of the IU.

(b) *Requirements.* The sampling and monitoring facilities required by this section shall be approved by CMUD prior to construction and shall be provided in accordance with CMUD requirements and all applicable construction standards and specifications. Construction shall be completed within such time as is set forth in the written notification by CMUD of authorization to construct. Authorization to construct by CMUD will not relieve the IU for complying with all applicable statutes, ordinances, rules and/or regulations.

(c) *Failure to comply.* Should CMUD determine that a monitoring facility does not comply with this article, or that access thereto has been denied, CMUD may require the IU, at the IU's own expense, to modify or relocate the monitoring facility.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-87. Wastewater discharge permits.

(a) *Application.* Application for a wastewater discharge permit shall be in accordance with the following:

(1) All connections and discharges made to the POTW are subject to approval by CMUD. Any user proposing to discharge any industrial waste to the POTW or who is doing so must make application to CMUD for a wastewater discharge permit.

(2) Any industrial user proposing to change the volume or characteristics of an existing discharge shall request from CMUD a determination as to whether or not a new application should be filed and shall provide sufficient information on the proposed change to enable CMUD to determine the need for a new application. If the proposed change requires a revision in a current SIU or local permit or requires a different type of permit be issued, the IU shall apply to CMUD for an appropriate wastewater discharge permit within 45 days of the notification.

(3) When requested by CMUD, a user must deliver to CMUD information on the volume and characteristics of its wastewater, to include, but not to be limited to, self-monitoring of the indirect discharge, within 30 days of the request. CMUD is authorized to prepare forms for this purpose and may periodically require users to update this information.

(4) Any person discharging or proposing to discharge wastewater into the POTW shall be responsible at all times for determining the volume and characteristics of its existing or proposed discharge.

(b) *Requirements.* Wastewater discharge permit requirements are as follows:

(1) No person meeting one or more of the requirements of an SIU of this article shall discharge wastewater into the POTW without first obtaining a wastewater discharge permit from CMUD. An SIU that has filed a timely application pursuant to subsection (c) of this section may continue to discharge pending final action on the application so long as its indirect discharge is in compliance with subsections 23-79(a) through (d). CMUD may require the user to demonstrate compliance by performing monthly or more frequent monitoring of the indirect discharge and analyzing for the POTW's pollutants of concern and applicable categorical pretreatment standards.

(2) CMUD may require other users to obtain wastewater discharge permits as necessary to carry out the purposes of this article.

(3) Any violation of the terms and/or conditions of a wastewater discharge permit shall be deemed a violation of this article. Obtaining a wastewater discharge permit does not relieve a permittee of the continuing obligation to comply with all federal and state pretreatment standards and/or requirements or with any other requirements of federal, state and local law.

(c) *Contents of application.* Each industrial user required to apply for a permit shall complete and file with CMUD an application, in the form prescribed by CMUD, which may include, but not be limited to, the following:

(1) Name, mailing address and location.

(2) SIC numbers for the IU's primary, as well as all secondary, functions and processes.

(3) Analytical data on wastewater constituents and characteristics, including, but not limited to, those mentioned in subsection 23-79(e) of this article, any of the priority pollutants (Section 307(a) of the Act) which the applicant knows or sus-

pects are present in the discharge as determined by a laboratory certified by the state to perform the analysis associated with the determination, and any other pollutant of concern to the POTW. Sampling and analysis shall be performed in accordance with procedures approved by the Environmental Protection Agency and CMUD and as required in subsections 23-91(1) and (m).

(4) Time and duration of the indirect discharges.

(5) Average daily and 30-minute peak wastewater flow rates, including daily, monthly and seasonal variations, if any.

(6) Site plans, floor plans, mechanical and plumbing plans and details to show all sewers, floor drains, sewer connections, direction of flow and appurtenances by the size, location and elevation.

(7) Description of activities, facilities and processes on the premises, including all materials which are or could be accidentally or intentionally discharged.

(8) Where known, the nature and concentration of any pollutants in the discharge which are limited by any pretreatment standards in effect and a statement as to whether or not the pretreatment standards are being met on a consistent basis and, if not, whether additional operation and maintenance and/or pretreatment is required for the user to meet applicable pretreatment standards.

(9) If additional operation and maintenance and/or pretreatment will be required to meet the pretreatment standards, the shortest schedule by which the IU will provide such additional pretreatment. The completion date in this schedule shall not be longer than the compliance date established for the applicable pretreatment standard. The following conditions apply to this schedule:

a. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the IU to meet the applicable pretreatment standards. No increment in the schedule shall exceed nine months, and no schedule of compliance shall exceed a total of 24 months.

b. No later than 14 days following each date in the schedule and the final date for compliance, the IU shall submit a progress report to CMUD including, at a minimum, whether or not it complied with the increment of progress, the reason for the delay, and, if appropriate, the steps being taken by the IU to return to the established schedule. In no event shall more than nine months elapse between such progress reports to CMUD.

(10) Each product produced by type, amount, process and rate of production.

(11) Type and amount of raw materials processed (average and maximum per day).

(12) Number and type of employees, hours of operation of the plant and proposed, or actual, hours of operation of the pretreatment system.

(13) If subject to a categorical pretreatment standard, a baseline monitoring report in accordance with 40 CFR 403.12(b) and 15A NCAC 2H .0908(a), as outlined in subsection 23-91(a).

(14) Any other information as may be deemed by CMUD to be necessary to evaluate the permit application.

(15) Description of current and projected waste reduction activities in accordance's with G.S. 143-215.1(g);

(d) *Application signatories and certification.* All wastewater discharge permit applications and user reports must be signed by the current autho-

rized representative of the user on file with the control authority as defined in section 23-77 and contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to ensure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is to the best of my knowledge and belief, true, accurate and complete. I am an authorized representative of the user and am authorized to execute this certification on behalf of the user. I am aware that there are significant penalties for submitting false information in violation of this certification, including the possibility of fines and/or imprisonment."

(e) *Application review and evaluation.* CMUD is authorized to accept, review and evaluate applications for wastewater discharge permits to the POTW. CMUD may conduct an inspection of the facility to verify information contained in the permit application. Within a reasonable time following receipt of the application, CMUD shall either accept the application as complete or return the application to the applicant as incomplete with a statement of what additional information is required. After all required information has been received by CMUD, a determination shall be made as to whether or not a wastewater discharge permit will be issued. CMUD may deny any incomplete application for a wastewater discharge permit if the applicant fails to submit all required information within the time specified by CMUD.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-88. Wastewater discharge permit issuance process conditions.

(a) *Duties of CMUD.* Prior to issuance of a wastewater discharge permit, CMUD shall perform the following:

(1) Conduct an on-site inspection of the facility including any pretreatment facilities.

(2) Determine the following:

a. Discharge limitations for those pollutants proposed to be limited;

b. Monitoring requirements for pollutants which are suspected to be present but which are not proposed to be limited at the time the permit is issued. After issuance, the permit may be modified pursuant to subsection 23-90(b) to impose limits on one or more of such pollutants;

c. Where applicable, a proposed schedule of compliance, including interim dates and requirements, for meeting the proposed limitations to include, but not be limited to, installation of a new monitoring point and/or of flow measuring equipment; and

d. Other proposed special conditions which will have an impact on the discharge described in the application.

(3) Organize information from the permit application and inspection report into a permit synopsis to include, but not be limited to, the following:

a. A sketch and detailed description of the industrial facilities and pretreatment facilities, if any, including the location of all points of discharge to the POTW and all established compliance monitoring points; and

b. A quantitative description of the discharge described in the application which includes at least the following:

1. The rate or frequency of the proposed discharge; if the discharge is continuous, the average daily flow;

2. The actual average daily discharge in pounds per day of any limited pollutant and any pollutant identified in the application as known or suspected present;

3. The basis or rationale, for the pretreatment limitations, including the documentation of any calculations used in applying categorical pretreatment standards; and documentation of the rationale of any parameter for which monitoring has been waived under 40 CFR Part 403.12(e)(2).

c. An allocation table (AT) listing permit information for all SIU's, including but not limited to permit limits, permit effective and expiration dates, and a comparison of total permitted flows and loads with division approved maximum allowable loadings of the POTW, including flow, on forms or in a format approved by the division. The AT shall be updated as permits are issued or renewed, and as permits are modified where the permitted limits or other AT information is revised.

The synopsis shall be submitted to the state as well as made available to the public and the user, upon request, where in compliance with section 23-94 of this article.

(b) *Final action on SIU permit applications.* Procedures for final action on SIU permit applications are as follows:

(1) CMUD shall take final action on all applications within a reasonable timeframe following receipt of a complete application.

(2) CMUD is authorized to:

a. Issue an SIU permit containing such conditions as are necessary to effectuate the purposes of this article and G.S. 143-215.1.

b. Issue an SIU permit containing time schedules for achieving compliance with applicable pretreatment standards and requirements.

c. Deny a permit application when in the opinion of CMUD such discharge may cause or contribute to pass through or interference of the POTW wastewater treatment plant or where necessary to achieve the purposes of G.S. 143-215.1.

d. Determine, based on the application, that the applicant is not an SIU.

(c) *Permit conditions.* Conditions may be placed on the permit as follows:

(1) CMUD shall have the authority to grant a permit with such conditions attached as are necessary to achieve the purpose of this article and G.S. 143-215.1. Wastewater discharge permits shall contain, but are not limited to, the following:

a. A statement of duration (in no case more than five years);

b. A statement of non-transferability;

c. Applicable effluent limits based on categorical standards or local limits, or both;

d. Applicable monitoring, sampling, reporting, notification, and recordkeeping requirements. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state and local law;

e. Requirements for notifying the POTW in the event of an accidental discharge or slug load as defined in section 23-77;

f. Requirements to implement a plan or other controls for prevention of accidental discharges and/or slug loads as defined in section 23-77 if determined by CMUD to be necessary for the user;

g. Requirements for immediately notifying the POTW of any changes at its facility affecting the potential for spills and other accidental discharges, or slug load as defined in section 23-77. Also see subsections 23-91(e) and (f); and

h. A statement that the permittee is subject to applicable civil and/or criminal penalties for violation of pretreatment standards and requirements and any applicable compliance schedule.

(2) In addition, permits may contain, but are not limited to, the following:

a. Limits on the average and/or daily maximum wastewater flows, based on water used, as defined by CMUD.

b. Limits on average and/or daily maximum rates and/or times of discharge and/or requirements for flow regulations and equalization.

c. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the system.

d. Requirements for installation and maintenance of inspection and sampling facilities.

e. Specifications for monitoring programs, which may include sampling locations, frequency of sampling, number, types and standards for tests and reporting schedules.

f. Compliance schedules for meeting pretreatment standards and requirements;

g. Requirements for submission of periodic self-monitoring or special notification reports.

h. Requirements for maintaining and retaining plans and records relating to wastewater discharges as specified in subsection 23-91(o) and affording CMUD access thereto.

i. Requirements for prior notification and approval by CMUD of any new introduction of wastewater pollutants or of any significant change in the volume or character of the wastewater prior to introduction in the POTW.

j. Limits on the instantaneous, daily and/or monthly average and/or maximum concentration, mass, or other measure of identified wastewater pollutants or properties.

k. Requirements for the installation of pretreatment technology or construction of appropriate containment devices, etc., designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works.

l. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the municipal wastewater system.

m. Requirements for immediate reporting of any instance of noncompliance and for automatic resampling and reporting within 30 days where self-monitoring indicates a violation.

n. Requirements for the prior notification to and approval by CMUD of any change or expansion in the manufacturing/production and/or pretreatment process used by the permittee, which has potential to impact the characteristics or volume of the discharge or the manner in which the discharge is regulated.

o. A statement that compliance with the permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the permit.

p. Other conditions as deemed appropriate by CMUD to ensure compliance with this article and state and federal laws, rules and regulations.

(d) *General and limited conditions.* The permit may contain general and limited conditions as follows:

(1) The director is authorized to establish one or more general conditions for inclusion in all wastewater discharge permits. In addition, the director is authorized to desig-

nate one or more classes of users and may establish one or more limited conditions for inclusion in all wastewater discharge permits issued to users in a designated class.

(2) In designating a class, the director shall identify one or more common factors characterizing the members of such class and determine that at least five permitted users satisfy all of such factors. Before a condition established or class designated pursuant to this subsection may take effect, written notice of such condition or class shall be given to all users holding a permit at the time that such condition or class is proposed, and such users shall be allowed at least 30 days within which to submit written comments to the director. Thereafter, the director may make such condition or class effective without modification or may modify such condition or class without further notice to any person.

(3) For each condition established pursuant to this subsection, the director shall determine the effective date thereof. Thereafter, such general condition shall be included in every wastewater discharge permit, and such limited condition shall be included in every wastewater discharge permit of any user in the designated class associated with such limited condition.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-89. Adjudicatory hearing.

(a) *Persons entitled to hearing.* The following persons are entitled to a hearing pursuant to this section:

(1) An applicant for a wastewater discharge permit or other permit required by this article who is denied a permit or is granted a permit subject to conditions which are unacceptable to the applicant.

(2) A user who is assessed a civil penalty pursuant to subsection 23-95(g).

(3) A user to whom an order is issued pursuant to subsection 23-95(c) or (d).

(b) *Demand for hearing.* A person may demand a hearing in accordance with the following:

(1) Any person entitled to a hearing pursuant to this section shall exercise such right as set forth in subsection (b)(2) of this section. Such demand shall be in writing and shall state separately each issue to be considered and such other matters as are required in this section.

(2) Any person making a demand for a hearing shall deliver the demand to the director within the following applicable time limits after receipt of notice of the action to be heard:

a. Thirty days for the denial of a permit required by this article or for the grant of a permit required by this article subject to conditions which are unacceptable to the applicant.

b. Thirty days of the assessment of a civil penalty.

c. Twenty days for a compliance order issued pursuant to subsection 23-95(c).

d. Ten days for a cease and desist order issued pursuant to subsection 23-95(d).

(c) *Contents of demand.* In the demand for a hearing to consider:

(1) A permit granted subject to unacceptable conditions, the applicant must identify separately each unacceptable condition and every basis for such contention;

(2) A civil penalty assessment, the person to whom such penalty was assessed must state separately each reason why such penalty should not be assessed or, if the user contends that the civil penalty was assessed in an improper amount, each reason why the amount of the penalty is improper; and

(3) The issuance of an order, the person to whom such order is issued must identify

separately each provision of the order which is improper and every basis for such contention.

(d) *Informal review.* Procedures for informal review are as follows:

(1) Any person making a demand for a hearing in accordance with subsection (b)(2) of this section may request that an informal review be undertaken as to all matters set forth in such demand in accordance with subsection (c) of this section. The director shall have the discretion to grant or deny such request or, in the absence of a request, to issue an order requiring a person making a demand for a hearing to participate in an informal review. An informal review shall be undertaken before a designee of the director within 45 days of the receipt of such request or order requiring an informal review and may continue thereafter with the written agreement of the person making a demand for a hearing and the director's designee. Such agreement shall continue until the person making the demand for a hearing or the director's designee gives written notice that the informal review should terminate. Subject to such terms as may be approved by the director, the informal review may resolve one or more of the matters set forth in the demand for a hearing. If such request is granted and all matters set forth in the demand for a hearing are not resolved through such informal review, the director may extend the time for the conduct of the hearing and issuance of a final order or decision up to 60 days after receipt of notice of termination of the informal review by the director or, if such notice is given by the director, within 65 days of issuing such notice. Notice of termination of the informal review shall be in writing and shall be delivered if given:

a. By the person making a demand for a hearing, to the director and the director's designee; and

b. By the director's designee, to the director and the person making the demand for a hearing.

(2) The designee of the director for an informal review shall not be appointed as hearing officer to conduct a hearing on any matter considered, but not resolved, as part of the informal review. No proposal to resolve any matter considered, but not resolved, as part of the informal review shall be considered at the hearing on such matter.

(e) *Conduct of hearing.* Procedures for the conduct of the hearing are as follows:

(1) The hearing shall be conducted by the director and shall be subject to such rules as have been approved by the council or the director as set forth in this subsection. If the demand for a hearing is not made in accordance with this section, the director shall reject the demand, and any right to a hearing shall be terminated. If any person demanding a hearing shall fail to comply with an order of the director or with any rules issued by the director or approved by the council concerning the conduct of the hearing, the director may reject the demand, and any right to a hearing shall be terminated. Within 180 days of the receipt of the written demand for a hearing, the director shall conduct a hearing and issue a final order or decision. The director shall transmit a copy of the final order or decision to the person demanding the hearing by registered or certified mail. No further review of the director's final order or decision will be allowed, except as set forth in section subsection (h) of this section.

(2) The director may submit rules to the council for approval concerning the conduct of the hearing and any other matter associated with the hearing. Such rules may impose requirements in addition to this section. Upon approval by the council, such rules shall be as effective as if set forth in this section. The director shall

make a copy of such rules available for inspection upon the request of any person.

(3) The director is authorized to take any action which is reasonably necessary or convenient in considering a demand for a hearing and in resolving the issues raised therein so long as such action is not contrary to this article, any rules approved by the council or other applicable law.

(4) The director may appoint a hearing officer to conduct any hearing authorized by this section. A hearing officer shall have the same authority to conduct a hearing and reach a decision as is provided to the director, provided that the decision of the hearing officer shall not be final but shall be a recommended decision for consideration by the director. The director may approve such decision without change, reject the decision and require a new or continued hearing, or issue a different or revised decision which is supported by evidence presented at the hearing. The director may refer a recommended decision of a hearing officer to the city manager or his designee. If a referral occurs, the city manager or his designee shall have the same authority to act upon a recommended decision of a hearing officer as is provided to the director. The decision of the director or, for a referral, of the city manager or his designee shall be final. A final order may provide that the action which is the basis for the demand for a hearing is approved without change or may modify such action in any manner that is supported by the evidence presented at the hearing.

(5) The director may provide for any part of the hearing to be recorded by any reasonable means, including, but not limited to, audio and/or video recording, stenographer, or court reporter. A transcript of any hearing, or part thereof, which is recorded need not be prepared unless requested. The original of a requested transcript shall be filed with the director. Each person shall bear the cost of the transcript which the person requests, including any copy thereof.

(f) *Stay of permit conditions pending hearing.* Permit conditions shall be stayed pending the hearing in accordance with the following:

(1) Except as provided in subsection (f)(4) of this section, each condition of a permit which has been included in a demand for a hearing in accordance with this section is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances: such condition is approved or is modified by the director at an adjudicatory hearing, or the applicant and the director agree on the conditions of the permit. This subsection shall not be construed to stay any section of this article or other applicable law.

(2) Upon receipt of a demand for a hearing on a permit granted subject to unacceptable conditions, the director shall identify each provision to which no objection was made, and such provisions shall remain in effect. However, if the director determines that it would be unreasonable for a provision to apply when all surrounding circumstances are considered, the director in his sole discretion may stay such provision until the time set forth in subsection (f)(1) of this section.

(3) If the unacceptable permit is a renewal of an existing permit, each provision of the applicant's existing permit will remain in effect until the time set forth in subsection (f)(1) of this section, provided that such provision from the existing permit does not conflict with any provision of the unacceptable permit which is not stayed. If a conflict occurs, the provision from the unacceptable permit will control.

(4) Any condition of a permit which is unacceptable to an applicant and which is included in a permit pursuant to subsection (e) of this section shall remain in effect and shall not be stayed by subsection (f)(1) of this section.

(g) *Stay of assessment; order.* An assessment may be stayed and an order issued in accordance with the following:

(1) a. Each assessment of a civil penalty which has been included in a demand for a hearing in accordance with this section is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances: the assessment of the civil penalty is approved or is modified by the director at an adjudicatory hearing; or the person who is assessed the civil penalty and the director agree on the assessment.

b. If the assessment of a civil penalty against any person is approved or modified by the director at an adjudicatory hearing, the director may include the following provisions in any order or decision:

1. The person may be required to pay the penalty within ten days or such additional time as the director may specify.

2. If the penalty is not paid in a timely manner, the penalty will be delinquent and water and/or sewer service may be terminated to the person without further notice. If water and/or sewer service is terminated pursuant to a decision authorized by this subsection, the application charges and fees as set forth in section 23-5 must be paid before service will be restored.

(2) Except as provided in subsection 23-95(f) for an emergency suspension, each provision of an order which has been included in a demand for a hearing in accordance with this section is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances: such provision is approved or is modified by the director at an adjudicatory hearing; or the person to whom the order is directed and the director agree on the terms of the order. This subsection shall not be construed to stay any section of this article or other applicable law.

(3) Upon receipt of a demand for a hearing on an order, the director shall identify each provision to which no objection was made, and such provision shall remain in effect. However, if the director determines that it would be unreasonable for such provision to apply when all surrounding circumstances are considered, the director in his sole discretion may stay such provision until the time set forth in subsection (g)(2) of this section.

(h) *Judicial review.* Any person against whom a final order or decision of the director is made pursuant to the hearing conducted under this section may seek judicial review of the order or decision by filing a written petition within 30 days after receipt of notice of the order or decision, but not thereafter, with the superior court of the county. If not previously requested, the person shall request in writing that a transcript be prepared for every part of the hearing which was recorded. The request shall be made at or before the time that the petition is filed. A copy of the petition shall be served on the city in the manner required by law. Within 30 days after service of a copy of the petition upon the city or such other time as may be ordered by the court, the city shall prepare and transmit to the court the original or a certified copy of the official record of the hearing as set forth in this subsection. The official record of the hearing shall consist of the following:

(1) All notices, motions and other similar documents;

(2) All documentary and tangible evidence tendered at the hearing; and

(3) The final order or decision.

A transcript of each part of the hearing that was recorded shall be included in the official record as an exhibit, if available at the time the remaining portion of the official record is transmitted to the court. If the transcript is not available at that time, it shall be transmitted to the court as soon as reasonably possible after the

transcript has been prepared. If testimony is taken and not recorded, a narrative summary of any testimony taken shall be prepared and transmitted to the court as an exhibit to the official record.

(i) *Petition for remission of civil penalties.* The director may consider petitions for remission of civil penalties assessed pursuant to this article. A petition for remission shall be in writing and shall be signed by the person against whom the civil penalty was assessed. The petition shall include a waiver of any and all rights of the petitioner to an adjudicatory hearing and judicial review of the assessment, and a stipulation that the facts are correct as set forth in the documents assessing the civil penalty. The decision of the director on the petition shall be final and shall not be subject to further administrative or judicial review. In determining whether a petition for remission will be approved, the director shall consider recommendations and the following factors:

(1) Whether one or more of the factors concerning the assessment of a civil penalty in subsection 23-95(h)(3) were wrongly applied to the detriment of the petitioner.

(2) Whether the petitioner promptly abated continuing environmental damage resulting from the violation giving rise to the assessment.

(3) Whether the violation giving rise to the assessment was inadvertent or the result of an accident.

(4) Whether the petitioner has been assessed civil penalties for any prior violations pursuant to this article or by any state or federal authority enforcing substantially similar provisions.

(5) Whether payment of the civil penalty by the petitioner will prevent payment for any remaining, necessary remedial action.

(j) *Additional information on petition for remission of civil penalties.* After submitting a petition for remission, the petitioner shall provide such additional information and records as may be reasonably necessary or convenient to the director's consideration of the petition. The director may remit the entire amount of a civil penalty only when the petitioner has not been assessed civil penalties for any prior violation of this article or by a state or federal authority enforcing substantially similar provisions, and the payment of the civil penalty will prevent payment of any remaining, necessary remedial action.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-90. Permit duration, modification, transfer, reissuance.

(a) *Permit duration.* Permits required under this article shall be issued for a specified time period not to exceed five years. A permit may be issued for a period of less than one year or may be stated to expire on a specific date.

(b) *Permit modification.* CMUD may modify the terms and conditions of the permit as limitations or requirements are modified or other just cause exists. Any changes or new conditions in the permit shall include a reasonable time schedule for compliance.

(1) Modifications allowed for include, but are not limited to, the following reasons:

a. Modifications of the monitoring program contained in the permit;

b. Changes in the ownership of the discharge when no other change in the permit is indicated;

c. A single modification of any compliance schedule not in excess of four months;

d. Modification of compliance schedules (construction schedules) in permits for new sources where the new source will not begin to discharge until the control facilities are operational;

e. To incorporate any new or revised federal, state or local pretreatment standards or requirements;

f. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of wastewater discharge permit issuance;

g. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

h. Information indicating that the permitted discharge poses a threat to the POTW, the POTW personnel, or the receiving waters;

i. Violation of any terms or conditions of the wastewater discharge permit;

j. Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

k. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR 403.13;

l. To correct typographical or other errors in the wastewater discharge permit; or

m. To reflect a transfer of the facility ownership or operation to a new owner or operator.

A request for a modification by the permittee shall constitute a waiver of the 60-day notice required by G.S. 143-215.1(b) for modifications.

(2) Within nine months of the promulgation of a national categorical pretreatment standard, the wastewater discharge permits of users subject to such standard shall be revised to require compliance with such standard within the timeframe prescribed by such standard. Where a user, subject to a national categorical pretreatment standard, has not previously submitted an application for a wastewater discharge or does not currently have an SIU permit, the user shall apply within 180 days after the promulgation of such standard.

(c) *Assignment or sale of wastewater discharge permits.* Wastewater discharge permits are issued to a specific user for a specific operation. A permittee may not assign or sell a permit, or any right or obligation in a permit, to another user or person.

(d) *Transfer of wastewater discharge permits.* Wastewater discharge permits may be transferred to a new owner or operator only upon the permittee's request of CMUD for a transfer and upon CMUD's approval of the wastewater discharge permit transfer. Within five business days of the date of facility transfer, authorized representatives of the permittee and the new owner or operator must give joint, written notice to CMUD of the date of transfer. If the transfer has been approved, CMUD shall take such steps as are necessary to document the transfer of the permit. The request to CMUD to transfer the permit must include a written certification in a form satisfactory to the director by the new owner or operator which:

(1) States that, without prior notification to and approval by CMUD, the new owner and/or operator agree not to make any change or expansion in the manufacturing/production and/or pretreatment process used by the permittee, which has potential to impact the characteristics or volume of the discharge or the manner in which the discharge is regulated.

(2) Identifies the specific date on which the proposed transfer is to occur; and

(3) Acknowledges and accepts full responsibility for complying with all terms and provisions of the wastewater discharge permit to be transferred. Failure to comply fully with this subsection renders the wastewater discharge permit void as of the date of facility transfer.

(e) *Permit reissuance.* An SIU shall apply for permit reissuance by delivering to CMUD a complete permit application in accordance with section 23-87 a minimum of 180 days prior to the expiration date of the existing permit or within such different period of time as set forth in the existing permit.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-91. Reporting requirements.

(a) *Categorical baseline monitoring reports.* Categorical baseline monitoring reports are required in accordance with the following:

(1) *Submission generally.* Within 180 days after the effective date of a categorical

standard, or 180 days after a final decision on a categorical determination under 40 CFR 403.6(a)(4), whichever is later, existing industrial users who are subject to the standard and are currently discharging to or scheduled to discharge to the POTW shall submit to CMUD a report which contains the information listed in subsection (a)(2) of this section. At least 90 days prior to commencement of their discharge, new sources, and new sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall deliver to CMUD a report which contains the information listed in subsection (a)(2) of this section. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

(2) *Information required.* Users described in subsection (a)(1) of this section shall deliver to CMUD the following information:

a. *Identifying information.* The name and address of the facility, including the name of the operator and owner.

b. *Environmental permits.* A list of any environmental control permits held by or for the facility.

c. *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

d. *Flow measurement.* Information showing the measured daily and maximum daily flow, in gallons per day, to the POTW for the regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 CFR 403.6(e).

e. *Measurement of pollutants.* Measurement of pollutants as follows:

1. The categorical pretreatment standards applicable to each regulated process.

2. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by CMUD, of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported. All samples collected shall be representative of daily operations, with supporting documentation submitted that establishes the samples as representative, and shall be analyzed in accordance with procedures set out in subsection (1) of this section.

3. Sampling must be performed in accordance with procedures set out in subsection (m). Baseline monitoring reports and 90-day compliance reports shall require four grab samples unless historical sampling data acceptable to CMUD is presented prior to report submission. Non-flow proportional or grab samples require the submission of documentation that establishes the samples as representative of the daily operation.

f. *Certification.* A statement, reviewed by the user's current authorized representative as defined in section 23-77 and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards and requirements.

g. *Compliance schedule.* If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by

which the user will provide such additional pretreatment and/or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this subsection must meet the requirements set out in subsection 23-91(b).

h. *Signature and certification.* All baseline monitoring reports must be signed and certified in accordance with subsection 23-87(d).

(b) *Compliance schedule progress reports.* The following conditions shall apply to all industrial users, who are required by CMUD to submit compliance schedules in conjunction with their baseline monitoring reports, interim permit limits or enforcement orders:

(1) The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards. Such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation;

(2) No increment in subsection (b)(1) of this section shall exceed nine months;

(3) The user shall deliver a progress report to CMUD no later than 14 days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule; and

(4) In no event shall more than nine months elapse between such progress reports to CMUD.

(c) *Report on compliance with categorical pretreatment standard deadline.* Within 90 days following the date for final compliance with the applicable categorical standards, or for a new source following commencement of the introduction of wastewater into the POTW, any industrial user subject to such pretreatment standards and requirements must deliver to CMUD a report containing the information required by subsections (a)(2)d—f of this section. For users subject to equivalent mass or concentration limits established in accordance with the procedures in 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production, or other measure of operation, this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with subsection 23-87(d).

(d) *Periodic compliance reports.* Periodic compliance reports shall be submitted in accordance with the following:

(1) All SIUs shall, at a frequency determined by CMUD, but in no case less than once every six months, deliver a report to CMUD indicating the nature and concentration of pollutants in the discharge limited by pretreatment standards and the applicable measured or estimated average and maximum daily flows for the reporting period. Sampling and analysis must be performed in accordance with procedures set out in subsections (i) and (m). All periodic compliance reports must be signed and certified in accordance with subsection 23-87(d).

(2) All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facilities in good working order shall not be grounds for the user to claim the sample results are unrepresentative of its discharge.

(3) If a user subject to the reporting requirements in this section monitors any pollutant in samples collected at the monitoring point more frequently than required by CMUD, using procedures prescribed in subsections (i) and (m) of this section, the results of this monitoring shall be delivered to CMUD by the 20th of the month following the month in which the extra samples were collected.

(e) *Reports of changed conditions.* Each industrial user must notify CMUD of any planned significant changes to the IU's operations or system which might alter the nature, quality, or volume of its wastewater at least 90 days before the change. The industrial user shall not begin the changes until receiving written approval from CMUD Failure of CMUD to respond does not relieve the IU from complying with this article. See subsection (f) for other reporting requirements.

(1) CMUD may require the IU to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under section 23-87.

(2) CMUD may issue a wastewater discharge permit under section 23-88 or modify an existing wastewater discharge permit under subsection 23-90(b) in response to changed conditions or anticipated changed conditions.

(3) For purposes of this requirement, significant changes include, but are not limited to, the following:

a. For permitted IUs, any change required to be reported under the wastewater discharge permit; and

b. For nonpermitted IUs, flow and/or pollutant increases or decreases of 20 percent or greater and/or the discharge of any pollutants not previously reported to the control authority and/or municipality, new or changed product lines, new or changed manufacturing processes and/or chemicals; or new or changed customers.

(4) Any IU filing a request for determination under section 23-87 may not be required to file such a report under this section.

(5) A report filed under this section does not relieve the IU from any requirement under section 23-87.

(f) *Reports of potential problems.* Reports of potential problems are required in accordance with the following:

(1) For any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, or a slug load as defined in section 23-77, that may cause potential problems for the POTW, the industrial user shall immediately telephone and notify CMUD and the POTW treatment plant of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the IU.

(2) Within five days following such discharge, the IU shall, unless waived by CMUD, deliver to CMUD a detailed written report describing the cause of the discharge and the measures to be taken by the IU to prevent similar future occurrences. Such notification shall not relieve the IU of any expenses, loss, damage, or other liability which may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the IU of any fines, penalties, or other liability which may be imposed pursuant to this article.

(3) A notice shall be permanently posted on the IU's bulletin board or other prominent place advising employees whom to call if a discharge described in subsection (f)(1) of this section occurs. Employers shall en-

sure that all employees, who may cause such a discharge to occur, are advised on the emergency notification procedure.

(4) CMUD shall evaluate whether the IU needs a plan to prevent the recurrence of the discharge. Such a plan shall address, at a minimum, the requirements set forth in subsections 23-85(b)(1) through (4).

(5) All SIUs are required to notify the POTW immediately of any changes at its facility affecting the potential for spills and other accidental discharge of a non-routine, episodic nature, a non-customary batch discharge, or a slug load as defined in section 23-77.

(g) *Forms.* CMUD may establish such forms as CMUD determines to be appropriate and require the use of such forms in the submission of any report, application, request, or other information contemplated by this article. Failure to use the established form for the submission of a report, application, request, or other information may result in the rejection of the submission.

(h) *Industrial waste survey.* An industrial waste survey shall be conducted in accordance with the following:

(1) At a frequency established by CMUD, an industrial waste survey that identifies industrial users and characterizes their discharge of wastewater will be conducted. Each user included in the survey is required to respond with complete and accurate information on the specific schedule.

(2) The survey results may be used to establish an industrial user inventory and to modify or issue any applicable wastewater discharge permit.

(3) Failure to respond to the survey completely and accurately may result in any enforcement action that CMUD may determine to be appropriate.

(i) *Other reports from users.* All users shall provide such reports to CMUD as CMUD may require. All users classified as non-significant categorical industrial users under section 23-77 shall provide appropriate reports to CMUD as CMUD may require. At a minimum this shall include the annual certification of continuing to meet the non-significant categorical industrial user criteria as required under 40 CFR 403.12(g).

(j) *Report of violation/repeat sampling and reporting.* If sampling performed by a user indicates a violation of this article and/or applicable wastewater discharge permit, the user must report the violation to CMUD within the 24 hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the report analysis to CMUD within the 30 days after becoming aware of the violation.

(k) *Notice of discharge of hazardous waste.* Notice of the discharge of hazardous waste shall be given as follows:

(1) Any user who commences the discharge of hazardous waste shall notify CMUD, the Environmental Protection Agency Regional Waste Management Division Director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR 261, the Environmental Protection Agency hazardous waste number, and the type of discharge (continuous, batch or other). If the user discharges more than 100 kilograms of such waste per calendar month to the POTW, the notification shall also contain the following information to the extent such information is known and readily available to the user:

a. An identification of the hazardous waste contained in the wastes;

b. An estimation of the mass and concentration of such constituents contained in the wastes;

c. An estimation of the mass of constituents in the wastestream expected to be discharged during the calendar month; and

d. An estimation of the mass of constituents in the waste stream expected to be discharged during the following 12 months.

All notifications must take place no later than 90 days prior to the proposed discharge date. The user shall not begin the discharge until receiving written approval from CMUD. Any notification under this subsection need be submitted only once for each hazardous waste discharge. However, notification of changed conditions must be submitted under subsection (e) of this section. The notification requirement in this subsection does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of this article.

(2) Users are exempt from the requirements of subsection (k)(1) of this section during a calendar month in which they discharge no more than 15 kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than 15 kilograms of nonacute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e) requires a one-time notification. Subsequent months during which the user discharges more than such quantities of any hazardous waste do not require additional notifications.

(3) If any new regulations are included under Section 3001 of the Resource Conservation and Recovery Act identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify CMUD, the Environmental Protection Agency Regional Waste Management Waste Division Director, and the state hazardous waste authorities of the discharge of such substance within 90 days of the effective date of such regulations.

(4) For any notification made under this subsection, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

(5) This subsection (k) does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued under this article, or any applicable federal or state law.

(l) *Analytical requirements.* All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed by a laboratory certified by the state to perform the wastewater analyses in accordance with the techniques prescribed in 40 CFR 136, unless otherwise specified in an applicable categorical pretreatment standard or unless otherwise performed in accordance with procedures approved by the Environmental Protection Agency and CMUD. If 40 CFR 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by the Environmental Protection Agency and CMUD.

(m) *Sample collection.* Sample collection shall be conducted in accordance with the following:

(1) Except as indicated in subsection (m)(2), the user must collect wastewater samples using flow proportional composite collection techniques. Composite samples must have individual aliquots collected at least hourly. CMUD shall specify the terms under which other composite collection techniques may be used. In addition, CMUD may require grab samples be collected to show compliance with daily maximum discharge limits.

(2) Samples for oil and grease, temperature, pH, cyanide, total phenols (Environmental Protection Agency Method Number 420), sulfides, and volatile organic compounds must be obtained using grab collection techniques. Baseline monitoring reports and 90-day compliance reports shall require four grab samples unless historical sampling data acceptable to CMUD is presented prior to report submission. Non-flow proportional or grab

samples require the submission of documentation that establishes the samples as representative of the daily operation.

(n) *Timing.* Written reports will not be deemed to have been submitted until received by CMUD.

(o) *Recordkeeping.* Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article and any additional records of information obtained to monitoring activities undertaken by the user independent of such requirements. Records of self-monitoring activities required by this article, the wastewater discharge permit and/or other documents issued by or entered into with CMUD or the city shall conform to 40 CFR 403.12(o)(1) and CMUD-established procedures for reporting requirements. Any information required shall conform to subsection (g) of this section. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user's indirect discharge to the POTW unless otherwise ordered by the court in which the litigation is pending, or where the user has been notified of a longer retention period by CMUD.

(p) *Electronic reporting.* CMUD may develop procedures for receipt of electronic reports for any reporting requirements of this article. Such procedures shall comply with 40 CFR Part 3. These procedures shall be enforceable under sections 23-95 and 23-96.

(q) *Special reporting requirements for industrial users in satellite POTWs.* In the case of an industrial user located in a satellite POTW organization's jurisdiction, all information required to be reported to the industrial user's pretreatment program control authority by the section shall also be reported to CMUD upon the request of CMUD.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-92. Authority to inspect and sample.

(a) CMUD personnel and other authorized employees of the city, bearing proper identification, will inspect the facilities of any user to ascertain whether the purpose of this article is being met and all requirements are being complied with. Persons or occupants of premises where wastewater is created or discharged shall allow CMUD, the approval authority and the Environmental Protection Agency or their representatives ready access at all times to all parts of the premises to perform inspection, sampling, records examination and copying or other duties. CMUD, the approval authority and the Environmental Protection Agency shall have the right to set up on the user's property such devices as are necessary to conduct sampling, inspection, compliance monitoring and/or metering operations. Where a user has security measures in force which would require identification and clearance before entry into his premises, the user shall make arrangements with his security guards so that, upon presentation of identification (identification being defined as the pieces of identification supplied by CMUD, the state or the Environmental Protection Agency to their employees), personnel from CMUD, the approval authority and the Environmental Protection Agency will be permitted to enter and perform their specific responsibilities without delay. Denial of CMUD's, the approval authority's or the Environmental Protection Agency's access to the user's premises or portions thereof shall be a violation of this article. Denial of access may also occur if a user fails to provide without unreasonable delay such facilities, equipment, or devices as are reasonably necessary to permit personnel of CMUD, the approval authority or the Environmental Protection Agency from performing their duties in a safe manner. Unreasonable delays may constitute denial of access. Any delay of more than five minutes may be considered unreasonable.

(b) At all times, CMUD shall retain the authority to inspect the POTW and to sample and analyze wastewater in the POTW for any purpose.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-93. Search warrants.

To the extent permitted by law, CMUD may seek the issuance of a search warrant to determine compliance with this article.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-94. Confidential information.

(a) To the extent permitted by applicable law and except as otherwise provided in this section, information and data on a user obtained from reports, questionnaires, permit applications, permits and monitoring programs and from inspections shall be available to the public or other government agencies without restriction, unless the user specifically requests, and is able to demonstrate to the satisfaction of CMUD, that the release of such information would divulge information, processes or methods of production entitled to protection as trade secrets of the user. Any such request must be asserted at the time of submission of the information or data.

(b) To the extent permitted by applicable law, when requested by a person furnishing a report, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available upon request to governmental agencies for uses related to this article, the National Pollution Discharge Elimination System (NPDES) permit, state disposal system permit and/or the pretreatment programs; provided, however, that such portions of a report shall be available for use by the state or any state agency in judicial review or enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics will not be recognized as confidential information.

(c) Documents which are not public records and the information set forth therein may be withheld and released only as provided by applicable law.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-95. Administrative enforcement remedies.

(a) Notice of violation. Whenever CMUD finds that any user has violated or is violating any section of this article, the wastewater discharge permit, or any other pretreatment requirement or standard, CMUD may serve the user with a written notice stating the nature of the violation. CMUD may notify the user to submit a written explanation of the violation and a plan for the satisfactory correction thereof, within 30 days from the date of the notice. Submission of the plan does not relieve the user of liability for any violations occurring before or after receipt of the notice of violation (NOV). Nothing in this section may be construed to require CMUD to issue an NOV before taking any action, including emergency actions or any other enforcement actions.

(b) Compliance agreements. CMUD may enter into an agreement with the user responsible for noncompliance with any section of this article, the wastewater permit or any other pretreatment requirement or standard. Such an agreement will include specific actions to be taken by the user to correct the noncompliance within a time period also specified by the agreement. A compliance agreement shall have the same force and effect as a compliance order issued pursuant to subsection (c) of this section.

(c) Compliance orders. If CMUD finds that a user has violated or continues to violate any section of this article; a compliance agreement issued pursuant to this article; a wastewater discharge permit, pretreatment requirement or standard, or order issued pursuant to this article; or any other provision of applicable law, CMUD may issue an order requiring such person to do any one or more of the following:

(1) Comply with the sections of this article; any applicable permit, pretreatment requirement or standard; or order issued pursuant to this article or other provision of applicable law in accordance with a time schedule set forth in the order.

(2) Take appropriate remedial or preventive actions for a continuing or threatened violation of any section of this article; a wastewater discharge permit, pretreatment requirement or standard, or order issued pursuant to this article; or any other provision of applicable law.

(3) Pay a civil penalty for violating any section of this article; a wastewater discharge permit, compliance agreement, pretreatment requirement or standard; or order issued pursuant to this article.

(d) Cease and desist orders. Cease and desist orders may be issued as follows:

(1) If CMUD finds that a user has violated or continues to violate any section of this article; a wastewater discharge permit, pretreatment requirement or standard or order issued pursuant to this article; or any other provision of applicable law, CMUD may issue an order requiring such user to cease and desist all such violations and direct such person to perform any one or more of the following:

a. Comply immediately with all sections of this article, a wastewater discharge permit or order issued pursuant to this article or other applicable law.

b. Take appropriate remedial or preventive actions for a continuing or threatened violation of any section of this article; a compliance agreement issued pursuant to this article; a wastewater discharge permit, pretreatment requirement or standard, or order issued pursuant to this article; or any other provision of applicable law.

c. Discontinue all or any portion of such user's contribution or introduction of wastewater into the POTW unless adequate treatment facilities, devices or other related appurtenances are installed and operated properly within a specified time period.

d. Disconnect all or any portion of the facilities by which such user introduces or contributes wastewater into the POTW unless adequate treatment facilities, devices or other related appurtenances are installed and operated properly within a specified time period.

(2) In addition to or in lieu of the matters set forth in subsection (d)(1) of this section, CMUD may include in such order one or more of the following:

a. The removal of all or any portion of any service connection by which such user introduces or contributes wastewater into the POTW.

b. The removal of all or any portion of any service connection by which such user receives water services from the city.

c. The termination of any wastewater discharge permit issued to such user pursuant to this article.

d. The payment of a civil penalty for violating any section of this article; a permit, pretreatment requirement or standard, or compliance agreement; or order issued pursuant to this article.

(e) Termination of permit or permission to discharge. CMUD may revoke a wastewater discharge permit or permission to discharge for good cause, including, but not limited to, the following reasons:

(1) Failure to report accurately the wastewater constituents and characteristics of its discharge;

(2) Failure to report significant changes in operations or wastewater constituents and characteristics;

(3) Refusal of reasonable access to the user's premises for the purpose of inspection or monitoring;

(4) Violation of any condition of the permit or permission to discharge, conditions of this article, or any applicable state and/or federal regulations;

(5) Failure to submit any required report; or

(6) Violation of any prohibited discharge standard under section 23-79.

(f) Suspension. Procedures for suspension of the wastewater treatment service and/or wastewater discharge permit are as follows:

(1) CMUD may order the suspension of the wastewater treatment service and/or wastewater discharge permit of any user when such suspension is necessary in order to stop an actual or threatened discharge which will or may present imminent or substantial endangerment to the health or welfare of any person or the

environment, cause interference, or cause the city to violate any condition of its NPDES or nondischarge permits. The suspension shall be effective in accordance with the provisions of the order of suspension upon service on the user responsible for such discharge. The order shall identify each pollutant in the discharge which is the basis for the suspension and the potential effect each pollutant, either singly or in combination with one or more pollutants, will or may have upon any person, the environment, the POTW and/or NPDES or nondischarge permit of the city. The order shall also set a date for a hearing to be held in accordance with subsection (f)(3) of this section.

(2) Any user, when served with an order that its wastewater treatment services and/or any wastewater discharge permit is suspended, shall immediately stop or eliminate the introduction or contribution of wastewater into the POTW. The user shall prepare a written response to such an order and shall serve such statement on CMUD within five calendar days after the service of the order or two business days prior to the hearing, whichever date is earlier. The statement shall identify every provision of the order which the user believes to be inaccurate; set forth a complete basis for such belief; describe in detail the circumstances which resulted in the discharge described in the order of suspension; and describe such measures as have been taken or are proposed by the user to prevent a future, similar discharge. Failure to prepare and serve the statement in a timely manner shall constitute a waiver by the user of its right to a hearing.

(3) A hearing shall be held as soon as reasonably possible and in no event later than 15 calendar days of service of the order unless waived by the user. The hearing shall be conducted in the manner set forth in section 23-89, provided that such changes shall be made by the director in the conduct of the hearing as are reasonably necessary to permit an expedited hearing. The director shall determine whether the suspension shall be lifted or the user's permit terminated. Such decision shall be issued in writing as soon as possible and in any event within two business days after the conclusion of the hearing.

(4) The director may take such action as is reasonably necessary or convenient to prevent the continued introduction or contribution of wastewater into the POTW by the user, including, but not limited to, the immediate severance of the sewer connection between the user's facilities and the POTW.

(5) Nothing in the section may be construed to require that a hearing be conducted prior to any emergency suspension authorized by this section or limit the authority of CMUD under this section as a result of one or more other actions taken by CMUD to secure the user's compliance with this article and/or permit or order issued pursuant to this article; the pendency of a demand by the user for a hearing pursuant to section 23-89; or the pendency of judicial review.

(6) For the purposes of this section, the term "calendar days" refers to and includes any Saturday, Sunday, or holiday. For purposes of this section, the term "business day" refers to and includes any day which CMUD is open to the public to conduct business.

(g) Civil penalties. Civil penalties may be imposed in accordance with the following:

(1) Any user that violates, fails to comply, or continues to violate any section of this article, a wastewater discharge permit or order issued under this article, or any other pretreatment standard or requirement shall be liable to CMUD for a maximum civil penalty of $25,000.00 per violation per day for as long as the violation continues. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. For a monthly or other long-term average discharge limit,

penalties shall accrue for each day during the period of the violation. Civil penalty assessment shall be based on the following:

a. Penalties between $10,000.00 and $25,000.00 per day per violation may be assessed against a violator only if:

1. For any class of violation, only if a civil penalty has been imposed against the violator within the five years preceding the violation, or

2. In the case of failure to file, submit, or make available, as the case may be, any documents, data, or reports required by this ordinance, or the orders, rules, regulations and permits issued hereunder, only if the director determines that the violation was intentional and a civil penalty has been imposed against the violator within the five years preceding the violation.

b. All penalties shall take into account relevant circumstances as outlined in subsection (g)(2).

(2) In determining the amount of the civil penalty, CMUD shall take into account all relevant circumstances, including, but not limited to, the following:

a. The extent of harm caused by the violation;

b. The magnitude and duration of the violation;

c. Any economic benefit gained through the user's violation;

d. Corrective actions by the user;

e. The compliance history of the user;

f. The cost of enforcement to CMUD;

g. Whether the violation was committed willfully or intentionally; and

h. Any other factor as justice requires.

(3) The assessment of civil penalties shall not be a bar against, or a prerequisite for, taking any other action against a user.

(4) Appeals of civil penalties assessed in accordance with this section shall be provided in section 23-89.

(5) Such assessments may be added to the user's next scheduled sewer service charges, and CMUD shall have such remedies for collection of such assessments as it has for collection of other charges.

(h) In addition to any civil penalties that CMUD may impose against a user in accordance with subsection (g), CMUD may assess against and recover from a responsible user any repair, restoration or maintenance cost and any damage incurred by anyone for which the city is liable, if such repair, restoration or maintenance cost or damage arises in any manner from the responsible user's violation(s). For purposes of this subsection, repair or maintenance includes, without limitation, the removal of any accumulation of any pollutant from the POTW that the user's violation(s) has caused or contributed to. Such assessments may be added to the user's next scheduled sewer service charges, and CMUD shall have such remedies for collection of such assessments as it has for collection of other charges.

(i) Any user that violates, fails to comply with, or continues to violate any section of this article, a wastewater discharge permit or order issued under this article, or any other pretreatment standard or requirement shall undertake such sampling, monitoring and analysis of its discharge and to report the results thereof in accordance with section 23-91 as CMUD may require. (Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-96. Other available remedies.

(a) *Criminal violations.* CMUD shall assist any federal or state agency, office or authority responsible for criminal investigations or prosecutions for violation of any section of this article or other federal or state law concerning the discharge of wastewater or other substances into the POTW or the waters of the state. CMUD may request any appropriate federal or state agency, office or authority to undertake an investigation

or prosecution of any person for any violation of this article or other federal or state law concerning the discharge of wastewater or other substances into the POTW or the waters of the state. The district attorney for the applicable judicial district may, at the request of the city, prosecute noncompliant users who violate the provisions of G.S. 143-215.6B. [Note: Under North Carolina law, it is a crime to negligently violate any term, condition, or requirement of a pretreatment permit, or negligently fail to apply for a pretreatment permit, issued by local governments (G.S. 143-215.6B(f)), to knowingly and willfully violate any term, condition, or requirement of a pretreatment permit, or knowingly and willfully fail to apply for a pretreatment permit, issued by local governments (G.S. 143-215.6B(g)), to knowingly violate any term, condition, or requirement of a pretreatment permit issued by local governments, or knowingly fail to apply for a pretreatment permit, knowing at the time that a person is placed in imminent danger of death or serious bodily injury, (G.S. 143-215.6B(h)), and to falsify information required under Article 21 of Chapter 143 of the General Statutes (G.S. 143-215.6B(i)).]

(b) *Annual publication of significant noncompliance.* At least annually, CMUD shall publish in a newspaper of general circulation that provides meaningful public notice within the jurisdiction(s) served by the POTW, a list of those industrial users which were found to be in significant noncompliance, also referred to as reportable noncompliance, in 15A NCAC 2H .0903(b)(10), with applicable pretreatment standards and requirements, during the previous 12 months.

(c) *Civil relief.* If any person discharges sewage, industrial wastes or other wastewater into the POTW contrary to this article, pretreatment requirements or standards, any order of CMUD, or violates its wastewater discharge permit, an action may be commenced in the name of the city for appropriate legal and/or equitable relief in the appropriate division of the state's general court of justice. This shall include but is not limited to:

(1) *Injunctive relief.* Whenever a user is in violation of the provisions of this article or an order or permit issued hereunder, the director, through the city attorney, may petition the superior court of justice for the issuance of a restraining order or a preliminary and permanent injunction which restrains or compels the activities in question.

(2) *Water supply severance.* Whenever an industrial user is in violation of the provisions of this article or an order or permit issued hereunder, water service to the industrial user may be severed and service will only recommence, at the user's expense, after it has satisfactorily demonstrated ability to comply.

(3) *Public nuisances.* Any violation of the prohibitions or effluent limitations of this article or of a permit or order issued hereunder, is hereby declared a public nuisance and shall be corrected or abated as directed by the director. Any person(s) creating a public nuisance shall be subject to the provisions of the appropriate ordinances of the city governing such nuisances, including reimbursing the POTW for any costs incurred in removing, abating or remedying said nuisance.

(d) *Remedies nonexclusive.* The remedies provided in this section are not exclusive. CMUD may take one, all or any combination of these actions against any person in violation of this article. It is anticipated that enforcement for pretreatment violations will generally be in accordance with the enforcement response plan of CMUD. However, in no instance may such a plan be construed to limit the authority of CMUD to take any action which CMUD determines to be appropriate for a violation of any section of this article, a compliance agreement issued pursuant to this article, and/or a wastewater discharge permit or order issued pursuant to this article. Further, CMUD is empowered to take more than one enforcement action against any person in violation of this article.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-97. Reconnection of utility service after termination.

(a) Any person applying for water or sewer service after the termination of water or sewer service pursuant to this article shall not receive such service without the written approval of CMUD.

(b) CMUD shall approve such application under the following conditions:

(1) Such person is not delinquent in paying any water or sewer bill.

(2) Full payment has been made for all costs incurred by CMUD in removing, severing or otherwise discontinuing water or sewer service to such person.

(3) Full payment has been made for all fees and costs associated with providing the requested service and installing the necessary facilities.

(4) Full payment has been made for all civil penalties assessed against such person pursuant to this article and for all damages to the POTW which such person is required to pay by this article.

If such person is required to have a wastewater discharge permit before discharging wastewater into the POTW, such person must apply for and accept a wastewater discharge permit containing such provisions as CMUD determines to be reasonably necessary. Section 23-89 will not apply to the denial of a permit to such person or to granting a permit subject to conditions unacceptable to such person.

(c) This section shall apply to every application for water or sewer service by any person subject to subsection (a) of this section made within two years after water or sewer service has been terminated pursuant to this article.

(d) Any person applying for a connection to provide water or sewer service to all or any portion of the property served by a connection removed pursuant to this article shall be required to pay all fees and charges for securing a new connection, without exception. Any fee or charge paid prior to the removal of the service connection shall be forfeited in its entirety and shall have no continued effect.
(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-98. Affirmative defenses to discharge violations.

(a) *Upset.* An affirmative defense of upset may be used for noncompliance with this article in accordance with the following:

(1) An upset shall constitute an affirmative defense to an action brought for noncompliance with pretreatment standards if the requirements of subsection (a)(2) of this section are met.

(2) A user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence, that:

a. An upset occurred and the user can identify the cause of the upset;

b. The facility was at the time being operated in a prudent and workmanlike manner and in compliance with reasonable operation and maintenance procedures established for the facility; and

c. The user has submitted the following information to CMUD within 24 hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five days):

1. A description of the indirect discharge and cause of noncompliance;

2. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

3. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

(3) In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

(4) Users will have the opportunity for a judicial determination of any claim of

upset only in an enforcement action brought for noncompliance with pretreatment standards.

(5) Users shall control production of all discharges to the extent necessary to maintain compliance with pretreatment standards upon reduction, loss, or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

(b) *Prohibited discharge standards defense.* A user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in subsections 23-79(a) or the specific prohibitions in subsections 23-79(b)(2), (4), (8), (9), and (16) of this article, if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

(1) A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

(2) No local limit exists, but the discharge did not change significantly in nature or constituents from the user's prior discharge when the city was regularly in compliance with its NPDES permit.

(c) *Bypass.*

(1) Bypass is prohibited, and CMUD may take an enforcement action against a user for a bypass, unless authorized by CMUD pursuant to subsection (c)(4) of this section or unless:

a. Bypass was unavoidable to prevent loss of life, serious personal injury, or severe property damage;

b. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

c. The user submitted notices as required under subsection (c)(3) of this section.

(2) If a user knows in advance of the need for a bypass, it shall submit prior notice to CMUD, at least ten days before the date of the bypass, if possible.

(3) A user shall submit oral notice to CMUD of an unanticipated bypass that exceeds applicable pretreatment standards within 24 hours from the time it becomes aware of the bypass. A written submission shall also be provided within five days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. CMUD may waive the written report on a case-by-case basis if the oral report has been received within 24 hours.

(4) CMUD may approve an anticipated bypass, subject to such conditions as CMUD determines to be appropriate, after considering its adverse effects, if CMUD determines that the anticipated bypass will meet:

a. All conditions set forth in subsections (c)(1)a—c of this section; or

b. All applicable pretreatment standards and requirements and the

anticipated bypass is necessary to allow essential maintenance to ensure efficient operation.

(5) Notwithstanding subsections (c)(1)—(4) of this section, the user shall be liable at all times and under all circumstances for injury to any person and damage to any property caused in whole or in part by the bypass. For purposes of this subsection, the term "person" includes, but is not limited to, the POTW personnel, and the term "property" refers to, but is not limited to, the POTW.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Sec. 23-99. Damage, destruction of and tampering with equipment or materials.

No person shall damage or destroy any equipment or materials used to ensure compliance with this chapter. The user shall be responsible for the safety of such equipment and materials placed on the user's premises and may be held liable for any such damage or destruction.

No person shall tamper or interfere with or falsify or render inaccurate any equipment or materials used to ensure compliance with this chapter, including, but not limited to, monitoring and sampling equipment at or near a user's premises.

(Ord. No. 5230, § 1(Exh. A), 10-28-2013)

Secs. 23-100—23-125. Reserved.

ARTICLE IV. WATER

Sec. 23-126. Water system operation.

The water treatment facilities and water distribution system shall be operated as, and considered to be, a single, integrated system. Any revenue collected by Charlotte Water shall be sufficient to meet: (i) the annual principal and interest payable and any associated fees on the debt incurred for construction for the water system and associated infrastructure; and (ii) the amount necessary for repairs, for fire protection, maintenance and operation of the system.

(Code 1985, § 23-80; Ord. No. 464, § 1, 1-23-2023)

Sec. 23-127. Application for water service.

Water will be introduced into premises abutting on streets having water mains upon application being made by the owner or lessee or the authorized agent of the property to be benefitted and upon compliance with all requirements of CMU.

(Code 1985, § 23-81)

Sec. 23-128. Meters.

All water meters installed or required to be used under this article shall be under the control of CMU. No meter shall be installed, removed or disturbed by anyone except authorized CMU personnel.

(Code 1985, § 23-82)

Sec. 23-129. Charges for making service connections.

(a) The charges for making service connections of sizes four inches or smaller shall be arrived at in accordance with the water and sewer rate methodology set forth in the Charlotte-Mecklenburg Utility Department Revenue Manual dated November 26, 2012, which is on file with the city clerk. The above documents shall be referred to as the "revenue manual." Such rates, fees and charges as are determined in accordance with the revenue manual and any modifications thereto and any other CMU water or sewer rates, fees or charges determined in accordance with applicable law are referred to as the "schedule of current rates, fees and charges" in this chapter. The charges for making partial service connections of three-quarter-inch size shall be calculated and applied in the same manner.

(b) The charges for making complete service connections at sizes larger than four inches shall be made as follows:

(1) At the time of application for a service connection, a design study will be scheduled and made by CMU personnel

to determine the cost of construction, material, meter, valves and required appurtenances to furnish the service applied for.

(2) Payment of the determined cost is required prior to the start of any construction work by CMU.

(c) The applicant shall designate with a marker the location of the water service connection along the street right-of-way within the boundaries of his property prior to the beginning of the work. The location may not be within a driveway.

(d) The applicant or customer shall not operate or disturb any part of the water service other than to turn off water to the premises in an emergency by operating the curb turnoff within the meter box if the service is one inch or smaller or by operating the property line cutoff valve on larger services. All fixtures within the owner's premises must be kept in repair by the customer or property owner.
(Code 1985, § 23-83; Ord. No. 2032, § 1, 3-25-2002; Ord. No. 3875, § 1, 4-7-2008; Ord. No. 4609, § 5, 2-28-2011; Ord. No. 5007, § 2, 11-26-2012)

Sec. 23-130. Repairs to service connections at CMU expense; exceptions.

After the water service connection and meter cost have been paid by the property owner, CMU will keep the service in repair from the main up to and including the meter yoke assembly. There will be no further expense to the property owner, except that, in case of malicious damage by the owner or tenant, or in case of damage caused by hot water being forced from the premises through the meter from boilers, hot water tanks, etc., the property owner or tenant shall pay the cost of repairs.
(Code 1985, § 23-84)

Sec. 23-131. Removal of water service fixtures.

(a) When water is introduced into any property or premises by CMU, the water service fixtures become a permanent improvement in the same manner as paving, curbing, sidewalks, sewer connections, etc. The water service fixtures belong to the property for which they are placed and will not be removed or transferred from the property to which they have been assigned, but are under the control of CMU.

(b) CMU may replace existing meters, service connections or other fixtures with meters, service connections or other fixtures of equal, or greater, capacity or efficiency.

(c) Should the use of water through service connections be discontinued, or a partial service connection remain unused, CMU may remove the meter, service connection and other water service fixtures, or discontinue the availability of the partial service connection.
(Code 1985, § 23-85)

Sec. 23-132. Separate meter for each property.

(a) Property owned by separate parties must have separate water service where each piece of property has a city main accessible for a connection. CMU shall not be required to furnish water service unless the property is in compliance with the requirements of this section.

(b) The joint use of water by separate property owners through one service connection will be allowed only where no water main is accessible to all of the property.

(c) When three or more premises are owned by the same party and are supplied through the same meter, the owner shall be responsible for paying the charges for water and sewer service, if any, in accordance with applicable rules and regulations.

(d) When multiple premises owned by the same party are supplied through the same meter and, afterwards, part of the property is sold, the parcel sold must be disconnected from the supply and a separate meter installed, if the property sold is to be supplied with CMU water. Premises under the same ownership will be supplied through one service connection only when they are adjoining.
(Code 1985, § 23-86)

Sec. 23-132.1. Separate meter for in-ground irrigation systems.

(a) The following phrases, when used in this section, shall have the meanings ascribed to them in this subsection:

Billing period means the time period during which a customer's water usage is regularly determined and associated charges are billed to the customer.

Non-compliant irrigation system means an irrigation system installed in violation of the requirements of this section.

Subject lot means a lot that is platted and recorded in the office of the register of deeds in the county or counties in which the real property is located after July 1, 2009.

Subsection (d) civil penalty means a civil penalty assessed pursuant to subsection (d) of this section.

(b) No portion of an in-ground irrigation system using water from the CMU water distribution system may be installed or operated unless said irrigation system is connected to the CMU water distribution system through a separate meter authorized by CMU that only serves said irrigation system. CMU shall not be required to furnish water service to any non-compliant irrigation system.

(c) Each owner of a subject lot shall be responsible for complying with the requirements of this section for any irrigation system installed on such lot.

(d) Installation of a non-compliant irrigation system shall subject each owner of a subject lot on which such a system has been installed to a civil penalty of $100.00. Each day that such system remains in place shall not be considered a continuing violation or a separate and distinct violation.

(e) Each owner of a subject lot who has been assessed a subsection (d) civil penalty shall be subject to an additional civil penalty of $50.00 for each billing period beginning at least 30 days after receipt of a subsection (d) civil penalty during which said owner fails to:

(1) Permanently and completely disconnect the non-compliant irrigation system from any plumbing system receiving water in any manner from the CMU water distribution system; or

(2) Apply for a separate meter and, if applicable, service connection for the in-ground irrigation system associated with the subsection (d) civil penalty and pay all applicable CMU fees and charges for the installation of said meter and, if applicable, service connection. If the owner of a subject lot is not the customer who is billed for water usage at said lot, the billing period associated with water usage at said lot shall apply for purposes of assessing additional civil penalties under this subsection.

(f) The violation of any provision of this section may be enforced by all remedies authorized by law for noncompliance with municipal ordinances, including the assessment of a civil penalty and action for injunction, order of abatement or other equitable relief; provided that, no violation of any provision of this section shall be a basis for imposing any criminal remedy.

(g) Each civil penalty assessed pursuant to this section may be added to any water bill of the owner and shall be paid in the same manner as set forth in this chapter for the payment of water bills. Failure to pay all or any portion of a water bill, including any civil penalty assessed pursuant to this section, in a timely manner may result in the termination of water service from CMU.

(h) The director may consider petitions for remission of civil penalties assessed pursuant to this section. A petition for remission shall be in writing, signed by the person against whom the civil penalty was assessed and submitted to the director within 30 days after receipt of the assessment of the civil penalty. The petition shall include a waiver of any and all rights of the petitioner to a hearing and judicial review of the assessment, and a stipulation that the facts are

correct as set forth in the documents assessing the civil penalty. The decision of the director on the petition shall be final and shall not be subject to further administrative or judicial review.

(1) In determining whether a petition for remission will be approved, the director shall consider the following factors:

a. Whether the petitioner has taken action to permanently and completely disconnect the non-compliant irrigation system from any plumbing system receiving water in any manner from the CMU water distribution system;

b. Whether the petitioner has applied for a separate meter and service connection for the in-ground irrigation system associated with [the definition in subsection (a) designated as] the subsection (d) civil penalty and paid all applicable CMU fees and charges for the installation of said meter and service connection;

c. Whether the petitioner has been assessed a civil penalty for any prior violation of this section;

d. Whether the petitioner has paid all outstanding invoices to petitioner for water and/or sewer service from CMU, with the sole exception of the civil penalty that is the subject of the petition for remission.

(2) After submitting a petition for remission, the petitioner shall provide such additional information and records as may be reasonably necessary or convenient to the director's consideration of the petition. The director may remit the entire amount of a civil penalty only when the petitioner has not been assessed civil penalties for any prior violation of this section.

(Ord. No. 5006, § 1, 11-26-2012)

Sec. 23-133. Cutoff valve.

(a) At each complete water service connection larger than one inch, a cutoff valve will be placed at the property line or right-of-way line. This valve will be furnished as part of the meter installation and is to be under the control of the owner or tenant. This valve is to be used in case of a break, or other necessity, whereby pipes to be repaired can be cut off without using CMU's cutoff valve located in the meter box or meter vault. This is not intended to take the place of the ordinary stop and waste value located within the premises for the purpose of draining the pipes to prevent damage from freezing.

(b) Private fire protection lines that cross unoccupied ground to reach the object to be protected shall have a cutoff valve placed at the property line or at the right-of-way line where the connection is to be made.

(Code 1985, § 23-87)

Sec. 23-134. Interference with the water distribution system.

It shall be unlawful for any unauthorized person to operate or damage, by interference and/or tampering, the valves on the street mains or any part of the water distribution system. Plumbers or property owners may, in an emergency, shut off water at the curb cutoff valve.

(Code 1985, § 23-88)

Sec. 23-135. Charges for testing meters and fixtures.

CMU shall test, or cause to be tested, and make a thorough examination of the water meter and all fixtures when so desired by the customer under the following conditions:

(1) Should the test or inspection prove the excessive bill to be caused by negligence of CMU, inaccuracy of the meter, or for any cause be the fault of CMU, the expense of the investigation shall be borne by CMU; or

(2) Should the test and inspection prove the excessive bill to be the fault of the customer or any person not connected with, or in the employ of, CMU, the actual cost of such investigation is to be borne by the customer requesting the

test and inspection, as set forth in the schedule of current rates, fees and charges.
(Code 1985, § 23-89)

Sec. 23-136. Duty of customer when ordering water turned on.

Any customer ordering water to be turned on should verify that all pipes are properly connected and faucets closed so that the building or dwelling will not be flooded. The city will not be liable for any damages caused by flooding when faucets or openings are not closed.
(Code 1985, § 23-90)

Sec. 23-137. Unauthorized turning on of water after turnoff by CMU.

If the water is cut off from any premises by CMU for nonpayment of a bill or for any other cause authorized by this chapter, it shall be unlawful for a customer or user to restore service by a turn-on or by installing unauthorized devices or directing or permitting the installation of unauthorized devices to restore service. If an unau-

thorized turn-on occurs, CMU may remove the meter, any unauthorized meter or device or turn off the service at the main.
(Code 1985, § 23-91; Ord. No. 2274, § 2, 3-24-2003)

Sec. 23-138. Turning water on and off at mains.

The city will not be liable for any damage that may result from shutting off the water main or service for any purpose, even when no notice is given; and, accordingly, no deduction from water bills will be made. If the stoppage of the water supply to a customer may cause damage, such customer should install protective devices to prevent damage during any period that water is turned off. CMU will attempt to notify customers when the water will be turned off, except in emergencies.
(Code 1985, § 23-92)

Sec. 23-139. Fire hydrants; authorized users; permit required for private user.

(a) Public fire hydrants and water therefrom are primarily for the use of the fire department to render fire protection service. CMU personnel are authorized to operate and use hydrants without special permission for inspection, repairs, flushing mains or other such reasonable and proper use required by CMU operations. The employees of the fire department are authorized to operate and use hydrants without special permission for inspection, repairs, fire protection or other such reasonable and proper use required by the operations of the fire department.

(b) Any person may shut off a fire hydrant opening in order to stop a flow of water caused by an accident. It is unlawful for any other person to use a fire hydrant for any purpose, except by special permit issued by CMU.
(Code 1985, § 23-93)

Cross reference—Fire prevention and protection, ch. 8.

Sec. 23-140. Damage to elements of CMU water system.

(a) It shall be unlawful for any person to break, damage, or cause to be broken or damaged, any public fire hydrant, water main, any portion of a complete service connection, valve box or any other element of CMU water system. In addition to any applicable penalties for violating this section, such person shall pay the reasonable cost for any necessary repairs.

(b) If any of the structures mentioned in subsection (a) of this section is broken or damaged by accident or otherwise, it shall be the duty of the person causing the damage to report the location and description of the damage to the police department, fire department or CMU. Failure to make the report shall be unlawful.

(c) If a driveway is constructed over an existing meter box, CMU may relocate the service at the customer's expense.
(Code 1985, § 23-94)

Sec. 23-141. Restrictions on use of private fire hydrants.

Private fire hydrants or any other fire protection fixtures on unmetered services located on private premises shall not be used, except for a fire, training, periodic testing, maintenance or repair of the hydrants or fixtures. It is unlawful for any person to use a private fire hydrant or any other fire protection fixture on unmetered services for any other purpose, except by special permit issued by CMU and approved by the owner of such private fire hydrant or fixture. Any person violating this section shall pay the charge for any water used or obtained, in addition to any applicable penalty.
(Code 1985, § 23-95)

Cross reference—Fire prevention and protection, ch. 8.

Secs. 23-142—23-170. Reserved.

ARTICLE V. BACKFLOW PREVENTION AND CROSS CONNECTION CONTROL

Sec. 23-171. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Air-gap separation means an unobstructed vertical distance through the atmosphere between

the lowest opening from any pipe or faucet supplying water from any source to a tank, plumbing fixture or other device and the flood level rim of the receptacle. An approved air-gap separation shall be at least double the diameter of the supply pipe. In no case shall the air-gap separation be less than one inch. An approved air-gap separation is an effective method to prevent backflow and shall be considered as a backflow-prevention assembly.

Approved, in reference to backflow-prevention assemblies or methods, means those assemblies or methods which have been accepted by CMU as an effective device or method to prevent backflow.

Assembly means backflow-prevention assembly.

Auxiliary water supply means any water source other than the public water system that is used in conjunction with or is otherwise available to a private water system.

Backflow means any flow of water, other liquid, gas, other substances or any combination thereof into the public water system from any source due to an unprotected cross connection, backpressure, backsiphonage, any combination thereof or any other cause, provided that the following activities by CMU shall not be construed as backflow:

(1) The introduction of raw water into a CMU water treatment plant;

(2) The treatment of such raw water in a CMU water treatment plant; and

(3) The introduction of such treated water by CMU into the public water system.

Backflow-prevention assembly means an effective device or method used to prevent backflow.

Backpressure means any pressure on water, other liquid, gas, other substances or any combination thereof in a private water system that is connected in any manner to the public water system under circumstances in which such pressure is greater than the pressure on the water in the public water system so that backflow may occur.

Backsiphonage means any circumstance in which the pressure on the water in the public water system is less than the atmospheric pressure which causes a subatmospheric condition on water, other liquid, gas, other substances or any combination thereof in a private water system that is connected in any manner to the public water system so that backflow may occur.

Certified tester means an individual person who has proven his competency to test, repair and overhaul backflow-prevention assemblies of all types and to prepare reports on such assemblies as evidenced by the successful completion of a training program approved by CMU.

Containment means the prevention of backflow from a private water system by an approved, properly functioning backflow-prevention assembly which is installed, operated and maintained in accordance with this article.

Contamination means the impairment of the quality of water to a degree that human consumption could result in poisoning or the spread of disease.

Customer means any person who is capable of receiving water from the public water system through the customer's private water system without regard to whether CMU is aware of the existence of such customer. If such person does not own the private water system, the term "customer" shall also be construed to include the person who owns the private water system.

Customer's potable water system means the private water system through which a customer receives water from the public water system for purposes of human consumption.

Customer's private water system means the private water system through which a customer is capable of receiving water from the public water system.

Degree of hazard means the evaluation of a hazard within a private water system as moderate, high, imminent or existing.

Double-checkvalve assembly means an approved, properly functioning assembly composed of two, independently acting checkvalves, including tightly closing shutoff valves attached at each

end of the assembly and fitted with properly located testcocks. This assembly may only be used to protect against a moderate hazard.

Existing hazard means an actual contamination of the public water system or a customer's potable water system that could cause illness or death or damage to the physical components comprising the public water system.

High hazard means an actual or potential threat of contamination to the public water system or to a customer's potable water system that could cause serious illness or death.

Imminent hazard means an actual threat of contamination to the public water system that could cause serious illness or death.

Moderate hazard means an actual or potential threat of damage to the physical components comprising the public water system or a customer's potable water system or of pollution to the public water system or to a customer's potable water system.

Pollution means the presence of any substance in water that tends to degrade the quality of such water or adversely affects the usefulness of such water.

Potable water means water from any source which has been approved for human consumption by the appropriate agency of the state and/or county.

Private water system means any pipe, system of pipes or other associated facilities that are not part of the public water system and are used in whole or in part to move or receive water regardless of the source of the water in such system.

Protected cross connection means any physical connection or other condition which does not permit backflow because containment is achieved.

Public water system means the potable water system owned and operated by the city through CMU and the water contained therein. This system includes all distribution mains, lines, pipes, connections, storage tanks and other facilities conveying potable water from the several water treatment plants to the service connection of each customer.

Reduced-pressure principle assembly means an approved, properly functioning assembly containing two, independently acting checkvalves with a hydraulically operating, mechanically independent pressure-differential relief valve located between the checkvalves and at the same time below the first checkvalve. The assembly must include properly located testcocks and tightly closing shutoff valves at each end of the assembly. This assembly is designed to protect against a high hazard or an existing hazard.

Service connection means the terminal end of a complete service connection or, in the absence of a complete service connection, the point at which water leaves the public water system and enters a private water system.

Unapproved water supply means a water supply which has not been approved for human consumption by the appropriate agency of the state and/or county.

Unprotected cross connection means any physical connection or other condition which could permit backflow to occur by any means, including, but not limited to, manipulation of valves, improper functioning of valves or direct discharge. Unprotected cross connection includes any condition in which backflow could occur as a result of the improper functioning of a backflow-prevention assembly.

(Code 1985, § 23-100; Ord. No. 2269, §§ 3, 4, 3-24-2003)

Cross reference—Definitions generally, § 1-2.

Sec. 23-172. Unprotected cross connections prohibited.

(a) Under this article, it is unlawful for any person to cause an unprotected cross connection to be made.

(b) It is unlawful for any customer to permit an unprotected cross connection to be made or to remain involving the customer's private water system.

(c) It is unlawful for any customer to fail to maintain in good operating condition any backflow-prevention assembly which is required by this article and which is part of the customer's private water system.

(d) No private water system may be connected in any manner to the public water system unless the requirements of this article and other applicable laws have been satisfied.
(Code 1985, § 23-101)

Sec. 23-173. Installation and testing of backflow-prevention assemblies.

(a) All backflow-prevention assemblies must be installed and maintained on the customer's premises as part of the customer's water system at or near the service connection and before the service line from the service connection is connected to any other pipe except as otherwise expressly provided. The purpose of this section is to require that all water flowing from the public water system into a private water system must flow through an approved backflow-prevention assembly and that each backflow-prevention assembly be properly located, installed, maintained and tested so that the backflow-prevention assembly is effective in protecting the public water system from any possible contamination or pollution.

(b) Each backflow-prevention assembly required by this article must be installed in accordance with this article, the manufacturer's installation instructions and such additional instructions as may be provided by CMU. Reduced-pressure principle assemblies and pressure vacuum breakers must be installed in a horizontal position and in a location in which no portion of the assembly can become submerged under any circumstances.

(c) Each backflow-prevention assembly required by this article must be functioning properly when installed. Each customer must test, maintain and repair each required backflow-prevention assembly which is part of the customer's private water system. Such test as may be prescribed by CMU must be conducted by a certified tester on each backflow-prevention assembly required by this article at each of the following times:

(1) Immediately after the installation of each backflow-prevention assembly;

(2) On an annual basis thereafter;

(3) Upon completing the repair of each backflow-prevention assembly; and

(4) At any time that CMU has reason to believe that a required backflow-prevention assembly may not be operating properly.

Each customer must maintain a complete, written record of every repair and test of a required backflow-prevention assembly which is part of such customer's private water system for at least seven years. A copy of the record for each test or repair must be sent to CMU by such customer within 30 days after the completion of each test or repair. Such records must be maintained on forms approved by CMU.

(d) Within ten days after the installation of each required backflow-prevention assembly in a customer's private water system, the customer must provide such information on the installation and testing of such assembly as CMU may require. Such information must be provided on a form approved by CMU.

(e) If a customer does not wish for water service to be interrupted when a backflow-prevention assembly is tested, repaired or replaced, a parallel installation of an approved backflow-prevention assembly must be made in accordance with this article.

(f) Each backflow-prevention assembly required by this article must be accessible to CMU.

(g) Each backflow-prevention assembly required to be installed by this article must be approved by CMU. A list of approved backflow-prevention assemblies must be maintained by CMU. The installation of any backflow-prevention assembly which is not approved must be replaced with an approved backflow-prevention assembly.

(h) Upon a determination that a backflow-prevention assembly is required to be installed in a customer's private water system, the customer will be notified of the approved backflow-prevention assembly which is required and will have the following time periods within which to install the specified backflow-prevention assembly:

Assembly	*Number of Days*
Air-gap separation	30
Reduced-pressure principle assembly (¾″—2″)	30
Double-checkvalve assembly (¾″—2″)	30
Reduced-pressure principle assembly (2½″ and larger)	60
Double-checkvalve assembly (2½″ and larger)	60
Other approved backflow-prevention assembly	30

Notwithstanding this section, the director may require the installation of the required backflow-prevention assembly immediately or within a shorter time period than specified in order to protect the public water system from an existing hazard, an imminent hazard or from any other condition posing an unreasonable threat of contamination or pollution to the public water system.

(i) An air-gap separation need not be installed at or near the service connection in all cases but must be installed at a location approved by CMU in addition to any other backflow-prevention assembly required by this article.

(j) Upon a determination by CMU that the installation of a backflow-prevention assembly at or near the service connection would create a substantial hardship upon a customer, CMU may approve the installation of one or more backflow-prevention assemblies at such location as will provide substantially equivalent protection for the public water system.

(k) If repairs are needed to any required backflow-prevention assembly which is part of a customer's private water system, the customer must complete such repairs as soon as possible after learning of the need for such repairs and in any event within ten days for a private water system which is considered a high hazard and 20 days for any other private water system unless an extension of time is approved by CMU.

(l) It is unlawful for any person to submit any record to CMU which is false or incomplete in any material respect. It is unlawful for any person to fail to submit to CMU any record which such person is required by this article to submit to CMU.
(Code 1985, § 23-102; Ord. No. 2264, § 5, 3-24-2003)

Sec. 23-174. High hazard.

(a) The activities set forth in this section are a high hazard and require the use of the specified backflow-prevention assembly.

(b) If a tank or a reservoir is filled in whole or in part by water from the public water system, an approved air-gap separation must be installed unless CMU authorizes the installation of an approved reduced-pressure principle assembly in lieu of an approved air-gap separation. Before a private water system which is connected in any manner to the public water system may receive water from an auxiliary water supply, an approved air-gap separation must be installed between the auxiliary water supply and the private water system.

(c) An approved reduced-pressure principle assembly must be installed if the private water system is served in any manner by an auxiliary water supply or if the private water system is subject in any manner to contamination by any means as a result of the activities or processes associated with the use of the private water system. Following is a list of facilities, activities or processes which include, but are not limited to, conditions requiring the installation of an approved reduced-pressure principle assembly:

(1) Any private water system used or designed for use with a booster pump or which may become pressurized for any reason to the extent that backpressure may occur.

(2) Any private water system which contains water which has been or is being recirculated.

(3) A private water system, any portion of which is elevated more than 50 feet above any service connection between such private water system and the public water system.

(4) Bottling plant, brewery.

(5) Carwash with recycling system.

(6) Chemical plant.

(7) Dentist's office.

(8) Dry cleaning plant.

(9) Exterminating company.

(10) Fertilizer plant.

(11) Film laboratory.

(12) Fire sprinkler system or standpipe system with any one or more of the following: chemical additive, booster pump or fire department connection (FDC).

(13) Hospital, clinic, medical building.

(14) Irrigation system, with or without chemical additives.

(15) Laboratory.

(16) Commercial laundry, except self-service laundry.

(17) Metal processing plant.

(18) Morgue or mortuary.

(19) Nursing home.

(20) Pharmaceutical plant.

(21) Power plant.

(22) Swimming pool.

(23) Sewage treatment plant.

(24) Tire manufacturer.

(25) Veterinary hospital, clinic, office.

(d) An approved reduced-pressure principle assembly must be installed under any of the following circumstances:

(1) CMU does not have sufficient access to every portion of a private water system to permit the complete evaluation of the degree of hazard associated with such private water system;

(2) The use of the premises containing a private water system is not known; or

(3) The premises containing a private water system is used by two or more nonresidential tenants.

(Code 1985, § 23-103; Ord. No. 2269, § 1, 3-24-2003; Ord. No. 5006, §§ 2, 3, 11-26-2012)

Sec. 23-175. Moderate hazard.

(a) The activities set forth in this section are a moderate hazard and require the use of the specified backflow-prevention assembly.

(b) An approved double-checkvalve assembly must be installed if the private water system is subject in any manner to pollution by any means as a result of the activities or processes associated with the use of the private water system. Following is a list of facilities, activities and processes which include, but are not limited to, conditions requiring the installation of an approved double-checkvalve assembly:

(1) Nonresidential building or structure which is not a high hazard.

(2) Distillery.

(3) Fire sprinkler system or standpipe system without any of the following: chemical additive, booster pump or fire department connection (FDC).

(4) Gas station.

(5) Mobile home park.

(6) Restaurant.

(7) School.

(8) Self-service laundry.

(c) An approved double-checkvalve assembly must be installed in every private water system for which no other backflow-prevention assembly is otherwise specified.

(Code 1985, § 23-104; Ord. No. 2269, § 2, 3-24-2003; Ord. No. 5006, § 4, 11-26-2012)

Sec. 23-176. Imminent hazard; existing hazard.

(a) If CMU determines that a customer's private water system constitutes an imminent hazard, such customer shall install such backflow-prevention assembly as may be specified by CMU within 24 hours after notice of CMU's determina-

tion. If the customer fails to install the specified assembly in a timely manner or refuses to install the specified assembly, water service to the customer's private water system may be terminated. If CMU is unable to give notice to such customer within 24 hours after the determination that an imminent hazard exists, despite reasonable efforts to provide such notice, CMU may terminate water service to such private water system until the specified assembly is installed.

(b) If the director determines that a customer's private water system constitutes an existing hazard or is a source of contamination in the public water system, the director may terminate water service to the customer immediately without notice until the customer installs such backflow-prevention assembly as may be specified by the director. The director shall notify the customer as soon as reasonably possible of such determination, the termination of water service and the assembly that must be installed before water service can be restored.
(Code 1985, § 23-105; Ord. No. 2269, §§ 6, 7, 3-24-2003)

Sec. 23-177. Determination of degree of hazard.

(a) No complete service connection may be installed until CMU has been provided with such information as is reasonably necessary to determine the degree of hazard associated with the private water system to be connected to the public water system and a determination has been made of the appropriate backflow-prevention assembly which must be installed.

(b) No customer may modify or permit the customer's private water system to be modified in a manner which would affect the degree of hazard of such system until CMU has been provided with information that is reasonably necessary to determine if the degree of hazard and the appropriate backflow-prevention assembly associated with such system are affected by the proposed modification or change. If such modification or change is determined by CMU to require the installation of a different backflow-prevention assembly, the required backflow-prevention assembly must be installed in accordance with this article prior to making the proposed modification or change.
(Code 1985, § 23-106)

Sec. 23-178. Right of entry.

(a) Authorized employees of CMU have the right to enter any property having a private water system which is served in any manner by the public water system. Such entry shall be made at reasonable times and for the purposes of inspecting and observing the private water system, testing and sampling of the water from such system and discharging any other duty which may be imposed upon CMU by this article. If a customer does not permit an authorized employee of CMU to undertake and complete any inspection, observation, test, sample or other duty of the employee concerning the customer's private water system, service to the customer's private water system from the public water system may be terminated.

(b) At the request of CMU, a customer may provide information that is reasonably necessary to determine the degree of hazard of the customer's private water system, all connections of the private water system to the public water system and any other information reasonably necessary to enforce this article.
(Code 1985, § 23-107)

Sec. 23-179. Notice of contamination or pollution.

(a) A customer must immediately notify CMU if the customer's potable water system is contaminated or polluted.

(b) A customer must immediately notify CMU if the customer has reason to believe that backflow has occurred from the customer's private water system to the public water system.
(Code 1985, § 23-108)

Sec. 23-180. Responsibility of customer.

(a) A customer is responsible for bringing into compliance with this article every portion of the customer's private water system.

(b) A customer shall be responsible for complying with this article, notwithstanding the fact that one or more of the following conditions exist:

(1) Water service to the customer has not been turned on;

(2) Water service to the customer has been turned off; or

(3) The customer is not receiving any water from the public water system.

A customer's responsibility to comply with this article shall not terminate until CMU causes so much of the complete service connection of the customer to be removed that the customer is no longer capable of receiving water from the public water system. The customer shall be responsible for complying with this article if the customer's private water system is reconnected in any manner to the public water system.

(c) If a customer does not own the customer's private water system and does not have the authority to bring the customer's private water system into compliance with this article, any remedy available to the city because such private water system does not comply with this article may be asserted against the customer, any person owning or otherwise controlling the customer's private water system or jointly against such customer and such person.
(Code 1985, § 23-109)

Sec. 23-181. Violations.

(a) A written notice of violation must be given to any person who is determined to be in violation of any section of this article.

(b) Such notice must set forth the violation and the time period within which the violation must be corrected. The violation must be corrected within a reasonable time, not to exceed 30 days from receipt of the notice. If CMU determines that the violation is occurring on a customer's private water system and that such violation has created or contributed to the existence of an imminent hazard, the customer may be required to correct the violation immediately.

(c) Water service may be terminated to a customer if the violation was intentional or the customer fails in a timely manner to correct a violation or to pay any civil penalty or expense assessed under this section. Termination of water service will be without prejudice to the city's ability to assert any other remedy available to the city against the customer or any other person responsible for the violation.

(d) The violation of any section of the article may be punished by a civil penalty according to the following schedule:

(1)	Unprotected cross connection involving a private water system which is an imminent hazard	$1,000.00
(2)	Unprotected cross connection involving a private water system which is a high hazard	750.00
(3)	Unprotected cross connection involving a private water system which is a moderate hazard	500.00
(4)	Unprotected cross connection for which no other civil penalty is prescribed	250.00
(5)	Submitting false records which are required to be submitted by this article	1,000.00
(6)	Submitting incomplete records or failing to submit records which are required to be submitted by this article.	500.00
(7)	Failure to test backflow-prevention assemblies as required	100.00
(8)	Failure to maintain backflow-prevention assemblies as required	100.00
(9)	Any other violation of this article	100.00

(e) The director will reduce any civil penalty imposed under this section by one-half if the violation is corrected in a timely manner.

(f) The director will reduce any civil penalty assessed under this section to $100.00 or 50 percent of the maximum civil penalty associated with the violation, whichever is less, if the director determines that the person charged with the violation has no past history of violating any provision of this article within the past two years.

(g) Notwithstanding subsection (f) of this section, no civil penalty may be reduced if the director determines that the violation was intentional. If any civil penalty is assessed under circumstances authorizing the reduction of such penalty, the amount owed shall be the amount calculated after subtracting the largest applicable reduction from the original assessed penalty.

(h) Any person violating any section of this article must pay to the city all expenses incurred by the city in repairing any damage to the public water system caused in whole or in part by such violation and any expense incurred by the city in investigating such violation.

(i) From and after the expiration of the time period specified by CMU for correcting a violation of this article, each subsequent day that the violation continues in existence shall constitute a separate and distinct offense.
(Code 1985, § 23-110)

Sec. 23-182. Alternative backflow-prevention assembly.

Any customer may satisfy the sections of this article concerning the installation of an approved backflow-prevention assembly by installing the specified assembly or any assembly offering a greater degree of protection to the public water system if CMU approves such installation in writing.
(Code 1985, § 23-112)

Sec. 23-183. Certain residential uses excluded.

(a) Except as set forth in subsection (b) of this section, this article shall not apply to any private water system so long as the following conditions are satisfied: the system serves no more than two residential units through a single service connection and is not used at any time for any purpose which constitutes a high or moderate hazard. A swimming pool which is an accessory use to a single-family residence will not constitute a condition requiring the installation of a backflow-prevention assembly. Any private water system which does not satisfy the conditions of this section on a continuous basis and is connected in any manner to the public water system shall be subject automatically to all sections of this article.

(b) The following sections of this article shall be fully applicable to any private water system which is connected in any manner to the public water system: sections 23-177 through 23-179.
(Code 1985, § 23-113)

Secs. 23-184—23-210. Reserved.

ARTICLE VI. PERMITS FOR EXTENSIONS OR MODIFICATION OF WATER OR SEWER SYSTEM

Sec. 23-211. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

CMU, when such term is not used as part of a defined term, means the Charlotte-Mecklenburg Utility Department, or, if a permit required by this article is pending before an appropriate agency of the state, such agency.

CMU standards refers to the document entitled "Charlotte-Mecklenburg Utility Department Water and Sewer Policies Procedures Standards and Specifications," as prepared, published and amended from time to time by CMU in accordance with section 23-212(c), together with CMU extension policy as approved and amended from time to time by the council.

CMU water or sewer system, when referring to CMU water system, means the portion of the facilities owned by the city which are used for the distribution of treated water to fire hydrants and service connections.

CMU water or sewer system, when referring to CMU sewer system, means the portion of the

facilities owned by the city which are used to collect and carry wastewater to a publicly owned treatment works treatment plant, but does not include such plant.

Non-CMU facility standards refers to the document entitled "CMU Standards for Private Water Design and Construction," as prepared, published and amended from time to time by CMU in accordance with subsection 23-212(d).

Non-CMU water facility means a water system subject to the provisions of G.S. 130A-317 which is connected to or proposed to be connected to the CMU water system.

(Code 1985, § 23-120; Ord. No. 5006, §§ 5, 6, 11-26-2012)

Cross reference—Definitions generally, § 1-2.

Sec. 23-212. Required.

(a) No person shall do any of the following things or carry out any of the following activities concerning a non-CMU water facility a water or sewer facility which is proposed to become a part of CMU water or sewer system or modify any existing portion of CMU water or sewer system unless such person shall have applied for and shall have received from CMU a permit for such extension or modification and shall have complied with such conditions, if any, as are prescribed by such permit:

(1) Construct any water or sewer facility;

(2) Alter, extend, or change the construction or method of construction of any water or sewer facility; or

(3) Enter into a contract for the construction and installation of any water or sewer facility or for the alteration or extension of such a facility.

(b) Any person proposing to undertake any thing or activity described in subsection (a) of this section shall make timely and proper application on such forms as may be prescribed by CMU and provide such information as may be required by CMU. CMU shall not undertake any thing or activity set forth in subsection (a) of this section unless CMU first complies with this section. A copy of all applications for permits subject to this section and of all approved permits and plans, including applications and related documents submitted by CMU, shall be provided to the state department of environmental health and natural resources in accordance with applicable law.

(c) All water or sewer facilities proposed for inclusion in CMU water and sewer system and all proposed modifications to any existing portion of CMU water or sewer system shall be designed, constructed and installed in conformance with applicable provisions of CMU standards.

(d) All non-CMU water facilities, and modifications thereto, shall be designed, constructed and installed in conformance with applicable provisions of non-CMU facility standards.

(e) The plans and specifications for facilities and modifications described in subsection (c) or (d) shall be prepared by or under the direct supervision of an engineer licensed to practice in the state. CMU shall maintain a copy of the current CMU standards and non-CMU facility standards for public inspection. CMU shall have full authority to modify CMU standards and non-CMU facility standards, except for CMU extension policy which shall require council approval for any change. CMU shall make such changes in CMU standards and non-CMU facility standards, except in CMU extension policy, as may be necessary to maintain certification from appropriate agencies of the state under G.S. 130A-317(d) and G.S. 143-215.1(f) and applicable rules and regulations implementing the provisions thereof and any changes thereto. No modification to CMU standards shall be effective until approved in writing by the state department of environment and natural resources. The acquisition and connection to CMU water or sewer system of all or any portion of a water or sewer system owned or operated by any city, county or water or sewer authority as defined in G.S. ch. 162A or by a public utility under the jurisdiction of the state utilities commission shall not be subject to this section, provided that under no circumstances shall the city be required to acquire or otherwise permit the connection of such a system to CMU water or sewer system except under such terms and conditions as the city may determine to be acceptable in its sole and absolute discretion.

(f) The denial of an application for a permit subject to this section shall be made in writing and shall contain each reason for the denial and CMU's estimate of the changes in the applicant's proposed activities or plan which will be required in order that the applicant may obtain a permit. Nothing in such estimate shall preclude or otherwise bar CMU from denying a permit which incorporates such changes, based upon changed circumstance or information not previously known by CMU.

(g) Notwithstanding any other provision of this article, if a permit otherwise required by this article is approved by an appropriate agency of the state, approval by CMU shall not be required. (Code 1985, § 23-121; Ord. No. 5006, §§ 7, 8, 11-26-2012)

Sec. 23-213. Processing of permit applications.

(a) Each application subject to section 23-212 shall be accompanied by a fee in the amount which would apply, if the application were being submitted to the state department of environmental health and natural resources under such schedule of fees as it may establish. A copy of the current fee schedule for the state department of environmental health and natural resources shall be maintained by CMU and made available for inspection upon request. Any application which is not accompanied by a fee in the proper amount may be considered incomplete.

(b) CMU shall review the fee, plans, specifications and other project data accompanying an application and shall determine if the applications and accompanying material are complete and in a form acceptable to CMU. CMU shall acknowledge receipt of a complete application.

(c) CMU shall take final action on all applications not later than 90 days following receipt of a complete application. All permits shall be issued in writing. A permit may contain such conditions as CMU determines to be reasonably necessary, considering the factors on which final action on a permit can be based. Final action on any permit shall be based upon the following:

(1) The design, capacity and manner of operation of the appropriate CMU water or sewer system;

(2) Effectuating the purposes of all applicable rules, regulations, statutes and ordinances of the city, the state, and the United States of America; and

(3) CMU standards.

(d) If the application is not complete, the application shall be returned to the applicant. CMU shall advise the applicant in writing:

(1) How the application can be modified to make it complete and acceptable; and

(2) That the time for CMU to take final action on an application does not begin until receipt of a complete, corrected application.

(e) Any permit issued by CMU pursuant to section 23-212 is subject to revocation or modification upon 30 days' written notice by CMU in whole or in part for good cause, including, but not limited to, the following:

(1) Violation of any term or condition of the permit.

(2) Obtaining a permit by misrepresentation or failure to disclose fully all relevant facts.

(3) Refusal of the permittee or its contractors, agents or employees to allow authorized employees of CMU upon presentation of credentials to inspect or observe any activity, facility or other work required by the permittee's permit.

(f) A notice of revocation or modification issued pursuant to subsection (e) of this section shall contain each reason for the revocation or modification.
(Code 1985, § 23-122)

Sec. 23-214. Enforcement.

(a) Any person who violates, fails to comply or continues to violate section 23-212 or a permit issued thereunder shall be liable to CMU for a maximum civil penalty of $10,000.00 per violation per day for as long as the violation continues. Each day on which a violation shall occur or continue shall be deemed a separate and distinct offense. In determining the amount of the civil penalty, CMU shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the person's violation, the person's efforts to correct the violation, the compliance history of the person against whom the violation is assessed, cost of enforcement to CMU, whether the violation was committed willfully or intentionally, and any other factor as justice requires. CMU shall provide written notification to any person assessed a civil penalty of the assessment and the reasons therefor.

(b) If any person violates section 23-212 or the terms or conditions of any permit issued pursuant thereto, a civil action may be commenced in the general court of justice in the name of the city for such legal and equitable relief as may be appropriate.

(c) The remedies provided in this section are not exclusive. CMU may take any one, all or any combination of these actions against any person in violation of one or more subsections of section 23-212 or terms or conditions of any permit issued pursuant thereto.
(Code 1985, § 23-123)

Sec. 23-215. Hearing.

(a) The following persons are entitled to hearing pursuant to this article:

(1) Any person whose application for a permit under section 23-212 is denied or granted subject to conditions which are unacceptable to such person.

(2) Any person to whom a permit has been issued and which is revoked or modified pursuant to this article.

(3) Any person who is assessed a civil penalty pursuant to section 23-214(a).

(b) Any person entitled to a hearing pursuant to this section shall exercise such right as set forth in subsection (b)(2) of this section. Such demand shall be in writing and shall state separately each issue to be considered and such other matters as are required in this section. Any person making a demand for a hearing shall deliver the demand to CMU within the following applicable time limits after receipt of notice of the action to be heard:

(1) Thirty days for the denial of a permit required by this article or for the grant of a permit required by this article subject to conditions which are unacceptable to the person applying for the permit;

(2) Thirty days for the assessment of a civil penalty; and

(3) Ten days for the modification or revocation of a permit required by this article.

(c) In the demand for a hearing to consider:

(1) The denial of a permit, the applicant must identify separately each reason for denying the permit which the applicant contends to be improper and every basis for such contention.

(2) A permit granted subject to unacceptable conditions, the applicant must identify separately each unacceptable condition and every basis for such contention.

(3) The modification or revocation of a permit, the person to whom such permit was issued must state separately each reason for modifying or revoking the permit which such person contends to be improper and every basis for such contention.

(4) A civil penalty assessment, the person to whom such penalty was assessed must state separately each reason why such penalty should not be assessed or, if the person contends that the civil penalty was assessed in an improper amount, each reason why the amount of the penalty is improper.

(d) The hearing shall be conducted by the director and shall be subject to such rules as have been approved by the council or the director as set forth in this subsection. If the demand for a hearing is not made in accordance with this section, the director shall reject the demand, and any right to a hearing shall be terminated. If any person demanding a hearing shall fail to comply with an order of the director or with any rules issued by the director or approved by the council concerning the conduct of the hearing, the director may reject the demand, and any right to a hearing shall be terminated. Within 90 days of the receipt of the written demand for a hearing, the director shall conduct a hearing and issue a final order or decision, provided that a hearing to consider the modification or revocation of a permit shall be held and a final order or decision issued within ten days of the receipt of the written demand for a hearing. The director shall transmit a copy of the final order or decision to the person demanding the hearing by registered or certified mail. No further review of the director's final order or decision will be allowed, except as set forth in subsection (f) of this section.

(1) The director may submit rules to the council for approval concerning the conduct of the hearing and any other matter associated with the hearing. Such rules may impose requirements in addition to this section. Upon approval by the council, such rules shall be as effective as if set forth in this section. CMU shall make a copy of such rules available for inspection upon the request of any person.

(2) The director is authorized to take any action which is reasonably necessary or

convenient in considering a demand for hearing and in resolving the issues raised therein so long as such action is not contrary to this article, any rules approved by the council or other applicable law.

(3) The director may appoint a hearing officer to conduct any hearing authorized by this section. A hearing officer shall have the same authority to conduct a hearing and reach a decision as is provided to the director, provided that the decision of the hearing officer shall not be final, but shall be a recommended decision for consideration by the director. The director may approve such decision without change, reject the decision and require a new or continued hearing, or issue a different or revised decision which is supported by evidence presented at the hearing. The director may refer a recommended decision of a hearing officer to the city manager or his designee. If a referral is made, the city manager or his designee shall have the same authority to act upon a recommended decision of a hearing officer as is provided to the director. The decision of the director or, for a referral, of the city manager or his designee shall be final. A final order may provide that the action which is the basis for the demand for a hearing is approved without change or may modify such action in any manner that is supported by the evidence presented at the hearing.

(4) The director may provide for any part of the hearing to be recorded by any reasonable means, including, but not limited to, audio and/or video recording, stenographer, or court reporter. A transcript of any hearing, or part thereof, which is recorded need not be prepared unless requested. The original of a requested transcript shall be filed with the director. Each person shall bear the cost of the transcript which the person requests, including any copy thereof.

(e) Each assessment of a civil penalty which has been included in a demand for a hearing in accordance with this section is stayed and shall not take effect until the earliest occurrence of any one of the following circumstances:

(1) The assessment of the civil penalty is approved or is modified at a hearing conducted pursuant to this section; or

(2) The person who is assessed the civil penalty and the director agree on the assessment.

If the assessment of a civil penalty against any person is approved or modified by the director at a hearing conducted pursuant to this section, the director may require the payment of the penalty within the ten days or such additional time as the director may specify.

(f) Any person against whom a final order or decision of the director is made pursuant to the hearing conducted under this section may seek judicial review of the order or decision by filing a written petition within 30 days after receipt of notice of the order or decision, but not thereafter, with the superior court of the county. If not previously requested, the person shall request in writing that a transcript be prepared for every part of the hearing which was recorded. The request shall be made at or before the time that the petition is filed. A copy of the petition shall be served on the city in the manner required by law. Within 30 days after service of a copy of the petition upon the city or such other time as may be ordered by the court, the city shall prepare and transmit to the court the original or a certified copy of the official record of the hearing as set forth in this subsection. The official record of the hearing shall consist of the following:

(1) All notices, motions and other similar documents;

(2) All documentary and tangible service tendered at the hearing; and

(3) The final order or decision.

A transcript of each part of the hearing that was recorded shall be included in the official record as an exhibit, if available at the time the remaining portion of the official record is not transmitted to

the court. If the transcript is not available at that time, it shall be transmitted to the court as soon as reasonably possible after the transcript has been prepared. If testimony is taken and not recorded, a narrative summary of any testimony taken shall be prepared and transmitted to the court as an exhibit to the official record.

(g) The director may consider petitions for remission of civil penalties assessed pursuant to this article. A petition for remission shall be in writing and shall be signed by the person against whom the civil penalty was assessed. The petition shall include a waiver of any and all rights of the petitioner to a hearing and judicial review of the assessment, and a stipulation that the facts are correct as set forth in the documents assessing the civil penalty. The decision of the director on the petition shall be final and shall not be subject to further administrative or judicial review.

(1) In determining whether a petition for remission will be approved, the director shall consider the following factors:

a. Whether one or more of the factors concerning the assessment of a civil penalty in section 23-214(a) were wrongly applied to the detriment of the petitioner.

b. Whether the petitioner promptly abated continuing environmental damage resulting from the violation giving rise to the assessment.

c. Whether the violation giving rise to the assessment was inadvertent or the result of an accident.

d. Whether the petitioner has been assessed civil penalties for any prior violations pursuant to this article or by any state or federal authority enforcing substantially similar provisions.

e. Whether payment of the civil penalty by the petitioner will prevent payment for any remaining, necessary remedial action.

(2) After submitting a petition for remission, the petitioner shall provide such additional information and records as may be reasonably necessary or convenient to the director's consideration of the petition. The director may remit the entire amount of a civil penalty only when the petitioner has not been assessed civil penalties for any prior violation of this article or by state or federal authority enforcing substantially similar provisions and the payment of the civil penalty will prevent payment of any remaining, necessary remedial action.

(Code 1985, § 23-124)

Sec. 23-216. Transferability of permits.

Permits issued pursuant to this article are issued to a specific applicant. A permittee may not assign, transfer, or sell a permit, or any right or obligation in a permit, to another person.
(Code 1985, § 23-125)

Secs. 23-217—23-250. Reserved.

ARTICLE VII. WATER CONSERVATION

Sec. 23-251. Purpose and intent.

It is the purpose and intent of this article to maintain and protect the water resources available to the city for essential and community and business water uses during a water shortage declaration. This article seeks to achieve that purpose by providing for the issuance of an official water shortage declaration and the implementation of mandatory water conservation controls during the time when such declaration is in effect. This article shall be liberally construed to effectuate such purpose and intent.
(Ord. No. 2274, § 4(23-130), 3-24-2003)

Sec. 23-252. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City manager means the city manager, the deputy city manager, any assistant city manager or any acting or interim city manager.

CMU water system means CMU potable water supply, storage, treatment and distribution system, or any portion thereof.

Customer means any person or entity in whose name the city maintains an account for water use. The term "customer" also means and includes any person or entity who receives or is capable of receiving water from CMU water system through the customer's private water system or by any other means, without regard to whether CMU is aware of the existence of such customer.

Community and business water use means any use of water from CMU water system that meets either of the following criteria with special emphasis on those uses which substantially minimize water use through recycling or other means: critical to an institution's or business's function and such use or function has a significant impact upon the economy of the county or any municipality located therein; or critical to recreational or other facilities operated or maintained for community use. Examples of community and business water uses may be set forth in the water shortage management plan and include but are not limited to:

(1) Watering stock or inventory at plant nurseries, garden centers or tree farms;

(2) Watering fairways, tees and greens on golf courses;

(3) Washing vehicles at commercial car washes;

(4) Commercial pressure washing;

(5) Commercial, agricultural applications;

(6) Commercial manufacturing;

(7) Fire hydrant and water line flushing;

(8) Complying with applicable law for earth-disturbing activity using no more water than is reasonably necessary; and

(9) Other similar uses as determined by CMU.

Discretionary water use means any use of water from CMU water system that is elective and is not a community and business or essential water use. Examples of discretionary water uses may be set forth in the water shortage management plan and include but are not limited to lawn/turf irrigation, residential car washing, noncommercial pressure washing, ornamental pools or fountains and other similar uses as determined by CMU.

Emergency conditions means any condition posing a substantial and immediate threat to the ability of CMU to meet actual or anticipated demand for community and business and/or essential water uses and requiring the immediate implementation of mandatory water conservation measures in order to protect the public health and safety, including, without limitation, a major disruption or failure in any portion of the system or contamination of the water in any portion of the system or of the raw water supply.

Essential water use means any use of water from CMU water system that is necessary to maintain public health and safety. Examples of essential water uses may be set forth in the water shortage management plan and include but are not limited to: sustaining human life, fighting fires, testing for public safety standards, patient care and rehabilitation, maintaining pressure in CMU water system, maintaining operation of CMU water system and other similar uses as determined by CMU.

Irrigation service connection means a service connection by which a customer receives water from CMU water system for the sole purpose of watering vegetation and is not connected directly or indirectly to any plumbing system that discharges into the publicly operated treatment works.

Service connection means the terminal end of a complete service connection or, in the absence of a complete service connection, the point at which water leaves CMU water system and enters a customer's water system.

(Ord. No. 2274, § 4(23-131), 3-24-2003)

Cross reference—Definitions generally, § 1-2.

Sec. 23-253. Imposition of mandatory controls.

(a) The city manager is authorized to impose mandatory water conservation controls as authorized by this article on the usage of water obtained directly or indirectly from CMU water system by declaring a water shortage. After re-

ceiving written recommendations from CMU, the city manager may impose such controls, upon consideration of the following factors:

(1) Pressure at monitoring locations of CMU water system;

(2) Ability to refill water storage tanks of CMU water system;

(3) Ability to maintain an amount of water in the ground level storage tanks at CMU's water treatment plants which is adequate for fire protection purposes;

(4) Ability to maintain adequate water pressure in every portion of CMU water system;

(5) Adequacy of CMU water supply in terms of quantity and/or quality for the foreseeable future to satisfy the anticipated demand for water;

(6) Conditions downstream of CMU water intakes;

(7) Regulatory requirements affecting the operation, repair or maintenance of any portion of CMU water system;

(8) Such factors as are identified in a water shortage management plan adopted by CMU pursuant to this article; and

(9) Such other factors as may affect CMU's ability to supply, treat and/or distribute water through its water system.

(b) CMU's recommendation to the city manager on the issuance, amendment or termination of a water shortage declaration shall set forth the basis for such recommendation, including the factors leading to such recommendation.

(c) CMU is authorized to adopt a water shortage management plan, which shall be consistent with and guide CMU in the implementation and enforcement of the provisions of this article.
(Ord. No. 2274, § 4(23-132), 3-24-2003)

Sec. 23-254. Water shortage declaration.

(a) The city manager may issue a water shortage declaration by signing a notice of water shortage declaration. A water shortage declaration will take effect on the effective date and time specified in the notice. A water shortage declaration, including any amendment thereto, may be issued for the entire CMU water distribution system or for any designated portions thereof. Upon issuance, a water shortage declaration shall remain in effect until amended or terminated in accordance with this article.

(b) A water shortage declaration may be amended or terminated by the issuance of a notice of such action signed by the city manager and posted in accordance with this section. Water conservation controls imposed pursuant to this article and/or the portion of CMU water distribution system subject to an existing water shortage declaration may be revised by amending such a declaration. The termination of any water shortage declaration will automatically terminate all mandatory water conservation controls imposed pursuant to this article.

(c) A notice required by this article must specify the effective date and time of the notice and be publicly posted in the Charlotte-Mecklenburg Government Center, 600 East Fourth Street, Charlotte, North Carolina, or any other place designated by law or the city council for the posting of public notices for at least 12 hours before taking effect; provided that the city manager may determine that the following notices need not be posted for any minimum period of time:

(1) A notice of termination of a water shortage declaration;

(2) A notice of amendment of a water shortage declaration that reduces the portion of CMU water distribution system subject to the declaration and/or the mandatory water conservation controls in effect; and

(3) A notice of a water shortage declaration or amendment thereto under emergency conditions as set forth therein.

All notices posted pursuant to this article shall state the date and time of posting.
(Ord. No. 2274, § 4(23-133), 3-24-2003)

Sec. 23-255. Phases of water conservation.

(a) Any one of the following phases of water conservation may be implemented by the issuance of a water shortage declaration or amendment of a previously issued declaration:

(1) Phase I, restricted;

(2) Phase II, banned; and

(3) Phase III, emergency.

(b) A water shortage declaration, including without limitation an amendment thereto, imposing phase I, II or III water conservation controls shall specify the controls imposed by such declaration. Customers and users shall comply with such mandatory controls as are specified in a water shortage declaration, including any amendment thereto, issued pursuant to this article. Violation of any mandatory control specified in a declaration issued pursuant to this article shall be subject to such enforcement action as is set forth in this article.

(c) No mandatory control imposed by a water shortage declaration shall apply to any public or volunteer fire department while fighting a fire.

(d) The water shortage management plan adopted pursuant to this article may include classifications of the uses made of water from CMU water system as discretionary, community and business and essential and take such classifications into account in determining the water conservation controls that may be imposed pursuant to this article.
(Ord. No. 2274, § 4(23-134), 3-24-2003)

Sec. 23-256. Phase I, restricted.

(a) A water shortage declaration, including an amendment thereto, may impose phase I water conservation controls at any time that, based upon a recommendation from CMU, the city manager determines that CMU may not be able to meet all demand for discretionary, community and business and essential water uses based on any one or more of the factors set forth in section 23-253(a).

(b) A water shortage declaration imposing phase I water conservation controls may include:

(1) Restrictions on the manner, day of the week, and/or time of day of one or more discretionary water uses; and/or

(2) Complete prohibitions on one or more of such uses.

(c) Community athletic associations, golf courses and similar customers whose use of water to irrigate large areas is a community and business water use may submit a plan for approval by CMU allowing alternatives to the water conservation controls imposed by a water shortage declaration. Approval of alternatives shall be limited to a customer's community and business water use and shall require such customers to comply with substantially equivalent controls on water usage. Violation of any portion of a customer's approved plan shall be considered as a violation of a water conversation control and subject to the provisions of section 23-262 in the same manner as any other violation of a water conservation control imposed pursuant to this article.
(Ord. No. 2274, § 4(23-135), 3-24-2003)

Sec. 23-257. Phase II, banned.

(a) A water shortage declaration, including an amendment thereto, may impose phase II water conservation controls at any time that, based upon a recommendation from CMU, the city manager determines that CMU may not be able to meet all demand for community and business and essential water uses based on any one or more of the factors set forth in section 23-253(a).

(b) A water shortage declaration imposing phase II water conservation controls may include:

(1) Restrictions on the manner, day of the week, and/or time of day of one or more discretionary or community and business water uses; and/or

(2) Complete prohibitions on one or more of such uses.
(Ord. No. 2274, § 4(23-136), 3-24-2003)

Sec. 23-258. Phase III, emergency.

(a) A water shortage declaration, including an amendment thereto, may impose phase III water conservation controls at any time that, based upon a recommendation from CMU and the city manager, the city council determines that CMU may not be able to meet all demand for essential water uses based on any one or more of the factors set forth in section 23-253(a); provided that the city manager may impose phase III water conservation controls without the approval of the city council at any time that, based upon a recommendation from CMU, the city manager determines that CMU may not be able to meet all demand for essential water uses based on any one or more of the factors set forth in section 23-253(a) and also finds that emergency conditions exist. If the city manager imposes phase III water conservation controls pursuant to this section, such controls shall be subject to amendment or termination by the city council.

(b) A water shortage declaration imposing phase III water conservation controls may include:

(1) Restrictions on the manner, day of the week, and/or time of day of one or more discretionary, community and business or essential water uses; and/or

(2) Complete prohibitions on one or more of such uses.

(c) The city manager, based upon a recommendation from CMU, shall determine the specific water conservation controls included in a water shortage declaration imposed pursuant to this section. The provisions of subsection (a) of this section shall not be construed under any circumstances to limit the authority of the city manager under this article to issue, amend or terminate a water shortage declaration or to require approval of the city council in order for the city manager to amend or terminate any water shortage declaration imposing phase III water conservation controls, including, without limitation, amending a water shortage declaration to revise phase III water conservation controls or to impose phase I or II water conservation controls.

(d) In addition to the controls authorized by subsection (b) of this section, the city manager shall also be authorized, based upon a recommendation from CMU, to take such actions as may be reasonably necessary or convenient to ration water among CMU customers, including, without limitation, suspending water service to customers pursuant to a plan approved by the city council.
(Ord. No. 2274, § 4(23-137), 3-24-2003)

Sec. 23-259. Termination for leak in customer's plumbing.

It shall be unlawful for any customer or owner of a plumbing system receiving water from CMU water system to fail to repair a leak in such plumbing system within a reasonable time while a water shortage declaration is in effect. Any customer or owner who fails to repair a leak in such plumbing system within five calendar days after notice to do so from CMU shall be subject to a civil penalty of $100.00 termination of service, or both.
(Ord. No. 2274, § 4(23-138), 3-24-2003)

Sec. 23-260. Permits for hydrant usage.

(a) CMU may issue permits to any customer with a qualifying need during a water shortage declaration authorizing water to be used from fire hydrants that are a part of CMU water system, so long as such water is used in accordance with all water conservation controls imposed by such declaration. Any permit to use water from such a fire hydrant issued prior to a water shortage declaration shall be subject to such declaration and the water conservation controls imposed by such declaration.

(b) In any permit issued pursuant to this section, CMU may impose such conditions and restrictions as are appropriate to require that water used from CMU water system be minimized to the extent practical.

(c) Unless otherwise expressly provided in a permit, any permit subject to this section shall automatically terminate upon the effective date and time of the imposition of phase III water conservation controls.

(d) Any person or entity receiving a permit subject to this section who violates the terms thereof shall be subject to a civil penalty pursuant to section 23-262(e) and to the revocation of the permit. Any person who has violated the term of any permit subject to this section, any variance issued pursuant to this article or any mandatory water conservation control imposed pursuant to this article may be denied a permit, notwithstanding any provision of this section to the contrary. (Ord. No. 2274, § 4(23-139), 3-24-2003)

Sec. 23-261. Variances.

(a) CMU is authorized to issue a variance in accordance with this article permitting any customer satisfying the requirements of this article to use water for a purpose that would otherwise be prohibited by water conservation controls then in effect.

(b) During any time that phase I water conservation controls have been imposed pursuant to this article and except as otherwise provided in this article, CMU shall issue variances under the following circumstances: A customer with a new lawn and/or landscape installed within 30 days of the application for a variance (but not during any time when phase II or phase III water conservation controls were in effect) may be permitted to water such newly installed landscaping on the date of installation and for up to 30 days after the date of installation and, during such time period, shall not be subject to restrictions on the days of the week, but shall be subject to any restrictions on the times of the day, when outdoor vegetation may be watered in accordance with the water conservation controls otherwise in effect. A variance issued pursuant to this subsection may be extended by CMU under such terms and conditions as are set forth in the water shortage management plan.

(c) During any time that phase II water conservation controls have been imposed pursuant to this article and except as otherwise provided in this article, CMU shall issue variances for the following uses: A customer with a new lawn and/or landscape installed within 30 days prior to the implementation of phase II water conservation controls (but not during any time when phase II or phase III water conservation controls were in effect) may be permitted to water such newly installed landscaping on the date of installation and for up to 30 days after the date of installation and during such days of the week and times of the day as designated in the variance.

(d) During any time that phase I or phase II water conservation controls have been imposed pursuant to this article, CMU shall issue variances for the following uses:

(1) A public or volunteer fire department during any training exercise using water from CMU water system under circumstances when such training is reasonably necessary to maintain effective firefighting capabilities;

(2) Any customer or user undertaking any activity required by applicable law; and

(3) Any person or entity proposing to eliminate or reduce unsanitary conditions that pose a substantial risk of injury or disease.

(e) During any time that phase III water conservation controls have been imposed pursuant to this article, CMU may, but shall be under no obligation to, issue variances for the uses listed in subsection (d) of this section.

(f) In any variance issued pursuant to this section, CMU may impose such conditions and restrictions as are appropriate to require that water used from CMU water system be minimized to the extent practical.

(g) Unless otherwise expressly provided in a variance, any variance issued pursuant to this section shall automatically terminate upon the effective date and time of the imposition of phase III water conservation controls.

(h) Any person or entity receiving a variance pursuant to this section who violates the terms thereof shall be subject to a civil penalty pursuant to section 23-262(e) and to the revocation of the variance. Any person who has violated the term of any permit subject to this article, any variance issued pursuant to this section or any mandatory water conservation control imposed pursuant to

this article may be denied a variance, notwithstanding any provision of this section to the contrary.
(Ord. No. 2274, § 4(23-140), 3-24-2003)

Sec. 23-262. Enforcement.

(a) The use of water from CMU water system in violation of any mandatory water conservation control imposed pursuant to this article, the term of any permit subject to section 23-260 or the term of any variance issued pursuant to section 23-261 is unlawful. Further, the refusal or failure of a customer or other person acting on the customer's behalf to cease immediately a violation of a water conservation control, after being directed to do so by a person authorized to enforce the provisions of this article, is unlawful. Each customer is responsible for any use of water that passes through the service connection associated with the customer's account or otherwise passes through the customer's private water system.

(b) Any customer who violates or permits the violation of any mandatory water conservation control imposed pursuant to section 23-256 shall be subject to a civil penalty according to the following schedule of penalties:

	1 1/2-inch service connection or smaller	*2-inch service connection or larger*
First offense	$100.00	$200.00
Second offense	200.00	400.00
Third and subsequent offenses	300.00	600.00

(c) Any customer who violates or permits the violation of any mandatory water conservation control imposed pursuant to sections 23-257 or 23-258 shall be subject to a civil penalty according to the following schedule of penalties:

	1 1/2-inch service connection or smaller	*2-inch service connection or larger*
First offense	$200.00	$ 400.00
Second offense	400.00	800.00
Third and subsequent offenses	600.00	1,200.00

(d) Any customer who violates or permits the violation of any term of a permit subject to section 23-260 or a variance issued pursuant to section 23-261 shall be subject to a civil penalty of $500.00.

(e) Any customer or other person acting on behalf of the customer who refuses or otherwise fails to cease immediately a violation of a water conservation control after being directed to do so by a person authorized to enforce the provisions of this article shall be subject to a civil penalty equal to twice the amount of the civil penalty applicable to the violation which such customer or person was directed to cease.

(f) In addition to the payment of any civil penalty assessed pursuant to this section, a customer shall be subject to termination of water service through any irrigation service connection used to violate any water conservation controls imposed pursuant to this article during any period of time during which a water shortage declaration is continuously in effect under the following circumstances:

(1) Five or more violations of any water conservation control, including, without limitation, the terms of any variance or permit issued pursuant to this article; or

(2) Two or more violations of any phase II or phase III water conservation control, including, without limitation, the terms of any variance or permit issued pursuant to this article.

In the discretion of CMU, termination of such service may include one or more of the following actions: turnoff, meter removal, yoke removal and turnoff at main. Water service will not be restored at such service connection until the customer agrees to such terms as CMU determines are reasonably necessary or advisable to ensure the customer's compliance with such water conservation controls as are then in

effect or may be imposed pursuant to this article and the payment of all the customer's obligations, including, without limitation, all outstanding charges for water service, civil penalties and all other fees, amounts and penalties charged in accordance with the provisions of this chapter. If a customer violates such a term or condition, the customer shall be subject to a civil penalty of up to $1,000.00 in addition to any other remedy that may be authorized by law or agreement and termination of water service through such service connection for up to a minimum period of 15 days. Service may be restored thereafter in accordance with the provisions of this section.

(g) A customer whose water service is terminated pursuant to subsection (f) of this section shall not be entitled to notice and an opportunity for a hearing in advance of such termination. Notice of such termination shall be given as soon as reasonably possible after a decision is made by CMU to terminate such service, but service of such notice and an opportunity for a hearing shall not be conditions precedent to such termination. A customer whose service is terminated pursuant to this section or who receives notice of such a termination shall have five calendar days after termination of service or receipt of notice of termination, whichever is later, to appeal such termination to the director of CMU, or his/her designee, by delivering a written notice of appeal. A hearing shall be held on such appeal within three business days of receipt of the notice of appeal, or by such other date as approved by the director of CMU, or his/her designee, and the customer.

(h) The violation of any water conservation control or provision of this article may be enforced by all remedies authorized by law for noncompliance with municipal ordinances, including the assessment of a civil penalty and action for injunction, order of abatement or other equitable relief; provided that, except as provided in subsection (i) of this section, no violation of any water conservation control or provision of this article shall be a basis for imposing any criminal remedy.

(i) The violation of sections 23-137 and 23-140 during any time while a water shortage declaration is in effect shall be punishable in accordance with applicable law for a criminal misdemeanor, including without limitation a fine of $500.00.

(j) Each civil penalty assessed against a customer pursuant to this article shall be added to the customer's water bill and shall be paid in the same manner as set forth in this chapter for the payment of water bills. Failure to pay all or any portion of a water bill, including any civil penalty assessed pursuant to this article, in a timely manner may result in the termination of water service from CMU.

(k) Except as provided in this subsection, each day that a violation of a mandatory water conservation control occurs shall be considered to be a separate violation.

(1) If a customer or other person acting on behalf of the customer refuses or otherwise fails to cease immediately a violation of a water conservation control after being directed to do so by a person authorized to enforce the provisions of this article, such failure shall constitute a separate violation; and

(2) After receiving a notice of violating a water conservation control and ceasing such violation, a customer who resumes the violation of the water conservation control on the same day shall be guilty of a separate violation.

(l) CMU and any other city employees or persons designated by the city manager shall be authorized to enforce the provisions of this article.

(Ord. No. 2274, § 4(23-141), 3-24-2003)

Chapter 24

UNIFIED DEVELOPMENT ORDINANCE*

***Editor's note—**Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. These regulations were updated by Ordinances 540 and 541 before becoming effective. To view the Unified Development Ordinance regulations visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 540 was adopted by the Charlotte City Council on May 15, 2023, with an effective date of June 1, 2023. The ordinance made amendments to the Unified Development Ordinance before becoming effective. This text amendment was an update to Ordinance 374. To view the Unified Development Ordinance regulations visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 541 was adopted by the Charlotte City Council on May 15, 2023, with an effective date of June 1, 2023. The ordinance made amendments to the Land Clearing & Inert Debris use and regulations in the Unified Development Ordinance, before becoming effective. To view the Unified Development Ordinance regulations visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 596 was adopted by the Charlotte City Council on August 21, 2023, with an effective date of August 21, 2023. The ordinance made amendments to Chapter 15, Use Regulations, in the Unified Development Ordinance, before becoming effective. To view the Unified Development Ordinance regulations visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 640 was adopted by the Charlotte City Council on October 16, 2023, with an effective date of October 16, 2023. The ordinance made amendments to Chapter 15, Use Regulations, in the Unified Development Ordinance, before becoming effective. To view the Unified Development Ordinance regulations visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 716, was adopted by the Charlotte City Council on January 16, 2024, with an effective date of January 16, 2024. The ordinance made amendments to 23 of the 39 articles. These changes include updated language to provide greater clarity, updated graphics, new and updated definitions, adjustments to use permissions and prescribed conditions, revised use names, and minor changes and additions to standards. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 790, was adopted by the Charlotte City Council on April 15, 2024, with an effective date of April 15, 2024. The ordinance made amendments to 9 of the 39 articles. These changes include restructuring the use matrix for Campus zoning districts, adding specific uses for OFC, IC-1, and IC-2, modifying the prescribed conditions for uses allowed in the Campus zoning districts, and creating a new General Office (OG) zoning district. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 801, was adopted by the Charlotte City Council on May 20, 2024, with an effective date of May 20, 2024. The ordinance made amendments to 5 of the 39 articles. These changes include increasing the amount of required open space and green area/tree save from 25% of the site to 40%; increasing the minimum development area from two to five acres; adding a landscape yard at the perimeter of the site; requiring lots to front on public streets, common open space, or green area; increasing the minimum dimensions of required common open space; establishing design standards for required open space; and minor changes and additions to standards. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 819, was adopted by the Charlotte City Council on June 17, 2024, with an effective date of June 17, 2024. The ordinance made amendments to 26 of the 39 articles. These changes include updated language to provide greater clarity, updated graphics, new and updated definitions, adjustments to use permissions and prescribed conditions, revised use names, and minor changes and additions to standards. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 830, was adopted by the Charlotte City Council on May 20, 2024, with an effective date of May 20, 2024. The ordinance made amendments to 4 of the 39 articles. These changes include a new section 4.5.C containing the development standards of the compact residential development option, as well as revised allowances for triplexes. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 854, was adopted by the Charlotte City Council on September 16, 2024, with an effective date of September 16, 2024. The ordinance made amendments to articles 14, 20, and 39. These changes include minor administrative items related to Tree Preservation Accounts and Neighborhood Character Overlay, and to correct scrivener's errors. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 943 was adopted by the Charlotte City Council on February 17, 2025, with an effective date of February 17, 2025. The ordinance made amendments to 23 of the 39 articles. These changes include updated language to provide greater clarity, updated graphics, new and updated definitions, adjustments to use permissions and prescribed conditions, revised use names, and minor changes and additions to standards. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

Editor's note—Ordinance No. 986 was adopted by the Charlotte City Council on June 16, 2025, with an effective date of June 16, 2025. The ordinance made amendments to 26 of the 39 articles. These changes include updated language to provide

greater clarity, updated graphics, new and updated definitions, adjustments to use permissions and prescribed conditions, revised use names, and minor changes and additions to standards. To view the Unified Development Ordinance regulations, visit: https://read.charlotteudo.org/.

APPENDIX A

RESERVED*

*__Editor's note—__Ordinance No. 374 was adopted by the Charlotte City Council on August 22, 2022, with an effective date of June 1, 2023. The ordinance repealed Appendix A, and replaced it with the Unified Development Ordinance in Chapter 24 of the City Code. These regulations were updated by Ordinances 540 and 541 before becoming effective. To view the Unified Development Ordinance regulations visit: https://publicinput.com/charlotteudo. The former Appendix A pertained to the zoning ordinance and was derived from Ordinance No. 90, adopted June 21, 2021. To view the former iterations of the Unified Development Ordinance regulations visit: Mini TOC: APPENDIX A - ZONING — Code of Ordinances — Charlotte, NC — Municode Library; and APPENDIX A - ZONING — Code of Ordinances — Charlotte, NC — Municode Library.

CODE COMPARATIVE TABLE

1985 CODE

This table gives the location within this Code of those sections of the 1985 Code, as updated through September 23, 2002, which are included herein. Sections of the 1985 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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CODE COMPARATIVE TABLE

ORDINANCES

This table gives the location within this Code of those ordinances adopted since the 1985 Code, as updated through September 23, 2002, which are included herein. Ordinances adopted prior to such date were incorporated into the 1985 Code, as supplemented. Ordinances adopted since September 23, 2002, and not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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3249	11-18-1991	1	App. A, § 9.803
3309	4-20-1992	1(1)	App. A, § 9.204
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3314	4-20-1992	1	App. A, § 9.102
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		1(4)	App. A, § 9.503
		1(5)	App. A, § 9.603
		1(6)	App. A, § 9.703
		1(7)	App. A, § 9.803
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3358	7-20-1992	1(1(A))	App. A, § 9.303
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3364	7-20-1992	1	App. A, § 14.301,
			App. A, § 14.302
3402	8-24-1992	1, 2	App. A, § 9.602,
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3432	10-19-1992	1(1)	App. A, § 9.203
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			App. A, § 9.803
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3455	11-16-1992	1	App. A, § 12.205
3523	3-15-1993	1(1)	App. A, § 1.101
		1(2)	App. A, § 1.104
		1(3)	App. A, § 1.105
		1(4)	App. A, § 2.103
		1(5)	App. A, § 2.201
		1(6)	App. A, § 3.301
		1(7)	App. A, § 3.501
		1(8)	App. A, § 3.503
		1(9)	App. A, § 3.510
		1(10)	App. A, § 5.101
		1(11)	App. A, § 5.103
		1(12)	App. A, § 5.111
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		1(14)	App. A, § 7.105
		1(15), 1(16)	App. A, § 9.102
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		1(22)	App. A, § 9.605
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		1(26)—1(30)	App. A, § 9.801—App. A, § 9.805
		1(31), 1(32)	App. A, § 9.1102, App. A, § 9.1103
		1(33)	App. A, § 9.1105
		1(34)	App. A, § 10.101
		1(35)	App. A, § 11.205
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		1(37), 1(38)	App. A, § 11.505, App. A, § 11.506
		1(39)—1(41)	App. A, § 12.101—App. A, § 12.103
		1(42), 1(43)	App. A, § 12.105, App. A, § 12.106
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		1(58)	App. A, § 12.506
		1(59)	App. A, § 12.516
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3581	6-21-1993	1	App. A, § 10.601—App. A, § 10.603
			App. A, § 10.605—App. A, § 10.610
3589	7-19-1993	1	App. A, § 9.906
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			App. A, § 12.212
			App. A, § 12.302
3597	7-19-1993	1	App. A, § 9.203
			App. A, § 9.303
			App. A, § 12.301
3632	9-22-1993	1	App. A, § 12.603
3765	11-22-1993	1	App. A, § 9.605
3780	1-18-1994	1	App. A, § 9.602
3782	1-18-1994	1	App. A, § 2.201
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Ordinance Number	Date	Section	Section this Code
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3819	3-21-1994	1	App. A, § 10.602
		2	App. A, § 10.610
3852	4-18-1994	1	App. A, § 12.103
3892	7-17-1994	1(A)	App. A, § 9.203
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130	9-19-1994	1	App. A, § 13.110
132	9-19-1994	1, 2	App. A, § 11.402, App. A, § 11.403
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196	12-19-1994	1, 2	App. A, § 13.102, App. A, § 13.103
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252	3-20-1995	1	App. A, § 12.112
305	6-19-1995	1.1	App. A, § 2.201
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312	6-19-1995	1	App. A, § 2.201
331	7-17-1995	1.1	App. A, § 9.901
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380	9-18-1995	1	App. A, § 2.201

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			App. A, § 9.805
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		12	App. A, § 9.502
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		15	App. A, § 12.205
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		2(F)	App. A, § 9.404
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391	10-16-1995	1	App. A, § 12.206
408	11-20-1995	1	App. A, § 12.413
447	1-22-1996	1	App. A, § 13.114

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489	3-18-1996	1	App. A, § 12.518
520	3-25-1996	1(1)	App. A, § 13.112
521	3-25-1996	1(1)	App. A, § 1.105
529	4-15-1996	1(1)	App. A, § 9.203
		1(2)	App. A, § 9.303
		1(3)	App. A, § 9.703
		1(4)	App. A, § 9.803
		1(5)	App. A, § 11.203
		1(6)	App. A, § 12.205
612	7-15-1996	2	App. A, § 9.102
			App. A, § 9.802
685	11-18-1996	1	App. A, § 4.105
713	12-16-1996	1(A)	App. A, § 9.802
		1(B)	App. A, § 9.102
763	2-17-1997	1	App. A, § 5.101
764	2-17-1997	1	App. A, § 5.113
765	2-17-1997	1	App. A, § 10.602
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771	3-17-1997	1(3)(B)	App. A, § 9.703
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2402	10-20-2003	1		App. A, § 2.201, App. A, § 12.218
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2412	10-20-2003	1		App. A, § 2.201
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2428-X	11-10-2003		Added	Adopting Ord.
2437	11-17-2003	1		App. A, §§ 9.108(1), (2)
2439	11-17-2003	1A.		App. A, § 9.102, Table
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2456	11-24-2003	1	Added	14-216(a)(25)
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2562	3-22-2004	1		10-64(5)
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2544	3-15-2004	1		App. A, § 12.516
2581	4-12-2004	1	Added	14-201—14-209
2599	5-17-2004	1		App. A, § 9.906(2)(c)
2621	6-14-2004	1	Rpld	19-281—19-292
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2666	8-23-2004	1		2-21(a)
2667	8-23-2004	1		14-1
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2674	9-20-2004	1		App. A, § 2.201
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2760	10-11-2004	1		10-99(a)
2761	10-11-2004	1	Added	15-249—15-252
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2773	10-18-2004	1		App. A, § 2.201
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2811	11-15-2004	1A		App. A, § 2.201
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2832	11-22-2004	1	Added	2-2
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2850	12-20-2004	1A		App. A, § 12.403
2879	2-21-2005	1		App. A, § 12.206(3)
2880	2-21-2005	1A		App. A, § 9.101
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		5A		App. A, § 9.1205(1)
		5B		App. A, § 9.1208(6)(k)
		5C		App. A, § 9.1208(8)(a)
		5D		App. A, § 9.1208(8)(b)
2913	2-28-2005	1	Added	Ch. 15, Art. XI, §§ 15-253—15-260
2915	3-21-2005	1A		App. A, § 2.201
		1B	Added	App. A, § 12.417
		1C		App. A, § 9.102
		1D	Added	App. A, § 12.534
			Added	App. A, § 12.535
				App. A, § 12.519
2916	3-21-2005	1(1)		App. A, § 2.201
		1(2)		App. A, § 12.201(2)
				App. A, § 12.202 (title)
				App. A, §§ 12.202(1), (3), (4)
			Added	App. A, § 12.202(5), (6)
			Added	App. A, § 12.202A
				App. A, § 12.205 (table 12.202)
		1(3)	Added	App. A, § 12.209
		1(4)	Added	App. A, § 9.408(6)
		1(5)	Added	App. A, § 9.8507(7)
		1(6)	Added	App. A, § 9.907(3)
		1(7)	Added	App. A, § 9.1007(3)
		1(8)	Added	App. A, § 10.803(6)(k)
		1(9)	Added	App. A, § 11.506(5)
2918	3-21-2005	1(1)		App. A, § 13.106(12)
				App. A, § 13.107
		2(1)		App. A, § 9.906(e)
2919	3-21-2005	1A		App. A, § 12.218(1)(c)
2979	5-23-2005	1		3-140(a)(1)
2995	6-13-2005	1		4-102
		2		4-107(2)
2937A	4-18-2005	1A		App. A, § 2.201

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		1B	Rpld	App. A, § 13.102(57)(m)
			Rpld	App. A, § 13.106(7)
		1C	Added	App. A, § 12.418
2941	4-18-2005	1A		App. A, § 2.201
		2A	Added	App. A, § 9.203(0.5)
		2B	Added	App. A, § 9.303(0.4)
		2C	Added	App. A, § 9.404(0.4)
		2D	Added	App. A, § 9.503(0.4), (6.5), (8.5)
		2E	Added	App. A, § 9.603(0.5), (3.5), (3.6)
		2F	Added	App. A, § 9.703(0.4), (9.5)
		2G	Added	App. A, § 9.803(0.4), (12.5), (14.2)
		2H		App. A, § 9.8503
		2I	Added	App. A, § 9.903(19)—(21)
		2J	Added	App. A, § 9.1003(7)—(9)
		2K	Added	App. A, § 9.1103(0.5), (5.5), (5.6)
		2L	Added	App. A, § 9.1206(5.5)
		3A	Added	App. A, § 12.532, App. A, § 12.536, 12.537
2942	4-18-2005	1A		App. A, § 11.405(2)
2947	4-18-2005	1	Added	App. A, § 11.202(8)
3007	6-20-2005	1A		App. A, § 2.201
		2A		App. A, § 9.102
		2B	Added	App. A, § 9.203(16)
			Added	App. A, § 9.204(18)
			Added	App. A, § 9.303(22)
			Added	App. A, § 9.304(17)
		2C	Added	App. A, § 9.502(7)
		2D		App. A, § 9.602(6)
		2E		App. A, § 9.702(14)
		2F		App. A, § 9.802(40)
		2G		App. A, § 9.8502
		2H		App. A, § 9.1102(36), (37)
3009	6-20-2005	1		App. A, § 13.110(2)(c)v.
			Added	App. A, § 13.110(2)(c)vii.
3010	6-20-2005	A1		App. A, §
		A2	Added	App. A, § 9.404(3.1)
		A3	Added	App. A, § 9.803(26.1)
		B1	Added	App. A, § 11.403(8.1)
		C1		App. A, § 12.519
			Added	App. A, § 12.538
3017	6-20-2005	1A1		App. A, § 2.201
		1B1	Added	App. A, § 3.201(4)
		1B2	Added	App. A, § 3.501(8)—(13)
				App. A, § 3.502

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				App. A, § 3.503
			Added	App. A, § 3.511
		1C1		App. A, § 4.104
		1C2		App. A, § 4.106(2)
		1D1		App. A, § 5.104
		1D2		App. A, § 5.113
		1E1		App. A, § 6.107(2)
		1F1		App. A, § 8.101
		1F2		App. A, § 8.102
		1F3		App. A, § 8.103
		1F4		App. A, § 8.105
		1G1		App. A, § 9.504(4.1)
		1G2		App. A, § 9.703(17)(v)
		1G3		App. A, § 9.8507(6)
		1G4		App. A, § 9.906(2)(e)(g), (2)(e)(i)
				App. A, § 9.907(1)(e)
		1G5		App. A, § 9.1205(18)(a)
				App. A, § 9.1208(6)(f)
		1H1		App. A, § 10.214(3)
				App. A, §§ 10.215—10.217
		1H2		App. A, § 10.314
		1H3		App. A, § 10.508 4.
		1H4		App. A, § 10.608(4)
		1H5		App. A, § 10.708(4)
		1H6		App. A, § 10.803(6)(g)
		1H7		App. A, § 10.907(6)(f)
				App. A, § 10.907(6)(m)1.
		1I		App. A, § 11.705(3)(a)(4)
		1J	Added	App. A, § 12.101(b)
				App. A, § 12.108(8)(d)4.
				App. A, § 12.108(8)(e)4.
				App. A, § 12.108(8)(f)
				App. A, § 12.108(8)(g)(3)(a)—(c)
				App. A, § 12.108(8)(h)
				App. A, § 12.201(2)
				App. A, § 12.304
				App. A, § 12.407(11)
				App. A, § 12.502(1), (2)
				App. A, § 12.503
				App. A, § 12.505
				App. A, § 12.507
				App. A, § 12.514(6)(b)
				App. A, § 12.515(8)(a), (b)
				App. A, § 12.519(1)

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				App. A, § 12.525(3), (5)
				App. A, § 12.526(1)
				App. A, § 12.528
				App. A, § 12.534(1)(e)
		1K1—1K4		App. A, § 13.103
		1K5		App. A, § 13.104(3)
		1K6		App. A, § 13.106(8)(c)
		1K7		App. A, § 13.107(g), (i)
		1K8		App. A, § 13.110(3)(a)i.
		1K9		App. A, § 13.110(3)(b)
		1K10		App. A, § 13.110(3)(f)ii.
		1K11		App. A, § 13.110(3)(h), (3)(i)
		1K12		App. A, § 13.110(5)(c)
		1K13		13.112(1)(b)4.
		1K14		App. A, § 13.112(1)(d)
		1K15		App. A, § 13.113(1), (2)
		1K16		App. A, § 13.114(7)
		1L		App. A, § 14.304
3018	6-20-2005	1A		20-22(c)
3065-X	8-22-2005		Rpld	22-26—22-35, 22-61—22-75, 22-101—22-115, 22-141—22-154, 22-181—22-183, 22-211—22-224, 22-251—22-256, 22-286—22-292, 22-321—22-323, 22-351—22-354
			Added	22-26—22-35, 22-61—22-74, 22-101—22-115, 22-141—22-153, 22-181—22-183, 22-211—22-225, 22-251—22-256, 22-286—22-283, 22-321—22-323, 22-351—22-354
2960	5-16-05	1		20-6
		2		20-9
		3		20-86
		4		20-89
		5—10		20-91—20-96
		11		20-97(a)
		12		20-97(b)
		13		20-98
2961	5-16-05	1—3		20-6
		4		20-16(5)
		5		20-16(6)
		6		20-21(c)

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2968	5-16-2005	1		App. A, § 9.8504
		2		App. A, § 12.413
3078	9-19-2005	1		App. A, § 2.201
				App. A, § 12.101(a)(5)
			Added	App. A, § 12.101(a)(6)
3141	11-21-2005	1		20-21(f)
3177	1-17-2006	1		App. A, § 2.201
				App. A, § 7.105
				App. A, § 9.201
				App. A, § 9.205(1)
				App. A, § 12.205
3187	1-17-2006	1		App. A, § 9.8506(c)
3189	1-17-2006	1		App. A, § 12.206(1)
3209	2-20-2006	1		App. A, § 9.906(2)(e)
3210	2-20-2006	A1	Rpld	App. A, § 12.204(5)
3214	2-20-2006	A1	Added	App. A, § 12.214(3)
3223	3-20-2006	1		App. A, § 1.102(1)
				App. A, § 3.101(2)
			Added	App. A, § 3.203(6)
			Added	App. A, § 3.301(6)
				App. A, § 5.101(2), (3)
				App. A, § 6.110(3)
				App. A, § 6.111(2)—(4)
			Added	App. A, § 6.111(5)
				App. A, § 6.113(1),(3)
				App. A, § 6.205
			Added	App. A, § 6.209
3224	3-20-2006	1		App. A, § 9.303(19)(e), (f)
				App. A, § 9.305(g)
				App. A, § 9.408(3)
				App. A, § 9.705(1)(g)
				App. A, § 9.805(1)(i)
				App. A, § 9.8507
				App. A, § 9.907(2)
3294	5-15-2006	1	Added	App. A, § 9.103
3325	7-17-2006	1	Added	App. A, § 12.308
3360	8-28-2006	1	Added	Ch. 19, Art. XII, §§ 19-321—19-325
3375-Z	9-18-2006	1		App. A, 2.201
3401	10-18-2006	1		20-6
				20-16(7)
			Added	20-21(i)
3404	10-18-2006	1		App. A, § 12.106(3)
3412	10-23-2006	1		14-216(a)(9)
3413-X	10-23-2006	1	Added	15-25
3422-Z	11-20-2006	1		App. A, § 2.201
				App. A, § 12.102
3438	11-27-2006	1, 2		10-1
3464	1- 8-2007	1		22-141
		2	Rpld	22-142(a)(6)
		3		22-142(b)
3474	1-16-2007	A1	Added	App. A, § 3.502(5)
				App. A, § 3.503
				App. A, § 3.511(6)

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		B1		App. A, § 4.102
		B2		App. A, § 4.103
		B3		App. A, § 4.104
		B4		App. A, § 4.106
		C1		App. A, § 5.101(1)
		C2		App. A, § 5.103(1)
		D1		App. A, § 8.101
		D2		App. A, § 8.102
		D3		App. A, § 8.103
		D4		App. A, § 8.105
		D5	Added	App. A, § 8.107
3510	2-12-2007		Rpld	11-33
			Added	11-45(d)(13)
			Added	11-83(i)
				11-83(b)(3), (b)(4)
				11-83(c)(5)
				11-83(e)(1)
				11-83(e)(7)
				11-83(g)(2)
3518-Z	2-19-2007	A1		App. A, § 2.201
		B1		App. A, § 9.203(13)
		B2		App. A, § 9.303(18)
		B3		App. A, § 9.503(15)
		B4		App. A, § 9.603(18)
		B5		App. A, § 9.703(21)
		B6		App. A, § 9.1103(15)
		C1		App. A, § 11.203(13)
		D1		App. A, § 12.540
3545	3-19-2007	1		App. A, § 12.408
3225	3-20-2007	A1		App. A, § 12.417
3544	3-26-2007			11-77(f), (g)
3561-Z	4-16-2007	A1		App. A, § 2.201
		B1	Added	App. A, § 3.201(5)
		C1		App. A, § 6.207
3578	4-23-2007			Ch. 9
3603	5-29-2007	1		23-5(b)(2), (e)
				23-6(a)
				23-7(c)
		2		23-6(a)
		3	Added	23-6(c)
			Rnbd	23-6(c)
			as	23-6(d)
3604	5-29-2007	1	Added	4-38
3653	7-23-2007		Added	Ch. 5, Art. I, §§ 5-1—5-10
3655	7-23-2007	1		10-1(c)
		2		14-1
		3		14-2
		4		14-312
		5		15-3
		6	Rpld	15-4
		7		15-16
		9	Added	Ch. 15, Art. XII, §§ 15-270—15-276
3666-X	8-27-2007	1	Added	16-30

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3689	9-17-2007	1A	Added	App. A, § 9.602(4A) App. A, § 9.102
3690	9-17-2007	1A		App. A, § 12.206(3)

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3709	10-17-2007	1		App. A, § 9.1105
				App. A, § 9.1102
				App. A, § 9.1103
				App. A, § 12.302
3717	10-17-2007	1		App. A, § 13.102
				App. A, § 13.111
				App. A, § 13.103
3730	10-22-2007	1	Added	Ch. 19, Art. XIII
		2		Ch. 19, Art. V (title)
		3		19-136
		4		19-137
		5		19-140
3733	11-12-2007	1		10-212
3739	11-19-2007	1		App. A, § 2.201
				App. A, § 10.201
				App. A, § 10.803
				App. A, § 10.805
				App. A, § 10.903
3748	11-19-2007	1		App. A, § 12.519(1)
3764	11-26-2007		Added	Ch. 18, Art. IV, Divs. 1—7
3784	1-14-2008	1(Exh. A)		Ch. 11, Arts. I—V
			Added	Ch. 15, Art. XIII, §§ 15-301—15-304
3822	2-18-2008	1		App. A, § 2.201
			Added	App. A, § 9.407(6)
			Added	App. A, § 11.508(1)
			Added	App. A, § 9.8506(7)
				App. A, § 9.905(2)
			Added	App. A, § 9.906(12)
			Added	App. A, § 9.1209(9)
				App. A, § 10.804(1)(g)
			Added	App. A, § 10.908(9)
3875	4- 7-2008	1		23-129(a)
3889	4-21-2008	1		App. A, § 2.201
			Added	App. A, § 4.105
				App. A, § 12.506
				App. A, § 9.902
3941	6- 9-2008	1		Ch. 18, Art. III
4015	9-15-2008	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.702(1)
			Rnbd	App. A, § 9.702(1)—(31)
			as	App. A, § 9.702(2)—(32)
			Added	App. A, § 9.802(2)
			Rnbd	App. A, § 9.802(2)—(91)
			as	App. A, § 9.802(3)—(92)
			Added	App. A, § 9.902(27)
			Added	App. A, § 9.1102(4)
			Rnbd	App. A, § 9.1102(4)—(78)
			as	App. A, § 9.1102(5)—(79)

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4051	10-27-2008	1		17-3
		2		17-4(b)(1)b., e.
		3		17-33
		4		17-34(f)
		5		17-35(a)
		6		17-66(f)(4)
		7	Rpld	17-66(j)
		8		17-67(c)(3)b.
		9		17-67(c)(4)
		10		17-67(e)
4065	11-24-2008	1		App. A, § 2.201
				App. A, § 9.102
				App. A, § 12.534
			Added	App. A, § 12.510
4085	1- 8-2009	1		15-271
		2		15-276
4115	2- 9-2009	1		9-2
		2	Added	9-5(b)(12)
		3		9-21
		4		9-36
		5		9-37
		6		9-61
		7		9-62(b)(3)b., c.
			Added	9-62(b)(4), (5)
		8		9-63(5), (7), (11), (18)
			Added	9-63(19)
			Rnbd	9-63(19)—(23)
			as	9-63(20)—(24)
			Added	9-63(25), (26)
		9		9-64(c)
		10	Added	9-85(e), (f)
		11		9-101(5), (10)
			Added	9-101(14), (15)
		12		9-102(1), (4), (7), (8)
		13		9-104(a)
			Added	9-104(d)
4125	2-23-2009	1	Added	Ch. 19, Art. XIV, §§ 19-351—19-360
4127	3- 9-2009	1		23-1
		2	Added	23-10(d)
			Rnbd	23-10(d)
			as	23-10(e)
		3		23-77
		4		23-78
		5		23-79(b)(19), (c), (e)
		6		23-83(a)
		7		23-85
		8		23-86(c)
		9		23-87(c)(3), (d)
		10		23-88(c)
		11		23-89(e)(1)
		12		23-90(b)
		13		23-91(a)(2)e., f. (c)—(f), (j), (m), (o)
			Added	23-91(p)
		14		23-95(e), (g)
			Added	23-95(h)

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			Rnbd	23-95(h)
			as	23-95(i)
		15		23-96(a)—(c)
		16		23-98(c)
		17		23-99
		18	Rpld	23-100
4118	2-16-2009	1		App. A, § 10.802
				App. A, § 10.803(8)(a)
			Added	App. A, § 10.803(8)(c)
				App. A, § 10.804(1)(f)
				App. A, § 10.805(1)(a)(2), (1)(b), (1)(d), (1)(f)
4129	3-19-2009	1		App. A, § 9.1202(2)
				App. A, § 9.1203
			Added	App. A, § 9.1204(7)
				App. A, § 9.1205(1), (21)
				App. A, § 9.1206(9)
				App. A, § 9.1208(1)(a), (e), (g), (2)(b), (3), (6)(a), (c), (d)
			Added	App. A, § 9.1208(6)(m), (7)(c)
				App. A, § 9.1208(8), (11)(a)(3), (12)
				App. A, § 9.1209(1)(a)
			Added	App. A, § 9.1209(1)(g)—(l)
				App. A, § 9.1209(4), (7)(a), (7)(d)1., (8)(a)
			Added	App. A, § 9.1209(8)(g)
				App. A, § 9.1212(1)
4130	3-19-2009	1		App. A, § 10.901
				App. A, § 10.902
				App. A, § 10.904
				App. A, § 10.907(1)(a), (e)
			Added	App. A, § 10.907(1)(l)
				App. A, § 10.907(2)(b), (3), (4)(a), (5)(a), (6)(a), (c), (d)
			Added	App. A, § 10.907(6)(n)
			Added	App. A, § 10.907(7)(c)
				App. A, § 10.907(8), (11)(a)(3), (12)
				App. A, § 10.908(1)(a)
			Added	App. A, § 10.908(1)(g)—(l)
				App. A, § 10.908(4)(a)
			Added	App. A, § 10.908(4)(d)
				App. A, § 10.908(7)(a), (7)(d)1.

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				App. A, § 10.908(8)(a)
			Added	App. A, § 10.908(8)(g)
				App. A, § 10.912(1)
4150	4-20-2009	1		App. A, § 6.113
4166	5-11-2009	1		13-76
4169	5-19-2009	1		App. A, § 12.521
4186	4-27-2009	1		App. A, § 12.103
4209	6-15-2009	1		App. A, § 2.201
			Added	App. A, § 9.1104 (6.1)
				App. A, § 9.102
4222	7-20-2009	1		App. A, § 9.102
4274	9-28-2009	1	Added	Ch. 5, Art. II, §§ 5-30—5-50
4289	10-12-2009	1	Added	2-3
4307	11- 9-2009	1	Added	Ch. 6, Art. XII, §§ 6-580—6-596
4337	1-19-2010	1		App. A, § 9.05(2), (4)
				App. A, § 9.06(2), (8)
				App. A, § 9.07(1)(h)
4338	1-19-2010	1		App. A, § 12.106(2)(a)
4341	1-19-2010	1	Rpld	App. A, App. 1
				App. A, § 2.201
				App. A, § 9.1208(8)(a)(3)
				App. A, § 10.907(8)(a)(3)
				App. A, § 11.705(3)(a)(11)
				App. A, § 12.302(9)(d)
				12.303(2)(g)
4397	4-20-2009	1		20-20(b)
4412	4-19-2010	1	Added	App. A, § 9.903(14.4)
4421	5-17-2010	1		App. A, § 12.102(7)
4424	5-24-2010	1	Rpld	Ch. 2, Art. III, §§ 2-71—2-78
4453-X	6-21-2010	1		App. A, § 9.205(1)
				App. A, § 9.305(1)
				App. A, § 12.212
4501	9-13-2010	1		3-3
		2		3-31
		3		3-62
		4		3-71
4520	9-20-2010	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.802(66.1)
			Rpld	App. A, § 9.803(16)
			Added	App. A, § 9.803(26.2)
				App. A, §§ 9.8502, 9.8503
			Added	App. A, § 9.902(13.1)
			Added	App. A, § 9.903(14.5)
			Added	App. A, § 9.1102(51.1)
			Rpld	App. A, § 9.1103(23)
			Added	App. A, § 9.1103(36.1)

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			Added	App. A, § 9.1205(18.1)
			Added	App. A, § 9.1206(7.1)
			Added	App. A, § 11.402(21.1)
			Added	App. A, § 11.403(8.2)
			Added	App. A, § 12.541
4521	9-27-2010	1		Ch. 21, Arts. I—V
4543-Z	10-18-2010	1		App. A, § 13.102(S7)(r)
			Added	App. A, § 13.102(S7)(ar)
				App. A, § 13.110(5)
4556-X	11-15-2010	1		App. A, § 12.202A
				App. A, § 12.202
4574	12-20-2010	1		Ch. 20, Arts. I—III
		2		Ch. 20 (note)
4602	2-21-2011	1		App. A, § 2.201
				App. A, § 4.107(2)
			Added	App. A, § 7.103(9)
			Added	App. A, § 12.106(2)(d)
			Rpld	App. A, § 12.112
4605	2-21-2011	1		App. A, § 6.109
4606	12-20-2010	1		App. A, § 2.201
				App. A, § 9.205(1)(e), (4)(b)
				App. A, § 9.303(19)(f)
				App. A, § 9.305(1)(e)
				App. A, § 9.408(1)
				App. A, § 9.8507(5)
			Added	App. A, § 9.906(1)(k)
			Added	App. A, § 9.1007(4)
				App. A, § 10.803(6)(f)
			Rpld	App. A, § 10.803(6)(g)
			Added	App. A, § 11.506(6)
				App. A, § 12.202(1)
				App. A, § 12.206(3)
			Added	App. A, § 12.206(4)
			Rnbd as	App. A, § 12.206(4)
				App. A, § 12.206(5)
				App. A, § 12.805 3.(a)
4607	12-20-2010			21-96(e)(2)
4608	2-28-2011	1		Ch. 6, Art. XI, §§ 6-561—6-567
4609	2-28-2011	1		23-10(a), (c)(1)
		2		23-77
		3, 4		23-79(b)(4), (e)
		5		23-129(a)
4626	3-21-2011	1		20-22(c)
4627	3-21-2011	1		App. A, § 12.103(1)
4646-Z	4-25-2011	1		App. A, §§ 10.508, 10.509
				App. A, §§ 10.608, 10.609
				App. A, § 10.704
				App. A, §§ 10.708—10.710

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				App. A, § 12.603
				App. A, § 12.804
				App. A, § 12.806
				App. A, § 12.901
4657-X	5-16-2011	1		App. A, §§ 6.110, 6.111
4658-Z	5-23-2011	1		App. A, § 6.201
				App. A, § 9.102
				App. A, Ch. 9, Pt. 6, §§ 9.601—9.607
				App. A, Ch. 11, Pt. 7, §§ 11.701—11.709
				App. A, § 12.106(2)(b)
				App. A, § 12.202(4)
				App. A, §§ 12.212, 12.213
				App. A, § 12.218(3)(a)
				App. A, §§ 12.301, 12.302
				App. A, § 12.413
				App. A, § 12.415
				App. A, § 12.417
				App. A, § 12.502(5)
				App. A, § 12.532
				App. A, § 12.532.1
				App. A, § 12.534(1)(a)
4663	5-23-2011	1		Ch. 15, Art. III, §§ 15-61—15-68
4684-Z	6-20-2011	1		App. A, § 2.201
				App. A, § 9.8504
				App. A, § 9.8506(2)(c)
				App. A, § 9.904(2)
				App. A, § 9.906(2)(c)
				App. A, § 9.1207
				App. A, § 9.1209(7)
				App. A, § 11.706(1)
			Rpld	App. A, § 12.416
			Added	App. A, § 13.102(S7)(as)
				App. A, § 13.108b
4687	6-27-2011	1		Ch. 19, Art. VII, §§ 19-206—19-213
4697	7-18-2011	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.404(5.1)
			Rpld	App. A, § 9.503(21)
			Added	App. A, § 9.703(29.6)
				App. A, § 9.803(33)
			Rpld	App. A, § 9.1003(5)
			Rpld	App. A, § 9.1103(43)
				App. A, § 12.527
4698	7-18-2011	1		App. A, § 2.201
				App. A, § 7.103(7)
				App. A, § 9.205(1)
				App. A, § 9.305(1)
				App. A, § 9.406

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			Added	App. A, § 11.205(4), (5)
			Added	App. A, § 11.208(12)
				App. A, § 12.106(2)(a)
				App. A, § 12.108
4699	7-18-2011	1		App. A, § 2.201
			Rpld	App. A, Ch. 10, Pt. 8, §§ 10.801—10.812
			Added	App. A, Ch. 10, Pt. 8, §§ 10.801—10.813
4701	7-25-2011	1(Exh. A)		Ch. 22, Art. II, Divs. 1—10
4705	7-18-2011	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.502(12.5)
			Added	App. A, § 9.504(8.5)
				App. A, § 9.602
			Added	App. A, § 9.604(12.5)
			Added	App. A, § 9.702(29.5)
			Added	App. A, § 9.704(14.5)
			Added	App. A, § 9.802(86.5)
			Added	App. A, § 9.804(14.5)
				App. A, § 9.8502
				App. A, § 9.8504
			Added	App. A, § 9.902(17.5)
			Rpld	App. A, § 9.902(20)
			Added	App. A, § 9.904(4.5)
			Added	App. A, § 9.1002(8.5)
			Added	App. A, § 9.1004
			Added	App. A, § 9.1102(68.5)
			Added	App. A, § 9.1103(44.4)
			Added	App. A, § 9.1104(10.5)
				App. A, § 12.202
			Added	App. A, § 12.416
4752	10-10-2011			18-147(b)
				18-148
				18-161
4764	10-17-2011	1		App. A, § 2.201
				App. A, § 9.406(1)
			Added	App. A, § 9.406(8)
				App. A, § 12.101(a)
4765	10-17-2011	1		App. A, § 2.201
				App. A, § 9.205(1)
				App. A, § 9.407(4)
			Added	App. A, § 12.106(6)
				App. A, § 12.509
				App. A, § 12.805(3)(b)
			Rpld	App. A, § 12.805(3)(c)
4766	10-17-2011	1	Rpld	21-95(f)(1)c.
4790	11-28-2011	1(Exh. A)		22-27
		2(Exh. B)		22-287
4791	11-28-2011	1		15-152
				15-154(2), (3), (5)
4814(a)	1-23-2012	1	Added	15-26—15-31

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4814(b)	1-23-2012	1	Added	Ch. 15, Art. XIV, §§ 15-310—15-313
4815	1-23-2012	1		19-303(a), (b)
		2		19-311
		3		19-312(a), (c)—(e), (f)(1)
4812	1-25-2012	1		App. A, § 2.201
				App. A, § 12.522(6)
4813	1-25-2012	1		App. A, § 12.202
4833	2-20-2012	1		App. A, § 12.506(1)(b), (6)
4835	2-20-2012	1		App. A, § 9.805(8)
4836	2-20-2012	1		App. A, § 9.8506(2)(c)1.
			Added	App. A, § 9.906(2)(e)3.
				App. A, § 9.1209(7)1.(c)
				App. A, § 10.813(1)(f)(5)
				App. A, § 10.908(7)(c)
				App. A, § 13.102(S7)(s)
				App. A, § 13.108(2)
4837	2-20-2012	1		App. A, § 9.1005
4846	3-19-2012	1		App. A, § 9.102
			Added	App. A, § 9.204(2.5)
			Added	App. A, § 9.304(2.5)
			Added	App. A, § 9.504(1.5)
				App. A, § 9.702(13)
			Added	App. A, § 9.704(1.5), (1.6)
				App. A, § 9.802(40)
			Added	App. A, § 9.803(11.5)
			Added	App. A, § 9.804(1.5), (1.6)
				App. A, § 9.902(11)
			Added	9.904(1.7)
			Added	App. A, § 9.1103(14.5)
			Added	App. A, § 9.1104(1.5)
			Added	App. A, § 11.204(2.5)
				App. A, § 11.402(11)
			Added	App. A, § 11.404(1.7)
				App. A, § 12.508(3)
			Added	App. A, § 12.542
4873	5-14-2012	1		App. A, § 12.538
				App. A, § 9.102
			Added	App. A, § 9.203(12.1)
			Added	App. A, § 9.303(17.1)
				App. A, § 9.404(3.1)
			Added	App. A, § 9.503(13.1)
			Added	App. A, § 9.603(14)
			Added	App. A, § 9.703(20.2)
				App. A, § 9.803(26.1)
				App. A, § 9.8503

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			Added	App. A, § 9.903(14.44)
			Added	App. A, § 9.1003(6.01)
			Added	App. A, § 9.1103(35.1)
			Added	App. A, § 9.1206(7.05)
			Added	App. A, § 11.203(12.1)
			Added	App. A, § 11.403(8.1)
			Added	App. A, § 11.703(1.5)
4877	5-14-2012	1		App. A, § 1.104 App. A, § 2.102(8) App. A, § 2.201 App. A, § 3.203(5) App. A, § 3.501 App. A, § 4.106(2)(a) App. A, § 5.113(1), (3) App. A, § 6.103(1) App. A, § 6.104 App. A, § 6.105(1) App. A, § 6.107(3) App. A, § 6.111(1) App. A, § 6.112(3) App. A, § 9.205(4)(d)(iv) App. A, § 9.406(1)—(4), (6) App. A, § 10.101 App. A, § 10.509 1.B.1. App. A, § 10.606 App. A, § 10.609 1.B.1. App. A, § 10.706 App. A, § 10.710 1.B.1. App. A, § 10.904 App. A, § 10.912(2) App. A, § 10.913 App. A, § 11.308 App. A, § 11.405(2), (7) App. A, § 12.103(3)(b)(i) App. A, § 12.108(8)(g)(3)(a) App. A, § 12.513(2), (3)(b) App. A, § 12.514(6) App. A, § 12.803 1.(c) App. A, § 12.806(2)(a) App. A, § 13.110(2) App. A, § 14.304 App. A, Ch. 15, App. 2

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4889	5-14-2012	1		22-287
4890	5-29-2012	1		Ch. 6, Art. XII, §§ 6-580—6-589
4902	6-18-2012	1		App. A, § 9.102
			Added	App. A, § 9.802(86.3)
			Added	App. A, § 9.903(17.5)
			Added	App. A, § 9.1002(11)
			Added	App. A, § 9.1102(68.3)
			Added	App. A, § 9.1205(22.5)
			Added	App. A, § 12.545
4908	6-18-2012	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.203(14.5)
			Added	App. A, § 9.303(19.1)
			Added	App. A, § 9.404(4.5)
			Added	App. A, § 9.503(14.1)
			Added	App. A, § 9.603(16.1)
			Added	App. A, § 9.703(22.5)
			Added	App. A, § 9.803(27.1)
			Added	App. A, § 9.8503
			Added	App. A, § 9.903(14.45)
			Added	App. A, § 9.1003(6.02)
			Added	App. A, § 9.1103(38.5)
			Added	App. A, § 9.1206(8.5)
			Added	App. A, § 11.203(13.5)
			Added	App. A, § 11.403(8.5)
			Added	App. A, § 12.543
4912	6-25-2012			Ch. 9, Arts. I—VII
4925	7-16-2012	1		App. A, § 10.810(a)(1), (2)
				App. A, § 10.813(1)(c)(1)—(3)
4929	7-16-2012	1		App. A, § 9.102
			Added	App. A, § 9.803(14.5)
			Added	App. A, § 9.1103(20.5)
			Added	App. A, § 12.511
4931	7-16-2012	1		App. A, § 2.201
				App. A, § 9.102
				App. A, § 9.204(6)
			Rpld	App. A, § 9.204(8)
				App. A, § 9.304(5)
			Rpld	App. A, § 9.304(7)
				App. A, § 9.704(5)
			Rpld	App. A, § 9.704(7)
				App. A, § 9.804(5)
			Rpld	App. A, § 9.804(7)
				App. A, § 11.204(6)
			Rpld	App. A, § 11.204(8)
				App. A, § 12.106(2)(a)
				App. A, § 12.202

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				App. A, § 12.407
			Rpld	App. A, § 12.412
4987	10-15-2012	1		App. A, § 12.538
5006	11-26-2012	1	Added	23-132.1
		2, 3		23-174(c)(1), (12)
		4		23-175(b)(3)
		5, 6		23-211
		7, 8		23-212(a), (c), (d)
			Added	23-212(e)—(g)
5007	11-26-2012	2		23-129(a)
		3		23-3
				23-10(c)
				23-12
				23-43(2)
				23-46(b)
5029	1-22-2013	1	Added	App. A, § 13.102(A0.5), (P1.5), (P1.6)
			Added	App. A, § 13.110(7)
5033	1-22-2013	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.203(5.2), (6.1)
			Added	App. A, § 9.205(9)
5039	2-18-2013	1	Added	App. A, § 9.305(6)
5057	3-25-2013	1		App. A, § 2.201
				App. A, § 9.102
			Added	App. A, § 9.1003(2.5)
			Added	App. A, § 9.1103(6.5)
5090-X	4-22-2013	1(Exh. A)		10-99
5110	4-15-2013	1	Added	App. A, § 9.8506(2)(j)
			Added	App. A, § 9.906(2)(m)
				App. A, § 10.812(1)
5121	5-20-2013	1		App. A, § 13.108b(7)(a)(1)—(3)
5137	6-17-2013	1		App. A, § 9.1209(7)1.(a)
				App. A, § 10.813(f)(1)
				App. A, § 10.908(7)(a)
5138	6-17-2013	1		App. A, § 9.102
				App. A, § 9.8503
			Added	App. A, § 9.903(5.5)
			Added	App. A, § 9.1206(2.5)
			Added	App. A, § 10.811(0.5)
				App. A, § 10.905
			Added	App. A, § 12.544
5196	9-16-2013	1	Added	App. A, § 13.110(8)
5230	10-28-2013	1(Exh. A)		Ch. 23, Arts. I—III
5259	11-25-2013	1		Ch. 16, Art. II, Div. 2, §§ 16-56—16-64
5282	1-21-2014	1		App. A, § 9.102
			Added	App. A, § 9.803(11.3)
			Added	App. A, § 9.1103(12.5)
5294	1-27-2014	1		9-37
5339	4-28-2014			18-161(c)

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5353	5-19-2014	1		App. A, § 9.102
				App. A, § 9.8503
5406	6- 9-2014	1		13-27
		2		13-30(a)
		3		13-43(a)
5412	6-16-2014	1		App. A, § 2.201
				App. A, § 10.812(1), (3)
			Added	App. A, § 10.813(2)
5417	6-16-2014	1		App. A, § 12.540
5423	7-21-2014	1		App. A, § 2.201
				App. A, § 9.102
				App. A, § 9.303(25)
				App. A, § 9.503(20)
				App. A, § 9.603(22)
				App. A, § 9.703(12), (27), (28)
				App. A, § 9.802(77), (78)
			Added	App. A, § 9.803(12.3)
			Rpld	App. A, § 9.803(19)
				App. A, § 9.8502
				App. A, § 9.8503
				App. A, § 9.902(12)
				App. A, § 9.903(1)
				App. A, § 9.906(2)(d)(4)(f), (2)(d)(8)
			Added	App. A, § 9.1002(2.5)
				App. A, § 9.1002(3)
				App. A, § 9.1102(62), (63)
			Added	App. A, § 9.1103(14.7), (14.8)
			Rpld	App. A, § 9.1103(30)
				App. A, § 9.1202(1)
				App. A, § 9.1205(20)
				App. A, § 9.1206(6)
				App. A, § 9.1208(5)(c), (6)(a)
				App. A, § 10.502
				App. A, § 10.602
				App. A, § 10.702
				App. A, §§ 10.811, 10.812
				App. A, § 10.907(5)(c), (6)(a)
				App. A, § 10.909(3)(b)3.b.
			Added	App. A, § 11.203(8.5)
				App. A, § 11.203(18)
				App. A, § 11.402(26)
			Added	App. A, § 11.403(6.5)
			Rpld	App. A, § 11.403(7)
				App. A, § 11.702(17)
				App. A, § 11.703

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				App. A, § 11.705(9)(a)1.
				App. A, § 12.202
			Rpld	App. A, § 12.206(2)
				App. A, § 12.214
				App. A, § 12.302
				App. A, § 12.413
				App. A, § 12.544
			Added	App. A, § 12.546
				App. A, § 13.102(O1), (S7)(s)
				App. A, § 13.106(16)
5489	10-20-2014	1		App. A, § 9.102
			Added	App. A, § 9.1002(2.3)
			Added	App. A, § 9.1102(22.5)
5494	10-20-2014	1		App. A, § 3.301(1)
				App. A, § 3.303(5)
				App. A, § 5.101(2), (5)
				App. A, § 5.107, 5.108
				App. A, § 5.110
				App. A, § 5.113
5495	10-20-2014	1		App. A, § 9.205(1), (9)(d)(iii)
				App. A, § 9.303(19)(f)
				App. A, § 9.305(1)
				App. A, § 12.106(6)—(8)
			Added	App. A, § 12.102(11), (12)
				App. A, § 12.805 3(a)
5498	10-27-2014			18-161(c)
5522	11-17-2014	1		App. A, § 9.102
			Added	App. A, § 9.304(9.5)
				App. A, § 9.405
			Added	App. A, § 9.504(6.5)
			Added	App. A, § 9.604(9.5)
			Added	App. A, § 9.704(10)
			Added	App. A, § 9.804(10.5)
				App. A, § 9.8504
			Added	App. A, § 9.904(1.8)
			Added	App. A, § 9.1004(2.5)
			Added	App. A, § 9.1104(2.5)
			Added	App. A, § 9.1207(4.5)
			Added	App. A, § 10.811(3)
				App. A, § 10.906
			Added	App. A, § 11.204(10.5)
			Added	App. A, § 11.404(5.3)
			Added	App. A, § 12.419
5531	11-17-2014	1		App. A, § 9.406(4)
				App. A, § 9.805
				App. A, § 9.8505(5)
				App. A, § 9.905(4)

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				App. A, § 9.906(2)(d)(2)(c)
				App. A, § 9.1005
			Added	App. A, § 9.1208(3)(b)
				App. A, § 10.812(1)
			Added	App. A, § 10.907(3)(b)
				App. A, § 11.205(3)
				App. A, § 11.304(3)
				App. A, § 11.505(8)
			Added	App. A, § 11.705(8)(c)
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Towing and booting businesses; generally 6-561 et seq.
See: TOWING AND BOOTING BUSINESSES